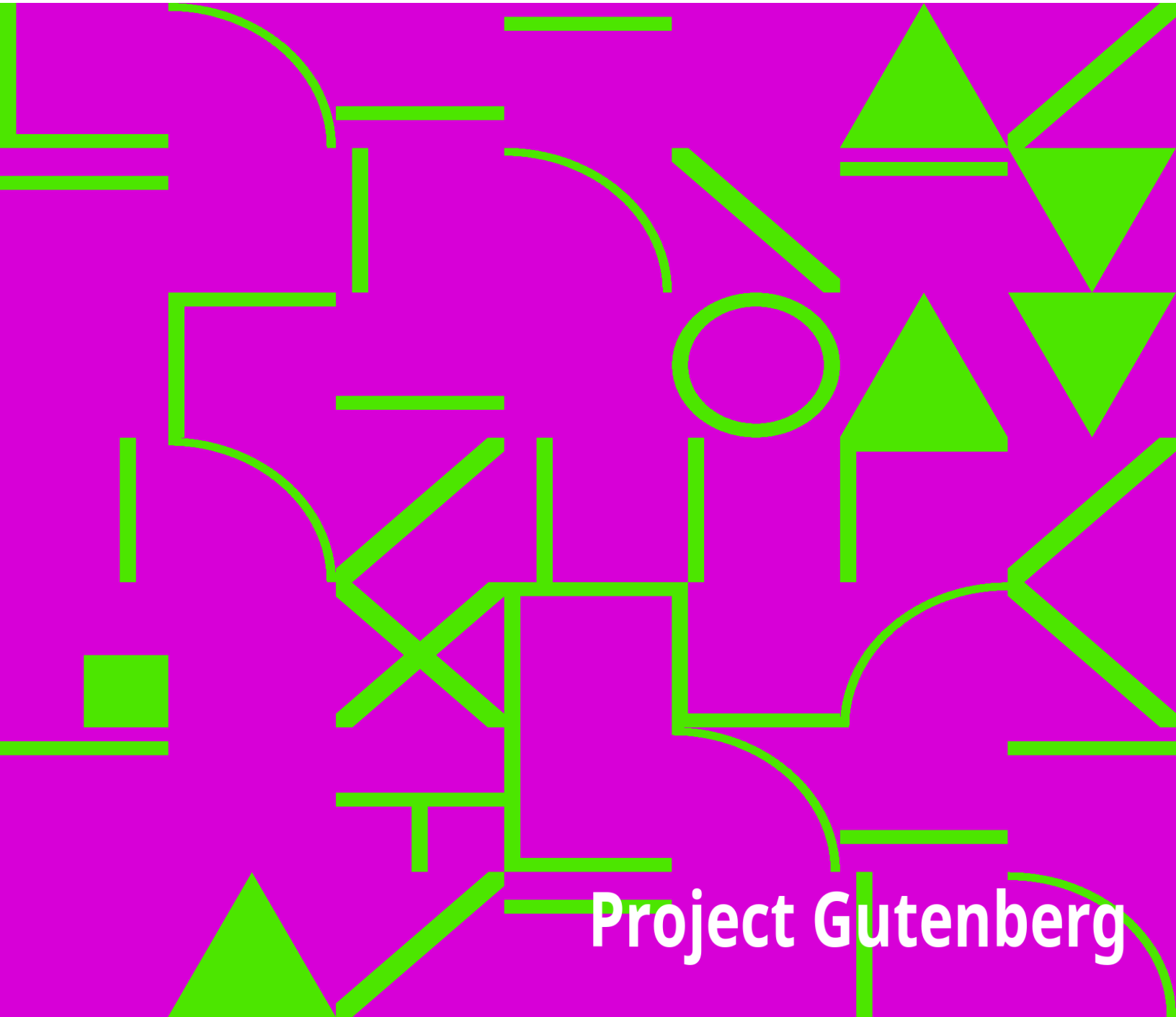


Life and Times of Washington, Volume 2

John Frederick Schroeder and Benson



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Title: Life and Times of Washington, Volume 2

Author: John Frederick Schroeder
Benson John Lossing

Release date: May 1, 2005 [eBook #8145]
Most recently updated: December 10, 2023

Language: English

Other information and formats: www.gutenberg.org/ebooks/8145

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LIFE AND TIMES OF WASHINGTON

VOLUME II

By John F. Schroeder and Benson John Lossing

{Editorial note: The title page of the 1903 source for this e-text identifies the author only as "Schroeder-Lossing" without first names or other identification. The available evidence indicates the work was begun by John Frederick Schroeder (1800-1857) and after his death was completed by Benson John Lossing (1813-1891).}

Revised, Enlarged, And Enriched: And
With A Special Introduction By Edward C.
Towne, B.A.

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**VOLUME II. PART IV. Washington Continental
Commander-in-Chief. 1775-1783.**

CHAPTER X. — WASHINGTON OUT- GENERALS HOWE. 1777.

Among the many perplexing subjects which claimed the attention of Washington during the winter (1776-1777), while he was holding his headquarters among the hills at Morristown, none gave him more annoyance than that of the treatment of American prisoners in the hands of the enemy. Among the civilized nations of modern times prisoners of war are treated with humanity and principles are established on which they are exchanged. The British officers, however, considered the Americans as rebels deserving condign punishment and not entitled to the sympathetic treatment commonly shown to the captive soldiers of independent nations. They seem to have thought that the Americans would never be able, or would never dare, to retaliate. Hence their prisoners were most infamously treated. Against this the Americans remonstrated, and, on finding their remonstrances disregarded, they adopted a system of retaliation which occasioned much unmerited suffering to individuals. Col. Ethan Allen, who had been defeated and made prisoner in a bold but rash attempt against Montreal, was put in irons and sent to England as a traitor. In retaliation, General Prescott, who had been taken at the mouth of the Sorel, was put in close confinement for the avowed purpose of subjecting him to the same fate which Colonel Allen should suffer.

Both officers and privates, prisoners to the Americans, were more rigorously confined than they would otherwise have been, and, that they might not impute this to wanton harshness and cruelty, they were distinctly told that their own superiors only were to blame for any severe treatment they might experience.

The capture of General Lee became the occasion of embittering the complaints on this subject, and of aggravating the sufferings of the prisoners of war. Before that event something like a cartel for the exchange of prisoners had been established between Generals Howe and Washington, but the captivity of General Lee interrupted that arrangement. The general, as we have seen, had been an officer in the British army, but having been

disgusted had resigned his commission, and, at the beginning of the troubles, had offered his services to Congress, which were readily accepted. General Howe affected to consider him as a deserter, and ordered him into close confinement. Washington had no prisoner of equal rank, but offered six Hessian field officers in exchange for him, and required that, if that offer should not be accepted, General Lee should be treated according to his rank in the American army. General Howe replied that General Lee was a deserter from his majesty's service, and could not be considered as a prisoner of war nor come within the conditions of the cartel. A fruitless discussion ensued between the Commanders-in-Chief. Congress took up the matter and resolved that General Washington be directed to inform General Howe, that should the proffered exchange of six Hessian field officers for General Lee not be accepted, and his former treatment continued, the principle of retaliation shall occasion five of the Hessian field officers, together with Lieut. Col. Archibald Campbell, or any other officers that are or shall be in possession of equivalent in number or quality, to be detained, in order that the treatment which General Lee shall receive may be exactly inflicted upon their persons. Congress also ordered a copy of their resolution to be transmitted to the Council of Massachusetts Bay, and that they be desired to detain Lieutenant-Colonel Campbell, and keep him in close custody till the further orders of Congress, and that a copy be also sent to the committee of Congress, in Philadelphia, and that they be desired to have the prisoners, officers, and privates lately taken properly secured in some safe place.

Lieutenant-Colonel Campbell of the Seventy-first Regiment, with about 270 of his men, had been made prisoner in the bay of Boston, while sailing for the harbor, ignorant of the evacuation of the town by the British. Hitherto the colonel had been civilly treated; but, on receiving the order of Congress respecting him, the Council of Massachusetts Bay, instead of simply keeping him in safe custody, according to order, sent him to Concord jail, and lodged him in a filthy and loathsome dungeon, about twelve or thirteen feet square. He was locked in by double bolts and expressly prohibited from entering the prison yard on any consideration whatever. A disgusting hole, fitted up with a pair of fixed chains, and from which a felon had been removed to make room for his reception, was assigned him as an inner apartment. The attendance of a servant was denied him, and no friend was allowed to visit him.

Colonel Campbell naturally complained to Howe of such unworthy treatment, and Howe addressed Washington on the subject. The latter immediately wrote to the Council of Massachusetts Bay, and said, "You will observe that exactly the same treatment is to be shown to Colonel Campbell and the Hessian officers that General Howe shows to General Lee, and as he is only confined to a commodious house, with genteel accommodation, we have no right or reason to be more severe to Colonel Campbell, whom I wish to be immediately removed from his present situation and put into a house where he may live comfortably."

The historian (Gordon), who wrote at the time, gives a very graphic account of the sufferings of the American prisoners in New York, which, dreadful as it seems, is confirmed by many contemporary authorities. He says: "Great complaints were made of the horrid usage the Americans met with after they were captured."

The garrison of Fort Washington surrendered by capitulation to General Howe, the 16th of November. The terms were that the fort should be surrendered, the troops be considered prisoners of war, and that the American officers should keep their baggage and sidearms. These articles were signed and afterwards published in the New York papers. Major Otho Holland Williams, of Rawling's Rifle Regiment, in doing his duty that day, unfortunately fell into the hands of the enemy. The haughty deportment of the officers, and the scurrility of the soldiers of the British army, he afterward said, soon dispelled his hopes of being treated with lenity. Many of the American officers were plundered of their baggage and robbed of their sidearms, hats, cockades, etc., and otherwise grossly ill-treated. Williams and three companions were, on the third day, put on board the *Baltic-Merchant*, a hospital ship, then lying in the sound. The wretchedness of his situation was in some degree alleviated by a small pittance of pork and parsnip which a good-natured sailor spared him from his own mess. The fourth day of their captivity, Rawlings, Hanson, M'Intire, and himself, all wounded officers, were put into one common dirt-cart and dragged through the city of New York as objects of derision, reviled as rebels, and treated with the utmost contempt.

From the cart they were set down at the door of an old wastehouse, the remains of Hampden Hall, near Bridewell, which, because of the openness and filthiness of the place, he had a few months before refused as barracks

for his privates, but now was willing to accept for himself and friends, in hopes of finding an intermission of the fatigue and persecution they had perpetually suffered. Some provisions were issued to the prisoners in the afternoon of that day, what quantity he could not declare, but it was of the worst quality he ever, till then, saw made use of. He was informed the allowance consisted of six ounces of pork, one pound of biscuit, and some peas per day for each man, and two bushels and a half of sea coal per week for the officers to each fireplace. These were admitted on parole, and lived generally in wastehouses. The privates, in the coldest season of the year, were close confined in churches, sugar-houses, and other open buildings (which admitted all kinds of weather), and consequently were subjected to the severest kind of persecution that ever unfortunate captives suffered.

Officers were insulted and often struck for attempting to afford some of the miserable privates a small relief. In about three weeks Colonel Williams was able to walk, and was himself a witness of the sufferings of his countrymen. He could not describe their misery. Their constitutions were not equal to the rigor of the treatment they received and the consequence was the death of many hundreds. The officers were not allowed to take muster-rolls, nor even to visit their men, so that it was impossible to ascertain the numbers that perished; but from frequent reports and his own observations, he verily believed, as well as had heard many officers give it as their opinion, that not less than 1,500 prisoners perished in the course of a few weeks in the city of New York, and that this dreadful mortality was principally owing to the want of provisions and extreme cold. If they computed too largely, it must be ascribed to the shocking brutal manner of treating the dead bodies, and not to any desire of exaggerating the account of their sufferings.

When the King's commissary of prisoners intimated to some of the American officers General Howe's intention of sending the privates home on parole, they all earnestly desired it, and a paper was signed expressing that desire; the reason for signing was, they well knew the effects of a longer confinement, and the great numbers that died when on parole justified their pretensions to that knowledge. In January almost all the officers were sent to Long Island on parole, and there billeted on the inhabitants at \$2 per week.

The filth in the churches (in consequence of fluxes) was beyond description. Seven dead have been seen in one of them at the same time, lying among the excrements of their bodies. The British soldiers were full of their low and insulting jokes on those occasions, but less malignant than the Tories. The provision dealt out to the prisoners was not sufficient for the support of life, and was deficient in quantity, and more so in quality. The bread was loathsome and not fit to be eaten, and was thought to have been condemned. The allowance of meat was trifling and of the worst sort. The integrity of these suffering prisoners was hardly credible. Hundreds submitted to death rather than enlist in the British service, which they were most generally pressed to do. It was the opinion of the American officers that Howe perfectly understood the condition of the private soldiers, and they from thence argued that it was exactly such as he and his council intended. After Washington's success in the Jerseys, the obduracy, and malevolence of the Royalists subsided in some measure. The surviving prisoners were ordered to be sent out as an exchange, but several of them fell down dead in the streets while attempting to walk to the vessels.

Washington wrote to General Howe in the beginning of April: "It is a fact not to be questioned that the usage of our prisoners while in your possession, the privates at least, was such as could not be justified. This was proclaimed by the concurrent testimony of all who came out. Their appearance justified the assertion, and melancholy experience in the speedy death of a large part of them, stamped it with infallible certainty."

The cruel treatment of the prisoners being the subject of conversation among some officers captured by Sir Guy Carleton, General Parsons, who was of the company, said, "I am very glad of it." They expressed their astonishment and desired him to explain himself. He thus addressed them: "You have been taken by General Carleton, and he has used you with great humanity, would you be inclined to fight against him?" The answer was, "No." "So," added Parsons, "would it have been, had the troops taken by Howe been treated in like manner, but now through this cruelty we shall get another army."

The Hon. William Smith, learning how the British used the prisoners, and concluding it would operate to that end by enraging the Americans, applied to the committee of New York State for leave to go into the city and remonstrate with the British upon such cruel treatment, which he doubted

not but that he should put a stop to. The committee, however, either from knowing what effect the cruelties would have in strengthening the opposition to Britain, or from jealousies of his being in some other way of disservice to the American cause or from these united, would not grant his request.

Washington, at the beginning of 1777, determined to have the army inoculated for the smallpox, which had made fearful ravages in the ranks. It was carried forward as secretly and carefully as possible, and the hospital physicians in Philadelphia were ordered at the same time to inoculate all the soldiers who passed through that city on their way to join the army. The same precautions were taken in the other military stations, and thus the army was relieved from an evil which would have materially interfered with the success of the ensuing campaign. The example of the soldiery proved a signal benefit to the entire population, the practice of inoculation became general, and, by little and little, this fatal malady disappeared almost entirely.

In the hope that something might be effected at New York, Washington ordered General Heath, who was in command in the Highlands, to move down towards the city with a considerable force. Heath did so, and in a rather grandiloquent summons called upon Fort Independence to surrender. The enemy, however, stood their ground, and Heath, after a few days, retreated, having done nothing, and exposed himself to ridicule for not having followed up his words with suitable deeds.

While Washington was actively employed in the Jerseys in asserting the independence of America, Congress could not afford him much assistance, but that body was active in promoting the same cause by its enactments and recommendations. Hitherto the Colonies had been united by no bond but that of their common danger and common love of liberty. Congress resolved to render the terms of their union more definite, to ascertain the rights and duties of the several Colonies, and their mutual obligations toward each other. A committee was appointed to sketch the principles of the union or confederation.

This committee presented a report in thirteen Articles of Confederation and perpetual Union between the States, and proposed that, instead of calling themselves the United Colonies, as they had hitherto done, they should assume the name of the United States of America; that each State

should retain its sovereignty, freedom, and independence, and every power, jurisdiction, and right, which is not by the confederation expressly delegated to the United States in Congress assembled; that they enter into a firm league for mutual defense; that the free inhabitants of any of the States shall be entitled to the privileges and immunities of free citizens in any other State; that any traitor or great delinquent fleeing from one State and found in another shall be delivered up to the State having jurisdiction of his offense; that full faith and credit shall be given in each of the States to the records, acts, and judicial proceedings of every other State; that delegates shall be annually chosen in such manner as the legislature of each State shall direct, to meet in Congress on the first Monday of November, with power to each State to recall its delegates, or any of them, at any time within the year, and to send others in their stead; that no State shall be represented in Congress by less than two or more than seven members, and no person shall be a delegate for more than three out of six years, nor shall any delegate hold a place of emolument under the United States; that each State shall maintain its own delegates; that in Congress each State shall have only one vote; that freedom of speech shall be enjoyed by the members, and that they shall be free from arrest, except for treason, felony, or breach of the peace; that no State, without the consent of Congress, shall receive any ambassador, or enter into any treaty with any foreign power; that no person holding any office in any of the United States shall receive any present, office, or title from any foreign State, and that neither Congress nor any of the States shall grant any titles of nobility; that no two or more of the States shall enter into any confederation whatever without the consent of Congress; that no State shall impose any duties which may interfere with treaties made by Congress; that in time of peace no vessels of war or military force shall be kept up in any of the States but by the authority of Congress, but every State shall have a well-regulated and disciplined militia; that no State, unless invaded, shall engage in war without the consent of Congress, nor shall they grant letters of marque or reprisal till after a declaration of war by Congress; that colonels and inferior officers shall be appointed by the Legislature of each State for its own troops; that the expenses of war shall be defrayed out of a common treasury, supplied by the several States according to the value of the land in each; that taxes shall be imposed and levied by authority and direction of the several States within the time prescribed by Congress; that Congress has the sole and

exclusive right of deciding on peace and war, of sending and receiving ambassadors, and entering into treaties; that Congress shall be the last resort on appeal in all disputes and differences between two or more of the States; that Congress have the sole and exclusive right and power of regulating the alloy and value of coin struck by their own authority, or by that of the respective States, fixing the standard of weights and measures, regulating the trade, establishing post-offices, appointing all officers of the land forces in the service of the United States, except regimental officers, appointing all the officers of the naval forces, and commissioning all officers whatever in the service of the United States, making rules for the government and regulation of the said land and naval forces, and directing their operations; that Congress have authority to appoint a committee to sit during their recess, to be dominated a Committee of the States, and to consist of one delegate from each State; that Congress shall have power to ascertain the necessary sums of money to be raised for the service of the United States, and to appropriate and apply the same, to borrow money or emit bills on the credit of the United States, to build and equip a navy, to fix the number of land forces, and to make requisitions from each State for its quota, in proportion to the number of white inhabitants in such State; that the consent of nine States shall be requisite to any great public measure of common interest; that Congress shall have power to adjourn to any time within the year, and to any place within the United States, but the adjournment not to exceed six months, and that they shall publish their proceedings monthly, excepting such parts relating to treaties, alliances, or military operations, as in their judgment require secrecy; that the yeas and nays of the delegates of each State shall, if required, be entered on the journal, and extracts granted; that the Committee of the States, or any nine of them, shall, during the recess of Congress, exercise such powers as Congress shall vest them with; that Canada, if willing, shall be admitted to all the advantages of the union; but no other colony shall be admitted, unless such admission shall be agreed to by nine States; that all bills of credit emitted, moneys borrowed, or debts contracted by Congress before this confederation, shall be charges on the United States; that every State shall abide by the determinations of Congress on all questions submitted to them by this confederation; that the articles of it shall be inviolably observed by every State, and that no alteration in any of the articles shall be made, unless agreed to by Congress, and afterward confirmed by the legislature of every State.

Such was the substance of this confederation or union. After much discussion, at thirty-nine sittings, the articles were approved by Congress, transmitted to the several State Legislatures, and, meeting with their approbation, were ratified by all the delegates on the 15th of November, 1778.

Congress maintained an erect posture, although its affairs then wore the most gloomy aspect. It was under the provisions of this confederation that the war was afterward carried on, and, considered as a first essay of legislative wisdom, it discovers a good understanding, and a respectable knowledge of the structure of society. Had peace been concluded before the settlement of this confederation, the States would probably have broken down into so many independent governments, and the strength of the Union been lost in a number of petty sovereignties.

It is not hazarding much to say that, considering all the circumstances, it was the best form of government which could have been framed at that time. Its radical defect arose from its being a confederation of independent States, in which the central government had no direct recourse to the people. It required all grants of men or money to be obtained from the State governments, who were often, during the war, extremely dilatory in complying with the requisitions of Congress. This defect was strongly felt by Washington, who was often compelled to exert his personal influence, which, in all the States, was immense, to obtain the supplies which Congress had no power to exact. We shall see hereafter, that in forming the new constitution, a work in which Washington took a leading part, this defect was remedied.

While Congress was beginning to form these articles of confederation, and Washington was giving a new aspect to the war in New Jersey, the people of Great Britain, long accustomed to colonial complaints and quarrels, and attentive merely to their own immediate interests, paid no due regard to the progress of the contest or to the importance of the principles in which it originated. Large majorities in both houses of parliament supported the ministry in all their violent proceedings, and although a small minority, including several men of distinguished talents, who trembled for the fate of British liberty if the court should succeed in establishing its claims against the colonists, vigorously opposed the measures of administration, yet the great body of the people manifested a loyal zeal in favor of the war, and the

ill success of the Colonists in the campaign of 1776, gave that zeal additional energy.

But amidst all the popularity of their warlike operations, the difficulties of the ministry soon began to multiply. In consequence of hostilities with the American provinces, the British West India islands experienced a scarcity of the necessaries of life. About the time when the West India fleet was about to set sail, under convoy, on its homeward voyage, it was discovered that the negroes of Jamaica meditated an insurrection. By means of the draughts to complete the army in America, the military force in that island had been weakened, and the ships of war were detained to assist in suppressing the attempts of the negroes. By this delay the Americans gained time for equipping their privateers. After the fleet sailed it was dispersed by stormy weather and many of the ships, richly laden, fell into the hands of the American cruisers who were permitted to sell their prizes in the ports of France, both in Europe and in the West Indies.

The conduct of France was now so openly manifested that it could no longer be winked at, and it drew forth a remonstrance from the British cabinet. The remonstrance was civilly answered, and the traffic in British prizes was carried on somewhat more covertly in the French ports in Europe; but it was evident that both France and Spain were in a state of active preparation for war. The British ministry could no longer shut their eyes against the gathering storm, and began to prepare for it. About the middle of October (1776) they put sixteen additional ships into commission, and made every exertion to man them.

On the 31st of October the parliament met and was opened by a speech from the throne, in which his majesty stated that it would have given him much satisfaction if he had been able to inform them that the disturbances in the revolted Colonies were at an end, and that the people of America, recovering from their delusion, had returned to their duty; but so mutinous and determined was the spirit of their leaders that they had openly abjured and renounced all connection and communication with the mother country and had rejected every conciliatory proposition. Much mischief, he said, would accrue not only to the commerce of Great Britain but to the general system of Europe if this rebellion were suffered to take root. The conduct of the Colonists would convince every one of the necessity of the measures proposed to be adopted, and the past success of the British arms promised

the happiest results; but preparations must be promptly made for another campaign. A hope was expressed of the general continuance of tranquility in Europe, but that it was thought advisable to increase the defensive resources at home.

The addresses to the speech were in the usual form, but amendments were moved in both houses of parliament; in the Commons by Lord John Cavendish and in the Lords by the Marquis of Rockingham. After an animated debate the amendment was rejected, in the House of Commons by 242 against 87, and in the Lords by 91 against 26. During the session of parliament some other attempts were made for adopting conciliatory measures, but the influence of ministry was so powerful that they were all completely defeated, and the plans of administration received the approbation and support of parliament.

During the winter (1776-1777), which was very severe, the British troops at Brunswick and Amboy were kept on constant duty and suffered considerable privations. The Americans were vigilant and active, and the British army could seldom procure provisions or forage without fighting. But although in the course of the winter the affairs of the United States had begun to wear a more promising aspect, yet there were still many friends of royalty in the provinces. By their open attachment to the British interest, numbers had already exposed themselves to the hostility of the patriotic party; and others, from affection to Britain or distrust of the American cause, gave their countenance and aid to General Howe. Early in the season a considerable number of these men joined the royal army, and were embodied under the direction of the Commander-in-Chief with the same pay as the regular troops, besides the promise of an allotment of land at the close of the disturbances. Governor Tryon, who had been extremely active in engaging and disciplining them, was promoted to the rank of major-general of the Loyal Provincialists. {1}

The campaign opened on both sides by rapid predatory incursions and bold desultory attacks. At Peekskill, on the North river, about fifty miles above New York, the Americans had formed a post, at which, during the winter, they had collected a considerable quantity of provisions and camp-equipage to supply the stations in the vicinity as occasion might require.

The most mountainous part of the district, named the Manor of Courland, was formed into a kind of citadel, replenished with stores, and Peekskill

served as a port to it. On the 23d of March (1777), as soon as the river was clear of ice, Howe, who thought Peekskill of more importance than it really was, detached Colonel Bird, with about 500 men, under convoy of a frigate and some armed vessels, against that post. General M'Dougal, who commanded there, had then only about 250 men in the place. He had timely notice of Colonel Bird's approach, and, sensible that his post was untenable, he exerted himself to remove the stores to the strong grounds about two miles and a half in his rear; but before he had made much progress in the work the British appeared, when he set fire to the stores and buildings and retreated. Colonel Bird landed and completed the destruction of the stores which he was unable to remove. On the same day he re-embarked, and returned to New York.

On the 8th of April (1777), says Gordon, Congress concluded upon the erection of a monument to the memory of General Warren in the town of Boston, and another to the memory of General Mercer in Fredericksburg, in Virginia, and that the eldest son of General Warren, and the youngest son of General Mercer, be educated from henceforward at the expense of the United States. They conveyed in a few words the highest eulogium on the characters and merits of the deceased. Through inattention, General Warren, who fell on Breed's Hill, had not been properly noted when Congress passed their resolve respecting General Montgomery: the proposal for paying due respect to the memory of Mercer led to the like in regard to Warren.

On the 13th of April Lord Cornwallis and General Grant, with about 2,000 men, attempted to surprise and cut off General Lincoln, who, with 500 men, was posted at Bound Brook, seven miles from Brunswick, and nearly succeeded in their enterprise. But by a bold and rapid movement Lincoln, when almost surrounded, forced his way between the British columns and escaped, with the loss of sixty men, his papers, three field pieces, and some baggage.

At that early period of the campaign Howe attempted no grand movement against the main body of the army under Washington at Morristown, but he made several efforts to interrupt his communications, destroy his stores, and impede his operations. He had received information that the Americans had collected a large quantity of stores in the town of Danbury and in other places on the borders of Connecticut. These he

resolved to destroy, and appointed Major-General Tryon of the Provincials, who panted for glory in his newly-acquired character, to command an expedition for that purpose, but prudently directed Generals Agnew and Sir William Erskine to accompany him.

On the 25th of April (1777) the fleet appeared off the coast of Connecticut, and in the evening the troops were landed without opposition between Fairfield and Norwalk. General Silliman, then casually in that part of the country, immediately dispatched expresses to assemble the militia. In the meantime Tryon proceeded to Danbury which he reached about 2 the next day. On his approach Colonel Huntingdon, who had occupied the town with about 150 men, retired to a neighboring height, and Danbury, with the magazines it contained, was consumed by fire.

General Arnold, who was also in the State superintending the recruiting service, joined General Silliman at Reading, where that officer had collected about 500 militia. General Wooster, who had resigned his commission in the Continental service, and been appointed major-general of the militia, fell in with them at the same place, and they proceeded in the night through a heavy rain to Bethel, about eight miles from Danbury. Having heard next morning that Tryon, after destroying the town and magazines, was returning, they divided their troops, and General Wooster, with about 300 men, fell in his rear, while Arnold, with about 500, crossing the country, took post in his front at Ridgefield. Wooster came up with his rear about 11 in the morning, attacked it with great gallantry, and a sharp skirmish ensued in which he was mortally wounded, {2} and his troops were repulsed.

Tryon then proceeded to Ridgefield where he found Arnold already entrenched on a strong piece of ground, and prepared to dispute his passage. A warm skirmish ensued, which continued nearly an hour. Arnold was at length driven from the field after which he retreated to Paugatuck, about three miles east of Norwalk.

At break of day next morning, after setting Ridgefield on fire, the British resumed their march. About 11 in the forenoon, April 28th (1777), they were again met by Arnold, whose numbers increased during the day to rather more than 1,000 men, among whom were some Continental troops. A continued skirmishing was kept up until 5 in the afternoon, when the British formed on a hill near their ships. The Americans attacked them with

intrepidity, but were repulsed and broken. Tryon, availing himself of this respite, re-embarked his troops and returned to New York.

The loss of the British amounted to about 170 men. {3} That of the Americans was represented by Tryon as being much more considerable. By themselves it was not admitted to exceed 100. In this number, however, were comprehended General Wooster, Lieutenant-Colonel Gould, and another field officer, killed, and Colonel Lamb wounded. Several other officers and volunteers were killed. Military and hospital stores to a considerable amount, which were greatly needed by the army, were destroyed in the magazines at Danbury, but the loss most severely felt was rather more than 1,000 tents which had been provided for the campaign about to open.

Not long afterward this enterprise was successfully retaliated. A British detachment had been for some time employed in collecting forage and provisions on the eastern end of Long Island. Howe supposed this part of the country to be so completely secured by the armed vessels which incessantly traversed the Sound, that he confided the protection of the stores deposited at a small port called Sag Harbor to a schooner with twelve guns and a company of infantry.

General Parsons, who commanded a few recruits at New Haven, thinking it practicable to elude the cruisers in the bay, formed the design of surprising this party and other adjacent posts, the execution of which was entrusted to Lieutenant-Colonel Meigs, a gallant officer who had accompanied Arnold in his memorable march to Quebec. He embarked with about 230 men on board 13 whale-boats, and proceeded along the coast to Guilford, where he was to cross the Sound. With about 170 of his detachment, under convoy of two armed sloops, he proceeded (May 23, 1777) across the Sound to the north division of the island near Southhold in the neighborhood of which a small foraging party against which the expedition was in part directed, was supposed to lie, but they had marched two days before to New York. The boats were conveyed across the land, a distance of about fifteen miles, into a bay which deeply intersects the eastern end of Long Island, where the troops re-embarked. Crossing the bay they landed at 2 in the morning, about four miles from Sag Harbor, which they completely surprised and carried with charged bayonets. At the same time a division of the detachment secured the armed schooner and the

vessels laden with forage, which were set on fire and entirely consumed. Six of the enemy were killed and ninety taken prisoners. A very few escaped under cover of the night.

The object of his expedition being effected without the loss of a man, Colonel Meigs returned to Guilford with his prisoners. "Having," as was stated in the letter to General Parsons, "moved with such uncommon celerity as to have transported his men by land and water 90 miles in 25 hours." Congress directed a sword to be presented to him, and passed a resolution expressing the high sense entertained of his merit, and of the prudence, activity, and valor displayed by himself and his party.

The exertions made by Washington through the winter to raise a powerful army for the ensuing campaign had not been successful. The hopes respecting its strength, which the flattering reports made from every quarter had authorized him to form, were cruelly disappointed, and he found himself not only unable to carry into effect the offensive operations he had meditated, but unequal even to defensive warfare. That steady and persevering courage, however, which had supported himself and the American cause through the gloomy scenes of the preceding year did not forsake him, and that sound judgment which applies to the best advantage those means which are attainable, however inadequate they may be, still remained. His plan of operations was adapted to that which he believed his enemy had formed. He was persuaded either that General Burgoyne, who was then at Quebec, would endeavor to take Ticonderoga and to penetrate to the Hudson, in which event General Howe would cooperate with him by moving up that river, and attempting to possess himself of the forts and high grounds commanding its passage, or that Burgoyne would join the grand army at New York by sea, after which the combined armies would proceed against Philadelphia.

To counteract the designs of the enemy, whatever they might be, to defend the three great points, Ticonderoga, the Highlands of New York, and Philadelphia, against two powerful armies so much superior to him in arms, in numbers, and in discipline, it was necessary to make such an arrangement of his troops as would enable the parts reciprocally to aid each other without neglecting objects of great and almost equal magnitude, which were alike threatened, and were far asunder. To effect these purposes, the troops of New England and New York were divided between

Ticonderoga and Peekskill, while those from Jersey to North Carolina inclusive, were directed to assemble at the camp to be formed in Jersey. The more southern troops remained in that State for its protection.

These arrangements being made and the recruits collected, the camp at Morristown was broken up, the detachments called in, and the army assembled at Middlebrook (May 28, 1777), just behind a connected ridge of strong and commanding heights north of the road leading to Philadelphia, and about ten miles from Brunswick.

This camp, the approaches to which were naturally difficult, Washington took care to strengthen still further by entrenchments. The heights in front commanded a prospect of the course of the Raritan, the road to Philadelphia, the hills about Brunswick, and a considerable part of the country between that place and Amboy, so as to afford him a full view of the most interesting movements of the enemy.

The force brought into the field by the United States required all the aid which could be derived from strong positions and unremitting vigilance. On the 20th of May (1777) the army in Jersey, excluding cavalry and artillery, amounted to only 8,378 men, of whom upwards of 2,000 were sick. The effective rank and file were only 5,738.

Had this army been composed of the best disciplined troops, its inferiority in point of numbers must have limited its operations to defensive war, and have rendered it incompetent to the protection of any place whose defense would require a battle in the open field. But more than half the troops were unacquainted with the first rudiments of military duty, and had never looked an enemy in the face. As an additional cause of apprehension, a large proportion of the soldiers, especially from the middle States, were foreigners, in whose attachment to the American cause full confidence could not be placed.

Washington, anticipating a movement by land toward Philadelphia, had taken the precaution to give orders for assembling on the western bank of the Delaware an army of militia strengthened by a few Continental troops, the command of which was given to General Arnold who was then in Philadelphia employed in the settlement of his accounts.

The first and real object of the campaign on the part of Howe was the acquisition of Philadelphia. He intended to march through Jersey, and after securing the submission of that State to cross the Delaware on a portable

bridge constructed in the winter for the purpose and proceed by land to that city. If, in the execution of this plan, the Americans could be brought to a general action on equal ground, the advantages of the royal army must insure a victory. But should Washington decline an engagement and be again pressed over the Delaware the object would be as certainly obtained.

Had Howe taken the field before the Continental troops were assembled this plan might probably have been executed without any serious obstruction, but the tents and camp equipage expected from Europe did not arrive until Washington had collected his forces and taken possession of the strong post on the Heights of Middlebrook. It would be dangerous to attack him on such advantageous ground, for, although his camp might be forced, victory would probably be attended with such loss as to disable the victor from reaping its fruits.

If it was deemed too hazardous to attack the strong camp at Middlebrook, an attempt to cross the Delaware in the face of an army collected on its western bank, while that under Washington remained unbroken in his rear, was an experiment of equal danger. It suited the cautious temper of Howe to devise some other plan of operation to which he might resort should he be unable to seduce Washington from his advantageous position.

The two great bays of Delaware and Chesapeake suggested the alternative of proceeding by water, should he be unable to maneuver Washington out of his present encampment.

The plan of the campaign being settled and some small reinforcements with the expected camp equipage being received from Europe, Howe, leaving a garrison in New York and a guard in Amboy, assembled his army at Brunswick, and gave strong indications of an intention to penetrate through the country to the Delaware and reach Philadelphia by land.

Believing this to be his real design Washington (June 13, 1777) placed a select corps of riflemen under the command of Colonel Morgan, who had distinguished himself in the unfortunate attempt to storm Quebec, and in whom those particular qualities which fit a man for the command of a partisan corps, designed to act on the lines of a formidable enemy, were eminently united.

He was ordered to take post at Vanvughton's bridge on the Raritan, just above its confluence with the Millstone river, to watch the left flank of the British army and seize every occasion to harass it.

Early in the morning of the 14th, Howe, leaving 2,000 men under the command of General Matthews at Brunswick, advanced in two columns toward the Delaware. The front of the first, under Cornwallis, reached Somerset Court House, nine miles from Brunswick, by the appearance of day, and the second, commanded by General de Heister, reached Middlebush about the same time.

This movement was made with the view of inducing Washington to quit his fortified camp and approach the Delaware, in which event, Howe expected to bring on an engagement on ground less disadvantageous than that now occupied by the American army. But Washington understood the importance of his position too well to abandon it.

On the first intelligence that the enemy was in motion, he drew out his whole army, and formed it to great advantage on the heights in front of his camp. This position was constantly maintained. The troops remained in order of battle during the day, and in the night slept on the ground to be defended.

In the meantime the Jersey militia, with alacrity theretofore unexampled in that State, took the field in great numbers. They principally joined General Sullivan, who had retired from Princeton, behind the Sourland hills toward Flemington, where an army of some extent was forming, which could readily cooperate with that under the immediate inspection of Washington.

The settled purpose of Washington was to defend his camp, but not to hazard a general action on other ground. He had therefore determined not to advance from the heights he occupied into the open country, either towards the enemy or the Delaware.

The object of Howe was, by acting on his anxiety for Philadelphia, to seduce him from the strong ground about Middlebrook, and tempt him to approach the Delaware in the hope of defending its passage. Should he succeed in this, he had little doubt of being able to bring on an engagement, in which he counted with certainty on victory.

The considerations which restrained Howe from attempting to march through Jersey, leaving the American army in full force in his rear, had determined Washington to allow him to proceed to the Delaware, if such should be his intention. In that event, he had determined to throw those impediments only in the way of the hostile army which might harass and

retard its march, and maintaining the high and secure grounds north of the road to be taken by the enemy, to watch for an opportunity of striking some important blow with manifest advantage.

Washington was not long in penetrating Howe's designs. "The views of the enemy," he writes to General Arnold in a letter of the 17th (June, 1777), "must be to destroy this army and get possession of Philadelphia. I am, however, clearly of opinion, that they will not move that way until they have endeavored to give a severe blow to this army. The risk would be too great to attempt to cross a river when they must expect to meet a formidable opposition in front and would have such a force as ours in their rear. They might possibly be successful, but the probability would be infinitely against them. Should they be imprudent enough to make the attempt, I shall keep close upon their heels and will do everything in my power to make the project fatal to them."

"But, besides the argument in favor of their intending, in the first place, a stroke at this army, drawn from the policy of the measure, every appearance contributes to confirm the opinion. Had their design been for the Delaware in the first instance, they would probably have made a secret, rapid march for it, and not have halted so as to awaken our attention, and give us time to prepare for obstructing them. Instead of that they have only advanced to a position necessary to facilitate an attack on our right, the part in which we are most exposed. In addition to this circumstance, they have come out as light as possible, leaving all their baggage, provisions, boats, and bridges at Brunswick. This plainly contradicts the idea of their intending to push for the Delaware."

Finding the American army could not be drawn from its strong position Howe determined to waste no more time in threatening Philadelphia by land, but to withdraw from Jersey and to embark his army as expeditiously as possible for the Chesapeake or the Delaware. On the night of the 19th of June (1777), he returned to Brunswick, and on the 22d to Amboy, from which place the heavy baggage and a few of his troops passed into Staten Island on the bridge which had been designed for the Delaware. {2}

Washington had expected this movement from Brunswick and had made arrangements to derive some advantage from it. General Greene was detached with three brigades to annoy the British rear, and Sullivan and Maxwell were ordered to cooperate with him. In the meantime the army

paraded on the Heights of Middlebrook, ready to act as circumstances might require.

About sunrise, Colonel Morgan drove in a picket-guard, soon after which that division commenced its march to Amboy. Some sharp skirmishing took place between this party and Morgan's regiment, but the hope of gaining any important advantage was entirely disappointed, and the retreat to Amboy was effected with inconsiderable loss.

In order to cover his light parties, which still hung on the British flank and rear, Washington advanced six or seven miles to Quibbletown on the road to Amboy, and Lord Stirling's division was pushed still further, to the neighborhood of the Metucking Meeting House, for the purpose of co-operating with the light parties should the retreat to Staten Island afford an opportunity of striking at the rear.

Believing it now practicable to bring on an engagement and probably hoping to turn the left of the American army and gain the heights in its rear, Howe, in the night of the 25th, recalled the troops from Staten Island, and early next morning (June 26, 1777) made a rapid movement in two columns, towards Westfield. The right, under the command of Cornwallis took the route by Woodbridge to the Scotch plains, and the left, led by Howe in person, marched by Metucking Meeting House to fall into the rear of the right column. It was intended that the left should take a separate road soon after this junction and attack the left flank of the American army at Quibbletown, while Cornwallis should gain the heights on the left of the camp at Middlebrook. Four battalions with six pieces of cannon were detached to Bonhamtown.

About Woodbridge the right column fell in with one of the American parties of observation, which gave notice of this movement. Washington discerned his danger, put the whole army instantly in motion, and regained the camp at Middlebrook. Cornwallis fell in with Lord Stirling and a sharp skirmish ensued, in which the Americans were driven from their ground with the loss of three field-pieces and a few men. They retreated to the hills about the Scotch Plains and were pursued as far as Westfield. Perceiving the passes in the mountains on the left of the American camp to be guarded, and the object of this skilful maneuver to be, consequently, unattainable, Cornwallis returned through Rahway to Amboy, and the whole army crossed over to Staten Island. Washington was now again left to his

conjectures respecting the plan of the campaign. The very next day (June 27), after Howe had finally evacuated the Jerseys, intelligence was received of the appearance of Burgoyne on Lake Champlain, and that Ticonderoga was threatened. This intelligence strengthened the opinion that the design of Howe must be to seize the passes in the mountains on the Hudson, secure the command of that river, and effect a junction between the two armies. Yet Washington could not permit himself to yield so entirely to this impression, as to make a movement which might open the way by land to Philadelphia. His army, therefore, maintained its station at Middlebrook, but arrangements were made to repel any sudden attack on the posts which defended the Hudson.

Some changes made in the stations of the British ships and troops having relieved Washington from his apprehensions of a sudden march to Philadelphia, he advanced Sullivan's division to Pompton Plains, on the way to Peekskill, and proceeded with the main body of his army to Morristown, thus approaching the Highlands of New York without removing so far from Middlebrook as to be unable to regain that camp should Howe indicate an intention to seize it.

Meanwhile Howe prosecuted diligently his plan of embarkation, which was necessarily attended with circumstances indicating a much longer voyage than one up the North river. These circumstances were immediately communicated to the Eastern States, and Congress was earnestly pressed to strengthen the fortifications on the Delaware, and to increase the obstructions in that river.

In the midst of these appearances certain intelligence was received that Burgoyne was in great force on the lakes, and was advancing against Ticonderoga. This intelligence confirmed the opinion that the main object of Howe must be to effect a junction with Burgoyne on the North river. Under this impression Washington ordered Sullivan to Peekskill, and slowly advanced himself, first to Pompton Plains, and afterward to the Clove, where he determined to remain until the views of the enemy should be disclosed.

While Washington thus anxiously watched the movements of his adversary, an agreeable and unexpected piece of intelligence was received from New England. The command of the British troops in Rhode Island had devolved on General Prescott. Thinking himself perfectly secure in an

island, the water surrounding which was believed to be entirely guarded by his cruisers, and at the head of an army greatly superior to any force then collected in that department, he indulged himself in convenient quarters rather distant from camp, and was remiss with respect to the guards about his person. Information of this negligence was communicated to the main, and a plan was formed to surprise him. This spirited enterprise was executed with equal courage and address by Lieutenant-Colonel Barton of the Rhode Island militia.

On the night of the 10th (June, 1777) he embarked on board four whale-boats at Warwick Neck, with a party consisting of about forty persons, including Captains Adams and Philips, and several other officers. After proceeding about ten miles by water unobserved by the British guard boats, although several ships of war lay in that quarter, he landed on the west of the island, about midway between Newport and Bristol Ferry, and marching a mile to the quarters of Prescott, dexterously seized the sentinel at his door, and one of his aids. The general himself was taken out of bed and conveyed to a place of safety.

The success of this intrepid enterprise diffused the more joy throughout America, because it was supposed to secure the liberation of General Lee by enabling Washington to offer an officer of equal rank in exchange for him.

Congress expressed a high sense of the gallant conduct of Colonel Barton and his party, and presented him with a sword as a mark of approbation.

As the fleet fell down toward Sandy Hook, Washington withdrew slowly from the Clove, and disposed his army in different divisions, so as to march to any point which might be attacked.

At length the embarkation was completed and the fleet put to sea. Still, its destination was uncertain. It might be going to the south, or it might return to New York and ascend the Hudson. Soon, however, Washington received intelligence that it had been seen off the capes of the Delaware. It was of course expected to come up the Delaware and attack Philadelphia.

Washington ordered the army to march to Germantown, and himself hastened forward to Chester. The fleet of the British had disappeared again. It might have returned to New York, or it might have sailed to New England, with a view to joining Burgoyne as he was advancing on Ticonderoga.

During this period of suspense and conjecture, Washington was for several days in Philadelphia consulting on public measures with the committees and members of Congress. Here he first met Lafayette. This young nobleman, whose name has since become so dear to every American heart, was born at Auvergne, in France, on the 6th of September, 1757. His family was of ancient date and of the highest rank among the French nobility. He was left an orphan at an early age, heir to an immense estate, and exposed to all the temptations of "the gayest and most luxurious city on earth at the period of its greatest corruption. He escaped unhurt." Having completed his college education, he married at the age of sixteen the daughter of the Duke D'Ayen, of the family of Noailles. She was younger than himself and was always "the encourager of his virtues, and the heroic partner of his sufferings, his great name, and his honorable grave." {3}

In the summer of 1776 (says Mr. Everett), and just after the American declaration of independence, Lafayette was stationed at Metz, a garrisoned town on the road from Paris to the German frontier with the regiment to which he was attached as a captain of dragoons, not then nineteen years of age. The Duke of Gloucester, the brother of the King of England happened to be on a visit to Metz, and a dinner was given to him by the commandant of the garrison. Lafayette was invited with other officers to the entertainment. Dispatches had just been received by the duke from England relating to American affairs—the resistance of the Colonists, and the strong measures adopted by the ministers to crush the rebellion. Among the details stated by the Duke of Gloucester was the extraordinary fact that these remote, scattered, and unprotected settlers of the wilderness had solemnly declared themselves an independent people. That word decided the fortunes of the enthusiastic listener, and not more distinctly was the great declaration a charter of political liberty to the rising States, than it was a commission to their youthful champion to devote his life to the same cause.

The details which he heard were new to him. The American contest was known to him before but as a rebellion—a tumultuary affair in a remote transatlantic colony. He now, with a promptness of perception which, even at this distance of time, strikes us as little less than miraculous, addressed a multitude of inquiries to the Duke of Gloucester on the subject of the contest. His imagination was kindled at the idea of a civilized people struggling for political liberty. His heart was warmed with the possibility of drawing his sword in a good cause. Before he left the table his course was

mentally resolved on, and the brother of the King of England (unconsciously, no doubt) had the singular fortune to enlist, from the French court and the French army, this gallant and fortunate champion in the then unpromising cause of the colonial Congress.

He immediately repaired to Paris to make further inquiries and arrangements toward the execution of his great plan. He confided it to two young friends, officers like himself, the Count de Ségur and Viscount de Noailles, and proposed to them to join him. They shared his enthusiasm, and determined to accompany him, but on consulting their families, they were refused permission. But they faithfully kept Lafayette's secret. Happily—shall I say—he was an orphan, independent of control, and master of his own fortune, amounting to near \$40,000 per annum.

He next opened his heart to the Count de Broglie, a marshal in the French army. To the experienced warrior, accustomed to the regular campaigns of European service, the project seemed rash and quixotic, and one that he could not countenance. Lafayette begged the count at least not to betray him, as he was resolved (notwithstanding his disapproval of the subject) to go to America. This the count promised, adding, however, "I saw your uncle fall in Italy, and I witnessed your father's death at the battle of Minden, and I will not be accessory to the ruin of the only remaining branch of the family." He then used all the powers of argument which his age and experience suggested to him, to dissuade Lafayette from the enterprise, but in vain. Finding his determination unalterable, he made him acquainted with the Baron De Kalb, who the count knew was about to embark for America—an officer of experience and merit who, as is well known, fell at the battle of Camden.

The Baron de Kalb introduced Lafayette to Silas Deane, then agent of the United States in France, who explained to him the state of affairs in America, and encouraged him in his project. Deane was but imperfectly acquainted with the French language, and of manners somewhat repulsive. A less enthusiastic temper than that of Lafayette might, perhaps, have been chilled by the reception that he met with from Deane. He had, as yet, not been acknowledged in any public capacity, and was beset by the spies of the British ambassador. For these reasons it was judged expedient that the visit of Lafayette should not be repeated, and their further negotiations were conducted through the intervention of Mr. Carmichael, an American

gentleman at that time in Paris. The arrangement was at length concluded, in virtue of which Deane took upon himself, without authority, but by a happy exercise of discretion, to engage Lafayette to enter the American service with the rank of major-general. A vessel was about to be dispatched with arms and other supplies for the American army, and in this vessel it was settled that he should take passage.

At this juncture the news reached France of the evacuation of New York, the loss of Fort Washington, the calamitous retreat through New Jersey, and other disasters of the campaign of 1776. The friends of America in France were in despair. The tidings, bad in themselves, were greatly exaggerated in the British gazettes. The plan of sending an armed vessel with munitions was abandoned. The cause, always doubtful, was now pronounced desperate, and Lafayette was urged by all who were privy to his project, to give up an enterprise so wild and hopeless. Even our commissioners (for Deane had been joined by Dr. Franklin and Arthur Lee) told him they could not in conscience urge him to proceed. His answer was: "My zeal and love of liberty have perhaps hitherto been the prevailing motive with me, but now I see a chance of usefulness which I had not anticipated. These supplies I know are greatly wanted by Congress. I have money; I will purchase a vessel to convey them to America, and in this vessel my companions and myself will take passage."

His purpose was opposed by the government, and he was obliged to escape into Spain and sail from that country. He landed near Georgetown in South Carolina, and in company with the Baron de Kalb, the companion of his voyage, proceeded to Charleston, where they were received with enthusiasm by the magistrates and the people.

As soon as possible they proceeded by land to Philadelphia. On his arrival there, with the eagerness of a youth anxious to be employed upon his errand, he sent his letters to Mr. Lovell, chairman of the committee of foreign relations. He called the next day at the hall of Congress, and asked to see this gentleman. Mr. Lovell came out to him, stated that so many foreigners offered themselves for employment in the American army that Congress was greatly embarrassed to find them commands; that the finances of the country required the most rigid economy, and that he feared, in the present case, there was little hope of success. Lafayette perceived that the worthy chairman had made up his report without looking at the papers;

he explained to him that his application, if granted, would lay no burden upon the finances of Congress, and addressed a letter to the president, in which he expressed a wish to enter the American army on the condition of serving without pay or emolument, and on the footing of a volunteer. These conditions removed the chief obstacles alluded to in reference to the appointment of foreign officers; the letters brought by Lafayette made known to Congress his high connections, and his large means of usefulness, and without an hour's delay he received from them a commission of major-general in the American army, a month before he was twenty years of age.

Washington was at headquarters when Lafayette reached Philadelphia, but he was daily expected in the city. The introduction of the youthful stranger to the man on whom his career depended was therefore delayed a few days. It took place in a manner peculiarly marked with the circumspection of Washington, at a dinner party, where Lafayette was one among several guests of consideration. Washington was not uninformed of the circumstances connected with his arrival in the country. He knew what benefit it promised the cause if his character and talents were adapted to the cause he had so boldly struck out, and he knew also how much it was to be feared that the very qualities which had prompted him to embark in it, would make him a useless and even a dangerous auxiliary. We may well suppose that the piercing eye of the Father of his Country was not idle during the repast. But that searching glance, before which pretense or fraud never stood undetected, was completely satisfied. When they were about to separate, Washington took Lafayette aside, spoke to him with kindness, paid a just tribute to the noble spirit which he had shown, and the sacrifices he had made in the American cause, invited him to make the headquarters of the army his home, and to regard himself at all times as one of the family of the Commander-in-Chief.

Such was the reception given to Lafayette by the most sagacious and observant of men, and the personal acquaintance thus commenced ripened into an intimacy, a confidence, and an affection without bounds, and never for one moment interrupted. If there lived a man whom Washington loved it was Lafayette. The proofs of this are not wanted by those who have read the history of the Revolution, but the private correspondence of these two great men, hitherto unpublished, discloses the full extent of the mutual regard and affection which united them. It not only shows that Washington entertained the highest opinion of the military talent, the personal probity, and the

general prudence and energy of Lafayette, but that he regarded him with the tenderness of a father, and found in the affection which Lafayette bore to him in return one of the greatest comforts and blessings of his own life. Whenever the correspondence of Washington and Lafayette shall be published, the publication will do what perhaps nothing else can—raise them both in the esteem and admiration of mankind.

Our readers will pardon this somewhat lengthened quotation respecting the bosom friend of Washington. We now return to our narrative of events.

Late in the month of August (1777), Washington was relieved from his suspense in regard to the movements of Howe. He received intelligence that the British fleet had sailed up Chesapeake Bay, and that he was landing his army at the head of Elk river, now Elkton. It was at length clearly apparent that his object was the capture of Philadelphia.

At the place of debarkation the British army was within a few days' march of Philadelphia; no great rivers were in its way, and there was no very strong position of which the enemy could take possession. On landing, General Howe issued a proclamation promising that private property should be respected, and offering pardon and protection to all who should submit to him, but, as the American army was at hand, the proclamation produced little effect.

Washington distinctly understood the nature of the contest in which he was engaged, and, sensible of the inferiority of his raw and disorderly army to the veteran troops under Howe, he wished to avoid a general engagement, but aware of the effect which the fall of Philadelphia would produce on the minds of the people, determined to make every effort in order to retard the progress and defeat the aim of the royal army.

Accordingly, he marched to meet General Howe, who, from want of horses, many of which had perished in the voyage, and from other causes, was unable to proceed from the head of the Elk before the 3d of September (1777). On the advance of the royal array, Washington retreated across Brandywine creek, which falls into the Delaware at Wilmington. He took post with his main body opposite Chad's ford, where it was expected the British would attempt the passage, and ordered General Sullivan, with a detachment, to watch the fords above. He sent General Maxwell with about 1,000 light troops, to occupy the high ground on the other side of the Brandywine, to skirmish with the British, and retard them in their progress.

On the morning of the 11th of September, the British army advanced in two columns; the right, under General Knyphausen, marched straight to Chad's ford; the left, under Cornwallis, accompanied by Howe and Generals Grey, Grant, and Agnew, proceeded by a circuitous route toward a point named the Forks, where the two branches of the Brandywine unite, with a view to turn the right of the Americans and gain their rear. General Knyphausen's van soon found itself opposed to the light troops under General Maxwell. A smart conflict ensued. General Knyphausen reinforced his advanced guard, and drove the Americans across the rivulet to shelter themselves under their batteries on the north bank. General Knyphausen ordered some artillery to be placed on the most advantageous points, and a cannonade was carried on with the American batteries on the heights beyond the ford.

Meanwhile the left wing of the British crossed the fords above the Forks. Of this movement General Washington had early notice, but the information which he received from different quarters, through his raw and unpracticed scouts, was confused and contradictory, and consequently his operations were embarrassed. After passing the fords, Cornwallis took the road to Dilworth, which led him on the American right. General Sullivan, who had been appointed to guard that quarter, occupied the heights above Birmingham Church, his left extending to the Brandywine, his artillery judiciously placed, and his right flank covered by woods. About four in the afternoon Cornwallis formed the line of battle and began the attack: for some time the Americans sustained it with intrepidity, but at length gave way. When Washington heard the firing in that direction he ordered General Greene, with a brigade, to support General Sullivan. General Greene marched four miles in forty-two minutes, but, on reaching the scene of action, he found General Sullivan's division defeated, and in confusion. He covered the retreat, and, after some time, finding an advantageous position, he renewed the battle, and arrested the progress of the pursuing enemy.

General Knyphausen, as soon as he heard the firing of Cornwallis's division, forced the passage of Chad's ford, attacked the troops opposed to him, and compelled them to make a precipitate and disorderly retreat. General Washington, with the part of his army which he was able to keep together, retired with his artillery and baggage to Chester, where he halted within eight miles of the British army, till next morning, when he retreated to Philadelphia.

Among the foreign officers engaged in this battle besides Lafayette, who was wounded in the leg during the action, were General Deborre, a French officer; {6} General Conway, an Irishman, who had served in France; Capt. Louis Fleury, a French engineer, and Count Pulaski, a Polish nobleman, subsequently distinguished as a commander of cavalry.

As must ever be the case in new-raised armies, unused to danger and from which undeserving officers have not been expelled, their conduct was not uniform. Some regiments, especially those which had served the preceding campaign, maintained their ground with the firmness and intrepidity of veterans, while others gave way as soon as they were pressed. The author of a very correct history of the war, speaking of this action, says: "A part of the troops, among whom were particularly numbered some Virginia regiments, and the whole corps of artillery, behaved exceedingly well in some of the actions of this day, exhibiting a degree of order, firmness, and resolution, and preserving such a countenance in extremely sharp service, as would not have discredited veterans. Some other bodies of their troops behaved very badly."

The official letter of Sir William Howe stated his loss at rather less than 100 killed and 400 wounded, and this account was accepted at the time as true. A late discovery shows its falsehood. Mr. Headley, in his recent "Life of Washington," notices the finding of a document which settles the question.

It was found, he says, among Gen. James Clinton's papers, carefully filed away and indorsed by himself. On the back, in his own handwriting, is inscribed: "Taken from the enemy's ledgers, which fell into the hands of General Washington's army at the action of Germantown."

Within is the following statement: "State of the British troops and position they were in when they made the attack at Brandywine, the 11th of September, 1777.

*The upper ford, under the command of Lieutenant
Lord Cornwallis:*

<i>Second Regiment, British Guards; Second</i>		<i>Killed and</i>
<i>Regiment, Light Infantry</i>	<i>1,740</i>	<i>wounded.</i>
<i>Second Brigade, British Foot</i>	<i>2,240</i>	<i>612</i>
<i>First Division, Hessians</i>	<i>800</i>	<i>360</i>
<i>Ferguson's Riflemen</i>	<i>80</i>	<i>70</i>
		<i>46</i>

<i>Totals</i>	<u>4,860</u>	<u>1,088</u>
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Middle ford, under the command of Major-General Gray:

<i>Second Battalion, Guards</i>		<i>500</i>
<i>Second Battalion, Second Highlanders</i>		<i>700</i>
<i>Second Battalion, Seventieth Highlanders</i>		<i>700</i>
<i>Total</i>		<u><i>1,900</i></u>

Lower ford, under the command of Lieutenant-General Knyphausen:

<i>Second Brigade, consisting of the Fourth, Fifth, Tenth, Fifteenth, Twenty-third, Twenty-seventh, Twenty-eighth, Fortieth, Forty-fourth, and Fifty-fifth Regiments</i>	<i>2,240</i>	<i>Killed and wounded.</i> <i>580</i>
<i>Hessians to the amount of</i>	<i>800</i>	<i>28</i>
<i>Queen's Rangers</i>	<i>480</i>	<i>290</i>
	<u></u>	<u></u>
<i>Total</i>	<i>3,520</i>	<i>898</i>
	<i>1,900</i>	
	<u><i>4,860</i></u>	<u><i>1,088</i></u>
	<u></u>	<u></u>
<i>The whole British force</i>	<i>10,280</i>	<i>1,986</i>
	<i>1,986</i>	
	<u><i>8,294"</i></u>	

The estimate, says Mr. Headley, of the total force which the British had on the field, makes the two armies actually engaged about equal. The heavy loss here given seems, at first sight, almost incredible, and puts an entirely different aspect on the battle. Of the authenticity and accuracy of this document I think there can be no doubt.

From the ardor with which Washington had inspired his troops before this action, it is probable that the conflict would have been more severe had the intelligence respecting the movement on the left of the British army been less contradictory. Raw troops, changing their ground in the moment of action, and attacked in the agitation of moving, are easily thrown into confusion. This was the critical situation of a part of Sullivan's division, and was the cause of its breaking before Greene could be brought up to support it, after which it was impossible to retrieve the fortune of the day. But had the best disposition of the troops been made at the time, which subsequent intelligence would suggest, the action could not have terminated in favor of

the Americans. Their inferiority in numbers, in discipline, and in arms was too great to leave them a probable prospect of victory. A battle, however, was not to be avoided. The opinion of the public and of Congress demanded it. The loss of Philadelphia, without an attempt to preserve it, would have excited discontent throughout the country, which might be productive of serious mischief, and action, though attended with defeat, provided the loss be not too great, must improve an army in which not only the military talents, but even the courage of officers, some of them of high rank, remained to be ascertained.

The battle of Brandywine was not considered as decisive by Congress, the general, or the army. The opinion was carefully cherished that the British had gained only the ground, and that their loss was still more considerable than had been sustained by the Americans. Congress appeared determined to risk another battle for the metropolis of America. Far from discovering any intention to change their place of session, they passed vigorous resolutions for reinforcing the army, and directed Washington to give the necessary orders for completing the defenses of the Delaware.

From Chester the army marched through Darby, over the Schuylkill bridge to its former ground near the falls of that river. Greene's division, which, having been less in action, was more entire than any other, covered the rear, and the corps of Maxwell remained at Chester until the next day as a rallying point for the small parties and straggling soldiers who might yet be in the neighborhood.

Having allowed his army one day for repose and refreshment, Washington recrossed the Schuylkill and proceeded on the Lancaster road, with the intention of risking another engagement.

Sir William Howe passed the night of the 11th on the field of battle. On the succeeding day he detached Major-General Grant with two brigades to Concord Meeting House, and on the 13th (September, 1777), Lord Cornwallis joined General Grant, and marched toward Chester. Another detachment took possession of Wilmington, to which place the sick and wounded were conveyed.

To prevent a sudden movement to Philadelphia by the lower road the bridge over the Schuylkill was loosened from its moorings, and General Armstrong was directed, with the Pennsylvania militia, to guard the passes over that river.

On the fifteenth the American army, intending to gain the left of the British, reached the Warren tavern, on the Lancaster road, twenty-three miles from Philadelphia. Intelligence was received early next morning that Howe was approaching in two columns. It being too late to reach the ground he had intended to occupy Washington resolved to meet and engage him in front.

Both armies prepared with great alacrity for battle. The advanced parties had met, and were beginning to skirmish, when they were separated by a heavy rain, which, becoming more and more violent, rendered the retreat of the Americans a measure of absolute necessity. The inferiority of their arms never brought them into such imminent peril as on this occasion. Their gunlocks not being well secured, their muskets soon became unfit for use. Their cartridge-boxes had been so badly constructed as not to protect their ammunition from the tempest. Their cartridges were soon damaged, and this mischief was the more serious, because very many of the soldiers were without bayonets.

The army being thus rendered unfit for action the design of giving battle was reluctantly abandoned by Washington and a retreat commenced. It was continued all the day and great part of the night, through a cold and most distressing rain and very deep roads. A few hours before day (September 17th), the troops halted at the Yellow Springs, where their arms and ammunition were examined, and the alarming fact was disclosed that scarcely a musket in a regiment could be discharged and scarcely one cartridge in a box was fit for use. This state of things suggested the precaution of moving to a still greater distance in order to refit their arms, obtain a fresh supply of ammunition, and revive the spirits of the army. Washington therefore retired to Warwick Furnace on the south branch of French creek, where ammunition and muskets might be obtained in time to dispute the passage of the Schuylkill and make yet another effort to save Philadelphia.

The extreme severity of the weather had entirely stopped the British army. During two days Howe made no other movement than to unite his columns.

From French creek General Wayne was detached with his division into the rear of the British with orders to join General Smallwood, and, carefully concealing himself and his movements, to seize every occasion which this

march might offer of engaging them to advantage. Meanwhile, General Washington crossed the Schuylkill at Parker's Ferry, and encamped on both sides of Perkyomen creek.

General Wayne lay in the woods near the entrance of the road from Darby into that leading to Lancaster, about three miles in the rear of the left wing of the British troops encamped at Trydruffin, where he believed himself to be perfectly secure. But the country was so extensively disaffected that Howe received accurate accounts of his position and of his force. Major-General Gray was detached to surprise him, and effectually accomplished his purpose. About 11 in the night of the 20th his pickets, driven in with charged bayonets, gave the first intimation of Gray's approach. Wayne instantly formed his division, and, while his right sustained a fierce assault, directed a retreat by the left, under cover of a few regiments, who, for a short time, withstood the violence of shock. In his letter to Washington, he says that they gave the assailants some well-directed fires, which must have done considerable execution, and that, after retreating from the ground on which the engagement commenced, they formed again, at a small distance from the scene of action, but that both parties drew off without renewing the conflict. He states his loss at about 150 killed and wounded. The British accounts admit, on their part, a loss of only 7.

When the attack commenced, General Smallwood, who was on his march to join Wayne, a circumstance entirely unexpected by General Gray, was within less than a mile of him, and, had he commanded regulars, might have given a very different turn to the night. But his militia thought only of their own safety, and, having fallen in with a party returning from the pursuit of Wayne, fled in confusion, with the loss of only one man.

Some severe animadversions on this unfortunate affair having been made in the army, General Wayne demanded a court-martial, which, after investigating his conduct, was unanimously of opinion, "that he had done everything to be expected from an active, brave, and vigilant officer," and acquitted him with honor.

Having secured his rear, by compelling Wayne to take a greater distance, Howe marched along the valley road to the Schuylkill and encamped on the bank of that river, from the Fatland ford up to French creek, along the front of the American army. To secure his right from being turned, Washington

again changed his position and encamped with his left near, but above, the British right.

Howe now relinquished his plan of bringing Washington to another battle, and thinking it advisable, perhaps, to transfer the seat of war to the neighborhood of his ships, determined to cross the Schuylkill and take possession of Philadelphia. In the afternoon he ordered one detachment to cross at Fatland ford, which was on his right, and another to cross at Gordon's ford, on his left, and to take possession of the heights commanding them. These orders were executed without much difficulty, and the American troops placed to defend these fords were easily dispersed.

This service being effected, the whole army marched by its right, about midnight, and crossing at Fatland without opposition, proceeded a considerable distance toward Philadelphia, and encamped with its left near Sweed's ford and its right on the Manatawny road, having Stony Run in its course.

It was now apparent that only immediate victory could save Philadelphia from the grasp of the British general whose situation gave him the option of either taking possession of that place or endeavoring to bring on another engagement. If, therefore, a battle must certainly be risked to save the capital it would be necessary to attack the enemy.

Public opinion, which a military chief finds too much difficulty in resisting, and the opinion of Congress, required a battle; but, on a temperate consideration of circumstances, Washington came to the wise decision of avoiding one for the present.

His reasons for this decision were conclusive. Wayne and Smallwood had not yet joined the army. The Continental troops ordered from Peekskill, who had been detained for a time by an incursion from New York, were approaching, and a reinforcement of Jersey militia, under General Dickenson, was also expected.

To these powerful motives against risking an engagement, other considerations of great weight were added, founded on the condition of his soldiers. An army, maneuvering in an open country, in the face of a very superior enemy, is unavoidably exposed to excessive fatigue and extreme hardship. The effect of these hardships was much increased by the privations under which the American troops suffered. While in almost continual motion, wading deep rivers, and encountering every vicissitude of

the seasons, they were without tents, newly without shoes, or winter clothes, and often without food.

A council of war concurred in the opinion Washington had formed, not to march against the enemy, but to allow his harassed troops a few days for repose and to remain on his present ground until the expected reinforcements should arrive.

Immediately after the battle of Brandywine, the distressed situation of the army had been represented to Congress, who had recommended the executive of Pennsylvania to seize the cloths and other military stores in the warehouses of Philadelphia, and, after granting certificates expressing their value, to convey them to a place of safety. The executive, being unwilling to encounter the odium of this strong measure, advised that the extraordinary powers of the Commander-in-Chief should be used on the occasion. Lieut. Col. Alexander Hamilton, one of the General's aides, already in high estimation for his talents and zeal, was employed on this delicate business. "Your own prudence," said the General, in a letter to him while in Philadelphia, "will point out the least exceptionable means to be pursued; but remember, delicacy and a strict adherence to the ordinary mode of application must give place to our necessities. We must, if possible, accommodate the soldiers with such articles as they stand in need of or we shall have just reason to apprehend the most injurious and alarming consequences from the approaching season."

All the efforts, however, of this very active officer could not obtain a supply in any degree adequate to the pressing and increasing wants of the army.

Colonel Hamilton was also directed to cause the military stores which had been previously collected to a large amount in Philadelphia, and the vessels which were lying at the wharves, to be removed up the Delaware. This duty was executed with so much vigilance that very little public property fell, with the city, into the hands of the British general, who entered it on the 26th of September (1777). The members of Congress separated on the 18th, in the evening, and reassembled at Lancaster on the 27th of the same month. From thence they subsequently adjourned to Yorktown, where they remained eight months, till Philadelphia was evacuated by the British.

From the 25th of August, when the British army landed at the head of Elk, until the 26th of September, when it entered Philadelphia, the campaign had been active, and the duties of the American general uncommonly arduous.

Some English writers bestow high encomiums on Sir William Howe for his military skill and masterly movements during this period. At Brandywine especially, Washington is supposed to have been "out-generaled, more out-generaled than in any action during the war." If all the operations of this trying period be examined, and the means in possession of both be considered, the American chief will appear in no respect inferior to his adversary, or unworthy of the high place assigned to him in the opinions of his countrymen. With an army decidedly inferior, not only in numbers, but in every military requisite except courage, in an open country, he employed his enemy near thirty days in advancing about sixty miles. In this time he fought one general action, and, though defeated, was able to reassemble the same undisciplined, unclothed, and almost unfed army; and, the fifth day afterward, again to offer battle. When the armies were separated by a storm which involved him in the most distressing circumstances, he extricated himself from them, and still maintained a respectable and imposing countenance.

The only advantage he is supposed to have given was at the battle of Brandywine, and that was produced by the contrariety and uncertainty of the intelligence received. A general must be governed by his intelligence, and must regulate his measures by his information. It is his duty to obtain correct information, and among the most valuable traits of a military character is the skill to select those means which will obtain it. Yet the best-selected means are not always successful; and, in a new army, where military talent has not been well tried by the standard of experience, the general is peculiarly exposed to the chance of employing not the best instruments. In a country, too, which is covered with wood precise information of the numbers composing different columns is to be gained with difficulty.

Taking into view the whole series of operations, from the landing of Howe at the Head of Elk to his entering Philadelphia, the superior generalship of Washington is clearly manifest. Howe, with his numerous and well-appointed army, performed a certain amount of routine work and

finally gained the immediate object which he had in view—the possession of Philadelphia—when, by every military rule, he should have gone up the Hudson to cooperate with Burgoyne. Washington, with his army, composed almost entirely of raw recruits and militia, kept his adversary out of Philadelphia a month, still menaced him with an imposing front in his new position, and subsequently held him in check there while Gates was defeating and capturing Burgoyne.

We shall see, in the ensuing chapter, that although Howe had attained his first object in gaining possession of Philadelphia, he had still many new difficulties and dangers to encounter at the hands of his daring and persevering opponent before he could comfortably establish himself in winter quarters.

1. Footnote: About this time the Royalists in the counties of Somerset and Worcester, in the province of Maryland, became so formidable that an insurrection was dreaded. And it was feared that the insurgents would, in such a case, be joined by a number of disaffected persons in the county of Sussex, in the Delaware State. Congress, to prevent this evil, recommended the apprehension and removal of all persons of influence, or of desperate characters, within the counties of Sussex, Worcester, and Somerset, who manifested a disaffection to the American cause, to some remote place within their respective States, there to be secured. From appearances, Congress had also reason to believe that the Loyalists in the New England governments and New York State, had likewise concerted an insurrection. See Gordon's "History of the American Revolution," vol. II, pp. 461, 462. By the same authority we are informed that General Gates wrote to General Fellowes for a strong military force, for the prevention of plots and insurrection in the provinces of New England and New York.

2. Footnote: Congress voted a monument to his memory.

3. Footnote: Stedman, the British historian of the Revolution, acknowledges a loss of 200, including 10 officers.

4. Footnote: Lieutenant-Colonel Palfrey, formerly an aide-de-camp to General Washington, and now paymaster-general, wrote to his friend: "I was at Brunswick just after the enemy had left it. Never let the British troops upbraid the Americans with want of cleanliness, for such dog-kennels as their huts were my eyes never beheld. Mr. Burton's house, where Lord Cornwallis resided, stunk so I could not bear to enter it. The houses

were torn to pieces, and the inhabitants as well as the soldiers have suffered greatly for want of provisions."—Gordon, "History of the American Revolution."

5. Footnote: Eulogy on Lafayette. See "Orations and Speeches on Various Occasions," by Edward Everett, vol. I, p. 462.

6. Footnote: Deborre's brigade broke first; and, on an inquiry into his conduct being directed, he resigned. A misunderstanding existed between him and Sullivan, on whose right he was stationed.

7. Footnote: All English writers do not concur in this view of the matter. The British historian, Stedman, gives the following sharp criticism on Howe's conduct in the affair of the Brandywine:

"The victory does not seem to have been improved in the degree which circumstances appeared to have admitted. When the left column of the British had turned Washington's right flank, his whole army was hemmed in:—General Knyphausen and the Brandywine in front; Sir William Howe and Lord Cornwallis on his right; the Delaware in his rear; and the Christiana river on his left. He was obliged to retreat twenty-three miles to Philadelphia, when the British lay within eighteen miles of it. Had the Commander-in-Chief detached General Knyphausen's column in pursuit early next morning, General Washington might with ease have been intercepted, either at the Heights of Crum Creek, nine miles; at Derby, fourteen; or at Philadelphia, eighteen miles, from the British camp; or, the Schuylkill might have been passed at Gray's Ferry, only seventy yards over, and Philadelphia, with the American magazines, taken, had not the pontoons been improvidently left at New York as useless. Any one of these movements, it was thought, might have been attended with the total destruction of the American army. For some reason, however, which it is impossible to divine, the Commander-in-Chief employed himself for several days in making slight movements which could not by any possibility produce any important benefits to the British cause."

CHAPTER XI. — WASHINGTON HOLDS HOWE IN CHECK. 1777.

Washington seems to have been by no means disheartened at the loss of Philadelphia. On the contrary he justly regarded the circumstance of the enemy holding that city as one which might, as in the sequel it actually did, turn to the advantage of the American cause. Writing to General Trumbull on the 1st of October (1777), he says: "You will hear, before this gets to hand, that the enemy have at length gained possession of Philadelphia. Many unavoidable difficulties and unlucky accidents which we had to encounter helped to promote this success. This is an event which we have reason to wish had not happened, and which will be attended with several ill consequences, but I hope it will not be so detrimental as many apprehend, and that a little time and perseverance will give us some favorable opportunity of recovering our loss, and of putting our affairs in a more flourishing condition. Our army has now had the rest and refreshment it stood in need of, and our soldiers are in very good spirits."

Philadelphia being lost Washington sought to make its occupation inconvenient and insecure by rendering it inaccessible to the British fleet. With this design works had been erected on a low, marshy island in the Delaware, near the junction of the Schuylkill, which, from the nature of its soil, was called Mud Island. On the opposite shore of Jersey, at Red Bank, a fort had also been constructed which was defended with heavy artillery. In the deep channel between, or under cover of these batteries, several ranges of *chevaux-de-frise* had been sunk. These were so strong and heavy as to be destructive of any ship which might strike against them, and were sunk in such a depth of water as rendered it equally difficult to weigh them or cut them through; no attempt to raise them, or to open the channel in any manner, could be successful until the command of the shores on both sides should be obtained.

Other ranges of *chevaux-de-frise* had been sunk about three miles lower down the river, and some considerable works were in progress at Billingsport on the Jersey side, which were in such forwardness as to be

provided with artillery. These works were further supported by several galleys mounting heavy cannon, together with two floating batteries, a number of armed vessels, and some fire ships.

The present relative situation of the armies gave a decisive importance to these works. Cutting off the communication of Howe with his brother's fleet, they prevented his receiving supplies by water. While the American vessels in the river above Fort Mifflin, the name given to the fort on Mud Island, rendered it difficult to forage in Jersey, Washington hoped to render his supplies on the side of Pennsylvania so precarious as to compel him to evacuate Philadelphia.

The advantages of this situation were considerably diminished by the capture of the Delaware frigate.

The day after Cornwallis entered Philadelphia three batteries were commenced for the purpose of acting against any American ships which might appear before the town. While yet incomplete they were attacked by two frigates, assisted by several galleys and gondolas. The Delaware, being left by the tide while engaged with the battery, grounded and was captured, soon after which the smaller frigate and the other vessels retired under the guns of the fort. This circumstance was the more unfortunate as it gave the British general the command of the ferry, and consequently free access to Jersey, and enabled him to intercept the communication between the forts below and Trenton, from which place the garrisons were to have drawn their military stores.

All the expected reinforcements, except the State regiment and militia from Virginia, being arrived, and the detached parties being called in, the effective strength of the army amounted to 8,000 Continental troops and 3,000 militia. With this force Washington determined to approach the enemy and seize the first favorable moment to attack him. In pursuance of this determination the army took a position on the Skippack road, September 30th (1777), about twenty miles from Philadelphia and sixteen from Germantown—a village stretching on both sides the great road leading northward from Philadelphia, which forms one continued street nearly two miles in length. The British line of encampment crossed this village at right angles near the center, and Cornwallis, with four regiments of grenadiers, occupied Philadelphia. The immediate object of General Howe being the removal of the obstructions in the river, Colonel Stirling, with two

regiments, had been detached to take possession of the fort at Billingsport, which he accomplished without opposition. This service being effected, and the works facing the water destroyed, Colonel Stirling was directed to escort a convoy of provisions from Chester to Philadelphia. Some apprehensions being entertained for the safety of this convoy, another regiment was detached from Germantown, with directions to join Colonel Stirling.

This division of the British force appeared to Washington to furnish a fair opportunity to engage Sir William Howe with advantage. Determining to avail himself of it, he formed a plan for surprising the camp at Germantown. This plan consisted, in its general outline, of a night march and double attack, consentaneously made, on both flanks of the enemy's right wing, while a demonstration, or attack, as circumstances should render proper, was to be directed on the western flank of his left wing. With these orders and objects the American army began its march from Skippack creek at 7 o'clock in the evening of the 3d of October (1777), in two columns—the right, under Sullivan and Wayne, taking the Chestnut Hill road, followed by Stirling's division in reserve; the left, composed of the divisions of Greene and Stephen, with M'Dougal's brigade and 1,400 Maryland and Jersey militia taking the Limekiln and old York roads, while Armstrong's Pennsylvania militia advanced by the Ridge road. Washington accompanied the right wing, and at dawn of day, next morning, attacked the royal army. After a smart conflict he drove in the advance guard, which was stationed at the head of the village, and with his army divided into five columns prosecuted the attack, but Lieutenant-Colonel Musgrave, of the Fortieth regiment, which had been driven in, and who had been able to keep five companies of the regiment together, threw himself into a large stone house in the village, belonging to Mr. Chew, which stood in front of the main column of the Americans, and there almost a half of Washington's army was detained for a considerable time. Instead of masking Chew's house with a sufficient force and advancing rapidly with their main body, the Americans attacked the house, which was obstinately defended. The delay was very unfortunate, for the critical moment was lost in fruitless attempts on the house; the royal troops had time to get under arms and be in readiness to resist or attack, as circumstances required. General Grey came to the assistance of Colonel Musgrave; the engagement for some time was general and warm; at length the Americans began to give way and effected

a retreat with all their artillery. The morning was very foggy, a circumstance which had prevented the Americans from combining and conducting their operations as they otherwise might have done, but which now favored their retreat by concealing their movements.

In this engagement the British had 600 men killed or wounded; among the slain were Brigadier-General Agnew and Colonel Bird, officers of distinguished reputation. The Americans lost an equal number in killed and wounded, besides 400 who were taken prisoners. General Nash, of North Carolina, was among those who were killed. After the battle Washington returned to his encampment at Skippack creek.

The plan of attack formed by Washington for the battle of Germantown was fully justified by the result. The British camp was completely surprised, and their army was on the point of being entirely routed, when the continued fog led the American soldiers to mistake friends for foes, and caused a panic which threw everything into confusion and enabled the enemy to rally.

Washington, writing to his brother John Augustine, says: "If it had not been for a thick fog, which rendered it so dark at times that we were not able to distinguish friend from foe at the distance of thirty yards, we should, I believe, have made a decisive and glorious day of it. But Providence designed it otherwise, for, after we had driven the enemy a mile or two, after they were in the utmost confusion and flying before us in most places, after we were upon the point, as it appeared to everybody, of grasping a complete victory, our own troops took fright and fled with precipitation and disorder. How to account for this I know not, unless, as I before observed, the fog represented their own friends to them for a reinforcement of the enemy, as we attacked in different quarters at the same time, and were about closing the wings of our army when this happened. One thing, indeed, contributed not a little to our misfortune, and that was a want of ammunition on the right wing, which began the engagement, and in the course of two hours and forty minutes, which time it lasted, had, many of them, expended the forty rounds that they took into the field. After the engagement we removed to a place about twenty miles from the enemy to collect our forces together, to take care of our wounded, get furnished with necessaries again, and be in a better posture either for offensive or

defensive operations. We are now advancing toward the enemy again, being at this time within twelve miles of them."

Writing to the President of Congress (October 7, 1777) he still imputes the disaster to the fog: "It is with much chagrin and mortification I add that every account confirms the opinion I at first entertained, that our troops retreated at the instant when victory was declaring herself in our favor. The tumult, disorder, and even despair, which, it seems, had taken place in the British army, were scarcely to be paralleled; and it is said, so strongly did the idea of a retreat prevail, that Chester was fixed on as their rendezvous. I can discover no other cause for not improving this happy opportunity, than the extreme haziness of the weather."

Much controversy has arisen among writers as to the cause of failure at Germantown, but Washington's means of observation were certainly not inferior to those of any other person whatever, and in the above extracts the whole matter is clearly explained. He does not refer to the delay at Chew's house as the cause of failure. Panic struck as the British were, they would have been defeated, notwithstanding the delay at that impromptu fortress, if the fog had not occasioned the American soldiers to believe that the firing on their own side proceeded from the enemy, and that they were about to be surrounded. Hence the recoil and retreat. It was apparently a great misfortune, but it was the destiny of Washington to achieve greatness in spite of severe and repeated misfortunes.

The same opinion respecting the fog is expressed in the following extract from a letter from General Sullivan to the President of New Hampshire: "We brought off all our cannon and all our wounded. Our loss in the action amounts to less than 700, mostly wounded. We lost some valuable officers, among whom were the brave General Nash, and my two aides-de-camp, Majors Sherburne and White, whose singular bravery must ever do honor to their memories. Our army rendezvoused at Paulen's Mills, and seems very desirous of another action. The misfortunes of this day were principally owing to a thick fog which, being rendered still more so by the smoke of the cannon and musketry, prevented our troops from discovering the motions of the enemy, or acting in concert with each other. I cannot help observing that with great concern I saw our brave commander exposing himself to the hottest fire of the enemy in such a manner that regard for my country obliged me to ride to him and beg him to retire. He, to gratify me

and some others, withdrew a small distance, but his anxiety for the fate of the day soon brought him up again, where he remained till our troops had retreated."

Congress unanimously adopted the following resolution on hearing of the battle of Germantown:

"Resolved, That the thanks of Congress be given to General Washington, for his wise and well-concerted attack upon the enemy's army near Germantown, on the 4th instant, and to the officers and soldiers of the army for their brave exertions on that occasion; Congress being well satisfied, that the best designs and boldest efforts may sometimes fail by unforeseen incidents, trusting that, on future occasions, the valor and virtue of the army will, by the blessing of Heaven, be crowned with complete and deserved success."

The attention of both armies was now principally directed to the forts below Philadelphia. These it was the great object of Howe to destroy, and of Washington to defend and maintain.

The loss of the Delaware frigate, and of Billingsport, greatly discouraged the seamen by whom the galleys and floating batteries were manned. Believing the fate of America to be decided, an opinion strengthened by the intelligence received from their connections in Philadelphia, they manifested the most alarming defection, and several officers as well as sailors deserted to the enemy. This desponding temper was checked by the battle of Germantown, and by throwing a garrison of Continental troops into the fort at Red Bank, called Fort Mercer, the defense of which had been entrusted to militia. This fort commanded the channel between the Jersey shore and Mud Island, and the American vessels were secure under its guns. The militia of Jersey were relied on to reinforce its garrison, and also to form a corps of observation which might harass the rear of any detachment investing the place.

To increase the inconvenience of Howe's situation by intercepting his supplies Washington ordered 600 militia, commanded by General Potter, to cross the Schuylkill and scour the country between that river and Chester, and the militia on the Delaware, above Philadelphia, were directed to watch the roads in that vicinity.

The more effectually to stop those who were seduced by the hope of gold and silver to supply the enemy at this critical time, Congress passed a

resolution subjecting to martial law and to death all who should furnish them with provisions, or certain other enumerated articles, who should be taken within thirty miles of any city, town, or place in Jersey, Pennsylvania, or Delaware, occupied by British troops.

These arrangements being made to cut off supplies from the country, Washington took a strong position at White Marsh, within fourteen miles of Philadelphia.

Meanwhile General Howe was actively preparing to attack Fort Mifflin from the Pennsylvania shore. He erected some batteries at the mouth of the Schuylkill, in order to command Webb's Ferry, which were attacked by Commodore Hazlewood and silenced; but the following night a detachment crossed over Webb's Ferry into Province Island, and constructed a slight work opposite Fort Mifflin, within two musket shots of the blockhouse, from which they were enabled to throw shot and shells into the barracks. When daylight discovered this work three galleys and a floating battery were ordered to attack it and the garrison surrendered. While the boats were bringing off the prisoners, a large column of British troops were seen marching into the fortress, upon which the attack on it was renewed, but without success, and two attempts made by Lieutenant-Colonel Smith to storm it failed. {1}

In a few nights works were completed on the high ground of Province Island, which enfiladed the principal battery of Fort Mifflin, and rendered it necessary to throw up some cover on the platform to protect the men who worked the guns.

The aid expected from the Jersey militia was not received. "Assure yourself," said Lieutenant-Colonel Smith, in a letter pressing earnestly for a reinforcement of Continental troops, "that no dependence is to be put on the militia; whatever men your Excellency determines on sending, no time is to be lost." The garrison of Fort Mifflin was now reduced to 156 effectives, and that of Red Bank did not much exceed 200.

In consequence of these representations Washington ordered Col. Christopher Greene, of Rhode Island, with his regiment, to Red Bank, and Lieut.-Col. John Greene, of Virginia, with about 200 men, to Fort Mifflin.

Immediately after the battle of Brandywine Admiral Howe had sailed for the Delaware, where he expected to arrive in time to meet and cooperate with the army in and about Philadelphia. But the winds were so

unfavorable, and the navigation of the Bay of Delaware so difficult, that his van did not get into the river until the 4th of October. The ships of war and transports which followed came up from the 6th to the 8th, and anchored from New Castle to Reddy Island.

The frigates, in advance of the fleet, had not yet succeeded in their endeavors to effect a passage through the lower double row of *chevaux-de-frise*. Though no longer protected by the fort at Billingsport, they were defended by the water force above, and the work was found more difficult than had been expected. It was not until the middle of October that the impediments were so far removed as to afford a narrow and intricate passage through them. In the meantime the fire from the Pennsylvania shore had not produced all the effect expected from it, and it was perceived that greater exertions would be necessary for the reduction of the works than could safely be made in the present relative situation of the armies. Under this impression, General Howe, soon after the return of the American army to its former camp on the Skippack, withdrew his troops from Germantown into Philadelphia, as preparatory to a combined attack by land and water on Forts Mercer and Mifflin.

After effecting a passage through the works sunk in the river at Billingsport, other difficulties still remained to be encountered by the ships of war. Several rows of *chevaux-de-frise* had been sunk about half a mile below Mud Island, which were protected by the guns of the forts, as well as by the movable water force. To silence these works, therefore, was a necessary preliminary to the removal of these obstructions in the channel.

On the 21st of October (1777) a detachment of Hessians, amounting to 1,200 men, commanded by Col. Count Donop, crossed the Delaware at Philadelphia with orders to storm Fort Mercer, at Red Bank. The fortifications consisted of extensive outer works, within which was an entrenchment eight or nine feet high, boarded and fraized. Late in the evening of the 22d Count Donop appeared before the fort and attacked it with great intrepidity. It was defended with equal resolution by the brave garrison of Rhode Island Continentals, under command of Col. Christopher Greene. The outer works being too extensive to be manned by the troops in the fort, were used only to gall the assailants while advancing. On their near approach the garrison retired within the inner entrenchment, whence they poured upon the Hessians a heavy and destructive fire. Colonel Donop

received a mortal wound, and Lieutenant-Colonel Mengerode, the second in command, fell about the same time. {2}

Lieutenant-Colonel Linsing, the oldest remaining officer, drew off his troops and returned next day to Philadelphia. The loss of the assailants was estimated by the Americans at 400 men. The garrison was reinforced from Fort Mifflin, and aided by the galleys which flanked the Hessians in their advance and retreat. The American loss, in killed and wounded, amounted to only thirty-two men.

The ships having been ordered to cooperate with Count Donop, the Augusta, with four smaller vessels, passed the lower line of *chevaux-de-frise*, opposite to Billingsport, and lay above it, waiting until the assault should be made on the fort. The flood tide setting in about the time the attack commenced they moved with it up the river. The obstructions sunk in the Delaware had in some degree changed its channel, in consequence of which the Augusta and the Merlin grounded a considerable distance below the second line of *chevaux-de-frise*, and a strong wind from the north so checked the rising of the tide that these vessels could not be floated by the flood. Their situation, however, was not discerned that evening, as the frigates which were able to approach the fort, and the batteries from the Pennsylvania shore, kept up an incessant fire on the garrison, till night put an end to the cannonade. Early next morning it was recommenced in the hope that, under its cover, the Augusta and the Merlin might be got off. The Americans, on discovering their situation, sent four fire ships against them, but without effect. Meanwhile a warm cannonade took place on both sides, in the course of which the Augusta took fire, and it was found impracticable to extinguish the flames. Most of the men were taken out, the frigates withdrawn, and the Merlin set on fire, after which the Augusta blew up, and a few of the crew were lost in her.

This repulse inspired Congress with flattering hopes for the permanent defense of the posts on the Delaware. That body expressed its high sense of the merits of Colonel Greene, of Rhode Island, who had commanded in Fort Mercer; of Lieutenant-Colonel Smith, of Maryland, who had commanded in Fort Mifflin; and of Commodore Hazlewood, who commanded the galleys; and presented a sword to each of these officers, as a mark of the estimation in which their services were held.

The situation of these forts was far from justifying this confidence of their being defensible. That on Mud Island had been unskillfully constructed and required at least 800 men fully to man the lines. The island is about half a mile long. Fort Mifflin was placed at the lower end, having its principal fortifications in front for the purpose of repelling ships coming up the river. The defenses in the rear consisted only of a ditch and palisade, protected by two blockhouses, the upper story of one of which had been destroyed in the late cannonade. Above the fort were two batteries opposing those constructed by the British on Province and Carpenter's Islands, which were separated from Mud Island only by a narrow passage between 400 and 500 yards wide.

The garrison of Fort Mifflin consisted of only 300 Continental troops, who were worn down with fatigue and incessant watching, under the constant apprehension of being attacked from Province Island, from Philadelphia, and from the ships below.

Having failed in every attempt to draw the militia of New Jersey to the Delaware, Washington determined to strengthen the garrison by further drafts from his army. Three hundred Pennsylvania militia were detached to be divided between the two forts, and a few days afterward General Varnum was ordered, with his brigade, to take a position above Woodbury, near Red Bank, and to relieve and reinforce the garrisons of both forts as far as his strength would permit. Washington hoped that the appearance of so respectable a Continental force might encourage the militia to assemble in greater numbers.

Aware of the advantage to result from a victory over the British army while separated from the fleet, Washington had been uniformly determined to risk much to gain one. He had, therefore, after the battle of Germantown, continued to watch assiduously for an opportunity to attack his enemy once more to advantage. The circumspect caution of General Howe afforded none. After the repulse at Red Bank his measures were slow but certain, and were calculated to insure the possession of the forts without exposing his troops to the hazard of an assault.

In this state of things intelligence was received of the successful termination of the northern campaign, in consequence of which great part of the troops who had been employed against Burgoyne, might be drawn to the aid of the army in Pennsylvania. But Washington had just grounds to

apprehend that before these reinforcements could arrive Howe would gain possession of the forts and remove the obstructions to the navigation of the Delaware. This apprehension furnished a strong motive for vigorous attempts to relieve Fort Mifflin. But the relative force of the armies, the difficulty of acting offensively against Philadelphia, and, above all, the reflection that a defeat might disable him from meeting his enemy in the field even after the arrival of the troops expected from the north, determined Washington not to hazard a second attack under existing circumstances.

To expedite the reinforcements for which he waited, Washington dispatched Colonel Hamilton to General Gates, with directions to represent to him the condition of the armies in Pennsylvania, and to urge him, if he contemplated no other service of more importance, immediately to send the regiments of Massachusetts and New Hampshire to aid the army of the middle department. These orders were not peremptory, because it was possible that some other object (as the capture of New York) still more interesting than the expulsion of General Howe from Philadelphia might be contemplated by Gates; and Washington meant not to interfere with the accomplishment of such object.

On reaching General Putnam, Colonel Hamilton found that a considerable part of the northern army had joined that officer, but that Gates had detained four brigades at Albany for an expedition intended to be made in the winter against Ticonderoga. Having made such arrangements with Putnam as he supposed would secure the immediate march of a large body of Continental troops from that station, Colonel Hamilton proceeded to Albany for the purpose of remonstrating with General Gates against retaining so large and valuable a part of the army unemployed at a time when the most imminent danger threatened the vitals of the country. Gates was by no means disposed to part with his troops. He could not believe that an expedition then preparing at New York was designed to reinforce General Howe; and insisted that, should the troops then embarked at that place, instead of proceeding to the Delaware, make a sudden movement up the Hudson, it would be in their power, should Albany be left defenseless, to destroy the valuable arsenal which had been there erected, and the military stores captured with Burgoyne, which had been chiefly deposited in that town.

Having, after repeated remonstrances, obtained an order directing three brigades to the Delaware, Hamilton hastened back to Putnam and found the troops which had been ordered to join Washington, still at Peekskill. The detachment from New York had suggested to Putnam the possibility of taking that place; and he does not appear to have made very great exertions to divest himself of a force he deemed necessary for an object, the accomplishment of which would give so much splendor to his military character. In addition to this circumstance, an opinion had gained ground among the soldiers that their share of service for the campaign had been performed, and that it was time for them to go into winter quarters. Great discontents, too, prevailed concerning their pay, which the government had permitted to be more than six months in arrear; and in Poor's brigade a mutiny broke out in the course of which a soldier who was run through the body by his captain, shot the captain dead before he expired. Colonel Hamilton came in time to borrow money from the Governor, George Clinton, of New York, to put the troops in motion; and they proceeded by brigades to the Delaware. But these several delays retarded their arrival until the contest for the forts on that river was terminated.

The preparations of Sir William Howe being completed, a large battery on Province Island of twenty-four and thirty-two pounders and two howitzers of eight inches each opened, early in the morning of the 10th of November, upon Fort Mifflin, at the distance of 500 yards, and kept up an incessant fire for several successive days. The blockhouses were reduced to a heap of ruins; the palisades were beaten down, and most of the guns dismounted and otherwise disabled. The barracks were battered in every part, so that the troops could not remain in them. They were under the necessity of working and watching the whole night to repair the damages of the day, and to guard against a storm, of which they were in perpetual apprehension. If, in the days, a few moments were allowed for repose, it was taken on the wet earth, which, in consequence of heavy rains, had become a soft mud. The garrison was relieved by General Varnum every forty-eight hours, but his brigade was so weak that half the men were constantly on duty.

Colonel Smith was decidedly of opinion, and General Varnum concurred with him, that the garrison could not repel an assault, and ought to be withdrawn; but Washington still cherished the hope that the place might be maintained until he should be reinforced from the northern army. Believing

that an assault would not be attempted until the works were battered down, he recommended that the whole night should be employed in making repairs. His orders were that the place should be defended to the last extremity; and never were orders more faithfully executed.

Several of the garrison were killed and among them Captain Treat, a gallant officer, who commanded the artillery. Colonel Smith received a contusion on his hip and arm which compelled him to give up the command and retire to Red Bank. Major Fleury, a French officer of distinguished merit, who served as engineer, reported to Washington that, although the blockhouses were beaten down, all the guns in them, except two, disabled, and several breaches made in the walls, the place was still defensible; but the garrison was so unequal to the numbers required by the extent of the lines, and was so dispirited by watching, fatigue, and constant exposure to the cold rains, which were almost incessant, that he dreaded the event of an attempt to carry the place by storm. Fresh troops were ordered to their relief from Varnum's brigade, and the command was taken, first by Colonel Russell, and afterward by Major Thayer. The artillery, commanded by Captain Lee, continued to be well served. The besiegers were several times thrown into confusion, and a floating battery, which opened on the morning of the 14th, was silenced in the course of the day.

The defense being unexpectedly obstinate, the assailants brought up their ships (November 15, 1777) as far as the obstructions in the river permitted and added their fire to that of the batteries, which was the more fatal as the cover for the troops had been greatly impaired. The brave garrison, however, still maintained their ground with unshaken firmness. In the midst of this stubborn conflict, the Vigilant and a sloop-of-war were brought up the inner channel, between Mud and Province Islands, which had, unobserved by the besieged, been deepened by the current in consequence of the obstructions in the main channel, and, taking a station within 100 yards of the works, not only kept up a destructive cannonade, but threw hand-grenades into them, while the musketeers from the round-top of the Vigilant killed every man that appeared on the platform.

Major Thayer applied to the Commodore to remove these vessels, and he ordered six galleys on the service, but, after reconnoitering their situation, the galleys returned without attempting anything. Their report was that

these ships were so covered by the batteries on Province Island as to be unassailable.

It was now apparent to all that the fort could be no longer defended. The works were in ruins. The position of the Vigilant rendered any further continuance on the island a prodigal and useless waste of human life; and on the 16th, about 11 at night, the garrison was withdrawn.

A second attempt was made to drive the vessels from their stations, with a determination, should it succeed, to repossess the island, but the galleys effected nothing, and a detachment from Province Island soon occupied the ground which had been abandoned.

The day after, receiving intelligence of the evacuation of Fort Mifflin, Washington deputed Generals De Kalb and Knox to confer with General Varnum and the officers at Fort Mercer on the practicability of continuing to defend the obstructions in the channel, to report thereon, and to state the force which would be necessary for that purpose. Their report was in favor of continuing the defense. A council of the navy officers had already been called by the Commodore in pursuance of a request of the Commander-in-Chief, made before the evacuation had taken place, who were unanimously of opinion that it would be impracticable for the fleet, after the loss of the island, to maintain its station or to assist in preventing the *chevaux-de-frise* from being weighed by the ships of the enemy.

General Howe had now completed a line of defense from the Schuylkill to the Delaware, and a reinforcement from New York had arrived at Chester. These two circumstances enabled him to form an army in the Jerseys, sufficient for the reduction of Fort Mercer, without weakening himself so much in Philadelphia as to put his lines in hazard. Still, deeming it of the utmost importance to open the navigation of the Delaware completely, he detached Lord Cornwallis, about 1 in the morning of the 17th (1777), with a strong body of troops to Chester. From that place his lordship crossed over to Billingsport, where he was joined by the reinforcement from New York.

Washington received immediate intelligence of the march of this detachment, which he communicated to General Varnum, with orders that Fort Mercer should be defended to the last extremity. With a view to military operations in that quarter he ordered one division of the army to cross the river at Burlington, and dispatched expresses to the northern

troops who were marching on by brigades, directing them to move down the Delaware on its northern side until they should receive further orders.

General Greene was selected for this expedition. A hope was entertained that he would be able not only to protect Fort Mercer, but to obtain some decisive advantage over Lord Cornwallis, as the situation of the fort, which his lordship could not invest without placing himself between Timber and Manto creeks, would expose the assailants to great peril from a respectable force in their rear. But, before Greene could cross the Delaware, Cornwallis approached with an army rendered more powerful than had been expected by the junction of the reinforcement from New York, and Fort Mercer was evacuated. A few of the smaller galleys escaped up the river, and the others were burnt by their crews.

Washington still hoped to recover much of what had been lost. A victory would restore the Jersey shore, and this object was deemed so important that General Greene's instructions indicated the expectation that he would be in a condition to fight Cornwallis.

Greene feared the reproach of avoiding an action less than the just censure of sacrificing the real interests of his country by engaging the enemy on disadvantageous terms. The numbers of the British exceeded his, even counting his militia as regulars, and he determined to wait for Glover's brigade, which was marching from the north. Before its arrival, Cornwallis took post on Gloucester point, a point of land making deep into the Delaware, which was entirely under cover of the guns of the ships, from which place he was embarking his baggage and the provisions he had collected for Philadelphia.

Believing that Cornwallis would immediately follow the magazines he had collected, and that the purpose of Howe was, with his united forces, to attack the American army while divided, General Washington ordered Greene to re-cross the Delaware and join the army.

Thus, after one continued struggle of more than six weeks, in which the Continental troops displayed great military virtues, the army in Philadelphia secured itself in the possession of that city by opening a free communication with the fleet.

While Lord Cornwallis was in Jersey, and General Greene on the Delaware above him, the reinforcements from the north being received, an attack on Philadelphia was strongly pressed by several officers high in rank,

and was, in some measure, urged by that torrent of public opinion, which, if not resisted by a very firm mind, overwhelms the judgment, and by controlling measures not well comprehended may frequently produce, especially in military transactions, the most disastrous effects. The officers who advised this measure were Lord Stirling, Generals Wayne, Scott, and Woodford. The considerations urged upon Washington in its support were: That the army was now in greater force than he could expect it to be at any future time; that being joined by the troops who had conquered Burgoyne, his own reputation, the reputation of his army, the opinion of Congress and of the nation required some decisive blow on his part; and that the rapid depreciation of the paper currency, by which the resources for carrying on the war were dried up, rendered indispensable some grand effort to bring it to a speedy termination.

Washington reconnoitered the enemy's lines with great care and took into serious consideration the plan of attack proposed. The plan proposed was that General Greene should embark 2,000 men at Dunks' ferry, and descending the Delaware in the night land in the town just before day, attack the enemy in the rear, and take possession of the bridge over the Schuylkill; that a strong corps should march down on the west side of that river, occupy the heights enfiling the works of the enemy, and open a brisk cannonade upon them, while a detachment from it should march down to the bridge and attack in front at the same instant that the party descending the river should commence its assault on the rear.

Not only the Commander-in-Chief, but some of his best officers—those who could not be impelled by the clamors of the ill-informed to ruin the public interests—were opposed to this mad enterprise. The two armies, they said, were now nearly equal in point of numbers, and the detachment under Lord Cornwallis could not be supposed to have so weakened Sir William Howe as to compensate for the advantages of his position. His right was covered by the Delaware, his left by the Schuylkill, his rear by the junction of those two rivers, as well as by the city of Philadelphia, and his front by a line of redoubts extending from river to river and connected by an abatis and by circular works. It would be indispensably necessary to carry all these redoubts, since to leave a part of them to play on the rear of the columns while engaged in front with the enemy in Philadelphia would be extremely hazardous. Supposing the redoubts carried and the British army driven into the town, yet all military men were agreed on the great peril of storming a

town. The streets would be defended by an artillery greatly superior to that of the Americans, which would attack in front, while the brick houses would be lined with musketeers, whose fire must thin the ranks of the assailants.

A part of the plan, on the successful execution of which the whole depended, was that the British rear should be surprised by the corps descending the Delaware. This would require the concurrence of too many favorable circumstances to be calculated on with any confidence. As the position of General Greene was known, it could not be supposed that Sir William Howe would be inattentive to him. It was probable that not even his embarkation would be made unnoticed, but it was presuming a degree of negligence which ought not to be assumed to suppose that he could descend the river to Philadelphia undiscovered. So soon as his movement should be observed, the whole plan would be comprehended, since it would never be conjectured that Greene was to attack singly.

If the attack in front should fail, which was not even improbable, the total loss of the 2,000 men in the rear must follow, and General Howe would maintain his superiority through the winter.

The situation did not require these desperate measures. The British general would be compelled to risk a battle on equal terms or to manifest a conscious inferiority to the American army. The depreciation of paper money was the inevitable consequence of immense emissions without corresponding taxes. It was by removing the cause, not by sacrificing the army, that this evil was to be corrected.

Washington possessed too much discernment to be dazzled by the false brilliant presented by those who urged the necessity of storming Philadelphia in order to throw lustre round his own fame and that of his army, and too much firmness of temper, too much virtue and real patriotism to be diverted from a purpose believed to be right, by the clamors of faction or the discontents of ignorance. Disregarding the importunities of mistaken friends, the malignant insinuations of enemies, and the expectations of the ill-informed, he persevered in his resolution to make no attempt on Philadelphia. He saved his army and was able to keep the field in the face of his enemy, while the clamor of the moment wasted in air and was forgotten.

About this time Washington learnt, by a letter from General Greene, that his young friend Lafayette, although hardly recovered from the wound received at Brandywine, had signalized his spirit and courage by an attack on Cornwallis' picket guard at Gloucester point, below Philadelphia. "The Marquis," writes Greene, "with about 400 militia and the rifle corps, attacked the enemy's picket last evening, killed about 20, wounded many more, and took about 20 prisoners. The Marquis is charmed with the spirited behavior of the militia and rifle corps; they drove the enemy about half a mile and kept the ground till dark. The enemy's picket consisted of about 300 and were reinforced during the skirmish. The Marquis is determined to be in the way of danger."

The following letter to Washington, cited by Sparks, contains Lafayette's own account of this affair: "After having spent the most part of the day in making myself well acquainted with the certainty of the enemy's motions, I came pretty late into the Gloucester road between the two creeks. I had 10 light horse, almost 150 riflemen, and 2 pickets of militia. Colonel Armand, Colonel Laumoy, and the Chevaliers Duplessis and Gimat were the Frenchmen with me. A scout of my men, under Duplessis, went to ascertain how near to Gloucester were the enemy's first pickets, and they found at the distance of two miles and a half from that place a strong post of 350 Hessians, with field pieces, and they engaged immediately. As my little reconnoitering party were all in fine spirits I supported them. We pushed the Hessians more than half a mile from the place where their main body had been and we made them run very fast. British reinforcements came twice to them, but, very far from recovering their ground, they always retreated. The darkness of the night prevented us from pursuing our advantage. After standing on the ground we had gained, I ordered them to return very slowly to Haddonfield."

The Marquis had only one man killed and six wounded. "I take the greatest pleasure," he added, "in letting you know that the conduct of our soldiers was above all praise. I never saw men so merry, so spirited, and so desirous to go on to the enemy, whatever force they might have, as that same small party in this little fight."

Washington, in a letter to Congress dated November 26, 1777, mentions this affair with commendation, and suggests, as he had repeatedly done before, Lafayette's appointment to one of the vacant divisions of the army,

and on the same day that this letter was received Congress voted that such an appointment would be agreeable to them. Three days afterward Washington placed Lafayette in command of the division of General Stephen, who had been dismissed from the army for having been intoxicated, to the great injury of the public service, on the eventful day of the battle of Germantown. We shall see that this appointment, by enabling Lafayette to act occasionally on a separate command, afforded him the opportunity of rendering essential service to the cause of independence.

On the 27th of November (1777), the Board of War was increased from three to five members, viz.: General Mifflin, formerly aide to Washington and recently quartermaster-general; Joseph Trumbull, Richard Peters, Col. Timothy Pickering, of Massachusetts, and General Gates. Gates was appointed president of the board, with many flattering expressions from Congress. His recent triumph over Burgoyne had gained him many friends among the members of Congress and a few among the officers of the army. His head, naturally not over-strong, had been turned by success, and he entered into the views of a certain clique which had recently been formed, whose object was to disparage Washington and put forward rather high pretensions in favor of the "hero of Saratoga." This clique, called from the name of its most active member, General Conway, the "Conway Cabal," we shall notice hereafter. At the time of this change in the constitution of the Board of War it was in full activity, and its operations were well known to Washington. In fact, he had already applied the match which ultimately exploded the whole conspiracy and brought lasting disgrace on every one of its members.

General Howe in the meantime was preparing to attack Washington in his camp, and, as he confidently threatened, to "drive him beyond the mountains."

On the 4th of December (1777), Captain M'Lane, a vigilant officer on the lines, discovered that an attempt to surprise the American camp at White Marsh was about to be made, and communicated the information to Washington. In the evening of the same day General Howe marched out of Philadelphia with his whole force, and about 11 at night, M'Lane, who had been detached with 100 chosen men, attacked the British van at the Three Mile Run on the Germantown road, and compelled their front division to change its line of march. He hovered on the front and flank of the

advancing army, galling them severely until 3 next morning, when the British encamped on Chestnut Hill in front of the American right, and distant from it about three miles. A slight skirmish had also taken place between the Pennsylvania militia, under General Irvine, and the advanced light parties of the enemy, in which the general was wounded and the militia without much other loss were dispersed.

The range of hills on which the British were posted approached nearer to those occupied by the Americans as they stretched northward. Having passed the day in reconnoitering the right Howe changed his ground in the course of the night, and moving along the hills to his right took an advantageous position about a mile in front of the American left. The next day he inclined still further to his right, and in doing so approached still nearer to the left wing of the American army. Supposing a general engagement to be approaching Washington detached Gist, with some Maryland militia, and Morgan, with his rifle corps, to attack the flanking and advanced parties of the enemy. A sharp action ensued in which Major Morris, of New Jersey, a brave officer in Morgan's regiment was mortally wounded, and twenty-seven of his men were killed and wounded. A small loss was also sustained in the militia. The parties first attacked were driven in, but the enemy reinforcing in numbers and Washington unwilling to move from the heights and engage on the ground which was the scene of the skirmish, declining to reinforce Gist and Morgan, they, in turn, were compelled to retreat.

Howe continued to maneuver toward the flank and in front of the left wing of the American army. Expecting to be attacked in that quarter in full force Washington made such changes in the disposition of his troops as the occasion required, and the day was consumed in these movements. In the course of it Washington rode through every brigade of his army, delivering in person his orders respecting the manner of receiving the enemy, exhorting his troops to rely principally on the bayonet, and encouraging them by the steady firmness of his countenance, as well as by his words, to a vigorous performance of their duty. The dispositions of the evening indicated an intention to attack him the ensuing morning, but in the afternoon of the 8th the British suddenly filed off from their right, which extended beyond the American left, and retreated to Philadelphia. The parties detached to harass their rear could not overtake it. {3}

The loss of the British in this expedition, as stated in the official letter of General Howe, rather exceeded 100 in killed, wounded, and missing, and was sustained principally in the skirmish of the 7th (December, 1777) in which Major Morris fell.

On no former occasion had the two armies met, uncovered by works, with superior numbers on the side of the Americans. The effective force of the British was then stated at 12,000 men. Stedman, the historian, who then belonged to Howe's army, states its number to have been 14,000. The American army consisted of precisely 12,161 Continental troops and 3,241 militia. This equality in point of numbers rendered it a prudent precaution to maintain a superiority of position. As the two armies occupied heights fronting each other neither could attack without giving to its adversary some advantage in the ground, and this was an advantage which neither seemed willing to relinquish.

The return of Howe to Philadelphia without bringing on an action after marching out with the avowed intention of fighting is the best testimony of the respect which he felt for the talents of his adversary and the courage of the troops he was to encounter.

The cold was now becoming so intense that it was impossible for an army neither well-clothed nor sufficiently supplied with blankets longer to keep the field in tents. It had become necessary to place the troops in winter quarters, but in the existing state of things the choice of winter quarters was a subject for serious reflection. It was impossible to place them in villages without uncovering the country or exposing them to the hazard of being beaten in detachment.

To avoid these calamities it was determined to take a strong position in the neighborhood of Philadelphia, equally distant from the Delaware above and below that city, and there to construct huts in the form of a regular encampment which might cover the army during the winter. A strong piece of ground at Valley Forge, on the west side of the Schuylkill between twenty and thirty miles from Philadelphia, was selected for that purpose, and some time before day on the morning of the 11th of December (1777) the army marched to take possession of it. By an accidental concurrence of circumstances Lord Cornwallis had been detached the same morning at the head of a strong corps on a foraging party on the west side of the Schuylkill. He had fallen in with a brigade of Pennsylvania militia

commanded by General Potter which he soon dispersed, and, pursuing the fugitives, had gained the heights opposite Matron's ford, over which the Americans had thrown a bridge for the purpose of crossing the river, and had posted troops to command the defile called the Gulph just as the front division of the American army reached the bank of the river. This movement had been made without any knowledge of the intention of General Washington to change his position or any design of contesting the passage of the Schuylkill, but the troops had been posted in the manner already mentioned for the sole purpose of covering the foraging party.

Washington apprehended from his first intelligence that General Howe had taken the field in full force. He therefore recalled the troops already on the west side and moved rather higher up the river for the purpose of understanding the real situation, force, and designs of the enemy. The next day Lord Cornwallis returned to Philadelphia, and in the course of the night the American army crossed the river.

Here the Commander-in-Chief communicated to his army in general orders the manner in which he intended to dispose of them during the winter. He expressed in strong terms his approbation of their conduct, presented them with an encouraging state of the future prospects of their country, exhorted them to bear with continuing fortitude the hardships inseparable from the position they were about to take, and endeavored to convince their judgments that those hardships were not imposed on them by unfeeling caprice, but were necessary for the good of their country.

The winter had set in with great severity, and the sufferings of the army were extreme. In a few days, however, these sufferings were considerably diminished by the erection of logged huts, filled up with mortar, which, after being dried, formed comfortable habitations, and gave content to men long unused to the conveniences of life. The order of a regular encampment was observed, and the only appearance of winter quarters was the substitution of huts for tents.

Stedman, who, as we have already remarked, was in Howe's army, has not only given a vivid description of the condition of Washington's army, which agrees in the main with those of our own writers, but he has also exhibited in contrast the condition and conduct of the British army in Philadelphia. We transcribe this instructive passage:

"The American general determined to remain during the winter in the position which he then occupied at Valley Forge, recommending to his troops to build huts in the woods for sheltering themselves from the inclemency of the weather. And it is perhaps one of the most striking traits in General Washington's character that he possessed the faculty of gaining such an ascendancy over his raw and undisciplined followers, most of whom were destitute of proper winter clothing and otherwise unprovided with necessities, as to be able to prevail upon so many of them to remain with him during the winter in so distressing a situation. With immense labor he raised wooden huts, covered with straw and earth, which formed very uncomfortable quarters. On the east and south an entrenchment was made—the ditch six feet wide and three in depth; the mound not four feet high, very narrow, and such as might easily have been beat down by cannon. Two redoubts were also begun but never completed. The Schuylkill was on his left with a bridge across. His rear was mostly covered by an impassable precipice formed by Valley creek, having only a narrow passage near the Schuylkill. On the right his camp was accessible with some difficulty, but the approach on his front was on ground nearly on a level with his camp. It is indeed difficult to give an adequate description of his misery in this situation. His army was destitute of almost every necessary of clothing, nay, almost naked, and very often on short allowance of provisions; an extreme mortality raged in his hospitals, nor had he any of the most proper medicines to relieve the sick. There were perpetual desertions of parties from him of ten to fifty at a time. In three months he had not 4,000 men and these could by no means be termed effective. Not less than 500 horses perished from want and the severity of the season. He had often not three days' provisions in his camp and at times not enough for one day. In this infirm and dangerous state he continued from December to May, during all which time every person expected that General Howe would have stormed or besieged his camp, the situation of which equally invited either attempt. To have posted 2,000 men on a commanding ground near the bridge, on the north side of the Schuylkill, would have rendered his escape on the left impossible; 2,000 men placed on a like ground opposite the narrow pass would have as effectually prevented a retreat by his rear, and five or six thousand men stationed on the front and right of his camp would have deprived him of flight on those sides. The positions were such that if any of the corps were attacked they could have been instantly supported. Under

such propitious circumstances what mortal could doubt of success? But the British army, neglecting all these opportunities, was suffered to continue at Philadelphia where the whole winter was spent in dissipation. A want of discipline and proper subordination pervaded the whole army, and if disease and sickness thinned the American army encamped at Valley Forge, indolence and luxury perhaps did no less injury to the British troops at Philadelphia. During the winter a very unfortunate inattention was shown to the feelings of the inhabitants of Philadelphia, whose satisfaction should have been vigilantly consulted, both from gratitude and from interest. They experienced many of the horrors of civil war. The soldiers insulted and plundered them, and their houses were occupied as barracks without any compensation being made to them. Some of the first families were compelled to receive into their habitations individual officers who were even indecent enough to introduce their mistresses into the mansions of their hospitable entertainers. This soured the minds of the inhabitants, many of whom were Quakers. But the residence of the army at Philadelphia occasioned distresses which will probably be considered by the generality of mankind as of a more grievous nature. It was with difficulty that fuel could be got on any terms. Provisions were most exorbitantly high. Gaming of every species was permitted and even sanctioned. This vice not only debauched the mind, but by sedentary confinement and the want of seasonable repose enervated the body. A foreign officer held the bank at the game of faro by which he made a very considerable fortune, and but too many respectable families in Britain had to lament its baleful effects. Officers who might have rendered honorable service to their country were compelled, by what was termed a bad run of luck, to dispose of their commissions and return penniless to their friends in Europe. The father who thought he had made a provision for his son by purchasing him a commission in the army ultimately found that he had put his son to school to learn the science of gambling, not the art of war. Dissipation had spread through the army, and indolence and want of subordination, its natural concomitants. For if the officer be not vigilant the soldier will never be alert.

"Sir William Howe, from the manners and religious opinions of the Philadelphians, should have been particularly cautious. For this public dissoluteness of the troops could not but be regarded by such people as a contempt of them, as well as an offense against piety; and it influenced all

the representations which they made to their countrymen respecting the British. They inferred from it, also, that the commander could not be sufficiently intent on the plans of either conciliation or subjugation; so that the opinions of the Philadelphians, whether erroneous or not, materially promoted the cause of Congress. During the whole of this long winter of riot and dissipation, General Washington was suffered to continue with the remains of his army, not exceeding 5,000 effective men at most, undisturbed at Valley Forge, considerable arrears of pay due to them; almost in a state of nature for want of clothing; the Europeans in the American service disgusted and deserting in great numbers, and indeed in companies, to the British army, and the natives tired of the war. Yet, under all these favorable circumstances for the British interest, no one step was taken to dislodge Washington, whose cannon were frozen up and could not be moved. If Sir William Howe had marched out in the night he might have brought Washington to action, or if he had retreated, he must have left his sick, cannon, ammunition, and heavy baggage behind. A nocturnal attack on the Americans would have had this further good effect: it would have depressed the spirit of revolt, confirmed the wavering, and attached them to the British interest. It would have opened a passage for supplies to the city, which was in great want of provisions for the inhabitants. It would have shaken off that lethargy in which the British soldiers had been immersed during the winter. It would have convinced the well-affected that the British leader was in earnest. If Washington had retreated the British could have followed. With one of the best-appointed in every respect and finest armies (consisting of at least 14,000 effective men) ever assembled in any country, a number of officers of approved service, wishing only to be led to action, this dilatory commander, Sir William Howe, dragged out the winter without doing any one thing to obtain the end for which he was commissioned. Proclamation was issued after proclamation calling upon the people of America to repair to the British standard, promising them remission of their political sins and an assurance of protection in both person and property, but these promises were confined merely to paper. The best personal security to the inhabitants was an attack by the army, and the best security of property was peace, and this to be purchased by successful war. For had Sir William Howe led on his troops to action victory was in his power and conquest in his train. During Sir William Howe's stay at Philadelphia a number of disaffected citizens were suffered to remain in the garrison; these people

were ever upon the watch and communicated to Washington every intelligence he could wish for."

We have copied this passage from Stedman, with a view to show the contrast between the situation of Washington and Howe and their respective armies, as exhibited by an enemy to our cause. It is literally the contrast between virtue and vice. The final result shows that Providence in permitting the occupation of Philadelphia by the British army was really promoting the cause of human liberty.

Stedman's statement of the numbers of Washington's army is erroneous, even if it refers only to effective men, and his schemes for annihilating Washington's army would probably not have been so easily executed as he imagined. Still the army was very weak. Marshall says that although the total of the army exceeded 17,000 men (February, 1778), the present effective rank and file amounted to only 5,012. This statement alone suggests volumes of misery, sickness, destitution, and suffering.

We must now call the reader's attention to the northern campaign of 1777 which, remote as it was from Washington's immediate scene of action, was not conducted without his aid and direction.

1. Footnote: This was Lieut.-Col. Samuel Smith, of the Maryland line. After serving in this perilous post at Fort Mifflin, he was made general, and in that rank assisted in the defense of Baltimore in the War of 1812. See Document {A} at the end of this chapter.

2. Footnote: Donop was a brave officer. He was found on the battlefield by Captain Mauduit Duplessis, a talented French engineer, who had assisted Greene in defense of the fort, and who attended the unfortunate count on his death-bed till he expired, three days after the battle, at the early age of thirty-seven. "I die," said he, in his last hour, "a victim of my ambition, and of the avarice of my sovereign." A fine commentary on the mercenary system of the German princes. The government of Hesse Cassel quite recently caused the remains of Count Donop to be removed from Red Bank, to be interred with distinguished honor in his own country.

3. Footnote: Judge Marshall, the biographer of Washington, on whose account of this affair ours is founded, was present on the occasion. He served in the army from the beginning of the war; was appointed first lieutenant in 1776, and captain in 1777. He resigned his commission in 1778, and, devoting himself to the practice of the law, subsequently rose to

the eminent office of Chief Justice of the United States. He died at Philadelphia, July 6th, 1836, aged seventy-nine.

CHAPTER XII. — BURGOYNE'S INVASION OF NEW YORK PUNISHED BY SCHUYLER AND GATES. 1777.

We have already had occasion to refer to what was passing in the North during the time when Washington was conducting the arduous campaign in Jersey, Delaware, and Pennsylvania. General Schuyler had held the chief command of the army operating against Canada since the opening of the war in 1775. Under his direction the force of Montgomery was sent to Quebec in the disastrous expedition of which we have already related the history, and Arnold was acting in a subordinate capacity to Schuyler when he so bravely resisted the descent of Carleton on the lakes. Schuyler also performed the best part of the service of resisting the invasion of New York from Canada, and nearly completed the campaign which terminated in the surrender of Burgoyne to Gates. To the events of this campaign we now call the reader's attention.

At the commencement of the campaign of 1777 the American army on the frontier of Canada having been composed chiefly of soldiers enlisted for a short period only, had been greatly reduced in numbers by the expiration of their term of service.

The cantonments of the British northern army, extending from Isle aux Noix and Montreal to Quebec, were so distant from each other that they could not readily have afforded mutual support in case of an attack, but the Americans were in no condition to avail themselves of this circumstance. They could scarcely keep up even the appearance of garrisons in their forts and were apprehensive of an attack on Ticonderoga as soon as the ice was strong enough to afford an easy passage to troops over the lakes. At the close of the preceding campaign General Gates had joined the army under Washington, and the command of the army in the northern department, comprehending Albany, Ticonderoga, Fort Stanwix, and their dependencies, remained in the hands of General Schuyler. The services of that meritorious officer were more solid than brilliant, and had not been duly valued by Congress, which, like other popular assemblies, was slow in discerning real

and unostentatious merit. Disgusted at the injustice which he had experienced he was restrained from leaving the army merely by the deep interest which he took in the arduous struggle in which his country was engaged, but after a full investigation of his conduct during the whole of his command, Congress was at length convinced of the value of his services and requested him to continue at the head of the army of the northern department. That army he found too weak for the services which it was expected to perform and ill-supplied with arms, clothes, and provisions. He made every exertion to organize and place it on a respectable footing for the ensuing campaign, but his means were scanty and the new levies arrived slowly. General St. Clair, who had served under Gates, commanded at Ticonderoga, and, including militia, had nearly 2,000 men under him, but the works were extensive and would have required 10,000 men to man them fully. {1}

The British ministry had resolved to prosecute the war vigorously on the northern frontier of the United States, and appointed Burgoyne, who had served under Carleton in the preceding campaign, to command the royal army in that quarter. The appointment gave offense to Carleton, then Governor of Canada, who naturally expected to be continued in the command of the northern army, and that officer testified his dissatisfaction by tendering the resignation of his government. But although displeased with the nomination, he gave Burgoyne every assistance in his power in preparing for the campaign.

Burgoyne had visited England during the winter, concerted with the ministry a plan of the campaign and given an estimate of the force necessary for its successful execution. Besides a fine train of artillery and a suitable body of artillerymen, an army, consisting of more than 7,000 veteran troops, excellently equipped and in a high state of discipline, was put under his command. Besides this regular force he had a great number of Canadians and savages.

The employment of the savages had been determined on at the very commencement of hostilities, their alliance had been courted and their services accepted, and on the present occasion the British ministry placed no small dependence on their aid. Carleton was directed to use all his influence to bring a large body of them into the field, and his exertions were very successful. General Burgoyne was assisted by a number of

distinguished officers, among whom were Generals Philips, Fraser, Powel, Hamilton, Riedesel, and Specht. A suitable naval armament, under the orders of Commodore Lutwych, attended the expedition.

After detaching Colonel St. Leger with a body of light troops and Indians, amounting to about 800 men, by the way of Lake Oswego and the Mohawk river, to make a diversion in that quarter and to join him when he advanced to the Hudson, Burgoyne left St. John's on the 16th of June, and, preceded by his naval armament, sailed up Lake Champlain and in a few days landed and encamped at Crown Point earlier in the season than the Americans had thought it possible for him to reach that place.

He met his Indian allies and, in imitation of a savage partisan, gave them a war feast, at which he made them a speech in order to inflame their courage and repress their barbarous cruelty. He next issued a lofty proclamation addressed to the inhabitants of the country in which, as if certain of victory, he threatened to punish with the utmost severity those who refused to attach themselves to the royal cause. He talked of the ferocity of the Indians and their eagerness to butcher the friends of independence, and he graciously promised protection to those who should return to their duty. The proclamation was so far from answering the general's intention that it was derided by the people as a model of pomposity.

Having made the necessary arrangements on the 30th of June, Burgoyne advanced cautiously on both sides of the narrow channel which connects Lakes Champlain and George, the British on the west and the German mercenaries on the east, with the naval force in the center, forming a communication between the two divisions of the army, and on the 1st of July his van appeared in sight of Ticonderoga.

The river Sorel issues from the north end of Lake Champlain and throws its superfluous waters into the St. Lawrence. Lake Champlain is about eighty miles long from north to south, and about fourteen miles broad where it is widest. Crown Point stands at what may properly be considered the south end of the lake, although a narrow channel, which retains the name of the lake, proceeds southward and forms a communication with South river and the waters of Lake George.

Ticonderoga is on the west side of the narrow channel, twelve miles south from Crown Point. It is a rocky angle of land, washed on three sides

by the water and partly covered on the fourth side by a deep morass. On the space on the northwest quarter, between the morass and the channel, the French had formerly constructed lines of fortification, which still remained, and those lines the Americans had strengthened by additional works.

Opposite Ticonderoga on the east side of the channel, which is here between three and four hundred yards wide, stands a high circular hill called Mount Independence, which had been occupied by the Americans when they abandoned Crown Point, and carefully fortified. On the top of it, which is flat, they had erected a fort and provided it sufficiently with artillery. Near the foot of the mountain, which extends to the water's edge, they had raised entrenchments and mounted them with heavy guns, and had covered those lower works by a battery about half way up the hill.

With prodigious labor they had constructed a communication between those two posts by means of a wooden bridge which was supported by twenty-two strong wooden pillars placed at nearly equal distances from each other. The spaces between the pillars were filled up by separate floats, strongly fastened to each other and to the pillars by chains and rivets. The bridge was twelve feet wide and the side of it next Lake Champlain was defended by a boom formed of large pieces of timber, bolted and bound together by double iron chains an inch and a half thick. Thus an easy communication was established between Ticonderoga and Mount Independence and the passage of vessels up the strait prevented.

Immediately after passing Ticonderoga the channel becomes wider and, on the southeast side, receives a large body of water from a stream at that point called South river, but higher up named Wood creek. From the southwest come the waters flowing from Lake George, and in the angle formed by the confluence of those two streams rises a steep and rugged eminence called Sugar Hill, which overlooks and commands both Ticonderoga and Mount Independence. That hill had been examined by the Americans, but General St. Clair, considering the force under his command insufficient to occupy the extensive works of Ticonderoga and Mount Independence and flattering himself that the extreme difficulty of the ascent would prevent the British from availing themselves of it, neglected to take possession of Sugar Hill. It may be remarked that the north end of Lake George is between two and three miles above Ticonderoga, but the channel leading to it is interrupted by rapids and shallows and is unfit for

navigation. Lake George is narrow, but is thirty-five miles long, extending from northeast to southwest. At the head of it stood a fort of the same name, strong enough to resist an attack of Indians, but incapable of making any effectual opposition to regular troops. Nine miles beyond it was Fort Edward on the Hudson.

On the appearance of Burgoyne's van St. Clair had no accurate knowledge of the strength of the British army, having heard nothing of the reinforcement from Europe. He imagined that they would attempt to take the fort by assault and flattered himself that he would easily be able to repulse them. But, on the 2d of July, the British appeared in great force on both sides of the channel and encamped four miles from the forts, while the fleet anchored just beyond the reach of the guns. After a slight resistance Burgoyne took possession of Mount Hope, an important post on the south of Ticonderoga, which commanded part of the lines of that fort as well as the channel leading to Lake George, and extended his lines so as completely to invest the fort on the west side. The German division under General Riedesel occupied the eastern bank of the channel and sent forward a detachment to the vicinity of the rivulet which flows from Mount Independence. Burgoyne now labored assiduously in bringing forward his artillery and completing his communications. On the 5th of the month (July, 1777) he caused Sugar Hill to be examined, and being informed that the ascent, though difficult, was not impracticable, he immediately resolved to take possession of it and proceeded with such activity in raising works and mounting guns upon it that his battery might have been opened on the garrison next day.

These operations received no check from the besieged, because, as it has been alleged, they were not in a condition to give any. St. Clair was now nearly surrounded. Only the space between the stream which flows from Mount Independence and South river remained open, and that was to be occupied next day.

In these circumstances it was requisite for the garrison to come to a prompt and decisive resolution, either at every hazard to defend the place to the last extremity or immediately to abandon it. St. Clair called a council of war, the members of which unanimously advised the immediate evacuation of the forts, and preparations were instantly made for carrying this resolution into execution. The British had the command of the

communication with Lake George, and consequently the garrison could not escape in that direction. The retreat could be effected by the South river only. Accordingly the invalids, the hospital, and such stores as could be most easily removed, were put on board 200 boats and, escorted by Colonel Long's regiment, proceeded, on the night between the 5th and 6th of July, up the South river towards Skeenesborough. The garrisons of Ticonderoga and Mount Independence marched by land through Castleton, towards the same place. The troops were ordered to march out in profound silence and particularly to set nothing on fire. But these prudent orders were disobeyed, and, before the rear guard was in motion, the house on Mount Independence, which General Fermoy had occupied, was seen in flames. That served as a signal to the enemy, who immediately entered the works and fired, but without effect, on the rear of the retreating army.

The Americans marched in some confusion to Hubbardton whence the main body, under St. Clair, pushed forward to Castleton. But the English were not idle. General Fraser, at the head of a strong detachment of grenadiers and light troops, commenced an eager pursuit by land upon the right bank of Wood creek: General Riedesel, behind him, rapidly advanced with his Brunswickers, either to support the English or to act separately as occasion might require. Burgoyne determined to pursue the Americans by water. But it was first necessary to destroy the boom and bridge which had been constructed in front of Ticonderoga. The British seamen and artificers immediately engaged in the operation, and in less time than it would have taken to describe their structure, those works which had cost so much labor and so vast an expense, were cut through and demolished. The passage thus cleared, the ships of Burgoyne immediately entered Wood creek and proceeded with extreme rapidity in search of the Americans. All was in movement at once upon land and water. By three in the afternoon the van of the British squadron, composed of gunboats, came up with and attacked the American galleys near Skeenesborough Falls. In the meantime three regiments which had been landed at South bay, ascended and passed a mountain with great expedition, in order to turn the retreating army above Wood creek, to destroy the works at the Falls of Skeenesborough, and thus to cut off the retreat of the army to Fort Anne. But the Americans eluded this stroke by the rapidity of their march. The British frigates having joined the van, the galleys, already hard pressed by the gunboats, were completely overpowered. Two of them surrendered; three of them were blown up. The

Americans having set fire to their boats, mills, and other works, fell back upon Fort Anne, higher up Wood creek. All their baggage, however, was lost and a large quantity of provisions and military stores fell into the hands of the British.

The pursuit by land was not less active. Early on the morning of the 7th of July (1777) the British overtook the American rear guard who, in opposition to St. Clair's orders, had lingered behind and posted themselves on strong ground in the vicinity of Hubbardton. Fraser's troops were little more than half the number opposed to him, but aware that Riedesel was close behind and fearful lest his chase should give him the slip, he ordered an immediate attack. Warner opposed a vigorous resistance, but a large body of his militia retreated and left him to sustain the combat alone, when the firing of Riedesel's advanced guard was heard and shortly after his whole force, drums beating and colors flying, emerged from the shades of the forest and part of his troops immediately effected a junction with the British line. Fraser now gave orders for a simultaneous advance with the bayonet which was effected with such resistless impetuosity that the Americans broke and fled, sustaining a very serious loss. St. Clair, upon hearing the firing, endeavored to send back some assistance, but the discouraged militia refused to return and there was no alternative but to collect the wrecks of his army and proceed to Fort Edward to effect a junction with Schuyler.

Burgoyne lost not a moment in following up his success at Skeenesborough, but dispatched a regiment to effect the capture of Fort Anne, defended by a small party under the command of Colonel Long. This officer judiciously posted his troops in a narrow ravine through which his assailants were compelled to pass and opened upon them so severe a fire in front, flank, and rear, that the British regiments, nearly surrounded, with difficulty escaped to a neighboring hill, where the Americans attacked them anew with such vigor that they must have been utterly defeated had not the ammunition of the assailants given out at this critical moment. No longer being able to fight Long's troops fell back, and, setting the fort on fire, also directed their retreat to the headquarters at Fort Edward.

While at Skeenesborough, General Burgoyne issued a second proclamation summoning the people of the adjacent country to send ten deputies from each township to meet Colonel Skeene at Castleton in order

to deliberate on such measures as might still be adopted to save those who had not yet conformed to his first and submitted to the royal authority. General Schuyler, apprehending some effect from this paper, issued a counter-proclamation, stating the insidious designs of the enemy—warning the inhabitants by the example of Jersey of the danger to which their yielding to this seductive proposition would expose them and giving them the most solemn assurances that all who should send deputies to this meeting or in any manner aid the enemy, would be considered as traitors and should suffer the utmost rigor of the law.

Nothing, as Botta remarks, {2} could exceed the consternation and terror which the victory of Ticonderoga and the subsequent successes of Burgoyne spread through the American provinces nor the joy and exultation they excited in England. The arrival of these glad tidings was celebrated by the most brilliant rejoicings at court and welcomed with the same enthusiasm by all those who desired the unconditional reduction of America. They already announced the approaching termination of this glorious war; they openly declared it a thing impossible that the rebels should ever recover from the shock of their recent losses, as well of men as of arms and of military stores, and especially that they should ever regain their courage and reputation, which, in war, always contribute to success as much, at least, as arms themselves. Even the ancient reproaches of cowardice were renewed against the Americans and their own partisans abated much of the esteem they had borne them. They were more than half disposed to pronounce the Colonists unworthy to defend that liberty which they gloried in with so much complacency. But it deserves to be noted here especially that there was no sign of faltering on the part of the people, no disposition to submit to the invading force. The success of the enemy did but nerve our fathers to more vigorous resolves to maintain the cause of liberty even unto death.

Certainly the campaign had been opened and prosecuted thus far in a very dashing style by Burgoyne and had he been able to press forward it is quite possible that success might have crowned his efforts. But there were some sixteen miles of forest yet to be traversed; Burgoyne waited for his baggage and stores, and meanwhile General Schuyler, who was in command of the American forces, took such steps as would necessarily put a stop to the rapid approach of the enemy. Trenches were opened, the roads and paths were obstructed, the bridges were broken up, and in the only practicable defiles large trees were cut in such a manner on both sides of the

road as to fall across and lengthwise, which, with their branches interwoven, presented an insurmountable barrier; in a word, this wilderness, of itself by no means easy of passage, was thus rendered almost absolutely impenetrable. Nor did Schuyler rest satisfied with these precautions; he directed the cattle to be removed to the most distant places and the stores and baggage from Fort George to Fort Edward, that articles of such necessity for the troops might not fall into the power of the British. He urgently demanded that all the regiments of regular troops found in the adjacent States should be sent without delay to join him; he also made earnest and frequent calls upon the militia of New England and of New York. He likewise exerted his utmost endeavors to procure himself recruits in the vicinity of Fort Edward and the city of Albany; the great influence he enjoyed with the inhabitants gave him in this quarter all the success he could desire. Finally, to retard the progress of the enemy, he resolved to threaten his left flank. Accordingly, he detached Colonel Warner, with his regiment, into the State of Vermont with orders to assemble the militia of the country and to make incursions toward Ticonderoga. In fact Schuyler did everything which was possible to be done under the circumstances, and it is not too much to assert in justice to the good name of General Schuyler, that the measures which he adopted paved the way to the victory which finally crowned the American arms at Saratoga.

Washington, equally with Congress, supposing that Schuyler's force was stronger and that of the British weaker than was really the case, was very greatly distressed and astonished at the disasters which befell the American cause in the north. He waited, therefore, with no little anxiety, later and more correct information before he was willing to pronounce positively upon the course pursued by St. Clair. When that officer joined Schuyler the whole force did not exceed 4,400 men; about half of these were militia, and the whole were ill-clothed, badly armed, and greatly dispirited by the recent reverses. Very ungenerously and unjustly it was proposed to remove the northern officers from the command and send successors in their places. An inquiry was instituted by order of Congress, which resulted honorably for Schuyler and his officers, and Schuyler, the able commander and zealous-hearted patriot, remained for the present at the head of the northern department. {3}

Washington exerted himself with all diligence to send reinforcements and supplies to the army of Schuyler. The artillery and warlike stores were

expedited from Massachusetts. General Lincoln, a man of great influence in New England, was sent there to encourage the militia to enlist. Arnold, in like manner, repaired thither; it was thought his ardor might serve to inspire the dejected troops. Colonel Morgan, an officer whose brilliant valor we have already had occasion to remark, was ordered to take the same direction with his troop of light horse. All these measures, conceived with prudence and executed with promptitude, produced the natural effect. The Americans recovered by degrees their former spirit and the army increased from day to day.

During this interval Burgoyne actively exerted himself in opening a passage from Fort Anne to Fort Edward. But, notwithstanding the diligence with which the whole army engaged in the work, their progress was exceedingly slow, so formidable were the obstacles which nature as well as art had thrown in their way. Besides having to remove the fallen trees with which the Americans had obstructed the roads they had no less than forty bridges to construct and many others to repair; one of these was entirely of log work, over a morass two miles wide. In short the British encountered so many impediments in measuring this inconsiderable space that it was found impossible to reach the banks of the Hudson near Fort Edward until the 30th of July (1777). The Americans, either because they were too feeble to oppose the enemy or that Fort Edward was no better than a ruin, not susceptible of defense, or finally because they were apprehensive that Colonel St. Leger, after the reduction of Fort Stanwix, might descend by the left bank of the Mohawk to the Hudson and thus cut off their retreat, retired lower down to Stillwater where they threw up entrenchments. At the same time they evacuated Fort George, having previously burned their boats upon the lake, and in various ways obstructed the road to Fort Edward. Burgoyne might have reached Fort Edward much more readily by way of Lake George, but he had judged it best to pursue the panic-stricken Americans, and, despite the difficulties of the route, not to throw any discouragements in the way of his troops by a retrograde movement.

At Fort Edward General Burgoyne again found it necessary to pause in his career, for his carriages, which in the hurry had been made of unseasoned wood, were much broken down and needed to be repaired. From the unavoidable difficulties of the case not more than one-third of the draught horses contracted for in Canada had arrived, and General Schuyler had been careful to remove almost all the horses and draught cattle of the

country out of his way. Boats for the navigation of the Hudson, provisions, stores, artillery, and other necessities for the army were all to be brought from Fort George, and although that place was only nine or ten miles from Fort Edward, yet such was the condition of the roads, rendered nearly impassable by the great quantities of rain that had fallen, that the labor of transporting necessities was incredible. Burgoyne had collected about 100 oxen, but it was often necessary to employ ten or twelve of them in transporting a single boat. With his utmost exertions he had on the 15th of August conveyed only twelve boats into the Hudson and provisions for the army for four days in advance. Matters began to assume a very serious aspect indeed, and as the further he removed from the lakes the more difficult it became to get supplies from that quarter, Burgoyne saw clearly that he must look elsewhere for sustenance for his army.

The British commander was not ignorant that the Americans had accumulated considerable stores, including live cattle and vehicles of various kinds at Bennington, about twenty-four miles east of the Hudson. Burgoyne, easily persuaded that the Tories in that region would aid his efforts, and thinking that he could alarm the country as well as secure the supplies of which he began to stand in great need, determined to detach Colonel Baum with a force of some six or eight hundred of Riedesel's dragoons for the attack upon Bennington. His instructions to Baum were "to try the affections of the country, to disconcert the counsels of the enemy, to mount Riedesel's dragoons, to complete Peters' corps (of Loyalists), and to obtain large supplies of cattle, horses, and carriages." Baum set off on the 13th of August on this expedition which was to result so unfortunately to himself, and which proved in fact the ruin of Burgoyne's entire plans and purposes.

We have spoken of the consternation which filled the minds of men a short time before this, when Burgoyne seemed to be marching in triumph through the country. The alarm, however, subsided, and the New England States resolved to make most vigorous efforts to repel the attack of the enemy. John Langdon, a merchant of Portsmouth and speaker of the New Hampshire Assembly, roused the desponding minds of his fellow-members to the need of providing defense for the frontiers, and with whole-hearted patriotism thus addressed them: "I have \$3,000 in hard money; I will pledge my plate for \$3,000 more. I have seventy hogsheads of Tobago rum which shall be sold for the most it will bring. These are at the service of the State.

If we succeed in defending our firesides and homes I may be remunerated, if we do not the property will be of no value to me. Our old friend Stark, who so nobly sustained the honor of our State at Bunker Hill may be safely entrusted with the conduct of the enterprise, and we will check the progress of Burgoyne." That brave son of New Hampshire, General Stark, conceiving himself aggrieved by certain acts of Congress in appointing junior officers over his head, had resigned his commission. He was now prevailed upon to take service under authority from his native State, it being understood that he was to act independently as to his movements against the enemy. His popularity speedily called in the militia, who were ready to take the field under him without hesitation.

Soon after Stark proceeded to Manchester, twenty miles north of Bennington, where Colonel Seth Warner, the former associate of Ethan Allen, had taken post with the troops under his command. Here he met General Lincoln, who had been sent by Schuyler to lead the militia to the west bank of the Hudson. Stark refused to obey Schuyler's orders, and Congress, on the 19th of August (1777), passed a vote of censure upon his conduct. But Stark did not know of this, and as his course was clearly that of sound policy, and his victory two days before the censure cast upon him showed it to be so, he had the proud satisfaction of knowing that the Commander-in-Chief approved of his plan of harassing the rear of the British, and that the victory of Bennington paralyzed the entire operations of Burgoyne.

On the day that Baum set out Stark arrived at Bennington. The progress of the German troops, at first tolerably prosperous, was soon impeded by the state of the roads and the weather, and as soon as Stark heard of their approach he hurried off expresses to Warner to join him, who began his march in the night. After sending forward Colonel Gregg to reconnoiter the enemy he advanced to the rencontre with Baum, who, finding the country thus rising around him, halted and entrenched himself in a strong position above the Wollamsac river and sent off an express to Burgoyne, who instantly dispatched Lieutenant-Colonel Breyman with a strong reinforcement.

During the 15th of August (1777) the rain prevented any serious movement. The Germans and English continued to labor at their entrenchments upon which they had mounted two pieces of artillery. The

following day was bright and sunny and early in the morning Stark sent forward two columns to storm the entrenchments at different points, and when the firing had commenced threw himself on horseback and advanced with the rest of his troops. As soon as the enemy's columns were seen forming on the hill-side, he exclaimed, "See, men! there are the red coats; we must beat to-day, or Molly Stark's a widow." The military replied to this appeal by a tremendous shout and the battle which ensued, as Stark states in his official report, "lasted two hours, and was the hottest I ever saw. It was like one continual clap of thunder." The Indians ran off at the beginning of the battle; the Tories were driven across the river; and although the Germans fought bravely they were compelled to abandon the entrenchments, and fled, leaving their artillery and baggage on the field.

As Breyman and his corps approached they heard the firing and hurried forward to the aid of their countrymen. An hour or two earlier they might have given a different turn to the affair, but the heavy rain had delayed their progress. They met and rallied the fugitives and returned to the field of battle. Stark's troops, who were engaged in plunder, were taken in great measure by surprise, and the victory might after all have been wrested from their grasp but for the opportune arrival of Warner's regiment at the critical moment. The battle continued until sunset when the Germans, overwhelmed by numbers, at length abandoned their baggage and fled. Colonel Baum, their brave commander, was killed, and the British loss amounted to some eight or nine hundred effective troops, in killed and prisoners. The loss of the Americans was 30 killed and 40 wounded. Stark's horse was killed in the action.

Too much praise, as Mr. Everett well remarks, {4} cannot be bestowed on the conduct of those who gained the battle of Bennington, officers and men. It is, perhaps, the most conspicuous example of the performance by militia of all that is expected of regular, veteran troops. The fortitude and resolution with which the lines at Bunker Hill were maintained by recent recruits against the assault of a powerful army of experienced soldiers have always been regarded with admiration. But at Bennington the hardy yeomen of New Hampshire, Vermont, and Massachusetts, many of them fresh from the plough and unused to the camp, "advanced," as General Stark expresses it in his official letter, "through fire and smoke, and mounted breastworks that were well fortified and defended with cannon."

Fortunately for the success of the battle Stark was most ably seconded by the officers under him; every previous disposition of his little force was most faithfully executed. He expresses his particular obligations to Colonels Warner and Herrick, "whose superior skill was of great service to him." Indeed the battle was planned and fought with a degree of military talent and science which would have done no discredit to any service in Europe. A higher degree of discipline might have enabled the general to check the eagerness of his men to possess themselves of the spoils of victory, but his ability, even in that moment of dispersion and under the flush of success, to meet and conquer a hostile reinforcement, evinces a judgment and resource not often equaled in partisan warfare.

In fact it would be the height of injustice not to recognize in this battle the marks of the master mind of the leader, which makes good officers and good soldiers out of any materials and infuses its own spirit into all that surround it. This brilliant exploit was the work of Stark from its inception to its achievement. His popular name called the militia together. His resolute will obtained him a separate commission—at the expense, it is true, of a wise political principle, but on the present occasion with the happiest effect. His firmness prevented him from being overruled by the influence of General Lincoln, which would have led him with his troops across the Hudson. How few are the men who in such a crisis would not merely not have sought but actually have repudiated a junction with the main army! How few who would not only have desired, but actually insisted on taking the responsibility of separate action! Having chosen the burden of acting alone, he acquitted himself in the discharge of his duty with the spirit and vigor of a man conscious of ability proportioned to the crisis. He advanced against the enemy with promptitude; sent forward a small force to reconnoiter and measure his strength; chose his ground deliberately and with skill; planned and fought the battle with gallantry and success.

The consequences of this victory were of great moment. It roused the people and nerved them to the contest with the enemy, and it also justified the sagacity of Washington, whose words we have quoted on a previous page. Burgoyne's plans were wholly deranged and instead of relying upon lateral excursions to keep the population in alarm and obtain supplies, he was compelled to procure necessities as best he might. His rear was exposed, and Stark, acting on his line of policy, prepared to place himself so that Burgoyne might be hemmed in and be, as soon after he was, unable to

advance or retreat. When Washington heard of Stark's victory he was in Bucks county, Pennsylvania, whence he wrote to Putnam: "As there is now not the least danger of General Howe's going to New England I hope the whole force of that country will turn out and by following the great stroke struck by General Stark, near Bennington, entirely crush General Burgoyne, who, by his letter to Colonel Baum, seems to be in want of almost everything."

The defeat at Bennington was not the only misfortune which now fell upon the British arms. We have noted on a previous page that Burgoyne had detached Colonel St. Leger with a body of regular troops, Canadians, Loyalists, and Indians, by the way of Oswego, to make a diversion on the upper part of the Mohawk river and afterward join him on his way to Albany. On the 2d of August (1777) St. Leger approached Fort Stanwix, or Schuyler, a log fortification situated on rising ground near the source of the Mohawk river, and garrisoned by about 600 Continentals under the command of Colonel Gansevoort. Next day he invested the place with an army of sixteen or seventeen hundred men, nearly one-half of whom were Indians, and the rest British, Germans, Canadians, and Tories. On being summoned to surrender Gansevoort answered that he would defend the place to the last.

On the approach of St. Leger to Fort Schuyler, General Herkimer, who commanded the militia of Tryon county, assembled about 700 of them and marched to the assistance of the garrison. On the forenoon of the 6th of August a messenger from Herkimer found means to enter the fort and gave notice that he was only eight miles distant and intended that day to force a passage into the fort and join the garrison. Gansevoort resolved to aid the attempt by a vigorous sally, and appointed Colonel Willet with upwards of 200 men to that service.

St. Leger received information of the approach of Herkimer, and placed a large body consisting of the "Johnson Greens," and Brant's Indians in ambush near Oriskany, on the road by which he was to advance. Herkimer fell into the snare. The first notice which he received of the presence of an enemy was from a heavy discharge of musketry on his troops, which was instantly followed by the war-whoop of the Indians who attacked the militia with their tomahawks. Though disconcerted by the suddenness of the attack many of the militia behaved with spirit, and a scene of unutterable

confusion and carnage ensued. The royal troops and the militia became so closely crowded together that they had not room to use firearms, but pushed and pulled each other, and using their daggers, fell pierced by mutual wounds. Some of the militia fled at the first onset; others made their escape afterwards; about 100 of them retreated to a rising ground where they bravely defended themselves till a successful sortie from the fort compelled the British to look to the defense of their own camp. Colonel Willet in this sally killed a number of the enemy, destroyed their provisions, carried off some spoil, and returned to the fort without the loss of a man. Besides the loss of the brave General Herkimer, who was slain, the number of the killed was computed at 400. St. Leger, imitating the grandiloquent style of Burgoyne, again summoned the fort to surrender, but Colonel Gansevoort peremptorily refused. Colonel Willet, accompanied by Lieutenant Stockwell, having passed through the British camp, eluded the patrols and the savages and made his way for fifty miles through pathless woods and dangerous morasses and informed General Schuyler of the position of the fort and the need of help in the emergency. He determined to afford it to the extent of his power, and Arnold, who was always ready for such expeditions, agreed to take command of the troops for the purpose of relieving the fort. Arnold put in practice an acute stratagem, which materially facilitated his success. It was this. Among the Tory prisoners was one Yost Cuyler, who had been condemned to death, but whom Arnold agreed to spare on consideration of his implicitly carrying out his plan. Accordingly, Cuyler, having made several holes in his coat to imitate bullet shots, rushed breathless among the Indian allies of St. Leger and informed them that he had just escaped in a battle with the Americans who were advancing on them with the utmost celerity. While pointing to his coat for proof of his statement, a sachem, also in the plot, came in and confirmed the intelligence. Other scouts arrived speedily with a report which probably grew out of the affair at Bennington, that Burgoyne's army was entirely routed. All this made a deep impression upon the fickle-minded redmen.

Fort Schuyler was better constructed and defended with more courage than St. Leger had expected, and his light artillery made little impression on it. His Indians, who liked better to take scalps and plunder than to besiege fortresses became very unmanageable. The loss which they had sustained in the encounters with Herkimer and Willet deeply affected them; they had expected to be witnesses of the triumphs of the British and to share with

them the plunder. Hard service and little reward caused bitter disappointment, and when they knew that a strong detachment of Americans was marching against them, they resolved to take safety in flight. St. Leger employed every argument and artifice to detain them, but in vain; part of them went off and all the rest threatened to follow if the siege were persevered in. Therefore, on the 22d of August (1777), St. Leger raised the siege, and retreated with circumstances indicating great alarm; the tents were left standing, the artillery was abandoned, and a great part of the baggage, ammunition, and provisions fell into the hands of the garrison, a detachment from which harassed the retreating enemy. But the British troops were exposed to greater danger from the fury of their savage allies than from the pursuit of the Americans. During the retreat they robbed the officers of their baggage, and the army generally of their provisions and stores. Not content with this they first stripped off their arms, and afterwards murdered with their own bayonets all those who from inability to keep up, from fear or other cause were separated from the main body. The confusion, terror, and sufferings of this retreat found no respite till the royal troops reached the lake on their way to Montreal.

Arnold arrived at Fort Schuyler two days after the retreat of the besiegers, but finding no occasion for his services he soon returned to camp. The successful defense of Fort Stanwix, or Schuyler, powerfully cooperated with the defeat of the royal troops at Bennington in raising the spirits and invigorating the activity of the Americans. The Loyalists became timid; the wavering began to doubt the success of the royal arms, and the great body of the people became convinced that nothing but steady exertion on their part was necessary to ruin that army which a short time before had appeared to be sweeping every obstacle from its path on the high road to victory. The decisive victory at Bennington and the retreat of St. Leger from Fort Schuyler, however important in themselves, were still more so in their consequences. An army which had spread terror and dismay in every direction—which had previously experienced no reverse of fortune was considered as already beaten, and the opinion became common that the appearance of the great body of the people in arms would secure the emancipation of their country. It was, too, an advantage of no inconsiderable importance resulting from this change of public opinion that the disaffected became timid, and the wavering who, had the torrent of success continued, would have made a merit of contributing their aid to the

victor were no longer disposed to put themselves and their fortunes in hazard to support an army whose fate was so uncertain.

The barbarities which had been perpetrated by the Indians belonging to the invading armies excited still more resentment than terror. As the prospect of revenge began to open their effect became the more apparent, and their influence on the royal cause was the more sensibly felt because they had been indiscriminate.

The murder of Miss M'Crea passed through all the papers on the continent, and the story being retouched by the hand of more than one master, excited a peculiar degree of sensibility. {5}

But there were other causes of still greater influence in producing the events which afterward took place. The last reinforcements of Continental troops arrived in camp about this time and added both courage and strength to the army. The harvest, which had detained the northern militia upon their farms, was over, and General Schuyler, whose continued and eminent services had not exempted him from the imputation of being a traitor, was succeeded by General Gates, who possessed a large share of the public confidence.

When Schuyler was directed by Congress to resume the command of the northern department, Gates withdrew himself from it. When the resolution passed recalling the general officers who had served in that department, General Washington was requested to name a successor to Schuyler. On his expressing a wish to decline this nomination and representing the inconvenience of removing all the general officers, Gates was again directed to repair thither and take the command, and their resolution to recall the brigadiers was suspended until the Commander-in-Chief should be of opinion that it might be carried into effect with safety.

Schuyler retained the command until the arrival of Gates, which was on the 10th of August (1777), and continued his exertions to restore the affairs of the department, though he felt acutely the disgrace of being recalled in this critical and interesting state of the campaign. "It is," said he, in a letter to the Commander-in-Chief, "matter of extreme chagrin to me to be deprived of the command at a time when, soon if ever, we shall probably be enabled to face the enemy; when we are on the point of taking ground where they must attack to a disadvantage, should our force be inadequate to facing them in the field; when an opportunity will in all probability occur in

which I might evince that I am not what Congress have too plainly insinuated by taking the command from me."

If error be attributable to the evacuation of Ticonderoga, no portion of it was committed by Schuyler. His removal from the command was probably severe and unjust as respected himself, but perhaps wise as respected America. The frontier towards the lakes was to be defended by the troops of New England, and however unfounded their prejudices against him might be, it was prudent to consult them.

Notwithstanding the difficulties which multiplied around him Burgoyne remained steady to his purpose. The disasters at Bennington and on the Mohawk produced no disposition to abandon the enterprise and save his army.

It had now become necessary for Burgoyne to recur to the slow and toilsome mode of obtaining supplies from Fort George. Having, with persevering labor, collected provision for thirty days in advance he crossed the Hudson on the 13th and 14th of September (1777) and encamped on the heights and plains of Saratoga, with a determination to decide the fate of the expedition in a general engagement.

Gates, having been joined by all the Continental troops destined for the northern department and reinforced by large bodies of militia, had moved from his camp in the islands, and advanced to the neighborhood of Stillwater.

The bridges between the two armies having been broken down by General Schuyler, the roads being excessively bad and the country covered with wood, the progress of the British army down the river was slow. On the night of the 17th of September, Burgoyne encamped within four miles of the American army and the next day was employed in repairing the bridges between the two camps. In the morning of the 19th he advanced in full force toward the American left. Morgan was immediately detached with his rifle corps to observe the enemy and to harass his front and flanks. He fell in with a picket in front of the right wing which he attacked with vivacity and drove in upon the main body. Pursuing with too much ardor he was met in considerable force, and after a severe encounter was compelled in turn to retire in some disorder. Two regiments led by Arnold being advanced to his assistance his corps was rallied, and the action became more general. The Americans were formed in a wood, with an open field in

front, and invariably repulsed the British corps which attacked them, but when they pursued those corps to the main body they were in turn driven back to their first ground. Reinforcements were continually brought up, and about 4 in the afternoon upward of 3,000 American troops were closely engaged with the whole right wing of the British army commanded by General Burgoyne in person. The conflict was extremely severe and only terminated with the day. At dark the Americans retired to their camp, and the British, who had found great difficulty in maintaining their ground, lay all night on their arms near the field of battle.

In this action the killed and wounded on the part of the Americans were between three and four hundred. Among the former were Colonels Colburn and Adams and several other valuable officers. The British loss has been estimated at rather more than 500 men.

Each army claimed the victory and each believed itself to have beaten near the whole of the hostile army with only a part of its own force. The advantage, however, taking all circumstances into consideration, was decidedly with the Americans. In a conflict which nearly consumed the day, they found themselves at least equal to their antagonists. In every quarter they had acted on the offensive, and after an encounter for several hours had not lost an inch of ground. They had not been driven from the field, but had retired from it at the close of day to the camp from which they had marched to battle. Their object, which was to check the advancing enemy, had been obtained, while that of the British general had failed. In the actual state of things to fight without being beaten was on their part victory, while on the part of the British to fight without a decisive victory was defeat. The Indians who found themselves beaten in the woods by Morgan, {6} and restrained from scalping and plundering the unarmed by Burgoyne, saw before them the prospect of hard fighting without profit, grew tired of the service and deserted in great numbers. The Canadians and Provincials were not much more faithful, and Burgoyne soon perceived that his hopes must rest almost entirely on his European troops.

With reason, therefore, this action was celebrated throughout the United States as a victory and considered as the precursor of the total ruin of the invading army. The utmost exultation was displayed and the militia were stimulated to fly to arms and complete the work so happily begun.

General Lincoln, in conformity with directions which have been stated, had assembled a considerable body of New England militia in the rear of Burgoyne, from which he drew three parties of about 500 men each. One of these was detached under the command of Colonel Brown to the north end of Lake George, principally to relieve a number of prisoners who were confined there, but with orders to push his success, should he be fortunate, as far as prudence would admit. Colonel Johnson, at the head of another party, marched towards Mount Independence, and Colonel Woodbury with a third was detached to Skeenesborough to cover the retreat of both the others. With the residue, Lincoln proceeded to the camp of Gates.

Colonel Brown, after marching all night, arrived at the break of day on the north end of the lake where he found a small post which he carried without opposition. The surprise was complete, and he took possession of Mount Defiance, Mount Hope, the landing place, and about 200 batteaux. With the loss of only three killed and five wounded, he liberated 100 American prisoners and captured 293 of the enemy. This success was joyfully proclaimed through the northern States. It was believed confidently that Ticonderoga and Mount Independence were recovered, and the militia were exhorted, by joining their brethren in the army, to insure that event if it had not already happened.

The attempt on those places, however, failed. The garrison repulsed the assailants, who, after a few days abandoned the siege. On their return through Lake George in the vessels they had captured the militia made an attack on Diamond Island, the depot of all the stores collected at the north end of the lake. Being again repulsed they destroyed the vessels they had taken and returned to their former station.

The day after the battle of Stillwater General Burgoyne took a position almost within cannon-shot of the American camp, fortified his right, and extended his left to the river. Directly after taking this ground he received a letter from Sir Henry Clinton informing him that he should attack Fort Montgomery about the 20th of September (1777). The messenger returned with information that Burgoyne was in extreme difficulty and would endeavor to wait for aid until the 12th of October. {7}

Both armies retained their position until the 7th of October (1777). Burgoyne in the hope of being relieved by Sir Henry Clinton, and Gates in the confidence of growing stronger every day.

Having received no further intelligence from Sir Henry and being reduced to the necessity of diminishing the ration issued to his soldiers, Burgoyne determined to make one more trial of strength with his adversary. In execution of this determination he drew out on his right 1,500 choice troops whom he commanded in person assisted by Generals Philips, Riedesel, and Fraser.

The right wing was formed within three-quarters of a mile of the left of the American camp, and a corps of rangers, Indians, and Provincials was pushed on through secret paths to show themselves in its rear and excite alarm in that quarter.

These movements were perceived by General Gates, who determined to attack their left and at the same time to fall on their right flank. Poor's brigade and some regiments from New Hampshire were ordered to meet them in front, while Morgan with his rifle corps made a circuit unperceived and seized a very advantageous height covered with wood on their right. As soon as it was supposed that Morgan had gained the ground he intended to occupy the attack was made in front and on the left in great force. At this critical moment Morgan poured in a deadly and incessant fire on the front and right flank.

While the British right wing was thus closely pressed in front and on its flank, a distinct division of the American troops was ordered to intercept its retreat to camp, and to separate it from the residue of the army. Burgoyne perceived the danger of his situation and ordered the light infantry under General Fraser with part of the Twenty-fourth regiment to form a second line in order to cover the light infantry of the right and secure a retreat. While this movement was in progress the left of the British right was forced from its ground and the light infantry was ordered to its aid. In the attempt to execute this order they were attacked by the rifle corps with great effect, and Fraser was mortally wounded. Overpowered by numbers and pressed on all sides by a superior weight of fire, Burgoyne with great difficulty and with the loss of his field pieces and great part of his artillery corps regained his camp. The Americans followed close in his rear, and assaulted his works throughout their whole extent. Toward the close of day the entrenchments were forced on their right, and General Arnold with a few men actually entered their works, but his horse being killed under him and himself wounded, the troops were forced out of them, and it being nearly dark they

desisted from the assault. The left of Arnold's division was still more successful. Jackson's regiment of Massachusetts, then led by Lieutenant-Colonel Brooks, turned the right of the encampment and stormed the works occupied by the German reserve. Lieutenant-Colonel Breyman who commanded in them was killed and the works were carried. The orders given by Burgoyne to recover them were not executed, and Brooks maintained the ground he had gained.

Darkness put an end to the action and the Americans lay all night with their arms in their hands about half a mile from the British lines ready to renew the assault with the return of day. The advantage they had gained was decisive. They had taken several pieces of artillery, killed a great number of men, made upwards of 200 prisoners, among whom were several officers of distinction, and had penetrated the lines in a part which exposed the whole to considerable danger.

Unwilling to risk the events of the next day on the same ground, Burgoyne changed his position in the course of the night and drew his whole army into a strong camp on the river heights, extending his right up the river. This movement extricated him from the danger of being attacked the ensuing morning by an enemy already in possession of part of his works. The 8th of October (1777) was spent in skirmishing and cannonading. About sunset the body of General Fraser, who had been mortally wounded on the preceding day was, agreeably to his own desire, carried up the hill to be interred in the great redoubt attended only by the officers who had lived in his family. Generals Burgoyne, Philips, and Riedesel, in testimony of respect and affection for their late brave companion in arms joined the mournful procession which necessarily passed in view of both armies. The incessant cannonade, the steady attitude and unfaltering voice of the chaplain, and the firm demeanor of the company, though occasionally covered with the earth thrown up by the shot from the hostile batteries ploughing the ground around them, the mute expression of feeling pictured on every countenance, and the increasing gloom of the evening, all contributed to give an affecting solemnity to the obsequies. General Gates afterwards declared that if he had been apprised of what was going on he would at least have silenced his batteries and allowed the last offices of humanity to be performed without disturbance, or even have ordered minute-guns to be fired in honor of the deceased general.

Gates perceived the strength of Burgoyne's new position and was not disposed to hazard an assault. Aware of the critical situation of his adversary he detached a party higher up the Hudson for the purpose of intercepting the British army on its retreat, while strong corps were posted on the other side of the river to guard its passage.

This movement compelled Burgoyne again to change his position and to retire to Saratoga. About 9 at night the retreat was commenced and was effected with the loss of his hospital, containing about 300 sick, and of several batteaux laden with provisions and baggage. On reaching the ground to be occupied he found a strong corps already entrenched on the opposite side of the river prepared to dispute its passage. From Saratoga, Burgoyne detached a company of artificers under a strong escort to repair the roads and bridges toward Fort Edward. Scarcely had this detachment moved when the Americans appeared in force on the heights south of Saratoga creek and made dispositions which excited the apprehension of a design to cross it and attack his camp. The Europeans escorting the artificers were recalled, and a Provincial corps employed in the same service, being attacked by a small party, ran away and left the workmen to shift for themselves. No hope of repairing the roads remaining it became impossible to move the baggage and artillery.

The British army was now almost completely environed by a superior force. No means remained of extricating itself from difficulties and dangers which were continually increasing, but fording a river, on the opposite bank of which a formidable body of troops was already posted, and then escaping to Fort George through roads impassable by artillery or wagons, while its rear was closely pressed by a victorious enemy. {8}

A council of general officers, called to deliberate on their situation, took the bold resolution to abandon everything but their arms and such provisions as the soldiers could carry, and by a forced march in the night up the river, to extricate themselves from the American army, and crossing at Fort Edward, or at a ford above it, to press on to Fort George.

Gates had foreseen this movement and had prepared for it. In addition to placing strong guards at the fords of the Hudson he had formed an entrenched camp on the high grounds between Fort Edward and Fort George. The scouts sent to examine the route returned with this information and the plan was abandoned as impracticable.

Nothing could be more hopeless than the condition of the British army, or more desperate than that of their General, as described by himself. In his letter to Lord George Germain, Secretary of State for American affairs, he says: "A series of hard toil, incessant effort, stubborn action, until disabled in the collateral branches of the army by the total defection of the Indians; the desertion or timidity of the Canadians and provincials, some individuals excepted; disappointed in the last hope of any cooperation from other armies; the regular troops reduced by losses from the best parts to 3,500 fighting men, not 2,000 of which were British; only three days' provisions upon short allowance in store; invested by an army of 16,000 men, and no appearance of retreat remaining—I called into council all the generals, field officers, and captains commanding corps, and by their unanimous concurrence and advice I was induced to open a treaty with Major-General Gates."

A treaty was opened with a general proposition stating the willingness of the British general to spare the further effusion of blood, provided a negotiation could be effected on honorable terms. This proposition was answered by a demand that the whole army should ground their arms in their encampment and surrender themselves prisoners of war. This demand was instantly rejected with a declaration that if General Gates designed to insist on it the negotiation must immediately break off and hostilities recommence. On receiving this decided answer Gates receded from the rigorous terms at first proposed, and a convention was signed (October 17, 1777), in which it was agreed that the British army, after marching out of their encampment with all the honors of war, should lay down their arms and not serve against the United States till exchanged. They were not to be detained in captivity, but to be permitted to embark for England.

The situation of the armies considered, {9} these terms were highly honorable to the British general and favorable to his nation. They were probably more advantageous than would have been granted by Gates had he entertained no apprehension from Sir Henry Clinton, who was at length making the promised diversion on the North river, up which he had penetrated as far as Aesopus. The drafts made from Peekskill for both armies had left that post in a situation to require the aid of militia for its security. The requisitions of General Putnam were complied with, but the attack upon them being delayed, the militia, who were anxious to attend to

their farms, became impatient; many deserted, and Putnam was induced to discharge the residue.

Governor Clinton immediately ordered out half the militia of New York with assurances that they should be relieved in one month by the other half. This order was executed so slowly that the forts were carried before the militia were in the field.

Great pains had been taken and much labor employed to render the position of the American army for guarding the passage up the Hudson secure. The principal defenses were Forts Montgomery and Clinton. They had been constructed on the western bank of the Hudson, on very high ground extremely difficult of access and were separated from each other by a small creek which runs from the mountains into the river. These forts were too much elevated to be battered from the water, and the hills on which they stood were too steep to be ascended by troops landing at the foot of them. The mountains, which commence five or six miles below them, are so high and rugged, the defiles, through which the roads leading to them pass, so narrow and so commanded by the heights on both sides, that the approaches to them are extremely difficult and dangerous.

To prevent ships from passing the forts, *chevaux-de-frise* had been sunk in the river and a boom extended from bank to bank, which was covered with immense chains stretched at some distance in its front. These works were defended by the guns of the forts and by a frigate and galleys stationed above them, capable of opposing with an equal fire in front any force which might attack them by water from below.

Fort Independence is four or five miles below Forts Montgomery and Clinton and on the opposite side of the river on a high point of land, and Fort Constitution is rather more than six miles above them on an island near the eastern shore. Peekskill, the general headquarters of the officer commanding at the station, is just below Fort Independence and on the same side of the river. The garrisons had been reduced to about 600 men and the whole force under Putnam did not much exceed 2,000. Yet this force, though far inferior to that which Washington had ordered to be retained at the station, was, if properly applied, more than competent to the defense of the forts against any numbers which could be spared from New York. To insure success to the enterprise it was necessary to draw the

attention of Putnam from the real object and to storm the works before the garrisons could be aided by his army. This Sir Henry Clinton accomplished.

Between three and four thousand men embarked at New York and landed on the 5th of October (1777) at Verplanck's Point on the east side of the Hudson, a short distance below Peekskill, upon which Putnam retired to the heights in his rear. On the evening of the same day a part of these troops re-embarked and the fleet moved up the river to Peekskill Neck in order to mask King's Ferry, which was below them. The next morning at break of day the troops destined for the enterprise landed on the west side of Stony Point and commenced their march through the mountains into the rear of Forts Clinton and Montgomery. This disembarkation was observed, but the morning was so foggy that the numbers could not be distinguished, and a large fire, which was afterward perceived at the landing place, suggested the idea that the sole object of the party on shore was the burning of some storehouses. In the meantime the maneuvers of the vessels and the appearance of a small detachment left at Verplanck's Point persuaded Putnam that the meditated attack was on Fort Independence.

His whole attention was directed to this object, and the real designs of the enemy were not suspected until a heavy firing from the other side of the river announced the assault on Forts Clinton and Montgomery. Five hundred men were instantly detached to reinforce the garrisons of those places, but, before this detachment could cross the river, the forts were in possession of the British.

Having left a battalion at the pass of Thunderhill to keep up a communication, Sir Henry Clinton had formed his army into two divisions—one of which, consisting of 900 men, commanded by Lieutenant-Colonel Campbell, made a circuit by the forest of Deane, in order to fall on the back of Fort Montgomery, while the other, consisting of 1,200 men, commanded by General Vaughan and accompanied by Sir Henry Clinton in person, advanced slowly against Fort Clinton.

Both posts were assaulted about five in the afternoon. The works were defended with resolution and were maintained until dark, when, the lines being too extensive to be completely manned, the assailants entered them in different places. The defense being no longer possible some of the garrison were made prisoners, while their better knowledge of the country enabled others to escape. Governor Clinton passed the river in a boat and Gen.

James Clinton, though wounded in the thigh by a bayonet, also made his escape. Lieutenant-Colonels Livingston and Bruyn and Majors Hamilton and Logan were among the prisoners. The loss sustained by the garrisons was about 250 men; that of the assailants was stated by Sir Henry Clinton at less than 200. Among the killed were Lieutenant-Colonel Campbell and two other field officers.

As the boom and chains drawn across the river could no longer be defended the Continental frigates and galleys lying above them were burnt to prevent their falling into the hands of the enemy. Fort Independence and Fort Constitution were evacuated the next day and Putnam retreated to Fishkill. General Vaughan, after burning Continental village, where stores to a considerable amount had been deposited, proceeded at the head of a strong detachment up the river to Aesopus, which he also destroyed. {10}

Putnam, whose army had been augmented by reinforcements of militia to 6,000 men, detached General Parsons with 2,000 to repossess himself of Peekskill and of the passes in the Highlands, while with the residue he watched the progress of the enemy up the river. The want of heavy artillery prevented his annoying their ships in the Hudson.

On the capitulation of Burgoyne, near 5,000 men had been detached by Gates to aid Putnam. Before their arrival General Vaughan had returned to New York, whence a reinforcement to General Howe was then about to sail.

Great as was the injury sustained by the United States from this enterprise Great Britain derived from it no solid advantage. It was undertaken at too late a period to save Burgoyne, and though the passes in the Highlands were acquired, they could not be retained. The British had reduced to ashes every village and almost every house within their power, but this wanton and useless destruction served to irritate without tending to subdue. A keenness was given to the resentment of the injured, which outlived the contest between the two nations.

The army which surrendered at Saratoga exceeded 5,000 men. On marching from Ticonderoga it was estimated at 9,000. In addition to this great military force the British lost and the Americans acquired, a fine train of artillery, 7,000 stand of excellent arms, clothing for 7,000 recruits, with tents and other military stores to a considerable amount.

The thanks of Congress were voted to General Gates and his army, and a medal of gold in commemoration of this great event was ordered to be

struck and presented to him by the President in the name of the United States. Colonel Wilkinson, his adjutant-general, whom he strongly recommended, was appointed brigadier-general by brevet.

In the opinion that the British would not immediately abandon the passes in the Highlands, Congress ordered Putnam to join Washington with a reinforcement not exceeding 2,500 men, and directed Gates to take command of the army on the Hudson, with unlimited powers to call for aids of militia from the New England States as well as from New York and New Jersey.

A proposition to authorize the Commander-in-Chief, after consulting with General Gates and Governor George Clinton, to increase the detachment designed to strengthen his army, if he should then be of opinion that it might be done without endangering the objects to be accomplished by Gates, was seriously opposed. An attempt was made to amend this proposition so as to make the increase of the reinforcement to depend on the assent of Gates and Clinton, but this amendment was lost by a considerable majority and the original resolution was carried. These proceedings were attended with no other consequences than to excite some degree of attention to the state of parties.

Soon after the capitulation of Burgoyne, Ticonderoga and Mount Independence were evacuated and the garrison retired to Isle aux Noix and St. John's. The effect produced by this event on the British cabinet and nation was great and immediate. It seemed to remove the delusive hopes of conquest with which they had been flattered, and suddenly to display the mass of resistance which must yet be encountered. Previous to the reception of this disastrous intelligence the employment of savages in the war had been the subject of severe animadversion. Parliament was assembled on the 20th of November (1777), and, as usual, addresses were proposed in answer to the speech from the throne entirely approving the conduct of the administration. In the House of Lords the Earl of Chatham moved to amend the address by introducing a clause recommending to his majesty an immediate cessation of hostilities and the commencement of a treaty of conciliation, "to restore peace and liberty to America, strength and happiness to England, security and permanent prosperity to both countries." In the course of the very animated observations made by this extraordinary man in support of his motion, he said: "But, my lords, who is the man that,

in addition to the disgraces and mischiefs of war, has dared to authorize and associate to our arms the tomahawk and scalping-knife of the savage? to call into civilized alliance the wild and inhuman inhabitant of the woods? to delegate to the merciless Indian the defense of disputed rights and to wage the horrors of his barbarous war against our brethren? My lords, these enormities cry aloud for redress and punishment. Unless thoroughly done away they will be a stain on the national character. It is not the least of our national misfortunes that the strength and character of our army are thus impaired. Familiarized to the horrid scenes of savage cruelty, it can no longer boast of the noble and generous principles which dignify a soldier; no longer sympathise with the dignity of the royal banner nor feel the pride, pomp, and circumstance of glorious war that makes ambition virtue. What makes ambition virtue? The sense of honor. But is this sense of honor consistent with the spirit of plunder or the practice of murder? Can it flow from mercenary motives? or can it prompt to cruel deeds?"

The conduct of the administration, however, received the full approbation of large majorities, but the triumph these victories in parliament afforded them was of short duration. The disastrous issue of an expedition from which the most sanguine expectations had been formed was soon known, and the mortification it produced was extreme. A reluctant confession of the calamity was made by the minister and a desire to restore peace on any terms consistent with the integrity of the empire found its way into the cabinet.

The surrender of Burgoyne was an event of very great importance in a political point of view as it undoubtedly decided the French government to form an alliance with the United States, but it was only one of the many disasters to the British arms which compelled them to acknowledge our independence. There remained much to be done. Washington was still to endure greater hardships and mortifications—to have his patriotism and disinterestedness more severely tried than ever during the coming campaigns. We must now return to his dreary camp at Valley Forge.

1. Footnote: The weakness of St. Clair's garrison was partly owing to its having contributed detachments to the support of Washington's army in New Jersey.

2. Footnote: "History of the War of Independence." vol. II, p. 280.

3. Footnote: Washington, writing to General Schuyler, clearly presaged the great and auspicious change in affairs which was soon to take place: "Though our affairs have for some days past worn a gloomy aspect, yet I look forward to a happy change. I trust General Burgoyne's army will meet sooner or later an effectual check, and, as I suggested before, that the success he has had will precipitate his ruin. From your accounts, he appears to be pursuing that line of conduct which, of all others, is most favorable to us—I mean acting in detachment. This conduct will certainly give room for enterprise on our part, and expose his parties to great hazard. Could we be so happy as to cut one of them off, though it should not exceed four, five, or six hundred men, it would inspirit the people, and do away much of their present anxiety. In such an event, they would lose sight of past misfortunes, and urged on at the same time by a regard for their own security, they would fly to arms, and afford every aid in their power."

4. Footnote: "Life of John Stark," p. 58.

5. Footnote: Mr. Jones, an officer of the British army, had gained the affections of Miss M'Crea, a lovely young lady of amiable character and spotless reputation, daughter of a gentleman attached to the royal cause, residing near Fort Edward, and they had agreed to be married. In the course of service, the officer was removed to some distance from his bride, and became anxious for her safety and desirous of her company. He engaged some Indians, of two different tribes, to bring her to camp, and promised a keg of rum to the person who should deliver her safe to him. She dressed to meet her bridegroom, and accompanied her Indian conductors; but by the way, the two chiefs, each being desirous of receiving the promised reward, disputed which of them should deliver her to her lover. The dispute rose to a quarrel, and, according to their usual method of disposing of a disputed prisoner, one of them instantly cleft the head of the lady with his tomahawk.

This is the common version of the story found in the histories. Mr. Lossing, in his *Field Book of the Revolution*, relying on the traditions in the neighborhood of the scene, comes to the conclusion that the lady was accidentally killed by a party of Americans in pursuit of the Indians who had carried her off. Irving says she was killed by one of the Indians.

6. Footnote: Colonel Morgan, with his regiment of riflemen, had been recently sent by Washington to join the northern army. Gates, writing to Washington, May 226, 1777, says: "I cannot sufficiently thank your

Excellency for sending Colonel Morgan's corps to this army; they will be of the greatest service to it; for, until the late success this way, I am told the army were quite panic-struck by the Indians, and their Tory and Canadian assassins in Indian dress. Horrible, indeed, have been the cruelties they have wantonly committed upon the miserable inhabitants, insomuch that all is now fair with General Burgoyne, even if the bloody hatchet he has so barbarously used should find its way into his own head."

7. Footnote: Letter of Burgoyne.

8. Footnote: Gordon, in his history of the war, states himself to have received from General Glover an anecdote showing that all these advantages were on the point of being exposed to imminent hazard: "On the morning of the 11th, Gates called the general officers together, and informed them of his having received certain intelligence, which might be depended upon, that the main body of Burgoyne's army was marched off for Fort Edward with what they could take; and that the rear guard only was left in the camp, who, after a while, were to push off as fast as possible, leaving the heavy baggage behind. On this it was concluded to advance and attack the camp in half an hour. The officers repaired immediately to their respective commands. General Nixon's, being the eldest brigade, crossed the Saratoga creek first. Unknown to the Americans, Burgoyne had a line formed behind a parcel of brushwood, to support the park of artillery where the attack was to be made. General Glover was upon the point of following Nixon. Just as he entered the water, he saw a British soldier making across, whom he called and examined. This soldier was a deserter, and communicated the very important fact that the whole British army were in their encampment. Nixon was immediately stopped, and the intelligence conveyed to Gates, who countermanded his orders for the assault, and called back his troops, not without sustaining some loss from the British artillery." Gordon is confirmed by General Wilkinson, who was adjutant-general in the American army. The narrative of the General varies from that of Gordon only in minor circumstances.

9. Footnote: The American army consisted of 9,093 Continental troops. The number of the militia fluctuated, but amounted, at the signature of the convention, to 4,129. The sick exceeded 2,500 men.

CHAPTER XIII. — WASHINGTON AT VALLEY FORGE. 1777, 1778.

We have already given some details of the sufferings endured by Washington and his brave soldiers at Valley Forge. One-half the tale is not told—never will be told; their sufferings were unutterable. A review of this portion of Washington's life will show that at Valley Forge not only was a great deal suffered but a great deal was done. Here the army was hardened from the gristle of youth to the bone and muscle of manhood. It entered the tents of that dreary encampment a courageous but disorderly rabble; it left them a disciplined army. But we must not anticipate events.

This army, which was under the immediate command of Washington, was engaged through the winter (1777-1778) in endeavoring to stop the intercourse between Philadelphia and the country. To effect this object General Smallwood was detached with one division to Wilmington; Colonel Morgan, who had been detached from Gates's army, was placed on the lines on the west side of the Schuylkill, and General Armstrong with the Pennsylvania militia, was stationed near the old camp at White Marsh. Major Jameson with two troops of cavalry and M'Lane's infantry, was directed to guard the east and Capt. Henry Lee with his troop, the west side of that river. General Count Pulaski, who commanded the horse, led the residue of the cavalry to Trenton, where he trained them for the ensuing campaign.

One of the first operations meditated by Washington after crossing the Schuylkill was the destruction of a large quantity of hay which remained in the islands above the mouth of Darby creek, within the power of the British. Early in the morning, after his orders for this purpose had been given (December 22d), Howe marched out in full force and encamped between Darby and the middle ferry, so as completely to cover the islands while a foraging party removed the hay. Washington, with the intention of disturbing this operation, gave orders for putting his army in motion, when the alarming fact was disclosed that the commissary's stores were exhausted and that the last ration had been delivered and consumed.

Accustomed as were the Continental troops to privations of every sort, it would have been hazarding too much to move them under these circumstances against a powerful enemy. In a desert or in a garrison where food is unattainable, courage, patriotism, and habits of discipline enable the soldier to conquer wants which, in ordinary situations, would be deemed invincible. But to perish in a country abounding with provisions requires something more than fortitude; nor can soldiers readily submit while in such a country to the deprivation of food. It is not, therefore, surprising that among a few of the troops some indications of a mutiny appeared. It is much more astonishing that the great body of the army bore a circumstance so irritating, and to them so unaccountable, without a murmur.

On receiving intelligence of the fact, Washington ordered the country to be scoured and provisions for supplying the pressing wants of the moment to be seized wherever found. In the meantime light parties were detached to harass the enemy about Darby, where Howe, with his accustomed circumspection, kept his army so compact and his soldiers so within the lines that an opportunity to annoy him was seldom afforded even to the vigilance of Morgan and Lee. After completing his forage he returned, with inconsiderable loss, to Philadelphia.

That the American army, while the value still retained by paper bills placed ample funds in the hands of government, should be destitute of food in the midst of a State so abounding with provisions as Pennsylvania, is one of those extraordinary facts which cannot fail to excite attention. A few words of explanation seem to be needed to account for such a fact. Early in the war the office of commissary-general had been conferred on Colonel Trumbull, of Connecticut, a gentleman well fitted for that important station. Yet, from the difficulty of arranging so complicated a department, complaints were repeatedly made of the insufficiency of supplies. The subject was taken up by Congress, but the remedy administered served only to increase the disease. The system was not completed till near midsummer, and then its arrangements were such that Colonel Trumbull refused the office assigned to him. The new plan contemplated a number of subordinate officers, all to be appointed by Congress, and neither accountable to nor removable by the head of the department. This arrangement, which was made in direct opposition to the opinion of the Commander-in-Chief, drove Colonel Trumbull from the army. Congress, however, persisted in the system, and its effects were not long in unfolding themselves. In every

military division of the continent loud complaints were made of the deficiency of supplies. The armies were greatly embarrassed and their movements suspended by the want of provisions. The present total failure of all supply was preceded by issuing meat unfit to be eaten. Representations on this subject had been made to the Commander-in-Chief and communicated to Congress. That body had authorized him to seize provisions for the use of his army within seventy miles of headquarters and to pay for them in money or in certificates. The odium of this measure was increased by the failure of government to provide funds to take up these certificates when presented. At the same time the provisions carried into Philadelphia were paid for in specie at a fair price. The temptation was too great to be resisted. Such was the dexterity employed by the inhabitants in eluding the laws that notwithstanding the vigilance of the troops stationed on the lines they often succeeded in concealing their provisions from those authorized to impress for the army and in conveying them to Philadelphia. Washington, urged on by Congress, issued a proclamation requiring all the farmers within seventy miles of Valley Forge to thresh out one-half of their grain by the 1st of February and the rest by the 1st of March, under the penalty of having the whole seized as straw. Many farmers refused, defended their grain and cattle with muskets and rifle, and, in some instances, burnt what they could not defend.

It would seem that Washington had a sufficiently heavy burden upon his shoulders in the harassing cares and anxieties of his position, and that he might have been spared from trials of another sort to which he was exposed at this time, but Washington experienced what every great and good man must expect to meet with in an envious and malicious world. Thus far, apparently, little else than ill-success had attended the military exploits of the Commander-in-Chief. He had been compelled to retreat continually before a powerful enemy. New York and Philadelphia had been lost, and there was almost nothing of a brilliant or striking character in what had transpired during the war under Washington's immediate direction. On the other hand, the victory at Saratoga had thrown a lustre around Gates' name which far outshone for the time the solid and enduring light of Washington's noble and patriotic devotion to his country. It was the first great victory of the war and it was a victory which necessarily had a most important effect upon the future prospects of the United States. No wonder, then, that restless and envious men should make invidious comparisons between the

hero of Saratoga and the Commander-in-Chief. No wonder that Washington should suffer from detraction and the intrigues of dissatisfied and scheming men, to whom his unsullied virtue, purity, and integrity were invincible obstacles to every design of theirs to promote selfish or ambitious ends.

A direct and systematic attempt was made to ruin the reputation of Washington, and from the name of the person principally concerned this attempt is known by the title of Conway's Cabal. General Gates and General Mifflin of the army and Samuel Adams and others in Congress had more or less to do with this matter. Gates and Mifflin had taken offense at not receiving certain appointments during the siege of Boston, and were at no time well disposed toward Washington; Conway, a restless, boastful, and intriguing character, had always been distrusted by Washington, and he knew it. Some of the New England members do not seem ever to have cordially liked Washington's appointment as Commander-in-Chief, and now, when the capture of Burgoyne had been effected by the northern army without the intervention of Washington the malcontents ventured to assume a bolder attitude. Anonymous letters were freely circulated, attributing the ill-success of the American arms to the incapacity or vacillating policy of Washington and filled with insinuations and exaggerated complaints against the Commander-in-Chief. {1}

Washington was not unaware of what his enemies were attempting, but it was not till after the victory of Saratoga that the matter assumed a definite shape. The success of the northern army, which in fact was chiefly due to Schuyler, so elated Gates that he seemed to adopt the views of those other members of the cabal who were disposed to favor his aspirations to the office of commander-in-chief. He even ventured to do what few men ever dared, to treat Washington with disrespect. After the victory of the 7th of October (1777) had opened to him the prospect of subduing the army of Burgoyne, he not only omitted to communicate his success to Washington, but carried on a correspondence with Conway, in which that officer expressed great contempt for the Commander-in-Chief. When the purport of this correspondence, which had been divulged by Wilkinson to Lord Stirling, became known to Washington, he exploded the whole affair by sending the offensive expressions directly to Conway, who communicated the information to Gates. {1} Gates demanded the name of the informer in a letter to Washington, far from being conciliatory in its terms, which was

accompanied with the very extraordinary circumstance of being passed through Congress. Washington's answer completely humbled him.

It pointed out the inconsistencies and contradictions of Gates' defense and showed him that Washington had penetrated his whole scheme and regarded it with lofty contempt. In a subsequent letter Gates besought him to bury the subject in oblivion.

Meantime, Washington's enemies in Congress were bold and active. A new Board of War was created, of which Gates was appointed the president, and Mifflin, who was of the party unfriendly to Washington, was one of its members. Conway, who was probably the only brigadier in the army that had joined this faction, was appointed Inspector-general and was promoted above senior brigadiers to the rank of major-general. These were evidences that if the hold which the Commander-in-Chief had taken of the affections and confidence of the army and nation could be loosened, the party in Congress disposed to change their general was far from being contemptible in point of numbers. But to loosen this hold was impossible. The indignation with which the idea of such a change was received, even by the victorious troops who had conquered under Gates, forms the most conclusive proof of its strength. Even the northern army clung to Washington as the savior of his country.

These machinations to diminish the well-earned reputation of Washington made no undue impression on his steady mind, nor did they change one of his measures. His sensibilities seem to have been those of patriotism, of apprehension for his country, rather than of wounded pride. {2}

His desire to remain at the head of the army seemed to flow from the conviction that his retaining that station would be useful to his country, rather than from the gratification his high rank might furnish to ambition.

When he unbosomed himself to his private friends, the feelings and sentiments he expressed were worthy of Washington. To Mr. Laurens, {3} the President of Congress, and his private friend, who, in an unofficial letter, had communicated an anonymous accusation made to him, as President, containing heavy charges against the Commander-in-Chief, he said. "I cannot sufficiently express the Obligation I feel toward you for your friendship and politeness upon an occasion in which I am deeply interested. I was not unapprised that a malignant faction had been for some time

forming to my prejudice, which, conscious as I am of having ever done all in my power to answer the important purposes of the trusts reposed in me, could not but give me some pain on a personal account; but my chief concern arises from an apprehension of the dangerous consequences which intestine dissensions may produce to the common cause.

"As I have no other view than to promote the public good, and am unambitious of honors not founded in the approbation of my country, I would not desire in the least degree to suppress a free spirit of inquiry into any part of my conduct that even faction itself may deem reprehensible. The anonymous paper handed you exhibits many serious charges and it is my wish that it may be submitted to Congress. This I am the more inclined to as the suppression or concealment may possibly involve you in embarrassment hereafter since it is uncertain how many or who may be privy to the contents.

"My enemies take an ungenerous advantage of me. They know the delicacy of my situation and that motives of policy deprive me of the defense I might otherwise make against their insidious attacks. They know I cannot combat their insinuations, however injurious, without disclosing secrets it is of the utmost moment to conceal. But why should I expect to be free from censure, the unfailing lot of an elevated station? Merit and talents which I cannot pretend to rival have ever been subject to it. My heart tells me it has been my unremitted aim to do the best which circumstances would permit. Yet I may have been very often mistaken in my judgment of the means and may in many instances deserve the imputation of error."

While Washington expressed himself in these modest terms to a personal friend, he assumed a much bolder and higher tone to the dastardly enemies who were continually thwarting his designs and injuring the public service by their malignity and incapacity. These were public enemies to be publicly arraigned. Seizing the occasion to which we have already referred, when the army was unable to march against the enemy for want of provisions, he sent to the President of Congress the following letter which, of course, like the rest of his correspondence, was to be read to the whole house. It is severer than any he had ever written: "Full as I was in my representation of the matters in the commissary's department yesterday, fresh and more powerful reasons oblige me to add that I am now convinced beyond a doubt that unless some great and capital change suddenly takes place in that line this

army must inevitably be reduced to one or other of these three things—to starve, dissolve, or disperse in order to obtain subsistence. Rest assured, sir, that this is not an exaggerated picture, and that I have abundant reason to suppose what I say.

"Saturday afternoon receiving information that the enemy in force had left the city and were advancing toward Darby with apparent design to forage and draw subsistence from that part of the country, I ordered the troops to be in readiness that I might give every opposition in my power, when, to my great mortification, I was not only informed but convinced that the men were unable to stir on account of a want of provisions, and that a dangerous mutiny begun the night before, and which with difficulty was suppressed by the spirited exertions of some officers, was still much to be apprehended from the want this article.

"This brought forth the only commissary in the purchasing line in this camp and with him this melancholy and alarming truth, that he had not a single hoof of any kind to slaughter and not more than twenty-five barrels of flour! From hence form an opinion of our situation when I add that he could not tell when to expect any.

"All I could do under these circumstances was to send out a few light parties to watch and harass the enemy, whilst other parties were instantly detached different ways to collect, if possible, as much provisions as would satisfy the pressing wants of the soldiers; but will this answer? No, sir. Three or four days of bad weather would prove our destruction. What then is to become of the army this winter? And if we are now as often without provisions as with them what is to become of us in the spring when our force will be collected, with the aid perhaps of militia, to take advantage of an early campaign before the enemy can be reinforced? These are considerations of great magnitude, meriting the closest attention, and will, when my own reputation is so intimately connected with and to be affected by the event, justify my saying that the present commissaries are by no means equal to the execution of the office, or that the disaffection of the people surpasses all belief. The misfortune, however, does in my opinion proceed from both causes, and though I have been tender heretofore of giving my opinion or of lodging complaints, as the change in that department took place contrary to my judgment and the consequences thereof were predicted, yet finding that the inactivity of the army, whether

for want of provisions, clothes, or other essentials is charged to my account, not only by the common vulgar but by those in power, it is time to speak plain in exculpation of myself. With truth then I can declare that no man, in my opinion, ever had his measures more impeded than I have by every department of the army. Since the month of July we have had no assistance from the Quartermaster-General, and to want of assistance from this department the Commissary-General charges great part of his deficiency. To this I am to add that notwithstanding it is a standing order (often repeated) that the troops shall always have two days' provision by them, that they may be ready at any sudden call, yet scarcely any opportunity has ever offered of taking advantage of the enemy that has not been either totally obstructed or greatly impeded on this account, and this, the great and crying evil, is not all. Soap, vinegar, and other articles allowed by Congress we see none of, nor have we seen them, I believe, since the battle of Brandywine. The first, indeed, we have little occasion for—few men having more than one shirt, many only the moiety of one, and some none at all. In addition to which, as a proof of the little benefit from a clothier-general, and at the same time as a further proof of the inability of an army under the circumstances of this to perform the common duties of soldiers, we have, by a field return this day made, besides a number of men confined to hospitals for want of shoes and others in farmers' houses on the same account, no less than 2,898 men now in camp unfit for duty because they are barefoot and otherwise naked. By the same return it appears that our whole strength in Continental troops, including the eastern brigades, which have joined us since the surrender of General Burgoyne, exclusive of the Maryland troops sent to Wilmington, amounts to no more than 8,200 in camp fit for duty; notwithstanding which, and that since the 4th inst., our number fit for duty, from the hardships and exposures they have undergone, particularly from the want of blankets, have decreased near 2,000 men, we find, gentlemen, without knowing whether the army was really going into winter quarters or not (for I am sure no resolution of mine would warrant the remonstrance), reprobating the measure as much as if they thought the soldiers were made of stocks or stones, and equally insensible to frost and snow; and, moreover, as if they conceived it easily practicable for an inferior army, under the disadvantages I have described ours to be—which are by no means exaggerated—to confine a superior one, in all respects well appointed and provided for a winter's campaign, within the city of Philadelphia, and to cover from

depredation and waste the States of Pennsylvania, Jersey, etc. But what makes this matter still more extraordinary in my eye is that these very gentlemen, who were well apprised of the nakedness of the troops from ocular demonstration, who thought their own soldiers worse clad than others and advised me near a month ago to postpone the execution of a plan I was about to adopt, in consequence of a resolve of Congress for seizing clothes, under strong assurances that an ample supply would be collected in ten days, agreeably to a decree of the State (not one article of which, by the by, is yet come to hand), should think a winter's campaign and the covering of their States from the invasion of an enemy so easy and practicable a business. I can assure those gentlemen that it is a much easier and less distressing thing to draw remonstrances in a comfortable room, by a good fireside, than to occupy a cold, bleak hill, and sleep under frost and snow without clothes or blankets. However, although they seem to have little feeling for the naked and distressed soldiers, I feel superabundantly for them, and from my soul pity those miseries which it is not in my power either to relieve or to prevent."

This letter must have convinced Washington's implacable enemies in Congress that he had no thoughts of conciliating them. He despised and defied them. Its effect on those who were friendly to him would necessarily be inspiriting. His bold attitude justified their reliance on his moral courage and enabled them to demand the enactment of those measures which were necessary for the preservation of the army and the successful assertion of the country's independence.

It is probable that this letter gave the finishing stroke to the Conway Cabal. While Gates and Mifflin denied that they had ever desired or aimed at Washington's removal from the office of Commander-in-Chief and sought to recover his confidence, Conway himself, who was still inspector-general, after denying any design to remove Washington, still maintained an offensive attitude toward him, wrote impertinent letters to him, and persisted in intriguing against him with Congress. But he found himself foiled in all his ambitious and factious designs, and he had become excessively unpopular in the army. He felt at last that he was in a false position; we shall presently see how his career in this country terminated.

Washington's conduct through the whole period of the Conway Cabal, which lasted several months, is highly characteristic of the man. While he

regarded it with contempt, so far as he was personally concerned, he felt annoyed and distressed at the injury which it was inflicting on the public service. When the moment was come for unmasking the conspirators, by informing Conway that he was aware of their designs, he applied the match which was to explode the whole plot and cover its originators with shame and confusion. This he did in a quiet, business-like way because the public service required it. Congress, having committed itself by promoting his enemies, could not at once retract, but the officers themselves made haste to escape from public indignation by denials and apologies, and the final effect of the Conway Cabal was to establish Washington more firmly than ever in the confidence and affection of the whole country. {4}

His situation, however, was by no means enviable. His army was much attached to him, but weakened by disease, and irritated by nakedness and hunger, it was almost on the point of dissolution. In the midst of the difficulties and dangers with which he was surrounded Washington displayed a singular degree of steady perseverance, unshaken fortitude, and unwearied activity. Instead of manifesting irritable impatience under the malignant attacks made on his character he behaved with magnanimity, and earnestly applied to Congress and to the legislative bodies of the several States for reinforcements to his army in order that he might be prepared to act with vigor in the ensuing campaign.

But to recruit and equip the army was no easy task. The great depreciation of paper money rendered the pay of the soldiers inadequate to their support, and consequently it was not likely that voluntary enlistment would be successful, especially since the patriotic ardor of many had begun to cool by the continuance of the war, and all knew that great hardships and dangers were to be encountered by joining the army. The pay even of the officers, in the depreciated paper currency, was wholly unequal to the maintenance of their rank. Some of them who had small patrimonial estates found them melting away, while their lives were unprofitably devoted to the service of their country, and they who had no private fortune could not appear in a manner becoming their station. A commission was a burden, and many considered the acceptance of one as conferring rather than receiving a favor—a state of things highly disadvantageous to the service, for the duties of an office scarcely reckoned worth holding will seldom be zealously and actively discharged. There was reason to apprehend that many of the most

meritorious officers would resign their commissions, and that they only who were less qualified for service would remain with the army.

Congress, moved by the remonstrances of Washington, and by the complaints with which they were assailed from every quarter, deputed a committee of their body to reside in camp during the winter, and in concert with the general to examine the state of the army and report on the measures necessary to be taken for placing it in a more respectable condition. The members of this committee were Francis Dana, General Reed, Nathaniel Folsom, Charles Carroll, and Gouverneur Morris. On their arrival at Valley Forge Washington submitted to them a memoir, filling fifty folio pages, exhibiting the existing state of the army, the deficiencies and disorders, and their causes, and suggesting such reforms as he deemed necessary. Upon this document the plan for improving the efficiency of the army was formed and communicated to Congress by the committee, who remained in camp nearly three months. Congress approved of their proceedings and adopted their plan, but they legislated so slowly that the effect of their proceedings was hardly felt before the month of April (1778).

Among the reforms recommended by the committee, called the "Committee of Arrangement," who were sent to the camp, none met with so much opposition in Congress as that which provided for increasing the pay of the officers and soldiers of the army. Hitherto there had been no provision made for officers after the war should end, and the pay which they were actually receiving being in depreciated Continental bills was merely nominal. To the effect of this state of things in the army we have already adverted. It was most disastrous. Washington was desirous that Congress should make provision for giving officers half pay for life, or some other permanent provision, and increasing the inducements for soldiers to enlist. A party in Congress opposed this as having the appearance of a standing army, a pension list, and a privileged order in society.

In a letter to Congress Washington said: "If my opinion is asked with respect to the necessity of making this provision for the officers I am ready to declare that I do most religiously believe the salvation of the cause depends upon it, and without it your officers will moulder to nothing, or be composed of low and illiterate men, void of capacity for this or any other business.

"Personally, as an officer, I have no interest in their decision, because I have declared, and I now repeat it, that I never will receive the smallest benefit from the half-pay establishment, but as a man who fights under the weight of a proscription, and as a citizen, who wishes to see the liberty of his country established upon a permanent foundation, and whose property depends upon the success of our arms, I am deeply interested. But all this apart and justice out of the question, upon the single ground of economy and public saving, I will maintain the utility of it, for I have not the least doubt that until officers consider their commissions in an honorable and interested point of view, and are afraid to endanger them by negligence and inattention, no order, regularity, or care either of the men or public property, will prevail."

The following passages, from a letter addressed to a delegate in Congress from Virginia, exhibit the view Washington took at the time of public affairs and the spirit and eloquence with which he pleaded the cause of the country and the army.

"Before I conclude there are one or two points more upon which I will add an observation or two. The first is the indecision of Congress and the delay used in coming to determinations on matters referred to them. This is productive of a variety of inconveniences, and an early decision, in many cases, though it should be against the measure submitted, would be attended with less pernicious effects. Some new plan might then be tried, but while the matter is held in suspense nothing can be attempted. The other point is the jealousy which Congress unhappily entertain of the army, and which, if reports are right, some members labor to establish. You may be assured there is nothing more injurious or more unfounded. This jealousy stands upon the commonly received opinion, which under proper limitations is certainly true, that standing armies are dangerous to a State. The prejudices in other countries have only gone to them in time of peace, and these from their not having in general cases any of the ties, the concerns, or interests of citizens, or any other dependence than what flowed from their military employ; in short, from their being mercenaries, hirelings. It is our policy to be prejudiced against them in time of war, though they are citizens, having all the ties and interests of citizens, and in most cases property totally unconnected with the military line.

"If we would pursue a right system of policy, in my opinion, there should be none of these distinctions. We should all, Congress and army, be considered as one people, embarked in one cause, in one interest, acting on the same principle and to the same end. The distinction, the jealousies set up, or perhaps only incautiously let out, can answer not a single good purpose. They are impolitic in the extreme. Among individuals the most certain way to make a man your enemy is to tell him you esteem him such. So with public bodies, and the very jealousy which the narrow politics of some may affect to entertain of the army, in order to a due subordination to the supreme civil authority, is a likely means to produce a contrary effect—to incline it to the pursuit of those measures which they may wish it to avoid. It is unjust because no order of men in the thirteen States has paid a more sacred regard to the proceedings of Congress than the army, for without arrogance or the smallest deviation from truth it may be said that no history now extant can furnish an instance of an army's suffering such uncommon hardships as ours has done, and bearing them with the same patience and fortitude. To see men without clothes to cover their nakedness, without blankets to lie on, without shoes (for the want of which their marches might be traced by the blood from their feet), and almost as often without provisions as with them, marching through the frost and snow, and at Christmas taking up their winter quarters within a day's march of the enemy, without a house or hut to cover them till they could be built, and submitting without a murmur, is a proof of patience and obedience which in my opinion can scarcely be paralleled."

Such representations as these could not fail to produce some effect even on the minds of those who were opposed to the measures which Washington proposed. Still the action of Congress was, as usual, dilatory. After a great deal of discussion a vote was passed by a small majority to give the officers half pay for life. This vote was reconsidered, and it was finally agreed that the officers should receive half pay for seven years after the close of the war, or that each noncommissioned officer and soldier, who should continue in the army till the close of the war, should receive a bounty of \$80.

We have anticipated the order of time in order to dispose finally of this matter which was not terminated till the spring of 1778.

During the winter Howe confined his operations to those small excursions that were calculated to enlarge the comforts of his own soldiers,

who, notwithstanding the favorable dispositions of the neighboring country, were much distressed for fuel and often in great want of forage and fresh provisions. The vigilance of the parties on the lines, especially on the south side of the Schuylkill, intercepted a large portion of the supplies intended for the Philadelphia market, and corporal punishment was frequently inflicted on those who were detected in attempting this infraction of the laws. As Capt. Henry Lee, called in the army "Light Horse Harry," was particularly active, a plan was formed late in January to surprise and capture him in his quarters. An extensive circuit was made by a large body of cavalry who seized four of his patrols without communicating an alarm. About break of day the British horse appeared, upon which Captain Lee placed his troopers that were in the house at the doors and windows, who behaved so gallantly as to repulse the assailants without losing a horse or man. Only Lieutenant Lindsay and one private were wounded. The whole number in the house did not exceed ten. That of the assailants was said to amount to 200. They lost a sergeant and three men, with several horses killed, and an officer and three men wounded. The result of this skirmish gave great pleasure to Washington who had formed a high opinion of Lee's talents as a partisan. He mentioned the affair in his orders with strong marks of approbation, and in a private letter to the captain testified the satisfaction he felt. For his merit through the preceding campaign Congress promoted him to the rank of major and gave him an independent partisan corps, to consist of three troops of horse.

While the deficiency of the public resources, arising from the alarming depreciation of the bills of credit, manifested itself in all the military departments, a plan was matured in Congress and in the Board of War, without consulting the Commander-in-Chief, for a second irruption into Canada. It was proposed to place the Marquis de Lafayette at the head of this expedition and to employ Generals Conway and Stark as the second and third in command.

This was a measure planned by those who were not friendly to Washington; and one of its objects was to detach Lafayette from his best and dearest friend and bring him over to the Conway party. Lafayette would have declined the appointment, but Washington advised him to accept it, probably foreseeing how the affair would terminate.

The first intimation to Washington that the expedition was contemplated was given in a letter from the President of the Board of War of the 24th of January (1778), enclosing one of the same date to the Marquis, requiring his attendance on Congress to receive his instructions. Washington was requested to furnish Colonel Hazen's regiment, chiefly composed of Canadians, for the expedition, and in the same letter his advice and opinion were asked respecting it. The northern States were to furnish the necessary troops.

Without noticing the manner in which this business had been conducted and the marked want of confidence it betrayed, Washington ordered Hazen's regiment to march toward Albany, and Lafayette proceeded immediately to the seat of Congress at Yorktown. At his request he was to be considered as an officer detached from the army of Washington, to remain under his orders, and Major-General the Baron de Kalb was added to the expedition; after which Lafayette repaired in person to Albany to take charge of the troops who were to assemble at that place in order to cross the lakes on the ice and attack Montreal.

On arriving at Albany he found no preparations made for the expedition. Nothing which had been promised being in readiness, he abandoned the enterprise as impracticable. Some time afterward Congress also determined to relinquish it, and Washington was authorized to recall both Lafayette and De Kalb.

While the army lay at Valley Forge the Baron Steuben arrived in camp. This gentleman was a Prussian officer who came to the United States with ample recommendations. He had served many years in the armies of the great Frederick, had been one of his aides-de-camp, and had held the rank of lieutenant-general. He was well versed in the system of field exercise which the King of Prussia had introduced, and was qualified to teach it to raw troops. He claimed no rank and offered his services as a volunteer. After holding a conference with Congress he proceeded to Valley Forge.

Although the office of inspector-general had been bestowed on Conway, he had never entered on its duties, and his promotion to the rank of major-general had given much umbrage to the brigadiers who had been his seniors. That circumstance, in addition to the knowledge of his being in a faction hostile to the Commander-in-Chief, rendered his situation in the army so uncomfortable that he withdrew to Yorktown, in Pennsylvania,

which was then the seat of Congress. When the expedition to Canada was abandoned he was not directed, with Lafayette and De Kalb, to rejoin the army. Entertaining no hope of being permitted to exercise the functions of his new office, he resigned his commission about the last of April and, some time afterward, returned to France. {6}

On his resignation the Baron Steuben, who had, as a volunteer, performed the duties of inspector-general much to the satisfaction of the Commander-in-Chief and of the army, was, on the recommendation of Washington, appointed to that office, with the rank of major-general, without exciting the slightest murmur.

This gentleman was of immense service to the American troops. He established one uniform system of field exercise, and, by his skill and persevering industry, effected important improvements through all ranks of the army during its continuance at Valley Forge.

While it was encamped at that place several matters of great interest engaged the attention of Congress. Among them was the stipulation in the convention of Saratoga for the return of the British army to England. Boston was named as the place of embarkation. At the time of the capitulation the difficulty of making that port early in the winter was unknown to General Burgoyne. Consequently, as some time must elapse before a sufficient number of vessels for the transportation of his army could be collected, its embarkation might be delayed until the ensuing spring.

On being apprised of this circumstance, Burgoyne applied to Washington, desiring him to change the port of embarkation and to appoint Newport, in Rhode Island, or some other place on the Sound instead of Boston, and, in case this request should not be complied with, soliciting, on account of his health and private business, that the indulgence might be granted to himself and suite. Washington, not thinking himself authorized to decide on such an application, transmitted it to Congress, which took no notice of the matter further than to pass a resolution "That General Washington be directed to inform General Burgoyne that Congress will not receive or consider any proposition for indulgence or altering the terms of the convention of Saratoga, unless immediately addressed to their own body." The application was accordingly made to Congress, who readily complied with the request

in so far as it respected himself personally, but refused the indulgence to his troops, and ultimately forbade their embarkation.

Congress watched with a jealous eye every movement of the convention army and soon gave public indications of that jealousy. Early in November they ordered General Heath, who commanded in Boston, "to take the name, rank, former place of abode, and description of every person comprehended in the convention of Saratoga, in order that, if afterward found in arms against the United States, they might be punished according to the law of nations." Burgoyne showed some reluctance to the execution of this order, and his reluctance was imputed to no honorable motives.

If the troops had been embarked in the Sound they might have reached Britain early in the winter, where, without any breach of faith, government might have employed them in garrison duty and been enabled to send out a corresponding number of troops in time to take an active part in the next campaign. But if the port of Boston were adhered to as the place of embarkation, the convention troops could not, it was thought, sail before the spring, and, consequently, could not be replaced by the troops whose duties they might perform at home till late in the year 1778. This circumstance, perhaps, determined Congress to abide by Boston as the port of embarkation, and in this their conduct was free from blame. But, by the injuries mutually inflicted and suffered in the course of the war, the minds of the contending parties were exasperated and filled with suspicion and distrust of each other. Congress placed no reliance on British faith and honor, and, on the subject under consideration, gave clear evidence that on those points they were not over-scrupulous themselves.

On arriving in Boston the British officers found their quarters uncomfortable. This probably arose from the large number of persons to be provided for and the scarcity of rooms, fuel, and provisions, arising from the presence of the whole captured army. But the officers were much dissatisfied, and, after a fruitless correspondence with Heath, Burgoyne addressed himself to Gates and complained of the inconvenient quarters assigned his officers as a breach of the articles of capitulation. Congress was highly offended at the imputation and considered or affected to consider the charge as made with a view to justify a violation of the convention by his army as soon as they escaped from captivity. A number of transports for carrying off the convention troops was collected in the Sound

sooner than was expected, but that number, amounting only to twenty-six, the Americans thought insufficient for transporting such a number of men to Britain in the winter season, and inferred that the intention could only be to carry them to the Delaware and incorporate them with Howe's army. They also alleged that a number of cartouche-boxes and other accoutrements of war belonging to the British army had not been delivered up, agreeably to the convention, and argued that this violation on the part of the British released Congress from its obligations to fulfill the terms of that compact.

On the 8th of January (1778), Congress resolved "to suspend the embarkation of the army till a distinct and explicit ratification of the convention of Saratoga shall be properly notified by the court of Great Britain to Congress." Afterward the embarkation of the troops was delayed or refused for various reasons, and that part of the convention remained unfulfilled. The troops were long detained in Massachusetts; they were afterward sent to the back parts of Virginia and none of them were released but by exchange.

Mrs. Washington, as usual, visited her illustrious consort in his quarters at Valley Forge during the winter. Writing from thence to a friend in Boston, she says: "I came to this place some time about the 1st of February (1778), where I found the General very well. The General's apartment is very small; he has had a log cabin built to dine in, which has made our quarters much more tolerable than they were at first." To those American citizens who are now reaping the rich fruits of Washington's toils and sufferings in his country's cause, these few lines are very suggestive. One cannot help contrasting the luxurious habitations of the present generation with that log hut of the Father of his Country at Valley Forge, to which the addition of another log hut to dine in was considered by his consort a very comfortable appendage. We should remember these things.

The effect of the news of Burgoyne's surrender, which reached Europe in the autumn of 1777, could not be otherwise than highly favorable to the cause of American independence. Our envoys in France, Dr. Franklin, Silas Deane, and Arthur Lee had long been soliciting an alliance with France. But the cautious ministers of Louis XVI, although secretly favoring our cause and permitting supplies to be forwarded by Beaumarchais, and the prizes of our ships to be brought into their ports and sold, had hitherto abstained from openly supporting us, lest our arms should finally prove unsuccessful. But

the surrender of a large army to Gates and the firm attitude of Washington's army, besieging Howe in Philadelphia, as they had previously besieged him in Boston, gave a new turn to French policy and disposed the ministry of Louis to treat for an alliance with the new republic.

On the other hand, the British court was in a state of utter consternation. The war began to assume a more portentous aspect, and the British ministry, unable to execute their original purpose, lowered their tone and showed an inclination to treat with the Colonies on any terms which did not imply their entire independence and complete separation from the British empire. In order to terminate the quarrel with America before the actual commencement of hostilities with France, Lord North introduced two bills into the House of Commons. The first declared that Parliament would impose no tax or duty whatever, payable within any of the Colonies of North America, except only such duties as it might be expedient to impose for the purposes of commerce, the net produce of which should always be paid and applied to and for the use of the Colonies in which the same shall be respectively levied, in like manner as other duties collected under the authority of their respective Legislatures are ordinarily paid and applied; the second authorized the appointment of commissioners by the Crown, with power to treat with either the constituted authorities or with individuals in America, but that no stipulation entered into should have any effect till approved in Parliament. It empowered the commissioners, however, to proclaim a cessation of hostilities in any of the Colonies; to suspend the operation of the Non-intercourse Act; also to suspend, during the continuance of the act, so much of all or any of the acts of Parliament which have passed since the 10th day of February, 1763, as relates to the Colonies; to grant pardons to any number or description of persons, and to appoint a governor in any Colony in which his Majesty had heretofore exercised the power of making such appointment. The duration of the act was limited to the 1st day of June, 1779.

These bills passed both Houses of Parliament, and as about the time of their introduction ministry received information of the conclusion of the treaty between France and the Colonies, they sent off copies of them to America, even before they had gone through the usual formalities, in order to counteract the effects which the news of the French alliance might produce. Early in March, the Earl of Carlisle, George Johnstone, and William Eden, Esqs., were appointed commissioners for carrying the acts

into execution, and the celebrated Dr. Adam Ferguson, then professor of moral philosophy in the University of Edinburgh, was nominated their secretary. The commissioners sailed without delay for America. But the present measure, like every other concession in the course of this protracted contest, came too late. What was now offered would at one time have been hailed in America with acclamations of joy and secured the grateful affection of the Colonists. But circumstances were now changed. The minds of the people were completely alienated from the parent state and their spirits exasperated by the events of the war. Independence had been declared, victory had emblazoned the standards of Congress, and a treaty of alliance with France had been concluded.

On the 16th of December (1777) the preliminaries of a treaty between France and America were agreed on, and the treaty itself was signed at Paris on the 6th of February, 1778—an event of which the British ministry got information in little more than forty-eight hours after the signatures were affixed. The principal articles of the treaty were: That if Britain, in consequence of the alliance, should commence hostilities against France, the two countries should mutually assist each other; that the independence of America should be effectually maintained; that if any part of North America still professing allegiance to the Crown of Britain should be reduced by the Colonies it should belong to the United States; that if France should conquer any of the British West India Islands they should be deemed its property; that the contracting parties should not lay down their arms till the independence of America was formally acknowledged, and that neither of them should conclude a peace without the consent of the other.

Lord North's conciliatory bills reached America before the news of the French treaty and excited in Congress considerable alarm. There were a number of Loyalists in each of the Colonies; many, though not unfriendly to the American cause, had never entered cordially into the quarrel, and the heavy pressure of the war had begun to cool the zeal and exhaust the patience of some who had once been forward in their opposition to Britain. Congress became apprehensive lest a disposition should prevail to accept of the terms proposed by the British government, and the great body of the people be willing to resign the advantages of independence, in order to escape from present calamity.

The bills were referred to a committee, which, after an acute and severe examination, gave in a report well calculated to counteract the effects which it was apprehended the terms offered would produce on the minds of the timid and wavering. They reported as their opinion that it was the aim of those bills to create divisions in the States; and "that they were the sequel of that insidious plan, which, from the days of the Stamp Act down to the present time, hath involved this country in contention and bloodshed; and that, as in other cases, so in this, although circumstances may at times force them to recede from their unjustifiable claims, there can be no doubt but they will, as heretofore, upon the first favorable occasion, again display that lust of domination which hath rent in twain the mighty empire of Britain." They further reported it as their opinion that any men or body of men who should presume to make any separate or partial convention or agreement with commissioners under the Crown of Great Britain should be considered and treated as open and avowed enemies of the United States. The committee further gave it as their opinion that the United States could not hold any conference with the British commissioners unless Britain first withdrew her fleets and armies, or in positive and express terms acknowledged the independence of the States.

While these things were going on, Mr. Silas Deane arrived from Paris with the important and gratifying information that treaties of alliance and commerce had been concluded between France and the United States. This intelligence diffused a lively joy throughout America and was received by the people as the harbinger of their independence. The alliance had been long expected, and the delays thrown in the way of its accomplishment had excited many uneasy apprehensions. But these were now dissipated, and, to the fond imaginations of the people, all the prospects of the United States appeared gilded with the cheering beams of prosperity.

Writing to the President of Congress on this occasion (May 4, 1778), Washington says: "Last night at 11 o'clock I was honored with your dispatches of the 3d. The contents afford me the most sensible pleasure. Mr. Silas Deane had informed me by a line from Bethlehem that he was the bearer of the articles of alliance between France and the States. I shall defer celebrating this happy event in a suitable manner until I have liberty from Congress to announce it publicly. I will only say that the army are anxious to manifest their joy upon the occasion."

On the 7th of May the great event referred to in the preceding extract was celebrated by the army at Valley Forge with the highest enthusiasm. The following general orders were issued by Washington on the day before:

“It having pleased the Almighty Ruler of the universe to defend the cause of the United American States, and finally to raise us up a powerful friend among the princes of the earth, to establish our liberty and independency upon a lasting foundation, it becomes us to set apart a day for gratefully acknowledging the Divine goodness and celebrating the important event, which we owe to his Divine interposition. The several brigades are to be assembled for this purpose at 9 o’clock to-morrow morning, when their chaplains will communicate the intelligence contained in the postscript of the ‘Pennsylvania Gazette’ of the 2d instant, and offer up thanksgiving and deliver a discourse suitable to the occasion. At half after 10 o’clock a cannon will be fired, which is to be a signal for the men to be under arms; the brigade inspectors will then inspect their dress and arms and form the battalions according to the instructions given them, and announce to the commanding officers of the brigade that the battalions are formed.

“The commanders of brigades will then appoint the field officers to the battalions, after which each battalion will be ordered to load and ground their arms. At half-past 11 a second cannon will be fired as a signal for the march, upon which the several brigades will begin their march by wheeling to the right by platoons and proceed by the nearest way to the left of their ground by the new position; this will be pointed out by the brigade inspectors. A third signal will then be given, on which there will be a discharge of thirteen cannon, after which a running fire of the infantry will begin on the right of Woodford’s and continue throughout the front line; it will then be taken upon the left of the second line and continue to the right. Upon a signal given, the whole army will huzza, ‘Long live the King of France!’ The artillery then begins again and fires thirteen rounds; this will be succeeded by a second general discharge of the musketry in a running fire, and huzza, ‘Long live the friendly European Powers!’ The last discharge of thirteen pieces of artillery will be given, followed by a general running fire and huzza, ‘The American States!’ ”

An officer who was present describes the scene as follows: “Last Wednesday was set apart as a day of general rejoicing, when we had a *feu de joie* conducted with the greatest order and regularity. The army made a

most brilliant appearance, after which his Excellency dined in public, with all the officers of his army, attended with a band of music. I never was present where there was such unfeigned and perfect joy as was discovered in every countenance. The entertainment was concluded with a number of patriotic toasts, attended with huzzas. When the General took his leave there was a universal clap, with loud huzzas, which continued till he had proceeded a quarter of a mile, during which time there were a thousand hats tossed in the air. His Excellency turned round with his retinue and huzzaed several times."

Dr. Thacher, in his "Military Journal," mentions the presence of "Washington's lady and suite, Lord Stirling and the Countess of Stirling, with other general officers and ladies," at this fête. Our readers, after passing with us through the dismal scenes of the preceding winter, will readily sympathize with the army in the feelings attending this celebration. It is worthy of special notice that in his general order Washington was careful to give the religious feature of the scene a prominent place by distinctly acknowledging the Divine interposition in favor of the country. This was his invariable habit on all occasions. Religion with him was not merely an opinion, a creed, or a sentiment. It was a deep-rooted, all-pervading feeling, governing his life and imparting earnestness, dignity, and power to all his actions. Hence the reverence and affection which was the voluntary homage of all who knew him.

Lord North's conciliatory bills, as we have seen, were not acceptable to Congress. Washington's views in relation to them are given in the following letter, written to a member of that body two days after he had learned the terms proposed by the British government:

"Nothing short of independence, it appears to me, can possibly do. A peace on other terms would, if I may be allowed the expression, be a peace of war. The injuries we have received from the British nation were so unprovoked, and have been so great and so many, that they can never be forgotten. Besides the feuds, the jealousies, the animosities that would ever attend a union with them; besides the importance, the advantages, which we should derive from an unrestricted commerce, our fidelity as a people, our gratitude, our character as men, are opposed to a coalition with them but in case of the last extremity. Were we easily to accede to terms of dependence, no nation, upon future occasions, let the oppression of Britain be ever so

flagrant and unjust, would interpose for our relief, or, at most, they would do it with a cautious reluctance and upon conditions most probably that would be hard, if not dishonorable, to us.”

Congress fully agreed in these views and rejected the advances of the British government, refusing all terms of accommodation which did not begin with the withdrawal of the British fleets and armies and the acknowledgment of American independence. At the same time the bills were published, together with the action of Congress on the subject, and dispersed throughout the country. This decisive stand was taken before it was known that a treaty had been concluded with France.

The British commissioners, Carlisle, Johnstone, and Eden, charged with negotiating and reconciliation on the basis of Lord North's bills, did not arrive until (June, 1778) six weeks after drafts of the bills had been published by Governor Tryon and rejected by Congress. On their arrival at New York, Sir Henry Clinton, who had succeeded Howe as Commander-in-Chief, requested a passport for Dr. Ferguson, the secretary of the commissioners, to proceed to Yorktown and lay certain papers before Congress.

Washington, not deeming the matter within his province, declined until he could have the instruction of Congress, who sustained him in refusing the passport. The commissioners, impatient of delay, sent on the papers through the ordinary medium of a flag, addressed to the President of Congress.

The commissioners offered in their letter to consent to an immediate cessation of hostilities by sea and land; to agree that no military force should be kept up in the Colonies without the consent of Congress, and also both to give up the right of taxation and to provide for a representation in Parliament. They promised to sustain and finally pay off the paper money then in circulation. Every inducement short of the recognition of independence was held out to lead the Colonists to return to their allegiance. But if, when relying upon their own strength alone, they had refused to listen to such overtures, they were not likely to do so now that they were assured of the support of France. By order of Congress the President of that body wrote as follows to the commissioners: "I have received the letter from your Excellencies, dated the 9th instant, with the enclosures, and laid them before Congress. Nothing but an earnest desire to

spare the further effusion of human blood could have induced them to read a paper containing expressions so disrespectful to his Most Christian Majesty, the good and great ally of these States, or to consider propositions so derogatory to the honor of an independent nation. The acts of the British Parliament, the commission from your sovereign, and your letter suppose the people of these States to be subjects of the Crown of Great Britain and are founded on the idea of dependence, which is utterly inadmissible. I am further directed to inform your Excellencies that Congress are inclined to peace, notwithstanding the unjust claims from which this war originated, and the savage manner in which it hath been conducted. They will, therefore, be ready to enter upon the consideration of a treaty of peace and commerce not inconsistent with treaties already subsisting, when the King of Great Britain shall demonstrate a sincere disposition for that purpose. The only solid proof of this disposition will be an explicit acknowledgment of these States or the withdrawing his fleets and armies."

The British commissioners remained several months in the country and made many and various attempts to accomplish the objects of their mission, but without success.

They were compelled to return to England baffled and disappointed. Thus the Americans, as an eloquent historian suggests, steady in their resolutions, chose rather to trust to their own fortune, which they had already proved, and to the hope they placed in that of France, than to link themselves anew to the tottering destiny of England; abandoning all idea of peace, war became the sole object of their solicitude. Such was the issue of the attempts to effect an accommodation and thus were extinguished the hopes which the negotiation had given birth to in England. It was the misfortune of England to be governed by ministers who were never willing to do justice until they were compelled by main force. Their present concessions, as on all previous occasions, came too late.

We have had frequent occasion to notice the embarrassments and mortifications to which Washington was subjected by the interference of Congress in those executive matters which should have been left entirely under his own control. This was particularly injurious to the public service in their conduct with respect to the treatment and exchange of prisoners. Much correspondence on this subject took place between Washington and Howe during the winter when the army was at Valley Forge, and whenever

the generals were on the eve of arranging an exchange Congress would interfere and prevent it. Washington had been compelled, by his sense of justice and humanity, to censure Howe for his treatment of American prisoners. An order hastily given out by the Board of War exposed Washington himself, without any fault of his own, to a similar censure from Howe. The circumstances, as related by Marshall, were these:

"General Washington had consented that a quartermaster, with a small escort, should come out of Philadelphia, with clothes and other comforts for the prisoners who were in possession of the United States. He had expressly stipulated for their security, and had given them a passport. While they were traveling through the country, information was given to the Board of War that General Howe had refused to permit provisions to be sent in to the American prisoners in Philadelphia by water. This information was not correct. General Howe had only requested that flags should not be sent up or down the river without previous permission obtained from himself. On this information, however, the board ordered Lieutenant-Colonel Smith immediately to seize the officers, though protected by the passport of Washington, their horses, carriages, and the provisions destined for the relief to the British prisoners, and to secure them until further orders, either from the Board or from the Commander-in-Chief.

"Washington, on hearing this circumstance, dispatched one of his aids with orders for the immediate release of the persons and property which had been confined; but the officers refused to proceed on their journey, and returned to Philadelphia. {10}

"This untoward event was much regretted by Washington. In a letter received some time afterwards, Howe, after expressing his willingness that the American prisoners should be visited by deputy commissaries, who should inspect their situation and supply their wants, required, as the condition on which this indulgence should be granted, 'that a similar permit should be allowed to persons appointed by him, which should be accompanied with the assurance of General Washington, that his authority will have sufficient weight to prevent any interruption to their progress, and any insult to their persons.' This demand was ascribed to the treatment to which officers under the protection of his passport had already been exposed.

"Washington lamented the impediment to the exchange of prisoners, which had hitherto appeared to be insuperable, and made repeated but ineffectual efforts to remove it. Howe had uniformly refused to proceed with any cartel unless his right to claim for all the diseased and infirm, whom he had liberated, should be previously admitted.

"At length, after all hope of inducing him to recede from that high ground had been abandoned, he suddenly relinquished it of his own accord, and acceded completely to the proposition of Washington for the meeting of commissioners, in order to settle equitably the number to which he should be entitled for those he had discharged in the preceding winter. This point being adjusted, commissioners were mutually appointed, who were to meet on the 10th of March (1778), at Germantown, to arrange the details of a general cartel.

"Washington had entertained no doubt of his authority to enter into this agreement. On the 4th of March, however, he had the mortification to perceive in a newspaper a resolution of Congress, calling on the several States for the amounts of supplies furnished the prisoners, that they might be adjusted according to the rule of the 10th of December, before the exchange should take place.

"On seeing this embarrassing resolution, Washington addressed a letter to Howe, informing him that particular circumstances had rendered it inconvenient for the American commissioners to attend at the time appointed, and requesting that their meeting should be deferred from the 10th to the 21st of March. The interval was employed in obtaining a repeal of the resolution.

"It would seem probable that the dispositions of Congress, on the subject of an exchange, did not correspond with those of Washington. From the fundamental principle of the military establishment of the United States at its commencement, an exchange of prisoners would necessarily strengthen the British much more than the American army. The war having been carried on by troops raised for short times, aided by militia, the American prisoners, when exchanged, returned to their homes as citizens, while those of the enemy again took the field.

"Washington, who was governed by a policy more just, and more permanently beneficial, addressed himself seriously to Congress, urging as well the injury done the public faith and his own personal honor, by this

infraction of a solemn engagement, as the cruelty and impolicy of a system which must cut off forever all hopes of an exchange, and render imprisonment as lasting as the war. He represented in strong terms the effect such a measure must have on the troops on whom they should thereafter be compelled chiefly to rely, and its impression on the friends of those already in captivity. These remonstrances produced the desired effect, and the resolutions were repealed. The commissioners met according to the second appointment; but, on examining their powers, it appeared that those given by Washington were expressed to be in virtue of the authority vested in him, while those given by Howe contained no such declaration. This omission produced an objection on the part of Congress; but Howe refused to change the language, alleging that he designed the treaty to be of a personal nature, founded on the mutual confidence and honor of the contracting generals, and had no intention either to bind his government or to extend the cartel beyond the limits and duration of his own command.

"This explanation being unsatisfactory to the American commissioners, and Howe persisting in his refusal to make the required alteration in his powers, the negotiation was broken off, and this fair prospect of terminating the distresses of the prisoners on both sides passed away without effecting the good it had promised.

"Some time after the failure of this negotiation for a general cartel, Howe proposed that all prisoners actually exchangeable should be sent into the nearest posts, and returns made of officer for officer of equal rank, and soldier for soldier, as far as numbers would admit; and that if a surplus of officers should remain, they should be exchanged for an equivalent in privates.

"On the representations of Washington, Congress acceded to this proposition so far as related to the exchange of officer for officer and soldier for soldier, but rejected the part which admitted an equivalent in privates for a surplus of officers, because the officers captured with Burgoyne were exchangeable within the powers of Howe. Under this agreement an exchange took place to a considerable extent; but as the Americans had lost more prisoners than they had taken, unless the army of Burgoyne should be brought into computation, many of their troops were still detained in captivity."

The British army held possession of Philadelphia during the winter and the following spring; but they were watched and checked during the whole time by the Americans. They were not quite so closely besieged as in Boston, but they were quite as effectually prevented from accomplishing any military purpose. They sent out occasional foraging parties, who were fiercely attacked by Washington's detachments, and almost always purchased their supplies with blood. But Howe never made an attack on Washington's camp. Doctor Franklin, when he heard in Paris that General Howe had taken Philadelphia, corrected his informant very justly. "Say, rather," said the acute philosopher, "that Philadelphia has taken General Howe." The capture of Philadelphia, as we have already taken occasion to remark, was perfectly useless—in fact, worse than useless—to the British arms. It only provided winter quarters to an army which would have been more comfortable and secure in New York; and it held them beleaguered at a remote point when their services were greatly needed to aid Burgoyne and save his army from capture. In point of fact, Philadelphia did take Howe; and Washington kept him out of the way and fully employed until Burgoyne had fallen, and by his fall had paved the way to the French alliance and to the ruin of the British cause in America.

1. Footnote: The cool contempt expressed in Washington's letter to Conway is one of the most curious features of this affair. It reads as follows: "To Brigadier-General Conway: Sir—A letter which I received last night contained the following paragraph: 'In a letter from General Conway to General Gates, he says, "Heaven has determined to save your country, or a weak general and bad counsellors would have ruined it."' "I am, sir, your humble servant."

2. Footnote: Marshall

3. Footnote: John Hancock, who succeeded Peyton Randolph as president of Congress, retired on the 29th of October, 1777. His successor was Henry Laurens, of South Carolina.

4. Footnote: The correspondence relating to the Conway Cabal is given entire in the Appendix to the fifth volume of Sparks' "Writings of Washington." It is very curious and interesting. Among other letters are anonymous ones addressed to Patrick Henry, Governor of Virginia, and to Mr. Laurens, President of Congress, full of slanders against Washington.

5. Footnote: Previous to this affair, Captain Lee, in his frequent skirmishes with the enemy, had already captured at least a hundred of their men.

6. Footnote: General Conway, after his resignation, frequently indulged in expressions of extreme hostility to the Commander-in-Chief. These indiscretions were offensive to the gentlemen of the army. In consequence of them, he was engaged in an altercation with General Caldwalader, which produced a duel, in which Conway received a wound supposed for some time to be mortal. While his recovery was despaired of, he addressed the following letter to General Washington:

PHILADELPHIA, July 23d, 1778.

SIR—I find myself just able to hold the pen during a few minutes, and take this opportunity of expressing my sincere grief for having done, written, or said, any thing disagreeable to your excellency. My career will soon be over; therefore, justice and truth prompt me to declare my last sentiments. You are, in my eyes, the great and good man. May you long enjoy the love, veneration, and esteem of these States, whose liberties you have asserted by your virtues. I am, with the greatest respect, sir,

Your excellency's most obedient humble servant, THS. CONWAY.

7. Footnote: Gordon says: "May 13, 1778. General Burgoyne landed at Portsmouth. On his arrival at London, he soon discovered that he was no longer an object of court favor. He was refused admission to the royal presence; and from thence experienced all those marks of being in disgrace, which are so well understood, and so quickly observed by the retainers and followers of courts."

8. Footnote: As early as the month of April, 1776, Turgot had said to the ministers of Louis XVI—"The supposition of the absolute separation between Great Britain and her Colonies seems to me infinitely probable. This will be the result of it; when the independence of the Colonies shall be entire and recognized by the English themselves, a total revolution will follow in the political and commercial relations between Europe and America; and I firmly believe that every other mother-country will be forced to abandon all empire over her Colonies, and to leave an entire freedom of commerce with all nations, to content herself with partaking with others in the advantages of a free trade, and with preserving the old ties of friendship and fraternity with her former colonists. If this is an evil, I

believe that there exists no remedy or means of hindering it; that the only course to pursue is to submit to the inevitable necessity, and console ourselves as best we may under it. I must also observe, that there will be a very great danger to all such powers as obstinately attempt to resist this course of events; that after ruining themselves by efforts above their means, they will still see their Colonies equally escape from them, and become their bitter enemies, instead of remaining their allies." *Mémoire de M. Turgot, à l'occasion du Mémoire remis par M. le Comte de Vergennes sur la manière dont la France et l'Espagne doivent envisager les suites de la querelle entre la Grande Bretagne et ses Colonies. In "Politique de tous les Cabinets de l'Europe pendant les Règnes de Louis XV. et de Louis XVI."* Par L.P. Segue l'ainé.

9. Footnote: The commissioners published their final manifesto and proclamation to the Americans on the 3d of October, and on the 10th. Congress issued a cautionary declaration in reply. No overtures were made to the commissioners from any quarter, and not long after they embarked for England. Thacher, in his "Military Journal," states that "Governor Johnstone, one of the commissioners, with inexcusable effrontery, offered a bribe to Mr. Reed, a member of Congress. In an interview with Mrs. Ferguson at Philadelphia, whose husband was a Royalist, he desired she would mention to Mr. Reed, that if he would engage his interest to promote the object of their commission, he might have any office in the Colonies in the gift of his Britannic majesty, and ten thousand pounds in hand. Having solicited an interview with Mr. Reed, Mrs. Ferguson made her communication. Spurning the idea of being purchased, he replied that he was not worth purchasing, but such as he was, the King of Great Britain was not rich enough to do it."

10. Footnote: They alleged that their horses had been disabled, and the clothing embezzled.

CHAPTER XIV. — MONMOUTH. 1778.

For prosecuting the campaign of 1778 Washington had not been provided with an adequate force. The committee of Congress who visited the army at Valley Forge had agreed that the army should consist of about 40,000 men, besides artillery and horse. In May (1778) the army, including the detachments at different places, was found to amount only to 15,000, with little prospect of increase. At Valley Forge Washington had 11,800. The British army at this time numbered 33,000. With such odds the plan of operations for this season must necessarily be defensive.

From the position which Washington had taken at Valley Forge, and from the activity and vigilance of his patrols, the British army in Philadelphia was straitened for forage and fresh provisions. A considerable number of the people of Pennsylvania were well affected to the British cause and desirous of supplying the troops, while many more were willing to carry victuals to Philadelphia, where they found a ready market and payment in gold or silver, whereas the army at Valley Forge could pay only in paper money of uncertain value. But it was not easy to reach Philadelphia nor safe to attempt it, for the American parties often intercepted and took the provisions without payment and not unfrequently chastised those engaged. The first operations on the part of the British, therefore, in the campaign of 1778, were undertaken in order to procure supplies for the army. About the middle of March a strong detachment, under Lieutenant-Colonel Mawhood, made a foraging excursion for six or seven days into Jersey, surprised and defeated the American parties at Hancock's and Quinton's bridges on Always creek, which falls into the Delaware to the south of Reedy Island, killed or took fifty or sixty of the militia prisoners, and after a successful expedition returned to Philadelphia with little loss.

A corps of Pennsylvania militia, daily varying in number, sometimes not exceeding fifty, sometimes amounting to 600, under General Lacey, had taken post at a place called Crooked Billet, about seventeen miles from Philadelphia on the road to New York, for the purpose of intercepting the country people who attempted to carry provisions to the British army. Early on the morning of the 4th of May, Colonel Abercrombie and Major Simcoe,

with a strong detachment, attempted to surprise this party, but Lacey escaped with little loss, except his baggage, which fell into the hands of the enemy.

On the 7th of May the British undertook an expedition against the galleys and other shipping which had escaped up the Delaware after the reduction of Mud Island, and destroyed upward of forty vessels and some stores and provisions. The undisputed superiority of the British naval force and the consequent command of the Delaware gave them great facilities in directing a suitable armament against any particular point, and the movements of the militia, on whom Congress chiefly depended for repelling sudden predatory incursions and for guarding the roads to Philadelphia, were often tardy and inefficient. The roads were ill guarded, and the British frequently accomplished their foraging and returned to camp before an adequate force could be assembled to oppose them.

To remedy these evils—to annoy the rear of the British troops in case they evacuated Philadelphia, which it was now suspected they intended to do, and also to form an advanced guard of the main army—Lafayette, with upward of 2,000 chosen men and six pieces of artillery, was ordered to the east of the Schuylkill, and took post on Barren Hill, seven or eight miles in advance of the army at Valley Forge. Sir William Howe immediately got notice of his position and formed a plan to surprise and cut him off. For that purpose a detachment of 5,000 of the best troops of the British army, under General Grant, marched from Philadelphia on the night of the 20th of May and took the road which runs along the Delaware and consequently does not lead directly to Barren Hill. But after advancing a few miles the detachment turned to the left, and proceeding by White Marsh passed at no great distance from Lafayette's left flank and about sunrise reached a point in his rear where two roads diverged, one leading to the camp of the marquis, the other to Matson's ford, each about a mile distant. There General Grant's detachment was first observed by the Americans, and the British perceived by the rapid movements of some hostile horsemen that they were seen. Both Lafayette's camp and the road leading from it to Matson's ford were concealed from the British troops by intervening woods and high grounds. General Grant spent some time in making dispositions for the intended attack. That interval was actively improved by Lafayette, who, although not apprised of the full extent of his danger, acted with promptitude and decision. He marched rapidly to Matson's ford, from which he was

somewhat more distant than the British detachment, and reached it while General Grant was advancing against Barren Hill in the belief that Lafayette was still there. The Americans hurried through the ford leaving their artillery behind, but on discovering they were not closely pursued some of them returned and dragged the field pieces across the river; a small party was also sent into the woods to retard the progress of the British advanced guard, if it should approach while the artillery was in the ford.

On finding the camp at Barren Hill deserted General Grant immediately pursued in the track of the retreating enemy toward Matson's ford. His advanced guard overtook some of the small American party, which had been sent back to cover the passage of the artillery, before they could recross the river and took or killed a few of them, but on reaching the ford General Grant found Lafayette so advantageously posted on the rising ground on the opposite bank and his artillery so judiciously placed that it was deemed inadvisable to attack him. Thus the attempt against Lafayette failed, although the plan was well concerted and on the very point of success. In the British army sanguine expectations of the favorable issue of the enterprise were entertained, and in order to insure a happy result a large detachment, under General Grey, in the course of the night took post at a ford of the Schuylkill, two or three miles in front of Lafayette's right flank, to intercept him if he should attempt to escape in that direction, while the main body of the army advanced to Chestnut Hill to support the attack, but on the failure of the enterprise the whole returned to Philadelphia.

General Grant's detachment was seen by Washington from the camp at Valley Forge about the time it was discovered by the troops at Barren Hill, alarm guns were fired by his order to warn Lafayette of his danger, and the whole army was drawn out to be in readiness to act as circumstances might require. The escape of the detachment was the cause of much joy and congratulation in the American and of disappointment and chagrin in the British army.

That a strong detachment of hostile troops should pass at a small distance from Lafayette's flank and gain his rear unobserved seems to argue a want of due vigilance on the part of that officer, but a detachment of the Pennsylvania militia had been posted at a little distance on his left and he relied on them for watching the roads in that quarter. The militia, however, had quitted their station without informing him of their movement, and

consequently his left flank and the roads about White Marsh remained unguarded.

This was the last enterprise attempted by Sir William Howe. Soon after he resigned the command of the army. So far back as the month of October in the preceding year he had requested to be relieved from the painful service in which he was engaged. On the 14th of April, 1778, he received the King's permission to resign, but at the same time he was directed, while he continued in command, to embrace every opportunity of putting an end to the war by a due employment of the force under his orders. In the beginning of June after having received, in a triumphal procession and festival, a testimony of the approbation and esteem of the army he sailed for England, leaving the troops under the care of Sir Henry Clinton as his successor.

Sir William Howe has been much blamed for inactivity and for not overwhelming the Americans, but he was at least as successful as any other general employed in the course of the war. He was cautious and sparing of the lives of his men. In his operations he discovered a respectable share of military science, and he met with no great reverses. They who blame him for want of energy may look to the history of Generals Burgoyne and Cornwallis for the fate of more enterprising leaders in America.

About the time when Howe resigned the command of the army the British government ordered the evacuation of Philadelphia. While the British had an undisputed naval superiority Philadelphia was in some respects a good military station. Although in all the States a decided majority of the people gave their support to Congress, yet in every province south of New England there was a considerable minority friendly to the claims of the mother country. The occupation of Philadelphia, the principal city of the confederation, encouraged the latter class of the inhabitants, and the army there formed a point round which they might rally. But Philadelphia is more than 100 miles up the Delaware, and as Howe had been unable to drive Washington from the field he had found some difficulty in subsisting his army in that city, even when the British ships had the full command of the sea and could force their way up the great rivers; but when the empire of the ocean was about to be disputed by the French Philadelphia became a hazardous post on account of the difficulty and uncertainty of procuring provisions, receiving communications, or sending

aid to such places as might be attacked. It was accordingly resolved to abandon that city, and after shipping his cavalry, formed of the German troops and American Loyalists, his provision train and heavy baggage, on the few vessels that were in the river, Clinton had to march the remainder of his army through the Jerseys to New York, where the communication with the ocean is more easy.

The preparations for this movement could not be so secretly made as to escape the notice of the Americans, and to be in readiness for it was one reason of detaching Lafayette to Barren Hill, where he had been exposed to so much danger. Washington called in his detachments and pressed the State governments to hasten the march of their new levies in order that he might be enabled to act offensively; but the new levies arrived slowly, and in some instances the State Legislatures were deliberating on the means of raising them at the time when they should have been in the field.

Although Washington was satisfied of the intention of the British Commander-in-Chief to evacuate Philadelphia yet it was uncertain in what way he would accomplish his purpose, but the opinion that he intended to march through the Jerseys to New York gained ground in the American camp; and in this persuasion Washington detached General Maxwell with the Jersey brigade across the Delaware to cooperate with General Dickinson, who was assembling the Jersey militia, in breaking down the bridges, felling trees across the roads, and impeding and harassing the British troops in their retreat, but with orders to be on his guard against a sudden attack.

Washington summoned a council of war to deliberate on the measures to be pursued in that emergency. It was unanimously resolved not to molest the British army in passing the Delaware, but with respect to subsequent operations there was much difference of opinion in the council. General Lee, who had lately joined the army after his exchange, was decidedly against risking either a general or partial engagement. The British army he estimated at 10,000 men fit for duty, exclusive of officers, while the American army did not amount to more than 11,800; he was, therefore, of opinion that with so near an equality of force it would be criminal to hazard a battle. He relied much on the imposing attitude in which their late foreign alliance placed them, and maintained that nothing but a defeat of the army could now endanger their independence. Almost all the foreign officers

agreed in opinion with General Lee, and among the American generals only Wayne and Cadwalader were decidedly in favor of attacking the enemy. Under these circumstances Washington, although strongly inclined to fight, found himself constrained to act with much circumspection.

Having made all the requisite preparations Sir Henry Clinton, early in the morning of the 18th of June (1778), led the British army to the confluence of the Delaware and Schuylkill, where boats and other vessels were ready to receive them, and so judicious were the arrangements made by Admiral Lord Howe that all the troops, with the baggage and artillery, were carried across the Delaware and safely landed on the Jersey side of the river before 10 in the forenoon. Many of the Loyalists of Philadelphia accompanied the army, carrying their effects along with them, and such of them as ventured to remain behind met with little indulgence from their irritated countrymen. Several of them were tried for their lives and two Quakers were executed. The Americans entered the city before the British rear guard had entirely left it.

There were two roads leading from Philadelphia to New York—the one running along the western bank of the Delaware to Trenton Ferry, and the other along the eastern bank to the same point. The British army had wisely crossed the river at the point where it was least exposed to molestation and entered on the last of these two roads. In marching through a difficult and hostile country Sir Henry Clinton prudently carried along with him a considerable quantity of baggage and a large supply of provisions, so that the progress of the army, thus heavily encumbered, was but slow. It proceeded leisurely through Huddersfield, Mount Holly, and Crosswick, and reached Allentown on the 24th (June, 1778), having in seven days marched less than forty miles. This slow progress made the Americans believe that Sir Henry Clinton wished to be attacked. General Maxwell, who was posted at Mount Holly, retired on his approach, and neither he nor General Dickinson was able to give him much molestation.

As the march of the British army till it passed Crosswick was up the Delaware, and only at a small distance from that river, Washington, who left Valley Forge on the day that Sir Henry Clinton evacuated Philadelphia, found it necessary to take a circuitous route and pass the river higher up at Coryell's Ferry, where he crossed it on the 22d and took post at Hopewell

on the high grounds in that vicinity, and remained during the 23d in that position.

From Allentown there were two roads to New York—one on the left, passing through South Amboy to the North river; the other on the right, leading to Sandy Hook. The first of these was somewhat shorter but the river Raritan lay in the way and it might be difficult and dangerous to pass it in presence of a hostile force. Sir Henry Clinton, therefore, resolved to take the road to Sandy Hook by which the Raritan would be altogether avoided.

Although a great majority in the American council of war were averse to fighting, yet Washington was strongly inclined to attack the British army. He summoned the council of war a second time and again submitted the subject to their consideration, but they adhered to their former opinion, and Washington, still inclined to attack the enemy, determined to act on his own responsibility.

The Jersey militia and a brigade of Continentals, under Generals Dickinson and Maxwell, hovered on the left flank of the British army; General Cadwalader, with a Continental regiment and a few militia was in its rear, and Colonel Morgan, with his rifle regiment 600 strong, was on its right. These detachments were ordered to harass the enemy as much as possible.

As Sir Henry Clinton proceeded on the route toward Sandy Hook Washington strengthened his advanced guard till it amounted to 5,000 men. General Lee, from his rank, had a claim to the command of that force, but at first he declined it and Lafayette was appointed to that service. But General Lee perceiving the importance of the command solicited the appointment which he had at first declined, and was accordingly sent forward with a reinforcement, when, from seniority, the whole of the advanced guard became subject to his orders.

On the evening of the 27th (June, 1778) Sir Henry Clinton took a strong position on the high grounds about Freehold Court House, in the county of Monmouth. His right was posted in a small wood; his left was covered by a thick forest and a morass; he had a wood in front, also a marsh for a considerable space toward his left, and he was within twelve miles of the high grounds at Middletown, after reaching which no attempt could be made upon him with any prospect of success. His position was unassailable,

but Washington resolved to attack his rear in the morning, as soon as it descended from the high grounds into the plain beyond them and gave orders accordingly to Lee, who was at Englishtown, three miles in the rear of the British army and as much in advance of the main body of the Americans.

By the strong parties on his flanks and rear Clinton was convinced that the hostile army was at hand, and suspecting that an attempt on his baggage was intended on the morning of the 28th he changed his order of march and put all the baggage under the care of General Knyphausen, who commanded the van division of his army, in order that the rear division, consisting of the flower of the troops under Cornwallis, might be unencumbered and ready to act as circumstances might require. Clinton remained with the rear division.

To avoid pressing on Knyphausen Cornwallis remained on his ground until about 8, and then descending from the heights of Freehold into an extensive plain took up his line of march in rear of the front division.

General Lee had made dispositions for executing orders given the preceding evening, and repeated in the morning, and soon after the British rear had moved from its ground prepared to attack it. General Dickinson had been directed to detach some of his best troops, to take such a position as to cooperate with him, and Morgan, with his riflemen, was ordered to act on the right flank.

Lee appeared on the heights of Freehold soon after Cornwallis had left them, and following the British into the plain ordered General Wayne to attack the rear of their covering party with sufficient vigor to check it, but not to press it so closely as either to force it up to the main body or to draw reinforcements to its aid. In the meantime he intended to gain the front of this party by a shorter road, and, intercepting its communication with the line, to bear it off before it could be assisted. While in the execution of this design an officer in the suite of Washington came up to gain intelligence and Lee communicated to him his present object. Before he reached the point of destination, however, there was reason to believe that the British rear was much stronger than had been conjectured. The intelligence on this subject being contradictory, and the face of the country well calculated to conceal the truth, he deemed it advisable to ascertain the fact himself.

Sir Henry Clinton, soon after the rear division was in full march, received intelligence that an American column had appeared on his left flank. This, being a corps of militia, was soon dispersed and the march was continued. When his rear guard had descended from the heights he saw it followed by a strong corps, soon after which a cannonade was commenced upon it, and at the same time a respectable force showed itself on each of his flanks. Suspecting a design on his baggage he determined to attack the troops in his rear so vigorously as to compel a recall of those on his flanks, and for this purpose marched back his whole rear division. This movement was in progress as Lee advanced for the purpose of reconnoitering. He soon perceived his mistake respecting the force of the British rear, but still determined to engage on that ground although his judgment disapproved the measure—there being a morass immediately in his rear, which would necessarily impede the reinforcements which might be advancing to his aid and embarrass his retreat should he be finally overpowered. This was about 10. While both armies were preparing for action General Scott (as stated by General Lee) mistook an oblique march of an American column for a retreat, and in the apprehension of being abandoned left his position and repassed the ravine in his rear.

Being himself of opinion that the ground was unfavorable Lee did not correct the error he ascribed to Scott but ordered the whole detachment to regain the heights. He was closely pressed and some slight skirmishing ensued without much loss on either side.

As soon as the firing announced the commencement of the action the rear division of the army advanced rapidly to the support of the front. As they approached the scene of action, Washington, who had received no intelligence from Lee giving notice of his retreat, rode forward, and to his utter astonishment and mortification met the advanced corps retiring before the enemy without having made a single effort to maintain its ground. The troops he first saw neither understood the motives which had governed Lee nor his present design, and could give no other information than that by his orders they had fled without fighting.

Washington rode to the rear of the division where he met Lee, to whom he spoke in terms of some warmth, implying disapprobation of his conduct.

Orders were immediately given to Colonel Stewart and Lieutenant-Colonel Ramsay to form their regiments for the purpose of checking the pursuit, and Lee was directed to take proper measures with the residue of his force to stop the British column on that ground. Washington then rode back to arrange the rear division of the army.

These orders were executed with firmness, and, when forced from his ground, Lee brought off his troops in good order, and was directed to form in the rear of Englishtown.

This check afforded time to draw up the left wing and second line of the American army on an eminence covered by a morass in front. Lord Stirling, who commanded the left wing, brought up a detachment of artillery under Lieutenant-Colonel Carrington, and some field pieces, which played with considerable effect on a division of the British which had passed the morass, and was pressing on to the charge. These pieces, with the aid of several parties of infantry, effectually stopped the advance of the enemy.

Finding themselves warmly opposed in front, the British attempted to turn the left flank of the American army, but were repulsed. They then attempted the right with as little success. General Greene had advanced a body of troops with artillery to a commanding piece of ground in his front, which not only disappointed the design of turning the right, but enfiladed the party which yet remained in front of the left wing.

At this moment General Wayne was advanced with a body of infantry to engage them in front, who kept up so hot and well-directed a fire that they soon withdrew behind the ravine to the ground on which the action had commenced immediately after the arrival of Washington.

Lafayette, speaking of this battle, said: "Never was General Washington greater in war than in this action. His presence stopped the retreat. His dispositions fixed the victory. His fine appearance on horseback, his calm courage roused by the animation produced by the vexation of the morning, gave him the air best calculated to excite enthusiasm."

The position now taken by the British army was very strong. Both flanks were secured by thick woods and morasses, and their front was accessible only through a narrow pass. The day had been intensely hot, and the troops were much fatigued. Notwithstanding these circumstances, Washington resolved to renew the engagement. For this purpose he ordered Brigadier-General Poor, with his own and the North Carolina brigade, to gain their

right flank, while Woodford with his brigade should turn their left. At the same time the artillery was ordered to advance and play on their front. These orders were obeyed with alacrity, but the impediments on the flanks of the British were so considerable, that before they could be overcome it was nearly dark. Further operations were therefore deferred until next morning; and the brigades which had been detached to the flanks of the British army continued on their ground through night, and the other troops lay on the field of battle with their arms in their hands. Washington passed the night in his cloak in the midst of his soldiers.

The British employed the early part of the morning in removing their wounded, and about midnight marched away in such silence that their retreat was not perceived until day.

As it was certain that they must gain the high grounds about Middletown before they could be overtaken, as the face of the country afforded no prospect of opposing their embarkation, and as the battle already fought had terminated in a manner to make a general impression favorable to the American arms, Washington decided to relinquish the pursuit. Leaving a detachment to hover about the British rear, the main body of the army moved towards the Hudson.

Washington was highly gratified with the conduct of his troops in this action. Their behavior, he said, after recovering from the first surprise occasioned by the unexpected retreat of the advanced corps, could not be surpassed. Wayne he particularly mentioned, and spoke of the artillery in terms of high praise.

The loss of the Americans in the battle of Monmouth was 8 officers and 61 privates killed, and about 160 wounded. Among the slain were Lieutenant-Colonel Bonner, of Pennsylvania, and Major Dickinson, of Virginia, both of whom were much regretted. One hundred and thirty were missing, but a considerable number of these afterward rejoined their regiments.

In his official letter, Sir Henry Clinton states his dead and missing at 4 officers and 184 privates; his wounded, at 16 officers and 154 privates. This account, so far as it respects the dead, cannot be correct, as 4 officers and 245 privates were buried on the field by persons appointed for the purpose, who made their report to Washington; and some few were afterward found,

so as to increase the number to nearly 300. The uncommon heat of the day proved fatal to several on both sides.

As usual, when a battle has not been decisive, both parties claimed the victory. In the early part of the day the advantage was certainly with the British; in the latter part it may be pronounced with equal certainty to have been with the Americans. They maintained their ground, repulsed the enemy, were prevented only by the night and by the retreat of the hostile army from renewing the action, and suffered less in killed and wounded than their adversaries.

It is true that Sir Henry Clinton effected what he states to have been his principal object—the safety of his baggage. But when it is recollected that the American officers had decided against hazarding an action, that this advice must have trammelled the conduct and circumscribed the views of Washington, he will be admitted to have effected no inconsiderable object in giving the American arms that appearance of superiority which was certainly acquired by this engagement.

Independent of the loss sustained in the action, the British army was considerably weakened in its march from Philadelphia to New York. About 100 prisoners were made, and near 1,000 soldiers, chiefly foreigners, deserted while passing through Jersey. Many of the soldiers had formed attachments in Philadelphia, which occasioned their desertion. Clinton's whole loss, including killed, wounded, prisoners, and deserters, amounted to at least 2,000 men.

The conduct of Lee was generally disapproved. As, however, he had possessed a large share of the confidence and good opinion of the Commander-in-Chief, it is probable that explanations might have been made which would have rescued him from the imputations that were cast on him, and have restored him to the esteem of the army, could his haughty temper have brooked the indignity he believed to have been offered him on the field of battle. Washington had taken no measures in consequence of the events of that day, and would probably have come to no resolution concerning them without an amicable explanation, when he received from Lee a letter expressed in very unbecoming terms, in which he, in the tone of a superior, required reparation for the injury sustained "from the very singular expressions" said to have been used on the day of the action by Washington.

This letter was answered (July 30, 1778) by an assurance that, so soon as circumstances would admit of an inquiry, he should have an opportunity of justifying himself to the army, to America, and to the world in general; or of convincing them that he had been guilty of disobedience of orders and misbehavior before the enemy. On his expressing a wish for a speedy investigation of his conduct, and for a court-martial rather than a court of inquiry, he was arrested—first, for disobedience of orders in not attacking the enemy on the 28th of June, agreeably to repeated instructions; secondly, for misbehavior before the enemy on the same day, in making an unnecessary, disorderly, and shameful retreat; and thirdly, for disrespect to the Commander-in-Chief in two letters.

Before this correspondence had taken place, strong and specific charges of misconduct had been made against General Lee by several officers of his detachment, and particularly by Generals Wayne and Scott. In these, the transactions of the day, not being well understood, were represented in colors much more unfavorable to Lee than facts, when properly explained, would seem to justify.

These representations, most probably, induced the strong language of the second article in the charge. A court-martial, over which Lord Stirling presided, after a tedious investigation, found him guilty of all the charges exhibited against him, and sentenced him to be suspended for one year. This sentence was afterward, though with some hesitation, approved almost unanimously by Congress. The court, softened in some degree the severity of the second charge, by finding him guilty, not in its very words, but "of misbehavior before the enemy, by making an unnecessary, and, in some few instances, a disorderly retreat."

Lee defended himself with his accustomed ability. He proved that, after the retreat had commenced, in consequence of General Scott's repassing the ravine, on the approach of the enemy, he had designed to form on the first advantageous piece of ground he could find; and that in his own opinion, and in the opinion of some other officers, no safe and advantageous position had presented itself until he met Washington, at which time it was his intention to fight the enemy on the very ground afterwards taken by Washington himself. He suggested a variety of reasons in justification of his retreat, which, if they do not absolutely establish its propriety, give it so questionable a form as to render it probable that a public examination never

would have taken place, could his proud spirit have stooped to offer explanation instead of outrage to the Commander-in-Chief.

His suspension gave general satisfaction through the army. Without judging harshly of his conduct as a military man, they perfectly understood the insult offered to their general by his letters; and, whether rightly or not, believed his object to have been to disgrace Washington and to obtain the supreme command for himself. So devotedly were all ranks attached to their general, that the mere suspicion of such a design would have rendered his continuance in the army extremely difficult.

Whatever judgment may be formed on the propriety of his retreat, it is not easy to justify either the omission to keep the Commander-in-Chief continually informed of his situation and intentions, or the very rude letters written after the action was over.

The battle of Monmouth gave great satisfaction to Congress. A resolution was passed unanimously, thanking Washington for the activity with which he marched from the camp at Valley Forge in pursuit of the enemy; for his distinguished exertions in forming the line of battle, and for his great good conduct in the action; and he was requested to signify the thanks of Congress to the officers and men under his command who distinguished themselves by their conduct and valor in the battle.

After the battle of Monmouth, Washington gave his army one day's repose, and then (June 30, 1778,) commenced his march toward Brunswick, at which place he encamped, and remained for several days. Thence he sent out parties to reconnoiter the enemy's position, and learn his intentions. Among other persons sent out with this design was Aaron Burr, a lieutenant-colonel, who had served in Arnold's expedition to Quebec, and who was destined to become a conspicuous person in American history.

Clinton had arrived with his army in the neighborhood of Sandy Hook on the 30th of June. Here he was met by Lord Howe with the fleet, which had just arrived from Philadelphia. Sandy Hook having been converted by the winter storms from a peninsula to an island, Lord Howe caused a bridge of boats to be constructed, over which Clinton's army passed from the mainland to the Hook. It was soon afterward distributed into different encampments on Staten Island, Long Island, and the island of New York.

When Washington had learned that the British army was thus situated, he was satisfied that Clinton had no present intention of passing up the

Hudson, and he halted a few days at Paramus, at which place he received intelligence of an important event which will claim our attention in the next chapter.

1. Footnote: Spencer, "History of the United States."

2. Footnote: This interview between Washington and Lee was followed by such important results that one is naturally curious to know exactly what passed between them. The interview is described by Lee himself in his defense before the court-martial:

"When I arrived first in his presence, conscious of having done nothing which could draw on me the least censure, but rather flattering myself with his congratulation and applause, I confess I was disconcerted, astonished, and confounded by the words and manner in which his Excellency accosted me. It was so novel and unexpected from a man, whose discretion, humanity, and decorum I had from the first of our acquaintance stood in admiration of, that I was for some time unable to make any coherent answer to questions so abrupt, and in a great measure to me unintelligible. The terms, I think, were these: 'I desire to know, sir, what is the reason, whence arises this disorder and confusion?' The manner in which he expressed them was much stronger and more severe than the expressions themselves. When I recovered myself sufficiently, I answered that I saw or knew of no confusion but what naturally arose from disobedience of orders, contradictory intelligence, and the impertinence and presumption of individuals, who were invested with no authority, intruding themselves in matters above them and out of their sphere; that the retreat in the first instance was contrary to my intentions, contrary to my orders, and contrary to my wishes."

Washington replied that all this might be true, but that he ought not to have undertaken the enterprise unless he intended to go through with it. He then rode away, and ordered some of the retreating regiments to be formed on the ground which he pointed out.

Gordon says that, after the first meeting with Lee, Washington rode on towards the rear of the retreating troops. He had not gone many yards before he met his secretary, who told him that the British army were within fifteen minutes' march of that place, which was the first intelligence he received of their pushing on so briskly. He remained there till the extreme rear of the retreating troops got up, when, looking about, and judging the

ground to be an advantageous spot for giving the enemy the first check, he ordered Colonel Stewart's and Lieutenant-Colonel Ramsey's battalions to form and incline to their left, that they might be under cover of a corner of woods, and not be exposed to the enemy's cannon in front. Lee having been told by one of his aids that Washington had taken the command, answered, "Then I have nothing further to do," and turned his horse and rode after his Excellency in front. Washington, on his coming up, asked, "Will you command on this ground or not? If you will, I will return to the main body and have them formed upon the next height." Lee replied, "It is equal with me where I command." Washington then told him, "I expect you will take proper measures for checking the enemy," Lee said, "Your orders shall be obeyed, and I will not be the first to leave the field." Washington then rode to the main army, which was formed with the utmost expedition on the eminence, with the morass in front. Immediately upon his riding off, a warm cannonade commenced between the British and American artillery on the right of Stewart and Ramsay, between whom and the advanced troops of the British army a heavy fire began soon after in the skirt of the woods before mentioned. The British pressed on close; their light horse charged upon the right of the Americans, and the latter were obliged to give way in such haste, that the British horse and infantry came out of the wood seemingly mixed with them.

The action then commenced between the British and Colonel Livingston's regiment, together with Varnum's brigade, which had been drawn up by Lee's order, and lined the fence that stretched across the open field in front of the bridge over the morass, with the view of covering the retreat of the artillery and the troops advanced with them. The artillery had timely retired to the rear of the fence, and from an eminence discharged several rounds of shot at the British engaged with Livingston's and Varnum's troops; these were soon broken by a charge of the former, and retired. The artillery were then ordered off. Prior to the commencement of the last action, Lee sent orders to Colonel Ogden, who had drawn up in the wood nearest the bridge to defend that post to the last extremity, thereby to cover the retreat of the whole over the bridge. Lee was one of the last that remained on the field, and brought off the rear of the retreating troops. Upon his addressing General Washington, after passing the morass, with, "Sir, here are my troops, how is it your pleasure that I should dispose of them?" he was ordered to arrange them in the rear of Englishtown.

CHAPTER XV. — WASHINGTON DIRECTS A DESCENT ON RHODE ISLAND. 1778.

Previous to evacuating Philadelphia, Clinton had received notice from his government that, in consequence of the alliance between France and the United States, a new plan of operations had been determined on. The French were to be attacked in their West Indian possessions by way of diversion from the main scene of action. Five thousand men were detached from his army to aid in the execution of this purpose, and 3,000 were sent to Florida. Clinton was also apprised that a French fleet would probably appear in the Delaware and thus prevent any possibility of his leaving Philadelphia by water. Hence his sudden departure from Philadelphia with the remainder of his forces. He was only just in time to save his army and Lord Howe's fleet.

On the 5th of July (1778), the day on which the British army arrived at New York, the Count D'Estaing, with a French fleet, appeared on the coast of Virginia.

In the month of March the French ambassador in London, by order of his government, notified to the British court the treaties entered into between France and America. In a few days afterward he quitted London without the ceremony of taking leave, and about the same time the British ambassador left Paris in a similar manner. This was considered equivalent to a declaration of war, and although war was not actually declared, yet both parties diligently prepared for hostilities.

The French equipped at Toulon a fleet of twelve sail of the line and six frigates, and gave the command to Count D'Estaing, who, with a considerable number of troops on board, sailed on the 13th of April (1778); but meeting with contrary winds he did not reach the coast of America till the 5th of July. He expected to find the British army in Philadelphia and the fleet in the Delaware, and if this expectation had been realized the consequences to Britain must have been calamitous. But the British fleet and army were at Sandy Hook or New York before the French fleet arrived on the coast. Count D'Estaing touched at the capes of the Delaware on the

5th of July, and on learning that the British had evacuated Philadelphia, he dispatched one of his frigates up the river with M. Gerard, the first minister from France to the United States, and then sailed for Sandy Hook.

Washington received intelligence of D'Estaing's arrival in a letter from the President of Congress while he was at Paramus. The next day he received a second letter on the same subject, enclosing two resolutions—one directing him to cooperate with the French admiral and the other authorizing him to call on the States from New Hampshire to New Jersey, inclusive, for such aids of militia as he might deem necessary for the operations of the allied arms. He determined to proceed immediately to White Plains, whence the army might cooperate with more facility in the execution of any attempt which might be made by the fleet, and dispatched Lieutenant-Colonel Laurens, one of his aides-de-camp, with all the information relative to the enemy, as well as to his own army, which might be useful to D'Estaing. Lieutenant-Colonel Laurens was authorized to consult on future conjoint operations, and to establish conventional signals for the purpose of facilitating the communication of intelligence.

The French admiral, on arriving off the Hook, dispatched Major de Choisi, a gentleman of his family, to Washington for the purpose of communicating fully his views and his strength. His first object was to attack New York. If this should be found impracticable, he was desirous of turning his attention to Rhode Island. To assist in coming to a result on these enterprises, Washington dispatched Lieutenant-Colonel Hamilton, another of his aides-de-camp, with such further communications as had been suggested by inquiries made since the departure of Laurens.

Fearing that the water on the bar at the entrance of the harbor was not of sufficient depth to admit the passage of the largest ships of the French fleet without much difficulty and danger, Washington had turned his attention to other objects which might be eventually pursued. General Sullivan, who commanded the troops in Rhode Island, was directed (July 21, 1778) to prepare for an enterprise against Newport, and Lafayette was detached with two brigades to join him at Providence. The next day Lieutenant-Colonel Hamilton returned to camp with the final determination of the Count D'Estaing to relinquish the meditated attack on the fleet in the harbor of New York, in consequence of the impracticability of passing the bar.

General Greene was immediately ordered to Rhode Island, of which State he was a native, and Lieutenant-Colonel Laurens was directed to attach himself to the French admiral and to facilitate all his views by procuring whatever might give them effect, after which he was to act with the army under Sullivan.

Writing to the President of Congress (August 3, 1778), Washington says: "As the army was encamped and there was no great prospect of a sudden removal, I judged it advisable to send General Greene to the eastward on Wednesday last, being fully persuaded his services, as well in the quartermaster line as in the field, would be of material importance in the expedition against the enemy in that quarter. He is intimately acquainted with the whole of that country, and, besides, he has an extensive interest and influence in it. And, in justice to General Greene, I take occasion to observe that the public is much indebted to him for his judicious management and active exertions in his present department. When he entered upon it, he found it in a most confused, distracted, and destitute state. This, by his conduct and industry, has undergone a very happy change and such as enabled us, with great facility, to make a sudden move, with the whole army and baggage, from Valley Forge, in pursuit of the enemy, and to perform a march to this place. In a word, he has given the most general satisfaction, and his affairs carry much the face of method and system. I also consider it as an act of justice to speak of the conduct of Colonel Wadsworth, commissary-general. He has been indefatigable in his exertions to provide for the army, and, since his appointment, our supplies of provision have been good and ample."

We copy this extract from Washington's correspondence because it does justice to Greene and gives us information of the favorable change which had taken place in the condition of the army since its dreary sojourn at Valley Forge.

The resolution being taken to proceed against Rhode Island, the fleet got under way and on the 25th of July (1778) appeared off Newport and cast anchor about five miles from that place; soon after which General Sullivan visited D'Estaing and concerted with him a plan of operations. The fleet was to enter the harbor and land the French troops on the west side of the island, a little to the north of Dyer's Island. The Americans were to land at the same time on the opposite coast under cover of the guns of a frigate.

A delay of several days now took place on account of the tardiness of the neighboring militia in joining Sullivan's army.

As the militia of New Hampshire and Massachusetts approached, Sullivan joined Greene at Tiverton and it was agreed with the admiral that the fleet should enter the main channel immediately (August 8th), and that the descent should be made the succeeding day. The French fleet passed the British batteries and entered the harbor without receiving or doing any considerable damage.

The militia not arriving precisely at the time they were expected, Sullivan could not hazard the movement which had been concerted, and stated to the Count the necessity of postponing it till the next day. Meanwhile the preparations for the descent being perceived, General Pigot drew the troops which had been stationed on the north end of the island into the lines at Newport.

On discovering this circumstance the next morning, Sullivan determined to avail himself of it and to take immediate possession of the works which had been abandoned. The whole army crossed the east passage and landed on the north end of Rhode Island. This movement gave great offense to D'Estaing who resented the indelicacy supposed to have been committed by Sullivan in landing before the French and without consulting him.

Unfortunately some difficulties on subjects of mere punctilio had previously arisen. D'Estaing was a land as well as sea officer, and held the high rank of lieutenant-general in the service of France. Sullivan being only a major-general, some misunderstanding on this delicate point had been apprehended, and Washington had suggested to him the necessity of taking every precaution to avoid it. This, it was supposed, had been effected in their first conference, in which it was agreed that the Americans should land first, after which the French should land to be commanded by D'Estaing in person. The motives for this arrangement are not stated. Either his own after-reflections or the suggestions of others dissatisfied D'Estaing with it and he insisted that the descent should be made on both sides of the island precisely at the same instant, and that one wing of the American army should be attached to the French and land with them. He also declined commanding in person and wished Lafayette to take charge of the French troops as well as of the Americans attached to them.

It being feared that this alteration of the plan might endanger both its parts D'Estaing was prevailed on to reduce his demand from one wing of the American army to 1,000 militia. When afterward Sullivan crossed over into the island before the time to which he had himself postponed the descent, and without giving previous notice to the count of this movement, considerable excitement was manifested. The count refused to answer Sullivan's letter, and charged Lieutenant-Colonel Fleury, who delivered it, with being more an American than a Frenchman.

At this time a British fleet appeared which, after sailing close into the land and communicating with General Pigot, withdrew some distance and came to anchor off Point Judith, just without the narrow inlet leading into the harbor.

After it had been ascertained that the destination of the Count D'Estaing was America, he was followed by a squadron of twelve ships of the line under Admiral Byron who was designed to relieve Lord Howe, that nobleman having solicited his recall. The vessels composing this squadron meeting with weather unusually bad for the season, and being separated in different storms, arrived, after lingering through a tedious passage in various degrees of distress, on different and remote parts of the American coast. Between the departure of D'Estaing from the Hook on the 23d of July (1778) and the 30th of that month, four ships of sixty-four and fifty guns arrived at Sandy Hook.

This addition to the British fleet, though it left Lord Howe considerably inferior to the Count D'Estaing, determined him to attempt the relief of Newport. He sailed from New York on the 6th of August and on the 9th appeared in sight of the French fleet before intelligence of his departure could be received by the admiral.

At the time of his arrival the wind set directly into the harbor so that it was impossible to get out of it, but it shifted suddenly to the northeast the next morning and the count determined to stand out to sea and give battle. Previous to leaving port (August 10th) he informed General Sullivan that on his return he would land his men as that officer should advise.

Not choosing to give the advantage of the weather-gauge Lord Howe also weighed anchor and stood out to sea. He was followed by D'Estaing, and both fleets were soon out of sight.

The militia were now arrived and Sullivan's army amounted to 10,000 men. Notwithstanding some objections made by Lafayette to his commencing operations before the return of D'Estaing, Sullivan determined to commence the siege immediately. Before this determination could be executed a furious storm blew down all the tents, rendered the arms unfit for immediate use, and greatly damaged the ammunition, of which fifty rounds had just been delivered to each man. The soldiers having no shelter suffered extremely, and several perished in the storm which continued three days. On the return of fair weather the siege was commenced and continued without any material circumstance for several days.

As no intelligence had been received from the admiral the situation of the American army was becoming very critical. On the evening of the 19th their anxieties were relieved for a moment by the reappearance of the French fleet.

The two admirals, desirous the one of gaining and the other of retaining the advantage of the wind, had employed two days in maneuvering without coming to action. Toward the close of the second they were on the point of engaging when they were separated by the violent storm which had been so severely felt on shore and which dispersed both fleets. Some single vessels afterward fell in with each other, but no important capture was made, and both fleets retired in a very shattered condition, the one to the harbor of New York and the other to that of Newport.

A letter was immediately dispatched by D'Estaing to Sullivan, informing him that, in pursuance of orders from the King and of the advice of all his officers, he had taken the resolution to carry the fleet to Boston. His instructions directed him to sail for Boston should his fleet meet with any disaster or should a superior British fleet appear on the coast.

To be abandoned by the fleet in such critical circumstances and not only deprived of the brilliant success which they thought within their reach, but exposed to imminent hazard, caused much disappointment, irritation, and alarm in the American camp. Lafayette and Greene were dispatched to D'Estaing to remonstrate with him on the subject and to press his cooperation and assistance for two days only, in which time they flattered themselves the most Brilliant success would crown their efforts. But the count was not popular in the fleet; he was a military officer as well as a naval commander, and was considered as belonging to the army rather than

to the navy. The officers of the sea service looked on him with a jealous and envious eye and were willing to thwart him as far as they were able with safety to themselves. When, on the pressing application of Lafayette and Greene, he again submitted the matter to their consideration, they took advantage of the letter of the admiral's instructions and unanimously adhered to their former resolution, sacrificing the service of their prince to their own petty jealousies and animosities. D'Estaing, therefore, felt himself constrained to set sail for Boston.

The departure of the French marine force left Sullivan's army in a critical situation. It was in a firm reliance on the cooperation of the French fleet that the expedition was undertaken, and its sudden and unexpected departure not only disappointed the sanguine hopes of speedy success, but exposed the army to much hazard, for the British troops under General Pigot might have been reinforced and the fleet might have cut off Sullivan's retreat.

The departure of the French fleet greatly discouraged the American army, and in a few days Sullivan's force was considerably diminished by desertion. On the 26th of August he therefore resolved to raise the siege and retreat to the north end of the island, and took the necessary precautions for the successful execution of that movement.

In the night of the 28th, Sullivan silently decamped and retired unobserved. Early in the morning the British discovered his retreat and instantly commenced a pursuit. They soon overtook the light troops who covered the retreat of the American army, and who continued skirmishing and retreating till they reached the north end of the island, where the army occupied a strong position at a place where the British formerly had a fortified post, the works of which had been strengthened during the two preceding days. There a severe conflict for about half an hour ensued, when the combatants mutually withdrew from the field. The loss of the armies was nearly equal, amounting to between two and three hundred killed or wounded in the course of the day.

On the 30th of August there was a good deal of cannonading, but neither party ventured to attack the other. The British were expecting reinforcements, and Sullivan, although he made a show of resolutely maintaining his post, was busily preparing for the evacuation of the island. In the evening he silently struck his tents, embarked his army, with all the artillery, baggage, and stores, on board a great number of boats and landed

safely on the continent before the British suspected his intention to abandon the post. General Sullivan made a timely escape, for Sir Henry Clinton was on his way, with 4,000 men, to the assistance of General Pigot. He was detained four days in the Sound by contrary winds, but arrived on the day after the Americans left the island. A very short delay would probably have proved fatal to their army.

The most sanguine expectations had been entertained throughout the United States of the reduction of Rhode Island and the capture of the British force which defended it, so that the disappointment and mortification on the failure of the enterprise were exceedingly bitter. The irritation against the French, who were considered the authors of the miscarriage, was violent. Sullivan was confident of success; and his chagrin at the departure of the French fleet made him use some expressions, in a general order, which gave offense to D'Estaing.

Washington foresaw the evils likely to result from the general and mutual irritation which prevailed, and exerted all his influence to calm the minds of both parties. He had a powerful coadjutor in Lafayette, who was as deservedly dear to the Americans as to the French. His first duties were due to his King and country, but he loved America, and was so devoted to the Commander-in-Chief of its armies, as to enter into his views and second his softening conciliatory measures with truly filial affection. Washington also wrote to General Heath, who commanded at Boston, and to Sullivan and Greene, who commanded at Rhode Island. In his letter to General Heath he stated his fears "that the departure of the French fleet from Rhode Island at so critical a moment, would not only weaken the confidence of the people in their new allies, but produce such prejudice and resentment as might prevent their giving the fleet, in its present distress, such zealous and effectual assistance as was demanded by the exigency of affairs and the true interests of America;" and added "that it would be sound policy to combat these effects and to give the best construction of what had happened; and at the same time to make strenuous exertions for putting the French fleet, as soon as possible, in a condition to defend itself and be useful." He also observed as follows: "The departure of the fleet from Rhode Island is not yet publicly announced here; but when it is, I intend to ascribe it to necessity produced by the damage received in the late storm. This, it appears to me, is the idea which ought to be generally propagated. As I doubt not the force of these reasons will strike you equally with myself, I

would recommend to you to use your utmost influence to palliate and soften matters, and to induce those whose business it is to provide succors of every kind for the fleet, to employ their utmost zeal and activity in doing it. It is our duty to make the best of our misfortunes and not suffer passion to interfere with our interest and the public good."

Writing to General Sullivan he observed: "The disagreement between the army under your command and the fleet has given me very singular uneasiness. The continent at large is concerned in our cordiality, and it should be kept up by all possible means consistent with our honor and policy. First impressions are generally longest retained, and will serve to fix in a great degree our national character with the French. In our conduct toward them we should remember that they are a people old in war, very strict in military etiquette, and apt to take fire when others seem scarcely warmed. Permit me to recommend, in the most particular manner, the cultivation of harmony and good agreement, and your endeavors to destroy that ill-humor which may have found its way among the officers. It is of the utmost importance, too, that the soldier and the people should know nothing of this misunderstanding; or if it has reached them, that means may be used to stop its progress and prevent its effects."

To General Greene, Washington wrote: "I have not now time to take notice of the several arguments which were made use of, for and against the count's quitting the harbor of Newport and sailing for Boston. Right or wrong, it will probably disappoint our sanguine expectations of success and which I deem a still worse consequence, I fear it will sow the seeds of dissension and distrust between us and our new allies, unless the most prudent measures be taken to suppress the feuds and jealousies that have already arisen. I depend much on your temper and influence to conciliate that animosity which, subsists between the American and French officers in our service. I beg you will take every measure to keep the protest entered into by the general officers from being made public. Congress, sensible of the ill consequences that will flow from our differences being known to the world, have passed a resolve to that purpose. Upon the whole, my dear sir, you can conceive my meaning better than I can express it; and I therefore fully depend on your exerting yourself to heal all private animosities between our principal officers and the French, and to prevent all illiberal expression and reflections that may fall from the army at large."

Washington also improved the first opportunity of recommencing his correspondence with Count D'Estaing, in a letter to him, which, without noticing the disagreements that had taken place, was well calculated to soothe every unpleasant sensation which might have disturbed his mind. In the course of a short correspondence, the irritation which threatened serious mischiefs gave way to returning good understanding and cordiality; although here and there popular ill-will manifested itself in rather serious quarrels and disputes with the French sailors and marines.

Meantime, in the storm which had separated the fleets of D'Estaing and Howe when just about to engage, the British fleet had suffered considerably, but had not sustained so much damage as the French. In a short time Lord Howe was again ready for sea; and having learned that D'Estaing had sailed for Boston, he left New York with the intention of reaching that place before him, or of attacking him there, if he found it could be done with advantage. But on entering the bay of Boston he perceived the French fleet in Nantasket Roads, so judiciously stationed and so well protected by batteries that there was no prospect of attacking it with success. He therefore returned to New York, where, finding that by fresh arrivals his fleet was decidedly superior to that of the French, he availed himself of the permission which he had received some time before and resigned the command to Admiral Gambier, who was to continue in the command till the arrival of Admiral Byron, who was daily expected from Halifax.

Sir Henry Clinton, finding that General Sullivan had effected his retreat from Rhode Island, set out on his return to New York; but that the expedition might not be wholly ineffectual, he meditated an attack on New London, situated on a river which falls into the Sound. The wind, however, being unfavorable to the enterprise, he gave the command of the troops on board the transports to Maj.-Gen. Sir Charles Grey, with orders to proceed in an expedition against Buzzard's Bay, and continued his voyage to New York. {1}

In obedience to the orders which he had received, General Grey sailed to Acushnet river where he landed on the 5th of September (1778), and destroyed all the shipping in the river, amounting to more than seventy sail. He burned a great part of the towns of Bedford and Fairhaven, the one on the west and the other on the east bank, destroying a considerable quantity

of military and naval stores, provisions, and merchandise. He landed at six in the evening, and so rapid were his movements that the work of destruction was accomplished and the troops re-embarked before noon the next day. He then proceeded to the island called Martha's Vineyard, a resort of privateers, where he took or burned several vessels, destroyed the salt works, compelled the inhabitants to surrender their arms, and levied from them a contribution of 1,000 sheep and 300 oxen.

Having mercilessly ravaged the seacoast, the hero of the Paoli massacre returned, heavily laden with plunder, to New York.

The return of the British fleet and of the troops under Grey relieved the Americans from the anxious apprehension of an attack on their allies at Boston. Under that apprehension, Washington had broken up his camp at White Plains, and proceeding northward taken a position at Fredericksburg, thirty miles from West Point near the borders of Connecticut. He detached Generals Gates and M'Dougall to Danbury, in Connecticut, in order that they might be in readiness to move as circumstances might require, and he sent General Putnam to West Point to watch the North river and the important passes in the Highlands. But the return of the fleet and troops to New York quieted those apprehensions.

Meanwhile Washington received intelligence that an expedition was preparing at New York, the object of which was not clearly apparent; but soon after the return of the troops under Grey the British army advanced in great force on both sides of the North river. The column on the west bank, consisting of 5,000 men commanded by Cornwallis, extended from the Hudson to the Hackensack. The division on the east side consisting of about 3,000 men under Knyphausen, stretched from the North river to the Bronx. The communication between them was kept up by flat-bottomed boats, by means of which the two divisions could have been readily united if the Americans had advanced against either of them.

Washington sent out several detachments to observe the movements of those columns. Colonel Baylor, who with his regiment of cavalry consisting of upwards of a hundred men had been stationed near Paramus, crossed the Hackensack on the morning of the 27th of September and occupied Tappan or Herrington, a small village near New Tappan, where some militia were posted. Of these circumstances Cornwallis received immediate notice and he formed a plan to surprise and cut off both the cavalry and militia. The

execution of the enterprise against Baylor was entrusted to the unscrupulous General Grey, and Colonel Campbell with a detachment from Knyphausen's division was to cross the river and attack the militia at New Tappan. Colonel Campbell's part of the plan failed by some delay in the passage of the river, during which a deserter informed the militia of their danger and they saved themselves by flight. But Grey completely surprised Baylor's troops and killed, wounded, or took the greater part of them. Colonel Baylor was wounded and made prisoner. The slaughter on that occasion which as at the Paoli, was a literal massacre of surprised and defenseless men excited much indignation and was the subject of loud complaints throughout the United States.

Three days after the surprise of Baylor, Col. Richard Butler with a detachment of infantry assisted by Maj. Henry Lee with part of his cavalry, fell in with a party of 15 chasseurs and about 100 yagers under Captain Donop, on whom they made such a rapid charge that without the loss of a man, they killed ten of them on the spot and took about twenty prisoners.

The movement of the British army up the North river already mentioned, was made for the purpose of foraging and also to cover a meditated attack on Little Egg Harbor, and having accomplished its object it returned to New York. Little Egg Harbor, situated on the coast of Jersey, was a rendezvous of privateers, and being so near the entrance to New York ships bound to that port were much exposed to their depredations. An expedition against it was therefore planned and the conduct of the enterprise entrusted to Capt. Patrick Ferguson of the Seventeenth regiment with about 300 men, assisted by Captain Collins of the navy. He sailed from New York, but short as the passage was he was detained several days by contrary winds and did not arrive at the place of his destination till the evening of the 5th of October (1778). The Americans had got notice of his design and had sent to sea such of their privateers as were ready for sailing. They had also hauled the largest of the remaining vessels, which were chiefly prizes, twenty miles up the river to Chestnut Neck, and had carried their smaller vessels still further into the country. Ferguson proceeded to Chestnut Neck, burned the vessels there, destroyed the storehouses and public works of every sort, and in returning committed many depredations on private property.

Count Pulaski with his legionary corps composed of three companies of foot and a troop of horse, officered principally by foreigners, had been

detached by Washington into Jersey to check these depredations. He was ordered toward Little Egg Harbor and lay without due vigilance eight or ten miles from the coast. One Juliet, a Frenchman, who had deserted from the British service and obtained a commission in Pulaski's corps redeserted, joined Captain Ferguson at Little Egg Harbor after his return from Chestnut Neck and gave him exact information of the strength and situation of Pulaski's troops.

Ferguson and Collins immediately resolved to surprise the Polish nobleman, and for that purpose, on the 15th of October (1778), they embarked 250 men in boats, rowed ten miles up the river before daybreak, landed within a small distance of his infantry, left fifty men to guard their boat, and with the remainder of their force suddenly fell on the unsuspecting detachment, killed fifty of them among whom were the Baron de Bosc and Lieutenant de la Borderie, and retreated with scarcely any loss before they could be attacked by Pulaski's cavalry.

This was another massacre similar to those of the infamous Grey. {2} Only five prisoners were taken. The commander pretended to have received information that Pulaski had ordered his men to give no quarter, but this was false.

Admiral Byron reached New York and took command of the fleet about the middle of September (1778). After repairing his shattered vessels he sailed for the port of Boston. Soon after his arrival in the bay fortune disconcerted all his plans. A furious storm drove him out to sea and damaged his fleet so much that he found it necessary to put into Newport to refit. This favorable moment was seized by the Count D'Estaing who sailed on the 3d of November for the West Indies.

Thus terminated an expedition from which the most important advantages had been anticipated. A variety of accidents had defeated plans judiciously formed which had every probability of success in their favor.

Lafayette, ambitious of fame on another theater, was now desirous of returning to France. Expecting war on the continent of Europe he was anxious to tender his services to his King and to his native country.

From motives of real friendship as well as of policy, Washington was desirous of preserving the connection of this officer with the army and of strengthening his attachment to America. He therefore expressed to Congress his wish that Lafayette, instead of resigning his commission,

might have unlimited leave of absence to return when it should be convenient to himself, and might carry with him every mark of the confidence of the government. This policy was adopted by Congress in its full extent. The partiality of America for Lafayette was well placed. Never did a foreigner, whose primary attachments to his own country remained undiminished, feel more solicitude for the welfare of another than was unceasingly manifested by this young nobleman for the United States.

The French alliance having effected a change in the position of affairs on the ocean, Congress devoted a good deal of attention to naval matters; several new vessels were built and others were purchased, and the present year (1778) gave token of the spirit and ability of some of our earlier naval officers in contending with a navy usually held to be invincible. Early in the year Captain Biddle, in the *Randolph*, a frigate of thirty-six guns, engaged his majesty's ship the *Yarmouth*, a sixty-four, but after an action of twenty minutes the *Randolph* blew up and Captain Biddle and crew perished with the exception of only four men who were picked up a few days after on a piece of wreck. The celebrated Paul Jones made his appearance on the English coast during this year, and rendered his name a terror by the bold and daring exploits which he performed. Captain Barry, off the coast of Maine, behaved in a most gallant manner in an action with two English ships, sustaining the contest for seven hours, and at last escaping with his men on shore. Captain Talbot in October of this year (1778) distinguished himself by a well-planned and successful attack upon a British vessel off Rhode Island. The schooner *Pigot*, moored at the mouth of Seconset river, effectually barred the passage, broke up the local trade, and cut off the supplies of provisions and reinforcements for that part of the colony. Talbot, earnestly desirous of relieving the country of this annoyance, obtained the consent of General Sullivan to make the attempt. With his usual alacrity he set about the affair and was entirely successful. The *Pigot* was captured and carried off in triumph by the gallant band under Talbot. In the succeeding November Captain Talbot received a complimentary letter from the President of Congress, together with a resolve of Congress, presenting him with the commission of lieutenant-colonel in the army of the United States.

There being no prospect of an active winter campaign in the northern or middle States and the climate admitting of military operations elsewhere, a detachment from the British army consisting of 5,000 men commanded by Major-General Grant, sailed early in November under a strong convoy for

the West India islands, and toward the end of the same month another embarkation was made for the southern parts of the continent. This second detachment was commanded by Lieutenant-Colonel Campbell who was escorted by Com. Hyde Parker, and was destined to act against the Southern States.

As a force sufficient for the defense of New York yet remained the American army retired into winter quarters (Dec., 1778). The main body was cantoned in Connecticut, on both sides the North river, about West Point, and at Middlebrook. Light troops were stationed nearer the lines, and the cavalry were drawn into the interior to recruit the horses for the next campaign. In this distribution the protection of the country, the security of important points, and a cheap and convenient supply of provisions were consulted.

The troops again wintered in huts, but they were used to this mode of passing that inclement season. Though far from being well clothed their condition in that respect was so much improved by supplies from France that they disregarded the inconveniences to which they were exposed.

Colonel Campbell, who sailed from the Hook about the last of November, 1778, escorted by a small squadron commanded by Com. Hyde Parker reached the Isle of Tybee, near the Savannah, on the 23d of December, and in a few days the fleet and the transports passed the bar and anchored in the river.

The command of the Southern army, composed of the troops of South Carolina and Georgia, had been committed to Major-General Robert Howe, who in the course of the preceding summer had invaded East Florida. The diseases incident to the climate made such ravages among his raw soldiers that though he had scarcely seen an enemy he found himself compelled to hasten out of the country with considerable loss. After this disastrous enterprise his army, consisting of between six and seven hundred Continental troops aided by a few hundred militia had encamped in the neighborhood of the town of Savannah, situated on the southern bank of the river bearing that name. The country about the mouth of the river is one track of deep marsh intersected by creeks and cuts of water impassable for troops at any time of the tide, except over causeways extending through the sunken ground.

Without much opposition Lieutenant-Colonel Campbell effected a landing on the 29th (December, 1778), about three miles below the town, upon which Howe formed his line of battle. His left was secured by the river, and along the whole extent of his front was a morass which stretched to his right and was believed by him to be impassable for such a distance as effectually to secure that wing.

After reconnoitering the country Colonel Campbell advanced on the great road leading to Savannah, and about 3 in the afternoon appeared in sight of the American army. While making dispositions to dislodge it he accidentally fell in with a negro who informed him of a private path leading through the swamp round the right of the American lines to their rear. Determining to avail himself of this path he detached a column under Sir James Baird which entered the morass unperceived by Howe.

As soon as Sir James emerged from the swamp he attacked and dispersed a body of Georgia militia which gave the first notice to the American general of the danger which threatened his rear. At the same instant the British troops in his front were put in motion and their artillery began to play upon him. A retreat was immediately ordered and the Continental troops were under the necessity of running across a plain in front of the corps which had been led to the rear by Sir James Baird who attacked their flanks with great impetuosity and considerable effect. The few who escaped retreated up the Savannah, and crossing that river at Zubly's Ferry took refuge in South Carolina.

The victory was complete and decisive in its consequences. About 100 Americans were either killed in the field or drowned in attempting to escape through a deep swamp. Thirty-eight officers and 415 privates were taken. Forty-eight pieces of cannon, twenty-three mortars, the fort, with all its military stores, a large quantity of provisions collected for the use of the army, and the capital of Georgia fell into the hands of the conqueror. These advantages were obtained at the expense of only seven killed and nineteen wounded.

No military force now remained in Georgia except the garrison of Sunbury whose retreat to South Carolina was cut off. All the lower part of that State was occupied by the British who adopted measures to secure the conquest they had made. The inhabitants were treated with a lenity as wise as it was humane. Their property was spared and their persons protected. To

make the best use of victory and of the impression produced by the moderation of the victors a proclamation was issued inviting the inhabitants to repair to the British standard and offering protection to those who would return to their allegiance.

The effect of these measures was soon felt. The inhabitants flocked in great numbers to the royal standard; military corps for the protection of the country were formed, and posts were established for a considerable distance up the river.

The northern frontier of Georgia being supposed to be settled into a state of quiet Colonel Campbell turned his attention toward Sunbury and was about to proceed against that place when he received intelligence that it had surrendered to General Prevost.

Sir Henry Clinton had ordered that officer from East Florida to cooperate with Colonel Campbell. On hearing that the troops from the north were off the coast he entered the southern frontier of Georgia (Jan. 9, 1779) and invested Sunbury, which, after a slight resistance surrendered at discretion. Having placed a garrison in the fort he proceeded to Savannah, took command of the army, and detached Colonel Campbell with 800 regulars and a few Provincials to Augusta which fell without resistance, and thus the whole State of Georgia was reduced.

1. Footnote: This officer was the same Grey who had surprised Wayne's detachment near the Paoli Tavern, in Pennsylvania (Sept. 20, 1777), as already related in the text. His merciless massacre of Wayne's men, with the bayonet, will ever be remembered. A monument is erected on the spot where the massacre took place, consecrated to the memory of the sufferers.

2. Footnote: The British government rewarded Grey for his cruelty by making him a peer. He was the father of Earl Grey, who became prime minister of Great Britain. This reward to Colonel Grey was in strict consistency with the spirit in which the whole war against the United States was conducted. Fortunately, the cruel and brutal outrages of the invaders reacted on themselves, and contributed greatly to the final result.

CHAPTER XVI. — WASHINGTON PREPARES TO CHASTISE THE INDIANS. 1778.

While the events were passing which are recorded in the preceding chapter a terrible war with the Indians was raging on the western frontier of the United States. While the British were abundantly able to supply the Indians with all those articles of use and luxury which they had been accustomed to receive from the whites, Congress was not in a condition to do anything of this sort to conciliate them or to secure their neutrality in the existing war. Stimulated by the presents as well as by the artful representations of British agents the Indians had consequently become hostile. Early in 1778 there were many indications of a general disposition among the savages to make war on the United States, and the frontiers, from the Mohawk to the Ohio, were threatened with the tomahawk and the scalping-knife. Every representation from that country supported Washington's opinion that a war with the Indians should never be defensive and that to obtain peace it must be carried into their own country. Detroit was understood to be in a defenseless condition, and Congress resolved on an expedition against that place. This enterprise was entrusted to General M'Intosh, who commanded at Pittsburgh, and was to be carried on with 3,000 men, chiefly militia, to be drawn from Virginia. To facilitate its success another force was to attack the Senecas, advancing from the east of the Hudson.

Unfortunately the acts of the government did not correspond with the vigor of its resolutions. The necessary preparations were not made and the inhabitants of the frontiers remained without sufficient protection until the plans against them were matured and the storm which had been long gathering burst upon them with a fury which spread desolation wherever it reached.

About 300 white men, commanded by the British Col. John Butler, and about 500 Indians, led by the Indian Chief Brandt, who had assembled in the north, marched late in June (1778) against the settlement of Wyoming. These troops embarked on the Chemung or Tioga and descending the

Susquehanna, landed at a place called the Three Islands, whence they marched about twenty miles, and crossing a wilderness and passing through a gap in the mountain, entered the valley of Wyoming near its northern boundary. At this place a small fort called Wintermoots had been erected, which fell into their hands without resistance and was burnt. The inhabitants who were capable of bearing arms assembled on the first alarm at Forty Fort on the west side of the Susquehanna, four miles below the camp of the invading army.

The regular troops, amounting to about sixty, were commanded by Col. Zebulon Butler, {1} the militia by Colonel Dennison. Colonel Butler was desirous of awaiting the arrival of a small reinforcement under Captain Spalding who had been ordered by Washington to his aid on the first intelligence of the danger which threatened the settlement, but the militia generally, believing themselves sufficiently strong to repel the invading force, urged an immediate battle so earnestly that Colonel Butler yielded to their remonstrances, and on the 3d of July (1778) marched from Forty Fort at the head of near 400 men to attack the enemy.

The British and Indians were prepared to receive him. Their line was formed a small distance in front of their camp on a plain thinly covered with pine, shrub-oaks, and under-growth, and extended from the river about a mile to a marsh at the foot of the mountain. The Americans advanced in a single column without interruption until they approached the enemy, when they received a fire which did not much mischief. The line of battle was instantly formed and the action commenced with spirit. The Americans rather gained ground on the right where Colonel Butler commanded, until a large body of Indians passing through the skirt of the marsh turned their left flank, which was composed of militia, and poured a heavy and most destructive fire on their rear. The word "retreat" was pronounced by some person and the efforts of the officers to check it were unavailing. The fate of the day was decided, and a flight commenced on the left which was soon followed by the right. As soon as the line was broken the Indians, throwing down their rifles and rushing upon them with the tomahawk, completed the confusion. The attempt of Colonel Butler and of the officers to restore order was unavailing and the whole line broke and fled in confusion. The massacre was general and the cries for mercy were answered by the tomahawk. Rather less than sixty men escaped, some to Forty Fort, some by swimming the river, and some to the mountain. A very few prisoners were

made, only three of whom were preserved alive, who were carried to Niagara.

Further resistance was impracticable and Colonel Dennison proposed terms of capitulation which were granted to the inhabitants. It being understood that no quarter would be allowed to the Continental troops Colonel Butler with his few surviving soldiers fled from the valley.

The inhabitants generally abandoned the country and, in great distress, wandered into the settlements on the Lehigh and the Delaware. The Indians, according to their usual practice, destroyed the houses and improvements by fire and plundered the country. After laying waste the whole settlement they withdrew from it before the arrival of the Continental troops, who were ordered to meet them. On the 11th of November (1778) 500 Indians and Loyalists, with a small detachment of regular troops, under the command of the notorious John Butler, made an irruption into the settlement at Cherry Valley, in the State of New York, surprised and killed Colonel Allen, commander of the American force at that place, and ten of his soldiers. They attacked a fort erected there, but were compelled to retreat. Next day they left the place, after having murdered and scalped thirty-two of the inhabitants, chiefly women and children.

On the first intelligence of the destruction of Wyoming the regiments of Hartley and Butler with the remnant of Morgan's corps, commanded by Major Posey, were detached to the protection of that distressed country. They were engaged in several sharp skirmishes, made separate incursions into the Indian settlements, broke up their nearest villages, destroyed their corn, and, by compelling them to retire to a greater distance, gave some relief to the inhabitants.

While the frontiers of New York and Pennsylvania were thus suffering the calamities incident to savage warfare, a fate equally severe was preparing for Virginia. The western militia of that State had made some successful incursions into the country northwest of the Ohio and had taken some British posts on the Mississippi. These were erected into the county of Illinois, and a regiment of infantry with a troop of cavalry was raised for its protection. The command of these troops was given to Col. George Rogers Clarke, a gentleman whose courage, hardihood, and capacity for Indian warfare had given repeated success to his enterprises against the savages.

This corps was divided into several detachments, the strongest of which remained with Colonel Clarke at Kaskaskia. Colonel Hamilton, the Governor of Detroit, was at Vincennes with about 600 men, principally Indians, preparing an expedition, first against Kaskaskia and then up the Ohio to Pittsburgh, after which he purposed to desolate the frontiers of Virginia. Clarke anticipated and defeated his design by one of those bold and decisive measures, which, whether formed on a great or a small scale, mark the military and enterprising genius of the man who plans and executes them.

He was too far removed from the inhabited country to hope for support, and was too weak to maintain Kaskaskia and the Illinois against the combined force of regulars and Indians by which he was to be attacked as soon as the season for action should arrive. While employed in preparing for his defense he received unquestionable information that Hamilton had detached his Indians on an expedition against the frontiers, reserving at the post he occupied only about eighty regulars with three pieces of cannon and some swivels. Clarke instantly resolved to seize this favorable moment. After detaching a small galley up the Wabash with orders to take her station a few miles below Vincennes and to permit nothing to pass her, he marched in the depth of winter with 130 men, the whole force he could collect, across the country from Kaskaskia to Vincennes. This march through the woods and over high waters required sixteen days, five of which were employed in crossing the drowned lands of the Wabash. The troops were under the necessity of wading five miles in water frequently up to their breasts. After subduing these difficulties this small party appeared before the town, which was completely surprised and readily consented to change its master.

Hamilton, after defending the fort a short time, surrendered himself and his garrison prisoners of war. With a few of his immediate agents and counselors, who had been instrumental in the savage barbarities he had encouraged, he was, by order of the Executive of Virginia, put in irons and confined in a jail.

This expedition was important in its consequences. It disconcerted a plan which threatened destruction to the whole country west of the Allegheny Mountains, detached from the British interest many of those numerous tribes of Indians south of the waters immediately communicating with the

Great Lakes, and had most probably considerable influence in fixing the boundary of the United States.

These Indian hostilities on the western border were a subject of extreme solicitude to Washington, ever alive as he was to the cry of distress and ever anxious to preserve peace and security to the rural population of the country. Experience and observation had long since taught him that the only effectual protection to the inhabitants of the frontier settlements consisted in carrying the war with severity into the enemy's own country. Hence we find that from the moment these atrocities of the Indians commenced in the western country he was engaged in planning that expedition which, in the next campaign, under the direction of General Sullivan, carried desolation to their own homes and taught them a lesson which they could not soon forget. In the following extract of a letter to Gov. George Clinton of New York, dated March 4, 1779, it will be perceived that he speaks of his plan as already matured:

"The President of Congress has transmitted to me your Excellency's letter to the delegates of New York, representing the calamitous situation of the northwestern frontier of that State, accompanied by a similar application from the Pennsylvania Assembly, and a resolve of the 25th, directing me to take the most effectual measures for the protection of the inhabitants and chastisement of the Indians. The resolve has been in some measure anticipated by my previous dispositions for carrying on offensive operations against the hostile tribes of savages. It has always been my intention early to communicate this matter to your Excellency in confidence, and I take occasion, from the letter above mentioned, to inform you that preparations have some time since been making, and they will be conducted to the point of execution at a proper season, if no unexpected accident prevents, and the situation of affairs on the maritime frontier justifies the undertaking.

"The greatest secrecy is necessary to the success of such an enterprise, for the following obvious reasons: That, immediately upon the discovery of our design, the savages would either put themselves in condition to make head against us, by a reunion of all their force and that of their allies, strengthened besides by succors from Canada; or elude the expedition altogether, which might be done at the expense of a temporary evacuation of forests which we could not possess, and the destruction of a few settlements which they might speedily re-establish."

Washington concludes this letter by calling upon Governor Clinton for an account of the force which New York can furnish for the contemplated expedition and describing the kind of men most desirable for this peculiar service—"active rangers, who are at the same time expert marksmen, and accustomed to the irregular kind of wood-fighting practiced by the Indians." He concludes by expressing a desire to have the advantage of any sentiments or advice the Governor might be pleased to communicate relative to the expedition. This is but one among many instances which might be cited of the vigilance and unceasing activity of Washington in everything connected with the national defense.

In addition to this Indian war Washington at this time (1778) had another cause of deep anxiety continually upon his mind, in the comparatively weak and inefficient character of the legislative body to whom he must necessarily look for support and sanction in all measures for the defense of the country. The Congress of 1774—that Congress whose proceedings and State papers had elicited the admiration of the illustrious Earl of Chatham—had comprised the ablest and most influential men in the country. But most of these men had withdrawn from Congress or had accepted high offices under their own State governments, and their places had either not been filled at all or had been filled by incompetent men. For the year 1778 the average number of members had been between twenty-five and thirty. Some States were not represented and others had not sent delegates enough to entitle them to a vote. But small as the number of delegates in Congress was they were sufficiently numerous to entertain the fiercest feuds among themselves, and seriously to embarrass the public service by permitting party considerations to interfere with the measures most essential to the safety and efficiency of the army and the preservation of order in the country.

Washington was acutely sensible to this disastrous state of things. Full of disinterested zeal for the public service he could hardly comprehend the apathy prevailing in the different States, which occasioned their omitting to fill up their "quotas" of representatives in Congress, and he was embarrassed and distressed with the weak and inefficient manner in which the military and civil affairs, under the direction of Congress, were conducted. In a letter to Benjamin Harrison of Virginia, a member of the Congress of 1774, he expresses frankly his views on this unpleasant topic as follows:

"It appears as clear to me as ever the sun did in its meridian brightness, that America never stood in more eminent need of the wise, patriotic, and spirited exertions of her sons than at this period, and if it is not a sufficient cause for general lamentation my misconception of the matter impresses it too strongly upon me that the States, separately, are too much engaged in their local concerns and have too many of their ablest men withdrawn from the general council for the good of the commonweal. In a word I think our political system may be compared to the mechanism of a clock and that we should derive a lesson from it, for it answers no good purpose to keep the smaller wheels in order if the greater one, which is the support and prime mover of the whole, is neglected. How far the latter is the case it does not become me to pronounce, but as there can be no harm in a pious wish for the good of one's country, I shall offer it as mine, that each would not only choose, but absolutely compel their ablest men to attend Congress, and that they would instruct them to go into a thorough investigation of the causes that have produced so many disagreeable effects in the army and country, in a word, that public abuses should be corrected. Without this it does not in my judgment require the spirit of divination to foretell the consequences of the present administration nor to how little purpose the States individually are framing constitutions, providing laws, and filling offices with the abilities of their ablest men. These, if the great whole is mismanaged, must sink in the general wreck, which will carry with it the remorse of thinking that we are lost by our own folly and negligence or by the desire, perhaps, of living in ease and tranquility during the accomplishment of so great a revolution, in the effecting of which the greatest abilities and the most honest men our American world affords ought to be employed.

"It is much to be feared, my dear sir, that the States in their separate capacities have very inadequate ideas of the present danger. Many persons removed far distant from the scene of action and seeing and hearing such publications only as flatter their wishes, conceive that the contest is at an end and that to regulate the government and police of their own State is all that remains to be done, but it is devoutly to be wished that a sad reverse of this may not fall upon them like a thunderclap that is little expected. I do not mean to designate particular States. I wish to cast no reflections upon any one. The public believe (and if they do believe it, the fact might almost as well be so) that the States at this time are badly represented and that the great and important concerns of the nation are horribly conducted for want

either of abilities or application in the members, or through the discord and party views of some individuals. That they should be so is to be lamented more at this time than formerly, as we are far advanced in the dispute and, in the opinion of many, drawing to a happy period; we have the eyes of Europe upon us and I am persuaded many political spies to watch, who discover our situation and give information of our weaknesses and wants."

We have already seen that Congress, actuated by their wishes rather than governed by a temperate calculation of the means in their possession, had, in the preceding winter, planned a second invasion of Canada to be conducted by Lafayette and that, as the generals only were got in readiness for this expedition, it was necessarily laid aside. The design, however, seems to have been suspended, not abandoned. The alliance with France revived the latent wish to annex that extensive territory to the United States. That favorite subject was resumed, and toward autumn a plan was completely digested for a combined attack to be made by the allies on all the British dominions on the continent and on the adjacent islands of Cape Breton and Newfoundland. This plan was matured about the time Lafayette obtained leave to return to his own country and was ordered to be transmitted by him to Doctor Franklin, the minister of the United States at the court of Versailles with instructions to induce, if possible, the French cabinet to accede to it. Some communications respecting this subject were also made to Lafayette, on whose influence in securing its adoption by his own government much reliance was placed, and in October 1778, it was for the first time transmitted to Washington, with a request that he would enclose it by Lafayette, with his observations on it, to Doctor Franklin.

This very extensive plan of military operations for the ensuing campaign, prepared entirely in the cabinet without consulting, so far as is known, a single military man, consisted of many parts.

Two detachments, amounting each to 1,600 men, were to march from Pittsburgh and Wyoming against Detroit and Niagara. A third body of troops which was to be stationed on the Mohawk during the winter and to be powerfully reinforced in the spring, was to seize Oswego and to secure the navigation of Lake Ontario with vessels to be constructed of materials to be procured in the winter. A fourth corps was to penetrate into Canada by the St. Francis and to reduce Montreal and the posts on Lake Champlain, while a fifth should guard against troops from Quebec.

Thus far America could proceed unaided by her ally. But Upper Canada being reduced another campaign would still be necessary for the reduction of Quebec. This circumstance would require that the army should pass the winter in Canada, and in the meantime the garrison of Quebec might be largely reinforced. It was therefore essential to the complete success of the enterprise that France should be induced to take a part in it.

The conquest of Quebec and of Halifax was supposed to be an object of so much importance to France as well as to the United States that her aid might be confidently expected.

It was proposed to request the King of France to furnish four or five thousand troops, to sail from Brest the beginning of May under convoy of four ships of the line and four frigates, the troops to be clad as if for service in the West Indies and thick clothes to be sent after them in August. A large American detachment was to act with this French army and it was supposed that Quebec and Halifax might be reduced by the beginning or middle of October. The army might then either proceed immediately against New Foundland or remain in garrison until the spring when the conquest of that place might be accomplished.

It had been supposed probable that England would abandon the further prosecution of the war on the continent of North America, in which case the government would have a respectable force at its disposal, the advantageous employment of which had engaged in part the attention of Washington. He had contemplated an expedition against the British posts in Upper Canada as a measure which might be eventually eligible and which might employ the arms of the United States to advantage if their troops might safely be withdrawn from the sea-board. He had, however, considered every object of this sort as contingent. Having estimated the difficulties to be encountered in such an enterprise he had found them so considerable as to hesitate on the extent which might safely be given to the expedition admitting the United States to be evacuated by the British armies.

In this state of mind Washington received the magnificent plan already prepared by Congress. He was forcibly struck with the impracticability of executing that part of it which, was to be undertaken by the United States should the British armies continue in the country and with the serious mischief which would result to the common cause as well as from diverting so considerable a part of the French force from other objects to one which

was, in his opinion, so unpromising as from the ill impression which would be made on the court and nation by the total failure of the American government to execute its part of a plan originating with itself—a failure would most probably sacrifice the troops and ships employed by France.

On comparing the naval force of England with that of France in different parts of the world, the former appeared to Washington to maintain a decided superiority and consequently to possess the power of shutting up the ships of the latter which might be trusted into the St. Lawrence. To suppose that the British government would not avail itself of this superiority on such an occasion would be to impute to it a blind infatuation or ignorance of the plans of its adversary, which could not be safely assumed in calculations of such serious import.

A plan, too, consisting of so many parts to be prosecuted both from Europe and America by land and by water—which, to be successful, required such an harmonious cooperation of the whole, such a perfect coincidence of events—appeared to him to be exposed to too many accidents to risk upon it interests of such high value.

In a long and serious letter to Congress he apologized for not obeying their orders to deliver the plan with his observations upon it to Lafayette, and entering into a full investigation of all its parts demonstrated the mischiefs and the dangers with which it was replete. This letter was referred to a committee whose report admits the force of the reasons urged by Washington against the expedition and their own conviction that nothing important could be attempted unless the British armies should be withdrawn from the United States and that even in that event the present plan was far too complex.

Men, however, recede slowly and reluctantly from favorite and flattering projects on which they have long meditated, and the committee in their report proceeded to state the opinion that the posts held by the British in the United States would probably be evacuated before the active part of the ensuing campaign, and that, therefore, eventual measures for the expedition ought to be taken.

This report concludes with recommending, "that the general should be directed to write to the Marquis de Lafayette on that subject, and also write to the minister of these States at the court of Versailles very fully, to the end that eventual measures may be taken in case an armament should be sent

from France to Quebec for co-operating therewith to the utmost degree which the finances and resources of these States will admit."

This report also was approved by Congress and transmitted to Washington who felt himself greatly embarrassed by it. While his objections to the project retained all their force he found himself required to open a correspondence for the purposes of soliciting the concurrence of France in an expedition he disapproved, and of promising a cooperation he believed to be impracticable. In reply to this communication he said: "The earnest desire I have strictly to comply in every instance with the views and instructions of Congress cannot but make me feel the greatest uneasiness when I find myself in circumstances of hesitation or doubt with respect to their directions. But the perfect confidence I have in the justice and candor of that honorable body emboldens me to communicate without reserve the difficulties which occur in the execution of their present order, and the indulgence I have experienced on every former occasion induces me to imagine that the liberty I now take will not meet with disapprobation."

After reviewing the report of the committee and stating his objections to the plan and the difficulties he felt in performing the duty assigned to him, he added: "But if Congress still think it necessary for me to proceed in the business I must request their more definite and explicit instructions and that they will permit me, previous to transmitting the intended dispatches, to submit them to their determination. I could wish to lay before Congress more minutely the state of the army, the condition of our supplies and the requisites necessary for carrying into execution an undertaking that may involve the most serious events. If Congress think this can be done more satisfactorily in a personal conference I hope to have the army in such a situation before I can receive their answer as to afford me an opportunity of giving my attendance."

Congress acceded to his request for a personal interview, and on his arrival in Philadelphia a committee was appointed to confer with him as well on this particular subject as on the general state of the army and of the country.

The result of these conferences was that the expedition against Canada was entirely, though reluctantly, given up, and every arrangement recommended by Washington received that attention which was due to his judgment and experience and which his opinions were entitled to receive.

If anything were necessary to be added to this ridiculous scheme for the conquest of Canada in order to prove the inefficiency and folly of the Congress of 1778 we have it in the fact that France was averse to adding that province to the United States and did not desire to acquire it for herself. She only sought the independence of this country and its permanent alliance.

Mr. De Sevelinges in his introduction to Botta's History recites the private instructions to Mr. Gerard on his mission to the United States. One article was, "to avoid entering into any formal engagement relative to Canada and other English possessions which Congress proposed to conquer." Mr. De Sevelinges adds, that "the policy of the cabinet of Versailles viewed the possession of those countries, especially of Canada by England as a principle of useful inquietude and vigilance to the Americans. The neighborhood of a formidable enemy must make them feel more sensibly the price which they ought to attach to the friendship and support of the King of France."

{C.} REPORT OF THE COMMITTEE APPOINTED TO CONFER WITH WASHINGTON ON THE SECOND SCHEME FOR THE CONQUEST OF CANADA, AND ON THE GENERAL STATE OF THE ARMY AND THE COUNTRY.

"January I, 1779. The committee appointed to confer with the commander-in-chief on the operations of the next campaign, report that the plan proposed by Congress for the emancipation of Canada, in cooperation with an army from France, was the principal subject of the said conference. That, impressed with a strong sense of the injury and disgrace which must attend an infraction of the proposed stipulations, on the part of these States, your committee have taken a general view of our finances, of the circumstances of our army, of the magazines of clothes, artillery, arms and ammunition, and of the provisions in store, and which can be collected in season.

"Your committee have also attentively considered the intelligence and observations communicated to them by the commander-in-chief, respecting the number of troops and strongholds of the enemy in Canada; their naval force, and entire command of the water communication with that country; the difficulties, while they possess such signal advantages, of penetrating it with an army by land; the obstacles which are to be surmounted in acquiring a naval superiority; the hostile temper of many of the surrounding Indian tribes towards these States; and above all, the uncertainty whether the enemy will not persevere in their system of harassing and distressing our sea-coast and frontiers by a predatory war.

"That on a most mature deliberation, your committee cannot find room for a well grounded presumption that these States will be able to perform their part of the proposed stipulations. That in a measure of such moment, calculated to call forth, and direct to a single object, a considerable portion of the force of our ally which may otherwise be essentially employed, nothing else than the highest probability of success could justify Congress in making the proposition.

"Your committee are therefore of opinion, that the negotiation in question, however desirable and interesting, should be deferred until circumstances render the cooperation of these States more certain, practicable, and effectual.

"That the minister plenipotentiary of these States at the court of Versailles, the minister of France in Pennsylvania, and the minister of France, be respectively informed that the operations of the next campaign must depend on such a variety of contingencies to arise, as well from our own internal circumstances and resources as the progress and movements of our enemy, that time alone can mature and point out the plan which ought to be pursued. That Congress, therefore, cannot, with a degree of confidence answerable to the magnitude of the object, decide on the practicability of their cooperating the next campaign in an enterprise for the emancipation of Canada; that every preparation in our power will nevertheless be made for acting with vigor against the common enemy, and every favorable incident embraced with alacrity to facilitate and hasten the freedom and independence of Canada, and her union with these States—events which Congress, from motives of policy with respect to the United States, as well as of affection to their Canadian brethren, have greatly at heart."

This report is evidently inspired by Washington, from beginning to end.

1. Footnote: This officer was not of the same family with the Tory Butler.

CHAPTER XVII. — WASHINGTON'S OPERATIONS IN THE NORTHERN STATES. 1779.

We have seen that Washington had gone from his winter quarters near Middlebrook in the Jerseys to hold a conference with Congress on the subject of the invasion of Canada. When this matter had been disposed of there still remained many subjects demanding the joint attention of the supreme Legislature and the Commander-in-Chief, and accordingly he spent a considerable part of the winter of 1778-9 at Philadelphia consulting with Congress on measures for the general defense and welfare of the country. Washington felt extreme anxiety at the inadequate means at his disposal for conducting the campaign of 1779. The state of Congress itself, as we have already shown, was sufficiently embarrassing to him, but there were other causes of uneasiness in the general aspect of affairs. The French alliance was considered by the people as rendering the cause of independence perfectly safe; with little or no exertion on our part England was supposed to be already conquered in America, and, moreover, she was threatened with a Spanish war. Hence the States were remiss in furnishing their quotas of men and money. The currency, consisting of Continental bills, was so much depreciated that a silver dollar was worth forty dollars of the paper money. The effect of this last misfortune was soon apparent in the conduct of the officers of the Jersey brigade.

In pursuance of Washington's plan of chastising the Indians, to which we referred in the last chapter, it was resolved to lead a force into those villages of the Six Nations which were hostile to the United States and destroy their settlements.

As the army destined for this expedition was about to move alarming symptoms of discontent appeared in a part of it. The Jersey brigade, which had been stationed during the winter at Elizabethtown, was ordered early in May (1779) to march by regiments. This order was answered by a letter from General Maxwell stating that the officers of the First regiment had delivered a remonstrance to their colonel, addressed to the Legislature of

the State, declaring that unless their complaints on the subjects of pay and support should obtain the immediate attention of that body, they were, at the expiration of three days, to be considered as having resigned, and requesting the Legislature, in that event, to appoint other officers to succeed them. They declared, however, their readiness to make every preparation for obeying the orders which had been given, and to continue their attention to the regiment until a reasonable time should elapse for the appointment of their successors. "This," added the letter of General Maxwell, "is a step they are extremely unwilling to take, but it is such as I make no doubt they will all take; nothing but necessity—their not being able to support themselves in time to come and being loaded with debts contracted in time past—could have induced them to resign at so critical a juncture."

The intelligence conveyed in this letter made a serious impression on Washington. He was strongly attached to the army and to its interests, had witnessed its virtues and its sufferings, and lamented sincerely its present distresses. The justice of the complaints made by the officers could no more be denied than the measure they had adopted could be approved. Relying on their patriotism and on his own influence, he immediately wrote a letter to General Maxwell to be laid before them in which, mingling the sensibility of a friend with the authority of a general, he addressed to their understanding and to their love of country, observations calculated to invite their whole attention to the consequences which must result from the step they were about to take.

"The patience and perseverance of the army," proceeds the letter, "have been, under every disadvantage, such as to do them the highest honor both at home and abroad, and have inspired me with an unlimited confidence of their virtue, which has consoled me amidst every perplexity and reverse of fortune to which our affairs, in a struggle of this nature, were necessarily exposed. Now that we have made so great a progress to the attainment of the end we have in view, so that we cannot fail without a most shameful desertion of our own interests, anything like a change of conduct would imply a very unhappy change of principles, and a forgetfulness as well of what we owe to ourselves as to our country. Did I suppose it possible this could be the case, even in a single regiment of the army, I should be mortified and chagrined beyond expression. I should feel it as a wound given to my own honor, which I consider as embarked with that of the army at large. But this I believe to be impossible. Any corps that was about to set

an example of the kind would weigh well the consequences, and no officer of common discernment and sensibility would hazard them. If they should stand alone in it, independent of other consequences, what would be their feelings on reflecting that they had held themselves out to the world in a point of light inferior to the rest of the army? Or if their example should be followed, and become general, how could they console themselves for having been the foremost in bringing ruin and disgrace upon their country? They would remember that the army would share a double portion of the general infamy and distress, and that the character of an American officer would become as infamous as it is now glorious.

"I confess the appearances in the present instance are disagreeable, but I am convinced they seem to mean more than they really do. The Jersey officers have not been outdone by any others in the qualities either of citizens or soldiers; and I am confident no part of them would seriously intend anything that would be a stain on their former reputation. The gentlemen cannot be in earnest; they have only reasoned wrong about the means of obtaining a good end, and, on consideration, I hope and flatter myself they will renounce what must appear to be improper. At the opening of a campaign, when under marching orders for an important service, their own honor, duty to the public and to themselves, and a regard to military propriety, will not suffer them to persist in a measure which would be a violation of them all. It will even wound their delicacy, coolly to reflect that they have hazarded a step which has an air of dictating terms to their country, by taking advantage of the necessity of the moment."

This letter did not completely produce the desired effect. The officers did not recede from their claims. In an address to Washington, they expressed their unhappiness that any act of theirs should give him pain, but proceeded to justify the step they had taken. Repeated memorials had been presented to their Legislature which had been received with promises of attention, but had been regularly neglected. "At length," said they, "we have lost all confidence in our Legislature. Reason and experience forbid that we should have any. Few of us have private fortunes; many have families, who already are suffering everything that can be received from an ungrateful country. Are we then to suffer all the inconveniences, fatigues, and dangers of a military life, while our wives and our children are perishing for want of common necessities at home—and that without the most distant prospect of reward, for our pay is now only nominal? We are sensible that your

Excellency cannot wish nor desire this from us. We are sorry that you should imagine we meant to disobey orders. It was and still is our determination to march with our regiment and to do the duty of officers until the Legislature should have a reasonable time to appoint others, but no longer.

"We beg leave to assure your Excellency that we have the highest sense of your ability and virtues; that executing your orders has ever given us pleasure; that we love the service, and we love our country—but when that country gets so lost to virtue and justice as to forget to support its servants, it then becomes their duty to retire from its service."

This letter was peculiarly embarrassing to Washington. To adopt a stern course of proceeding might hazard the loss of the Jersey line, an event not less injurious to the service than painful to himself. To take up the subject without doing too much for the circumstances of the army would be doing too little for the occasion. He therefore declined taking any other notice of the letter than to declare through General Maxwell, that while they continued to do their duty in conformity with the determination they had expressed he should only regret the part they had taken and should hope they would perceive its impropriety.

The Legislature of New Jersey, alarmed at the decisive step taken by the officers, was at length induced to pay some attention to their situation—they consenting on their part to withdraw their remonstrance. In the meantime they continued to perform their duty and their march was not delayed by this unpleasant altercation.

In communicating this transaction to Congress Washington took occasion to remind that body of his having frequently urged the absolute necessity of some general and adequate provision for the officers of the army. "I shall only observe," continued the letter, "that the distresses in some corps are so great, either where they were not until lately attached to any particular State, or where the State has been less provident, that the officers have solicited even to be supplied with the clothing destined for the common soldiery, coarse and unsuitable as it was. I had not power to comply with the request.

"The patience of men animated by a sense of duty and honor will support them to a certain point, beyond which it will not go. I doubt not Congress

will be sensible of the danger of an extreme in this respect, and will pardon my anxiety to obviate it."

Before the troops destined for the grand expedition were put in motion an enterprise of less extent was undertaken which was completely successful. A plan for surprising the towns of the Onondagas, one of the nearest of the hostile tribes, having been formed by General Schuyler and approved by Washington, Colonel Van Schaick assisted by Lieutenant-Colonel Willet and Major Cochran marched from Fort Schuyler on the morning of the 19th of April at the head of between five and six hundred men and on the third day reached the point of destination. The whole settlement was destroyed after which the detachment returned to Fort Schuyler without the loss of a single man. For this handsome display of talents as a partisan, the thanks of Congress were voted to Colonel Van Schaick and the officers and soldiers under his command.

The cruelties exercised by the Indians in the course of the preceding year had given a great degree of importance to the expedition now meditated against them, and the relative military strength and situation of the two parties rendered it improbable that any other offensive operations could be carried on by the Americans in the course of the present campaign. The army under the command of Sir Henry Clinton, exclusive of the troops in the southern department, was computed at between sixteen and seventeen thousand men. The American army, the largest division of which lay at Middlebrook under the immediate command of Washington, was rather inferior to that of the British in real strength. The grand total, except those in the southern and western country, including officers of every description amounted to about 16,000. Three thousand of these were in New England under the command of General Gates, and the remaining 13,000 were cantoned on both sides of the North river.

After the destruction of Forts Clinton and Montgomery in 1777, it had been determined to construct the fortifications intended for the future defense of the North river at West Point, a position which being more completely embosomed in the hills was deemed more defensible. The works had been prosecuted with unremitting industry but were far from being completed.

King's Ferry, some miles below West Point, where the great road, the most convenient communication between the middle and eastern States,

crossed the North river, is completely commanded by two opposite points of land. That on the west side, a rough and elevated piece of ground, is denominated Stony Point; and the other, on the east side, a flat neck of land projecting far into the water, is called Verplanck's Point. The command of King's Ferry was an object worth the attention of either army, and Washington had comprehended the points which protect it within his plan of defense for the Highlands. A small but strong work called Fort Fayette was completed at Verplanck's and was garrisoned by a company commanded by Captain Armstrong. The works on Stony Point were unfinished. As the season for active operations approached Sir Henry Clinton formed a plan for opening the campaign with a brilliant *coup de main* up the North river and toward the latter end of May made preparations for the enterprise.

These preparations were immediately communicated to Washington who was confident that Clinton meditated an attack on the forts in the Highlands or designed to take a position between those forts and Middlebrook, in order to interrupt the communication between the different parts of the American army, to prevent their reunion and to beat them in detail. Measures were instantly taken to counteract either of these designs. The intelligence from New York was communicated to Generals Putnam and M'Dougal, who were ordered to hold themselves in readiness to march, and on the 29th of May (1779) the army moved by divisions from Middlebrook toward the Highlands. On the 30th the British army commanded by Clinton in person and convoyed by Sir George Collier proceeded up the river, and General Vaughan at the head of the largest division, landed next morning about eight miles below Verplanck's. The other division under the particular command of General Patterson, but accompanied by Clinton, advancing further up, landed on the west side within three miles of Stony Point.

That place being immediately abandoned, General Patterson took possession of it on the same afternoon. He dragged some heavy cannon and mortars to the summit of the hill in the course of the night (June 1, 1779), and at five next morning opened a battery on Fort Fayette at the distance of about 1,000 yards. During the following night two galleys passed the fort and anchoring above it prevented the escape of the garrison by water while General Vaughan invested it closely by land. No means of defending the fort or of saving themselves remaining the garrisons became prisoners of

war. Immediate directions were given for completing the works at both posts and for putting Stony Point in particular in a strong state of defense.

Washington determined to check any further advance of the enemy, and before Clinton was in a situation to proceed against West Point, General M'Dougal was so strengthened and the American army took such a position on the strong grounds about the Hudson that the enterprise became too hazardous to be further prosecuted.

After completing the fortifications on both sides of the river at King's Ferry, Clinton placed a strong garrison in each fort and proceeded down the river to Philipsburg. The relative situation of the hostile armies presenting insuperable obstacles to any grand operation they could be employed offensively only on detached expeditions. Connecticut, from its contiguity to New York and its extent of sea coast, was peculiarly exposed to invasion. The numerous small cruisers which plied in the sound, to the great annoyance of British commerce, and the large supplies of provisions drawn from the adjacent country for the use of the Continental army, furnished great inducements to Clinton to direct his enterprises particularly against that State. He also hoped to draw Washington from his impregnable position on the North river into the low country and thus obtain an opportunity of striking at some part of his army or of seizing the posts which were the great object of the campaign. With these views he planned an expedition against Connecticut, the command of which was given to Governor Tryon, who reached New Haven bay on the 5th of July (1779) with about 2,600 men.

Washington was at the time on the lines examining in person the condition of the works on Stony and Verplanck's Points, in consequence of which the intelligence which was transmitted to headquarters that the fleet had sailed could not be immediately communicated to the Governor of Connecticut, and the first intimation which that State received of its danger was given by the appearance of the enemy. The militia assembled in considerable numbers with alacrity, but the British effected a landing and took possession of the town. After destroying the military and naval stores found in the place, they re-embarked and proceeded westward to Fairfield which was reduced to ashes. The spirited resistance made by the militia at this place is attested by the apology made by General Tryon for the wanton destruction of private property which disgraced his conduct. "The village

was burnt," he says, "to resent the fire of the rebels from their houses and to mask our retreat."

From Fairfield the fleet crossed the sound to Huntington bay where it remained until the 9th (July, 1779), when it recrossed that water. The troops were landed in the night on a peninsula on the east side of the Bay of Norwalk. About the same time a much larger detachment from the British army directed its course towards Horse Neck and made demonstrations of a design to penetrate into the country in that direction.

On the first intelligence that Connecticut was invaded, General Parsons, a native of that State, had been directed by Washington to hasten to the scene of action. Placing himself at the head of about 150 Continental troops who were supported by considerable bodies of militia, he attacked the British on the morning of the twelfth as soon as they were in motion and kept up an irregular distant fire throughout the day. But, being too weak to prevent the destruction of any particular town on the coast, Norwalk was reduced to ashes, after which the British re-embarked and returned to Huntington bay there to await for reinforcements. At this place, however, Tryon received orders to return to Whitestone where in a conference between Clinton and Sir George Collier it was determined to proceed against New London with an increased force.

On the invasion of Connecticut, Washington was prompt in his exertions to send Continental troops from the nearest encampments to its aid, but before they could afford any real service Clinton found it necessary to recall Tryon to the Hudson.

Washington had planned an enterprise against the posts at King's Ferry, comprehending a double attack to be made at the same time on both. But the difficulty of a perfect cooperation of detachments, incapable of communicating with each other, determined him to postpone the attack on Verplanck's and to make that part of the plan dependent on the success of the first. His whole attention, therefore, was turned to Stony Point and the troops destined for this critical service proceeded on it as against a single object.

The execution of the plan was entrusted by Washington to General Wayne who commanded the light infantry of the army. His daring courage had long since obtained for him the sobriquet of "Mad Anthony." He accepted the command with alacrity. Secrecy was deemed so much more

essential to success than numbers that no addition was made to the force already on the lines. One brigade was ordered to commence its march so as to reach the scene of action in time to cover the troops engaged in the attack should any unlooked-for disaster befall them, and Maj. Henry Lee of the light dragoons, who had been eminently useful in obtaining the intelligence which led to the enterprise, was associated with Wayne as far as cavalry could be employed in such a service. The night of the 15th (July, 1779), and the hour of twelve, were chosen for the assault.

Stony Point is a commanding hill projecting far into the Hudson which washes three-fourths of its base. The remaining fourth was in a great measure covered by a deep marsh, commencing near the river on the upper side and continuing into it below. Over this marsh there was only one crossing place, but at its junction with the river was a sandy beach passable at low tide. On the summit of this hill stood the fort which was furnished with heavy ordnance. Several breastworks and strong batteries were advanced in front of the main work, and about half way down the hill were two rows of abattis. The batteries were calculated to command the beach and the crossing place of the marsh, and to rake and enfilade any column which might be advancing from either of those points toward the fort. In addition to these defenses several vessels of war were stationed in the river and commanded the ground at the foot of the hill. The garrison consisted of about 600 men commanded by Colonel Johnson.

Wayne arrived about eight in the evening at Springsteel's, one and a half miles from the fort and made his dispositions for the assault.

It was intended to attack the works on the right and left flanks at the same instant. The regiments of Febiger and of Meigs with Major Hull's detachment formed the right column, and Butler's regiment, with two companies under Major Murfree, formed the left. One hundred and fifty volunteers led by Lieutenant-Colonel Fleury and Major Posey constituted the van of the right, and 100 volunteers under Major Stewart composed the van of the left. At 11:30 the two columns moved to the assault, the van of each with unloaded muskets and fixed bayonets. They were each preceded by a forlorn hope of twenty men, the one commanded by Lieutenant Gibbon and the other by Lieutenant Knox. They reached the marsh undiscovered and at 12:20 commenced the assault.

Both columns rushed forward under a tremendous fire of grape-shot and musketry. Surmounting every obstacle, they entered the works at the point of the bayonet and without discharging a single musket obtained possession of the fort.

The humanity displayed by the conquerors was not less conspicuous nor less honorable than their courage. Not an individual suffered after resistance had ceased.

All the troops engaged in this perilous service manifested a degree of ardor and impetuosity which proved them to be capable of the most difficult enterprises, and all distinguished themselves whose situation enabled them to do so. Colonel Fleury, who had distinguished himself in defense of the forts on the Delaware in 1777, was the first to enter the fort and strike the British standard. Major Posey mounted the works almost at the same instant and was the first to give the watch-word, "The fort's our own." Lieutenants Gibbon and Knox performed the service allotted to them with a degree of intrepidity which could not be surpassed. Of twenty men who constituted the party of the former, seventeen were killed or wounded. {1} Sixty-three of the garrison were killed, including two officers. The prisoners amounted to 543, among whom were 1 lieutenant-colonel, 4 captains, and 20 subaltern officers. The military stores taken in the fort were considerable.

The loss sustained by the assailants was not proportioned to the apparent danger of the enterprise. The killed and wounded did not exceed 100 men. Wayne, who marched with Febiger's regiment in the right column received a wound in the head which stunned him. Recovering consciousness, but believing the wound to be mortal, he said to his aids, "Carry me into the fort and let me die at the head of my column." Being supported by his aids he entered the fort with the regiment. Lieutenant-Colonel Hay was also among the wounded.

Although the design upon Fort Fayette had yielded to the desire of securing the success of the attack on Stony Point it had not been abandoned. Two brigades under General M'Dougal had been ordered to approach the works on Verplanck's, in which Colonel Webster commanded, and be in readiness to attack them the instant Wayne should obtain possession of Stony Point. That this detachment might not permit the favorable moment to pass unimproved Wayne had been requested to direct the messenger who should convey the intelligence of his success to Washington to pass through

M'Dougal's camp and give him advice of that event. He was also requested to turn the cannon of the fort against Verplanck's and the vessels in the river. The last orders were executed and a heavy cannonade was opened on Fort Fayette and on the vessels, which compelled them to fall down the river. Through some misconception, never explained, the messenger dispatched by Wayne did not call on M'Dougal, but proceeded directly to headquarters. Thus, every advantage expected from the first impression made by the capture of Stony Point was lost, and the garrison had full leisure to recover from the surprise occasioned by that event and to prepare for an attack. This change of circumstances made it necessary to change the plan of operation. Washington ordered General Howe to take the command of M'Dougal's detachment to which some pieces of heavy artillery were to be annexed. He was directed, after effecting a breach in the walls, to make the dispositions for an assault and to demand a surrender, but not to attempt a storm until it should be dark. To these orders explicit instructions were added not to hazard his party by remaining before Verplanck's after the British should cross Croton river in force.

Through some unaccountable negligence in the persons charged with the execution of these orders the battering artillery was not accompanied with suitable ammunition, and the necessary entrenching tools were not brought. These omissions were supplied the next day, but it was then too late to proceed against Verplanck's.

On receiving intelligence of the loss of Stony Point and of the danger to which the garrison of Fort Fayette was exposed, Sir Henry Clinton relinquished his views on Connecticut and made a forced march to Dobb's Ferry. Some troops were immediately embarked to pass up the river and a light corps was pushed forward to the Croton. This movement relieved Fort Fayette.

The failure of the attempt to obtain possession of Verplanck's Point, leaving that road of communication still closed, diminished the advantages which had been expected to result from the enterprise so much that it was deemed inadvisable to maintain Stony Point. On reconnoitering the ground Washington believed that the place could not be rendered secure with a garrison of less than 1,500 men—a number which could not be spared from the army without weakening it too much for further operations. He determined, therefore, to evacuate Stony Point and retire to the Highlands.

As soon as this resolution was executed Clinton repossessed himself of that post, repaired the fortifications, and placed a stronger garrison in it, after which he resumed his former situation at Philipsburg.

The two armies watched each other for some time. At length, Clinton, finding himself unable to attack Washington in the strong position he had taken or to draw him from it, and being desirous of transferring the theater of active war to the south, withdrew to New York and was understood to be strengthening the fortifications erected for its defense, as preparatory to the large detachments he intended making to reinforce the southern army.

Although this movement was made principally with a view to southern operations, it was in some degree hastened by the opinion that New York required immediate additional protection during the absence of the fleet, which was about to sail for the relief of Penobscot.

Scarcely had Sir George Collier, who had accompanied Clinton up the Hudson to take possession of Stony Point, returned to New York, when he was informed that a fleet of armed vessels with transports and troops had sailed from Boston to attack a post which General M'Lean was establishing at Penobscot in the eastern part of the province of Massachusetts bay. He immediately got ready for sea that part of the naval force which was at New York, and on the 3d of August sailed to relieve the garrison of Penobscot.

In the month of June (1779) General M'Lean, who commanded the royal troops in Nova Scotia, arrived in the bay of Penobscot with nearly 700 men, in order to establish a post which might at once be a means of checking the incursions of the Americans into Nova Scotia and of supplying the royal yards at Halifax with ship timber, which abounded in that part of the country. This establishment alarmed the government of Massachusetts bay, which resolved to dislodge M'Lean, and, with great promptitude, equipped a fleet and raised troops for that purpose. The fleet, which consisted of fifteen vessels of war, carrying from thirty-two to twelve guns each with transports, was commanded by Commodore Saltonstall; the army, amounting to between three and four thousand militia, was under the orders of General Lovell.

General M'Lean chose for his post a peninsula on the east side of Penobscot bay, which is about seven leagues wide and seventeen deep, terminating at the point where the river Penobscot flows into it. M'Lean's station was nine miles from the bottom of the bay. As that part of the

country was then an unbroken forest he cleared away the wood on the peninsula and began to construct a fort in which he was assisted and protected by the crews of three sloops-of-war which had escorted him thither. M'Lean heard of the expedition against him on the 21st of July (1779), when he had made little progress in the erection of his fort. On the 25th the American fleet appeared in the bay, but, owing to the opposition of the British sloops-of-war and to the bold and rugged nature of the shore, the troops did not effect a landing until the 28th. This interval M'Lean improved with such laborious diligence that his fortifications were in a state of considerable forwardness. Lovell erected a battery within 750 yards of the works, and for nearly a fortnight a brisk cannonade was kept up and preparations were made to assault the fort. But, on the 13th of August (1779), Lovell was informed that Sir George Collier with a superior naval force had entered the bay; therefore in the night he silently embarked his troops and cannon, unperceived by the garrison, which was every moment in expectation of being assaulted.

On the approach of the British fleet the Americans, after some show of preparation for resistance, betook themselves to flight. A general pursuit and unresisted destruction ensued. The Warren, a fine new frigate of thirty-two guns, and fourteen other vessels of inferior force, were either blown up or taken. The transports fled in confusion and, after having landed the troops in a wild and uncultivated part of the country, were burnt. The men, destitute of provisions and other necessities, had to explore their way for more than 100 miles through an uninhabited and pathless wilderness and many of them perished before reaching the settled country. After this successful exploit Sir George Collier returned to New York, where he resigned the command of the fleet to Admiral Arbuthnot, who had arrived from England with some ships of war and with provisions, stores, and reinforcements for the army.

On descending the river, after replacing the garrison of Stony Point, Sir Henry Clinton encamped above Harlem, with his upper posts at Kingsbridge. Washington remained in his strong position in the Highlands, but frequently detached numerous parties on both sides of the river in order to check the British foragers and to restrain the intercourse with the Loyalists. Major Lee ("Light Horse Harry"), who commanded one of those parties, planned a bold and hazardous enterprise against the British post at Paulus Hook on the Jersey bank of the river, opposite New York. That post

was strongly fortified and of difficult access, and therefore the garrison thought themselves secure. But Lee determined to make an attempt on the place and chose the morning of the 20th of August (1779) for his enterprise, when part of the garrison was absent on a foraging excursion. Advancing silently at the head of 300 men the sentinel at the gate mistook his party for that which had marched out the preceding day, and allowed them to pass unchallenged, and almost in an instant they seized the blockhouse and two redoubts before the alarm was given. Major Sutherland, commandant of the post, with sixty Hessians, entered a redoubt and began a brisk fire on the assailants. This gave an extensive notice of the attack, and the firing of guns in New York, and by the shipping in the roads, proved that the alarm was widely spread. In order, therefore, not to hazard the loss of his party, Lee retreated with the loss of two men killed and three wounded, carrying along with him about 150 prisoners. Notwithstanding the difficulties and dangers which he had to encounter, he effected his retreat. It was not his design to keep possession of the place, but to carry off the garrison, reflect credit on the American arms, and encourage a spirit of enterprise in the army. {2}

The expedition planned by Washington for chastising the Indians who had committed such atrocities last year on the frontier and particularly at Wyoming, was the most important of this campaign. Washington entrusted the command of it to General Sullivan. The largest division of the army employed on that service assembled at Wyoming. Another division, which had wintered on the Mohawk, marched under the orders of Gen. James Clinton and joined the main body at the confluence of the two great sources of the Susquehanna. On the 22d. of August (1779), the united force, amounting to nearly 5,000 men, under the command of General Sullivan, proceeded up the Cayuga or western branch of the last-named river which led directly into the Indian country. The preparations for this expedition did not escape the notice of those against whom it was directed, and the Indians seem fully to have penetrated Sullivan's plan of operation. Formidable as his force was they determined to meet him and try the fortune of a battle. They were about 1,000 strong, commanded by the two Butlers, Guy Johnson, M'Donald, and Brandt. They chose their ground with judgment and fortified their camp at some distance above Chemung and within a mile of Newtown.

There Sullivan attacked them and, after a short but spirited resistance, they retreated with precipitation. The Americans had thirty men killed or

wounded; the Indians left only eleven dead bodies on the field, but they were so discouraged by this defeat that they abandoned their villages and fields to the unresisted ravages of the victor, who laid waste their towns and orchards, so that they might have no inducement again to settle so near the settlements of the whites.

The severity of this proceeding has been censured by some writers, but it requires no apology. Nothing could convince the savages of the injustice and inhumanity of their usual system of warfare on the frontier so effectually as to give them a specimen of it, even in a milder form, in their own country. Sullivan desolated their villages and farms, but we do not learn that he took any scalps or murdered any women or children, or tortured any of his prisoners. The measure of retaliation which he dealt to the miscreants who sacked Wyoming was gentleness and humanity when compared with their proceedings. It is only to be regretted that his retaliation could not have been applied to the homes of the British and Tories who assisted the Indians at Wyoming. Sullivan and his army received a vote of thanks from Congress, but the general's health failing, he soon resigned his commission and retired from the service.

Sullivan's orders from Washington exculpate him from all blame as to the mode of punishing the Indians. "Of the expedition," Washington says, in writing to him, "the immediate objects are the total destruction and devastation of their settlements and the capture of as many prisoners of every age and sex as possible." Washington knew that this kind of warfare was the only possible means of putting an end to Indian wars. Any other mode of proceeding, he was fully aware, was treachery and cruelty to his own countrymen.

A few days after the surprise of Paulus Hook by Major Lee, the long-expected fleet from Europe, under the command of Admiral Arbuthnot, having on board a reinforcement for the British army, arrived at New York. This reinforcement, however, did not enable Clinton to enter immediately on that active course of offensive operations which he had meditated. It was soon followed by the Count D'Estaing, who arrived on the southern coast of America with a powerful fleet, after which Clinton deemed it necessary to turn all his attention to his own security. Rhode Island and the posts up the North river were evacuated and the whole army was collected in New York, the fortifications of which were carried on with unremitting industry.

The Count D'Estaing and Admiral Byron having sailed about the same time from the coast of North America, met in the West Indies, where the war was carried on with various success. St. Lucia surrendered to the British in compensation for which the French took St. Vincent's and Grenada. About the time of the capture of the latter island D'Estaing received reinforcements which gave him a decided naval superiority, after which a battle was fought between the two hostile fleets, in which the count claimed the victory and in which so many of the British ships were disabled that the admiral was compelled to retire into port in order to refit.

Early in May (1779) Sir Henry Clinton had dispatched from New York a squadron under Sir George Collier with 2,500 troops under General Mathews, who entered Chesapeake Bay, and, after taking possession of Portsmouth, sent out parties of soldiers to Norfolk, Suffolk, Gosport, and other places in the neighborhood, where there were large deposits of provisions and military and naval stores, and many merchant vessels, some on the stocks and some laden with valuable cargoes. These were all burnt and the whole neighborhood subjected to plunder and devastation. This was a severe blow to the commerce on which Congress placed great dependence for supplies to the army and for sustaining its own credit.

In compliance with the solicitations of General Lincoln and the authorities of South Carolina, D'Estaing directed his course to the coast of Georgia with twenty-two ships of the line and eleven frigates having on board 6,000 soldiers, and arrived so suddenly on the southern coast of America that the Experiment, of fifty guns, and three frigates, fell into his hands. A vessel was sent to Charleston with information of his arrival and a plan was concerted for the siege of Savannah.

General Lincoln, who, after the fall of Savannah, had been sent to Charleston to take command of the southern department of the army, was to cooperate with D'Estaing's fleet and army in the siege. Instead of assaulting the place at the earliest practicable moment, they granted Prevost, the British commander at Savannah, an armistice of twenty-four hours, during which he received reinforcements and set them at defiance. They then commenced a siege by regular approaches on land and cannonade and bombardment from D'Estaing's formidable fleet in the harbor. This lasted for three weeks.

On the 9th of October (1779), without having effected a sufficient breach, the united French and American forces stormed the works. Great gallantry was displayed by the assailants. The French and American standards were both planted on the redoubts. But it was all in vain. They were completely repulsed, the French losing 700 and the Americans 340 men. Count Pulaski was among the slain.

The loss of the garrison was astonishingly small. In killed and wounded it amounted only to fifty-five—so great was the advantage of the cover afforded by their works. After this repulse the Count D'Estaing announced to General Lincoln his determination to raise the siege. The remonstrances of that officer were unavailing, and the removal of the heavy ordnance and stores was commenced. This being accomplished, both armies moved from their ground on the evening of the 18th of October (1779). The Americans, recrossing the Savannah at Zubly's Ferry, again encamped in South Carolina, and the French re-embarked. D'Estaing himself sailed with a part of his fleet for France; the rest proceeded to the West Indies.

Although the issue of this enterprise was the source of severe chagrin and mortification the prudence of General Lincoln suppressed every appearance of dissatisfaction, and the armies separated with manifestations of reciprocal esteem. The hopes which had brought the militia into the field being disappointed they dispersed, and the affairs of the southern States wore a more gloomy aspect than at any former period.

During the siege of Savannah an ingenious enterprise of partisan warfare was executed by Colonel White of the Georgia line. Before the arrival of the French fleet in the Savannah, a British captain with in men had taken post near the river Ogeeche, twenty-five miles from Savannah. At the same place were five British vessels, four of which were armed, the largest with fourteen guns, the least with four, and the vessels were manned with forty sailors. Late at night, on the 30th of September (1779), White, who had only six volunteers, including his own servant, kindled a number of fires in different places so as to exhibit the appearance of a considerable encampment, practiced several other corresponding artifices, and then summoned the captain instantly to surrender. That officer, believing that he was about to be attacked by a superior force and that nothing but immediate submission could save him and his men from destruction, made no defense. The stratagem was carried on with so much address that the prisoners,

amounting to 141, were secured and conducted to the American post at Sunbury, twenty-five miles distant.

On receiving intelligence of the situation of Lincoln, Congress passed a resolution requesting Washington to order the North Carolina troops, and such others as could be spared from the northern army, to the aid of that in the South and assuring the States of South Carolina and Georgia of the attention of government to their preservation, but requesting them, for their own defense to comply with the recommendations formerly made respecting the completion of their Continental regiments, and the government of their militia while in actual service.

Washington had already received (November 1779) intelligence of the disastrous result of D'Estaing and Lincoln's attack on Savannah, and had formed his plans of operation before Congress sent assurances of aid to the South. Giving up all expectation of cooperation from the French fleet, he disbanded the New York and Massachusetts militia and made his arrangements for the winter. He ordered one division of the army under General Heath to the Highlands to protect West Point and the posts in that neighborhood, and with the other division he went into winter quarters near Morristown, the army being quartered in huts, as at Valley Forge. The cavalry were sent to Connecticut.

Washington had already penetrated the design of the enemy to make the southern States their principal field of operation, and accordingly he dispatched to Charleston the North Carolina brigade in November, and the whole of the Virginia line in December. On the other hand, Clinton and Cornwallis embarked with a large force in transports convoyed by Admiral Arbuthnot with a fleet of five ships of the line and several frigates, and sailed on the 26th of December 1779, for Savannah. Knyphausen was left in command of the garrison of New York. {3}

Washington's own summary of the operations of this campaign (1779) is contained in a letter to Lafayette in the following terms: "The operations of the enemy this campaign have been confined to the establishment of works of defense, taking a post at King's Ferry, and burning the defenseless towns of New Haven, Fairfield, and Norwalk, on the Sound, within reach of their shipping, where little else was or could be opposed to them than the cries of distressed women and children; but these were offered in vain. Since these notable exploits they have never stepped out of their works or beyond their

lines. How a conduct of this kind is to effect the conquest of America, the wisdom of a North, a Germaine, or a Sandwich can best decide. It is too deep and refined for the comprehension of common understandings and the general run of politicians."

1. Footnote: For their bravery and good conduct at Stony Point, Wayne received a gold, and Stewart and Fleury silver medals, with the thanks of Congress. A separate medal was designed and struck for each of them.

2. Footnote: Lee, for this exploit at Paulus Hook, was presented with a gold medal by Congress.

3. Footnote: Irving

CHAPTER XVIII. — CAMPAIGN IN THE NORTH—ARNOLD'S TREASON. 1780.

During the winter which followed the campaign of 1779, Washington, with his army huddled on the heights of Morristown, was beset by pressing and formidable difficulties. The finances of Congress were in a most depressed condition, and the urgent wants of the army were but ill supplied. The evils of short enlistment, though distinctly understood and strongly felt, could not be remedied, and the places of those men who were leaving the army on the expiration of their stipulated term of service could not easily be filled up. Besides, the troops were in danger of perishing by cold and famine. During the preceding year General Greene and Colonel Wadsworth had been at the head of the quartermaster and commissary departments, and notwithstanding their utmost exertions, the wants of the army had been ill supplied. After being put into winter quarters it was in great danger of being dissolved by want of provisions or of perishing through famine. The Colonial paper money was in a state of great and increasing depreciation, and in order to check the alarming evil Congress, which, like other popular assemblies had in it no small share of ignorance and self-sufficiency, resolved to diminish the circulation and keep up the value of their paper currency by withholding the necessary supplies from the public agents. This foolish resolution threatened the ruin of the army. Nobody was willing to make contracts with the public and some of those entered into were not fulfilled.

Congress, jealous of the public agents, because ignorant of what was really necessary, repeatedly changed the form of its engagements with them, and, at length, by its fluctuating policy, real wants, and imprudent parsimony, brought matters to such extremities that Washington was compelled to require the several counties of the State of New Jersey to furnish his army with certain quantities of provisions within six days in order to prevent them from being taken by force. Although the province was much exhausted, yet the people instantly complied with the requisition and furnished a temporary supply to the army. {1}

Soon after Clinton sailed on his expedition against Charleston a frost of unexampled intensity began. The Hudson, East river, and all the waters around New York were so completely frozen that an army with its artillery and wagons might have crossed them in all directions with perfect safety. New York lost all the advantages of its insular situation and became easily accessible on every side. The city was fortified by the British, but on account of its insular situation, several parts being considered of difficult access were left undefended. By the strength of the ice, however, every point became exposed, and in that unforeseen emergency, Knyphausen who commanded in the city with a garrison of 10,000 men took every prudent precaution for his defense and fortified every vulnerable part, but the inefficiency of the American army was his best security. Washington easily perceived the advantages which the extraordinary frost gave him, but from the destitute state of his army he was unable to avail himself of them. The army under his immediate command was inferior in number to the garrison of New York; it was also ill clad, scantily supplied with provisions, and in no condition to undertake offensive operations.

The British had a post on Staten Island, and as the ice opened a free communication between the island and the New Jersey coast, Washington, notwithstanding the enfeebled condition of his army resolved to attack the garrison, and appointed Lord Stirling to conduct the enterprise. The night of the 14th of January (1780) was chosen for the attempt, but, though the Americans used every precaution, the officer commanding on Staten Island discovered their intention and took effectual measures to defeat it. The attack was repulsed, but little loss was sustained on either side.

The extreme cold occasioned much suffering in New York by want of provisions and fuel, for as the communication by water was entirely stopped the usual supplies, were cut off. The demand for fuel in particular was so pressing that it was found expedient to break up some old transports, and to pull down some uninhabited wooden houses for the purpose of procuring that necessary article. As the British paid in ready money for provisions or firewood carried within the lines many of the country people, tempted by the precious metals, so rare among them, tried to supply the garrison. The endeavors of the British to encourage and protect this intercourse and the exertions of the Americans to prevent it brought on a sort of partisan warfare in which the former most frequently had the advantage. In one of the most important of those encounters, early in

February (1780), near White Plains, a captain and 14 men of a Massachusetts regiment were killed on the spot, 17 were wounded, and 90, with Colonel Thompson, the officer who commanded the party, were made prisoners. Washington, writing to General Heath respecting this affair, says: "It is some consolation that our officers and men appear to have made a brave resistance. I cannot help suspecting that our officers in advance quarter too long in a place. By these means the enemy by their emissaries gain a perfect knowledge of their cantonments and form their attacks accordingly. Were they to shift constantly the enemy could scarcely ever attain this knowledge."

Congress found itself placed in very difficult circumstances. It always contained a number of men of talents and manifested no small share of vigor and activity. Many of the members were skilful in the management of their private affairs, and having been successful in the world thought themselves competent to direct the most important national concerns, although unacquainted with the principles of finance, legislation, or war. Animated by that blind presumption which generally characterizes popular assemblies they often entered into resolutions which discovered little practical wisdom. In pecuniary matters they were dilatory and never anticipated trying emergencies, or made provision for probable events, till they were overtaken by some urgent necessity. Hence they were frequently deliberating about levying troops and supplying the army when the troops ought to have been in the field, and the army fully equipped for active service. This often placed Washington in the most trying and perilous circumstances.

Congress had solemnly resolved not to exceed \$200,000,000 in Continental bills of credit. In November, 1779, the whole of that sum was issued and expended also. The demand on the States to replenish the treasury by taxes had not been fully complied with, and even although it had been completely answered would not have furnished a sum adequate to the expenses of government. Instead of maturely considering and digesting a plan, adhering to it, and improving it by experience, Congress often changed its measures, and even in the midst of those distresses which had brought the army to the verge of dissolution, was busy in devising new and untried expedients for supporting it. As the treasury was empty and money could not be raised, Congress, on the 25th of February (1780), resolved to call on the several States for their proportion of provisions, spirits, and

forage for the maintenance of the army during the ensuing campaign, but specified no time within which these were to be collected, and consequently the States were in no haste in the matter. In order to encourage and facilitate compliance with this requisition it was further resolved that any State which should have taken the necessary measures for furnishing its quota, and given notice thereof to Congress, should be authorized to prohibit any Continental quartermaster or commissary from purchasing within its limits.

Every man who had a practical knowledge of the subject easily perceived the defective nature and dangerous tendency of this arrangement. It was an attempt to carry on the war rather by separate provincial efforts than by a combination of national strength, and if the army received from any State where it was acting the appointed quantity of necessaries it had no right, though starving, to purchase what it stood in need of. Besides the carriage of provisions from distant parts was troublesome, expensive, and sometimes impracticable.

The troops were ill clothed, their pay was in arrear, and that of the officers, owing to the great depreciation of the paper currency, was wholly unequal to their decent maintenance. These multiplied privations and sufferings soured the temper of the men, and it required all the influence of Washington to prevent many of the officers from resigning their commissions. The long continuance of want and hardship produced relaxation of discipline which at length manifested itself in open mutiny. On the 25th of May (1780) two regiments belonging to Connecticut paraded under arms, with the avowed intention of returning home, or of obtaining subsistence at the point of the bayonet. The rest of the soldiers, though they did not join in the mutiny, showed little disposition to suppress it. At length the two regiments were brought back to their duty, but much murmuring and many complaints were heard. While the army was in such want the inhabitants of New Jersey, where most of the troops were stationed, were unavoidably harassed by frequent requisitions, which excited considerable discontent. Reports of the mutinous state of the American army and of the dissatisfaction of the people of New Jersey, probably much exaggerated, were carried to General Knyphausen, who, believing the American soldiers ready to desert their standards and the inhabitants of New Jersey willing to abandon the Union, on the 6th of June (1780), passed from Staten Island to Elizabethtown, in Jersey, with 5,000 men. That movement was intended to encourage the mutinous disposition of the American troops, and to fan the

flame of discontent among the inhabitants of the province. Early next morning he marched into the country toward Springfield by the way of Connecticut Farms, a flourishing plantation, so named because the cultivators had come from Connecticut. But even before reaching that place which was only five or six miles from Elizabethtown, the British perceived that the reports which they had received concerning the discontent of the Americans were incorrect, for on the first alarm the militia assembled with great alacrity and aided by some small parties of regular troops, annoyed the British by an irregular but galling fire of musketry, wherever the nature of the ground presented a favorable opportunity, and although those parties were nowhere strong enough to make a stand, yet they gave plain indications of the temper and resolution which were to be encountered in advancing into the country. At Connecticut Farms the British detachment halted. The settlers were known to be zealous in the American cause and therefore with a little spirit of revenge, the British, among whom was General Tryon, laid the flourishing village, with its church and the minister's house, in ashes. Here occurred one of those affecting incidents which being somewhat out of the ordinary course of the miseries of war make a deep impression on the public mind. Mr. Caldwell, minister of the place, had withdrawn toward Springfield, but had left his wife and family behind believing them to be in no danger. The British advanced to the industrious and peaceful village. Mrs. Caldwell, trusting to her sex for safety and unsuspecting of harm, was sitting in her house with her children around her when a soldier came up, leveled his musket at the window, and shot her dead on the spot in the midst of her terrified family. On the intercession of a friend the dead body was permitted to be removed when the house was set on fire. This atrocious deed excited such general horror and detestation that the British thought proper to disavow it, and to impute the death of Mrs. Caldwell to a random shot from the retreating militia, though the militia did not fire a musket in the village. The wanton murder of the lady might be the unauthorized act of a savage individual, but can the burning of the house after her death be accounted for in the same way? Knyphausen was a veteran officer and cannot be supposed capable of entering into local animosities or of countenancing such brutality, but Tryon was present and his conduct on other occasions was not unblemished.

Mr. Caldwell had rendered himself particularly obnoxious to the enemy, and was cordially hated by Tryon for his zealous devotion to the patriotic

cause. He had served as a chaplain in the army, was exceedingly popular among the patriots of New Jersey, had given up his church to be used as a hospital, and had exerted himself by eloquent appeals to arouse his countrymen to unflinching resistance against the enemy. For this Tryon caused his church to be burnt and did not prevent the soldiers from shooting his wife.

After destroying the Connecticut Farms, Knyphausen advanced toward Springfield, where the Jersey brigade, under General Maxwell, and a large body of militia had taken an advantageous position and seemed resolved to defend it. General Knyphausen, however, had met with a reception so different from what he expected that without making any attempt on the American post he withdrew during the night to Elizabethtown.

On being informed of the invasion of New Jersey, Washington put his army in motion early on the morning of the day in which Knyphausen marched from Elizabethtown and proceeded to the Short hills behind Springfield, while the British were in the vicinity of that place. Feeble as his army was, he made the necessary dispositions for fighting, but the unexpected retreat of Knyphausen rendered a battle unnecessary. The British were followed by an American detachment, which attacked their rear guard next morning but was repulsed. Instead of returning to New York, Knyphausen lingered in the vicinity of Elizabethtown and on Staten Island, and Washington, unwilling with his inadequate force to hazard an engagement except on advantageous ground, remained on the hills near Springfield to watch the movements of the British army. At that time the army under the immediate orders of Washington did not exceed 4,000 effective men.

On the 18th of June (1780), Sir Henry Clinton returned from South Carolina with about 4,000 men, and after receiving this reinforcement the British force in New York and its dependencies amounted to 12,000 effective and regular troops, most of whom could be brought into the field for any particular service; besides these, the British commander had about 4,000 militia and refugees for garrison duty. The British army directed on any one point would have been irresistible; therefore Washington could only follow a wary policy, occupying strong ground, presenting a bold front, and concealing the weakness of his army as far as possible.

The embarkation of troops by Sir Henry Clinton awakened the apprehensions of Washington lest he should sail up the Hudson and attack the posts in the Highlands. Those posts had always been objects of much solicitude to Washington, and he was extremely jealous of any attack upon them. In order to be in readiness to resist any such attack, he left General Greene at Springfield, with 700 Continentals, the Jersey militia, and some cavalry, and proceeded toward Pompton with the main body of the army. Sir Henry Clinton, after having perplexed the Americans by his movements, early on the morning of the 23d of June (1780), rapidly advanced in full force from Elizabethtown toward Springfield. General Greene hastily assembled his scattered detachments and apprised Washington of the march of the royal army, who instantly returned to support Greene's division. The British marched in two columns—one on the main road leading to Springfield and the other on the Vauxhall road. Greene scarcely had time to collect his troops at Springfield and make the necessary dispositions when the royal army appeared before the town and a cannonade immediately began. A fordable rivulet, with bridges corresponding to the different roads, runs in front of the place. Greene had stationed parties to guard the bridges and they obstinately disputed the passage, but after a smart conflict they were overpowered and compelled to retreat.

Greene then fell back and took post on a range of hills, where he expected to be again attacked. But the British, instead of attempting to pursue their advantage, contented themselves with setting fire to the village and laying the greater part of it in ashes. Discouraged by the obstinate resistance they had received and ignorant of the weakness of the detachment which opposed them, they immediately retreated to Elizabethtown, pursued with the utmost animosity by the militia, who were provoked at the burning of Springfield. They arrived at Elizabethtown about sunset, and, continuing their march to Elizabeth Point, began at midnight to pass over to Staten Island. Before 6 next morning they had entirely evacuated the Jerseys and removed the bridge of boats which communicated with Staten Island.

In the skirmish at Springfield the Americans had about 20 men killed and 60 wounded. The British suffered a corresponding loss. Clinton's object in this expedition seems to have been to destroy the American magazines in that part of the country. But the obstinate resistance which he met with at Springfield deterred him from advancing into a district abounding in

difficult passes, where every strong position would be vigorously defended. He seems also to have been checked by the apprehension of a fleet and army from France.

Washington was informed of Clinton's march soon after the British left Elizabethtown, but, though he hastily returned, the skirmish at Springfield was over before he reached the vicinity of that place.

After Clinton left the Jerseys, Washington planned an enterprise against a British post at Bergen point, on the Hudson, opposite New York, garrisoned by seventy Loyalists. It was intended to reduce the post and also to carry off a number of cattle on Bergen Neck, from which the garrison of New York occasionally received supplies of fresh provisions. General Wayne was appointed to conduct the enterprise. With a respectable force he marched against the post, which consisted of a blockhouse covered by an abattis and palisade. Wayne pointed his artillery against the blockhouse, but his field pieces made no impression on the logs. Galled by the fire from the loopholes, some of his men rushed impetuously through the abattis and attempted to storm the blockhouse, but they were repulsed with considerable loss. Though the Americans, however, failed in their attempt against the post, they succeeded in driving off most of the cattle.

On the commencement of hostilities in Europe, Lafayette, as we have seen, returned home in order to offer his services to his King, still, however, retaining his rank in the army of Congress. His ardor in behalf of the Americans remained unabated and he exerted all his influence with the court of Versailles to gain its effectual support to the United States. His efforts were successful and the King of France resolved vigorously to assist the Americans both by sea and land. Having gained this important point, and perceiving that there was no need for his military services in Europe, he obtained leave from his sovereign to return to America and join his former companions in arms. He landed at Boston toward the end of April (1780), and, on his way to Congress, called at the headquarters of Washington and informed him of the powerful succor which might soon be expected from France. He met with a most cordial reception both from Congress and Washington on account of his high rank, tried friendship, and distinguished services.

The assistance expected from their powerful ally was very encouraging to the Americans, but called for corresponding exertions on their part.

Washington found himself in the most perplexing circumstances; his army was feeble, and he could form no plan for the campaign till he knew what forces were to be put under his orders. His troops, both officers and privates, were ill clothed and needed to be decently appareled before they could be led into the field to cooperate with soldiers in respectable uniforms, for his half-naked battalions would only have been objects of contempt and derision to their better-dressed allies. In order to supply these defects and to get his army in a state of due preparation before the arrival of the European auxiliaries, Washington made the most pressing applications to Congress and to the several State Legislatures. Congress resolved and recommended, but the States were dilatory, and their tardy proceedings ill accorded with the exigencies of the case or with the expectations of those who best understood the affairs of the Union. Even on the 4th of July (1780), Washington had the mortification to find that few new levies had arrived in camp and some of the States had not even taken the trouble to inform him of the number of men they intended to furnish.

In the month of June the State of Massachusetts had resolved to send a reinforcement, but no part of it had yet arrived. About the same time a voluntary subscription was entered into in Philadelphia for the purpose of providing bounties to recruits to fill up the Pennsylvania line, and the President or Vice-President in council was empowered, if circumstances required it, to put the State under martial law.

The merchants and other citizens of Philadelphia, with a zeal guided by that sound discretion which turns expenditure to the best account, established a bank, for the support of which they subscribed £315,000, Pennsylvania money, to be paid, if required, in specie, the principal object of which was to supply the army with provisions. By the plan of this bank its members were to derive no emolument whatever from the institution. For advancing their credit and their money they required only that Congress should pledge the faith of the Union to reimburse the costs and charges of the transaction in a reasonable time, and should give such assistance to its execution as might be in their power.

The ladies of Philadelphia, too, gave a splendid example of patriotism by large donations for the immediate relief of the suffering army. {2}

This example was extensively followed, but it is not by the contributions of the generous that a war can or ought to be maintained. The purse of a

nation alone can supply the expenditures of a nation, and when all are interested in a contest all ought to contribute to its support. Taxes and taxes only can furnish for the prosecution of a national war means which are just in themselves or competent to the object.

Notwithstanding these donations the distresses of the army, for clothing especially, still continued and were the more severely felt when a cooperation with French troops was expected. So late as the 20th of June (1780) Washington informed Congress that he still labored under the painful and humiliating embarrassment of having no shirts for the soldiers, many of whom were destitute of that necessary article. "For the troops to be without clothing at any time," he added, "is highly injurious to the service and distressing to our feelings, but the want will be more peculiarly mortifying when they come to act with those of our allies. If it be possible, I have no doubt immediate measures will be taken to relieve their distress.

"It is also most sincerely wished that there could be some supplies of clothing furnished to the officers. There are a great many whose condition is still miserable. This is, in some instances, the case with the whole lines of the States. It would be well for their own sakes and for the public good if they could be furnished. They will not be able, when our friends come to cooperate with us, to go on a common routine of duty, and if they should, they must, from their appearance, be held in low estimation."

This picture presents in strong colors the real patriotism of the American army. One heroic effort, though it may dazzle the mind with its splendor, is an exertion most men are capable of making, but continued patient suffering and unremitting perseverance in a service promising no personal emolument and exposing the officer unceasingly not only to wants of every kind, but to those circumstances of humiliation which seem to degrade him in the eyes of others, demonstrate a fortitude of mind, a strength of virtue, and a firmness of principle which ought never to be forgotten.

Washington was greatly embarrassed by his uncertainty with respect to the force which he might count upon to cooperate with the expected succors from France. Writing to Congress on this subject he said: "The season is come when we have every reason to expect the arrival of the fleet, and yet, for want of this point of primary consequence, it is impossible for me to form a system of cooperation. I have no basis to act upon, and, of course, were this generous succor of our ally now to arrive, I should find myself in

the most awkward, embarrassing, and painful situation. The general and the admiral, from the relation in which I stand, as soon as they approach our coast, will require of me a plan of the measures to be pursued, and there ought of right to be one prepared; but, circumstanced as I am, I cannot even give them conjectures. From these considerations I have suggested to the committee, by a letter I had the honor of addressing them yesterday, the indispensable necessity of their writing again to the States, urging them to give immediate and precise information of the measures they have taken and of the result. The interest of the States, the honor and reputation of our councils, the justice and gratitude due to our allies, all require that I should, without delay, be enabled to ascertain and inform them what we can or cannot undertake. There is a point which ought now to be determined, on the success of which all our future operations may depend, on which, for want of knowing our prospects, I can make no decision. For fear of involving the fleet and army of our allies in circumstances which would expose them, if not seconded by us, to material inconvenience and hazard, I shall be compelled to suspend it, and the delay may be fatal to our hopes."

While this uncertainty still continued, the expected succors from France, consisting of a fleet of eight ships of the line, with frigates and other vessels, under the Chevalier de Ternay, having about 6,000 troops on board under General the Count de Rochambeau, reached Rhode Island on the evening of the 10th of July (1780), and in a few days afterward Lafayette arrived at Newport from Washington's headquarters to confer with his countrymen.

At the time of the arrival of the French in Rhode Island, Admiral Arbuthnot had only four sail of the line at New York, but in a few days Admiral Graves arrived from England with six sail of the line, which gave the British a decided superiority over the French squadron, and therefore Sir Henry Clinton, without delay, prepared for active operations. He embarked about 8,000 men and sailed with the fleet to Huntington bay, in Long Island, with the intention of proceeding against the French at Newport. The militia of Massachusetts and Connecticut were ordered by Washington to join the French forces in Rhode Island, and the combined army there thought itself able to give the British a good reception.

As the garrison of New York was weakened by the sailing of the armament under Clinton, Washington, having received considerable

reinforcements, suddenly crossed the North river and advanced toward New York; that movement brought Clinton back to defend the place and consequently Washington proceeded no further in his meditated enterprise.

The want of money and of all necessities still continued in the American camp, and the discontent of the troops, gradually increasing, was matured into a dangerous spirit of insubordination. The men, indeed, bore incredible hardships and privations with unexampled fortitude and patience, but the army was in a state of constant fluctuation; it was composed, in a great measure, of militia harassed by perpetual service and obliged to neglect the cultivation of their farms and their private interests in order to obey the calls of public duty, and of soldiers on short enlistments, who never acquired the military spirit and habits.

In consequence of an appointment, Washington and suite set out to a conference with Count Rochambeau and Admiral de Ternay, and on the 21st of September (1780) met them at Hartford, in Connecticut, where they spent a few days together, and conversed about a plan for the next campaign.

The conference was useful in making the respective commanders well acquainted with each other, and promoting a spirit of harmony between them; but it led to no settled plan for the next campaign. A plan of operations for the combined forces, which had been drawn up by Washington and sent to Rochambeau by Lafayette when he went to Newport, had contemplated the superiority of the naval force of the French, which had now ceased to exist in consequence of the arrival of Admiral Graves with a fleet of six ships of the line. It was consequently agreed that nothing could be done in the way of offensive movements until the arrival of a second division of the French fleet and army from Brest, which was expected, or that of the Count de Guichen from the West Indies. In the sequel, neither of these arrivals took place. The second French division was blockaded at Brest, and never came to this country, and de Guichen sailed direct to France from the West Indies. Meantime Admiral Arbuthnot blockaded the French fleet at Newport, and Rochambeau's army remained there for its protection. Both the parties remained watching each other's movements, and depending on the operations of the British and French fleets. Washington crossed the Hudson to Tappan and remained there till winter.

Washington did not relinquish without infinite chagrin the sanguine expectations he had formed of rendering this campaign decisive of the war. Never before had he indulged so strongly the hope of happily terminating the contest. In a letter to an intimate friend, this chagrin was thus expressed: "We are now drawing to a close an inactive campaign, the beginning of which appeared pregnant with events of a very favorable complexion. I hoped, but I hoped in vain, that a prospect was opening which would enable me to fix a period to my military pursuits and restore me to domestic life. The favorable disposition of Spain, the promised succor from France, the combined force in the West Indies, the declaration of Russia (acceded to by other powers of Europe, humiliating the naval pride and power of Great Britain), the superiority of France and Spain by sea in Europe, the Irish claims and English disturbances, formed in the aggregate an opinion in my breast (which is not very susceptible of peaceful dreams), that the hour of deliverance was not far distant; for that, however unwilling Great Britain might be to yield the point, it would not be in her power to continue the contest. But, alas, these prospects, flattering as they were, have proved delusive, and I see nothing before us but accumulating distress. We have been half of our time without provisions and are likely to continue so. We have no magazines nor money to form them. We have lived upon expedients until we can live no longer. In a word, the history of the war is a history of false hopes and temporary devices, instead of system and economy. It is in vain, however, to look back, nor is it our business to do so. Our case is not desperate if virtue exists in the people, and there is wisdom among our rulers. But to suppose that this great revolution can be accomplished by a temporary army, that this army will be subsisted by State supplies and that taxation alone is adequate to our wants is in my opinion absurd, and as unreasonable as to expect an inversion of the order of nature to accommodate itself to our views. If it were necessary it could be easily proved to any person of a moderate understanding that an annual army or any army raised on the spur of the occasion besides being unqualified for the end designed is, in various ways that could be enumerated, ten times more expensive than a permanent body of men under good organization and military discipline, which never was nor will be the case with raw troops. A thousand arguments, resulting from experience and the nature of things, might also be adduced to prove that the army, if it is to depend upon State supplies, must disband or starve, and that taxation alone (especially at this

late hour) cannot furnish the means to carry on the war. Is it not time to retract from error and benefit by experience? Or do we want further proof of the ruinous system we have pertinaciously adhered to?"

While the respective armies were in the state of inaction to which we have just referred, the whole country was astounded by the discovery of Arnold's treason. The details of this sad affair disclosed traits in the character of this officer which were previously unknown, and, by the public generally, unsuspected.

The great service and military talents of General Arnold, his courage in battle and patient fortitude under excessive hardships had secured to him a high place in the opinion of the army and of his country. Not having sufficiently recovered from the wounds received before Quebec and at Saratoga to be fit for active service, and having large accounts to settle with the government, which required leisure, he was, on the evacuation of Philadelphia in 1778, appointed to the command in that place.

Unfortunately that strength of principle and correctness of judgment which might enable him to resist the various seductions to which his fame and rank exposed him in the metropolis of the Union, were not associated with the firmness which he had displayed in the field and in the most adverse circumstances. Yielding to the temptations of a false pride and forgetting that he did not possess the resources of private fortune, he indulged in the pleasures of a sumptuous table and expensive equipage, and soon swelled his debts to an amount which it was impossible for him to discharge. Unmindful of his military character, he engaged in speculations which were unfortunate, and with the hope of immense profits took shares in privateers which were unsuccessful. His claims against the United States were great and he looked to them for the means of extricating himself from the embarrassments in which his indiscretions had involved him; but the commissioners to whom his accounts were referred for settlement had reduced them considerably, and on his appeal from their decision to Congress, a committee reported that the sum allowed by the commissioners was more than he was entitled to receive.

He was charged with various acts of extortion on the citizens of Philadelphia, and with peculating on the public funds. {3}

Not the less soured by these multiplied causes of irritation, from the reflection that they were attributable to his own follies and vices, he gave

full scope to his resentments, and indulged himself in expressions of angry reproach against what he termed the ingratitude of his country, which provoked those around him, and gave great offense to Congress. Having become peculiarly odious to the government of Pennsylvania, the executive of that State (President Reed, formerly aid to Washington) exhibited formal charges against him to Congress, who directed that he should be arrested and brought before a court-martial. His trial was concluded late in January, 1779, and he was sentenced to be reprimanded by the Commander-in-Chief. This sentence was approved by Congress and carried into execution. {4}

From the time the sentence against him was approved, if not sooner, his proud unprincipled spirit revolted from the cause of his country and determined him to seek an occasion to make the objects of his resentment the victims of his vengeance.

Turning his eyes on West Point as an acquisition which would give value to treason and inflict a mortal wound on his former friends, he sought the command of that fortress for the purpose of gratifying both his avarice and his hate.

To New York the safety of West Point was peculiarly interesting, and in that State the reputation of Arnold was particularly high. To its delegation he addressed himself; and one of its members had written a letter to Washington, suggesting doubts respecting the military character of General Robert Howe, to whom its defense was then entrusted, and recommending Arnold for that service. This request was not forgotten. Some short time afterward General Schuyler mentioned to Washington a letter he had received from Arnold intimating his wish to join the army, but stating his inability, in consequence of his wounds, to perform the active duties of the field. Washington observed that, as there was a prospect of a vigorous campaign he should be gratified with the aid of General Arnold—that so soon as the operations against New York should commence, he designed to draw his whole force into the field, leaving even West Point to the care of invalids and a small garrison of militia. Recollecting, however, the former application of a member of Congress respecting this post, he added that "if, with this previous information, that situation would be more agreeable to him than a command in the field, his wishes should certainly be indulged."

This conversation being communicated to Arnold, he caught eagerly at the proposition, though without openly discovering any solicitude on the

subject, and in the beginning of August (1780) repaired to camp, where he renewed the solicitations which had before been made indirectly.

At this juncture Clinton embarked on an expedition he meditated against Rhode Island, and Washington was advancing on New York. He offered Arnold the left wing of the army, which he declined under the pretexts mentioned in his letter to Schuyler.

Incapable of suspecting a man who had given such distinguished proofs of courage and patriotism, Washington was neither alarmed at his refusal to embrace so splendid an opportunity of recovering the favor of his countrymen nor at the embarrassment accompanying that refusal. Pressing the subject no further, he assented to the request which had been made and invested Arnold with the command of West Point. Previous to his soliciting this station Arnold had, in a letter to Colonel Robinson, of the British army, signified his change of principles, and his wish to restore himself to the favor of his prince by some signal proof of his repentance. This letter opened the way to a correspondence with Clinton, the immediate object of which, after obtaining the appointment he had solicited, was to concert the means of delivering the important post he commanded to the British general.

Major John André, an aide-de-camp of Clinton, and adjutant-general of the British army, was selected as the person to whom the maturing of Arnold's treason, and the arrangements for its execution should be entrusted. A correspondence was carried on between them under a mercantile disguise in the feigned names of Gustavus and Anderson; and at length, to facilitate their communications, the Vulture, sloop-of-war, moved up the North river and took a station convenient for the purpose, but not so near as to excite suspicion.

The time when Washington met Rochambeau at Hartford was selected for the final adjustment of the plan, and as a personal interview was deemed necessary André came up the river and went on board the Vulture. The house of a Mr. Smith, without the American posts, was appointed for the interview, and to that place both parties repaired in the night—André being brought under a pass for John Anderson in a boat dispatched from the shore. While the conference was yet unfinished, daylight approached, and to avoid discovery Arnold proposed that André should remain concealed until the succeeding night. They continued together during the day, and when, in the

following night, his return to the Vulture was proposed, the boatmen refused to carry him because she had shifted her station during the day, in consequence of a gun which was moved to the shore without the knowledge of Arnold and brought to bear upon her. This embarrassing circumstance reduced him to the necessity of endeavoring to reach New York by land. To accomplish this purpose, he reluctantly yielded to the urgent representations of Arnold, and laying aside his regimentals, which he had hitherto worn under a surtout, put on a plain suit of clothes and received a pass from Arnold, authorizing him, under the name of John Anderson, to proceed on the public service to White Plains or lower if he thought proper.

With this permit he had passed all the guards and posts on the road unsuspected and was proceeding to New York in perfect security, when one of three militiamen{5} who were employed between the lines of the two armies, springing suddenly from his covert into the road, seized the reins of his bridle and stopped his horse. Losing his accustomed self possession, André, instead of producing the pass from Arnold, asked the man hastily where he belonged. He replied, "To below," a term implying that he was from New York. "And so," said André, not suspecting deception, "am I." He then declared himself to be a British officer on urgent business, and begged that he might not be detained. The appearance of the other militiamen disclosed his mistake too late to correct it. He offered a purse of gold and a valuable watch, with tempting promises of ample reward from his government if they would, permit him to escape; but his offers were rejected, and his captors proceeded to search him. They found concealed in his stockings, in Arnold's handwriting, papers containing all the information which could be important respecting West Point. When carried before Lieutenant-Colonel Jameson, the officer commanding the scouting parties on the lines, he maintained his assumed character and requested Jameson to inform his commanding officer that Anderson was taken. Jameson dispatched an express with this communication. On receiving it, Arnold comprehended the full extent of his danger, and flying from well-merited punishment took refuge on board the Vulture.

When sufficient time for the escape of Arnold was supposed to have elapsed, André, no longer effecting concealment, acknowledged himself to be the adjutant-general of the British army. Jameson, seeking to correct the mischief of his indiscreet communication to Arnold, immediately dispatched a packet to the Commander-in-Chief containing the papers

which had been discovered, with a letter from André relating the manner of his capture and accounting for the disguise he had assumed.

The express was directed to meet the Commander-in-Chief, who was then on his return from Hartford, but, taking different roads, they missed each other, and a delay attended the delivery of the papers, which ensured the escape of Arnold.

Washington, with Generals Lafayette and Knox, had turned from the direct route in order to visit a redoubt. Colonels Hamilton and M'Henry, the aides-de-camp of Washington and Lafayette, went forward to request Mrs. Arnold not to wait breakfast. Arnold received André's billet in their presence. He turned pale, left them suddenly, called his wife, communicated the intelligence to her, and left her in a swoon, without the knowledge of Hamilton and M'Henry. Mounting the horse of his aide-de-camp, which was ready saddled, and directing him to inform Washington on his arrival that Arnold was gone to receive him at West Point, he gained the river shore, and was conveyed in a canoe to the Vulture.

Washington, on his arrival, was informed that Arnold awaited him at West Point. Taking it for granted that this step had been taken to prepare for his reception he proceeded thither without entering the house, and was surprised to find that Arnold was not arrived. On returning to the quarters of that officer he received Jameson's dispatch which disclosed the whole mystery.

Every precaution was immediately taken for the security of West Point, after which the attention of the Commander-in-Chief was turned to André. A board of general officers, of which General Greene was president, and Lafayette and Steuben were members, was called, to report a precise state of his case, and to determine the character in which he was to be considered, and the punishment to which he was liable.

The frankness and magnanimity with which André had conducted himself from the time of his appearance in his real character had made a very favorable impression on all those with whom he had held any intercourse. From this cause he experienced every mark of indulgent attention which was compatible with his situation, and, from a sense of justice as well as of delicacy, was informed, on the opening of the examination that he was at liberty not to answer any interrogatory which might embarrass his own feelings. But, as if only desirous to rescue his

character from imputations which he dreaded more than death, he confessed everything material to his own condemnation, but would divulge nothing which might involve others.

The board reported the essential facts which had appeared, with their opinion that Major André was a spy and ought to suffer death. The execution of this sentence was ordered to take place on the day succeeding that on which it was pronounced.

Superior to the terrors of death, but dreading disgrace, André was deeply affected by the mode of execution which the laws of war decree to persons in his situation. He wished to die like a soldier not as a criminal. To obtain a mitigation of his sentence in this respect he addressed a letter to Washington, replete with the feelings of a man of sentiment and honor. But the occasion required that the example should make its full impression, and this request could not be granted. He encountered his fate with composure and dignity, and his whole conduct interested the feelings of all who witnessed it.

The general officers lamented the sentence which the usages of war compelled them to pronounce, and never perhaps did the Commander-in-Chief obey with more reluctance the stern mandates of duty and policy. The sympathy excited among the American officers by his fate was as universal as it is unusual on such occasions, and proclaims alike the merit of him who suffered, and the humanity of those who inflicted the punishment.

Great exertions were made by Sir Henry Clinton, to whom André was particularly dear, first, to have him considered as protected by a flag of truce, and afterward as a prisoner of war.

Even Arnold had the hardihood to interpose. After giving a certificate of facts tending, as he supposed, to exculpate the prisoner, exhausting his powers of reasoning on the case, and appealing to the humanity of Washington, he sought to intimidate that officer by stating the situation of many of the most distinguished individuals of South Carolina, who had forfeited their lives, but had hitherto been spared through the clemency of the British general. This clemency, he said, could no longer be extended to them should Major André suffer.

It may well be supposed that the interposition of Arnold could have no influence on Washington. He caused Mrs. Arnold to be conveyed to her husband in New York, and also transmitted his clothes and baggage, for

which he had written, but in every other respect his letters, which were unanswered, were also unnoticed.

The night after Arnold's escape, when his letter respecting André was received, the general directed one of his aides to wait on Mrs. Arnold, who was convulsed with grief, and inform her that he had done everything which depended on him to arrest her husband, but that, not having succeeded, it gave him pleasure to inform her that her husband was safe. It is honorable to the American character that, during the effervescence of the moment, Mrs. Arnold was permitted to go to Philadelphia to take possession of her effects, and to proceed to New York under the protection of a flag without receiving the slightest insult.

This treatment of Mrs. Arnold by Washington is the more remarkable for its delicacy when we recollect that she was under very strong suspicions at the time of being actively concerned in the treason of her husband. Historians are still divided on the question of her guilt or innocence.

The mingled sentiments of admiration and compassion excited in every bosom for the unfortunate André, seemed to increase the detestation in which Arnold was held. "André," said General Washington in a private letter, "has met his fate with that fortitude which was to be expected from an accomplished man and a gallant officer, but I am mistaken if at this time Arnold is undergoing the torments of a mental hell. He wants feeling. From some traits of his character which have lately come to my knowledge, he seems to have been so hardened in crime, so lost to all sense of honor and shame, that while his faculties still enable him to continue his sordid pursuits, there will be no time for remorse."

The traits in his character above alluded to, were disclosed in a private letter from Hamilton, who said: "This man (Arnold) is in every sense despicable. In addition to the scene of knavery and prostitution during his command in Philadelphia, which the late seizure of his papers has unfolded, the history of his command at West Point is a history of little as well as great villainies. He practiced every dirty act of peculation, and even stooped to connections with the sutlers to defraud the public." {6}

From motives of policy, or of respect for his engagements, Sir Henry Clinton conferred on Arnold the commission of a brigadier-general in the British service, which he preserved throughout the war. Yet it is impossible that rank could have rescued him from the contempt and detestation in

which the generous, and honorable, and the brave could not cease to hold him. It was impossible for men of this description to bury the recollection of his being a traitor—a sordid traitor—first the slave of his rage, then purchased with gold, and finally secured at the expense of the blood of one of the most accomplished officers in the British army.

His representations of the discontent of the country and of the army, concurring with reports from other quarters, had excited the hope that the Loyalists and the dissatisfied, allured by British gold and the prospect of rank in the British service, would flock to his standard and form a corps at whose head he might again display his accustomed intrepidity. With this hope he published an address to the inhabitants of America in which he labored to palliate his own guilt, and to increase their dissatisfaction with the existing state of things.

This appeal to the public was followed by a proclamation addressed "To the officers and soldiers of the Continental army, who have the real interests of their country at heart, and who are determined to be no longer the tools and dupes of Congress or of France."

The object of this proclamation was to induce the officers and soldiers to desert the cause they had embraced from principle by holding up to them the very flattering offers of the British general, and contrasting the substantial emoluments of the British service with their present deplorable condition. He attempted to cover this dishonorable proposition with a decent garb, by representing the base step he invited them to take as the only measure which could restore peace, real liberty, and happiness to their country.

These inducements did not produce their intended effect. Although the temper of the army might be irritated by real suffering, and by the supposed neglect of government, no diminution of patriotism had been produced. Through all the hardships, irritations, and vicissitudes of the war Arnold remains the solitary instance of an American officer who abandoned the side first embraced in this civil contest, and turned his sword upon his former companions in arms.

In the whole course of this affair of Arnold's treason, Washington, according to the habitually religious turn of his mind, distinctly recognized the hand of Divine Providence. Writing to Col. John Laurens he says: "In no instance since the commencement of the war has the interposition of

Providence appeared more remarkably conspicuous than in the rescue of the post and garrison of West Point from Arnold's villainous perfidy. How far he meant to involve me in the catastrophe of this place does not appear by any indubitable evidence, and I am rather inclined to think he did not wish to hazard the more important object of his treachery by attempting to combine two events, the less of which might have marred the greater. A combination of extraordinary circumstances, an unaccountable deprivation of presence of mind in a man of the first abilities, and the virtue of three militiamen, threw the adjutant-general of the British forces, with full proofs of Arnold's treachery, into our hands. But for the egregious folly, or the bewildered conception, of Lieutenant-Colonel Jameson, who seemed lost in astonishment and not to know what he was doing, I should undoubtedly have got Arnold."

Arnold, however, had not yet displayed the whole of his character. Savage revenge and ruthless cruelty were yet to become apparent in his conduct as an officer in the British service. It seems to have been the design of Providence that Americans, in all ages, should learn to detest treason by seeing it exhibited in all its hideous deformity, in the person of "ARNOLD, THE TRAITOR." {7}

1. Footnote: While Washington was in winter quarters at Morristown, he requested Congress to send a committee to the camp, as had been previously done at Valley Forge, for the purpose of giving effect to the arrangements for the ensuing campaign, and drawing more expeditiously from the States their respective quotas of soldiers and supplies. General Schuyler, who had retired from the army and was then in Congress, was a member of this committee. He rendered essential service at this time by his judgment and experience. The committee remained in camp between two and three months.

2. Footnote: It is pleasant to know that Mrs. Washington was at the head of this movement. Dr. Spencer says: "In all parts of the country the women displayed great zeal and activity, particularly in providing clothing for the soldiers. In Philadelphia they formed a society, at the head of which was Martha Washington, wife of the Commander-in-Chief. This lady was as prudent in private affairs as her husband was in public. She alone presided over their domestic finances, and provided for their common household. Thus it was owing to the talents and virtues of his wife, that Washington

could give himself wholly to the dictates of that patriotism which this virtuous pair mutually shared and reciprocally invigorated. Mrs. Washington, Mrs. Reed, Mrs. Bache, the daughter of Dr. Franklin, with the other ladies who had formed the society, themselves subscribed considerable sums for the public; and having exhausted their own means, they exerted their influence, and went from house to house to stimulate the liberality of others."

3. Footnote: While these charges were hanging over his head, Arnold courted and married Miss Shippen, a young lady, not yet eighteen, the daughter of Mr. Edward Shippen, of Philadelphia.

4. Footnote: "Our service,"—such were his words,— "is the chastest of all. Even the shadow of a fault tarnishes the lustre of our finest achievements. The least inadvertence may rob us of the public favor, so hard to be acquired. I reprimand you for having forgotten, that in proportion as you had rendered yourself formidable to our enemies, you should have been guarded and temperate in your deportment toward your fellow-citizens.

"Exhibit anew those noble qualities which have placed you on the list of our most valued commanders. I will myself furnish you, as far as it may be in my power, with opportunities of gaining the esteem of your country."

5. Footnote: The names of these militiamen were John Paulding, David Williams, and Isaac Van Wart.

6. Footnote: "I am inclined to believe that Arnold was a finished scoundrel from early manhood to his grave; nor do I believe that he had any real and true-hearted attachment to the Whig cause. He fought as a mere adventurer, and took sides from a calculation of personal gain, and chances of plunder and advancement."—*Sabine's "American Loyalists,"* p. 131.

7. Footnote: On the third of November it was resolved, "That Congress have a high sense of the virtuous and patriotic conduct of John Paulding, David Williams, and Isaac Van Wart; in testimony whereof, ordered, that each of them receive annually \$200 in specie, or an equivalent in the current money of these States, during life, and that the Board of War be directed to procure for each of them a silver medal, on one side of which shall be a shield, with this inscription—FIDELITY: and on the other, the following motto—VINCIT AMOR PATIAE, and forward them to the Commander-in-Chief, who is requested to present the same, with a copy of

this resolution, and the thanks of Congress for their fidelity, and the eminent service they have rendered their country."

CHAPTER XIX. — OPERATIONS AT THE SOUTH. 1780.

Although Washington was aware that the British were aiming at the conquest of the southern States he still considered the middle States to be the main theater of war, and felt the necessity of reserving his main force for the defense of that portion of the Union. He did not believe that the possession by the British of a few posts in the South would contribute much to the purposes of the war, and he sent no more troops to that part of the country than he could conveniently spare from the main army. Writing to Lafayette in Paris, after the fall of Savannah (8th March, 1779), he says: "Nothing of importance has happened since you left us except the enemy's invasion of Georgia and possession of its capital, which, though it may add something to their supplies on the score of provisions, will contribute very little to the brilliancy of their arms; for, like the defenseless Island of St. Lucia, {1} it only required the appearance of force to effect the conquest of it, as the whole militia of the State did not exceed 1,200 men, and many of them disaffected. General Lincoln is assembling a force to dispossess them, and my only fear is that he will precipitate the attempt before he is fully prepared for the execution."

As early as September 1778, General Lincoln had been appointed to supersede Gen. Robert Howe in the command of the southern army. Lincoln had baffled the attempts of General Prevost on South Carolina, and had commanded the American forces in the unsuccessful siege of Savannah, acting in concert with D'Estaing. He was still in command at Charleston when Clinton, whose departure from New York on an expedition to the South we have already noticed, made his descent on South Carolina. In this command at Charleston General Lincoln unfortunately labored under great disadvantages and discouragements.

The failure of the attack on Savannah (in which bombardment 1,000 lives were lost, Count Pulaski, the Polish patriot, was mortally wounded, and the simple-hearted Sergeant Jasper died grasping the banner presented to his regiment at Fort Moultrie), with the departure of the French fleet from the

coast of America, presented a gloomy prospect and was the forerunner of many calamities to the southern States. By their courage and vigor the northern provinces had repelled the attacks of the enemy and discouraged future attempts against them. And although having bravely defended Sullivan's Island, in 1776, the southern colonists were latterly less successful than their victorious brethren in the North. The rapid conquest of Georgia and the easy march of Prevost to the very gates of Charleston had a discouraging effect and naturally rendered the southern section vulnerable to attack. In the North the military operations of 1778 and 1779 had produced no important results, and, therefore, the late transactions in Georgia and South Carolina more readily attracted the attention of the British Commander-in-Chief to those States.

Savannah, the chief town of Georgia, as we have already seen, was in the hands of the British troops, and had been successfully defended against a combined attack of the French and Americans, and therefore Sir Henry Clinton resolved to gain possession of Charleston also, the capital of South Carolina, which would give him the command of all the southern parts of the Union. Having made the necessary preparations he sailed, as we have seen, from New York on the 26th of December 1779, under convoy of Admiral Arbuthnot, but did not arrive at Savannah till the end of January (1780). The voyage was tempestuous; some of the transports and victuallers were lost, others shattered, and a few taken by the American cruisers. Most of the cavalry and draught horses perished. One of the transports, which had been separated from the fleet and captured by the Americans, was brought into Charleston on the 23d of January, and the prisoners gave the first certain notice of the destination of the expedition.

As soon as it was known that an armament was fitting out at New York many suspected that the southern States were to be assailed, and such was the unhappy posture of American affairs at that time, that no sanguine expectations of a successful resistance could be reasonably entertained. The magazines of the Union were everywhere almost empty, and Congress had neither money nor credit to replenish them. The army at Morristown, under the immediate orders of Washington, was threatened, as we have seen, with destruction by want of provisions, and consequently could neither act with vigor in the North, nor send reinforcements to the South.

General Lincoln, though aware of his danger,—was not in a condition to meet it. On raising the siege of Savannah he had sent the troops of Virginia to Augusta; those of South Carolina were stationed partly at Sheldoa, opposite Port Royal, between thirty and forty miles north from Savannah, and partly at Fort Moultrie, which had been allowed to fall into decay; those of North Carolina were with General Lincoln at Charleston. All these detachments formed but a feeble force, and to increase it was not easy, for the Colonial paper money was in a state of great depreciation; the militia, worn out by a harassing service, were reluctant again to repair to the standards of their country, and the brave defense of Savannah had inspired the people of the southern provinces with intimidating notions of British valor. The patriotism of many of the Colonists had evaporated; they contemplated nothing but the hardships and dangers of the contest and recoiled from the protracted struggle.

In these discouraging circumstances Congress recommended the people of South Carolina to arm their slaves, a measure to which they were generally averse; although, had they been willing to comply with the recommendation, arms could not have been procured. Washington had, as we have already seen, ordered the Continental troops of North Carolina and Virginia to march to Charleston, and four American frigates, two French ships of war; the one mounting twenty-six and the other eighteen guns, with the marine force of South Carolina under Commodore Whipple, were directed to cooperate in the defense of the town. No more aid could be expected; yet, under these unpromising circumstances, a full house of assembly resolved to defend Charleston to the last extremity.

Although Clinton had embarked at New York on the 26th of December, 1779, yet, as his voyage had been stormy and tedious, and as some time had been necessarily spent at Savannah, it was the 11th of February, 1780, before he landed on John's Island, thirty miles south from Charleston. Had he even then marched rapidly upon the town he would probably have entered it without much opposition, but mindful of his repulse in 1776 his progress was marked by a wary circumspection. He proceeded by the islands of St. John and St. James, while part of his fleet advanced to blockade the harbor. He sent for a reinforcement from New York, ordered General Prevost to join him with 1,100 men from Savannah, and neglected nothing that could insure success.

General Lincoln was indefatigable in improving the time which the slow progress of the royal army afforded him. Six hundred slaves were employed in constructing or repairing the fortifications of the town; vigorous though not very successful measures were taken to bring the militia into the field; and all the small detachments of regular troops were assembled in the capital. The works which had been begun on Charleston Neck when General Prevost threatened the place were resumed. A chain of redoubts, lines, and batteries was formed between the Cooper and Ashley rivers. In front of each flank the works were covered by swamps extending from the rivers; those opposite swamps were connected by a canal; between the canal and the works were two strong rows of abattis, and a ditch double picketed, with deep holes at short distances, to break the columns in case of an assault. Toward the water, works were thrown up at every place where a landing was practicable. The vessels intended to defend the bar of the harbor having been found insufficient for that purpose, their guns were taken out and planted on the ramparts, and the seamen were stationed at the batteries. One of the ships, which was not dismantled, was placed in the Cooper river to assist the batteries, and several vessels were sunk at the mouth of the channel to prevent the entrance of the royal fleet. Lincoln intended that the town should be defended until such reinforcements would arrive from the North as, together with the militia of the State, would compel Clinton to raise the siege. As the regular troops in the town did not exceed 1,400, a council of war found that the garrison was too weak to spare detachments to obstruct the progress of the royal army. Only a small party of cavalry and some light troops were ordered to hover on its left flank and observe its motions.

While these preparations for defense were going on in Charleston the British army was cautiously but steadily advancing toward the town. As he proceeded Clinton erected forts and formed magazines at proper stations, and was careful to secure his communications with those forts and with the sea. All the horses of the British army had perished in the tedious and stormy voyage from New York to Savannah, but on landing in South Carolina Clinton procured others to mount his dragoons, whom he formed into a light corps, under the command of Lieutenant-Colonel Tarleton. That officer was extremely active in covering the left wing of the army and in dispersing the militia. In one of his excursions he fell in with Lieut.-Col.

William Washington, who commanded the remnant of Baylor's regiment, and who beat him back with loss.

On the 20th of March (1780) the British fleet, under Admiral Arbuthnot, consisting of 1 ship of 50 guns, 2 of 44 each, 4 of 32 each, and an armed vessel, passed the bar in front of Rebellion Road, and anchored in Five Fathom Hole.

It being now thought impossible to prevent the fleet from passing Fort Moultrie, and taking such stations in Cooper river as would enable them to rake the batteries on shore, and to close that communication between the town and country, the plan of defense was once more changed, and the armed vessels were carried into the mouth of Cooper river, and sunk in a line from the town to Shute's Folly.

This was the critical moment for evacuating the town. The loss of the harbor rendered the defense of the place, if not desperate, so improbable, that the hope to maintain it could not have been rationally entertained by a person who was not deceived by the expectation of aids much more considerable than were actually received.

When this state of things was communicated to Washington by Lieutenant-Colonel Laurens he said in reply: "The impracticability of defending the bar, I fear, amounts to the loss of the town and garrison. At this distance it is impossible to judge for you. I have the greatest confidence in General Lincoln's prudence, but it really appears to me that the propriety of attempting to defend the town depended on the probability of defending the bar, and that when this ceased, the attempt ought to have been relinquished. In this, however, I suspend a definitive judgment, and wish you to consider what I say as confidential." Unfortunately this letter did not arrive in time to influence the conduct of the besieged.

On the 4th of April (1780), Admiral Arbuthnot, taking advantage of a strong southerly wind and a flowing tide, passed Fort Moultrie {2} and anchored just without reach of the guns of Charleston. The fort kept up a heavy fire on the fleet while passing which did some damage to the ships and killed or wounded twenty-seven men.

On the 29th of March the royal army reached Ashley river and crossed it ten miles above the town without opposition, the garrison being too weak to dispute the passage. Sir Henry Clinton having brought over his artillery, baggage, and stores marched down Charleston Neck, and on the night of the

1st of April, broke ground at the distance of 800 yards from the American works. The fortifications of Charleston were constructed under the direction of Mr. Laumoy, a French engineer of reputation in the American service, and, although not calculated to resist a regular siege, were by no means contemptible; and Clinton made his approaches in due form. Meanwhile the garrison received a reinforcement of 700 Continentals under General Woodford, and, after this accession of strength, amounted to somewhat more than 2,000 regular troops, besides 1,000 militia of North Carolina, and the citizens of Charleston.

On the 9th of April (1780) Clinton finished his first parallel, forming an oblique line between the two rivers, from 600 to 1,100 yards from the American works, and mounted his guns in battery. He then, jointly with the admiral, summoned Lincoln to surrender the town. Lincoln's answer was modest and firm: "Sixty days," said he, "have passed since it has been known that your intentions against this town were hostile, in which time was afforded to abandon it, but duty and inclination point to the propriety of supporting it to the last extremity."

On receiving this answer Clinton immediately opened his batteries, and his fire was soon felt to be superior to that of the besieged. Hitherto the communication with the country north of the Cooper was open and a post was established to prevent the investiture of the town on that side. After the summons, Governor Rutledge, with half of his council, left the town for the purpose of exercising the functions of the executive government in the State, and in the hope of being able to bring a large body of the militia to act on the rear or left flank of the besieging army, but the militia were as little inclined to embody themselves as to enter the town.

For the purpose of maintaining the communication with the country north of the Cooper, of checking the British foragers, and of protecting supplies on their way to the town, the American cavalry, under General Huger, had passed the river and taken post at Monk's Corner, thirty miles above Charleston. Posts of militia were established between the Cooper and Santee and at a ferry on the last-named river, where boats were ordered to be collected in order to facilitate the passage of the garrison, if it should be found necessary to evacuate the town. But Clinton defeated all these precautions. For as the possession of the harbor rendered the occupation of the forts to the southward unnecessary, he resolved to call in the troops

which had been employed in that quarter, to close the communication of the garrison with the country to the northward, and to complete the investiture of the town. For these purposes, as the fleet was unable to enter the Cooper river, he deemed it necessary to dislodge the American posts and employed Tarleton to beat up the quarters of General Huger's cavalry at Monk's Corner. Conducted during the night by a negro slave through unfrequented paths, Tarleton proceeded toward the American post, and, although General Huger had taken the precaution of placing sentinels a mile in front of his station and of keeping his horses saddled and bridled, yet Tarleton advanced so rapidly that, notwithstanding the alarm was given by the outposts, he began the attack before the Americans could put themselves in a posture of defense, killed or took about thirty of them, and dispersed the rest. General Huger, Colonel Washington, and many others made good their retreat through the woods. Such as escaped concealed themselves for several days in the swamps. The horses taken by the British fell very seasonably into their hands, as they were not well mounted. After this decisive blow it was some time before any armed party of the Americans ventured to show themselves south of the Santee. That part of the country was laid open to the British, who established posts in such a way as completely to enclose the garrison. The arrival of 3,000 men from New York greatly increased the strength of the besiegers.

The second parallel was completed, and it daily became more apparent that the garrison must ultimately submit. An evacuation of the town was proposed and Lincoln seems to have been favorable to the measure, but the garrison could scarcely have escaped, and the principal inhabitants entreated the general not to abandon them to the fury of the enemy.

The British troops on the north of the Cooper were increased, and Cornwallis was appointed to command in that quarter. On the 20th April (1780) General Lincoln again called a council of war to deliberate on the measures to be adopted. The council recommended a capitulation; terms were offered, but rejected, and hostilities recommenced. After the besiegers had begun their third parallel, Colonel Henderson made a vigorous sally on their right, which was attended with some success; but, owing to the weakness of the garrison, this was the only attempt of the kind during the siege.

After the fleet passed it, Fort Moultrie became of much less importance than before, and part of the garrison was removed to Charleston. The admiral, perceiving the unfinished state of the works on the west side, prepared to storm it. On the 7th of May, everything being ready for the assault, he summoned the garrison, consisting of 200 men, who, being convinced of their inability to defend the place, surrendered themselves prisoners of war without firing a gun. On the same day the cavalry which had escaped from Monk's Corner, and which had reassembled under the command of Colonel White, were again surprised and defeated by Colonel Tarleton. After Cornwallis had passed the Cooper and made himself master of the peninsula between that river and the Santee, he occasionally sent out small foraging parties. Apprised of that circumstance, Colonel White repassed the Santee, fell in with and took one of those parties, and dispatched an express to Colonel Buford, who commanded a regiment of new levies from Virginia, requesting him to cover his retreat across the Santee at Lanneau's ferry, where he had ordered some boats to be collected to carry his party over the river. Colonel White reached the ferry before Buford's arrival, and, thinking himself in no immediate danger, halted to refresh his party. Cornwallis, having received notice of his incursion, dispatched Tarleton in pursuit, who, overtaking him a few minutes after he had halted, instantly charged him, killed or took about thirty of the party, and dispersed the rest.

Charleston was now completely invested, all hopes of assistance had been cruelly disappointed, and the garrison and inhabitants were left to their own resources. The troops were exhausted by incessant duty and insufficient to man the lines. Many of the guns were dismounted, the shot nearly expended, and the bread and meat almost entirely consumed. The works of the besiegers were pushed very near the defenses of the town, and the issue of an assault was extremely hazardous to the garrison and inhabitants. In these critical circumstances, General Lincoln summoned a council of war, which recommended a capitulation. Terms were accordingly proposed, offering to surrender the town and garrison on condition that the militia and armed citizens should not be prisoners of war, but should be allowed to return home without molestation. These terms were refused, hostilities were recommenced, and preparations for an assault were in progress. The citizens, who had formerly remonstrated against the departure of the garrison, now became clamorous for a surrender. In this hopeless

state Lincoln offered to give up the place on the terms which Clinton had formerly proposed. The offer was accepted and the capitulation was signed on the 12th of May (1780).

The town and fortifications, the shipping, artillery, and all public stores were to be given up as they then were; the garrison, consisting of the Continental troops, militia, sailors, and citizens who had borne arms during the siege, were to be prisoners of war; the garrison were to march out of the town and lay down their arms in front of the works, but their drums were not to beat a British march, and their colors were not to be uncased; the Continental troops and sailors were to be conducted to some place afterward to be agreed on, where they were to be well supplied with wholesome provisions until exchanged; the militia were to be allowed to go home on parole; the officers were to retain their arms, baggage, and servants, and they might sell their horses, but were not permitted to take them out of Charleston; neither the persons nor property of the militia or citizens were to be molested so long as they kept their parole. {3}

On these terms the garrison of Charleston marched out and laid down their arms, and General Leslie was appointed by Clinton to take possession of the town. The siege was more obstinate than bloody. The besiegers had 76 men killed and 189 wounded; the besieged had 92 killed and 148 wounded; about 20 of the inhabitants were killed in their houses by random shots. The number of prisoners reported by Clinton amounted to upward of 5,000, exclusive of sailors, but in that return all the freemen of the town capable of bearing arms, as well as the Continental soldiers and militia, were included. The number of Continental troops in the town amounted only to 1,777, about 500 of whom were in the hospital. The effective strength of the garrison was between 2,000 and 3,000 men. The besieging army consisted of about 9,000 of the best of the British troops.

After the British got possession of the town the arms taken from the Americans, amounting to 5,000 stand, were lodged in a laboratory near a large quantity of cartridges and loose powder. By incautiously snapping the muskets and pistols the powder ignited and blew up the house, and the burning fragments, which were scattered in all directions, set fire to the workhouse, jail, and old barracks, and consumed them. The British guard stationed at the place, consisting of fifty men, was destroyed, and about as many other persons lost their lives on the disastrous occasion.

Clinton carried on the siege in a cautious but steady and skilful manner. Lincoln was loaded with undeserved blame by many of his countrymen, for he conducted the defense as became a brave and intelligent officer. The error lay in attempting to defend the town, but, in the circumstances in which Lincoln was placed, he was almost unavoidably drawn into that course. It was the desire of the State that the capital should be defended, and Congress, as well as North and South Carolina, had encouraged him to expect that his army would be increased to 9,000 men—a force which might have successfully resisted all the efforts of the royal army. But neither Congress nor the Carolinas were able to fulfill the promises which they had made, for the militia were extremely backward in taking the field, and the expected number of Continentals could not be furnished. Lincoln, therefore, was left to defend the place with only about one-third of the force which he had been encouraged to expect. At any time before the middle of April he might have evacuated the town, but the civil authority then opposed his retreat, which soon afterward became difficult, and ultimately impracticable.

At General Lincoln's request Congress passed a resolve directing the Commander-in-Chief to cause an inquiry to be made concerning the loss of Charleston and the conduct of General Lincoln while commanding in the southern department. Washington, who knew Lincoln's merit well, determined to give Congress time for reflection before adopting any measure which had the least appearance of censure. The following extract from his letter to the President of Congress (10th July, 1780) points out clearly the impropriety of the hasty proceedings which had been proposed in regard to this able and deserving officer:

"At this time," Washington writes, "I do not think that the circumstances of the campaign would admit, at any rate, an inquiry to be gone into respecting the loss of Charleston, but, if it were otherwise, I do not see that it could be made so as to be completely satisfactory either to General Lincoln or to the public, unless some gentlemen could be present who have been acting in that quarter. This, it seems, would be necessary on the occasion, and the more so as I have not a single document or paper in my possession concerning the department, and a copy of the instructions and orders which they may have been pleased to give General Lincoln from time to time and of their correspondence. And besides the reasons against the inquiry at this time, General Lincoln being a prisoner of war, his

situation, it appears to me, must preclude one till he is exchanged, supposing every other obstacle were out of the question. If Congress think proper, they will be pleased to transmit to me such papers as they may have which concern the matters of inquiry, that there may be no delay in proceeding in the business when other circumstances will permit."

The fall of Charleston was matter of much exultation to the British and spread a deep gloom over the aspect of American affairs. The southern army was lost, and, although small, it could not soon be replaced. In the southern parts of the Union there had always been a considerable number of persons friendly to the claims of Britain. The success of her arms roused all their lurking partialities, gave decision to the conduct of the wavering, encouraged the timid, drew over to the British cause all those who are ever ready to take part with the strongest, and discouraged and intimidated the friends of Congress.

Clinton was perfectly aware of the important advantage which he had gained, and resolved to keep up and deepen the impression on the public mind by the rapidity of his movements and the appearance of his troops in different parts of the country. For that purpose he sent a strong detachment under Cornwallis over the Santee toward the frontier of North Carolina. He dispatched an inferior force into the center of the province, and sent a third up the Savannah to Augusta. These detachments were instructed to disperse any small parties that still remained in arms, and to show the people that the British troops were complete masters of South Carolina and Georgia.

Soon after passing the Santee, Cornwallis was informed that Colonel Buford was lying, with 400 men, in perfect security, near the border of North Carolina. He immediately dispatched Colonel Tarleton, with his cavalry, named the Legion, to surprise that party. After performing a march of 104 miles in fifty-four hours, Tarleton, at the head of 700 men, overtook Buford on his march, at the Waxhaws, and ordered him to surrender, offering him the same terms which had been granted to the garrison of Charleston. On Buford's refusal, Tarleton instantly charged the party, who were dispirited and unprepared for such an onset. Most of them threw down their arms and made no resistance, but a few continued firing, and an indiscriminate slaughter ensued of those who had submitted as well as of those who had resisted. Many begged for quarter, but no quarter was given. Tarleton's quarter became proverbial throughout the Union and certainly

rendered some subsequent conflicts more fierce and bloody than they would otherwise have been. Buford and a few horsemen forced their way through the enemy and escaped; some of the infantry, also, who were somewhat in advance, saved themselves by flight, but the regiment was almost annihilated. Tarleton stated that 113 were killed on the spot, 150 left on parole, so badly wounded that they could not be removed, and 53 brought away as prisoners. So feeble was the resistance made by the Americans that the British had only 12 men killed and 5 wounded. The slaughter on this occasion excited much indignation in America. The British endeavored to justify their conduct by asserting that the Americans resumed their arms after having pretended to submit, but such of the American officers as escaped from the carnage denied the allegation. For this exploit, Tarleton was highly praised by Cornwallis.

After the defeat of Buford there were no parties in South Carolina or Georgia capable of resisting the royal detachments. The force of Congress in those provinces seemed annihilated and the spirit of opposition among the inhabitants was greatly subdued. Many, thinking it vain to contend against a power which they were unable to withstand, took the oath of allegiance to the King or gave their parole not to bear arms against him.

In order to secure the entire submission of that part of the country, military detachments were stationed at the most commanding points, and measures were pursued for settling the civil administration and for consolidating the conquest of the provinces. So fully was Clinton convinced of the subjugation of the country and of the sincere submission of the inhabitants, or of their inability to resist, that, on the 3d of June (1780), he issued a proclamation, in which, after stating that all persons should take an active part in settling and securing his majesty's government and in delivering the country from that anarchy which for some time had prevailed, he discharged from their parole the militia who were prisoners, except those only who had been taken in Charleston and Fort Moultrie, and restored them to all the rights and duties of inhabitants; he also declared that such as should neglect to return to their allegiance should be treated as enemies and rebels.

This proclamation was unjust and impolitic. Proceeding on the supposition that the people of those provinces were subdued rebels, restored by an act of clemency to the privileges and duties of citizens, and forgetting

that for upward of four years they had been exercising an independent authority, and that the issue of the war only could stamp on them the character of patriots or rebels. It might easily have been foreseen that the proclamation was to awaken the resentment and alienate the affections of those to whom it was addressed. Many of the Colonists had submitted in the fond hope of being released, under the shelter of the British government, from that harassing service to which they had lately been exposed, and of being allowed to attend to their own affairs in a state of peaceful tranquility; but the proclamation dissipated this delusion and opened their eyes to their real situation. Neutrality and peace were what they desired, but neutrality and peace were denied them. If they did not range themselves under the standards of Congress, they must, as British subjects, appear as militia in the royal service. The people sighed for peace, but, on finding that they must fight on one side or the other, they preferred the banners of their country and thought they had as good a right to violate the allegiance and parole which Clinton had imposed on them as he had to change their state from that of prisoners to that of British subjects without their consent. They imagined that the proclamation released them from all antecedent obligations. Not a few, without any pretense of reasoning on the subject, deliberately resolved to act a deceitful part and to make professions of submission and allegiance to the British government so long as they found it convenient, but with the resolution of joining the standards of their country on the first opportunity. Such duplicity and falsehood ought always to be reprobated, but the unsparing rapacity with which the inhabitants were plundered made many of them imagine that no means of deception and vengeance were unjustifiable.

Hitherto the French fleets and troops had not afforded much direct assistance to the Americans, but they had impeded and embarrassed the operations of the British Commander-in-Chief. He had intended to sail against Charleston so early as the month of September, 1779, but the unexpected appearance of Count D'Estaing on the southern coast had detained him at New York till the latter part of December. It was his intention, after the reduction of Charleston, vigorously to employ the whole of his force in the subjugation of the adjacent provinces, but information, received about the time of the surrender of the town, that Monsieur de Ternay, with a fleet and troops from France, was expected on the American coast, deranged his plan and induced him to return to New York with the

greater part of his army, leaving Cornwallis at the head of 4,000 men to prosecute the southern conquests. Clinton sailed from Charleston on the 5th of June.

After the reduction of Charleston and the entire defeat of all the American detachments in those parts, an unusual calm ensued for six weeks. Imagining that South Carolina and Georgia were reannexed to the British empire in sentiment as well as in appearance, Cornwallis now meditated an attack on North Carolina. Impatient, however, as he was of repose, he could not carry his purpose into immediate execution. The great heat, the want of magazines, and the impossibility of subsisting his army in the field before harvest, compelled him to pause. But the interval was not lost. He distributed his troops in such a manner in South Carolina and the upper parts of Georgia as seemed most favorable to the enlistment of young men who could be prevailed on to join the royal standard; he ordered companies of royal militia to be formed; and he maintained a correspondence with such of the inhabitants of North Carolina as were friendly to the British cause. He informed them of the necessity he was under of postponing the expedition into their country, and advised them to attend to their harvest and to remain quiet till the royal army advanced to support them. Eager, however, to manifest their zeal and entertaining sanguine hopes of success, certain Tories disregarded his salutary advice and broke out into premature insurrections, which were vigorously resisted and generally suppressed by the patriots, who were the more numerous and determined party. But one band of Tories, amounting to 800 men, under a Colonel Bryan, marched down the Yadkin to a British post at the Cheraws and afterward reached Camden.

The people of North Carolina were likely to prove much more intractable than those of South Carolina and Georgia. They were chiefly descendants of Scotch-Irish settlers—stern Presbyterians and ardent lovers of liberty. When Tryon was their governor, they had resisted his tyranny under the name of Regulators, and at Mecklenburg had published a declaration of independence more than a year before Congress took the same attitude of defiance. Such were the North Carolinians; and their State was destined to be the scene of many battles in which the power of Britain was bravely resisted.

Having made the necessary dispositions Cornwallis entrusted the command on the frontier to Lord Rawdon and returned to Charleston in order to organize the civil government of the province and to establish such regulations as circumstances required. But Cornwallis showed himself more a soldier than a politician, and more a tyrant than either. Instead of endeavoring to regain, by kindness and conciliation, the good will of a people whose affections were alienated from the cause in which he was engaged, Cornwallis attempted to drive them into allegiance by harshness and severity. Indeed, many of the British officers viewed the Americans merely in the light of rebels and traitors, whose lives it was indulgence to spare; treated them not only with injustice, but with insolence and insult more intolerable than injustice itself; and exercised a rigor which greatly increases the miseries without promoting the legitimate purposes of war.

By the capitulation of Charleston, the citizens were prisoners on parole, but successive proclamations were published, each abridging the privileges of prisoners more than that which had gone before. A board of police was established for the administration of justice, and before that board British subjects were allowed to sue for debts, but prisoners were denied that privilege; they were liable to prosecution for debts, but had no security for what was owing them, except the honor of their debtors, and that, in many instances, was found a feeble guarantee. If they complained they were threatened with close confinement; numbers were imprisoned in the town and others consigned to dungeons at a distance from their families. In short, every method, except that of kindness and conciliation, was resorted to in order to compel the people to become British subjects. A few, who had always been well affected to the royal cause, cheerfully returned to their allegiance, and many followed the same course from convenience. To abandon their families and estates and encounter all the privations of fugitives required a degree of patriotism and fortitude which few possessed.

In that melancholy posture of American affairs, many of the ladies of Charleston displayed a remarkable degree of zeal and intrepidity in the cause of their country. They gloried in the appellation of rebel ladies, and declined invitations to public entertainments given by the British officers, but crowded to prison ships and other places of confinement to solace their suffering countrymen. While they kept back from the concerts and assemblies of the victors they were forward in showing sympathy and kindness toward American officers whenever they met them. They exhorted

their brothers, husbands, and sons to an unshrinking endurance in behalf of their country, and cheerfully became the inmates of their prison and the companions of their exile—voluntarily renouncing affluence and ease and encountering labor, penury, and privation.

For some time the rigorous measures of the British officers in South Carolina seemed successful and a deathlike stillness prevailed in the province. The clangor of arms ceased and no enemy to British authority appeared. The people of the lower parts of South Carolina were generally attached to the revolution, but many of their most active leaders were prisoners. The fall of Charleston and the subsequent events had sunk many into despondency, and all were overawed. This gloomy stillness continued about six weeks when the symptoms of a gathering storm began to show themselves. The oppression and insults to which the people were exposed highly exasperated them; they repented the apathy with which they had seen the siege of Charleston carried on, and felt that the fall of their capital, instead of introducing safety and rural tranquility, as they had fondly anticipated, was only the forerunner of insolent exactions and oppressive services. Peaceful and undisturbed neutrality was what they desired and what they had expected; but when they found themselves compelled to fight, they chose to join the Provincial banners, and the most daring only waited an opportunity to show their hostility to their new masters.

Such an opportunity soon presented itself. In the end of March (1780) Washington dispatched the troops of Maryland and Delaware, with a regiment of artillery, under the Baron de Kalb, to reinforce the southern army. That detachment met with many obstructions in its progress southward. Such was the deranged state of the American finances that it could not be put in motion when the order was given. After setting out it marched through Jersey and Pennsylvania, embarked at the head of Elk river, was conveyed by water to Petersburg in Virginia, and proceeded thence towards the place of its destination. But as no magazines had been provided, and as provisions could with difficulty be obtained, the march of the detachment through North Carolina was greatly retarded. Instead of advancing rapidly, the troops were obliged to spread themselves over the country in small parties, in order to collect corn and to get it ground for their daily subsistence. In this way they proceeded slowly through the upper and more fertile parts of North Carolina to Hillsborough, and were

preparing to march by Cross creek to Salisbury, where they expected to be joined by the militia of North Carolina.

The approach of this detachment, together with information that great exertions were making to raise troops in Virginia, encouraged the irritation which the rigorous measures of the British officers had occasioned in South Carolina; and numbers of the inhabitants of that State, who had fled from their homes and taken refuge in North Carolina and Virginia, informed of the growing discontents in their native State, and relying on the support of regular troops, assembled on the frontier of North Carolina.

About 200 of these refugees chose Colonel Sumter, an old Continental officer, called by his comrades the "Gamecock," as their leader. On the advance of the British into the upper parts of South Carolina, this gentleman had fled into North Carolina, but had left his family behind. Soon after his departure a British party arrived, turned his wife and family out of door, and burned his house and everything in it. This harsh and unfeeling treatment excited his bitterest resentment, which operated with the more virulence by being concealed under the fair veil of patriotism.

At the head of his little band, without money or magazines, and but ill provided with arms and ammunition, Sumter made an irruption into South Carolina. Iron implements of husbandry were forged by common blacksmiths into rude weapons of war; and pewter dishes, procured from private families and melted down, furnished part of their supply of balls.

This little band skirmished with the royal militia and with small parties of regular troops, sometimes successfully, and always with the active courage of men fighting for the recovery of their property.

Sometimes they engaged when they had not more than three rounds of shot each, and occasionally some of them were obliged to keep at a distance till, by the fall of friends or foes, they could be furnished with arms and ammunition. When successful, the field of battle supplied them with materials for the next encounter.

This party soon increased to 600 men, and, encouraged by its daring exertions, a disposition manifested itself throughout South Carolina again to appeal to arms. Some companies of royal militia, embodied under the authority of Cornwallis, deserted to Sumter and ranged themselves under his standard.

Cornwallis beheld this change with surprise: he had thought the conflict ended, and the southern provinces completely subdued; but, to his astonishment, saw that past victories were unavailing, and that the work yet remained to be accomplished. He was obliged to call in his outposts and to form his troops into larger bodies.

But Cornwallis was soon threatened by a more formidable enemy than Sumter, who, though an active and audacious leader, commanded only an irregular and feeble band, and was capable of engaging only in desultory enterprises. Congress, sensible of the value and importance of the provinces which the British had overrun, made every effort to reinforce the southern army; and, fully aware of the efficacy of public opinion and of the influence of high reputation, on the 13th of June (1780) appointed General Gates to command it. He had acquired a splendid name by his triumphs over Burgoyne, and the populace, whose opinions are formed by appearances and fluctuate with the rumors of the day, anticipated a success equally brilliant. {4}

On receiving notice of his appointment to the command of the southern army, Gates, who had been living in retirement on his estate in Virginia, proceeded southward without delay, and on the 25th of July (1780) reached the camp at Buffalo ford, on Deep river, where he was received by De Kalb with respect and cordiality. The army consisted of about 2,000 men, and considerable reinforcements of militia from North Carolina and Virginia were expected. In order that he might lead his troops through a more plentiful country, and for the purpose of establishing magazines and hospitals at convenient points, De Kalb had resolved to turn out of the direct road to Camden. But Gates, in opposition to De Kalb's advice, determined to pursue the straight route toward the British encampment, although it lay through a barren country, which afforded but a scanty subsistence to its inhabitants.

On the 27th of July (1780) he put his army in motion and soon experienced the difficulties and privations which De Kalb had been desirous to avoid. The army was obliged to subsist chiefly on poor cattle, accidentally found in the woods, and the supply of all kinds of food was very limited. Meal and corn were so scarce that the men were compelled to use unripe corn and peaches instead of bread. That insufficient diet, together with the intense heat and unhealthy climate, engendered disease,

and threatened the destruction of the army. Gates at length emerged from the inhospitable region of pine-barrens, sand hills, and swamps, and, after having effected a junction with General Caswell, at the head of the militia of North Carolina, and a small body of troops under Lieutenant-Colonel Porterfield, he arrived at Clermont, or Rugely's Mills, on the 13th of August (1780), and next day was joined by the militia of Virginia, amounting to 700 men, under General Stevens.

On the day after Gates arrived at Rugley's Mills, he received an express from Sumter, stating that a number of the militia of South Carolina had joined him on the west side of the Wateree, and that an escort of clothes, ammunition, and other stores for the garrison at Camden was on its way from Ninety-Six and must pass the Wateree at a ford covered by a small fort nor far from Camden.

Gates immediately detached 100 regular infantry and 300 militia of North Carolina to reinforce Sumter, whom he ordered to reduce the fort and intercept the convoy. Meanwhile he advanced nearer Camden, with the intention of taking a position about seven miles from that place. For that purpose he put his army in motion at 10 in the evening of the 15th of August, having sent his sick, heavy baggage, and military stores not immediately wanted, under a guard to Waxhaws. On the march Colonel Armand's {5} legion composed the van; Porterfield's light infantry, reinforced by a company of picked men from Stevens' brigade, marching in Indian files, two hundred yards from the road, covered the right flank of the legion, while Major Armstrong's light infantry of North Carolina militia, reinforced in like manner by General Caswell, in the same order, covered the left. The Maryland division, followed by the North Carolina and Virginia militia, with the artillery, composed the main body and rear guard; and the volunteer cavalry were equally distributed on the flanks of the baggage. The American army did not exceed 4,000 men, only about 900 of whom were regular troops, and 70 cavalry.

On the advance of Gates into South Carolina, Lord Rawdon had called in his outposts, and concentrated his force at Camden. Informed of the appearance of the American army, and of the general defection of the country between the Pedee and the Black river, Cornwallis quitted Charleston and repaired to Camden, where he arrived on the same day that Gates reached Clermont.

The British force was reduced by sickness, and Cornwallis could not assemble more than two thousand men at Camden. That place, though advantageous in other respects, was not well adapted for resisting an attack; and as the whole country was rising against him, Cornwallis felt the necessity of either retreating to Charleston, or of instantly striking a decisive blow. If he remained at Camden, his difficulties would daily increase, his communication with Charleston be endangered, and the American army acquire additional strength. A retreat to Charleston would be the signal for the whole of South Carolina and Georgia to rise in arms; his sick and magazines must be left behind; and the whole of the two provinces, except the towns of Charleston and Savannah, abandoned. The consequences of such a movement would be nearly as fatal as a defeat. Cornwallis, therefore, although he believed the American army considerably stronger than what it really was, determined to hazard a battle; and, at 10 at night, on the 15th of August, the very hour when Gates proceeded from Rugely's Mills, about thirteen miles distant, he marched towards the American camp.

About 2 in the morning of the 16th of August (1780) the advanced guards of the hostile armies unexpectedly met in the woods, and the firing instantly began. Some of the cavalry of the American advanced guard being wounded by the first discharge, the party fell back in confusion, broke the Maryland regiment which was at the head of the column, and threw the whole line of the army into consternation. From that first impression, deepened by the gloom of night, the raw and ill-disciplined militia seem not to have recovered. In the reencounter several prisoners were taken on each side, and from them the opposing generals acquired a more exact knowledge of circumstances than they had hitherto possessed. Several skirmishes happened during the night, which merely formed a prelude to the approaching battle, and gave the commanders some notion of the position of the hostile armies.

Cornwallis, perceiving that the Americans were on ground of no great extent, with morasses on their right and left, so that they could not avail themselves of their superior numbers to outflank his little army, impatiently waited for the returning light, which would give every advantage to his disciplined troops. {6}

Both armies prepared for the conflict. Cornwallis formed his men in two divisions; that on the right was under the command of Lieutenant-Colonel Webster, that on the left under Lord Rawdon. In front were four field pieces. The Seventy-first regiment, with two cannon, formed the reserve; and the cavalry, about 300 in number, were in the rear, ready to act as circumstances might require.

In the American army the second Maryland brigade, under General Gist, formed the right of the line; the militia of North Carolina, commanded by General Caswell, occupied the center; and the militia of Virginia, with the light infantry and Colonel Armand's corps, composed the left; the artillery was placed between the divisions. The First Maryland brigade was stationed as a reserve 200 or 300 yards in the rear. Baron de Kalb commanded on the right; the militia generals were at the head of their respective troops, and General Gates resolved to appear wherever his presence might be most useful.

At dawn of day Cornwallis ordered Lieutenant-Colonel Webster, with the British right wing, to attack the American left. As Webster advanced he was assailed by a desultory discharge of musketry from some volunteer militia who had advanced in front of their countrymen, but the British soldiers, rushing through that loose fire, charged the American line with a shout. The militia instantly threw down their arms and fled, many of them without even discharging their muskets, and all the efforts of the officers were unable to rally them. A great part of the center division, composed of the militia of North Carolina, imitated the example of their comrades of Virginia; few of either of the divisions fired a shot, and still fewer carried their arms off the field. Tarleton with his legion pursued and eagerly cut down the unresisting fugitives. Gates, with some of the militia general officers, made several attempts to rally them, but in vain. The further they fled the more they dispersed, and Gates in despair hastened with a few friends to Charlotte, eighty miles from the field of battle.

De Kalb at the head of the Continentals, being abandoned by the militia, which had constituted the center and left wing of the army, and being forsaken by the general also, was exposed to the attack of the whole British army. De Kalb and his troops, however, instead of imitating the disgraceful example of their brethren in arms, behaved with a steady intrepidity and defended themselves like men. Rawdon attacked them about the time when

Webster broke the left wing, but the charge was firmly received and steadily resisted, and the conflict was maintained for some time with equal obstinacy on both sides. The American reserve covered the left of De Kalb's division, but its own left flank was entirely exposed by the flight of the militia, and, therefore, Webster, after detaching some cavalry and light troops in pursuit of the fugitive militia, with the remainder of his division attacked them at once in front and flank. A severe contest ensued. The Americans, in a great measure intermingled with British, maintained a desperate conflict. Cornwallis brought his whole force to bear upon them; they were at length broken and began to retreat in confusion. The brave De Kalb, while making a vigorous charge at the head of a body of his men, fell pierced with eleven wounds. His aide-de-camp, Lieutenant-Colonel de Buysson, embraced the fallen general, announced his rank and nation to the surrounding enemy, and while thus generously exposing his own life to save his bleeding friend, he received several severe wounds, and was taken prisoner with him. De Kalb met with all possible attention and assistance from the victorious enemy, but that gallant officer expired in a few hours. Congress afterward ordered a monument to be erected to his memory.

Never was victory more complete or defeat more total. Every regiment was broken and dispersed through the woods, marshes, and brushwood, which at once saved them from their pursuers and separated them more entirely from each other. The officers lost sight of their men and every individual endeavored to save himself in the best way he was able. The British cavalry pursued; and for many miles the roads were strewn with the wrecks of a ruined army. Wagons or fragments of wagons, arms, dead or maimed horses, dead or wounded soldiers, were everywhere seen. General Rutherford, of the North Carolina militia, was made prisoner, but the other general officers reached Charlotte at different times and by different routes.

About 200 wagons, a great part of the baggage, military stores, small arms, and all the artillery fell into the hands of the conquerors. This decisive victory cost the British only 80 men killed and 245 wounded. Eight hundred or 900 of the Americans were killed or wounded, and about 1,000 taken prisoners. The militia endeavored to save themselves by flight; the Continentals alone fought, and almost half their number fell.

While the army under Gates was completely defeated and dispersed Colonel Sumter was successful in his enterprise. On the evening in which

Cornwallis marched from Camden he reduced the redoubt on the Wateree, took the stores on their way to Camden, and made about 100 prisoners. On hearing, however, of the disastrous fate of the army under Gates, Sumter, fully aware of his danger, retreated hastily with his stores and prisoners up the south side of the Wateree. On the morning of the 17th (September, 1780) Cornwallis sent Tarleton, with the legion and a detachment of infantry, in pursuit of him. That officer proceeded with his usual rapidity. Finding many of his infantry unable to keep pace with him he advanced with about 100 cavalry and sixty of the most vigorous of the infantry, and on the 18th (September, 1780) suddenly and unexpectedly came upon the Americans.

Sumter, having marched with great diligence, thought himself beyond the reach of danger, and his men being exhausted by unremitting service and want of sleep, he halted near the Catawba ford to give them some repose during the heat of the day. In order to prevent a surprise he had placed sentinels at proper stations to give warning of approaching danger, but overcome by fatigue and equally regardless of duty and safety the sentinels fell asleep at their post and gave no alarm. Tarleton suddenly burst into the encampment of the drowsy and unsuspecting Americans, and, though some slight resistance was at first made from behind the baggage, soon gained a complete victory. The Americans fled precipitately toward the river or the woods. Between 300 and 400 of them were killed or wounded. Sumter escaped, galloping off on horseback, without coat, hat, or saddle, but all his baggage fell into the hands of the enemy, while the prisoners and stores which he had taken were recovered. About 150 of his men made good their retreat.

By the complete defeat and dispersion of the army under Gates and of Sumter's corps, South Carolina and Georgia appeared to be again laid prostrate at the feet of the royal army, and the hope of maintaining their independence seemed more desperate than ever.

Affairs did not seem desperate, however, to Washington. He knew the defensible nature of the country—intersected in every direction by rivers and swamps, and affording every facility for partisan warfare against regular troops, and he knew that the infamous conduct of the British in the South had thoroughly roused the indignation of the people. While Gates was gathering together a new army and stationing detachments in different

posts near Hillsborough, Washington received intelligence of the disastrous battle of Camden. The sad news came unexpectedly, as the previous reports had given hopes of some brilliant feat on the part of Gates. The unlooked-for disaster, however, did not for a moment dishearten Washington. He was fully aware of the determination of the British to conquer the South, and if possible to detach it from the confederacy, and he was determined on his part to defeat their purpose. This was to be done chiefly by rousing the South itself to action, since the position of affairs at the North did not admit of large detachments from the force under his own immediate command. He ordered, however, that some regular troops enlisted in Maryland for the war should be sent to the southward. To show how attentive he was to all the details of the necessary measures for defending the South we copy his letter of September 12th (1780) to Governor Rutledge, of South Carolina, who had been armed with dictatorial power by the Legislature of that State. {7}

"I am fully impressed," he writes, "with the importance of the southern States, and of course with the necessity of making every effort to expel the enemy from them. The late unlucky affair near Camden renders their situation more precarious and calls for every exertion to stop at least the further progress of the British army. It is to be wished that the composition of our force in this quarter, our resources, and the present situation of the fleet and army of our ally would admit of an immediate and sufficient detachment, not only to answer the purpose I have just mentioned, but to carry on operations of a more serious and extensive nature. But this not being the case, for reasons which must be obvious to you, let it suffice that your Excellency be informed that our views tend ultimately to the southward.

"In the meantime our endeavors in that quarter should be directed rather to checking the progress of the enemy by a permanent, compact, and well-organized body of men, than attempting immediately to recover the State of South Carolina by a numerous army of militia, who, besides being inconceivably expensive, are too fluctuating and undisciplined to oppose one composed chiefly of regular troops. I would recommend to you, therefore, to make use of your influence with the States from Maryland southward, to raise without delay at least 5,000 men for the war, if it can be effected; if not, for as long a time as possible. These, with the militia in the vicinity, would answer the purpose I have last mentioned, and would in

proper time make a useful body, either to form a diversion in favor of, or to cooperate with, a force upon the coast.

"I have hinted the outlines of a plan to your Excellency which for many reasons should be in general kept to yourself. You will oblige me by informing yourself as accurately as possible, what may be the present resources of the country as to meat, corn, wheat, or rice, and transportation, as I suppose circumstances may have occasioned a considerable change. And if it is possible to form magazines of either, it should be done, especially of salt meat, which is an article so essential to military operations, that the States of Virginia and North Carolina should be requested to lay up, as soon as the weather will, permit, at least 4,000 barrels in proportion to their respective ability. You will also be pleased to endeavor to gain a knowledge of the force of the enemy, the posts they occupy, the nature and state of those posts, and the reinforcements they may probably derive from the people of the country. As you receive these several intelligences you will be pleased to communicate them to me with your opinion of the best place for debarking troops, in case of an expedition against the enemy in the southern States, and the names of the persons in that quarter whose opinion and advice may be serviceable in such an event."

In the following extract from a letter to Count de Guichen in the West Indies, September 12, 1780, we have from Washington a view of the general state of affairs after the battle of Camden. Its object was to induce the French admiral to come immediately to the United States. The letter did not reach the West Indies until De Guichen had sailed to France.

"The situation of America," Washington writes, "at this time is critical. The government is without finances. Its paper credit is sunk and no expedients can be adopted capable of retrieving it. The resources of the country are much diminished by a five years' war in which it has made efforts beyond its ability. Clinton, with an army of 10,000 regular troops (aided by a considerable body of militia, whom from motives of fear and attachment he has engaged to take arms), is in possession of one of the capital towns and a large part of the State to which it belongs. The savages are desolating the frontier. A fleet superior to that of our allies not only protects the enemy against any attempt of ours, but facilitates those which they may project against us. Lord Cornwallis, with seven or eight thousand

men, is in complete possession of two States, Georgia and South Carolina, and by recent misfortunes North Carolina is at his mercy. His force is daily increasing by an accession of adherents, whom his successes naturally procure in a country inhabited by emigrants from England and Scotland who have not been long enough transplanted to exchange their ancient habits and attachments in favor of their new residence.

"By a letter received from General Gates we learn that in attempting to penetrate and regain the State of South Carolina he met with a total defeat near Camden in which many of his troops have been cut off and the remainder dispersed with the loss of all their cannon and baggage. The enemy are said to be now making a detachment from New York for a southern destination. If they push their successes in that quarter we cannot predict where their career may end. The opposition will be feeble unless we can give succor from hence, which, from a variety of causes must depend on a naval superiority."

The remainder of the letter gives more details and urges the admiral to give his aid to the United States.

It will be recollected by the reader that Gates when in the height of his glory did not make any report to Washington of the surrender of Burgoyne. This was in the days of the Conway Cabal. He then slighted and almost insulted the great commander, whom, it is not improbable he hoped to supersede. But in the hour of disaster and defeat it was to Washington himself that he turned for help, protection, and countenance. He is prompt enough with his official report now although he writes his first dispatch to Congress in order that his apology may be published. The following letter to Washington is dated at Hillsborough, August 30, 1780: {8}

"My public letter to Congress has surely been transmitted to your Excellency. Since then I have been able to collect authentic returns of the killed, wounded, and missing of the officers of the Maryland line, Delaware regiment, artillerists, and those of the legion under Colonel Armand. They are enclosed. The militia broke so early in the day, and scattered in so many directions upon their retreat, that very few have fallen into the hands of the enemy.

"By the firmness and bravery of the Continental troops the victory is far from bloodless on the part of the foe, they having upwards of 500 men, with officers in proportion, killed and wounded. I do not think Lord Cornwallis

will be able to reap any advantage of consequence from his victory as this State seems animated to reinstate and support the army. Virginia, I am confident, will not be less patriotic. By the joint exertions of these two States there is good reason to hope that should the events of the campaign be prosperous to your Excellency all South Carolina might be again recovered. Lord Cornwallis remained with his army at Camden when I received the last accounts from thence. I am cantoning ours at Salisbury, Guilford, Hillsborough, and Cross creek. The Marylanders and artillerists, with their general hospital, will be here; the cavalry near Cross creek, and the militia to the westward. This is absolutely necessary as we have no magazine of provisions and are only supplied from hand to mouth. Four days after the action of the 16th, fortune seemed determined to distress us; for Colonel Sumter having marched near forty miles up the river Wateree halted with the wagons and prisoners he had taken the 15th; by some indiscretion the men were surprised, cut off from their arms, the whole routed, and the wagons and prisoners retaken.

"What encouragement the numerous disaffected in this State may give Lord Cornwallis to advance further into the country I cannot yet say. Colonel Sumter, since his surprise and defeat upon the west side of the Wateree, has reinstated and increased his corps to upwards of 1,000 men. I have directed him to continue to harass the enemy upon that side. Lord Cornwallis will therefore be cautious how he makes any considerable movement to the eastward while his corps remains in force upon his left flank, and the main body is in a manner cantoned in his front. Anxious for the public good I shall continue my unwearied endeavors to stop the progress of the enemy, to reinstate our affairs, to recommence an offensive war and recover all our losses in the southern States. But if being unfortunate is solely reason sufficient for removing me from command, I shall most cheerfully submit to the orders of Congress and resign an office few generals would be anxious to possess, and where the utmost skill and fortitude are subject to be baffled by the difficulties which must for a time surround the chief in command here. That your Excellency may meet with no such difficulties, that your road to fame and fortune may be smooth and easy is the sincere wish of, sir, your Excellency's most obedient, etc."

In the following extract from a letter of the 3d of September (1780), he again calls Washington's attention to his own pitiable case: "If I can yet render good service to the United States," he writes, "it will be necessary it

should be seen that I have the support of Congress and your Excellency; otherwise some men may think they please my superiors by blaming me, and thus recommend themselves to favor. But you, sir, will be too generous to lend an ear to such men, if such there be, and will show your greatness of soul rather by protecting than slighting the unfortunate. If, on the contrary, I am not supported and countenance is given to everyone who will speak disrespectfully of me it will be better for Congress to remove me at once from where I shall be unable to render them any good service. This, sir, I submit to your candor and honor, and shall cheerfully await the decision of my superiors. With the warmest wishes for your prosperity, and the sincerest sentiments of esteem and regard, I am, sir, your Excellency's most obedient, humble servant."

Notwithstanding these letters and any friendly help which Washington may have rendered to his fallen rival, the fickle Congress, as we shall presently see, deserted at his utmost need the man who they had advanced against Washington's advice.

After the battle of Camden, Cornwallis was unable to follow up the victory with his usual activity. His little army was diminished by the sword and by disease. He had not brought with him from Charleston the stores necessary for a long march, and he did not deem it expedient to leave South Carolina till he had suppressed that spirit of resistance to his authority which had extensively manifested itself in the province. In order to consummate, as he thought, the subjugation of the State, he resorted to measures of great injustice and cruelty. He considered the province as a conquered country, reduced to unconditional submission and to allegiance to its ancient sovereign, and the people liable to the duties of British subjects and to corresponding penalties in case of a breach of those duties. He forgot, or seemed to forget, that many of them had been received as prisoners of war on parole; that, without their consent, their parole had been discharged, and that, merely by a proclamation, they had been declared British subjects instead of prisoners of war.

In a few days after the battle of Camden, when Cornwallis thought the country was lying prostrate at his feet, he addressed the following letter to the commandant of the British garrison at Ninety-six: "I have given orders that all the inhabitants of this province who have subscribed and taken part in the revolt should be punished with the utmost rigor; and also those who

will not turn out, that they may be imprisoned and their whole property taken from them or destroyed. I have also ordered that compensation should be made out of these estates to the persons who have been injured or oppressed by them. I have ordered, in the most positive manner, that every militiaman who has borne arms with us and afterward joined the enemy shall be immediately hanged. I desire you will take the most vigorous measures to punish the rebels in the district you command and that you obey, in the strictest manner, the directions I have given in this letter relative to the inhabitants of the country." Similar orders were given to the commanders of other posts. {9}

In any circumstances, such orders given to officers often possessing little knowledge and as little prudence or humanity could not fail to produce calamitous effects. In the case under consideration, where all the worst passions of the heart were irritated and inflamed, the consequences were lamentable. The orders were executed in the spirit in which they were given. Numbers of persons were put to death; many were imprisoned and their property was destroyed or confiscated. The country was covered with blood and desolation, rancor and grief.

The prisoners on parole thought they had a clear right to take arms, for from their parole they had been released by the proclamation of the 20th of June (1780), which indeed called them to the duty of subjects, a condition to which they had never consented, and therefore they reckoned that they had as good a right to resume their arms as the British commander had to enjoin their allegiance. The case of those who had taken British protections in the full persuasion that they were to be allowed to live peaceably on their estates, but who, on finding that they must fight on one side or the other, had repaired to the standards of their country, was equally hard. Deception and violence were practiced against both. So long as the struggle appeared doubtful the Colonists met with fair promises and kind treatment, but at the moment when resistance seemed hopeless and obedience necessary they were addressed in the tone of authority, heard stern commands and bloody threatenings, and received harsh usage. Hence the province, which for some time presented the stillness of peace, again put on the ruthless aspect of war.

A number of persons of much respectability remained prisoners of war in Charleston since the capitulation of that town, but, after the battle of Camden, Cornwallis ordered them to be carried out of the province.

Accordingly, early in the morning of the 27th of August (1780), some of the principal citizens of Charleston were taken out of bed, put on board a guard-ship, and soon afterward transported to St. Augustine. They remonstrated with Lieutenant-Colonel Balfour, the commandant of Charleston, but experienced only the insolence of authority from that officer.

While Cornwallis endeavored by severe measures to break the spirits of the people and to establish the royal authority in South Carolina, he did not lose sight of his ulterior projects. He sent emissaries into North Carolina to excite the Loyalists there, and to assure them of the speedy march of the British army into that province. On the 8th of September (1780) he left Camden, and toward the end of the month arrived at Charlottetown, in North Carolina, of which place he took possession after a slight resistance from some volunteer cavalry under Colonel Davie. Though symptoms of opposition manifested themselves at Charlotte yet he advanced toward Salisbury and ordered his militia to cross the Yadkin. But Cornwallis was suddenly arrested in his victorious career by an unexpected disaster. He made every exertion to embody the Tory inhabitants of the country and to form them into a British militia. For that purpose he employed Major Ferguson of the Seventy-first regiment with a small detachment in the district of Ninety-six, to train the Loyalists and to attach them to his own party. From the operations of that officer he expected the most important services.

Ferguson executed his commission with activity and zeal, collected a large number of Loyalists, and committed great depredations on the friends of independence in the back settlements. When about to return to the main army in triumph he was detained by one of those incidents which occasionally occur in war and influence the course of events and the destiny of nations. Colonel Clarke, of Georgia, who had fled from that province on its reduction by Campbell in 1779, had retired to the northward, and having collected a number of followers in the Carolinas, he returned to his native province at the head of about 700 men, and while Cornwallis was marching from Camden to Charlottetown, attacked the British post at Augusta. Lieutenant-Colonel Brown, who commanded at that place with a garrison of about 150 Provincials, aided by some friendly Indians, finding the town untenable, retired toward an eminence on the banks of the Savannah, named Garden Hill. But the Americans occupied it before his arrival; by bringing

his artillery, however, to bear upon them, after a desperate conflict he succeeded in dislodging them and in gaining possession of the hill, but with the loss of his cannon. There Clarke besieged him till informed of the near approach of a British detachment from Ninety-six, under Colonel Kruger. He then retreated, abandoning the cannon which he had taken, and, though pursued, effected his escape. Notice was instantly sent to Ferguson of Clarke's retreat and of his route, and high hopes of intercepting him were entertained. For that purpose Ferguson remained longer in those parts and approached nearer the mountains than he would otherwise have done. As he had collected about 1,500 men he had no apprehension of any force assembling in that quarter able to embarrass him.

Meanwhile the depredations committed by Ferguson exasperated many of the inhabitants of the country, some of whom, fleeing across the Allegheny mountains, gave their western brethren an alarming account of the evils with which they were threatened. Those men, living in the full enjoyment of that independence for which the Atlantic States were struggling, resolved to keep the war at a distance from their settlements. The hardy mountaineers of the western parts of Virginia and North Carolina assembled under Colonels Campbell, Shelby, Cleveland, and Sevier. Other parties, under their several leaders, hastened to join them. They were all mounted and unencumbered with baggage. Each man had his blanket, knapsack, and rifle, and set out in quest of Ferguson, equipped in the same manner as when they hunted the wild beasts of the forest. At night the earth afforded them a bed and the heavens a covering; the flowing stream quenched their thirst; their guns, their knapsacks, or a few cattle driven in their rear, supplied them with food. Their numbers made them formidable, and the rapidity of their movements rendered it difficult to escape them. They amounted to nearly 3,000 men.

On hearing of their approach Ferguson began to retreat toward Charlotte and sent messengers to Cornwallis to apprise him of his danger. But the messengers were intercepted, and Cornwallis remained ignorant of the perilous situation of his detachment. In the vicinity of Gilbert town the Americans, apprehensive of Ferguson's escape, selected 1,000 of their best riflemen, mounted them on their fleetest horses, and sent them in pursuit. Their rapid movements rendered his retreat impracticable, and Ferguson, sensible that he would inevitably be overtaken, chose his ground on King's

mountain on the confines of North and South Carolina, and waited the attack.

On the 7th of October (1780) the Americans came up with him. Campbell had the command, but his authority was merely nominal, for there was little military order or subordination in the attack. They agreed to divide their forces in order to assail Ferguson from different quarters, and the divisions were led on by Colonels Cleveland, Shelby, Sevier, and Williams. Cleveland, who conducted the party which began the attack, addressed his men as follows:

"My brave fellows! we have beaten the Tories and we can beat them. When engaged you are not to wait for the word of command from me. I will show you by my example how to fight; I can undertake no more. Every man must consider himself an officer and act on his own judgment. Though repulsed, do not run off; return and renew the combat. If any of you are afraid you have not only leave to withdraw, but are requested to do so."

Cleveland instantly began the attack, but was soon compelled to retire before the bayonet. But Ferguson had no time to continue the pursuit, for Shelby came forward from an unexpected quarter and poured in a destructive fire. Ferguson again resorted to the bayonet and was again successful. But at that moment Campbell's division advanced on another side and a new battle began. Campbell, like his comrades, was obliged to retreat. But Cleveland had now rallied his division and advanced anew to the combat. The Royalists wheeled and met this returning assailant. In this way there was an unrelenting succession of attacks for about fifty minutes. Ferguson obstinately defended himself and repulsed every assailant, but at last he fell mortally wounded, and the second in command, seeing the contest hopeless, surrendered. Ferguson and 150 of his men lay dead on the field; as many were wounded; nearly 700 laid down their arms, and upwards of 400 escaped. Among the prisoners the number of regular British soldiers did not amount to 100. The Americans lost about twenty men, who were killed on the field, and they had many wounded. They took 1,500 stand of arms. Major Ferguson's position was good, but the hill abounded with wood and afforded the Americans, who were all riflemen, an opportunity of fighting in their own way and of firing from behind trees.

The Americans hanged ten of their prisoners on the spot, pleading the guilt of the individuals who suffered and the example of the British, who

had executed a great number of Americans. One of the victims was a militia officer, who accepted a British commission, although he had formerly been in the American service. Those rude warriors, whose enterprise was the spontaneous impulse of their patriotism or revenge, who acknowledged no superior authority, and who were guided by no superior counsels, having achieved their victories and attained their object, dispersed and returned home. Most of the prisoners were soon afterward released on various conditions.

The ruin of Ferguson's detachment, from which so much had been expected, was a severe blow to Cornwallis; it disconcerted his plans and prevented his progress northward. On the 14th of October (1780), as soon after obtaining certain information of the fall of Major Ferguson as the army could be put in motion, he left Charlotte, where Ferguson was to have met him and began his retreat toward South Carolina. In that retrograde movement the British army suffered severely; for several days it rained incessantly; the roads were almost impassable; the soldiers had no tents, and at night encamped in the woods in an unhealthy climate. The army was ill supplied with provisions; sometimes the men had beef, but no bread; at other times bread, but no beef. Once they subsisted during five days on Indian corn collected as it stood in the fields. Five ears were the daily allowance of two men, but the troops bore their toils and privations without a murmur.

In these trying circumstances the American Loyalists who had joined the royal standard were of great service, but their services were ill requited, and several of them, disgusted by the abusive language and even blows, which they received from some of the officers, left the British army forever. At length the troops passed the Catawba, and on the 29th of October (1780) reached Wynnesborough, an intermediate station between Camden and Ninety-six. During this difficult march Cornwallis was ill and Lord Rawdon had the command.

Washington directed the operations of this southern campaign as far as it was in his power. But he was interfered with by the pragmatistical, imbecile, and conceited Congress. Had Greene been appointed to take command of the southern army, according to Washington's desire, instead of Gates, he would soon have assembled around him that "permanent, compact, and well-organized body of men," referred to in Washington's letter to Governor

Rutledge, which we have quoted, and would have given a very different account of the British from that of Gates. Greene was second only to the Commander-in-Chief in ability—second to none in courage, coolness, and perseverance. His campaign in the South, as we shall presently see, was one of the most remarkable performances of the war. But Congress would not send him to the South till repeated disasters compelled them to listen to Washington's advice. The old virus of the Conway Cabal must have been still lurking among the members or they would scarcely have preferred Gates to Greene. We must now leave the South for a season and turn to the course of events in the northern States.

1. Footnote: This was a recent conquest of the British fleet in the West Indies.

2. Footnote: The reader will recollect that Fort Moultrie received its name from its defense by Colonel Moultrie in 1776.

3. Footnote: The reader will recollect that Fort Moultrie received its name from its defense by Colonel Moultrie in 1776.

4. Footnote: Washington, who had long ago taken the measure of Gates' capacity, was desirous that Greene should receive the appointment to the command of the southern army at this time; but his wishes were overruled by Congress. Had Greene been appointed, or even had De Kalb been left in command, the campaign of 1780 would have been quite another affair.

5. Footnote: Charles Armand, Marquis de la Rouerie, was a French officer of note when he entered our army as colonel in 1777, and was ordered to raise a corps of Frenchmen not exceeding 200 men. He served in Jersey and Pennsylvania in 1777, and in Westchester county, New York, in 1778, where he captured Major Baremore and his Loyalists, as mentioned in Washington's certificate below. In 1779 he was stationed at Ridgefield, Connecticut, under Gen. Robert Howe. He was sent with a legion composed of his own and Pulaski's cavalry to aid in Gates' southern expedition, as mentioned in the text. In 1781 he went to France to obtain clothes and equipments, and returned soon enough to assist at the siege of Yorktown. Washington recommended him strongly to Congress, who gave him the commission of brigadier-general in the spring of 1783. He returned to France in 1784, engaged in the French revolution, and took an active part. He died January 30th, 1793. On the occasion of Colonel Armand's going to

join the southern army under Gates, Washington gave him the following certificate under his own hand:

CERTIFICATE.

I certify that the Marquis de la Rouerie has served in the army of the United States since the beginning of 1777, with the rank of colonel, during which time he has commanded an independent corps with much honor to himself and usefulness to the service. He has upon all occasions conducted himself as an officer of distinguished merit, of great zeal, activity, vigilance, intelligence, and bravery. In the last campaign, particularly, he rendered very valuable services, and towards the close of it made a brilliant partisan stroke, by which, with much enterprise and address, he surprised a major and some men of the enemy in quarters, at a considerable distance within their pickets, and brought them off without loss to his party. I give him this certificate In testimony of my perfect approbation of his conduct, and esteem for himself personally.

6. Footnote: Colonel Armand censured Gates' conduct on this occasion severely. It is clear that he chose the ground best suited for the enemy's purpose. "I will not say," Armand remarked, "that the general contemplated treason, but I will say, that if he had desired to betray his army, he could not have chosen a more judicious course."

7. Footnote: Sparks, "Writings of Washington," vol. VII, p.201. 8. Footnote: Sparks, "Correspondence of the Revolution," vol. III, P.66.

9. Footnote: The orders of Rawdon and Cornwallis to the subordinates to treat the Americans in this cruel manner were intercepted and sent to Washington, who transmitted them, with a sharp letter, to Sir Henry Clinton. His reply sustained Rawdon and Cornwallis. The original letters and the whole correspondence may be found in the 7th volume of Sparks, "Writings of Washington."

CHAPTER XX. — PREPARATIONS FOR THE CAMPAIGN. 1781.

The contest between Great Britain and her revolted Colonies had involved her in other wars. Spain had already joined with France in the alliance against her, and the Dutch were now drawn into the contest. Great Britain had claimed and exercised what she called the "right of search," which included the right to seize the property of an enemy, wherever found, at sea. The Dutch, who had an extensive carrying trade with France, being plundered by the British under their insolent "right of search," were already preparing to join the other allies and commence open hostilities.

The next act in the drama was the formation of the armed neutrality denying the "right of search," and declaring that free ships made free goods. Catharine II. of Russia was at its head. Sweden and Denmark immediately joined it. It was resolved that neutral ships should enjoy a free navigation even from port to port and on the coasts of the belligerent powers; that all effects belonging to the subjects of the said belligerent powers should be looked upon as free on board such neutral ships, except only such goods as were stipulated to be contraband, and that no port should be considered under blockade unless there should be a sufficient force before it to render the blockade effectual. The other European powers were invited to join this confederacy. France and Spain agreed to do so at once; Portugal hesitated and declined, and the United Provinces delayed for a time their answer. The Emperor of Germany and the King of Prussia joined the armed neutrality in 1781.

Meanwhile, Henry Laurens having been taken prisoner on his way to Holland (1780) to solicit a loan for the United States, and his papers having made the British ministry acquainted with the fact that overtures for a treaty between Holland and America were under consideration, England, at the close of 1780, resolved upon a war with the States General. Thus England, by this step, without friend or allies, prepared to wage, single-handed, the contest with enemies in every quarter of the globe.

In the beginning of the year 1781, the affairs of the American Union wore a gloomy and alarming aspect. Vigorous and united efforts were needful; but all seemed feeble and irresolute. The people were heartily tired of the war; and, though no better affected to the parent State than before, yet they earnestly desired deliverance from the multiplied miseries of the protracted struggle.

The alliance with France had promised a speedy termination to the war; but hitherto, while its existence made the Americans comparatively remiss in their own exertions to prosecute hostilities, the French fleet and army had performed no important service.

Congress had called for an army of 37,000 men, to be in camp on the 1st of January (1781). The resolution, as usual, was too late, but even although it had been promulgated in due time, so large a force could not have been brought into the field. The deficiencies and delays on the part of the several States exceeded all reasonable anticipation. At no time during this active and interesting campaign did the regular force, drawn from Pennsylvania to Georgia inclusive, amount to 3,000 men. So late as the month of April (1781), the States, from New Jersey to New Hampshire inclusive, had furnished only 5,000 infantry, but this force was slowly and gradually increased, till, in the month of May, including cavalry and artillery which never exceeded 1,000 men, it presented a total of about 7,000, of whom upwards of 4,000 might have been relied on in active service. A considerable part of this small force arrived in camp too late to acquire during the campaign that discipline which is essential to military success. Inadequate as this army was for asserting the independence of the country, the prospect of being unable to support it was still more alarming. The men were in rags; clothing had long been expected from Europe but had not yet arrived and the disappointment was severely felt.

The magazines were ill supplied, the troops were often almost starving and the army ready to be dissolved for want of food. The arsenals were nearly empty. Instead of having the requisites of a well-appointed army everything was deficient and there was little prospect of being better provided, for money was as scarce as food and military stores. Congress had resolved to issue no more bills on the credit of the Union, and the care of supplying the army was devolved upon the several States according to a rule established by that body. Even when the States had collected the

specified provisions, the quartermaster-general had no funds to pay for the transportation of them to the army to accomplish which military impressment was resorted to in a most offensive degree. Congress was surrounded with difficulties, the several States were callous and dilatory, and affairs generally wore an aspect of debility and decay.

To deepen the general gloom there were portentous rumors of preparations for savage warfare along the whole extent of the western frontier and of an invasion on the side of Canada. In the midst of financial difficulties and apprehensions of attack both from foreign and domestic enemies, a new and alarming danger appeared in a quarter where it was little expected and which threatened to consummate the ruin of American independence. The privations and sufferings of the troops had been uncommonly great. To the usual hardships of a military life were added nakedness and hunger, under that rigor of climate which whets the appetite and renders clothing absolutely necessary. By the depreciation of the paper currency their pay was little more than nominal, and it was many months in arrear.

Besides those evils which were common to the whole army the troops of Pennsylvania imagined that they labored under peculiar grievances. Their officers had engaged them for three years or during the war. On the expiration of three years the soldiers thought themselves entitled to a discharge; the officers alleged that they were engaged for the war. The large bounties given to those who were not bound by previous enlistment heightened the discontent of the soldiers, and made them more zealous in asserting what they thought their rights. In the first transports of their patriotism they had readily enlisted, but men will not long willingly submit to immediate and unprofitable hardships in the prospect of distant and contingent rewards.

The discontents engendered by the causes now mentioned had for some time been increasing and on the 1st of January, 1781, broke out into the open and almost universal mutiny of the troops of Pennsylvania. On a signal given, the greater part of the noncommissioned officers and privates paraded under arms, declaring their intention of marching to the seat of Congress at Philadelphia to obtain a redress of grievances, or to abandon the service. The officers made every exertion to bring them back to their duty, but in vain; in the attempt, a captain was killed and several other

persons wounded. General Wayne interposed, but, on cocking his pistols at some of the most audacious of the mutineers, several bayonets were at his breast, the men exclaiming, "We respect you—we love you; but you are a dead man if you fire! Do not mistake us: we are not going to the enemy, on the contrary, were they to come out, you should see us fight under you with as much resolution and alacrity as ever, but we wish a redress of grievances and will no longer be trifled with." Such of the Pennsylvania troops as had at first taken no part in the disturbance were prevailed on to join the mutineers and the whole, amounting to 1,300 men, with six field pieces, marched from Morristown under temporary officers of their own election. Washington's headquarters were then at New Windsor on the North river.

Next day (Jan. 2, 1781), General Wayne and Colonels Butter and Stewart, officers who in a high degree enjoyed the confidence and affection of the troops, followed the mutineers, but though civilly received, they could not succeed in adjusting the differences or in restoring subordination. On the third day the mutineers resumed their march and in the morning arrived at Princeton. Congress and the Pennsylvania government, as well as Washington, were much alarmed by this mutiny fearing the example might be contagious and lead to the dissolution of the whole army. Therefore a committee of Congress, with President Reed {1} at their head and some members of the executive council of Pennsylvania, set out from Philadelphia for the purpose of allaying this dangerous commotion.

Sir Henry Clinton, who heard of the mutiny on the morning of the 3d (January 1781), was equally active in endeavoring to turn it to the advantage of his government. He ordered a large corps to be in readiness to march on a moment's notice and sent two American spies by way of Amboy and two by way of Elizabethtown, as agents from himself to treat with the mutineers. But two of the persons employed were actually spies on himself and soon disclosed his proposals to the American authorities. The two real spies on reaching Princeton were seized by the mutineers and afterwards delivered up to General Wayne who had them tried and executed on the 10th.

At first the mutineers declined leaving Princeton, but finding their demands would be substantially complied with they marched to Trenton on the 9th, and before the 15th (January 1781), the matter was so far settled that the committee of Congress left Trenton and returned to Philadelphia.

All who had enlisted for three years or during the war were to be discharged, and in cases where the terms of enlistment could not be produced the oath of the soldier was to be received as evidence on the point. They were to receive immediate certificates for the depreciation on their pay, and their arrears were to be settled as soon as circumstances would admit. On those terms about one-half of the Pennsylvania troops obtained their discharge, numbers of them having, as afterwards appeared, made false declarations concerning the terms of their enlistment.

Intelligence of this mutiny was communicated to Washington at New Windsor before any accommodation had taken place. Though he had been long accustomed to decide in hazardous and difficult situations yet it was no easy matter in this delicate crisis to determine on the most proper course to be pursued. His personal influence had several times extinguished rising mutinies. The first scheme that presented itself was to repair to the camp of the mutineers and try to recall them to a sense of their duty, but on mature reflection this was declined. He well knew that their claims were founded in justice, but he could not reconcile himself to wound the discipline of his army by yielding to their demands while they were in open revolt with arms in their hands. He viewed the subject in all its relations and was well apprised that the principal grounds of discontent were not peculiar to the Pennsylvania line, but common to all the troops.

If force was requisite he had none to spare without hazarding West Point. If concessions were unavoidable they had better be made by any person than the Commander-in-Chief. After that due deliberation which he always gave to matters of importance he determined against a personal interference and to leave the whole to the civil authorities which had already taken it up, but at the same time prepared for those measures which would become necessary if no accommodation took place. This resolution was communicated to Wayne, with a caution to regard the situation of the other lines of the army in any concessions which might be made and with a recommendation to draw the mutineers over the Delaware, with a view to increase the difficulty of communicating with the enemy in New York. The result, however, showed that this last was an unnecessary precaution.

The success of the Pennsylvania troops in exacting from their country by violence what had been denied to the claims of equity produced a similar spirit of insubordination in another division of the army. On the night of the

20th of January (1781), about 160 of the Jersey brigade, which was quartered at Pompton, complaining of grievances similar to those of the Pennsylvania line and hoping for equal success, rose in arms, and marched to Chatham with the view of prevailing on some of their comrades stationed there to join them. Their number was not formidable and Washington, knowing that he might depend on the fidelity of the greater part of his troops detached Gen. Robert Howe against the mutineers, with orders to force them to unconditional submission and to execute some of the most turbulent of them on the spot. These orders were promptly obeyed and two of the ringleaders were put to death.

Sir Henry Clinton, as in the case of the Pennsylvanians, endeavored to take advantage of the mutiny of the Jersey brigade. He sent emissaries to negotiate with them, and detached General Robertson with 3,000 men to Staten Island to be in readiness to support them if they should accede to his proposals, but the mutiny was so speedily crushed that his emissaries had no time to act.

The situation of Congress at this time was trying in the extreme. The contest was now one for very existence. A powerful foe was in full strength in the heart of the country; they had great military operations to carry on, but were almost without an army and wholly without money. Their bills of credit had ceased to be of any worth; and they were reduced to the mortifying necessity of declaring by their own acts that this was the fact, as they no longer made them a legal tender or received them in payment of taxes. Without money of some kind an army could neither be raised nor maintained. But the greater the exigency the greater were the exertions of Congress. They directed their agents abroad to borrow, if possible, from France, Spain, and Holland. They resorted to taxation, although they knew that the measure would be unpopular and that they had not the power to enforce their decree. The tax laid they apportioned among the several States, by whose authority it was to be collected. Perceiving that there was great disorder and waste, or peculation, in the management of the fiscal concerns they determined on introducing a thorough reform and the strictest economy. They accordingly appointed as treasurer Robert Morris of Philadelphia, a man whose pure morals, ardent patriotism, and great knowledge of financial concerns eminently fitted him for this important station. The zeal and genius of Morris soon produced the most favorable results. By means of the "Bank of North America," to which in the course of

the year he obtained the approbation of Congress, he contrived to draw out the funds of wealthy individuals. By borrowing in the name of the government from this bank and pledging for payment the taxes not yet collected, he was enabled to anticipate them and command a ready supply. He also used his own private credit which was good though that of the government had failed, and at one time bills signed by him individually, were in circulation to the amount of \$581,000.

The establishment of a revenue subject to the exclusive control and direction of the Continental government was connected inseparably with the restoration of credit. The efforts, therefore, to negotiate a foreign loan were accompanied by resolutions requesting the respective States to place a fund under the control of Congress which should be both permanent and productive. A resolution was passed recommending the respective States to vest a power in Congress to levy for the use of the United States a duty of five per centum ad valorem on all goods imported into any of them, and also on all prizes condemned in any of the American courts of admiralty.

This fund was to be appropriated to the payment of both the principal and interest of all debts contracted in the prosecution of the war, and was to continue until those debts should be completely discharged.

Congress at that time contained several members who perceived the advantages which would result from bestowing on the government of the nation the full power of regulating commerce, and consequently, of increasing the imports as circumstances might render advisable; but State influence predominated and they were overruled by great majorities. Even the inadequate plan which they did recommend was never adopted. Notwithstanding the greatness of the exigency and the pressure of the national wants, never during the existence of the Confederation did all the States unite in assenting to this recommendation, so unwilling are men possessed of power to place it in the hands of others.

About the same time a reform was introduced into the administration the necessity of which had been long perceived. From a misplaced prejudice against institutions sanctioned by experience all the great executive duties had been devolved either on committees of Congress or on boards consisting of several members. This unwieldy and expensive system had maintained itself against all the efforts of reason and public utility. But the scantiness of the national means at length prevailed over prejudice, and the

several committees and boards yielded to a secretary for foreign affairs, a superintendent of finance, a secretary of war, and a secretary of marine. But so miserably defective was the organization of Congress as an executive body that the year (1781) had far advanced before this measure, the utility of which all acknowledged, could be carried into complete operation by making all the appointments.

The war had continued much longer than was originally anticipated, and the natural resources of the country, mismanaged by the inexperience of the government and its ignorance of the principles of political economy were so much exhausted that it became apparent the war could not be carried on without a foreign loan and France, sufficiently embarrassed with her own affairs, was the only country to which Congress could look for pecuniary aid. Accordingly, Lieutenant-Colonel Laurens, who had been one of Washington's aids, was employed on this mission, and besides endeavoring to negotiate a loan was instructed to press on the French monarch the advantage of maintaining a naval superiority in the American seas. While the energies of America were thus paralyzed by the financial difficulties of Congress, the mutinous spirit of part of the army and the selfishness and apathy of several of the States, the British interest in the Provinces seemed in a prosperous condition. General Greene, as we shall presently see, was maintaining a doubtful and hazardous struggle against Cornwallis on the northern frontier of North Carolina. A British detachment from New York had made a deep impression on Virginia where the resistance was neither so prompt nor so vigorous as had been expected from the strength of that State and the unanimity of its citizens.

On the 1st of May, 1781, Washington commenced a military journal. The following statement is extracted from it: "I begin at this epoch a concise journal of military transactions, &c. I lament not having attempted it from the commencement of the war in aid of my memory, and wish the multiplicity of matter which continually surrounds me and the embarrassed state of our affairs which is momentarily calling the attention to perplexities of one kind or another may not defeat altogether or so interrupt my present intention and plan as to render it of little avail.

"To have the clearer understanding of the entries which may follow it would be proper to recite in detail our wants and our prospects, but this

alone would be a work of much time and great magnitude. It may suffice to give the sum of them, which I shall do in a few words, viz.:

"Instead of having magazines filled with provisions we have a scanty pittance scattered here and there in the distant States.

"Instead of having our arsenals well supplied with military stores they are poorly provided, and the workmen all leaving them. Instead of having the various articles of field equipage in readiness the quartermaster-general is but now applying to the several States to provide these things for their troops respectively. Instead of having a regular system of transportation established upon credit, or funds in the quartermaster's hands to defray the contingent expenses thereof we have neither the one nor the other; and all that business, or a great part of it being done by impressment, we are daily and hourly oppressing the people, souring their tempers, and alienating their affections. Instead of having the regiments completed agreeable to the requisitions of Congress, scarce any State in the Union has at this hour one-eighth part of its quota in the field, and there is little prospect of ever getting more than half. In a word, instead of having anything in readiness to take the field, we have nothing; and, instead of having the prospect of a glorious offensive campaign before us we have a bewildered and gloomy prospect of a defensive one, unless we should receive a powerful aid of ships, troops, and money from our generous allies, and these at present are too contingent to build upon."

While the Americans were suffering the complicated calamities which introduced the year 1781 their adversaries were carrying on the most extensive plan of operations against them which had ever been attempted. It had often been objected to the British commanders that they had not conducted the war in the manner most likely to effect the subjugation of the revolted provinces. Military critics found fault with them for keeping a large army idle at New York, which, they said, if properly applied, would have been sufficient to make successful impressions at one and the same time on several of the States. The British seemed to have calculated the campaign of 1781 with a view to make an experiment of the comparative merit of this mode of conducting military operations. The war raged in that year not only in the vicinity of the British headquarters at New York, but in Georgia, South Carolina, North Carolina, and in Virginia.

In this extensive warfare Washington could have no immediate agency in the southern department. His advice in corresponding with the officers commanding in Virginia, the Carolinas, and Georgia, was freely and beneficially given, and as large detachments sent to their aid as could be spared consistently with the security of West Point. In conducting the war his invariable maxim was to suffer the devastation of property rather than hazard great and essential objects for its preservation. While the war raged in Virginia, Thomas Jefferson, the Governor, its representatives in Congress, and other influential citizens, urged his return to the defense of his native State. But considering America as his country and the general safety as his object, he deemed it of more importance to remain on the Hudson. There he was not only securing the most important post in the United States but concerting a grand plan of combined operations which, as shall soon be related, not only delivered Virginia but all the States from the calamities of the war. In Washington's disregard of property when in competition with national objects he was in no respect partial to his own. While the British were in the Potomac they sent a flag to Mount Vernon requiring a supply of fresh provisions. Refusals of such demands were often followed by burning the houses and other property near the river. To prevent this catastrophe the person entrusted with the management of the estate went on board with the flag and carrying a supply of provisions, requested that the buildings and improvements might be spared. For this he received a severe reprimand in a letter to him in which Washington observed: "It would have been a less painful circumstance to me to have heard that in consequence of your noncompliance with the request of the British they had burned my house and laid my plantation in ruins. You ought to have considered yourself as my representative, and should have reflected on the bad example of communicating with the enemy and making a voluntary offer of refreshment to them with a view to prevent a conflagration."

To the other difficulties with which Washington had to contend in the preceding years of the war a new one was about this time added. While the whole force at his disposal was unequal to the defense of the country against the common enemy, a civil war was on the point of breaking out among his fellow-citizens. The claims of Vermont to be a separate, independent State, and of the State of New York to their country, as within its chartered limits, together with open offers from the royal commanders to

establish and defend them as a British province, produced a serious crisis which called for the interference of the American chief. This was the more necessary, as the governments of New York and Vermont were both resolved on exercising a jurisdiction over the same people and the same territory. Congress, wishing to compromise the controversy, on middle ground, resolved, in August, 1781, to accede to the independence of Vermont on certain conditions and within certain specified limits which they supposed would satisfy both parties. Contrary to their expectations this mediatorial act of the national Legislature was rejected by Vermont, and yet was so disagreeable to the Legislature of New York as to draw from them a spirited protest against it. Vermont complained that Congress interfered in their internal police; New York viewed the resolve as a virtual dismemberment of their State, which was a constituent part of the Confederacy. Washington, anxious for the peace of the Union, sent a message to Governor Chittenden of Vermont desiring to know "what were the real designs, views, and intentions of the people of Vermont; whether they would be satisfied with the independence proposed by Congress, or had it seriously in contemplation to join with the enemy and become a British province." The Governor returned an unequivocal answer: "That there were no people on the continent more attached to the cause of America than the people of Vermont, but they were fully determined not to be put under the government of New York; that they would oppose this by force of arms and would join with the British in Canada rather than submit to that government." While both States were dissatisfied with Congress, and their animosities, from increasing violence and irritation, became daily more alarming, Washington, aware of the extremes to which all parties were tending, returned an answer to Governor Chittenden in which were these expressions: "It is not my business, neither do I think it necessary now to discuss the origin of the right of a number of inhabitants to that tract of country formerly distinguished by the name of the New Hampshire grants, and now known by that of Vermont. I will take it for granted that their right was good, because Congress by their resolve of the 17th of August imply it, and by that of the 21st are willing fully to confirm it, provided the new State is confined to certain described bounds. It appears, therefore, to me that the dispute of boundary is the only one that exists, and that being removed all other difficulties would be removed also and the matter terminated to the satisfaction of all parties. You have nothing to do but

withdraw your jurisdiction to the confines of your old limits and obtain an acknowledgment of independence and sovereignty under the resolve of the 21st of August (1781), for so much territory as does not interfere with the ancient established bounds of New York, New Hampshire, and Massachusetts. In my private opinion, while it behooves the delegates to do ample justice to a body of people sufficiently respectable by their numbers and entitled by other claims to be admitted into that confederation, it becomes them also to attend to the interests of their constituents and see that under the appearance of justice to one they do not materially injure the rights of others. I am apt to think this is the prevailing opinion of Congress."

The impartiality, moderation, and good sense of this letter, together with a full conviction of the disinterested patriotism of the writer, brought round a revolution in the minds of the Legislature of Vermont, and they accepted the propositions of Congress though they had rejected them four months before. A truce among the contending parties followed and the storm blew over. Thus the personal influence of one man, derived from his pre-eminent virtues and meritorious services, extinguished the sparks of civil discord at the time they were kindling into flame. {2}

While Washington, during the early part of the year 1781, was thus contending with every species of discouragement and difficulty, prevented from acting offensively by want of means, and thus apparently wasting away the fighting season in comparative inaction the war was actively raging in the southern States. To this grand theater of hostilities, as interesting as they are terrible, we must now call the reader's attention.

1. Footnote: Gen. Joseph Reed, formerly secretary to Washington.

2. Footnote: It was during this dispute between New York and Vermont that Gen. Ethan Allen, then residing in the latter State, received large offers from the British to use his influence to detach Vermont from the Union and annex it to Canada. Of course these offers were indignantly rejected.

CHAPTER XXI. — THE CAMPAIGN AT THE SOUTH. 1781.

In our last notice of the movements and operations of the contending armies in the southern States, we left Cornwallis, after a dreary and disastrous retreat, at Wynnborough. The Americans, in the meantime, were not idle. Defeated, but not subdued, they were active in preparing to renew the struggle. After the defeat and dispersion of his army at Camden, General Gates retreated to Charlotte, eighty miles from the field of battle. There he halted to collect the straggling fugitives and to endeavor from the wreck of his discomfited army to form a force with which he might check or impede the advancing foe. He was soon joined by Generals Smallwood and Gist, and about 150 dispirited officers and soldiers. Most of the militia who escaped returned home, and General Caswell was ordered to assemble those of the neighboring counties. Major Anderson of the Third Maryland regiment, who had collected a number of fugitives not far from the field of battle, proceeded toward Charlotte by easy marches in order to give stragglers time to join him. But as Charlotte was utterly indefensible and as no barrier lay between it and the victorious enemy Gates retreated to Salisbury and sent Colonel Williams, accompanied by another officer, on the road leading to Camden to gain information of the movements of Cornwallis, and to direct such stragglers as he met to hasten to Salisbury. From Salisbury Gates proceeded to Hillsborough, where he intended to assemble an army with which he might contend for the southern Provinces.

It was from Hillsborough that he wrote the letter to Washington, which we have already quoted, desiring the exertion of his influence to prevent his being superseded in the command of the southern army.

At Hillsborough every exertion was made to collect and organize a military force and ere long Gates was again at the head of 1,400 men. Even before the royal army entered North Carolina that State had called out the second division of its militia, under Generals Davidson and Sumner, and they were joined by the volunteer cavalry under Colonel Davie.

When Cornwallis entered Charlotte, Gates ordered General Smallwood to take post at the fords of the Yadkin in order to dispute the passage of the river, and Morgan, who had joined the southern army with the rank of brigadier-general, was employed with a light corps to harass the enemy.

When Cornwallis retreated Gates advanced to Charlotte; he stationed General Smallwood further down the Catawba on the road to Camden and ordered Morgan to some distance in his front. Such was the position of the troops when Gates was superseded in the command of the southern army.

On the 5th of October (1780) Congress, without any previous indications of dissatisfaction, had passed a resolution requiring Washington to order a court of inquiry into the conduct of Major-General Gates, as commander of the southern army, and to appoint another officer to that command till such inquiry should be made. The order of Congress to inquire into the conduct of Gates was unsatisfactory, as we have already seen, to Washington. It was afterward dispensed with and Gates restored to a command in the army.

Meanwhile Washington recommended Major-General Greene to Congress as a person qualified to command the southern army. Greene, by his activity, intrepidity, and good conduct, had gained the confidence of Washington long ago; he had desired him to have the command when Gates was appointed, as we have already seen, and he now again recommended him as an officer in whose ability, fortitude, and integrity he could trust. On the 2d of December (1780) Greene arrived at Charlotte and informed Gates of his commission. That was the first official notice which Gates, the former favorite of Congress, received of his removal from the command of the southern army. Next day Gates resigned the command of the army with becoming dignity and patriotism, and Greene, who was dissatisfied with the treatment which he had received, behaved toward him with the most polite attention.

In a few hours after Greene entered on his command he received the report of one of Morgan's foraging parties, not far from Camden. The party advanced to the vicinity of the British posts at Clermont, which was viewed by Col. William A. Washington, who saw that it was too strong to be taken by small arms and cavalry, the only weapons and force present; he therefore had recourse to stratagem. Having made an imposing show of part of his men and having placed the trunk of a pine tree in such a situation as, at a distance, to have the appearance of a cannon, he summoned the post to

surrender, and it yielded without firing a shot. The Tory Colonel Rugely and 112 men whom he had collected in the place were made prisoners. This inconsiderable event elated Greene's army and was considered by them as a good omen of success under their new leader.

General Greene's situation was embarrassing. His army was feeble, consisting, on the 8th of December (1780), of 2,029 infantry, of whom 1,482 were in camp and 547 in detachments; 821 were Continentals and 1,208 were militia. Besides these there were 90 cavalry, 60 artillerymen, and 128 Continentals on extra service, constituting in all a force of 2,307 men.

In North Carolina there were many Loyalists, and hostilities were carried on between them and their republican neighbors with the most rancorous animosity. The country was thinly inhabited and abounded in woods and swamps. The cultivated parts were laid waste by hostile factions, and no magazines for the army were provided. The troops were almost naked, and Greene obliged to procure subsistence for them day by day.

He found that he could not long remain at Charlotte for the country between that place and Camden, having been traversed by the contending armies, was quite exhausted. In order, therefore, to procure subsistence for his troops, as well as to distract and harass the enemy, Greene, though fully aware of the danger of such a measure, felt himself constrained to divide his little army.

General Morgan had been invested with the command of the light troops by Gates, and Greene placed him at the head of one of the divisions of his army, consisting of nearly 400 infantry under Lieutenant-Colonel Howard, 170 Virginia riflemen under Major Triplett, and 80 light dragoons under Lieut.-Col. William A. Washington. With this small force Morgan was sent to the south of the Catawba to observe the British at Wynnsborough and Camden and to shift for himself, but was directed to risk as little as possible. On the 25th of December (1780) he took a position toward the western frontier of South Carolina, not far from the confluence of the Pacolet and Broad rivers, and about fifty miles northwest from Wynnsborough. With the other division of his army Greene left Charlotte on the 20th of the same month (December, 1780), and on the 29th arrived at Hick's Corner on the east side of the Pedee, opposite the Cheraw hills, about seventy miles northeast from Wynnsborough, where he remained some

time. He marched to that place in the hope of finding more plentiful subsistence for his troops, but his difficulties in that respect were not much diminished, for the country was almost laid waste by the cruel feuds of the hostile factions.

General Morgan did not long remain inactive. On the 27th of December (1780) he detached Colonel Washington with his dragoons and 200 militia, who next day marched forty miles, surprised a body of Loyalists at Ninety-six, killed or wounded 150 of them, and took 40 prisoners, without sustaining any loss. At that time Morgan was joined by Major M'Dowell with 200 North Carolina, and by Colonel Pickens with 70 South Carolina militia.

The British had to contend not only with the force under Greene and Morgan, but were also obliged to watch other adversaries not less active and enterprising. Sumter had been defeated by Tarleton on the 18th of August (1780), and his followers dispersed, but that daring and indefatigable partisan did not long remain quiet. He was soon again at the head of a considerable band and had frequent skirmishes with his adversaries. Always changing his position about Enoree, Broad, and Tiger rivers, he often assailed the British posts in that quarter. On the 12th of November (1780) he was attacked at Broad river by Major Wemyss, but repulsed the party and made the major prisoner. On the 20th of the same month he was attacked by Tarleton at Black Stocks, near Tiger river; the encounter was sharp and obstinate; Tarleton was repulsed with loss, but Sumter was wounded in the battle, and, being unfitted for active service, his followers dispersed. Sumter showed much humanity to his prisoners. Although Wemyss had deliberately hanged Mr. Cusack in the Cheraw district, and although he had in his pocket a list of several houses burned by his orders, yet he met with every indulgence. At Black Stocks the wounded were kindly treated.

Other partisan chiefs arose and among them General Marion held a distinguished place. He had commanded a regiment in Charleston at the time of the siege, but having received a wound which fractured his leg, and being incapable of discharging the {1} active duties of his office, he withdrew from the town. On the advance of Gates, having procured a band of followers, he penetrated to the Santee, harassed the British detachments, and discouraged the Loyalists. After the defeat of the Americans at Camden

he rescued a party of Continental prisoners who were under a British guard. So ill was he provided with arms that he was obliged to forge the saws of the sawmills into rude swords for his horsemen, and so scanty was his ammunition that at times he engaged when he had not three cartridges to each of his party. He secured himself from pursuit in the recesses of the forest and in deep swamps. {2}

Cornwallis impatiently waited the arrival of reinforcements. After the victory at Camden, when he was flushed with the sanguine hope not only of overrunning North Carolina, but of invading Virginia, General Leslie was detached from New York to the southward with a considerable body of troops, and, according to orders, landed in Virginia, expecting to meet the southern army in that State. On finding himself unable to accomplish his lofty schemes, and obliged to fall back into South Carolina, Cornwallis ordered Leslie to re-embark and sail for Charleston. He arrived there on the 13th of December (1780), and on the 19th began his march with 1,500 men to join Cornwallis. His lordship resolved to begin offensive operations immediately on the arrival of his reinforcements, but, in the meantime, alarmed by the movements of Morgan for the safety of the British post at Ninety-six, he detached Tarleton with the light and legion infantry, the fusiliers or Seventh regiment, the first battalion of the Seventy-first regiment, 350 cavalry, 2 field pieces, and an adequate number of the royal artillery, in all about 1,100 men, with orders to strike a blow at Morgan and drive him out of the province. As Tarleton's force was known to be superior to that under Morgan, no doubt whatever was entertained of the precipitate flight or total discomfiture of the Americans.

Meanwhile Cornwallis left Wynnsborough and proceeded toward the northwest, between the Broad and Catawba rivers. General Leslie, who had halted at Camden in order to conceal as long as possible the road which the British army was to take, was now ordered to advance up the Catawba and join the main body on its march. By this route Cornwallis hoped to intercept Morgan if he should escape Tarleton, or perhaps to get between General Greene and Virginia and compel him to fight before the arrival of his expected reinforcements. The British generals encumbered with baggage and military stores, marching through bad roads, and a country intersected by rivulets which were often swollen by the rains, advanced but slowly. Tarleton, however, with his light troops, proceeded with great celerity and overtook Morgan probably sooner than was expected.

On the 14th of January (1781) Morgan was informed of the movements of the British army and got notice of the march of Tarleton and of the force under his command. Sensible of his danger he began to retreat, and crossed the Pacolet, the passage of which he was inclined to dispute, but, on being told that Tarleton had forded the river six miles above him, he made a precipitate retreat, and at ten at night on the 16th of January the British took possession of the ground which the Americans had left a few hours before.

Although his troops were much fatigued by several days' hard marching through a difficult country, yet, determined that Morgan should not escape, Tarleton resumed the pursuit at three next morning, leaving his baggage behind under a guard with orders not to move till break of day. Morgan, though retreating, was not disinclined to fight. By great exertions he might have crossed Broad river or reached a hilly tract of country before he could have been overtaken. He was inferior to Tarleton in the number of his troops, but more so in their quality, as a considerable part of his force consisted of militia, and the British cavalry were three times more numerous than the American. But Morgan, who had great confidence both in himself and in his men, was apprehensive of being overtaken before he could pass Broad river, and he chose rather to fight voluntarily than to be forced to a battle. Therefore, having been joined by some militia under Colonel Pickens, he halted at a place called the Cowpens, about three miles from the line of separation between North and South Carolina. Before daylight on the morning of the 17th of January (1781), he was informed of the near approach of Tarleton, and instantly prepared to receive him.

The ground on which Morgan halted had no great advantages, but his dispositions were judicious. On rising ground, in an open wood, he drew up his Continental troops and Triplett's corps, amounting together to nearly 500 men, under Lieutenant-Colonel Howard. Colonel Washington with his cavalry was posted in their rear, behind the eminence, ready to act as occasion might require. At a small distance in front of his Continentals was a line of militia under Colonel Pickens and Major M'Dowell, and 150 yards in front of Pickens was stationed a battalion of North Carolina and Georgia volunteers under Major Cunningham, with orders to give one discharge on the approaching enemy, and then to retreat and join the militia. Pickens was directed, when he could no longer keep his ground, to fall back with a retreating fire and form on the right of the Continentals.

Scarcely were those dispositions made when the British van appeared. Tarleton, who had been informed by two prisoners of Morgan's position and strength, instantly formed his troops. The light and legion infantry and the Seventh regiment, and a captain with fifty dragoons on each flank, constituted his first line; the first battalion of the Seventy-first regiment and the rest of the cavalry composed the reserve. Formerly Tarleton had succeeded by sudden and impetuous assaults, and, entertaining no doubt of speedy and complete victory on the present occasion, he led on his men to the attack with characteristic ardor, even before his troops were well formed. The British rushed forward impetuously, shouting and firing as they advanced. The American volunteers, after a single discharge, retreated to the militia under Pickens. The British advanced rapidly, and furiously attacked the militia, who soon gave way and sought shelter in the rear of the Continentals. Tarleton eagerly pressed on, but the Continentals, undismayed by the retreat of the militia, received him firmly, and an obstinate conflict ensued. Tarleton ordered up his reserve, and the Continental line was shaken by the violence of the onset. Morgan ordered his men to retreat to the summit of the eminence and was instantly obeyed. The British, whose ranks were somewhat thinned, exhausted by the previous march and by the struggle in which they had been engaged, and believing the victory won, pursued in some disorder, but, on reaching the top of the hill, Howard ordered his men to wheel and face the enemy; they instantly obeyed and met the pursuing foe with a well-directed and deadly fire. This unexpected and destructive volley threw the British into some confusion, which Howard observing, ordered his men to charge them with the bayonet. Their obedience was as prompt as before, and the British line was soon broken. About the same moment Washington routed the cavalry on the British right, who had pursued the flying militia and were cutting them down on the left and even in the rear of the Continentals. Ordering his men not to fire a pistol, Washington charged the British cavalry sword in hand. The conflict was sharp, but not of long duration. The British were driven from the ground with considerable loss and closely pursued. Howard and Washington pressed the advantage which they had gained; many of the militia rallied and joined in the battle. In a few minutes after the British had been pursuing the enemy, without a doubt of victory, the fortune of the day entirely changed; their artillerymen were killed, their cannon taken, and the greater part of the infantry compelled to lay down their arms. Tarleton, with

about forty horse, made a furious charge on Washington's cavalry, but the battle was irrecoverably lost, and he was reluctantly obliged to retreat. Upwards of 200 of his cavalry, who had not been engaged, fled through the woods with the utmost precipitation, bearing away with them such of the officers as endeavored to oppose their flight. The only part of the infantry which escaped was the detachment left to guard the baggage, which they destroyed when informed of the defeat, and, mounting the wagons and spare horses, hastily retreated to the army. The cavalry arrived in camp in two divisions; one in the evening, with the tidings of their disastrous discomfiture, and the other, under Tarleton himself, appeared next morning. In this battle the British had ten commissioned officers and upwards of 100 privates killed. More than 500 were made prisoners, nearly 200 of whom, including twenty-nine commissioned officers, were wounded. Two pieces of artillery, two standards, 800 muskets, thirty-five baggage wagons and about 100 horses fell into the hands of the Americans whose loss amounted only to 12 men killed and 60 wounded. The British force under Tarleton has been commonly estimated at 1,100 men, and the American army at 1,000, although Morgan, in his official report to Greene, written two days after the battle, states it to have been only 800. {3}

Cornwallis was at Turkey creek, twenty-five miles from the Cowpens, confident of the success of his detachment or at least without the slightest apprehension of its defeat. He was between Greene and Morgan and it was a matter of much importance to prevent their junction and to overthrow the one of them while he could receive no support from the other. For that purpose he had marched up Broad river and instructed General Leslie to proceed on the banks of the Catawba in order to keep the Americans in a state of uncertainty concerning the route which he intended to pursue, but the unexpected defeat of his detachment was an occurrence equally mortifying and perplexing and nothing remained but to endeavor to compensate the disaster by the rapidity of his movements and the decision of his conduct.

He was as near the fords of the Catawba as Morgan and flattered himself that, elated with victory and encumbered with prisoners and baggage, that officer might yet be overtaken before he could pass those fords. Accordingly, on the 18th of January, (1781) he formed a junction with General Leslie and on the 19th began his remarkable pursuit of Morgan. In order the more certainly to accomplish his end at Ramsour's Mills he

destroyed the whole of his superfluous baggage. He set the example by considerably diminishing the quantity of his own and was readily imitated by his officers although some of them suffered much less by the measure. He retained no wagons except those loaded with hospital stores and ammunition and four empty ones for the accommodation of the sick and wounded. But notwithstanding all his privations and exertions he ultimately missed his aim for Morgan displayed as much prudence and activity after his victory as bravery in gaining it. Fully aware of his danger he left behind him, under a flag of truce, such of the wounded as could not be moved with surgeons to attend them, and scarcely giving his men time to breathe he sent off his prisoners under an escort of militia and followed with his regular troops and cavalry, bringing up the rear in person. He crossed Broad river at the upper fords, hastened to the Catawba, which he reached on the evening of the 28th, and safely passed it with his prisoners and troops next day—his rear having gained the northern bank only about two hours before the van of the British army appeared on the opposite side.

Much rain had fallen on the mountains a short time before and it rained incessantly during the night. The river rose and in the morning was impassable. Morgan made a hair-breadth escape, for had the river risen a few hours sooner he would have been unable to pass and probably would have been overtaken and overwhelmed by his pursuers and had the flood in the river been a little later Cornwallis might have forced a passage and entirely discomfited the American division. But it was two days before the inundation subsided, and in that interval Morgan sent off his prisoners towards Charlottesville, in Virginia, under an escort of militia and they were soon beyond the reach of pursuit. The Americans regarded the swelling of the river with pious gratitude as an interposition of Heaven in their behalf and looked forward with increased confidence to the day of ultimate success.

Morgan called for the assistance of the neighboring militia, and prepared to dispute the passage of the river; but on the 31st of January (1781), while he lay at Sherwood's ford, General Greene unexpectedly appeared in camp and took on himself the command. Toward the end of December, (1781) Greene, as already mentioned, took a position at Hick's creek on the east side of the Peedee, and had in camp 1,100 Continental and State troops fit for service. On the 12th of January (1781) he was joined by Col. Henry Lee's partisan legion which arrived from the North and consisted of 100

well-mounted horsemen and 120 infantry. This reinforcement was next day dispatched on a secret expedition and in order to divert the attention of the enemy from the movements of the legion, Major Anderson, with a small detachment was sent down the Peedee. On the night of the 24th, Lee surprised Georgetown and killed some of the garrison, but the greater part fled into the fort which Lee was not in a condition to besiege.

Although Cornwallis perceived that he would meet with opposition yet he determined to force the passage. The river was about 500 yards wide, three feet deep, and the stream rapid. The light infantry of the guards under Colonel Hall, accompanied by a guide, first entered the ford; they were followed by the grenadiers who were succeeded by the battalions. As soon as Davidson perceived the direction of the British column he led his men to the point where it was about to land. But before he arrived the light infantry had overcome all difficulties and were ascending the bank and forming. While passing the river, in obedience to orders, they reserved their fire, and, on gaining the bank, soon put the militia to flight. Davidson was the last to retreat and on mounting his horse to retire he received a mortal wound.

The defeat of Davidson opened the passage of the river. All the American parties retreated, and on the same day the rest of the British army crossed at Beattie's ford. Tarleton, with the cavalry and the Twenty-third regiment, was sent in pursuit of the militia, and being informed on his march that the neighboring militia were assembling at Tarrant's tavern, about ten miles distant, he hastened with the cavalry to that place. About 500 militia were assembled and seemed not unprepared to receive him. He attacked them with his usual impetuosity and soon defeated and dispersed them with considerable slaughter. The passage of the river and the total discomfiture of the party at Tarrant's tavern so much intimidated the inhabitants of the country that the royal army received no further trouble from the militia till it had passed the Yadkin.

A grand military race now began between the retreating Americans under Greene and the pursuing British under Cornwallis. Greene marched so rapidly that he passed the Yadkin at the trading ford on the night between the 2d and 3d of February (1781), partly by fording and partly by means of boats and flats. So closely was he pursued that the British van was often in sight of the American rear and a sharp conflict happened not far from the ford, between a body of American riflemen and the advanced guard of the

British army, when the latter obtained possession of a few wagons. Greene secured all the boats on the south side and here it again happened as at the Catawba—the river suddenly rose by reason of the preceding rains and the British were unable to pass. This second escape by the swelling of the waters was interpreted by the Americans as a visible interposition of Heaven in their behalf and inspired then with a lofty enthusiasm in that cause which seemed to be the peculiar care of Omnipotence.

Greene, released from the immediate pressure of his pursuers, continued his march northward and on the 7th of February joined his division under Huger and Williams near Guilford Courthouse.

In order to cover his retreat and to check the pursuing enemy Greene formed a light corps out of Lee's legion, Howard's infantry, Washington's cavalry, and some Virginia riflemen under Major Campbell, amounting to 700 men, the flower of the southern army. As General Morgan was severely indisposed the command of these light troops was given to Col. Otho Holland Williams, formerly adjutant-general.

Having refreshed his troops, and made the necessary arrangements on the morning of the 10th of February (1781), Greene left Guilford Courthouse on his march towards the Dan, and was pursued by Cornwallis, who had been detained by the long circuit which he was obliged to make in order to pass the Yadkin. The retreat and pursuit were equally rapid, but the boldness and activity of the American light troops compelled the British to march compactly and with caution, for on one occasion Colonel Lee charged the advanced cavalry of the British army suddenly and furiously, killed a number, and made some prisoners. On this occasion Cornwallis felt the loss of the light troops who had been killed or taken at the Cowpens. He was destined to regret their loss through the rest of the campaign.

Greene's precautions and preparations for passing the Dan were successful and on the 14th of February he crossed that river at Boyd's and Irwin's ferries with his army, baggage, and stores. Although his light troops had marched forty miles that day, yet the last of them had scarcely reached the northern bank when the advanced guard of the British army appeared on the other side of the river.

The escape of Greene into Virginia without a battle and without any loss except a few wagons at the Yadkin, was a severe disappointment to Cornwallis. He had entirely failed in his attempts against Greene, but he

was consoled by the reflection that he had completely driven him out of North Carolina, and that now there was nothing to hinder the loyal inhabitants from openly espousing the British cause and reinforcing the royal army.

Cornwallis now gave up the pursuit and repaired to Hillsborough with the view of calling out and organizing the Royalist forces. His adherents, though here particularly strong, did not come forward to the extent expected. The larger portion, as elsewhere, regarded the cause with that passive and inert attachment which we have remarked to be generally prevalent and even the more zealous having suffered severely by former premature displays, dreaded lest the republican cause should regain the ascendancy. The view also of the distress and exhaustion of the British troops after so long a march was by no means alluring. Yet seven companies were formed and detachments began to come in from different quarters.

On the other hand, Greene, having obtained a reinforcement of Virginia militia, repassed the Dan and with his light troops endeavored to annoy the British army and prevent recruiting. Major Lee surprised a detachment of Royalists who mistook him for Tarleton and cut them nearly to pieces. On account of the exhausted state of the country at Hillsborough, Cornwallis soon withdrew to a position on the Allimance creek between Haw and Deep rivers, where he could be better supplied and support his friends who were numerous there. Greene, however, by an active use of his cavalry and light troops, severely harassed his opponent and by changing his own position every night, eluded the attempt to bring him to an engagement.

At length General Greene, having received reinforcements which raised his army to above 4,200 men, of whom about a third were regulars, determined to offer battle. This was what Cornwallis had eagerly sought, yet his own effective force being reduced to somewhat under 2,000 he felt now some hesitation, and probably would have acted more wisely in maintaining the defensive. Even the enterprising Tarleton observes that in his circumstances defeat would have been total ruin, while any victory he might expect to gain could yield little fruit. All the habits and views of Cornwallis, however, being directed to an active campaign, he formed his resolution and, on the 15th of March (1781), proceeded to the attack. Greene had drawn up his army very judiciously near Guilford Courthouse mostly on a range of hills covered with trees and brushwood.

Greene made disposition of his troops in the following order: The first line was composed of North Carolina militia, the right under General Eaton and the left under General Butler, with two pieces of artillery under Captain Singleton. The right flank was supported by Kirkwood's Delawareans, Lynch's riflemen, and the cavalry, all under Lieutenant-Colonel Washington, and the left in like manner by Lieutenant-Colonel Campbell's riflemen and the infantry of the legion, all under Lieutenant-Colonel Lee. The second line, which was formed 300 yards in the rear of the first, consisted of two brigades of Virginia militia, the right under General Lawson and the left under General Stevens. The third, 400 yards in reserve was formed upon the brow of the hill near the courthouse. The right of this line was composed of Hawes's and Greene's Virginia regiments under General Huger; the left of the first and second Maryland regiments, the former under Gunby, the latter under Ford—the whole commanded by Colonel Williams. In the center of the last line was placed the remainder of the artillery.

Captain Singleton commenced his fire, which was returned by the enemy, who had formed their line of battle—the right wing under General Leslie and the left under Lieutenant-Colonel Webster, with the artillery in the center under Lieutenant-Colonel McLeod. The first battalion of the guards, under Lieutenant-Colonel Norton, served as a support for the right, and the second, with one company of grenadiers under General O'Hara, for the left wing. Tarleton's dragoons were held in reserve. The British commander having made all his dispositions advanced, fired one round, and charged bayonets. Our militia having given a few shots while the enemy was at a distance were seized by a panic when they saw him coming down upon them. Many of them threw away their muskets, and the entreaties of Butler, Eaton, and Davie, with the threats of Lee, were of no avail. Almost the entire body fled. The artillery now retired to the left of the Marylanders. At this crisis the enemy considered victory as already within his grasp and continued to push on when he was attacked on his right and left by Lee and Washington. Cornwallis perceiving this threw one regiment out to engage Lee, and one regiment together with his light infantry and yagers to resist Washington, filling up the breach thus created by advancing the grenadiers with two battalions of the guards, which had formed the supports to the flanks. Lee and Washington fell back in good order, delivering their fire until they came up with the second line which gave battle in good earnest. The right flank was supported by Washington, who ordered Lynch's

riflemen to fall upon the left of Webster, who had to be supported by O'Hara. Here Webster ordered the Thirty-third regiment to attack Lynch and was thereby in a measure relieved. O'Hara charged the Virginia right wing, which was obliged to yield ground. Lee on the left nobly did his duty and firmly held his position. When the militia on the right gave way those on the left fell back and were not rallied until they came up on the left of the third line. Campbell's riflemen and Lee's legion stood perfectly firm and continued the contest against one regiment, one battalion, and a body of infantry and riflemen. The American reserve, with the artillery posted in a most favorable position, was fresh and ready for the word of command. Webster having overcome the Americans of the second line in his front advanced upon the third and was received by Gunby's Maryland regiment with a most galling fire which made his troops falter. Gunby advanced, charging bayonets, when the enemy was completely routed.

Leslie, after the left of the Virginia militia gave way, advanced to the support of O'Hara, who had forced the American right wing, and the combined commands of these generals charged the Second Maryland regiment of the third line. This regiment, panic-stricken, fled. Gunby, coming up at the time, held the enemy in check and a deadly conflict ensued. Gunby having his horse shot under him, Lieutenant-Colonel Howard assumed the command. Washington seeing how hot was the battle at this point pushed forward and charged the enemy, and Howard advancing with his bayonets leveled, the British were completely routed.

The pursuit was continued for some distance when Cornwallis came up and determined to gain the victory at any cost. He opened the fire of his artillery alike on friend and foe, causing an indiscriminate slaughter of British and Americans.

The British were rallied at all points, and Greene, considering it better to preserve the advantages he had gained, withdrew his forces. This was done in good order and Cornwallis continued the pursuit but a short distance. The loss of the Americans was about 400 in killed and wounded; that of the British about 800. The enemy retained the field, but his victory was both empty, and disastrous.

Notwithstanding Cornwallis claimed a victory he resolved to fall back on Wilmington, near the mouth of Cape Fear river, where he could recruit his troops and obtain supplies and reinforcements by sea.

Greene retreated about fifteen miles, taking post behind a small stream called Troublesome creek, where he expected and awaited an attack.

1. Footnote: Marion was a strict temperance man. Being at a dinner party where the guests, determined on a hard drinking bout, had locked the door to prevent his exit, he jumped out of a second-story window, and broke his leg. This was the wound above referred to. It occasioned him to leave the city. He thus escaped surrendering when Charleston fell, and his temperance preserved to the country one of its bravest defenders.

2. Footnote: Marion, on account of his successful stratagems and sudden surprises of the British, was called by them the *Swamp-Fox*. His own countrymen styled him the *Bayard* of the South.

3. Footnote: The action at the Cowpens was one of the medal victories. Congress had separate gold medals struck in honor of it, and presented to Morgan, Howard, and Col. William A. Washington. The name Cowpens, according to Irving, comes from the old designation of Hannah's Cowpens, the place being part of a grazing establishment belonging to a man named Hannah. The worthy grazier could hardly have foreseen the immortality which was destined to attach to his Cowpens.

CHAPTER XXII. — THE CAMPAIGN AT THE SOUTH CONCLUDED. 1781.

While the events recorded in the last chapter were passing Washington was by no means a passive spectator. He held a constant correspondence with Greene and sent him all the aid he could. Writing to him on the 9th of January, 1781, he says: "It is impossible for anyone to sympathize more feelingly with you in the sufferings and distresses of the troops than I do, and nothing could aggravate my unhappiness so much as the want of ability to remedy or alleviate the calamities which they suffer and in which we participate but too largely.

"The brilliant action of General Sumter and the stratagem of Colonel Washington deserve great commendation. It gives me inexpressible pleasure to find that such a spirit of enterprise and intrepidity still prevails."
{1}

Writing to Greene again (on the 21st of March, 1781), he says: "You may be assured that your retreat before Lord Cornwallis is highly applauded by all ranks and reflects much honor on your military abilities." Such words, from such a man, must have inspirited Greene amidst his toils and perils.

Greene, writing to Washington three days after the battle of Guilford Courthouse, says: "In my former letters I enclosed to your Excellency the probable strength of the British army, since which they have been constantly declining. Our force, as you will see by the returns, was respectable, and the probability of not being able to keep it long in the field, and the difficulty of subsisting men in this exhausted country, together with the great advantages which would result from the action if we were victorious, and the little injury if we were otherwise, determined me to bring on an action as soon as possible. When both parties are agreed in a matter all obstacles are soon removed. I thought the determination warranted by the soundest principles of good policy and I hope events will prove it so though we were unfortunate. I regret nothing so much as the loss of my artillery, though it was of little use to us, nor can it be in this great wilderness. However, as the enemy have it, we must also."

"Lord Cornwallis," he writes in the same letter, "will not give up this country without being roundly beaten. I wish our force was more competent to the business. But I am in hopes, by little and little, to reduce him in time. His troops are good, well found, and fight with great obstinacy.

"Virginia has given me every support I could wish or expect since Lord Cornwallis has been in North Carolina, and nothing has contributed more to this than the prejudice of the people in favor of your Excellency which has been extended to me from the friendship you have been pleased to honor me with."

The reader will not fail to observe the soundness of Greene's judgment as to the beneficial effect of the battle of Guilford Courthouse. It was truly a disastrous victory for Cornwallis and a fortunate defeat for Greene, whose subsequent operations we must now notice.

When Greene took his position at the ironworks on Troublesome creek after the battle of Guilford Courthouse he expected that Cornwallis would follow up his advantage and attack him without delay. He therefore prepared again to fight. His army, indeed, was much diminished, but he had lost more in numbers than in effective strength. The militia, many of whom had returned home, had shown themselves very inefficient in the field. As soon as he received certain information that instead of pursuing, Cornwallis was retreating, he resolved to follow him and advanced accordingly.

Greene was now in his turn the pursuer and followed Cornwallis so closely that skirmishes occasionally happened between his advanced parties and the rear guard of the British army, but no conflict of importance ensued. On the morning of the 28th of March he arrived at Ramsay's Mills, on Deep river, a strong post which the British had evacuated a few hours before, crossing the river by a bridge erected for the purpose. There Greene paused and meditated on his future movements. His army, like that of the British, for some time past had suffered much from heavy rains, deep roads, and scarcity of provisions. On reaching Ramsay's Mills his men were starving with hunger and fed voraciously on some fresh quarters of beef left behind by the British army. The troops were much exhausted and stood in need of repose and refreshment. Besides in that critical state of the campaign he found himself reduced to a handful of Continentals. Most of the militia had left him. Small as his army was he found great difficulty in procuring subsistence for it.

Cornwallis had fairly the start of the Americans and was advancing to a place where he would find more plentiful supplies and easily communicate with the sea; so that Greene was sensible that with the force then under his command he could make no impression on him. He resolved, therefore, instead of following his opponent, to proceed to South Carolina. That step, he thought, would oblige Cornwallis either to follow him or to abandon his posts in the upper parts of the southern States. If he followed him North Carolina would be relieved and enabled to raise its quota of men for the Continental service, but if he remained in that State or proceeded to the northward it was likely that the greater part of the British posts in South Carolina and Georgia would be reduced and that those States would be restored to the Union. He entertained little apprehension of Cornwallis being able with the force then under his command to make any permanent impression on the powerful State of Virginia.

Having refreshed his troops and collected provisions for a few days Greene moved from Ramsay's Mills, on Deep river, on the 5th of April (1781), toward Camden, and on the morning of the 20th of the same month encamped at Logtown in sight of the British works at that place.

Soon after his arrival at Wilmington, Cornwallis received certain information that Greene was proceeding to South Carolina, and it threw him into much perplexity. He was alarmed for the safety of Lord Rawdon, but, though desirous of assisting him, he was convinced that the Americans were already so far advanced that it was impossible for him to arrive at Camden in time to succor Rawdon if he should need it. His lordship's fate and that of his garrison would probably be decided long before he could reach them, and if Greene should be successful at Camden, he, by attempting to relieve it, might be hemmed in between the great rivers and exposed to the most imminent hazard. On the other hand, if Rawdon should defeat Greene there would be no need of his assistance. A movement so perilous in the execution and promising so little in the result was abandoned and Rawdon left to his own resources.

Greene, without regard to the movements of his opponent, pushed on and established himself at Hobkirk's Hill, about a mile from Rawdon's headquarters at Camden. The militia having either deserted or their term of service being expired his force was reduced to 1,800 men, but those in fact included all on whom he could ever place much dependence. Camden was

occupied by Rawdon with about 800 men, the other troops being employed upon the defense of detached posts, yet his position was judged so strong as to afford no hope of success in a direct attack. The object aimed at was, by throwing out detachments which might capture the forts and cut off the supplies in his rear, to compel him gradually to fall back. Lee, for this purpose, was sent with a strong party to cooperate with Marion and Sumter. The English general seeing the hostile troops thus reduced to about 1,500, formed the bold resolution of attacking them. Making a large circuit round a swamp he came upon their left flank quite unexpectedly, while the soldiers were busied in cooking and washing. This first surprise was never wholly recovered, yet they quickly stood to their arms and formed in order of battle. They had even gained some advantages when the First Maryland regiment, considered the flower of the army and which had highly distinguished itself both at Cowpens and Guilford, fell into confusion, and when ordered to make a retrograde movement, converted it into a complete retreat. The other corps also, beginning to give ground, Greene thought it expedient to cause the whole to retire. The loss on each side was about 260 killed and wounded, and the Americans carried off fifty prisoners, including six officers.

This battle, commonly called the battle of Hobkirk's Hill, reflected much honor on Lord Rawdon considering the disproportion of force which was, in fact, greater than at Guilford, yet it did not change materially the relative situation of the armies. Greene could still maintain his position and support the detachments operating in the rear of his adversary.

Lee and Marion proceeded next against Fort Watson on the Santee which commanded in a great measure the communication with Charleston. Having neither artillery nor besieging tools they reared a tower above the level of the rampart whence their rifle fire drove the defenders, and themselves then mounted and compelled the garrison to surrender. They could not, however, prevent Colonel Watson from leading 500 men to reinforce Lord Rawdon, who then advanced with the intention of bringing Greene again to action, but found him fallen back upon so strong a position as to afford no reasonable hope of success. His lordship finding his convoys intercepted and viewing the generally insecure state of his posts in the lower country, considered himself under at least the temporary necessity of retreating thither. He had first in view the relief of Mott's House, on the Congaree, but before reaching it had the mortification to find that with the garrison of 165

it had fallen into the hands of Marion and Lee. He continued his march to Monk's Corner, where he covered Charleston and the surrounding country.

The partisan chiefs rapidly seized this opportunity of attacking the interior posts and reduced successively Orangeburg and Granby on the Congaree, and early in June, Augusta, the key of upper Georgia, surrendered to Lee and Pickens. In these five forts they made 1,100 prisoners. The most important one, however, was that named Ninety-Six, on the Saluda, defended by a garrison of 500 men. Orders had been sent to them to quit and retire downward but the messenger was intercepted and Colonel Cruger, the commander, made the most active preparations for its defense. Greene considered the place of such importance that he undertook the siege in person with 1,000 regulars. He broke ground before it on the night of the 23d of May (1781), and though much impeded by a successful sally on the following day, proceeded with such energy that by the 3d of June the second parallel was completed and the garrison summoned, but in vain, to surrender. On the 8th, he was reinforced by Lee from the capture of Augusta and though he encountered a most gallant and effective resistance trusted that the place must in due time fall. Three days after, however, he learned that Rawdon, having received a reinforcement from Ireland, was in full march to relieve it and had baffled the attempts of Sumter to impede his progress. The American leader, therefore, feeling himself unable to give battle saw no prospect of carrying the fortress unless by storm. On the 18th (June, 1781), an attack against the two most commanding outworks was led by Lee and Campbell, the former of whom carried his point, but the latter, though he penetrated into the ditch and maintained his party there for three-quarters of an hour, found them exposed to so destructive a fire as compelled a general retreat. {2} The siege was immediately raised and Lord Rawdon, on the 21st, entered the place in triumph. Being again master of the field, he pressed forward in the hope of bringing his antagonist to battle but the latter rather chose to fall back towards the distant point of Charlotte in Virginia, while Rawdon did not attempt to pursue him beyond the Ennoree.

Notwithstanding this present superiority his lordship, having failed in his hopes of a decisive victory and viewing the general aspect of the country, considered it no longer possible to attempt more than covering the lower districts, of South Carolina. He therefore fell back to Orangeburg on the Edisto and though he attempted at first to maintain Cruger with a strong

body at Ninety-Six was soon induced to recall him. Greene, being reinforced by 1,000 men under Marion and Sumter, reconnoitered his position but, judging it imprudent to attack, retired to the high hills of the Santee, July the 15th (1781), and both armies, exhausted by such a series of active movements, took an interval of repose during the heat of the season.

Lord Rawdon being at this time obliged by ill health to return to England left the army under the command of Colonel Stuart, who, to cover the lower country, occupied a position at the point where the Congaree and Wateree unite in forming the Santee. Greene, having received reinforcements from the North and collected all his partisan detachments soon found himself strong enough to try the chance of battle. His approach on the 7th of September (1781) with this evident view induced the British to retire down the river to the strong post of Eutaw Springs, whither the American army immediately followed.

On the 8th of September, Greene determined to attack the British camp, placing as usual his militia in front, hoping that the English in charging them would get into confusion, but from apprehension of this the latter had been warned to keep their posts till ordered to move. The American front, however, maintained their ground better than usual and the British having become heated and forgetting the warnings given pushed forward irregularly. They were then charged by the veterans of the second line and after a very desperate struggle driven off the field. There lay in their way, however, a large brick building and adjacent garden, where Stuart had placed a strong corps which could not be dislodged and which kept up a deadly fire which checked the victors, enabling the retreating troops to be formed anew. At the same time Colonel Washington attacked the British flank, but finding it strongly posted amongst the woods he was repulsed with great loss and himself taken prisoner. The American general seeing no hope of making any further impression, retreated to his previous position. The conflict lasted four hours and great bravery was shown on both sides. Colonel Campbell was mortally wounded. Learning the British were dispersing he exclaimed, like Wolfe at Quebec, "Then I die contented!" and immediately expired.

In this bloody and doubtful battle both parties claimed the victory though the Americans with most reason as the general result was greatly to their advantage. It was certainly far from decisive and the British loss in killed

and wounded was much greater than that of the Americans, who also carried off above 500 prisoners. The British commander, prompted as well probably by the result of the day as by the general state of the country and the numbers and activity of the American light troops, conceiving himself unable to maintain so advanced a position, retired during the evening of the 9th (September 1781), and proceeded down to Monk's Corner, where he covered Charleston and its vicinity. To this and to Savannah were now limited that proud British authority which had lately extended so widely over the southern States. {3}

Thus ended the campaign of 1781 in South Carolina. At its commencement the British were in force all over the State. History affords but a few instances of commanders who have achieved so much with equal means as was done by General Greene in the short space of twelve months. He opened the campaign with gloomy prospects but closed it with glory. His unpaid and half-naked army had to contend with veteran soldiers, supplied with everything that the wealth of Great Britain or the plunder of Carolina could procure. Under all these disadvantages he compelled superior numbers to retire from the extremity of the State, and confine themselves in the capital and its vicinity. Had not his mind been of the firmest texture he would have been discouraged, but his enemies found him as formidable on the evening of a defeat as on the morning after a victory.

The reader will not fail to perceive how important a bearing the operations of Greene in the South had upon those of Washington in the North. Before recovering North Carolina, South Carolina, and Georgia, Greene had partly led and partly driven Cornwallis into Virginia, where he was destined to be conquered by Washington and the war was thus to be virtually terminated. How this was accomplished will now be the object of our attention. Virginia had insensibly, as it were, become the principal theater of war. General Leslie had been sent thither to reinforce Cornwallis, who it was hoped might penetrate through the Carolinas, but after Ferguson's disaster he was ordered to go round by Charleston. With the view, however, of creating a diversion in favor of the southern army, Clinton, in December, 1780, sent Arnold with 1,600 men to the Chesapeake. That infamous traitor, displaying all his wonted activity, overran a great extent of country and captured Richmond, the capital, destroying great quantities of stores. Washington, most anxious to strike a blow against him, prevailed upon Destouches, the French admiral to proceed thither with a

land force but the latter was overtaken by Arbuthnot and endured a hard battle which though not admitted to be a defeat obliged him to return to Newport; thus Arnold escaped the danger of falling into the hands of his enraged countrymen. Clinton, still with the same view, sent another force of 2,000 men under General Phillips which arrived in the Chesapeake on the 26th of March (1781). This officer being complete master of the field, overran the country between the James and York rivers, seized the town of Petersburg, as also Chesterfield Courthouse, the militia rendezvous, and other stations, destroying great quantities of shipping and stores, with all the warehoused tobacco. Lafayette, then in command of about 3,000 men for the defense of Virginia, succeeded by skilful maneuvering in securing Richmond.

Operations seemed at a stand, when, late in April, intelligence was received of Cornwallis' march from South Carolina toward Virginia and, in spite of every effort of Lafayette, he, at the end of May (1781), joined Phillips at Petersburg, taking the command of the whole army. Being then decidedly superior he took possession of Richmond and began a hot pursuit of Lafayette, who retreated into the upper country so rapidly and so skillfully that he could not be overtaken. The English general then turned back and sent a detachment under Colonel Simcoe, who destroyed the chief magazine at the junction of the two branches of James river. Tarleton pushed his cavalry so swiftly upon Charlotteville, where the State Assembly was met, that seven members were taken and the rest very narrowly escaped. Lafayette, however, now returned with a considerable force and by his maneuvers induced the British commander to retire to Williamsburg. He afterward continued his retreat to Portsmouth in the course of which the former made an attack but was repulsed and would have been totally routed had not his strength been estimated above its real amount.

The movement of Cornwallis into Virginia had been wholly disapproved by Clinton who complained that, contrary to all his views and intentions, the main theater of war had been transferred to a territory into which he never proposed more than partial inroads, considering it very difficult to subdue and maintain. His grand object had always been first to secure New York and, if sufficient strength was afforded, to push offensive operations thence into the interior. Hoping, therefore, that the Carolinas, once subdued, might be retained by a small force, he had repeatedly solicited the partial return of the troops. Cornwallis defended the movement by observing that

his situation at Wilmington, allowing no time to send for instructions, obliged him to act on his own responsibility. Communicating also with the government at home he urged that the Carolinas could not be securely held without the possession also of Virginia; that this might be attained by a vigorous effort, and would make Britain mistress of all the southern Colonies, whose resources could be then employed in conquering the more stubborn regions of the North. These arguments, recommended by his lordship's brilliant achievements at Camden and elsewhere, convinced the ministry, and Lord Germaine wrote to the Commander-in-Chief to direct his principal attention to the war in Virginia and to the plan of conquest from south to north. The latter, considering himself thus slighted, solicited permission to resign and leave the command to an officer who enjoyed greater confidence, but his merits being highly estimated this tender was not accepted.

Under the apprehension inspired by the threatening movements of Washington and the French army against New York, he had ordered a considerable reinforcement from Virginia, but countermanded it on receiving the above instructions, along with an additional body of troops. He had formed, apparently, a favorite plan somewhat of a compromise between the two. It is nowhere distinctly developed in his letters, but by a passage in one very active operations were proposed at the head of the Chesapeake, to be combined probably with a movement from New York and comprehending Philadelphia and Baltimore. Aware that this plan required the maritime command of that great inlet, he inquired if ministers would insure its maintenance, and they made this engagement without duly considering its difficulties. Under these views he directed Cornwallis to occupy and fortify a naval position at the entrance of the bay, specially recommending Old Point Comfort, at the mouth of James river. This measure did not harmonize with Cornwallis' views; however, he obeyed, but, the above position being declared by the engineers indefensible, he recommended, in preference, Yorktown on the York river, which was agreed to and operations actively commenced at the latter end of August. The whole British force at this time in Virginia was about 7,000 men.

1. Footnote: Referring to the affair at Rugely's Mills, where Colonel Washington frightened the militia colonel into a surrender by means of a pine log mounted like a cannon.

2. Footnote: On this occasion Kosciusko, the Polish general, particularly distinguished himself.

3. Footnote: In the southern provinces the campaign of 1781 was uncommonly active. The exertions and sufferings of the army were great. But the troops were not the only sufferers; the inhabitants were exposed to many calamities. The success of Colonel Campbell at Savannah laid Georgia and the Carolinas open to all the horrors which attend the movements of conflicting armies and the rage of civil dissensions for two years.

In those provinces the inhabitants were nearly divided between the British and American interests, and, under the names of Tories and Whigs, exercised a savage hostility against each other, threatening the entire depopulation of the country. Besides, each of the contending armies, claiming the provinces as its own, showed no mercy to those who, in the fluctuations of war, abandoned its cause or opposed its pretensions. Numbers were put to death as deserters and traitors at the different British posts. One of those executions, that of Colonel Hayne, happened at Charleston on the 4th of August, while Lord Rawdon was in that town, preparing to sail for Europe, and threatened to produce the most sanguinary consequences.

Colonel Hayne had served in the American militia during the siege of Charleston, but, after the capitulation of that place and the expulsion of the American army from the province, he was, by several concurring circumstances, constrained, with much reluctance, to subscribe a declaration of allegiance to the British government being assured that his services against his country would not be required. He was allowed to return to his family, but, in violation of the special condition on which he had signed the declaration, he was soon called on to take up arms against his countrymen, and was at length threatened with close confinement in case of further refusal. Colonel Hayne considered this breach of contract on the part of the British, and their inability to afford him the protection promised in reward of his allegiance, as absolving him from the obligations into which he had entered, and accordingly he returned to the American standard. In the month of July he was taken prisoner, confined in a loathsome dungeon, and, by the arbitrary mandate of Lord Rawdon and

Colonel Balfour, without trial, hanged at Charleston. He behaved with much firmness and dignity, and his fate awakened a strong sensation.



CHAPTER XXIII. — WASHINGTON CAPTURES CORNWALLIS. 1781.

We have already seen, by the quotation from Washington's journal, how gloomy was the prospect presented to him at this time. He evidently saw little to encourage a hope of the favorable termination of the campaign of that year. Indeed, it is quite apparent that our national affairs were then at a lower ebb than they had ever been since the period immediately preceding the battle of Trenton. But by the merciful interposition of divine Providence, the course of events took a favorable turn much sooner than he had anticipated. His letter to Col. John Laurens, on the occasion, already mentioned, of that gentleman's mission to France to obtain a loan, had been productive of remarkable effects.

In this paper he detailed the pecuniary embarrassments of the government, and represented with great earnestness the inability of the nation to furnish a revenue adequate to the support of the war. He dwelt on the discontents which the system of impressment had excited among the people, and expressed his fears that the evils felt in the prosecution of the war, might weaken the sentiments which began it.

From this state of things he deduced the vital importance of an immediate and ample supply of money, which might be the foundation for substantial arrangements of finance, for reviving public credit, and giving vigor to future operations, as well as of a decided effort of the allied arms on the continent to effect the great objects of the alliance in the ensuing campaign.

Next to a supply of money he considered a naval superiority in the American seas as an object of the deepest interest. To the United States it would be of decisive importance, and France also might derive great advantages from transferring the maritime war to the coast of her ally. The future ability of the United States to repay any loan which might now be obtained was displayed, and he concluded with assurances that there was still a fund of inclination and resource in the country, equal to great and continued exertions, provided the means were afforded of stopping the progress of disgust by changing the present system and adopting another

more consonant with the spirit of the nation, and more capable of infusing activity and energy into public measures, of which a powerful succor in money must be the basis. "The people were discontented, but it was with the feeble and oppressive mode of conducting the war, not with the war itself."

With great reason did Washington urge on the cabinet of Versailles the policy of advancing a sum of money to the United States which might be adequate to the exigency. Deep was the gloom with which the political horizon was then overcast. The British in possession of South Carolina and Georgia had overrun the greater part of North Carolina also, and it was with equal hazard and address that Greene maintained himself in the northern frontier of that State.

A second detachment from New York was making a deep impression on Virginia, where the resistance had been neither so prompt nor so vigorous as the strength of that State and the unanimity of its citizens had given reason to expect.

Such were the facts and arguments urged by Washington in his letter to Colonel Laurens. Its able exposition of the actual state of the country, and his arguments in support of the application of Congress for a fleet and army as well as money, when laid before the King and the ministry, decided them to afford the most ample aid to the American cause. A loan of \$6,000,000 was granted, which was to be placed at Washington's disposal, but he was happy to be relieved from that responsibility. A loan from Holland was also guaranteed by the French government, and large reinforcements of ships and men were sent to the United States. The intelligence of these succors followed within a few days after the desponding tone of Washington's journal, to which we have just referred.

Early in May (1781) the Count de Barras, who had been appointed to the command of the French fleet on the American coast, arrived at Boston, accompanied by the Viscount de Rochambeau, commander of the land forces. An interview between Washington and the French commanders was immediately appointed to be held at Wethersfield, near Hartford, on the 21st (May, 1781), but some movements of the British fleet made de Barras repair to Newport, while the two generals met at the appointed place and agreed on a plan of the campaign. It was resolved to unite the French and American armies on the Hudson and to commence vigorous operations

against New York. The regular army at that station was estimated at only 4,500 men, and though Sir Henry Clinton might be able to reinforce it with 5,000 or 6,000 militia, yet it was believed he could not maintain the post without recalling a considerable part of his troops from the southward and enfeebling the operations of the British in that quarter; in which case it was resolved to make a vigorous attack on the point which presented the best prospect of success.

In a letter to General Greene, dated June 1, 1781, Washington thus gives the result of the conference with Rochambeau: "I have lately had an interview with Count de Rochambeau at Weathersfield. Our affairs were very attentively considered in every point of view and it was finally determined to make an attempt upon New York, with its present garrison, in preference to a southern operation, as we had not the decided command of the water. You will readily suppose the reasons which induced this determination were the inevitable loss of men from so long a march, more especially in the approaching hot season, and the difficulty, I may say impossibility, of transporting the necessary baggage, artillery, and stores by land. If I am supported as I ought to be by the neighboring States in this operation, which, you know, has always been their favorite one, I hope that one of these consequences will follow—either that the enemy will be expelled from the most valuable position which they hold upon the continent or be obliged to recall part of their force from the southward to defend it. Should the latter happen you will be most essentially relieved by it. The French troops will begin their march this way as soon as certain circumstances will admit. I can only give you the outlines of our plan. The dangers to which letters are exposed make it improper to commit to paper the particulars, but, as matters ripen, I will keep you as well informed as circumstances will allow."

Washington immediately required the States of New England to have 6,000 militia in readiness to march wherever they might be called for, and sent an account of the conference at Wethersfield to Congress. His dispatch was intercepted in the Jerseys and carried to Clinton, who, alarmed by the plan which it disclosed, made the requisition, already mentioned, of part of the troops under Cornwallis, and took diligent precautions for maintaining his post against the meditated attack.

Meanwhile the several States of the Union were extremely dilatory in furnishing their contingents of troops, and it was found difficult to procure subsistence for the small number of men already in the field. The people and their rulers talked loudly of liberty, but each was anxious to sacrifice as little as possible to maintain it and to devolve on his neighbor the expense, dangers, and privations of the struggle.

In consequence of this dilatory spirit, when the troops left their winter quarters in the month of June (1781), and encamped at Peekskill, the army under Washington did not amount to 5,000 men. This force was so much inferior to what had been contemplated when the plan of operations was agreed on at Wethersfield that it became doubtful whether it would be expedient to adhere to that plan. But the deficiency of the American force was in some measure compensated by the arrival at Boston of a reinforcement of 1,500 men to the army under Rochambeau.

The hope of terminating the war in the course of the campaign encouraged the States to make some exertions. Small as was their military force it was difficult to find subsistence for the troops, and even after the army had taken the field there was reason to apprehend that it would be obliged to abandon the objects of the campaign for want of provisions. It was at that critical juncture of American affairs that the finances of the Union were entrusted to Robert Morris, a member of Congress for Pennsylvania, a man of considerable capital and of much sagacity and mercantile enterprise. He, as we have already seen, extensively pledged his personal credit for articles of the first necessity to the army, and, by an honorable fulfillment of his engagements, did much to restore public credit and confidence. It was owing mainly to his exertions that the active and decisive operations of the campaign were not greatly impeded or entirely defeated by want of subsistence to the army and of the means of transporting military stores.

By his plan of a national bank, already referred to, Mr. Morris rendered still more important service. Its notes were to be received as cash into the treasuries of the several States, and also as an equivalent for the necessities which the States were bound to provide for the army. In this way, and by a liberal and judicious application of his own resources, an individual afforded the supplies which government was unable to furnish.

The French troops, under Rochambeau, marched from Newport and Boston toward the Hudson. Both in quarters and on the route their behavior was exemplary, and gained the respect and good will of the inhabitants. Toward the end of June (1781) Washington put his army in motion, and, learning that a royal detachment had passed into the Jerseys, he formed a plan to surprise the British posts on the north end of York Island, but it did not succeed, and General Lincoln, who commanded the Americans, being attacked by a strong British party, a sharp conflict ensued. Washington marched with his main body to support his detachment, but on his advance the British retired into their works at Kingsbridge. Rochambeau, then on his march to join Washington, detached the Duke de Lauzun with a body of men to support the attack, who advanced with his troops within supporting distance, but the British had retreated before they could be brought into action.

Having failed in his design of surprising the British posts Washington withdrew to Valentine's Hill, and afterward to Dobb's Ferry. While encamped there, on the 6th of July (1781), the van of the long-expected French reinforcements under Rochambeau was seen winding down the neighboring heights. The arrival of these friendly strangers elevated the minds of the Americans, who received them with sincere congratulations. Washington labored, by personal attentions, to conciliate the good will of his allies, and used all the means in his power to prevent those mutual jealousies and irritations which frequently prevail between troops of different nations serving in the same army. An attack on New York was still meditated, and every exertion made to prepare for its execution, but with the determination, if it should prove impracticable, vigorously to prosecute some more attainable object. {1}

On the evening of the 21st of July (1781), the greater part of the American, and part of the French troops, left their encampment, and marching rapidly during the night, appeared in order of battle before the British works at Kingsbridge, at 4 next morning. Washington and Rochambeau, with the general officers and engineers, viewed the British lines in their whole extent from right to left, and the same was again done next morning. But, on the afternoon of the 23d they returned to their former encampment without having made any attempt on the British works.

At that time the new levies arrived slowly in the American camp, and many of those who were sent were mere boys utterly unfit for active service. The several States discovered much backwardness in complying with the requisitions of Congress, so that there was reason to apprehend that the number of troops necessary for besieging New York could not be procured. This made Washington turn his thoughts more seriously to the southward than he had hitherto done, but all his movements confirmed Clinton in the belief that an attack on New York was in contemplation. As the British Commander-in-Chief, however, at that time received about 3,000 troops from Europe, he thought himself able to defend his post without withdrawing any part of the force from Virginia. Therefore he countermanded the requisition which he had before sent to Cornwallis for part of the troops under his command. The troops were embarked before the arrival of the counter order, and of their embarkation Lafayette sent notice to Washington. On the reception of new instructions, however, as formerly mentioned they were relanded and remained in Virginia.

No great operation could be undertaken against the British armies so long as their navy had undisputed command of the coast and of the great navigable rivers. Washington, as we have seen, had already, through Colonel Laurens, made an earnest application to the court of France for such a fleet as might be capable of keeping in check the British navy in those seas and of affording effectual assistance to the land forces. That application was not unsuccessful, and towards the middle of the month of August the agreeable information was received of the approach of a powerful French fleet to the American coast.

Early in March (1781) the Count de Grasse had sailed from Brest with twenty-five ships-of-the-line, five of which were destined for the East, and twenty for the West Indies. After an indecisive encounter in the Straits of St. Lucie with Sir Samuel Hood, whom Sir George Rodney, the British admiral in the West Indies had detached to intercept him, Count de Grasse formed a junction with the ships of his sovereign on that station and had a fleet superior to that of the British in the West Indies. De Grasse gave the Americans notice that he would visit their coast in the month of August and take his station in Chesapeake Bay, but that his continuance there could only be of short duration. This dispatch at once determined Washington's resolution with respect to the main point of attack, and as it was necessary that the projected operation should be accomplished within a very limited

time prompt decision and indefatigable exertion were indispensable. Though it was now finally resolved that Virginia should be the grand scene of action, yet it was prudent to conceal till the last moment this determination from Sir Henry Clinton, and still to maintain the appearance of threatening New York.

The defense of the strong posts on the Hudson or North river was entrusted to General Heath who was instructed to protect the adjacent country as far as he was able, and for that purpose a respectable force was put under his command. Every preparation of which circumstances admitted was made to facilitate the march to the southward. Washington was to take the command of the expedition and to employ in it all the French troops and a strong detachment of the American army.

On the 19th of August (1781) a considerable corps was ordered to cross the Hudson at Dobbs' Ferry and to take a position between Springfield and Chatham, where they were directed to cover some bakehouses which it was rumored were to be immediately constructed in the vicinity of those places in order to encourage the belief that there the troops intended to establish a permanent post. On the 20th and 21st the main body of the Americans passed the river at King's ferry, but the French made a longer circuit and did not complete the passage till the 25th. Desirous of concealing his object as long as possible, Washington continued his march some time in such a direction as still to keep up the appearance of threatening New York. When concealment was no longer practicable he marched southward with the utmost celerity. His movements had been of such a doubtful nature that Sir Henry Clinton, it is said, was not fully convinced of his real destination till he had crossed the Delaware.

Great exertions had been made to procure funds for putting the army in motion, but, after exhausting every other resource, Washington was obliged to have recourse to Rochambeau for a supply of cash, which he received.

{2}

On the 2d and 3d of September (1781) the combined American and French armies passed through Philadelphia, where they were received with ringing of bells, firing of guns, bonfires, illuminations, and every demonstration of joy. Meanwhile Count de Grasse, with 3,000 troops on board, sailed from Cape Francois with a valuable fleet of merchantmen, which he conducted out of danger, and then steered for Chesapeake Bay

with twenty-eight sail-of-the-line and several frigates. Toward the end of August (1781) he cast anchor just within the capes, extending across from Cape Henry to the middle ground. There an officer from Lafayette waited on the count, and gave him full information concerning the posture of affairs in Virginia, and the intended plan of operations against the British army in that State.

Cornwallis was diligently fortifying himself at York and Gloucester. Lafayette was in a position on James river to prevent his escape into North Carolina, and the combined army was hastening southward to attack him. In order to cooperate against Cornwallis De Grasse detached four ships-of-the-line and some frigates to block up the entrance of York river, and to carry the land forces which he had brought with him, under the Marquis de St. Simon, to Lafayette's camp. The rest of his fleet remained at the entrance of the bay.

Sir George Rodney, who commanded the British fleet in the West Indies, was not ignorant that the count intended to sail for America, but knowing that the merchant vessel which he convoyed from Cape Francois were loaded with valuable cargoes the British admiral believed that he would send the greater part of his fleet along with them to Europe and would visit the American coast with a small squadron only.

Accordingly, Rodney detached Sir Samuel Hood with fourteen sail-of-the-line to America as a sufficient force to counteract the operations of the French in that quarter. Admiral Hood reached the capes of Virginia on the 25th of August (1781), a few days before de Grasse entered the bay and finding no enemy there sailed for Sandy Hook, where he arrived on the 28th of August.

Admiral Graves, who had succeeded Admiral Arbuthnot in the command of the British fleet on the American station, was then lying at New York with seven sail-of-the-line; but two of his ships had been damaged in a cruise near Boston and were under repair. At the same time that Admiral Hood gave information of the expected arrival of de Grasse on the American coast, notice was received of the sailing of de Barras with his fleet from Newport. Admiral Graves, therefore, without waiting for his two ships which were under repair, put to sea on the 31st of August with nineteen sail-of-the-line and steered to the southward.

On reaching the capes of the Chesapeake, early on the morning of the 5th of September (1781), he discovered the French fleet, consisting of twenty-four ships-of-the-line, lying at anchor in the entrance of the bay. Neither admiral had any previous knowledge of the vicinity of the other till the fleets were actually seen. The British stretched into the bay and soon as Count de Grasse ascertained their hostile character he ordered his ships to slip their cables, form the line as they could come up without regard to their specified stations and put to sea. The British fleet entering the bay and the French leaving it, they were necessarily sailing in different directions, but Admiral Graves put his ships on the same tack with the French and about four in the afternoon a battle began between the van and centre of the fleets which continued till night. Both sustained considerable damage. The fleets continued in sight of each other for five days, but de Grasse's object was not to fight unless to cover Chesapeake Bay, and Admiral Graves, owing to the inferiority of his force and the crippled state of several of his ships, was unable to compel him to renew the engagement.

On the 10th (September, 1781), de Grasse bore away for the Chesapeake and anchored within the capes next day when he had the satisfaction to find that Admiral de Barras with his fleet from Newport and fourteen transports laden with heavy artillery and other military stores for carrying on a siege had safely arrived during his absence. That officer sailed from Newport on the 25th of August, and making a long circuit to avoid the British, entered the bay while the contending fleets were at sea. Admiral Graves followed the French fleet to the Chesapeake, but on arriving there he found the entrance guarded by a force with which he was unable to contend. He then sailed for New York and left de Grasse in the undisputed possession of the bay.

While these naval operations were going on the land forces were not less actively employed in the prosecution of their respective purposes. The immediate aim of Washington was to overwhelm Cornwallis and his army at Yorktown; that of Clinton, to rescue him from his grasp. As soon as Clinton was convinced of Washington's intention of proceeding to the southward with a view to bring him back, he employed the infamous traitor Arnold, with a sufficient naval and military force, on an expedition against New London. The "parricide," as Jefferson calls him, had not the slightest objection to fill his pockets with the plunder of his native State. He passed from Long Island and on the forenoon of the 6th of September (1781)

landed his troops on both sides of the harbor; those on the New London side being under his own immediate orders and those on the Groton side commanded by Lieutenant-Colonel Eyre. As the works at New London were very imperfect, no vigorous resistance was there made, and the place was taken possession of with little loss. But Fort Griswold, on the Groton side, was in a more finished state and the small garrison made a desperate defense. The British entered the fort at the point of the bayonet.

Col. William Ledyard, brother of the celebrated traveler, commanded the fort. Colonel Eyre and Major Montgomery having fallen in the assault, the command had devolved on Major Bromfield, a New Jersey Tory. After the works had been carried, Ledyard ordered his men to lay down their arms. Bromfield called out, "Who commands in this fort?" Ledyard advanced and presenting his sword, replied, "I did, but you do now." Bromfield seized the sword and ran Ledyard through the body. This was the signal for an indiscriminate massacre of a greater part of the garrison by the Tories, refugees, and Hessians, of which the army of Arnold was very appropriately composed. Seventy were killed and thirty-five desperately wounded. The enemy lost 2 officers and 46 men killed, 8 officers and 135 soldiers wounded. Few Americans had fallen before the British entered the works.

The loss sustained by the Americans at New London was great, but that predatory incursion had no effect in diverting Washington from his purpose or in retarding his march southward. From Philadelphia the allied armies pursued their route, partly to the head of Elk river, which falls into the northern extremity of Chesapeake Bay, and partly to Baltimore, at which places they embarked on board transports furnished by the French fleet, and the last division of them landed at Williamsburgh on the 25th of September (1781). Washington, Rochambeau, and their attendants proceeded to the same place by land, and reached it ten days before the troops. Virginia had suffered extremely in the course of the campaign; the inhabitants were clamorous for the appearance of Washington in his native State, and hailed his arrival with acclamations of joy.

Washington and Rochambeau immediately repaired on board de Grasse's ship in order to concert a joint plan of operations against Cornwallis. De Grasse, convinced that every exertion would be made to relieve his lordship, and being told that Admiral Digby had arrived at New York with a reinforcement of six ships-of-the-line, expected to be attacked by a force

little inferior to his own, and, deeming the station which he then occupied unfavorable to a naval engagement, he was strongly inclined to leave the bay and to meet the enemy in the open sea. Washington, fully aware of all the casualties which might occur to prevent his return and to defeat the previous arrangements, used every argument to dissuade the French admiral from his purpose, and prevailed with him to remain in the bay.

As de Grasse could continue only a short time on that station, every exertion was made to proceed against Cornwallis at Yorktown. Opposite Yorktown is Gloucester point, which projects considerably into the river, the breadth of which at that place does not exceed a mile. Cornwallis had taken possession of both these places and diligently fortified them. The communication between them was commanded by his batteries and by some ships-of-war which lay in the river under cover of his guns. The main body of his army was encamped near Yorktown, beyond some outer redoubts and field works calculated to retard the approach of an enemy. Colonel Tarleton, with six or seven hundred men, occupied Gloucester point.

The combined army, amounting to upwards of 11,000 men, exclusive of the Virginia militia, under the command of the patriotic Governor Nelson, was assembled in the vicinity of Williamsburgh, and on the morning of the 28th of September (1781), marched by different routes toward Yorktown. About midday the heads of the columns reached the ground assigned them, and, after driving in the outposts and some cavalry, encamped for the night. The next day was employed in viewing the British works and in arranging the plan of attack. At the same time that the combined army encamped before Yorktown the French fleet anchored at the mouth of the river and completely prevented the British from escaping by water as well as from receiving supplies or reinforcements in that way. The legion of Lauzun and a brigade of militia, amounting to upwards of 4,000 men, commanded by the French general de Choisé, were sent across the river to watch Gloucester Point and to enclose the British on that side.

On the 30th (September, 1781) Yorktown was invested. The French troops formed the left wing of the combined army, extending from the river above the town to a morass in front of it; the Americans composed the right wing and occupied the ground between the morass and the river below the town. Till the 6th of October the besieging army was assiduously employed

in disembarking its heavy artillery and military stores and in conveying them to camp from the landing place in James river, a distance of six miles. On the night of the 6th the first parallel was begun, under the direction of General du Portail, the chief engineer, 600 yards from the British works. The night was dark, rainy, and well adapted for such a service; and in the course of it the besiegers did not lose a man. Their operations seem not to have been suspected by the besieged till daylight disclosed them in the morning, when the trenches were so far advanced as in a good measure to cover the workmen from the fire of the garrison. By the afternoon of the 9th the batteries were completed, notwithstanding the most strenuous opposition from the besieged, and immediately opened on the town. From that time an incessant cannonade was kept up, and the continual discharge of shot and shells from twenty-four and eighteen pounders and ten-inch mortars, damaged the unfinished works on the left of the town, silenced the guns mounted on them and occasioned a considerable loss of men. Some of the shot and shells from the batteries passed over the town, reached the shipping in the harbor, and set on fire the Charon of forty-four guns and three large transports, which were entirely consumed.

"From the bank of the river," says Dr. Thacher, "I had a fine view of this splendid conflagration. The ships were enwrapped in a torrent of fire, which, spreading with vivid brightness among the combustible rigging and running with amazing rapidity to the tops of the several masts, while all around was thunder and lightning from our numerous cannon and mortars, and in the darkness of night presented one of the most sublime and magnificent spectacles that can be imagined. Some of our shells, overreaching the town, are seen to fall into the river, and bursting, throw up columns of water, like the spouting of the monsters of the deep."

On the night of the 11th (October, 1781), the besiegers, laboring with indefatigable perseverance, began their second parallel, 300 yards nearer the British works than the first; and the three succeeding days were assiduously employed in completing it.

During that interval the fire of the garrison was more destructive than at any other period of the siege. The men in the trenches were particularly annoyed by two redoubts toward the left of the British works, and about 200 yards in front of them. Of these it was necessary to gain possession, and on the 14th preparations were made to carry them both by storm. In

order to avail himself of the spirit of emulation which existed between the troops of the two nations, and to avoid any cause of jealousy to either, Washington committed the attack of the one redoubt to the French and that of the other to the Americans. The latter were commanded by Lafayette, attended by Col. Alexander Hamilton, who led the advance, and the former by the Baron de Viomenil.

On the evening of the 14th, as soon as it was dark, the parties marched to the assault with unloaded arms. The redoubt which the Americans under Lafayette attacked was defended by a major, some inferior officers, and forty-five privates. The assailants advanced with such rapidity, without returning a shot to the heavy fire with which they were received, that in a few minutes they were in possession of the work, having had 8 men killed and 7 officers and 25 men wounded in the attack. Eight British privates were killed; Major Campbell, a captain, an ensign, and seventeen privates were made prisoners. The rest escaped. Although the Americans were highly exasperated by the recent massacre of their countrymen in Fort Griswold by Arnold's detachment, yet not a man of the British was injured after resistance ceased. Retaliation had been talked of but was not exercised. {3}

The French advanced with equal courage, but not with equal rapidity. The American soldiers had removed the abattis themselves. The French waited for the sappers to remove them according to military rule. While thus waiting a message was brought from Lafayette to Viomenil, informing him that he was in his redoubt, and wished to know where the baron was. "Tell the marquis," replied Viomenil, "that I am not in mine, but will be in five minutes." The abattis being removed, the redoubt was carried in very nearly the time prescribed by the baron. There were 120 men in this redoubt, of whom 18 were killed and 42 taken prisoners; the rest made their escape. The French lost nearly 100 men killed or wounded. During the night these two redoubts were included in the second parallel, and, in the course of next day, some howitzers were placed on them, which, in the afternoon, opened on the besieged.

"During the assault," says Dr. Thacher, "the British kept up an incessant firing of cannon and musketry from their whole line. His Excellency, General Washington, Generals Lincoln and Knox, with their aids, having dismounted, were standing in an exposed situation, waiting the result.

Colonel Cobb, one of Washington's aids, solicitous for his safety, said to his Excellency, 'Sir, you are too much exposed here; had you not better step a little back?' 'Colonel Cobb,' replied his Excellency, 'if you are afraid, you have liberty to step back.'

"Cornwallis and his garrison had done all that brave men could do to defend their post. But the industry of the besiegers was persevering and their approaches rapid. The condition of the British was becoming desperate. In every quarter their works were torn to pieces by the fire of the assailants. The batteries already playing upon them had nearly silenced all their guns, and the second parallel was about to open on them, which in a few hours would render the place untenable.

Owing to the weakness of his garrison, occasioned by sickness and the fire of the besiegers, Cornwallis could not spare large sallying parties, but, in the present distressing crisis, he resolved to make every effort to impede the progress of the besiegers, and to preserve his post to the last extremity. For this purpose, a little before daybreak on the morning of the 16th of October (1781), about 350 men, under the command of Lieutenant-Colonel Abercrombie, sallied out against two batteries, which seemed in the greatest state of forwardness. They attacked with great impetuosity, killed or wounded a considerable number of the French troops, who had charge of the works, spiked eleven guns, and returned with little loss. This exploit was of no permanent advantage to the garrison, for the guns, having been hastily spiked, were soon again rendered fit for service.

About 4 in the afternoon of the 16th of October, several batteries of the second parallel opened on the garrison, and it was obvious that, in the course of next day, all the batteries of that parallel, mounting a most formidable artillery, would be ready to play on the town. The shattered works of the garrison were in no condition to sustain such a tremendous fire. In the whole front which was attacked the British could not show a single gun, and their shells were nearly exhausted. In this extremity Cornwallis formed the desperate resolution of crossing the river during the night with his effective force and attempting to escape to the northward. His plan was to leave behind his sick, baggage, and all encumbrances; to attack de Choisé, who commanded on the Gloucester side, with his whole force; to mount his own infantry, partly with the hostile cavalry which he had no doubt of seizing, and partly with such horses as he might find by the way;

to hasten toward the fords of the great rivers in the upper country, and then, turning northward, to pass through Maryland, Pennsylvania, and the Jerseys, and join the army at New York. The plan was hazardous, and presented little prospect of success; but in the forlorn circumstances of the garrison anything that offered a glimpse of hope was reckoned preferable to the humiliation of an immediate surrender.

In prosecution of this perilous enterprise the light infantry, most of the guards, and a part of the Twenty-third regiment embarked in boats, passed the river, and landed at Gloucester point before midnight. A storm then arose, which rendered the return of the boats and the transportation of the rest of the troops equally impracticable. In that divided state of the British forces the morning of the 17th of October (1781) dawned, when the batteries of the combined armies opened on the garrison at Yorktown. As the attempt to escape was entirely defeated by the storm, the troops that had been carried to Gloucester point were brought back in the course of the forenoon without much loss, though the passage was exposed to the artillery of the besiegers. The British works were in ruins, the garrison was weakened by disease and death, and exhausted by incessant fatigue. Every ray of hope was extinguished. It would have been madness any longer to attempt to defend the post and to expose the brave garrison to the danger of an assault, which would soon have been made on the place.

At 10 in the forenoon of the 17th Cornwallis sent a flag of truce with a letter to Washington, proposing a cessation of hostilities for twenty-four hours, in order to give time to adjust terms for the surrender of the forts at Yorktown and Gloucester point. To this letter Washington immediately returned an answer, expressing his ardent desire to spare the further effusion of blood and his readiness to listen to such terms as were admissible, but that he could not consent to lose time in fruitless negotiations, and desired that, previous to the meeting of commissioners, his lordship's proposals should be transmitted in writing, for which purpose a suspension of hostilities for two hours should be granted.

The terms offered by Cornwallis, although not all deemed admissible, were such as induced the opinion that no great difficulty would occur in adjusting the conditions of capitulation, and the suspension of hostilities was continued through the night. Meanwhile, in order to avoid the delay of useless discussion, Washington drew up and transmitted to Cornwallis such

articles as he was willing to grant, informing his lordship that, if he approved of them, commissioners might be immediately appointed to reduce them to form. Accordingly, Viscount Noailles and Lieutenant-Colonel Laurens, whose father was then a prisoner in the Tower of London, on the 18th met Colonel Dundas and Major Ross of the British army at Moore's house, in the rear of the first parallel. They prepared a rough draft, but were unable definitively to arrange the terms of capitulation.

The draught was to be submitted to Cornwallis, but Washington, resolved to admit of no delay, directed the articles to be transcribed; and, on the morning of the 19th, sent them to his lordship, with a letter expressing his expectation that they would be signed by 11 and that the garrison would march out at 2 in the afternoon. {4} Finding that no better terms could be obtained, Cornwallis submitted to a painful necessity, and, on the 19th of October, surrendered the posts of Yorktown and Gloucester point to the combined armies of America and France, on condition that his troops should receive the same honors of war which had been granted to the garrison of Charleston when it surrendered to Sir Henry Clinton. The army, artillery, arms, accoutrements, military chest, and public stores of every description were surrendered to Washington; the ships in the harbor and the seamen to Count de Grasse.

Cornwallis wished to obtain permission for his European troops to return home, on condition of not serving against America, France, or their allies during the war, but this was refused, and it was agreed that they should remain prisoners of war in Virginia, Maryland, and Pennsylvania, accompanied by a due proportion of officers for their protection and government. The British general was also desirous of securing from punishment such Americans as had joined the royal standard, but this was refused, on the plea that it was a point which belonged to the civil authority and on which the military power was not competent to decide. But the end was gained in an indirect way, for Cornwallis was permitted to send the Bonetta sloop-of-war unsearched to New York, with dispatches to the Commander-in-Chief and to put on board as many soldiers as he thought proper, to be accounted for in any subsequent exchange. This was understood to be a tacit permission to send off the most obnoxious of the Americans, which was accordingly done.

The officers and soldiers were allowed to retain their private property. Such officers as were not required to remain with the troops were permitted to return to Europe or to reside in any part of America not in possession of the British troops.

Dr. Thacher, who was present during the whole siege, thus describes the surrender: "At about 12 o'clock the combined army was arranged and drawn up in two lines, extending more than a mile in length. The Americans were drawn up in a line on the right side of the road, and the French occupied the left. At the head of the former the great American commander, mounted on his noble courser, took his station, attended by his aides. At the head of the latter was posted the excellent Count Rochambeau and his suite. The French troops, in complete uniform, displayed a noble and martial appearance; their band of music, of which the timbrel formed a part, is a delightful novelty, and produced, while marching to the ground, a most enchanting effect. The Americans, though not all in uniform nor their dress so neat, yet exhibited an erect, soldierly air and every countenance beamed with satisfaction and joy. The concourse of spectators from the country was prodigious, in point of numbers nearly equal to the military, but universal silence and order prevailed. It was about 2 o'clock when the captive army advanced through the line formed for their reception. Every eye was prepared to gaze on Lord Cornwallis, the object of peculiar interest and solicitude, but he disappointed our anxious expectations. Pretending indisposition, he made General O'Hara his substitute as the leader of his army. This officer was followed by the conquered troops in a slow and solemn step, with shouldered arms, colors cased, and drums beating a British march. Having arrived at the head of the line, General O'Hara, elegantly mounted, advanced to his Excellency, the Commander-in-Chief, taking off his hat and apologizing for the nonappearance of Earl Cornwallis. With his usual dignity and politeness, his Excellency pointed to Major-General Lincoln for directions, by whom the British army was conducted into a spacious field, where it was intended they should ground their arms. The royal troops, while marching through the line formed by the allied army, exhibited a decent and neat appearance as respects arms and clothing, for their commander opened his store and directed every soldier to be furnished with a new suit complete prior to the capitulation. But in their line of march we remarked a disorderly and unsoldierlike conduct; their step was irregular and their ranks frequently broken. But it was in the field,

when they came to the last act of the drama, that the spirit and pride of the British soldier was put to the severest test. Here their mortification could not be concealed. Some of the platoon officers appeared to be exceedingly chagrined when giving the word, 'Ground arms!' and I am a witness that they performed this duty in a very unofficerlike manner and that many of the soldiers manifested a sullen temper, throwing their arms on the pile with violence, as if determined to render them useless. This irregularity, however, was checked by the authority of General Lincoln. After having grounded their arms and divested themselves of their accoutrements, the captive troops were conducted back to Yorktown and guarded by our troops until they could be conducted to the place of their destination."

Congress bestowed its thanks freely and fully upon the Commander-in-Chief, Count de Rochambeau, Count de Grasse, and the various officers of the different corps, and the brave soldiers under their command. Two stands of colors, trophies of war, were voted to Washington and two pieces of cannon to Rochambeau and de Grasse, and it was also voted that a marble column to commemorate the alliance and the victory should be erected in Yorktown. On the day after the surrender the general orders closed as follows: "Divine service shall be performed tomorrow in the different brigades and divisions. The Commander-in-Chief recommends that all the troops that are not upon duty do assist at it with a serious deportment and that sensibility of heart which the recollection of the surprising and particular interposition of Providence in our favor claims." A proclamation was also issued by Congress appointing the 13th of December as a day of thanksgiving and prayer, on account of this signal and manifest favor of Divine Providence in behalf of our country.

The news of Cornwallis' surrender was received throughout the country with the most tumultuous expressions of joy. The worthy New England Puritans considered it, as Cromwell did the victory at Worcester, "the crowning mercy." It promised them a return of peace and prosperity. The people of the middle States regarded it as a guarantee for their speedy deliverance from the presence of a hated enemy. But to the southern States it was more than this. It was the retributive justice of Heaven against a band of cruel and remorseless murderers and robbers, who had spread desolation and sorrow through their once happy homes. It is asserted in Gordon's "History of the War" that wherever Cornwallis' army marched the dwelling-houses were plundered of everything that could be carried off. The stables

of Virginia were plundered of the horses on which his cavalry rode in their ravaging march through that State. Millions of property, in tobacco and other merchandise and in private houses and public buildings, were destroyed by Arnold, Philips, and Cornwallis in Virginia alone. The very horse which Tarleton had the impudence to ride on the day of the surrender was stolen from a planter's stable, who recognized it on the field and compelled Tarleton to give it up and mount a sorry hack for the occasion.

It was computed at the time that 1,400 widows were made by the war in the single district of Ninety-Six. The whole devastation occasioned by the British army, during six months previous to the surrender at Yorktown, amounted to not less than £3,000,000 sterling, an immense loss for so short a time, falling, as it did, chiefly on the rural population. No wonder that they assembled in crowds to witness the humiliation of Cornwallis and his army. To them it was not only a triumph, but a great deliverance. Well might the Virginians triumph. The return of their favorite commander, a son of the soil, had speedily released their State from ravage and destruction and restored them to comparative peace and repose.

On the very day of Cornwallis' surrender, Clinton sailed from New York with reinforcements. He had been perfectly aware of Cornwallis' extreme peril and was anxious to relieve him, but the fleet had sustained considerable damage in the battle with de Grasse and some time was necessarily spent in repairing it. During that interval four ships-of-the-line arrived from Europe and two from the West Indies. At length Clinton embarked with 7,000 of his best troops, but was unable to sail from Sandy Hook till the 19th (1781), the day on which Cornwallis surrendered. The fleet, consisting of twenty-five ships-of-the-line, two vessels of fifty guns each, and eight frigates, arrived off the Chesapeake on the 24th (October, 1781), when Clinton had the mortification to be informed of the event of the 19th. He remained on the coast, however, till the 29th, when, every doubt being removed concerning the capitulation of Cornwallis, whose relief was the sole object of the expedition, he returned to New York.

While Clinton continued off the Chesapeake, the French fleet, consisting of thirty-six sail-of-the-line, satisfied with the advantage already gained, lay at anchor in the bay without making any movement whatever.

Washington, considering the present a favorable opportunity for following up his success by an expedition against the British army in

Charleston, wrote a letter to Count de Grasse on the day after the capitulation, requesting him to unite his fleet to the proposed armament and assist in the expedition. He even went on board the admiral's fleet to thank him for his late services in the siege and to urge upon him the feasibility and importance of this plan of operations. But the orders of his court, ulterior projects, and his engagements with the Spaniards put it out of the power of the French admiral to continue so long in America as was required. He, however, remained some days in the bay in order to cover the embarkation of the troops and of the ordnance to be conveyed by water to the head of the Elk. {5}

Some brigades proceeded by land to join their companions at that place. Some cavalry marched to join General Greene, but the French troops, under Count Rochambeau, remained in Virginia to be in readiness to march to the south or north, as the circumstances of the next campaign might require. On the 27th the troops of St. Simon began to embark, in order to return to the West Indies, and early in November Count de Grasse sailed for that quarter.

Part of the prisoners were sent to Winchester in Virginia and Fredericktown, Maryland, the remainder to Lancaster, Pennsylvania. Lord Cornwallis and the principal officers were paroled and sailed for New York. During their stay at Yorktown, after the surrender, they received the most delicate attentions from the conquerors. Dr. Thacher, in his "Military Journal," notices particularly some of these attentions: "Lord Cornwallis and his officers," he says, "since their capitulation, have received all the civilities and hospitality which is in the power of their conquerors to bestow. General Washington, Count Rochambeau, and other general officers have frequently invited them to entertainments, and they have expressed their grateful acknowledgments in return. They cannot avoid feeling the striking contrast between the treatment which they now experience and that which they have bestowed on our prisoners who have unfortunately fallen into their hands. It is a dictate of humanity and benevolence, after sheathing the sword, to relieve and meliorate the condition of the vanquished prisoner.

"On one occasion, while in the presence of General Washington, Lord Cornwallis was standing with his head uncovered. His Excellency said to him, politely, 'My lord, you had better be covered from the cold.' His lordship, applying his hand to his head, replied, 'It matters not, sir, what

becomes of this head now." The reader will not have failed to notice that the capture of Cornwallis was effected solely by the able and judicious strategy of Washington. It was he that collected from different parts of the country the forces that were necessary to enclose that commander and his hitherto victorious army as it were in a net, from which there was no possibility of escape. It was he who, by personal influence and exertion, brought de Grasse to renounce his expected triumphs at sea and zealously assist in the siege by preventing Cornwallis from receiving any aid from British naval forces. It was he who detained de Grasse at a critical moment of the siege, when he was anxious to go off with the chief part of his force and engage the British at sea. In short, it was he who provided all, oversaw all, directed all, and having, by prudence and forethought, as well as by activity and perseverance, brought all the elements of conquest together, combined them into one mighty effort with glorious success. It was the second siege on a grand scale which had been brought to a brilliant and fortunate conclusion by the wisdom and prudence as well as the courage and perseverance of Washington. In the first he expelled the enemy and recovered Boston uninjured, freeing the soil for a time from the presence of the enemy. In the second, he captured the most renowned and successful British army in America and dictated his own terms of surrender to a commander who, from his marquee, had recently given law to three States of the Union.

1. Footnote: Dr. Thacher, in his Military Journal, has an entry: "July 7th. Our army was drawn up in a line and reviewed by General Rochambeau, with his Excellency, General Washington, and other general officers.—July 10th. Another review took place in presence of the French ambassador from Philadelphia, after which the French army passed a review in presence of the general officers of both armies." Speaking of the French army, Dr. Thacher says: "In the officers we recognize the accomplished gentlemen, free and affable in their manners. Their military dress and side-arms are elegant. The troops are under the strictest discipline, and are amply provided with arms and accoutrements, which are kept in the neatest order. They are in complete uniform—coats of white broadcloth, trimmed with green, and white under-dress, and on their heads they wear a singular kind of hat or chapeau. It is unlike our cocked hats, in having but two corners instead of three, which gives them a very novel appearance."

2. Footnote: The amount was \$20,000 in specie, to be refunded by Robert Morris on the 1st of October. On the 31st of August, Dr. Thacher says: "Colonel Laurens arrived at headquarters, camp, Trenton, on his way from Boston to Philadelphia. He brought two and a half millions of livres in cash, a part of the French subsidy,—a most seasonable supply, as the troops were discontented and almost mutinous for want of pay."

3. Footnote: Lafayette (letter to Washington, 16th October, 1781) says "Your Excellency having personally seen our dispositions, I shall only give you an account of what passed in the execution. Colonel Gimat's battalion led the van, and was followed by that of Colonel Hamilton, who commanded the whole advanced corps. At the same time a party of eighty men, under Colonel Laurens, turned the redoubt. I beg leave to refer your Excellency to the report I have received from Colonel Hamilton, whose well-known talents and gallantry were, on this occasion, most conspicuous and serviceable. Our obligations to him, to Colonel Gimat, to Colonel Laurens, and to each and all the officers and men, are above expression. Not one gun was fired, and the ardor of the troops did not give time for the sappers to derange the abattis; and owing to the conduct of the commanders and the bravery of the men, the redoubt was stormed with uncommon rapidity."

4. Footnote: The whole number of prisoners, exclusive of seamen, was over 7,000, and the British loss during the siege was between five and six hundred. The army of the allies consisted of 7,000 American regular troops, upward of 5,000 French, and 4,000 militia. The loss in killed and wounded was about 300. The captured property consisted of a large train of artillery—viz., 75 brass and 69 iron cannon, howitzers, and mortars; also a large quantity of arms, ammunition, military stores, and provisions fell to the Americans. One frigate, 2 ships of twenty guns each, a number of transports and other vessels, and 1,500 seamen were surrendered to de Grasse.

5. Footnote: On his departure, the Count de Grasse received from Washington a present of two elegant horses as a token of his friendship and esteem.

CHAPTER XXIV. — CLOSE OF THE WAR. 1782-1783.

After the surrender of Cornwallis, the combined forces were distributed in different parts of the country, in the manner we have described at the close of the last chapter. Having personally superintended the distribution of the ordnance and stores, and the departure of the prisoners as well as the embarkation of the troops, who were to go northward under General Lincoln, Washington left Yorktown on the 5th of November (1781) for Eltham, the seat of his friend, Colonel Basset. He arrived there the same day, but he came to a house of mourning. His stepson, John Parke Custis, was just expiring when he reached the house. Washington was just in time to be present, with Mrs. Washington and Mrs. Custis, her daughter-in-law, at the last painful moment of the young man's departure to the world of spirits. Mr. Custis had been an object of peculiar affection and care to Washington, who had superintended his education and introduction to public life. He had entered King's college in New York, in 1773, but soon after left that institution and married the daughter of Mr. Benedict Calvert, February 3, 1774. He had passed the winter of 1775 at headquarters in Cambridge with his wife and Mrs. Washington. He had subsequently been elected a member of the House of Burgesses of Virginia, in which office he acquitted himself with honor, and he was now cut off on the very threshold of life being only twenty-eight years of age at the time of his decease. He left a widow and four young children. The two youngest of these children, one less than two and the other four years old, were adopted by Washington, and thenceforward formed a part of his immediate family. During the last year of Mr. Custis' life, Washington, writing to General Greene, took occasion to cite a passage from his correspondence. He says, "I have received a letter from Mr. Custis, dated the 29th ultimo (March, 1781), in which are these words: 'General Greene has by his conduct gained universal esteem, and possesses, in the fullest degree, the confidence of all ranks of people.'" He had just then returned from the Assembly at Richmond. Washington remained for several days at Eltham to comfort the family in their severe affliction, and then proceeded to Mount Vernon, where he

arrived on the 13th of November. From this home of his early affections he wrote to Lafayette on the 15th (1781), accounting for his not having joined him in Philadelphia, by the pressure of private and public duties. In this letter, ever attentive to the interests of his country, Washington expresses his views with respect to the next campaign; and as Lafayette, after the expedition with de Grasse to the South was abandoned, had determined to pass the winter in France, Washington takes occasion in this letter to impress upon his mind the absolute necessity of a strong naval force in order to conduct the next campaign to a successful termination. In concluding his letter, Washington says: "If I should be deprived of the pleasure of a personal interview with you before your departure, permit me to adopt this method of making you a tender of my ardent vows for a prosperous voyage, a gracious reception from your prince, an honorable reward for your services, a happy meeting with your lady and friends, and a safe return in the spring to, my dear marquis, your affectionate friend, etc.

"WASHINGTON."

Washington had given Lafayette leave to proceed to Philadelphia, where he obtained from Congress permission to visit his family in France for such a period as he should think proper. Congress at the same time passed resolutions doing justice to the zeal and military conduct of Lafayette. Among them were the following:

"Resolved, that the Secretary of Foreign Affairs acquaint the ministers plenipotentiary of the United States, that it is the desire of Congress that they confer with the Marquis de Lafayette, and avail themselves of his information relative to the affairs of the United States.

"Resolved, that the Secretary of Foreign Affairs further acquaint the minister plenipotentiary at the court of Versailles, that he will conform to the intention of Congress by consulting with and employing the assistance of the Marquis de Lafayette in accelerating the supplies which may be afforded by his most Christian majesty for the use of the United States."

Lafayette was also commended by Congress to the notice of Louis XVI in very warm terms. Having received his instructions from Congress and completed his preparations, he went to Boston, where the American frigate

Alliance awaited his arrival. His farewell letter to Congress is dated on board this vessel, December 23, 1781, and immediately after writing it he set sail for his native country.

Before proceeding to Philadelphia Washington visited Alexandria, where he was honored with a public reception and an address from a committee of the citizens, in replying to which he was careful to remind them, when referring to the late success at Yorktown, that "a vigorous prosecution of this success would, in all probability," procure peace, liberty, and independence. He also visited Annapolis, where the Legislature was in session. A vote of thanks was passed by that body (22d November, 1781), and in replying to it Washington also reminded the legislators of Maryland that the war was by no means finished, and that further exertions were required to be made by the States.

The splendid success of the allied arms in Virginia, and the great advantages obtained still further south, produced no disposition in Washington to relax those exertions which might yet be necessary to secure the great object of the contest. "I shall attempt to stimulate Congress," said he in a letter to General Greene, written at Mount Vernon, "to the best improvement of our late success, by taking the most vigorous and effectual measures to be ready for an early and decisive campaign the next year. My greatest fear is that viewing this stroke in a point of light which may too much magnify its importance they may think our work too nearly closed and fall into a state of languor and relaxation. To prevent this error I shall employ every means in my power, and, if unhappily we sink into this fatal mistake, no part of the blame shall be mine."

On the 27th of November (1781) Washington reached Philadelphia, and Congress passed a resolution granting him an audience on the succeeding day. On his appearance the President addressed him in a short speech, informing him that a committee was appointed to state the requisitions to be made for the proper establishment of the army, and expressing the expectation that he would remain in Philadelphia, in order to aid the consultations on that important subject.

The Secretary of War, the financier, Robert Morris, and the Secretary of Foreign Affairs, Robert R. Livingston, assisted at these deliberations, and the business was concluded with unusual celerity.

A revenue was scarcely less necessary than an army, and it was obvious that the means for carrying on the war must be obtained either by impressments or by a vigorous course of taxation. But both these alternatives depended on the States, and the government of the Union resorted to the influence of Washington in aid of its requisitions.

But no exertions on the part of America alone could expel the invading army. A superiority at sea was indispensable to the success of offensive operations against the posts which the British still held within the United States. To obtain this superiority Washington pressed its importance on the Chevalier de la Luzerne, the minister of France, and commanding officers of the French troops, as he had on Lafayette when he was about to return to his native country.

The first intelligence from Europe was far from being conciliatory. The Parliament of Great Britain reassembled in November (1781). The speech from the throne breathed a settled purpose to continue the war, and the addresses from both houses, which were carried by large majorities, echoed the sentiment.

In the course of the animated debates which these addresses occasioned, an intention was indeed avowed by some members of the administration to direct the whole force of the nation against France and Spain, and to suspend offensive operations in the interior of the United States until the strength of those powers should be broken. In the meantime the posts then occupied by their troops were to be maintained.

This development of the views of the administration furnished additional motives to the American government for exerting all the faculties of the nation to expel the British garrisons from New York and Charleston. The efforts of Washington to produce these exertions were earnest and unremitting, but not successful. The State Legislatures declared the inability of their constituents to pay taxes. Instead of filling the Continental treasury some were devising means to draw money from it, and some of those which passed bills imposing heavy taxes directed that the demands of the State should be first satisfied, and that the residue only should be paid to the Continental receiver. By the unwearied attention and judicious arrangements of Robert Morris, the minister of finance, the expenses of the nation had been greatly reduced. The bank established in Philadelphia, and his own high character, had enabled him to support in some degree a system

of credit, the advantages of which were incalculably great. He had, through the Chevalier de la Luzerne, obtained permission from the King of France to draw for half a million of livres monthly, until 6,000,000 should be received. To prevent the diversion of any part of this sum from the most essential objects, he had concealed the negotiation even from Congress, and had communicated it only to Washington; yet after receiving the first installment it was discovered that Dr. Franklin had anticipated the residue of the loan and had appropriated it to the purposes of the United States. At the commencement of the year 1782 not a dollar remained in the treasury, and although Congress had required the payment of 2,000,000 on the 1st of April not a cent had been received on the 23d of that month, and so late as the 1st of June (1782) not more than \$20,000 had reached the treasury. Yet to Robert Morris every eye was turned, to him the empty hand of every public creditor was stretched for, and against him, instead of the State governments, the complaints and imprecations of every unsatisfied claimant were directed. In July (1782), when the second quarter annual payment of taxes ought to have been received, Morris was informed by some of his agents, that the collection of the revenue had been postponed in some of the States, in consequence of which the month of December would arrive before any money could come into the hands of the Continental receivers. In a letter communicating this unpleasant intelligence to Washington, he added: "With such gloomy prospects as this letter affords I am tied here to be baited by continual clamorous demands; and for the forfeiture of all that is valuable in life, and which I hoped at this moment to enjoy, I am to be paid by invective. Scarce a day passes in which I am not tempted to give back into the hands of Congress the power they have delegated, and to lay down a burden which presses me to the earth. Nothing prevents me but a knowledge of the difficulties I am obliged to struggle under. What may be the success of my efforts God only knows, but to leave my post at present would, I know, be ruinous. This candid state of my situation and feelings I give to your bosom, because you, who have already felt and suffered so much, will be able to sympathize with me."

Fortunately for the United States the temper of the British nation on the subject of continuing the war did not accord with that of its Sovereign. That war, into which the people had entered with at least as much eagerness as the minister, had become almost universally unpopular. Motions against the measures of administration respecting America were repeated by the

opposition, and, on every experiment, the strength of the minority increased. At length, on the 27th of February (1782), General Conway moved in the House of Commons, "that it is the opinion of this house that a further prosecution of offensive war against America would, under present circumstances, be the means of weakening the efforts of this country against her European enemies, and tend to increase the mutual enmity so fatal to the interests both of Great Britain and America." The whole force of administration was exerted to get rid of this resolution, but was exerted in vain, and it was carried. An address to the King, in the words of the resolution, was immediately voted, and was presented by the whole house. The answer of the Crown being deemed inexplicit it was, on the 4th of March (1782), resolved "that the house will consider as enemies to his Majesty and the country, all those who should advise or attempt a further prosecution of offensive war on the continent of North America."

These votes were soon followed by a change of ministers and by instructions to the officers commanding the forces in America, which conformed to them.

While Washington was employed in addressing circular letters to the State governments, suggesting all those motives which might stimulate them to exertions better proportioned to the exigency, English papers, containing the debates in Parliament on the various propositions respecting America, reached the United States. Alarmed at the impression these debates might make, he introduced the opinions it was deemed prudent to inculcate respecting them into the letters he was then about to transmit to the Governors of the several States. "I have perused these debates," he said, "with great attention and care, with a view, if possible, to penetrate their real design, and upon the most mature deliberation I can bestow I am obliged to declare it as my candid opinion that the measure, in all its views, so far as it respects America, is merely delusory, having no serious intention to admit our independence upon its true principles, but is calculated to produce a change of ministers to quiet the minds of their own people and reconcile them to a continuance of the war, while it is meant to amuse this country with a false idea of peace, to draw us from our connection with France, and to lull us into a state of security and inactivity; which taking place, the ministry will be left to prosecute the war in other parts of the world with greater vigor and effect. Your Excellency will permit me on this occasion to observe that, even if the nation and Parliament are really in

earnest to obtain peace with America, it will undoubtedly be wisdom in us to meet them with great caution and circumspection, and by all means to keep our arms firm in our hands, and instead of relaxing one iota in our exertions, rather to spring forward with redoubled vigor, that we may take the advantage of every favorable opportunity until our wishes are fully obtained. No nation yet suffered in treaty by preparing (even in the moment of negotiation) most vigorously for the field.

"The industry which the enemy is using to propagate their pacific reports appears to me a circumstance very suspicious, and the eagerness with which the people, as I am informed, are catching at them, is, in my opinion, equally dangerous."

While Washington was still residing at Philadelphia, in conference with the committees of Congress, a spirited naval action took place near the capes of the Delaware, which must have afforded him much gratification.

The Delaware bay was, at this period, says Peterson, {1} infested with small cruisers of the enemy, which not only captured the river craft, but molested the neighboring shores. To repress these marauders, the State of Pennsylvania determined to fit out a vessel or two at its own expense, and with this view a small merchant ship, called the Hyder All, then lying outward-bound with a cargo of flour, was purchased. It took but a few days to discharge her freight, to pierce her for sixteen guns, and to provide her with an armament. Volunteers flocked to offer themselves for her crew. The command was given to Barney, and, at the head of a convoy of outward-bound merchantmen, he stood down the bay, and anchored, on the 8th of April (1782), in the roads off Cape May, where he awaited a proper wind for the traders to go to sea. Suddenly two ships and a brig, one of the former a frigate, were seen rounding the cape, obviously with the intention of attacking him, on which he signaled the convoy to stand up the bay, the wind being at the southward, himself covering their rear, and the enemy in hot pursuit.

In order to head off the fugitives, the frigate took one channel and her consorts the other, the ship and brig choosing that which the Hyder Ali had selected. The brig, being a very fast vessel, soon overhauled Barney, but, contenting herself with giving him a broadside as she passed, pressed on in pursuit of the convoy. The Hyder Ali declined to return this fire, holding herself in reserve for the ship, a sloop-of-war mounting twenty guns, which

was now seen rapidly approaching. When the Englishman drew near, Barney suddenly luffed, threw in his broadside, and immediately righting his helm, kept away again. This staggered the enemy, who, being so much the superior and having a frigate within sustaining distance, had expected the Hyder Ali to surrender. The two vessels were now within pistol shot of each other, and the forward guns of the British were just beginning to bear, when Barney, in a loud voice, ordered his quartermaster "to port his helm." The command was distinctly heard on board the enemy, as indeed Barney had intended it should be, and the Englishman immediately prepared to maneuver his ship accordingly. But the quartermaster of the Hyder Ali had, prior to this, received his instructions, and, instead of obeying Barney's pretended order, whirled his wheel in the contrary direction, luffing the American ship athwart the hawse of her antagonist. The jib-boom of the enemy, in consequence of this, caught in the forerigging of the Hyder Ali, giving the latter the raking position which Barney had desired.

Not a cheer rose from the American vessel, even at this welcome spectacle, for the men knew that victory against such odds was still uncertain, and they thought as yet only of securing it. Nor did the British, at a sight so dispiriting to them, yield in despair. On the contrary, both crews rushed to their guns, and, for half an hour, the combat was waged on either side with desperate fury. The two vessels were soon enveloped in smoke. The explosions of the artillery were like continuous claps of thunder. In twenty-six minutes not less than twenty broadsides were discharged. Nor was the struggle confined to the batteries. Riflemen, posted in the tops of the Hyder Ali, picked off one by one the crew of the enemy, until his decks ran slippery with blood and 56 out of his crew of 140 had fallen. All this while Barney stood on the quarter-deck of his ship, a mark for the enemy's sharpshooters, until they were driven from their stations by the superior aim of the Americans. At length, finding further resistance hopeless, the Englishman struck his colors. Huzza on huzza now rose from the deck of the victor. Barney, on taking possession, discovered that the vessel he had captured was the General Monk, and that her weight of metal was nearly twice his own. Notwithstanding the presence of the frigate, the young hero succeeded in bringing off his prize in safety and in a few hours had moored her by the Hyder Ali's side, opposite Philadelphia, with the dead of both ships still on their decks. In this action Barney lost but 4 killed and 11 wounded. For the victory, conceded to be the most brilliant of the latter

years of the war, Barney was rewarded by the State of Pennsylvania with a gold-hilted sword. In consequence of the capture of the General Monk, the Delaware ceased to be infested with the enemy.

About the middle of April (1782), Washington left Philadelphia, where he had remained since November (1781), and joined the army, his headquarters being at Newburg. He was directly informed of a very shameful proceeding on the part of some refugees from New York, and felt compelled to give the matter his serious attention. The circumstances were these: Captain Huddy, who commanded a body of troops in Monmouth county, New Jersey, was attacked by a party of refugees, was made prisoner, and closely confined in New York. A few days afterward they led him out and hanged him, with a label on his breast declaring that he was put to death in retaliation for some of their number, who, they said, had suffered a similar fate. Taking up the matter promptly, Washington submitted it to his officers, laid it before Congress, and wrote to Clinton demanding that Captain Lippencot, the perpetrator of the horrid deed, should be given up. The demand not being complied with, Washington, in accordance with the opinion of the council of officers, determined upon retaliation. A British officer, of equal rank with Captain Huddy, was chosen by lot. Captain Asgill, a young man just nineteen years old, and the only son of his parents, was the one upon whom the lot fell. The whole affair was in suspense for a number of months. Both Clinton and Carleton, his successor, reprobated the act of Lippencot with great severity, yet he was not given up, it being considered by a court-martial that he had only obeyed the orders of the Board of Associated Loyalists in New York. Great interest was made to save Asgill's life; his mother begged the interference of the Count de Vergennes, who wrote to Washington in her behalf. Early in November Washington performed the grateful task of setting Captain Asgill at liberty.

Meantime the army, by whose toils and sufferings the country had been carried through the perils of the Revolution, remained unpaid, apparently disregarded by Congress and by the people whom they had delivered from oppression. It seemed probable that they would speedily be disbanded, without any adequate provision being made by Congress for the compensation which was due to them, and which had been solemnly promised by repeated acts of legislation. They were very naturally discontented. Their complaints and murmurs began to be ominous of very serious consequences. They even began to question the efficiency of the

form of government, which appeared to be unfitted for meeting the first necessities of the country—the maintenance and pay of its military force. They began to consider the propriety of establishing a more energetic form of government, while they still had their arms in their hands. Colonel Nicola, an able and experienced officer, who stood high in Washington's estimation, and had frequently been made the medium of communication between him and the officers, was chosen as the organ for making known their sentiments to him on the present occasion. In a letter carefully written, after commenting upon the gloomy state of public affairs, the disordered finances, and other embarrassments occasioned by the war, all caused by defective political organization, he proceeded to say: "This must have shown to all, and to military men in particular, the weakness of republics, and the exertions the army have been able to make by being under a proper head. Therefore, I little doubt that, when the benefits of a mixed government are pointed out and duly considered, such will be readily adopted. In this case it will, I believe, be uncontroverted that the same abilities which have led us through difficulties, apparently insurmountable by human power, to victory and glory, those qualities that have merited and obtained the universal esteem and veneration of an army, would be most likely to conduct and direct us in the smoother paths of peace. Some people have so connected the ideas of tyranny and monarchy as to find it very difficult to separate them. It may, therefore, be requisite to give the head of such a constitution as I propose some title apparently more moderate; but, if all things were once adjusted, I believe strong arguments might be produced for admitting the name of King, which I conceive would be attended with some material advantages."

The answer of Washington to this communication was in the following terms:

"NEWBURG, 22d *May*, 1782.

"SIR.—With a mixture of great surprise and astonishment, I have read with attention the sentiments you have submitted to my perusal. Be assured, sir, no occurrence in the course of the war has given me more painful sensations than your information of there being such ideas existing in the army as you have expressed, and I must view with abhorrence and reprehend with severity. For the present, the communication of them will

rest in my own bosom, unless some further agitation of the matter shall make a disclosure necessary.

"I am much at a loss to conceive what part of my conduct could have given encouragement to an address, which to me seems big with the greatest mischiefs that can befall my country. If I am not deceived in the knowledge of myself, you could not have found a person to whom your schemes are more disagreeable. At the same time, in justice to my own feelings, I must add, that no man possesses a more sincere wish to see ample justice done to the army than I do; and as far as my powers and influence, in a constitutional way, extend, they shall be employed, to the utmost of my abilities, to effect it, should there be any occasion. Let me conjure you, then, if you have any regard for your country, concern for yourself or posterity, or respect for me, to banish these thoughts from your mind, and never communicate, as from yourself or any one else, a sentiment of the like nature.

"I am, sir, &c.,

"GEORGE WASHINGTON."

This was the language of Washington at a time when the army was entirely devoted to him, when his popularity was equal to that of Cromwell or Napoleon in their palmiest days. Certain officers of the army were ready, at a word, to make him king; and the acknowledged inefficiency of the existing government would have furnished a plausible reason for the act. But Washington was not formed of the material that kings are made of. Personal ambition he despised. To be, not to seem great and good was his aim. To serve, and not to rule his country was his object. He was too true a patriot to assume the power and title of a monarch.

Early in May (1782) Sir Guy Carleton, who had succeeded Sir Henry Clinton in the command of all the British forces in the United States, arrived at New York. Having been also appointed, in conjunction with

Admiral Digby, a commissioner to negotiate a peace, he lost no time in conveying to Washington copies of the votes of the British Parliament, and of a bill which had been introduced on the part of the administration, authorizing the King to conclude a peace or truce with those who were still denominated "the revolted Colonies of North America." These papers, he said, would manifest the dispositions prevailing with the government and people of England toward those of America, and, if the like pacific temper should prevail in this country, both inclination and duty would lead him to meet it with the most zealous concurrence. He had addressed to Congress, he said, a letter containing the same communications, and he solicited a passport for the person who should convey it.

At this time (1782) the bill enabling the British monarch to conclude a peace or truce with America had not become a law, nor was any assurance given that the present commissioners were empowered to offer other terms than those which had been formerly rejected. General Carleton, therefore, could not hope that negotiations would commence on such a basis, nor be disappointed at the refusal of the passports he requested by Congress, to whom the application was, of course, referred by Washington. The letter may have been written for the general purpose of conciliation, but the situation of the United States justified a suspicion of different motives, and prudence required that their conduct should be influenced by that suspicion. The repugnance of the King to a dismemberment of the empire was understood, and it was thought probable that the sentiments expressed in the House of Commons might be attributable rather to a desire of changing ministers than to any fixed determination to relinquish the design of reannexing America to the Crown.

Under these impressions, the overtures now made were considered as opiates administered to lull the spirit of vigilance, which Washington and his friends in Congress labored to keep up, into a state of fatal repose, and to prevent those measures of security which it might yet be necessary to adopt.

This jealousy was nourished by all the intelligence received from Europe. The utmost address of the British cabinet had been employed to detach the belligerents from each other. The mediation of Russia had been accepted to procure a separate peace with Holland; propositions had been submitted both to France and Spain, tending to an accommodation of differences with

each of those powers singly, and inquiries had been made of Mr. Adams, the American minister at the Hague in place of Mr. Laurens, which seemed to contemplate the same object with regard to the United States. These political maneuvers furnished additional motives for doubting the sincerity of the English cabinet. Whatever views might actuate the court of St. James on this subject, the resolution of the American government to make no separate treaty was unalterable.

But the public votes which have been stated, and probably his private instructions, restrained Sir Guy Carleton from offensive war, and the state of the American army disabled Washington from making any attempt on the posts in possession of the British. The campaign of 1782 consequently passed away without furnishing any military operations of moment between the armies under the immediate direction of the respective Commanders-in-Chief.

Early in August (1782) a letter was received by Washington from Sir Guy Carleton and Admiral Digby, which, among other communications manifesting a pacific disposition on the part of England, contained the information that Mr. Grenville was at Paris, invested with full powers to treat with all the parties at war, that negotiations for a general peace were already commenced and that his Majesty had commanded his minister to direct Mr. Grenville that the independence of the thirteen provinces should be proposed by him in the first instance instead of being made a condition of a general treaty. But that this proposition would be made in the confidence that the Loyalists would be restored to their possessions, or a full compensation made them for whatever confiscations might have taken place.

This letter was, not long afterward, followed by one from Sir Guy Carleton, declaring that he could discern no further object of contest, and that he disapproved of all further hostilities by sea or land, which could only multiply the miseries of individuals, without a possible advantage to either nation. In pursuance of this opinion, he had, soon after his arrival in New York, restrained the practice of detaching parties of Indians against the frontiers of the United States and had recalled those which were previously engaged in those bloody incursions.

These communications appear to have alarmed the jealousy of the minister of France. To quiet his fears Congress renewed the resolution "to

enter into no discussion of any overtures for pacification, but in confidence and in concert with his most Christian Majesty," and again recommended to the several States to adopt such measures as would most effectually guard against all intercourse with any subjects of the British Crown during the war.

In South Carolina the American army under General Greene maintained its position in front of Jacksonborough, and that of the British under General Leslie was confined to Charleston and its immediate vicinity. Both were inactive for a long period, and during this time Greene's army suffered so much for want of provisions that he was under the necessity of authorizing the seizure of them by the odious measure of impressment.

Privations, which had been borne without a murmur under the excitement of active military operations, produced great irritation during the leisure which prevailed after the enemy had abandoned the open field, and, in the Pennsylvania line, which was composed chiefly of foreigners, the discontent was aggravated to such a point as to produce a treasonable intercourse with the enemy, in which a plot is understood to have been laid for seizing General Greene and delivering him to a detachment of British troops which would move out of Charleston for the purpose of favoring the execution of the design. It was discovered when it is supposed to have been on the point of execution, and a Sergeant Gornell, believed to be the chief of the conspiracy, was condemned to death by a court-martial, and executed on the 22d of April. Some others, among whom were two domestics in the general's family, were brought before the court on suspicion of being concerned in the plot, but the testimony was not sufficient to convict them, and twelve deserted the night after it was discovered. There is no reason to believe that the actual guilt of this transaction extended further.

Charleston was held until the 14th of December. Previous to its evacuation General Leslie had proposed a cessation of hostilities, and that his troops might be supplied with fresh provisions, in exchange for articles of the last necessity in the American camp. The policy of government being adverse to this proposition, General Greene was under the necessity of refusing his assent to it, and the British general continued to supply his wants by force. This produced several skirmishes with foraging parties, to one of which importance was given by the untimely death of the intrepid Laurens, whose loss was universally lamented.

This gallant and accomplished young gentleman had entered into the military family of Washington at an early period of the war and had always shared a large portion of his esteem. Brave to excess, he sought every occasion to render service to his country and to acquire that military fame which he pursued with the ardor of a young soldier, whose courage seems to have partaken largely of that romantic spirit which youth and enthusiasm produce in a fearless mind. No small addition to the regrets occasioned by his loss was derived from the reflection that he fell unnecessarily, in an unimportant skirmish, in the last moments of the war, when his rash exposure to the danger which proved fatal to him could no longer be useful to his country.

From the arrival of Sir Guy Carleton at New York, the conduct of the British armies on the American continent was regulated by the spirit then recently displayed in the House of Commons, and all the sentiments expressed by their general were pacific and conciliatory. But to these flattering appearances it was dangerous to yield implicit confidence. With a change of men a change of measures might also take place, and, in addition to the ordinary suggestions of prudence, the military events in the West Indies were calculated to keep alive the attention, and to continue the anxieties of the United States.

After the surrender of Lord Cornwallis the arms of France and Spain in the American seas had been attended with such signal success that the hope of annihilating the power of Great Britain in the West Indies was not too extravagant to be indulged. Immense preparations had been made for the invasion of Jamaica, and, early in April, Admiral Count de Grasse sailed from Martinique with a powerful fleet, having on board the land forces and artillery which were to be employed in the operations against that island. His intention was to form a junction with the Spanish Admiral Don Solano, who lay at Hispaniola; after which the combined fleet, whose superiority promised to render it irresistible, was to proceed on the important enterprise which had been concerted. On his way to Hispaniola de Grasse was overtaken by Rodney, and brought to an engagement in which he was totally defeated and made a prisoner. This decisive victory disconcerted the plans of the combined powers and gave security to the British islands. In the United States it was feared that this alteration in the aspect of affairs might influence the councils of the English cabinet on the question of

peace, and these apprehensions increased the uneasiness with which all intelligent men contemplated the state of the American finances.

It was then in contemplation to reduce the army by which many of the officers would be discharged. While the general declared, in a confidential letter to the Secretary of War, his conviction of the alacrity with which they would retire into private life, could they be placed in a situation as eligible as they had left to enter into the service, he added—"Yet I cannot help fearing the result of the measure, when I see such a number of men goaded by a thousand stings of reflection on, the past, and of anticipation on the future, about to be turned on the world, soured by penury, and what they call the ingratitude of the public; involved in debts, without one farthing of money to carry them home, after having spent the flower of their days, and many of them their patrimonies, in establishing the freedom and independence of their country; and having suffered everything which human nature is capable of enduring on this side of death. I repeat it, when I reflect on these irritating circumstances, unattended by one thing to soothe their feelings or brighten the gloomy prospect, I cannot avoid apprehending that a train of evils will follow of a very serious and distressing nature.

"I wish not to heighten the shades of the picture so far as the real life would justify me in doing, or I would give anecdotes of patriotism and distress which have scarcely ever been paralleled, never surpassed, in the history of mankind. But you may rely upon it, the patience and long-sufferance of this army are almost exhausted, and there never was so great a spirit of discontent as at this instant. While in the field I think it may be kept from breaking out into acts of outrage, but when we retire into winter quarters (unless the storm be previously dissipated) I cannot be at ease respecting the consequences. It is high time for a peace."

"To judge rightly," says Marshall, "of the motives which produced this uneasy temper in the army it will be necessary to recollect that the resolution of October, 1780, granting half-pay for life to the officers stood on the mere faith of a government possessing no funds enabling it to perform its engagements. From requisitions alone, to be made on sovereign States, the supplies were to be drawn which should satisfy these meritorious public creditors, and the ill success attending these requisitions while the dangers of war were still impending, furnished melancholy presages of their unproductiveness in time of peace. In addition to this reflection, of itself

sufficient to disturb the tranquility which the passage of the resolution had produced, were other considerations of decisive influence. The dispositions manifested by Congress itself were so unfriendly to the half-pay establishment as to extinguish the hope that any funds the government might acquire would be applied to that object. Since the passage of the resolution the articles of confederation, which required the concurrence of nine States to any act appropriating public money, had been adopted, and nine States had never been in favor of the measure. Should the requisitions of Congress therefore be respected, or should permanent funds be granted by the States, the prevailing sentiment of the nation was too hostile to the compensation which had been stipulated to leave a probability that it would be substantially made. This was not merely the sentiment of the individuals then administering the government which might change with a change of men; it was known to be the sense of the States they represented, and consequently the hope could not be indulged that, on this subject, a future Congress would be more just or would think more liberally. As, therefore, the establishment of that independence for which they had fought and suffered appeared to become more certain as the end of their toils approached—the officers became more attentive to their own situation, and the inquietude of the army increased with the progress of the negotiation."

In October (1782) the French troops marched to Boston, in order to embark for the West Indies, and the Americans retired into winter quarters. The apparent indisposition of the British general to act offensively, the pacific temper avowed by the cabinet of London, and the strength of the country in which the American troops were cantoned, gave ample assurance that no military operations would be undertaken during the winter which would require the continuance of Washington in camp. But the irritable temper of the army furnished cause for serious apprehension, and he determined to forego every gratification to be derived from a suspension of his toils, in order to watch the progress of its discontent.

The officers who had wasted their fortunes and the prime of their lives in unrewarded service, fearing, with reason, that Congress possessed neither the power nor the inclination to comply with its engagements to the army, could not look with unconcern at the prospect which was opening to them. In December, soon after going into winter quarters, they presented a petition to Congress respecting the money actually due to them, and proposing a commutation of the half-pay stipulated by the resolutions of October, 1780,

for a sum in gross, which, they flattered themselves, would encounter fewer prejudices than the half-pay establishment. Some security that the engagements of the government would be complied with was also requested. A committee of officers was deputed to solicit the attention of Congress to this memorial, and to attend its progress through the house.

Among the most distinguished members of the Federal government were persons sincerely disposed to do ample justice to the public creditors generally, and to that class of them particularly whose claims were founded in military service. But many viewed the army with jealous eyes, acknowledged its merit with unwillingness, and betrayed, involuntarily, their repugnance to a faithful observance of the public engagements. With this question another of equal importance was connected, on which Congress was divided almost in the same manner. One party was attached to a State, the other to a Continental system. The latter labored to fund the public debts on solid Continental security, while the former opposed their whole weight to measures calculated to effect that object.

In consequence of these divisions on points of the deepest interest, the business of the army advanced slowly, and the important question respecting the commutation of their half-pay remained undecided (March, 1783), when intelligence was received of the signature of the preliminary and eventual articles of peace between the United States and Great Britain.

The officers, soured by their past sufferings, their present wants, and their gloomy prospects—exasperated by the neglect which they experienced and the injustice which they apprehended, manifested an irritable and uneasy temper, which required only a slight impulse to give it activity. To render this temper the more dangerous, an opinion had been insinuated that the Commander-in-Chief was restrained, by extreme delicacy, from supporting their interests with that zeal which his feelings and knowledge of their situation had inspired. Early in March a letter was received from their committee in Philadelphia, showing that the objects they solicited had not been obtained. On the 10th of that month (1783) an anonymous paper was circulated, requiring a meeting of the general and field officers at the public building on the succeeding day at 11 in the morning, and announcing the expectation that an officer from each company, and a delegate from the medical staff would attend. The object of the meeting was avowed to be, "to consider the late letter from their representatives in Philadelphia, and what

measures (if any) should be adopted to obtain that redress of grievances which they seemed to have solicited in vain."

On the same day an address to the army was privately circulated, which was admirably well calculated to work on the passions of the moment, and to lead to the most desperate resolutions. This was the first of the celebrated "Newburg Addresses," since acknowledged to have been written by Gen. John Armstrong, at the request of several of the officers in camp. The following were the concluding passages of the first address:

"After a pursuit of seven long years, the object for which we set out is at length brought within our reach. Yes, my friends, that suffering courage of yours was active once. It has conducted the United States of America through a doubtful and a bloody war. It has placed her in the chair of independency; and peace returns again to bless—whom? A country willing to redress your wrongs, cherish your worth, and reward your services? A country courting your return to private life with tears of gratitude and smiles of admiration—longing to divide with you that independency which your gallantry has given, and those riches which your wounds have preserved? Is this the case? Or is it rather a country that tramples upon your rights, disdains your cries, and insults your distresses? Have you not more than once suggested your wishes and made known your wants to Congress? Wants and wishes which gratitude and policy would have anticipated rather than evaded; and have you not lately, in the meek language of entreating memorials, begged from their justice what you could no longer expect from their favor? How have you been answered? Let the letter which you are called to consider tomorrow reply.

"If this, then, be your treatment while the swords you wear are necessary for the defense of America, what have you to expect from peace, when your voice shall sink and your strength dissipate by division? When those very swords, the instruments and companions of your glory, shall be taken from your sides, and no remaining mark of military distinction left but your wants, infirmities, and scars? Can you then consent to be the only sufferers by this Revolution, and, retiring from the field, grow old in poverty, wretchedness, and contempt? Can you consent to wade through the vile mire of dependency, and owe the miserable remnant of that life to charity which has hitherto been spent in honor? If you can, go; and carry with you the jest of Tories and the scorn of Whigs, the ridicule, and, what is worse,

the pity of the world. Go—starve and be forgotten. But if your spirit should revolt at this, if you have sense enough to discover, and spirit enough to oppose, tyranny under whatever garb it may assume, whether it be the plain coat of republicanism or the splendid robe of royalty; if you have yet learned to discriminate between a people and a cause, between men and principles, awake; attend to your situation and redress yourselves. If the present moment be lost, every future effort is in vain, and your threats then will be as empty as your entreaties now.

"I would advise you, therefore, to come to some final opinion upon what you can bear and what you will suffer. If your determination be in any proportion to your wrongs, carry your appeal from the justice to the fears of the government. Change the milk-and-water style of your last memorial. Assume a bolder tone, decent, but lively; spirited and determined; and suspect the man who would advise to more moderation and longer forbearance. Let two or three men who can feel as well as write be appointed to draw up your last remonstrance; for I would no longer give it the suing, soft, unsuccessful epithet of memorial. Let it be represented in language that will neither dishonor you by its rudeness nor betray you by its fears, what has been promised by Congress and what has been performed; how long and how patiently you have suffered; how little you have asked, and how much of that little has been denied. Tell them that, though you were the first, and would wish to be the last to encounter danger; though despair itself can never drive you into dishonor it may drive you from the field; that the wound often irritated and never healed may at length become incurable, and that the slightest mark of indignity from Congress now must operate like the grave, and part you forever; that in any political event, the army has its alternative—if peace, that nothing shall separate you from your arms but death; if war, that, courting the auspices and inviting the directions of your illustrious leader, you will retire to some unsettled country, smile in your turn, and 'mock when their fear cometh on.' But let it represent also that should they comply with the request of your late memorial, it would make you more happy and them more respectable. That while war should continue you would follow their standard into the field, and when it came to an end, you would withdraw into the shade of private life, and give the world another subject of wonder and applause—an army victorious over its enemies, victorious over itself."

Persuaded as the officers in general were of the indisposition of government to remunerate their services, this eloquent and impassioned address, dictated by genius and by feeling, found in almost every bosom a kindred though latent sentiment prepared to receive its impression. Quick as the train to which a torch is applied, the passions caught its flame and nothing seemed to be required but the assemblage proposed for the succeeding day to communicate the conflagration to the combustible mass and to produce an explosion ruinous to the army and to the nation.

Accustomed as Washington had been to emergencies of great delicacy and difficulty, yet none had occurred which called more pressingly than the present for the utmost exertion of all his powers. He knew well that it was much easier to avoid intemperate measures than to recede from them after they have been adopted. He therefore considered it as a matter of the last importance to prevent the meeting of the officers on the succeeding day, as proposed in the anonymous summons. The sensibilities of the army were too high to admit of this being forbidden by authority, as a violation of discipline; but the end was answered in another way and without irritation. Washington, in general orders, noticed the anonymous summons, as a disorderly proceeding, not to be countenanced; and the more effectually to divert the officers from paying any attention to it, he requested them to meet for the same nominal purpose, but on a day four days subsequent to the one proposed by the anonymous writer. On the next day (March 12th), the second "Newburg Address" appeared, affecting to consider Washington as approving the first, and only changing the day of meeting. But this artifice was defeated. The intervening period was improved in preparing the officers for the adoption of moderate measures. Washington sent for one officer after another, and enlarged in private on the fatal consequences, and particularly the loss of character, which would result from the adoption of intemperate resolutions. His whole personal influence was exerted to calm the prevailing agitation. When the officers assembled (March 15, 1783), General Gates was called to the chair. Washington rose and apologized for being present, which had not been his original intention; but the circulation of anonymous addresses had imposed on him the duty of expressing his opinion of their tendency. He had committed it to writing, and, with the indulgence of his brother officers, he would take the liberty of reading it to them; and then proceeded as follows:

"GENTLEMEN.—By an anonymous summons an attempt has been made to convene you together. How inconsistent with the rules of propriety, how unmilitary, and how subversive of all order and discipline, let the good sense of the army decide.

"In the moment of this summons, another anonymous production was sent into circulation, addressed more to the feelings and passions than to the reason and judgment of the army. The author of the piece is entitled to much credit for the goodness of his pen, and I could wish he had as much credit for the rectitude of his heart; for, as men see through different optics, and are induced, by the reflecting faculties of the mind, to use different means to attain the same end, the author of the address should have had more charity than to mark for suspicion the man who should recommend moderation and longer forbearance; or, in other words, who should not think as he thinks, and act as he advises. But he had another plan in view, in which candor and liberality of sentiment, regard to justice, and love of country have no part; and he was right to insinuate the darkest suspicion to effect the blackest design. That the address is drawn with great art and is designed to answer the most insidious purposes; that it is calculated to impress the mind with an idea of premeditated injustice in the sovereign power of the United States, and rouse all those resentments which must unavoidably flow from such a belief that the secret mover of this scheme, whoever he may be, intended to take advantage of the passions, while they were warmed by the recollection of past distresses, without giving time for cool, deliberate thinking, and that composure of mind which is so necessary to give dignity and stability to measures, is rendered too obvious, by the mode of conducting the business, to need other proof than a reference to the proceeding. Thus much, gentlemen, I have thought it incumbent on me to observe to you, to show upon what principles I opposed the irregular and hasty meeting which was proposed to have been held on Tuesday last, and not because I wanted a disposition to give you every opportunity, consistent with your own honor and the dignity of the army, to make known your grievances. If my conduct heretofore has not evinced to you that I have been a faithful friend to the army, my declaration of it at this time would be equally unavailing and improper. But as I was among the first who embarked in the cause of our common country; as I have never left your side one moment, but when called from you on public duty; as I have been the constant companion and witness of your distresses, and not among the

last to feel and acknowledge your merits; as I have ever considered my own military reputation as inseparably connected with that of the army; as my heart has ever expanded with joy when I have heard its praises, and my indignation has arisen when the mouth of detraction has been opened against it, it can scarcely be supposed, at this late stage of the war, that I am indifferent to its interests. But how are they to be promoted? The way is plain, says the anonymous addresser. If war continues, remove into the unsettled country; there establish yourselves and leave an ungrateful country to defend itself. But who are they to defend? Our wives, our children, our farms and other property, which we leave behind us? Or, in this state of hostile separation, are we to take the two first (the latter cannot be removed), to perish in a wilderness with hunger, cold, and nakedness? If peace takes place, never sheathe your swords, says he, until you have obtained full and ample justice. This dreadful alternative of either deserting our country in the extremist hour of her distress, or turning our arms against it, which is the apparent object, unless Congress can be compelled into instant compliance, has something so shocking in it that humanity revolts at the idea. My God! What can this writer have in view, by recommending such measures? Can he be a friend to the army? Can he be a friend to this country? Rather is he not an insidious foe? some emissary, perhaps, from New York, plotting the ruin of both, by sowing the seeds of discord and separation between the civil and military powers of the continent? And what a compliment does he pay to our understandings, when he recommends measures, in either alternative, impracticable in their nature!

"But here, gentlemen, I will drop the curtain, because it would be as imprudent in me to assign my reasons for this opinion as it would be insulting to your conception to suppose you stood in need of them. A moment's reflection will convince every dispassionate mind of the physical impossibility of carrying either proposal into execution. There might, gentlemen, be an Impropriety in my taking notice, in this address to you, of an anonymous production, but the manner in which that performance has been introduced to the army, the effect it was intended to have, together with some other circumstances, will amply justify my observations on the tendency of that writing. With respect to the advice given by the author, to suspect the man who shall recommend moderate measures and longer forbearance, I spurn it, as every man who regards that liberty and reveres that justice for which we contend, undoubtedly must; for, if men are to be

precluded from offering their sentiments on a matter which may involve the most serious and alarming consequences that can invite the consideration of mankind, reason is of no use to us. The freedom of speech may be taken away, and, dumb and silent, we may be led like sheep to the slaughter.

"I cannot, in justice to my own belief and what I have great reason to conceive is the intention of Congress, conclude this address without giving it as my decided opinion that that honorable body entertain exalted sentiments of the services of the army, and from a full conviction of its merits and sufferings will do it complete justice; that their endeavors to discover and establish funds for this purpose has been unwearied, and will not cease till they have succeeded, I have not a doubt. But, like all other large bodies where there is a variety of different interests to reconcile, their determinations are slow. Why, then, should we distrust them, and, in consequence of that distrust, adopt measures which may cast a shade over that glory which has been so justly acquired, and tarnish the reputation of an army which is celebrated through all Europe for its fortitude and patriotism? And for what is this done? To bring the object we seek nearer? No; most certainly, in my opinion, it will cast it at a greater distance. For myself—and I take no merit in giving the assurance, being induced to it from principles of gratitude, veracity, and justice—a grateful sense of the confidence you have ever placed in me, a recollection of the cheerful assistance and prompt obedience I have experienced from you under every vicissitude of fortune, and the sincere affection I feel for an army I have so long had the honor to command, will oblige me to declare in this public and solemn manner that in the attainment of complete justice for all your toils and dangers, and in the gratification of every wish, so far as may be done consistently with the great duty I owe my country, and those powers we are bound to respect, you may freely command my services to the utmost extent of my abilities. While I give you these assurances, and pledge myself in the most unequivocal manner to exert whatever ability I am possessed of in your favor, let me entreat you, gentlemen, on your part, not to take any measure, which, viewed in the calm light of reason, will lessen the dignity and sully the glory you have hitherto maintained. Let me request you to rely on the plighted faith of your country, and place a full confidence in the purity of the intentions of Congress, that, previous to your dissolution as an army, they will cause all your accounts to be fairly liquidated, as directed in the resolutions which were published to you two days ago; and that they

will adopt the most effectual measures in their power to render ample justice to you for your faithful and meritorious services. And let me conjure you, in the name of our common country, as you value your own sacred honor, as you respect the rights of humanity, and as you regard the military and national character of America, to express your utmost horror and detestation of the man who wishes, under any specious pretenses, to overturn the liberties of our country, and who wickedly attempts to open the floodgates of civil discord and deluge our rising empire in blood.

"By thus determining and thus acting, you will pursue the plain and direct road to the attainment of your wishes; you will defeat the insidious designs of our enemies, who are compelled to resort from open force to secret artifice. You will give one more distinguished proof of unexampled patriotism and patient virtue, rising superior to the pressure of the most complicated sufferings; and you will, by the dignity of your conduct, afford occasion for posterity to say, when speaking of the glorious example you have exhibited to mankind—'Had this day been wanting, the world had never seen the last stage of perfection to which human nature is capable of attaining.'"

After concluding this address, Washington read to the meeting a letter from one of his frequent correspondents in Congress, the Hon. Joseph Jones, pointing out the difficulties Congress had to contend with, but expressing the opinion that the claims of the army would, at all events, be paid. When he got through with the first paragraph of the letter he made a short pause, took out his spectacles, and craved the indulgence of the audience while he put them on, remarking, while he was engaged in that operation, that "he had grown gray in their service, and now found himself growing blind." The effect of such remark from Washington, at such a moment, may be imagined. It brought tears to the eyes of many a veteran in that illustrious assemblage. When he had finished reading the letter he retired, leaving the officers to deliberate and act as the crisis demanded.

On the present occasion, as on previous ones, Washington's appeal to the officers was successful. The sentiments uttered in his address, from a person whom the army had been accustomed to love, to revere, and to obey—the solidity of whose judgment and the sincerity of whose zeal for their interests were alike unquestioned—could not fail to be irresistible. No person was hardy enough to oppose the advice he had given, and the

general impression was apparent. A resolution, moved by General Knox and seconded by Brigadier-General Putnam, "assuring him that the officers reciprocated his affectionate expressions with the greatest sincerity of which the human heart is capable," was unanimously voted. On the motion of General Putnam, a committee consisting of General Knox, Colonel Brooks, and Captain Howard was then appointed to prepare resolutions on the business before them, and to report in half an hour. The report of the committee being brought in and considered, resolutions were passed declaring that no circumstances of distress should induce the officers to sully, by unworthy conduct, the reputation acquired in their long and faithful service; that they had undiminished confidence in the justice of Congress and of their country; and that the Commander-in-Chief should be requested to write to the President of Congress, earnestly entreating a speedy decision on the late address forwarded by a committee of the army. In compliance with the request of the officers, expressed in the above mentioned resolution, and with the pledge which he had voluntarily given, Washington forthwith addressed the following letter to the President of Congress:

"The result of the proceedings of the grand convention of the officers, which I have the honor of enclosing to your Excellency for the inspection of Congress, will, I flatter myself, be considered as the last glorious proof of patriotism which could have been given by men who aspired to the distinction of a patriot army, and will not only confirm their claim to the justice but will increase their title to the gratitude of their country. Having seen the proceedings on the part of the army terminate with perfect unanimity and in a manner entirely consonant to my wishes; being impressed with the liveliest sentiments of affection for those who have so long, so patiently, and so cheerfully suffered and fought under my immediate direction; having, from motives of justice, duty, and gratitude, spontaneously offered myself as an advocate for their rights, and, having been requested to write to your Excellency, earnestly entreating the most speedy decision of Congress upon the subjects of the late address from the army to that honorable body, it now only remains for me to perform the task I have assumed, and to intercede in their behalf, as I now do, that the sovereign power will be pleased to verify the predictions I have pronounced of, and the confidence the army have reposed in, the justice of their country. And here I humbly conceive it is altogether unnecessary (while I am

pleading the cause of an army which have done and suffered more than any other army ever did in the defense of the rights and liberties of human nature) to expatiate on their claims to the most ample compensation for their meritorious services, because they are known perfectly to the whole world, and because (although the topics are inexhaustible) enough has already been said on the subject. To prove these assertions, to evince that my sentiments have ever been uniform, and to show what my ideas of the rewards in question have always been, I appeal to the archives of Congress, and call on those sacred deposits to witness for me. And in order that my observations and arguments in favor of a future adequate provision for the officers of the army may be brought to remembrance again and considered in a single point of view, without giving Congress the trouble of having recourse to their files, I will beg leave to transmit herewith an extract from a representation made by me to a committee of Congress, so long ago as the 29th of January, 1778, and also the transcript of a letter to the President of Congress, dated near Passaic Falls, October 11, 1780.

"That in the critical and perilous moment when the last-mentioned communication was made there was the utmost danger a dissolution of the army would have taken place unless measures similar to those recommended had been adopted, will not admit a doubt. That the adoption of the resolution granting half-pay for life has been attended with all the happy consequences I had foretold, so far as respected the good of the service, let the astonishing contrast between the state of the army at this instant and at the former period determine. And that the establishment of funds and security of the payment of all the just demands of the army will be the most certain means of preserving the national faith and future tranquility of this extensive continent, is my decided opinion.

"By the preceding remarks it will readily be imagined that instead of retracting and reprehending (from further experience and reflection) the mode of compensation so strenuously urged in the enclosures, I am more and more confirmed in the sentiment, and if in the wrong, suffer me to please myself with the grateful delusion.

"For if, besides the simple payment of their wages, a further compensation is not due to the sufferings and sacrifices of the officers, then have I been mistaken indeed. If the whole army have not merited whatever a grateful people can bestow, then have I been beguiled by prejudice and

built opinion on the basis of error. If this country should not in the event perform everything which has been requested in the late memorial to Congress, then will my belief become vain, and the hope that has been excited void of foundation. And if (as has been suggested for the purpose of inflaming their passions) the officers of the army are to be the only sufferers by this revolution; 'if, retiring from the field, they are to grow old in poverty, wretchedness, and contempt; if they are to wade through the vile mire of dependency and owe the miserable remnant of that life to charity which has hitherto been spent in honor,' then shall I have learned what ingratitude is—then shall I have realized a tale which will embitter every moment of my future life.

"But I am under no such apprehensions; a country rescued by their arms from impending ruin will never leave unpaid the debt of gratitude.

"Should any intemperate or improper warmth have mingled itself amongst the foregoing observations, I must entreat your Excellency and Congress it may be attributed to the effusion of an honest zeal in the best of causes, and that my peculiar situation may be my apology, and I hope I need not on this momentous occasion make any new protestations of personal disinterestedness, having ever renounced for myself the idea of pecuniary reward. The consciousness of having attempted faithfully to discharge my duty and the approbation of my country will be a sufficient recompense for my services."

This energetic letter, connected with recent events, induced Congress to decide on the claims of the army. These were liquidated, and the amount acknowledged to be due from the United States. Thus the country was once more indebted to the wisdom and moderation of Washington for its preservation from imminent danger.

Soon after these events intelligence of a general peace was received. The news came by a French vessel from Cadiz, with a letter from Lafayette, who was then at that place preparing for an expedition to the West Indies, under Count d'Estaing. Shortly after, Sir Guy Carleton gave official information to the same effect and announced a cessation of hostilities. The joyful intelligence was notified by proclamation of Washington to the army, in the camp at Newburg, on the 19th of April (1783), exactly eight years after the commencement of hostilities at Lexington. In general orders a public religious service and thanksgiving was directed by him to take place

on the evening of the same day, when the proclamation was read at the head of every regiment and corps of the army. The immediate reduction of the army was resolved upon, but the mode of effecting it required deliberation. To avoid the inconveniences of dismissing a great number of soldiers in a body, furloughs were freely granted on the application of individuals, and after their dispersion they were not enjoined to return. By this arrangement a critical moment was got over. A great part of an unpaid army was dispersed over the States without tumult or disorder.

At the instance of Washington the soldiers were permitted to carry home their arms, to be preserved and transmitted to their posterity as memorials of the glorious war of independence.

While the veterans serving under the immediate eye of their beloved Commander-in-Chief manifested the utmost good temper and conduct, a mutinous disposition broke out among some new levies stationed at Lancaster, in Pennsylvania. About eighty of this description marched in a body to Philadelphia, where they were joined by some other troops, so as to amount in the whole to 300. They marched with fixed bayonets to the statehouse, in which Congress and the State Executive Council held their sessions. They placed guards at every door and threatened the President and Council of the State with letting loose an enraged soldiery upon them, unless they granted their demands in twenty minutes. As soon as this outrage was known to Washington, he detached General Howe with a competent force to suppress the mutiny. This was effected without bloodshed before his arrival. The mutineers were too inconsiderable to commit extensive mischief, but their disgraceful conduct excited the greatest indignation in the breast of the Commander-in-Chief, which was expressed in a letter to the President of Congress in the following words:

"While I suffer the most poignant distress in observing that a handful of men, contemptible in numbers, and equally so in point of service (if the veteran troops from the southward have not been seduced by their example), and who are not worthy to be called soldiers, should disgrace themselves and their country, as the Pennsylvania mutineers have done, by insulting the sovereign authority of the United States, and that of their own, I feel an inexpressible satisfaction that even this behavior cannot stain the name of the American soldiery.

"It cannot be imputable to or reflect dishonor on the army at large, but, on the contrary, it will, by the striking contrast it exhibits, hold up to public view the other troops in the most advantageous point of light. Upon taking all the circumstances into consideration, I cannot sufficiently express my surprise and indignation at the arrogance, the folly, and the wickedness of the mutineers; nor can I sufficiently admire the fidelity, the bravery, and patriotism which must forever signalize the unsullied character of the other corps of our army. For when we consider that these Pennsylvania levies who have now mutinied are recruits and soldiers of a day, who have not borne the heat and burden of war, and who can have in reality very few hardships to complain of, and when we at the same time recollect that those soldiers who have lately been furloughed from this army, are the veterans who have patiently endured hunger, nakedness, and cold; who have suffered and bled without a murmur, and who, with perfect good order have retired to their homes without a settlement of their accounts or a farthing of money in their pockets, we shall be as much astonished at the virtues of the latter as we are struck with detestation at the proceedings of the former."

On the occasion of disbanding the army, Washington addressed a circular letter to the governors of all the States, in which he gave his views of the existing state of the country and the principles upon which the future fabric of united government should be founded. It is one of the most remarkable state papers ever produced in this country.

Meantime Sir Guy Carleton was preparing to evacuate the city of New York. On the 27th of April (1783) a fleet had sailed for Nova Scotia with 7,000 persons and their effects. These were partly soldiers and partly Tories exiled by the laws of the States.

On the 6th of May Washington had a personal interview with Carleton at Orangetown respecting the delivery of the British posts in the United States, and of property directed to be surrendered by an article of the treaty.

The independence of his country being established, Washington looked forward with anxiety to its future destinies. These might greatly depend on the systems to be adopted on the return of peace, and to those systems much of his attention was directed. The future peace establishment of the United States was one of the many interesting subjects which claimed the consideration of Congress. As the experience of Washington would certainly enable him to suggest many useful ideas on this important point,

his opinions respecting it were requested by the committee of Congress to whom it was referred. His letter on this occasion will long deserve the attention of those to whom the interests of the United States may be confided. His strongest hopes of securing the future tranquility, dignity, and respectability of his country were placed on a well-regulated and well-disciplined militia; and his sentiments on this subject are entitled to the more regard as a long course of severe experience had enabled him to mark the total incompetence of the existing system to the great purposes of national defense.

At length the British troops evacuated New York, and on the 25th of November (1783) a detachment from the American army took possession of that city.

Guards being posted for the security of the citizens, Washington, accompanied by Governor George Clinton, and attended by many civil and military officers and a large number of respectable inhabitants on horseback, made his public entry into the city, where he was received with every mark of respect and attention. His military course was now on the point of terminating, and he was about to bid adieu to his comrades in arms. This affecting interview took place on the 4th of December. At noon the principal officers of the army assembled at Frances' tavern, soon after which their beloved Commander entered the room. His emotions were too strong to be concealed. Filling a glass, he turned to them and said, "With a heart full of love and gratitude, I now take leave of you; I most devoutly wish that your latter days may be as prosperous and happy as your former ones have been glorious and honorable." Having drunk, he added, "I cannot come to each of you to take my leave, but shall be obliged if each of you will come and take me by the hand." General Knox, being nearest, turned to him. Washington, incapable of utterance, grasped his hand and embraced him. In the same affectionate manner he took leave of each succeeding officer. The tear of manly sensibility was in every eye, and not a word was articulated to interrupt the dignified silence and the tenderness of the scene. Leaving the room, he passed through the corps of light infantry and walked to Whitehall, where a barge waited to convey him to Paulus Hook. The whole company followed in mute and solemn procession, with dejected countenances, testifying feelings of delicious melancholy which no language can describe. Having entered the barge he turned to the company and, waving his hat, bid them a silent adieu. They paid him the same

affectionate compliment, and, after the barge had left them, returned in the same solemn manner to the place where they had assembled.

Congress was then in session at Annapolis, in Maryland, to which place Washington repaired for the purpose of resigning into their hands the authority with which they had invested him. He arrived on the 19th of December (1783). The next day he informed that body of his intention to ask leave to resign the commission he had the honor of holding in their service, and requested to know whether it would be their pleasure that he should offer his resignation in writing or at an audience.

To give the more dignity to the act, they determined that it should be offered at a public audience on the following Tuesday, 23d of December, at 12.

When the hour arrived for performing a ceremony so well calculated to recall the various interesting scenes which had passed since the commission now to be returned was granted, the gallery was crowded with spectators and several persons of distinction were admitted on the floor of Congress. The members remained seated and covered. The spectators were standing and uncovered. Washington was introduced by the secretary and conducted to a chair. After a short pause the President, General Mifflin, informed him that "the United States in Congress assembled were prepared to receive his communications." With native dignity, improved by the solemnity of the occasion, Washington rose and delivered the following address:

"MR. PRESIDENT.—The great events on which my resignation depended having at length taken place, I have now the honor of offering my sincere congratulations to Congress, and of presenting myself before them, to surrender into their hands the trust committed to me, and to claim the indulgence of retiring from the service of my country.

"Happy in the confirmation of our independence and sovereignty, and pleased with an opportunity afforded the United States of becoming a respectable nation, I resign with satisfaction the appointment I accepted with diffidence; a diffidence in my abilities to accomplish so arduous a task, which, however, was superseded by a confidence in rectitude of our cause, the support of the supreme power of the Union, and the patronage of Heaven.

"The successful termination of the war has verified the most sanguine expectations, and my gratitude for the interposition of Providence, and the

assistance I have received from my countrymen increases with every review of the momentous contest. While I repeat my obligations to the army in general, I should do injustice to my own feelings not to acknowledge in this place the peculiar services and distinguished merits of the gentlemen who have been attached to my person during the war. It was impossible the choice of confidential officers to compose my family should have been more fortunate. Permit me, sir, to recommend in particular, those who have continued in the service to the present moment, as worthy of the favorable notice and patronage of Congress.

"I consider it as an indispensable duty to close this last act of my official life, by commending the interests of our dearest country to the protection of Almighty God, and those who have the superintendence of them to His holy keeping.

"Having now finished the work assigned me, I retire from the great theater of action, and, bidding an affectionate farewell to this august body, under whose orders I have so long acted, I here offer my commission and take my leave of all the employments of public life."

After advancing to the chair and delivering his commission to the President, he returned to his place and received, standing, the following answer of Congress, which was delivered by the President:

"SIR.—The United States, in Congress assembled, receive with emotions too affecting for utterance, the solemn resignation of the authorities under which you have led their troops with success through a perilous and a doubtful war. Called upon by your country to defend its invaded rights, you accepted the sacred charge before it had formed alliances and whilst it was without funds or a government to support you. You have conducted the great military contest with wisdom and fortitude, invariably regarding the rights of the civil power through all disasters and changes. You have, by the love and confidence of your fellow citizens, enabled them to display their martial genius and transmit their fame to posterity. You have persevered until these United States, aided by a magnanimous King and nation, have been enabled, under a just Providence, to close the war in freedom, safety, and independence, on which happy event we sincerely join you in congratulations.

"Having defended the standard of liberty in this new world, having taught a lesson useful to those who inflict and to those who feel oppression, you

retire from the great theater of action with the blessings of your fellow-citizens. But the glory of your virtues will not terminate with your military command; it will continue to animate remotest ages.

"We feel with you our obligations to the army in general and will particularly charge ourselves with the interests of those confidential officers who have attended your person to this affecting moment.

"We join you in commending the interests of our dearest country to the protection of Almighty God, beseeching Him to dispose the hearts and minds of its citizens to improve the opportunity afforded them of becoming a happy and respectable nation. And for you we address to Him our earnest prayers that a life so beloved may be fostered with all his care; that your days may be as happy as they have been illustrious, and that he will finally give you that reward which this world cannot give."

This scene being closed, a scene rendered peculiarly interesting by the personages who appeared in it, by the great events it recalled to the memory, and by the singularity of the circumstances under which it was displayed, the American chief withdrew from the hall of Congress, leaving the silent and admiring spectators deeply impressed with those sentiments which its solemnity and dignity were calculated to inspire.

Divested of his military character, Washington, on the following day, set out for Mount Vernon to which favorite residence he now retired, followed by the enthusiastic love, esteem, and admiration of his countrymen. Relieved from the agitations of a doubtful contest and from the toils of an exalted station he returned with increased delight to the duties and the enjoyments of a private citizen. He indulged the hope that in the shade of retirement, under the protection of a free government and the benignant influence of mild and equal laws, he might taste that felicity which is the reward of a mind at peace with itself and conscious of its own purity. {2}

"Though General Washington was not stayed in his progress to Philadelphia, by the Congress, who, on the 1st of November, had elected the Honorable Thomas Mifflin President, and three days after had adjourned to meet at Annapolis in Maryland on the 26th; yet it was the 8th of December, at noon, before General Washington arrived at the Capital of Pennsylvania. When his intention of quitting the army was known he was complimented and received with the utmost respect and affection, by all orders of men, both civil and military. He remained some days in

Philadelphia. While in the city he delivered in his accounts to the comptroller, down to December the 13th, all in his own handwriting, and every entry made in the most particular manner, stating the occasion of each charge, so as to give the least trouble in examining and comparing them with the vouchers with which they were attended.

"The heads are as follows, copied from the folio manuscript paper book, in the file of the treasury office, No. 3700, being a black box of tin containing, under lock and key, both that and the vouchers:

<i>"Total of expenditures from 1775 to 1783, exclusive</i>	<i>£.</i>	<i>s.</i>	<i>d.</i>
<i>of provisions from commissaries and contractors,</i>			
<i>and of liquors, &c., from them and others.....</i>	<i>3387</i>	<i>14</i>	<i>4</i>
<i>Secret intelligence and service.....</i>	<i>1982</i>	<i>10</i>	<i>0</i>
<i>Spent in reconnoitering and traveling.....</i>	<i>874</i>	<i>8</i>	<i>8</i>
<i>Miscellaneous charges</i>	<i>2952</i>	<i>10</i>	<i>1</i>
<i>Expended besides, dollars according to the scale of</i>			
<i>depreciation</i>	<i>6114</i>	<i>14</i>	<i>0</i>

£16,311 17 1

<i>{3} "(General Washington's account) from June, 1775,</i>	<i>£.</i>	<i>s.</i>	<i>d.</i>
<i>to the end of June, 1783.....</i>	<i>16,311</i>	<i>17</i>	<i>1</i>
<i>Expenditure from July 1, 1783, to Dec. 13.....</i>	<i>1717</i>	<i>5</i>	<i>4</i>
<i>(Added afterwards) from thence to Dec. 28.....</i>	<i>213</i>	<i>8</i>	<i>4</i>
<i>Mrs. Washington's traveling expenses in coming</i>			
<i>to the General and returning.....</i>	<i>1064</i>	<i>1</i>	<i>0</i>

£19,306 11 9

*"Lawful money of Virginia,
the same as the Massachusetts, or £14,479 18 9 3/4 sterling.*

"The General entered in his book—I find upon the final adjustment of these accounts, that I am a considerable loser—my disbursements falling a good deal short of my receipts, and the money I had upon hand of my own; for besides the sums I carried with me to Cambridge in 1775, I received moneys afterward on private account in 1777 and since, which (except small sums that I had occasion now and then to apply to private uses) were all expended in the public service: through hurry, I suppose, and the perplexity of business (for I know not how else to account for the deficiency) I have omitted to charge the same, whilst every debit against me is here credited. July 1, 1783." {4}

"Happy would it have been for the United States had each person who has handled public money been equally exact and punctual!

"General Washington, after delivering in his accounts, hastened to Annapolis, where he arrived on the evening of the 19th December."

A facsimile of the original account, filling many foolscap pages, has been published; and copies were eagerly ordered by collectors in Europe as well as the United States.

The document through which Washington, at the close of the Revolution, left to the States whose trust he had held, and whose work he had done, does not yield in interest and importance to even the more famous Farewell Address. It was sent to each of the Governors of the several States, and was as follows:

WASHINGTON'S CIRCULAR LETTER TO THE GOVERNORS OF ALL THE STATES ON DISBANDING THE ARMY.

"Headquarters, Newburg, June 18, 1783. Sir:—The object for which I had the honor to hold an appointment in the service of my country being accomplished, I am now preparing to resign it into the hands of Congress, and return to that domestic retirement, which, it is well known, I left with the greatest reluctance; a retirement for which I have never ceased to sigh through a long and painful absence, in which (remote from the noise and trouble of the world) I meditate to pass the remainder of life, in a state of undisturbed repose: but, before I carry this resolution into effect, I think it a duty incumbent on me to make this my last official communication, to congratulate you on the glorious events which Heaven has been pleased to produce in our favor; to offer my sentiments respecting some important subjects, which appear to me to be intimately connected with the tranquility of the United States; to take my leave of your Excellency as a public character; and to give my final blessing to that country in whose service I have spent the prime of my life, for whose sake I have consumed so many anxious days and watchful nights, and whose happiness, being extremely dear to me, will always constitute no inconsiderable part of my own.

"Impressed with the liveliest sensibility on this pleasing occasion, I will claim the indulgence of dilating the more copiously on the subject of our mutual felicitation. When we consider the magnitude of the prize we contended for, the doubtful nature of the contest, and the favorable manner in which it has terminated, we shall find the greatest possible reason for gratitude and rejoicing. This is a theme that will afford infinite delight to every benevolent and liberal mind, whether the event in contemplation be considered as a source of present enjoyment, or the parent of future happiness; and we shall have equal occasion to felicitate ourselves on the

lot which Providence has assigned us, whether we view it in a natural, a political, or moral point of light.

"The citizens of America, placed in the most enviable condition, as the sole lords and proprietors of a vast tract of continent, comprehending all the various soils and climates of the world, and abounding with all the necessities and conveniences of life, are now, by the late satisfactory pacification, acknowledged to be possessed of absolute freedom and independency: they are from this period to be considered as the actors on a most conspicuous theatre, which seems to be peculiarly designed by Providence for the display of human greatness and felicity. Here they are not only surrounded with every thing that can contribute to the completion of private and domestic enjoyment; but Heaven has crowned all its other blessings, by giving a surer opportunity for political happiness, than any other nation has ever been favored with. Nothing can illustrate these observations more forcibly than a recollection of the happy conjuncture of times and circumstances under which our republic assumed its rank among the nations. The foundation of our empire was not laid in a gloomy age of ignorance and superstition, but at an epoch when the rights of mankind were better understood and more clearly defined, than at any former period. Researches of the human mind after social happiness have been carried to a great extent; the treasures of knowledge acquired by the labors of philosophers, sages, and legislators, through a long succession of years, are laid open for us, and their collected wisdom may be happily applied in the establishment of our forms of government. The free cultivation of letters, the unbounded extension of commerce, the progressive refinement of manners, the growing liberality of sentiment; and, above all, the pure and benign light of revelation, have had a meliorating influence on mankind, and increased the blessings of society. At this auspicious period, the United States came into existence as a nation; and if their citizens should not be completely free and happy, the fault will be entirely their own.

"Such is our situation, and such are our prospects. But notwithstanding the cup of blessing is thus reached out to us; notwithstanding happiness is ours, if we have a disposition to seize the occasion, and make it our own; yet it appears to me there is an option still left to the United States of America, whether they will be respectable and prosperous, or contemptible and miserable as a nation. This is the time of their political probation; this is the moment when the eyes of the whole world are turned upon them; this is

the time to establish or ruin their national character forever; this is the favorable moment to give such a tone to the federal government, as will enable it to answer the ends of its institution; or, this may be the ill-fated moment for relaxing the powers of the union, annihilating the cement of the confederation, and exposing us to become the sport of European politics, which may play one State against another, to prevent their growing importance, and to serve their own interested purposes. For, according to the system of policy the States shall adopt at this moment, they will stand or fall; and, by their confirmation or lapse, it is yet to be decided, whether the Revolution must ultimately be considered as a blessing or a curse:—a blessing or a curse, not to the present age alone, for with our fate will the destiny of unborn millions be involved.

"With this conviction of the importance of the present crisis, silence in me would be a crime; I will therefore speak to your Excellency the language of freedom and sincerity, without disguise. I am aware, however, those who differ from me in political sentiments may, perhaps, remark, I am stepping out of the proper line of my duty; and they may possibly ascribe to arrogance or ostentation, what I know alone is the result of the purest intention. But the rectitude of my own heart, which disdains such unworthy motives; the part I have hitherto acted in life; the determination I have formed of not taking any share in public business hereafter; the ardent desire I feel, and shall continue to manifest, of quietly enjoying in private life, after all the toils of war, the benefits of a wise and liberal government, will, I flatter myself, sooner or later, convince my countrymen, that I could have no sinister views in delivering with so little reserve the opinions contained in this address.

"There are four things which I humbly conceive are essential to the well-being, I may even venture to say to the existence, of the United States as an independent power.

"1st. An indissoluble union of the States under one federal head.

"2dly. A sacred regard to public justice.

"3dly. The adoption of a proper peace establishment. And,

"4thly. The prevalence of that pacific and friendly disposition among the people of the United States, which will induce them to forget their local prejudices and policies; to make those mutual concessions which are

requisite to the general prosperity; and, in some instances, to sacrifice their individual advantages to the interest of the community.

"These are the pillars on which the glorious fabric of our independency and national character must be supported. Liberty is the basis; and whoever would dare to sap the foundation, or overturn the structure, under whatever specious pretext he may attempt it, will merit the bitterest execration, and the severest punishment, which can be inflicted by his injured country.

"On the three first articles I will make a few observations; leaving the last to the good sense and serious consideration of those immediately concerned.

"Under the first head, although it may not be necessary or proper for me in this place to enter into a particular disquisition of the principles of the union, and to take up the great question which has been frequently agitated, whether it be expedient and requisite for the States to delegate a larger portion of power to Congress, or not; yet it will be a part of my duty, and that of every true patriot, to assert, without reserve, and to insist upon the following positions:—That unless the States will suffer Congress to exercise those prerogatives they are undoubtedly invested with by the Constitution, every thing must very rapidly tend to anarchy and confusion: That it is indispensable to the happiness of the individual States, that there should be lodged, somewhere, a supreme power to regulate and govern the general concerns of the confederated Republic, without which the union cannot be of long duration: That there must be a faithful and pointed compliance on the part of every State with the late proposals and demands of Congress, or the most fatal consequences will ensue: That whatever measures have a tendency to dissolve the union, or contribute to violate or lessen the sovereign authority, ought to be considered as hostile to the liberty and independence of America, and the authors of them treated accordingly. And, lastly, that unless we can be enabled by the concurrence of the States to participate of the fruits of the Revolution, and enjoy the essential benefits of civil society, under a form of government so free and uncorrupted, so happily guarded against the danger of oppression, as has been devised and adopted by the articles of confederation, it will be a subject of regret that so much blood and treasure have been lavished for no purpose; that so many sufferings have been encountered without a compensation; and that so many sacrifices have been made in vain. Many

other considerations might here be adduced to prove, that without an entire conformity to the spirit of the union, we cannot exist as an independent power. It will be sufficient for my purpose to mention but one or two, which seem to me of the greatest importance. It is only in our united character, as an empire, that our independence is acknowledged that our power can be regarded, or our credit supported among foreign nations. The treaties of the European powers with the United States of America, will have no validity on a dissolution of the union. We shall be left nearly in a state of nature; or we may find, by our own unhappy experience, that there is a natural and necessary progression from the extreme of anarchy to the extreme of tyranny; and that arbitrary power is most easily established on the ruins of liberty abused to licentiousness.

"As to the second article, which respects the performance of public justice, Congress have, in their late address to the United States, almost exhausted the subject; they have explained their ideas so fully, and have enforced the obligations the States are under to render complete justice to all the public creditors, with so much dignity and energy, that, in my opinion, no real friend to the honor and independency of America can hesitate a single moment respecting the propriety of complying with the just and honorable measures proposed. If their arguments do not produce conviction, I know of nothing that will have greater influence, especially when we reflect that the system referred to, being the result of the collected wisdom of the continent, must be esteemed, if not perfect, certainly the least objectionable of any that could be devised; and that, if it should not be carried into immediate execution, a national bankruptcy, with all its deplorable consequences, will take place before any different plan can possibly be proposed or adopted; so pressing are the present circumstances, and such is the alternative now offered to the States.

"The ability of the country to discharge the debts which have been incurred in its defense, is not to be doubted; and inclination, I flatter myself, will not be wanting. The path of our duty is plain before us; honesty will be found, on every experiment to be the best and only true policy. Let us then, as a nation, be just; let us fulfill the public contracts which Congress had undoubtedly a right to make for the purpose of carrying on the war, with the same good faith we suppose ourselves bound to perform our private engagements. In the mean time, let an attention to the cheerful performance of their proper business, as individuals, and as members of society, be

earnestly inculcated on the citizens of America; then will they strengthen the bands of government, and be happy under its protection. Every one will reap the fruit of his labors: every one will enjoy his own acquisitions, without molestation and without danger.

"In this state of absolute freedom and perfect security, who will grudge to yield a very little of his property to support the common interests of society, and insure the protection of government? Who does not remember the frequent declarations at the commencement of the war, that we should be completely satisfied, if, at the expense of one half, we could defend the remainder of our possessions? Where is the man to be found, who wishes to remain in debt for the defense of his own person and property, to the exertions, the bravery, and the blood of others, without making one generous effort to pay the debt of honor and of gratitude? In what part of the continent shall we find any man, or body of men, who would not blush to stand up and propose measures purposely calculated to rob the soldier of his stipend, and the public creditor of his due? And were it possible that such a flagrant instance of injustice could ever happen, would it not excite the general indignation, and tend to bring down upon the authors of such measures the aggravated vengeance of Heaven? If, after all, a spirit of disunion, or a temper of obstinacy and perverseness should manifest itself in any of the States; if such an ungracious disposition should attempt to frustrate all the happy effects that might be expected to flow from the union; if there should be a refusal to comply with requisitions for funds to discharge the annual interest of the public debts; and if that refusal should revive all those jealousies, and produce all those evils, which are now happily removed, Congress, who have in all their transactions shown a great degree of magnanimity and justice, will stand justified in the sight of God and man! and that State alone, which puts itself in opposition to the aggregate wisdom of the continent, and follows such mistaken and pernicious councils, will be responsible for all the consequences.

"For my own part, conscious of having acted, while a servant of the public, in the manner I conceived best suited to promote the real interests of my country; having, in consequence of my fixed belief, in some measure pledged myself to the army that their country would finally do them complete and ample justice; and not wishing to conceal any instance of my official conduct from the eyes of the world, I have thought proper to transmit to your Excellency the enclosed collection of papers, relative to the

half-pay and commutation granted by Congress to the officers of the army. From these communications my decided sentiment will be clearly comprehended, together with the conclusive reasons which induced me, at an early period, to recommend the adoption of this measure in the most earnest and serious manner. As the proceedings of Congress, the army, and myself, are open to all, and contain, in my opinion, sufficient information to remove the prejudices and errors which may have been entertained by any, I think it unnecessary to say any thing more than just to observe, that the resolutions of Congress now alluded to, are as undoubtedly and absolutely binding upon the United States, as the most solemn acts of confederation or legislation.

"As to the idea which, I am informed, has in some instances prevailed, that the half-pay and commutation are to be regarded merely in the odious light of a pension, it ought to be exploded forever: that provision should be viewed, as it really was, a reasonable compensation offered by Congress, at a time when they had nothing else to give to officers of the army, for services then to be performed. It was the only means to prevent a total dereliction of the service. It was a part of their hire; I may be allowed to say, it was the price of their blood, and of your independency. It is therefore more than a common debt; it is a debt of honor: it can never be considered as a pension, or gratuity, nor cancelled until it is fairly discharged.

"With regard to the distinction between officers and soldiers, it is sufficient that the uniform experience of every nation of the world, combined with our own, proves the utility and propriety of the discrimination. Rewards in proportion to the aid the public draws from them, are unquestionably due to all its servants. In some lines, the soldiers have perhaps, generally, had as ample compensation for their services, by the large bounties which have been paid them, as their officers will receive in the proposed commutation; in others, if, besides the donation of land, the payment of arrearages of clothing and wages (in which articles all the component parts of the army must be put upon the same footing), we take into the estimate the bounties many of the soldiers have received, and the gratuity of one year's full pay, which is promised to all, possibly their situation (every circumstance being duly considered) will not be deemed less eligible than that of the officers. Should a further reward, however, be judged equitable, I will venture to assert, no man will enjoy greater satisfaction than myself,—in an exemption from taxes for a limited time

(which has been petitioned for in some instances), or any other adequate immunity or compensation granted to the brave defenders of their country's cause. But neither the adoption or rejection of this proposition will, in any manner, affect, much less militate against, the act of Congress by which they have offered five years' full pay in lieu of the half-pay for life, which had been before promised to the officers of the army.

"Before I conclude the subject on public justice, I cannot omit to mention the obligations this country is under to the meritorious class of veterans, the non-commissioned officers and privates, who have been discharged for inability, in consequence of the resolution of Congress of the 23d of April, 1782, on an annual pension for life. Their peculiar sufferings, their singular merits and claims to that provision, need only to be known to interest the feelings of humanity in their behalf. Nothing but a punctual payment of their annual allowance can rescue them from the most complicated misery; and nothing could be a more melancholy and distressing sight than to behold those who have shed their blood, or lost their limbs in the service of their country, without a shelter, without a friend, and without the means of obtaining any of the comforts or necessities of life, compelled to beg their bread daily from door to door. Suffer me to recommend those of this description, belonging to your State, to the warmest patronage of your Excellency and your legislature.

"It is necessary to say but a few words on the third topic which was proposed, and which regards particularly the defense of the republic—as there can be little doubt but Congress will recommend a proper peace establishment for the United States, in which a due attention will be paid to the importance of placing the militia of the Union upon a regular and respectable footing. If this should be the case, I should beg leave to urge the great advantage of it in the strongest terms.

"The militia of this country must be considered as the palladium of our security, and the first effectual resort in case of hostility. It is essential, therefore, that the same system should pervade the whole; that the formation and discipline of the militia of the continent should be absolutely uniform; and that the same species of arms, accoutrements, and military apparatus should be introduced in every part of the United States. No one, who has not learned it from experience, can conceive the difficulty,

expense, and confusion which result from a contrary system, or the vague arrangements which have hitherto prevailed.

"If, in treating of political points, a greater latitude than usual has been taken in the course of the address, the importance of the crisis, and the magnitude of the objects in discussion, must be my apology. It is, however, neither my wish nor expectation that the preceding observations should claim any regard, except so far as they shall appear to be dictated by a good intention, consonant to the immutable rules of justice, calculated to produce a liberal system of policy, and founded on whatever experience may have been acquired by a long and close attention to public business. Here I might speak with more confidence, from my actual observations; and if it would not swell this letter (already too prolix) beyond the bounds I had prescribed myself, I could demonstrate to every mind, open to conviction, that in less time, and with much less expense than has been incurred, the war might have been brought to the same happy conclusion, if the resources of the continent could have been properly called forth; that the distresses and disappointments which have very often occurred have, in too many instances, resulted more from a want of energy in the continental government, than a deficiency of means in the particular States; that the inefficiency of the measures, arising from the want of an adequate authority in the supreme power, from a partial compliance with the requisitions of Congress in some of the States, and from a failure of punctuality in others, while they tended to damp the zeal of those who were more willing to exert themselves, served also to accumulate the expenses of the war, and to frustrate the best concerted plans; and that the discouragement occasioned by the complicated difficulties and embarrassments in which our affairs were by this means involved, would have long ago produced the dissolution of any army, less patient, less virtuous, and less persevering than that which I have had the honor to command. But while I mention those things which are notorious facts, as the defects of our federal constitution, particularly in the prosecution of a war, I beg it may be understood, that as I have ever taken a pleasure in gratefully acknowledging the assistance and support I have derived from every class of citizens, so shall I always be happy to do justice to the unparalleled exertions of the individual States, on many interesting occasions.

"I have thus freely disclosed what I wished to make known, before I surrendered up my public trust to those who committed it to me. The task is

now accomplished. I now bid adieu to your Excellency, as the chief magistrate of your State; at the same time, I bid a last farewell to the cares of office, and all the employments of public life.

"It remains, then, to be my final and only request, that your Excellency will communicate these sentiments to your legislature at their next meeting; and that they may be considered as the legacy of one who has ardently wished, on all occasions, to be useful to his country, and who, even in the shade of retirement, will not fail to implore the divine benediction upon it.

"I now make it my earnest prayer, that God would have you, and the State over which you preside, in his holy protection; that he would incline the hearts of the citizens to cultivate a spirit of subordination and obedience to government; to entertain a brotherly affection and love for one another; for their fellow-citizens of the United States at large, and particularly for their brethren who have served in the field; and, finally, that he would most graciously be pleased to dispose us all to do justice, to love mercy, and to demean ourselves with that charity, humility, and pacific temper of the mind, which were the characteristics of the divine Author of our blessed religion; without an humble imitation of whose example, in these things, we can never hope to be a happy nation.

"I have the honor to be, with much esteem and respect, sir, your Excellency's most obedient and most humble servant,

"GEO. WASHINGTON."

NOTE.—On the 3d of September, 1783, the Definitive Treaty of Peace, between Great Britain and the United States of America, was signed at Paris, by David Hartley, Esq., on the part of his Britannic Majesty, and by John Adams, Benjamin Franklin, and John Jay, Esqs., on the part of the United States. The treaty was ratified by Congress early in January, 1784.

IN THE NAME OF THE MOST HOLY AND UNDIVIDED TRINITY.

It having pleased the Divine Providence to dispose the hearts of the most serene and most potent prince, George the Third, by the grace of God King of Great Britain, France, and Ireland, Defender of the Faith, Duke of

Brunswick and Lunenburg, Arch-Treasurer and Prince Elector of the holy Roman empire, etc., and of the United States of America, to forget all past misunderstandings and differences that have unhappily interrupted the good correspondence and friendship which they mutually wish to restore, and to establish such a beneficial and satisfactory intercourse between the two countries, upon the ground of reciprocal advantages and mutual convenience, as may promote and secure to both perpetual peace and harmony; and having for this desirable end already laid the foundation of peace and reconciliation, by the provisional articles signed at Paris, on the 30th of November, 1782, by the commissioners empowered on each part; which articles were agreed to be inserted in, and to constitute the treaty of peace proposed to be concluded between the crown of Great Britain and the said United States, but which treaty was not to be concluded until the terms of peace should be agreed upon between Great Britain and France, and his Britannic majesty should be ready to conclude such treaty accordingly; and the treaty between Great Britain and France having since been concluded, his Britannic majesty and the United States of America, in order to carry into full effect the provisional articles above mentioned, according to the tenor thereof, have constituted and appointed, that is to say, his Britannic majesty on his part, David Hartley, Esq., member of the Parliament of Great Britain; and the said United States on their part, John Adams, Esq., late a commissioner of the United States of America at the court of Versailles, late delegate in Congress from the State of Massachusetts, and chief-justice of the said State, and minister plenipotentiary of the said United States to their high mightinesses the States General of the United Netherlands; Benjamin Franklin, Esq., late delegate in Congress from the State of Pennsylvania, president of the Convention of the said State, and minister plenipotentiary from the United States of America at the court of Versailles; and John Jay, Esq., late president of Congress, and chief-justice of the State of New York, and minister plenipotentiary from the said United States at the court of Madrid; to be the plenipotentiaries for the concluding and signing the present definitive treaty; who, after having reciprocally communicated their respective full powers, have agreed upon and confirmed the following articles.

ART. I.—His Britannic majesty acknowledges the said United States, viz., New Hampshire, Massachusetts Bay, Rhode Island and Providence Plantations, Connecticut, New York, New Jersey, Pennsylvania, Delaware,

Maryland, Virginia, North Carolina, South Carolina, and Georgia, to be free, sovereign, and independent States; that he treats them as such, and for himself, his heirs, and successors, relinquishes all claim to the government, proprietary, and territorial right of the same, and every part thereof.

ART. II.-And that all disputes which might arise in future on the subject of the boundaries of the said United States may be prevented, it is hereby agreed and declared that the following are and shall be their boundaries, viz.: from the northwest angle of Nova Scotia, viz., that angle which is formed by a line drawn due north from the source of St. Croix River to the high lands which divide those rivers that empty themselves into the river St. Lawrence from those which fall into the Atlantic Ocean, to the northwestern most head of Connecticut River; thence drawn along the middle of that river to the forty-fifth degree of north latitude; from thence by a line due west on said latitude, until it strikes the river Iroquois or Cataraquy; thence along the middle of said river into Lake Ontario; through the middle of said lake until it strikes the communication by water between that lake and Lake Erie; thence along the middle of the said communication into Lake Erie, through the middle of said lake, until it arrives at the water communication between that lake and Lake Huron; thence through the middle of said lake to the water communication between that lake and Lake Superior; thence through Lake Superior northward to the isles Royal and Philipeaux, to the Long Lake; thence through the middle of said Long Lake, and the water communication between it and the Lake of the Woods, to the said Lake of the Woods; thence through the said lake to the most northwestern most point thereof, and from thence a due west course to the river Mississippi; thence by a line to be drawn along the middle of the said river Mississippi, until it shall intersect the northernmost part of the thirty-first degree of north latitude; south, by a line to be drawn due east from the determination of the line last mentioned, in the latitude of thirty-one degrees north of the equator, to the middle of the river Apalachicola or Catahouche; thence along the middle thereof, to its junction with the Flint River; thence straight to the head of St. Mary's River, and thence down the middle of St. Mary's River to the Atlantic Ocean; east, by a line to be drawn along the middle of the River St. Croix, from its mouth in the Bay of Fundy to its source, and from its source directly north to the aforesaid high lands, which divide the rivers that fall into the Atlantic Ocean from those which fall into the river St. Lawrence, comprehending all islands within twenty leagues of any part

of the shores of the United States, and lying between lines to be drawn due east from the points where the aforesaid boundaries between Nova Scotia on the one part, and east Florida on the other, shall respectively touch the Bay of Fundy and the Atlantic Ocean, excepting such islands as now are or heretofore have been within the limits of the said province of Nova Scotia.

ART. III.—It is agreed, that the people of the United States shall continue to enjoy, unmolested, the right to take fish of every kind on the Great Bank, and on all the other banks of Newfoundland; also in the Gulf of St. Lawrence, and at all other places in the sea where the inhabitants of both countries used at any time heretofore to fish; and also that the inhabitants of the United States shall have liberty to take fish of every kind on such part of the coast of Newfoundland as British fishermen shall use (but not to dry or cure the same on that island), and also on the coasts, bays, and creeks of all other of his Britannic majesty's dominions in America; and that the American fishermen shall have liberty to dry and cure fish in any of the unsettled bays, harbors, and creeks of Nova Scotia, Magdalen Islands, and Labrador, so long as the same shall remain unsettled; but as soon as the same shall be settled, it shall not be lawful for the said fishermen to dry or cure fish at such settlement, without a previous agreement for that purpose with the inhabitants, proprietors, or possessors of the ground.

ART. IV.—It is agreed, that the creditors, on either side, shall meet with no lawful impediment to the recovery of the full value in sterling money of all *bona fide* debts heretofore contracted.

ART. V.—It is agreed, that Congress shall earnestly recommend it to the legislatures of the respective States, to provide for the restitution of all estates, rights, and properties, which have been confiscated, belonging to real British subjects; and also of the estates, rights, and properties of persons resident in districts in the possession of his majesty's arms, and who have not borne arms against the United States; and that persons of any other description shall have free liberty to go to any part or parts of any of the thirteen United States, and therein to remain twelve months unmolested in their endeavors to obtain the restitution of such of their estates, rights, and properties as may have been confiscated; and that Congress shall also earnestly recommend to the several States a reconsideration and revision of all acts or laws regarding the premises, so as to render the said laws or acts perfectly consistent, not only with justice and equity, but with that spirit of

conciliation which, on the return of the blessings of peace, should invariably prevail; and that Congress shall also earnestly recommend to the several States, that the estates, rights, and properties of such last-mentioned persons shall be restored to them, they refunding to any persons who may be now in possession, the *bona fide* price (where any has been given) which such persons may have paid on purchasing any of the said lands, rights, or properties, since the confiscation. And it is agreed, that all persons who have any interest in confiscated lands, either by debts, marriage settlements, or otherwise, shall meet with no lawful impediment in the prosecution of their just rights.

ART. VI.—That there shall be no future confiscations made, nor any prosecutions commenced against any person or persons, for or by reason of the part which he or they may have taken in the present war; and that no person shall on that account suffer any future loss or damage, either in his person, liberty, or property; and that those who may be in confinement on such charges, at the time of the ratification of the treaty in America, shall be immediately set at liberty, and the prosecutions so commenced be discontinued.

ART. VII.—There shall be a firm and perpetual peace between his Britannic majesty and the said United States, and between the subjects of the one and the citizens of the other; wherefore all hostilities, both by sea and land, shall from henceforth cease; all prisoners, on both sides, shall be set at liberty; and his Britannic majesty shall, with all convenient speed, and without causing any destruction, or carrying away any negroes or other property of the American inhabitants, withdraw all his armies, garrisons, and fleets from the said United States, and from every post, place, and harbor within the same, leaving in all fortifications the American artillery that may be therein; and shall also order and cause all archives, records, deeds, and papers belonging to any of the said States, or their citizens, which in the course of the war may have fallen into the hands of his officers, to be forthwith restored, and delivered to the proper States and persons to whom they belong.

ART. VIII.—The navigation of the river Mississippi, from its source to the ocean, shall forever remain free and open to the subjects of Great Britain and the citizens of the United States.

Art. IX.—In case it should so happen that any place or territory, belonging to Great Britain or to the United States, should have been conquered by the arms of either from the other, before the arrival of the said provisional articles in America, it is agreed that the same shall be restored without difficulty and without requiring any compensation.

Art. X.—The solemn ratifications of the present treaty, expedited in good and due form, shall be exchanged between the contracting parties in the space of six months, or sooner, if possible, to be computed from the day of the signature of the present treaty.

1. Footnote: C. J. Peterson, "History of the Navy of the United States."

2. Footnote: Gordon thus notices the settlement of Washington's accounts with the government.

3. Footnote: Two hundred guineas advanced to General M'Dougat are not included in the £1982 10, not being yet settled, but included in some of the other charges, and so reckoned in the general sum.

4. Footnote: 104,364, of the dollars were received after March, 1780, and although credited forty for one, many did not fetch at the rate of a hundred for one, while 27,775 of them are returned without deducting anything from the above account (and therefore actually made a present to the public).

PART V. WASHINGTON A PRIVATE CITIZEN.

CHAPTER I. — WASHINGTON'S RETURN TO PRIVATE LIFE. 1783-1784.

When Washington retired from the command of the army it was undoubtedly his intention to devote the remainder of his life to his favorite pursuit of agriculture. His estate had suffered considerably from his devotion to public duties, and his private affairs now demanded all his attention. The Supreme Executive Council of Pennsylvania instructed the delegates of that State in Congress to propose a public remuneration for his services, but when the proposition was submitted for his approbation he promptly declined it. This was in strict consistency with his uniform character of disinterestedness. A liberal grant would have been voted by Congress and sanctioned by the nation, but Washington would not consent to receive it.

His feelings on finding himself a private citizen are expressed in his correspondence. In a letter to Governor Clinton, written only three days after his arrival at Mount Vernon, he says: "The scene is at length closed. I feel myself eased of a load of public care and hope to spend the remainder of my days in cultivating the affections of good men, and in the practice of the domestic virtues."

"At length, my dear marquis," said he to his noble and highly-valued friend, Lafayette, "I have become a private citizen on the banks of the Potomac, and under the shadow of my own vine and my own fig tree, free from the bustle of a camp and the busy scenes of public life, I am solacing myself with those tranquil enjoyments of which the soldier, who is ever in pursuit of fame—the statesman, whose watchful days and sleepless nights are spent in devising schemes to promote the welfare of his own, perhaps the ruin of other countries, as if this globe was insufficient for us all—and the courtier, who is always watching the countenance of his prince in the hope of catching a gracious smile—can have very little conception. I have not only retired from all public employments, but am retiring within myself, and shall be able to view the solitary walk and tread the paths of private life with heartfelt satisfaction. Envious of none I am determined to be pleased

with all, and this, my dear friend, being the order of my march, I will move gently down the stream of life until I sleep with my fathers."

But a mind accustomed to labor for a nation's welfare does not immediately divest itself of ancient habits. That custom of thinking on public affairs, and that solicitude respecting them, which belong to the patriot in office, follow him into his retreat. In a letter to General Knox, written soon after his resignation, Washington thus expressed the feelings attendant upon this sudden transition from public to private pursuits. "I am just beginning to experience the ease and freedom from public cares, which however desirable, takes some time to realize, for, strange as it may seem, it is nevertheless true that it was not until lately I could get the better of my usual custom of ruminating, as soon as I awoke in the morning, on the business of the ensuing day, and of my surprise at finding, after revolving many things in my mind, that I was no longer a public man or had anything to do with public transactions. I feel now, however, as I conceive a wearied traveler must do who, after treading many a painful step with a heavy burden on his shoulders, is eased of the latter, having reached the haven to which all the former were directed, and from his house-top is looking back and tracing with an eager eye the meanders by which he escaped the quicksands and mires which lay in his way, and into which none but the all-powerful Guide and Dispenser of human events could have prevented his falling."

For several months after arriving at Mount Vernon, almost every day brought him the addresses of an affectionate and grateful people. The glow of expression in which the high sense universally entertained of his services was conveyed, manifested the warmth of feeling which animated the American bosom. This unexampled tribute of voluntary applause, paid by a whole people to an individual no longer in power, made no impression on the unassuming modesty of his character and deportment. The same firmness of mind, the same steady and well-tempered judgment, which had guided him through the most perilous seasons of the war, still regulated his conduct, and the enthusiastic applauses of an admiring nation served only to cherish sentiments of gratitude and to give greater activity to the desire still further to contribute to the general prosperity.

Soon after peace was proclaimed Congress unanimously passed a resolution for the erection of an equestrian statue of Washington, at the

place which should be established for the residence of the government.

The Legislature of Virginia, too, at its first session after his resignation, passed the following resolution:

"Resolved, That the Executive be requested to take measures for procuring a statue of General Washington, to be of the finest marble and best workmanship, with the following inscription on its pedestal:

"The General Assembly of the Commonwealth of Virginia have caused this statue to be erected as a monument of affection and gratitude to George Washington, who, uniting to the endowments of the hero, the virtues of the patriot, and exerting both in establishing the liberties of his country, has rendered his name dear to his fellow-citizens, and given the world an immortal example of true glory." {5}

In addition to the attention which he bestowed on his own estate Washington endeavored to ameliorate the condition of agriculture generally. Nothing could be more wretched than the general state of this useful art in America. To its amelioration by examples which might be followed, and by the introduction of systems adapted to the soil, the climate, and to the wants of the people, the energies of his active and intelligent mind were now in a great degree directed. No improvement of the implements to be used on a farm, no valuable experiments in husbandry, escaped his attention. His inquiries, which were equally minute and comprehensive, extended beyond the limits of his own country, and he entered into a correspondence on this interesting subject with Arthur Young, the celebrated English writer, and with other foreigners who had been most distinguished for their additions to the stock of agricultural science.

Mingled with this favorite pursuit were the multiplied avocations resulting from the high office he had lately filled. He was engaged in an extensive correspondence with the friends most dear to his heart—the foreign and American officers who had served under him during the late war—and with almost every conspicuous political personage of his own, and with many of other countries. Literary men also were desirous of obtaining his approbation of their works, and his attention was solicited to every production of American genius. His countrymen who were about to travel were anxious to receive from the first citizen of the rising Republic, some testimonial bearing his signature, and all those strangers of distinction, who visited this newly-created empire, were ambitious of being

presented to its founder. In addition to visitors of distinction, and those who had claims of ancient friendship, he was subjected to the annoyance of visitors, who, without any just pretension to such an honor, made visits to Mount Vernon merely to gratify their curiosity, and to the scarcely less wearisome annoyance of tedious and unnecessary letters. Of these unwelcome intrusions upon his time Washington thus complained to an intimate military friend. "It is not, my dear sir, the letters of my friends which give me trouble or add aught to my perplexity. I receive them with pleasure, and pay as much attention to them as my avocations will permit. It is references to old matters with which I have nothing to do—applications which oftentimes cannot be complied with—inquiries, to satisfy which would employ the pen of an historian—letters of compliment, as unmeaning perhaps as they are troublesome, but which must be attended to—and the common-place business—which employ my pen and my time often disagreeably. Indeed these, with company, deprive me of exercise, and, unless I can obtain relief, must be productive of disagreeable consequences. Already I begin to feel their effects. Heavy and painful oppressions of the head and other disagreeable sensations often trouble me. I am determined therefore to employ some person who shall ease me of the drudgery of this business. At any rate, if the whole of it is thereby suspended, I am determined to use exercise. My private affairs also require infinitely more attention than I have given or can give them under present circumstances. They can no longer be neglected without involving my ruin."

It was some time after the date of this letter before he introduced into his family a young gentleman, qualified by education and manners to fill the station of private secretary and friend. This was Mr. Tobias Lear of New Hampshire, who had graduated at Harvard college.

The numerous visits which Washington received made Mount Vernon anything but a place of seclusion and repose, and "during these stirring times Mrs. Washington performed the duties of a Virginia housewife and presided at her well-spread board with that ease and elegance of manners which always distinguished her." {2}

This multiplicity of private avocations could not entirely withdraw the mind of Washington from objects tending to promote and secure the public happiness. His resolution never again to appear in the busy scenes of political life, though believed by himself and by his bosom friends to be

unalterable, could not render him indifferent to those measures on which the prosperity of his country essentially depended.

It is a very interesting fact that Washington was among the first, if not the very first of our public men, who were impressed with the importance of connecting the western with the eastern territory, by facilitating the means of intercourse between them. To this subject his attention had been directed in the early part of his life. While the American States were yet British colonies he had obtained the passage of a bill for opening the Potomac so as to render it navigable from tide-water to Wills creek, a distance of about 150 miles. The river James had also been comprehended in this plan, and he had triumphed so far over the opposition produced by local interests and prejudices, that the business was in a train which promised success, when the Revolutionary War diverted the attention of its patrons, and of all America, from internal improvements to the still greater objects of liberty and independence. As that war approached its termination, subjects which for a time had yielded their pretensions to consideration, reclaimed that place to which their real magnitude entitled them, and internal navigation again attracted the attention of the wise and thinking part of society. Accustomed to contemplate America as his country and to consider with solicitude the interests of the whole, Washington now took a more enlarged view of the advantages to be derived from opening both the eastern and the western waters; and for this, as well as for other purposes, after peace had been proclaimed, he traversed the western parts of New England and New York. "I have lately," said he, in a letter to the Marquis of Chastellux, "made a tour through the lakes George and Champlain as far as Crown Point; then returning to Schenectady I proceeded up the Mohawk river to Fort Schuyler, crossed over to Wood creek, which empties into the Oneida lake and affords the water communication with Ontario. I then traversed the country to the head of the eastern branch of the Susquehanna and viewed the lake Otsego and the portage between that lake and the Mohawk river at Canajoharie. Prompted by these actual observations, I could not help taking a more contemplative and extensive view of the vast inland navigation of these United States, and could not but be struck with the immense diffusion and importance of it, and with the goodness of that Providence which has dealt His favors to us with so profuse a hand. Would to God we may have wisdom enough to improve them. I shall not rest contented until I have explored the western country and traversed those lines (or great part of

them) which have given bounds to a new empire." The journey here referred to was performed in company with Governor Clinton while the army was encamped at Newburg.

Scarcely had he answered those spontaneous offerings of the heart which flowed in upon him from every part of a grateful nation, when his views were once more seriously turned to this truly interesting subject. Its magnitude was also impressed on others, and the value of obtaining the aid which his influence and active interference would afford to any exertions for giving this direction to the public mind, and for securing the happy execution of the plan which might be devised, was perceived by all those who attached to the great work its real importance. Jefferson, who had taken an expanded view of it concluded a letter to Washington containing a detailed statement of his ideas on the subject in these terms:

"But a most powerful objection always arises to propositions of this kind. It is, that public undertakings are carelessly managed and much money spent to little purpose. To obviate this objection is the purpose of my giving you the trouble of this discussion. You have retired from public life. You have weighed this determination, and it would be impertinence in me to touch it. But would the superintendence of this work break in too much on the sweets of retirement and repose? If they would I stop here. Your future time and wishes are sacred in my eye. If it would be only a dignified amusement to you, what a monument of your retirement would it be! It is one which would follow that of your public life and bespeak it the work of the same great hand. I am confident that would you, either alone or jointly with any persons you think proper, be willing to direct this business, it would remove the only objection, the weight of which I apprehend."

In September, 1784, Washington fulfilled the intention expressed in his letter to the Marquis of Chastellux, by making a tour to the western country. He went on horseback, using pack-horses for his tent and baggage. He crossed the Alleghenies by Braddock's road, examined his lands on the Monongahela river, and returned through the wilderness by a circuitous route, examining the country in order to determine the practicability of connecting the Potomac and James rivers with the western waters by means of canals. The whole journey extended some 680 miles. {3}

After returning from this tour Washington's first moments of leisure were devoted to the task of engaging his countrymen in a work which appeared

to him to merit still more attention from its political than from its commercial influence on the Union. In a long and interesting letter to Mr. Harrison then Governor of Virginia, he detailed the advantages which might be derived from opening the great rivers, the Potomac and the James, as high as should be practicable. After stating, with his accustomed exactness, the distances and the difficulties to be surmounted in bringing the trade of the west to different points on the Atlantic, he expressed unequivocally the opinion that the rivers of Virginia afforded a more convenient and a more direct course than could be found elsewhere for that rich and increasing commerce. This was strongly urged as a motive for immediately commencing the work. But the rivers of the Atlantic constituted only a part of the great plan he contemplated. He suggested the appointment of commissioners who should, after an accurate examination of the James and the Potomac, search out the nearest and best portages between those waters and the streams which run into the Ohio. Those streams were to be accurately surveyed, the impediments to their navigation ascertained, and their relative advantages examined. The navigable waters west of the Ohio toward the great lakes were also to be traced to their sources and those which emptied into the lakes to be followed to their mouths. "These things being done, and an accurate map of the whole presented to the public, he was persuaded that reason would dictate what was right and proper." For the execution of this latter part of his plan he had also much reliance on Congress, and, in addition to the general advantages to be drawn from the measure, he labored in his letters to the members of that body to establish the opinion that the surveys he recommended would add to the revenue by enhancing the value of the lands offered for sale. "Nature," he said, "had made such an ample display of her bounties in those regions that the more the country was explored the more it would rise in estimation."

The assent and cooperation of Maryland being indispensable to the improvement of the Potomac, he was equally earnest in his endeavors to impress a conviction of its superior advantages on those individuals who possessed most influence in that State. In doing so he detailed the measures which would unquestionably be adopted by New York and Pennsylvania for acquiring the monopoly of the western commerce, and the difficulty which would be found in diverting it from the channel it had once taken. "I am not," he added, "for discouraging the exertions of any State to draw the commerce of the western country to its seaports. The more communications

we open to it the closer we bind that rising world (for indeed it may be so called) to our interests, and the greater strength shall we acquire by it. Those to whom nature affords the best communication will, if they are wise, enjoy the greatest share of the trade. All I would be understood to mean, therefore, is, that the gifts of Providence may not be neglected."

But the light in which this subject would be viewed with most interest and which gave to it most importance, was its political influence on the Union. "I need not remark to you, sir," said he, in his letter to Governor Harrison of Virginia, "that the flanks and rear of the United States are possessed by other powers—and formidable ones, too: nor need I press the necessity of applying the cement of interest to bind all parts of the Union together by indissoluble bonds—especially of binding that part of it which lies immediately west of us to the middle States. For what ties, let me ask, should we have upon those people? How entirely unconnected with them shall we be, and what troubles may we not apprehend if the Spaniards on their right and Great Britain on their left, instead of throwing impediments in their way as they now do, should hold out lures for their trade and alliance? When they get strength, which will be sooner than most people conceive, what will be the consequence of their having formed close commercial connections with both or either of those powers, it needs not, in my opinion, the gift of prophecy to foretell."

This idea was enlarged and pressed with much earnestness in his letters to several members of Congress.

The letter to Governor Harrison was communicated to the Assembly of Virginia, and the internal improvements it recommended were zealously supported by the wisest members of that body. While the subject remained undecided, Washington, accompanied by Lafayette, who had crossed the Atlantic and had arrived at Mount Vernon on the 17th of August, paid a visit to the capital of the State. Never was reception more cordial or more demonstrative of respect and affection than was given to these beloved personages. But amidst the display of addresses and of entertainments which were produced by the occasion, the great business of internal improvements was not forgotten, and the ardor of the moment was seized to conquer those objections to the plan which yet lingered in the bosoms of members who could perceive in it no future advantage to compensate for the present expense.

An exact conformity between the acts of Virginia and of Maryland being indispensable to the improvement of the Potomac, a resolution was passed soon after the return of Washington to Mount Vernon, requesting him to attend the Legislature of Maryland, in order to agree on a bill which might receive the sanction of both States. This agreement being happily completed, the bills were passed, and thus began that grand system of internal improvement by which the eastern portion of the Union is bound to the west. Canals and portages were the forerunners of the railroads by which every part of the country is now traversed, and the whole Republic is firmly united in bonds of mutual intercourse, which, it is fondly hoped will prove perpetual.

The Legislature of Virginia seized the occasion afforded by the passage of these acts to signalize the affection and gratitude of the State towards her favorite son. A bill was drafted by Mr. Madison, the preamble of which was in the following words:

"Whereas, it is the desire of the representatives of this commonwealth to embrace every suitable occasion of testifying their sense of the unexampled merits of George Washington, Esquire, toward his country, and it is their wish in particular that those great works for its improvement, which, both as springing from the liberty which he has been so instrumental in establishing and as encouraged by his patronage will be durable monuments of his glory, may be made monuments also of the gratitude of his country. Be it enacted, &c."

By this bill the treasurer was instructed to subscribe, in behalf of the State, for a specified number of shares in each company. Just at the close of the session, when no refusal of their offer could be communicated to them, a bill was suddenly brought in which received the unanimous assent of both houses, authorizing the treasurer to subscribe for the benefit of Washington the same number of shares in each company as were to be taken for the State. The actual value of the shares was \$40,000.

Washington was greatly embarrassed by this mark of gratitude. It afforded him pleasure to see that his character and services were appreciated by his fellow-citizens. But he would not depart from his determination to receive no pecuniary reward for his public services.

To Madison, who conveyed to him the first intelligence of this bill, his difficulties were thus expressed:

"It is not easy for me to decide by which my mind was most affected upon the receipt of your letter of the sixth instant—surprise or gratitude. Both were greater than I had words to express. The attention and good wishes which the Assembly has evinced by their act for vesting in me 150 shares in the navigation of the rivers Potomac and James, is more than mere compliment—there is an unequivocal and substantial meaning annexed. But, believe me, sir, no circumstance has happened since I left the walks of public life which has so much embarrassed me. On the one hand, I consider this act, as I have already observed, as a noble and unequivocal proof of the good opinion, the affection, and disposition of my country to serve me, and I should be hurt, if, by declining the acceptance of it my refusal should be construed into disrespect or the smallest slight upon the generous intention of the legislature, or that an ostentatious display of disinterestedness of public virtue was the source of refusal.

"On the other hand, it is really my wish to have my mind and my actions, which are the result of reflection as free and independent as the air, that I may be more at liberty (in things which my opportunities and experience have brought me to the knowledge of) to express my sentiments, and, if necessary, to suggest what may occur to me under the fullest conviction that, although my judgment may be arraigned, there will be no suspicion that sinister motives had the smallest influence in the suggestion. Not content then with the bare consciousness of my having in all this navigation business, acted upon the clearest conviction of the political importance of the measure, I would wish that every individual who may hear that it was a favorite plan of mine, may know also, that I had no other motive for promoting it than the advantage of which I conceived it would be productive to the Union at large and to this State in particular, by cementing the eastern and western territory together, at the same time that it will give vigor and increase to our commerce and be a convenience to our citizens."

At length he determined, in the same letter which should convey his resolution not to retain the shares for his private emolument, to signify his willingness to hold them in trust for such public institution as the Legislature should approve. The following letter conveyed this resolution to the General Assembly through the governor of the State:

OCTOBER, 1785.

"SIR:—Your Excellency having been pleased to transmit me a copy of the act appropriating to my benefit certain shares in the companies for opening the navigation of James and Potomac rivers, I take the liberty of returning to the General Assembly, through your hands, the profound and grateful acknowledgments inspired by so signal a mark of their beneficent intentions towards me. I beg you, sir, to assure them that I am filled on this occasion with every sentiment which can flow from a heart warm with love for my country, sensible to every token of its approbation and affection, and solicitous to testify in every instance a respectful submission to its wishes.

"With these sentiments in my bosom, I need not dwell on the anxiety I feel in being obliged, in this instance, to decline a favor which is rendered no less flattering by the manner in which it is conveyed, than it is affectionate in itself. In explaining this I pass over a comparison of my endeavors in the public service, with the many honorable testimonies of approbation which have already so far overrated, and overpaid them—reciting one consideration only, which supersedes the necessity of recurring to every other.

"When I was first called to the station with which I was honored during the late conflict for our liberties, to the diffidence which I had so many reasons to feel in accepting it, I thought it my duty to join a firm resolution to shut my hand against every pecuniary recompense. To this resolution I have invariably adhered, and from it (if I had the inclination) I do not consider myself at liberty now to depart.

"Whilst I repeat therefore my fervent acknowledgments to the Legislature for their very kind sentiments and intentions in my favor, and at the same time beg them to be persuaded that a remembrance of this singular proof of their goodness towards me will never cease to cherish returns of the warmest affection and gratitude, I must pray that their act, so far as it has for its object my personal emolument, may not have its effect; but if it should please the General Assembly to permit me to turn the destination of the fund vested in me, from my private emolument to objects of a public nature, it will be my study, in selecting these, to prove the sincerity of my gratitude for the honor conferred upon me, by preferring such as may appear most subservient to the enlightened and patriotic views of the Legislature."

The wish suggested in this letter immediately received the sanction of the Legislature, and at a subsequent time the trust was executed by conveying the shares respectively to the use of a seminary of learning—which is now called Washington college, and to a university to be established in the District of Columbia, under the auspices of the government.

Washington felt too strong an interest in the success of these works to refuse the presidency of the companies instituted for their completion. In conducting the affairs of the Potomac company, he took an active part; to that formed for opening the navigation of the James, he could only give his counsel.

While Washington was at Richmond attending to the interests of internal navigation he had been joined by Lafayette, who, since his recent visit to Mount Vernon, had accompanied the commissioners to Fort Schuyler to make a treaty with the Indians, and had assisted on that occasion. He had subsequently made a tour in the eastern States, where he was received with much distinction and he was now on his return to pay a farewell visit to Washington at Mount Vernon.

He remained only a week at Mount Vernon. Washington accompanied him to Annapolis, where Lafayette was honored with a public reception and address by the Legislature of Maryland, and there, on the 30th of November, 1784, these distinguished men took leave of each other. From Annapolis Lafayette proceeded to Trenton, where Congress was then in session, and on Christmas day he embarked at New York for France in the frigate *Nymphe*. The following is an extract from a letter written by Washington to Lafayette on his return to Mount Vernon:

"The peregrination of the day in which I parted from you ended at Maryborough. The next day, bad as it was, I got home before dinner.

"In the moment of separation, upon the road as I traveled, and every hour since, I have felt all that love, respect, and attachment for you, with which length of years, close connection, and your merits have inspired me. I often asked myself, as our carriages separated, whether that was the last sight I ever should have of you? And though I wished to say No, my fears answered Yes. I called to mind the days of my youth, and found they had long since fled to return no more; that I was now descending the hill I had been fifty-two years climbing, and that, though I was blest with a good constitution, I was of a short-lived family, and might soon expect to be

entombed in the mansion of my fathers. These thoughts darkened the shades, and gave a gloom to the picture, and consequently to my prospect of seeing you again. But I will not repine; I have had my day.

"Nothing of importance has occurred since I parted with you. I found my family well, and am now immersed in company; notwithstanding which, I have in haste produced a few more letters to give you the trouble of, rather inclining to commit them to your care, than to pass them through many and unknown hands."

Among the letters referred to in the above extract was one to the Marchioness de Lafayette and another to her little daughter. In the former he writes: "The Marquis returns to you with all the warmth and ardor of a newly-inspired lover. We restore him to you in good health, crowned with wreaths of love and respect from every part of the Union."

1. Footnote: This statue was executed by Houdon, and stands in the capitol at Richmond. It is in the costume of commander-in-chief of the army, and is considered an excellent likeness. Another statue of Washington, by Canova, was in the Roman costume, and in a sitting posture. It was made for the State of North Carolina, and was unfortunately destroyed when the capitol was burnt. Another statue stands in the statehouse at Boston. It was the result of a private subscription. A fourth, by Greenough, adorns the grounds of the capitol at Washington.

2. Footnote: Custis, "Memoir of Martha Washington."

3. Footnote: Sparks.

CHAPTER II. — WASHINGTON PRESIDES AT THE FORMATION OF THE CONSTITUTION. 1785-1788.

On first retiring to Mount Vernon (1785), Washington had devoted his attention to the restoration of his estate to that high condition of order and productiveness which had been maintained under his own personal superintendence previous to the war. During his absence of nine years he had constantly corresponded with his manager and given particular directions respecting its cultivation. But it had suffered much in his absence, and he was determined to renovate it by assiduous care. He gave up the cultivation of tobacco because it had a tendency to exhaust the soil, and planted wheat in its stead, giving attention at the same time to the production of grass, maize, potatoes, and oats, and pursuing the system of rotation in crops now considered so indispensable by intelligent farmers.

When this system was well established he commenced planting and adorning with trees the grounds surrounding the mansion-house. His diary shows that he paid great attention to this object, directing the setting out of a great number and variety of ornamental trees, some of them being obtained in the neighboring woods and others brought from a great distance. He also replenished his gardens, orchards, and green-houses with choice fruits and flowers which were confided to the care of skilful gardeners.

Meantime the number of guests entertained at Mount Vernon was ever on the increase. Many were known to have crossed the Atlantic for the sole purpose of visiting the founder of the Republic. Among these was Mrs. Catharine Macauley Graham. By the principles contained in her "History of the Stuarts," this lady had acquired much reputation in republican America and by all was received with marked attention. She was cordially received at Mount Vernon, and, if her letters may be credited, the exalted opinion she had formed of its proprietor was "not diminished by a personal acquaintance with him."

The French military and naval officers, Lafayette, Rochambeau, D'Estaing, and others, gave letters of introduction to be presented to Washington by their friends whenever any of them came to America, and those letters were always duly honored by hospitable attentions to those who bore them. His own compatriots were still more numerous and more assiduous in attention to the retired commander. Officers who had served with him in the old French war and in the Revolution, members of Congress, politicians, and magistrates from distant States, were among the guests at Mount Vernon; so that Washington's time would thus have been completely taken up but for the efficient aid which he received in discharging the duties of hospitality from the ease, urbanity, and excellent management of his accomplished lady.

"His habits," says Mr. Sparks, "were uniform and nearly the same as they had been previously to the war. He arose before the sun and employed himself in his study writing letters or reading till the hour of breakfast. When breakfast was over his horse was ready at the door, and he rode to his farms and gave directions for the day to the managers and laborers. Horses were likewise prepared for his guests whenever they chose to accompany him, or to amuse themselves by excursions into the country. Returning from his fields and dispatching such business as happened to be on hand, he went again to his study, and continued there till 3 o'clock, when he was summoned to dinner. The remainder of the day and the evening were devoted to company or to recreation in the family circle. At 10 he retired to rest. From these habits he seldom deviated unless compelled to do so by particular circumstances." {1}

In a delightful memoir {2} of his own life and times by Mr. Elkanah Watson, we find the following interesting notice of Washington at home, and we also learn what subject chiefly occupied his thoughts at the time of which we are writing:

"I had feasted my imagination for several days," says Mr. Watson, "on the near prospect of a visit to Mount Vernon—the seat of Washington. No pilgrim ever approached Mecca with deeper enthusiasm. I arrived there on the afternoon of January 23d, 1785. I was the bearer of a letter from General Greene, with another from Colonel Fitzgerald, one of the former aides of Washington, and also the books from Granville Sharpe. Although assured that these credentials would secure me a respectful reception, I felt

an unaccountable diffidence as I came into the presence of the great man. I found him at table with Mrs. Washington and his private family, and was received with the native dignity and urbanity so peculiarly combined in the character of a soldier and eminent private gentleman. He soon put me at ease, by unbending in a free and affable conversation.

"The cautious reserve which wisdom and policy dictated whilst engaged in rearing the glorious fabric of our independence was evidently the result of consummate prudence and not characteristic of his nature. Although I had frequently seen him in the progress of the Revolution and had corresponded with him from France in 1781 and 1782, this was the first occasion on which I had contemplated him in his private relations. I observed a peculiarity in his smile which seemed to illuminate his eye; his whole countenance beamed with intelligence, while it commanded confidence and respect. The gentleman who had accompanied me from Alexandria left in the evening, and I remained alone in the enjoyment of the society of Washington for two of the richest days of my life. I saw him reaping the reward of his illustrious deeds in the quiet shade of his beloved retirement. He was at the matured age of fifty-three. Alexander died before he reached that period of life and he had immortalized his name. How much stronger and nobler the claims of Washington to immortality! In the impulses of mad, selfish ambition, Alexander acquired fame by wading to the conquest of the world through seas of blood. Washington, on the contrary, was parsimonious of the blood of his countrymen, stood forth the pure and virtuous champion of their rights, and formed for them, not himself, a mighty empire.

"To have communed with such a man in the bosom of his family I shall always regard as one of the highest privileges and most cherished incidents of my life. I found him kind and benignant in the domestic circle, revered and beloved by all around him, agreeably social, without ostentation; delighting in anecdote and adventures, without assumption; his domestic arrangements harmonious and systematic. His servants seemed to watch his eye, and to anticipate his every wish; hence a look was equivalent to a command. His servant Billy, the faithful companion of his military career, was always at his side. Smiling content animated and beamed on every countenance in his presence.

"The first evening I spent under the wing of his hospitality we sat a full hour at table, by ourselves, without the least interruption, after the family had retired. I was extremely oppressed with a severe cold and excessive coughing, contracted from the exposure of a harsh winter journey. He pressed me to use some remedies, but I declined doing so. As usual after retiring my cough increased. When some time had elapsed the door of my room was gently opened, and on drawing my bed-curtains, to my utter astonishment, I beheld Washington himself standing at my bedside with a bowl of hot tea in his hand. I was mortified and distressed beyond expression. This little incident, occurring in common life with an ordinary man would not have been noticed, but as a trait of the benevolence and the private virtue of Washington it deserves to be recorded.

"He modestly waived all allusions to the events in which he had acted so glorious and conspicuous a part. Much of his conversation had reference to the interior country and to the opening of the navigation of the Potomac, by canals and locks at the Seneca, the Great, and the Little Falls. His mind appeared to be deeply absorbed in that object, then in earnest contemplation. He allowed me to take minutes from his former journal on this subject, of which the following is a partial summary:

""The stock of the company is divided into 500 shares at £50 sterling each. The canal company has been incorporated by both Maryland and Virginia.' Washington had accepted the presidency of it. 'The preliminary preparations are in full train, to commence operations in the ensuing spring, not only to remove the obstacles in the Potomac to a boat navigation from Georgetown to Fort Cumberland, a distance of 190 miles, but to the ultimate construction of a canal to Lake Erie, which is intended not only to give a direction to the fur trade from Detroit to Alexandria, but to attract the eventual trade of the country north of the Ohio which now slumbers in a state of nature.' This scheme was worthy of the comprehensive mind of Washington.

"To demonstrate the practicability and the policy of diverting the trade of the immense interior world yet unexplored to the Atlantic cities, especially in view of the idea that the Mississippi would be opened by Spain, was his constant and favorite theme. To elucidate the probability, also, that the Detroit fur trade would take this direction, he produced the following

estimates, which I copied in his presence and with his aid from the original manuscript:

"From Detroit, at the head of Lake Erie, via Fort Pitt (now Pittsburgh) and Fort Cumberland, to the head of the Potomac, is 607 Miles.

"To Richmond 840

"To Philadelphia 741

"To Albany 943

"To Montreal 955

"Thus it appeared that Alexandria is 348 miles nearer Detroit than Montreal, with only two carrying places of about forty miles."

"Since my travels in 1779 I had been deeply and constantly impressed with the importance of constructing canals to connect the various waters of America. This conviction was confirmed under the examination of numerous canals of Europe, and traveling extensively on several of them. Hearing little else for two days from the persuasive tongue of this great man I was, I confess, completely under the influence of the canal mania, and it enkindled all my enthusiasm."

Among the objects which claimed the attention of Washington in his retirement was a change in the constitution of the Cincinnati. This society had been formed in May, 1783, when the army was encamped at Newburg. The prospect of speedily separating from each other had suggested the plan of forming an association among the officers to serve as a tie of brotherhood for the future.

This idea was suggested by General Knox and was matured in a meeting composed of the generals, and of deputies from the regiments, at which Major-General Steuben presided. An agreement was then entered into by which the officers were to constitute themselves into one society of friends, to endure as long as they should endure, or any of their eldest male posterity, and, in failure thereof, any collateral branches who might be judged worthy of becoming its supporters and members, were to be admitted into it. To mark their veneration for that celebrated Roman between whose situation and their own they found some similitude, they were to be denominated "The Society of the Cincinnati." Individuals of the respective States, distinguished for their patriotism and abilities, might be

admitted as honorary members for life, provided their numbers should at no time exceed a ratio of one to four.

The society was to be designated by a medal of gold representing the American eagle bearing on its breast the devices of the order, which was to be suspended by a ribbon of deep blue edged with white, descriptive of the union of America and France. To the ministers who had represented the King of France at Philadelphia, to the admirals who had commanded in the American seas, to the Count de Rochambeau and the generals and colonels of the French troops who had served in the United States, the insignia of the order were to be presented and they were to be invited to consider themselves as members of the society, at the head of which the Commander-in-Chief was respectfully solicited to place his name. An incessant attention, on the part of the members, to the preservation of the exalted rights and liberties of human nature for which they had fought and bled, and an unalterable determination to promote and cherish between the respective States union and national honor, were declared to be the immutable principles of the society. Its objects were to perpetuate the remembrance of the American revolution, as well as cordial affection and the spirit of brotherly kindness among the officers, and to extend acts of beneficence to those officers and their families whose situation might require assistance. To give effect to the charitable object of the institution a common fund was to be created by the deposit of one month's pay on the part of every officer becoming a member, the product of which fund, after defraying certain necessary charges, was to be sacredly appropriated to this humane purpose.

The military gentlemen of each State were to constitute a distinct society, deputies from which were to assemble triennially in order to form a general meeting for the regulation of general concerns.

Without encountering any open opposition this institution was carried into complete effect, and its honors were sought, especially by the foreign officers, with great avidity. But soon after it was organized those jealousies, which in its first moments had been concealed, burst forth into open view. In October, 1783, a pamphlet was published by Mr. Burk of South Carolina, for the purpose of rousing the apprehensions of the public, and of directing its resentments against the society. In this work it was denounced as an attempt to form an order of nobility. The hereditary feature of the

constitution and the power of conferring its honors on distinguished personages, not descended from the officers of the army, were considered particularly inconsistent with the genius of our republican institutions. In Massachusetts the subject was even taken up by the Legislature, and it was well understood that, in Congress, the society was viewed with secret disapprobation.

It was impossible for Washington to view with indifference this state of the public feeling. Bound to the officers of his army by the strictest ties of esteem and affection, conscious of their merits and assured of their attachment to his person, he was alive to everything which might affect their reputation or their interests. However innocent the institution might be in itself or however laudable its real objects, if the impression it made on the public mind was such as to draw a line of distinction between the military men of America and their fellow-citizens, he was earnest in his wishes to adopt such measures as would efface that impression. However ill founded the public prejudices might be he thought this a case in which they ought to be respected, and, if it should be found impracticable to convince the people that their fears were misplaced, he was disposed "to yield to them in a degree, and not to suffer that which was intended for the best of purposes to produce a bad one."

A general meeting was to be held in Philadelphia in May, 1784, and, in the meantime, he had been appointed the temporary president. Washington was too much in the habit of considering subjects of difficulty in various points of view, and of deciding on them with coolness and deliberation, to permit his affections to influence his judgment. The most exact inquiries, assiduously made into the true state of the public mind, resulted in a conviction that opinions unfriendly to the institution, in its actual form, were extensively entertained, and that those opinions were founded, not in hostility to the late army, but in real apprehensions for equal liberty.

A wise and necessary policy required, he thought, the removal of these apprehensions, and, at the general meeting in May, the hereditary principle, and the power of adopting honorary members, were relinquished. The result demonstrated the propriety of this alteration. Although a few, who always perceive most danger where none exists, and the visionaries then abounding in Europe, continued their prophetic denunciations against the order, America dismissed her fears, and, notwithstanding the refusal of several of

the State societies to adopt the measures recommended by the general meeting, the members of the Cincinnati were received as brethren into the bosom of their country. {3}

While Washington was engaged in the cultivation of his extensive estate his thoughts were by no means withdrawn from the political concerns of the country, which at this time were assuming rather an ominous aspect. His correspondence evinces that his advice was much sought for by the leading men in the country, and that his opinions on the aspect of the public affairs were freely given. The want of power in the central government, arising from the defects of the old confederation, was becoming more and more apparent, and the evils arising from this want of power were pressing severely on every side. While the war lasted the external pressure held the government together, but on the return of peace its dissolution had become imminent. Large debts had been contracted to pay the expenses of the war, and, although an attempt had been made to establish a general system of revenue from duties on imports, individual States had obstructed the prosecution of this plan, and the government had found itself unable to raise the funds necessary to pay the interest on the public debt. It had, in fact, no power to regulate commerce or collect a revenue. This made it incapable of executing treaties, fulfilling its foreign engagements, or causing itself to be respected by foreign nations. While at home its weakness was disgusting the public creditors and raising a clamor of discontent and disaffection on every side. An alarming crisis was rapidly approaching.

By the enlightened friends of republican government, this gloomy state of things was viewed with deep chagrin. Many became apprehensive that those plans from which so much happiness to the human race had been anticipated would produce only real misery, and would maintain but a short and a turbulent existence. Meanwhile, the wise and thinking part of the community, who could trace evils to their source, labored unceasingly to inculcate opinions favorable to the incorporation of some principles into the political system which might correct the obvious vices, without endangering the free spirit of the existing institutions.

While the advocates for union were exerting themselves to impress its necessity on the public mind, measures were taken in Virginia, which, though originating in different views, terminated in a proposition for a general convention to revise the state of the Union.

To form a compact relative to the navigation of the rivers Potomac and Pocomoke, and of part of Chesapeake Bay, commissioners were appointed by the Legislatures of Virginia and Maryland, who assembled in Alexandria in March, 1785. While at Mount Vernon on a visit {4} they agreed to propose to their respective governments the appointment of other commissioners, with power to make conjoint arrangements, to which the assent of Congress was to be solicited, for maintaining a naval force in the Chesapeake, and to establish a tariff of duties on imports to which the laws of both States should conform. When these propositions received the assent of the Legislature of Virginia an additional resolution was passed, directing that which respected the duties on imports to be communicated to all the States in the Union, who were invited to send deputies to the meeting.

On the 21st of January, 1786, a few days after the passage of these resolutions, another was adopted appointing Edmund Randolph, James Madison, Walter Jones, St. George Tucker, and Meriwether Smith, commissioners, "who were to meet such as might be appointed by the other States in the Union, at a time and place to be agreed on, to take into consideration the trade of the United States; to examine the relative situation and trade of the said States; to consider how far a uniform system in their commercial relations may be necessary to their common interest and their permanent harmony, and to report to the several States such an act relative to this great object, as, when unanimously ratified by them, will enable the United States in Congress assembled effectually to provide for the same."

In the circular letter transmitting these resolutions to the respective States, Annapolis, in Maryland, was proposed as the place, and the ensuing September (1786) as the time of meeting.

Before the arrival of the period at which these commissioners were to assemble the idea was carried by those who saw and deplored the complicated calamities which flowed from the inefficacy of the general government, much further than was avowed by the resolution of Virginia. "Although," said Mr. Jay, one of the most conspicuous patriots of the Revolution, in a letter to Washington, dated the 16th of March, 1786, "you have wisely retired from public employments, and calmly view, from the temple of fame, the various exertions of that sovereignty and independence which Providence has enabled you to be so greatly and gloriously

instrumental in securing to your country, yet I am persuaded you cannot view them with the eye of an unconcerned spectator.

"Experience has pointed out errors in our national government which call for correction, and which threaten to blast the fruit we expected from our tree of liberty. The convention proposed by Virginia may do some good, and would perhaps do more, if it comprehended more objects. An opinion begins to prevail that a general convention for revising the articles of confederation would be expedient. Whether the people are yet ripe for such a measure, or whether the system proposed to be attained by it is only to be expected from calamity and commotion, is difficult to ascertain.

"I think we are in a delicate situation, and a variety of considerations and circumstances give me uneasiness. It is in contemplation to take measures for forming a general convention. The plan is not matured. If it should be well connected and take effect, I am fervent in my wishes that it may comport with the line of life you have marked out for yourself to favor your country with your counsels on such an important and single occasion. I suggest this merely as a hint for consideration."

To the patriots who accomplished the great revolution which gave to the American people a national government capable of maintaining the union of the States and of preserving republican liberty, we must ever feel grateful and admire and honor them for their services during that arduous and doubtful struggle which terminated in the triumph of human reason and the establishment of a free government. To us who were not actors in those busy scenes, but who enjoy the fruits of the labor without having participated in the toils or the fears of the patriots who achieved such glorious results, the sentiments entertained by the most enlightened and virtuous of America at that eventful period cannot be uninteresting.

"Our affairs," said Mr. Jay, in a letter of the 27th of June (1786), "seem to lead to some crisis, some revolution—something that I cannot foresee or conjecture. I am uneasy and apprehensive, more so than during the war. Then, we had a fixed object and, though the means and time of obtaining it were often problematical, yet I did firmly believe that we should ultimately succeed, because I did firmly believe that justice was with us. The case is now altered, we are going and doing wrong and therefore I look forward to evils and calamities, but without being able to guess at the instrument, nature, or measure of them.

"That we shall again recover and things again go well, I have no doubt. Such a variety of circumstances would not, almost miraculously, have combined to liberate and make us a nation for transient and unimportant purposes. I therefore believe we are yet to become a great and respectable people, but when or how, only the spirit of prophecy can discern.

"There doubtless is much reason to think and to say that we are woefully, and, in many instances, wickedly misled. Private rage for property suppresses public considerations, and personal rather than national interests have become the great objects of attention. New governments have not the aid of habit and hereditary respect, and, being generally the result of preceding tumult and confusion, do not immediately acquire stability or strength. Besides, in times of commotion, some men will gain confidence and importance who merit neither, and who, like political mountebanks, are less solicitous about the health of the credulous crowd than about making the most of their nostrums and prescriptions.

"What I most fear is that the better kind of people (by which I mean the people who are orderly and industrious, who are content with their situations, and not uneasy in their circumstances) will be led by the insecurity of property, the loss of confidence in their rulers, and the want of public faith and rectitude, to consider the charms of liberty as imaginary and delusive. A state of uncertainty and fluctuation must disgust and alarm such men and prepare their minds for almost any change that may promise them quiet and security."

To this interesting letter Washington made the following reply:

"Your sentiments, that our affairs are drawing rapidly to a crisis, accord with my own. What the event will be, is also beyond the reach of my foresight. We have errors to correct; we have probably had too good an opinion of human nature in forming our confederation. Experience has taught us that men will not adopt and carry into execution measures the best calculated for their own good without the intervention of coercive power. I do not conceive we can exist long as a nation, without lodging somewhere a power which will pervade the whole Union in as energetic a manner as the authority of the State governments extends over the several States. To be fearful of investing Congress, constituted as that body is with ample authorities for national purposes, appears to me the very climax of popular absurdity and madness. Could Congress exert them for the detriment of the

people, without injuring themselves in an equal or greater proportion? Are not their interests inseparably connected with those of their constituents? By the rotation of appointment, must they not mingle frequently with the mass of citizens? Is it not rather to be apprehended, if they were possessed of the powers before described, that the individual members would be induced to use them, on many occasions, very timidly and inefficaciously, for fear of losing their popularity and future election? We must take human nature as we find it; perfection falls not to the share of mortals. Many are of opinion that Congress have too frequently made use of the suppliant humble tone of requisition, in applications to the States, when they had a right to assert their imperial dignity, and command obedience. Be that as it may, requisitions are a perfect nullity, where thirteen sovereign, independent, disunited States are in the habit of discussing, and refusing or complying with them at their option. Requisitions are actually little better than a jest and a by-word throughout the land. If you tell the Legislatures they have violated the treaty of peace, and invaded the prerogatives of the confederacy, they will laugh in your face. What then is to be done? Things cannot go on in the same train forever. It is much to be feared, as you observe, that the better kind of people, being disgusted with these circumstances, will have their minds prepared for any revolution whatever. We are apt to run from one extreme into another. To anticipate and prevent disastrous contingencies would be the part of wisdom and patriotism.

"What astonishing changes a few years are capable of producing! I am told that even respectable characters speak of a monarchical form of government without horror. From thinking proceeds speaking; thence to acting is often but a single step. But how irrevocable and tremendous! what a triumph for our enemies to verify their predictions! what a triumph for the advocates of despotism, to find that we are incapable of governing ourselves, and that systems founded on the basis of equal liberty are merely ideal and fallacious! Would to God that wise measures may be taken in time to avert the consequences we have but too much reason to apprehend.

"Retired as I am from the world, I frankly acknowledge I cannot feel myself an unconcerned spectator. Yet, having happily assisted in bringing the ship into port, and having been fairly discharged, it is not my business to embark again on a sea of troubles.

"Nor could it be expected that my sentiments and opinions would have much weight on the minds of my countrymen. They have been neglected, though given as a last legacy in the most solemn manner. I had then perhaps some claims to public attention. I consider myself as having none at present."

The convention at Annapolis was attended by commissioners from only six States—New York, New Jersey, Pennsylvania, Delaware, Maryland, and Virginia. These, after appointing Mr. Dickinson their chairman, proceeded to discuss the objects for which they had convened. Perceiving that more ample powers would be required to effect the beneficial purposes which they contemplated, and hoping to procure a representation from a greater number of States, the convention determined to rise without coming to any specific resolutions on the particular subject which had been referred to them.

Previous to their adjournment, however, they agreed on a report to be made to their respective States, in which they represented the necessity of extending the revision of the Federal system to all its defects, and recommended that deputies for that purpose be appointed by the several Legislatures, to meet in convention in the city of Philadelphia on the second day of the ensuing May (1787).

The reasons for preferring a convention to a discussion of this subject in Congress, were stated to be, "that in the latter body it might be too much interrupted by the ordinary business before them and would, besides, be deprived of the valuable counsels of sundry individuals who were disqualified by the constitution or laws of particular States or by peculiar circumstances from a seat in that assembly."

A copy of this report was transmitted to Congress in a letter from the chairman, stating the inefficacy of the Federal government and the necessity of devising such further provisions as would render it adequate to the exigencies of the Union. On receiving this report, the Legislature of Virginia (1786) passed an act for the appointment of deputies to meet such as might be appointed by other States, to assemble in convention at Philadelphia at the time and for the purposes specified in the recommendation from the convention which had met at Annapolis.

When the plan of a convention was thus ripened and its meeting appointed to be at Philadelphia in May, 1787, Mr. Madison communicated

to Washington the intention of that State to elect him one of her representatives on this important occasion. He explicitly declined being a candidate, yet the Legislature placed him at the head of her delegation, in the hope that mature reflection would induce him to attend upon the service. The governor of the State, Mr. Randolph, informed him of his appointment by the following letter:

"By the enclosed act you will readily discover that the assembly are alarmed at the storms which threaten the United States. What our enemies have foretold seems to be hastening to its accomplishment, and cannot be frustrated but by an instantaneous, zealous, and steady union among the friends of the Federal government. To you I need not press our present dangers. The inefficacy of Congress you have often felt in your official character, the increasing languor of our associated republics you hourly see; and a dissolution would be, I know, to you a source of the deepest mortification. I freely then entreat you to accept the unanimous appointment of the General Assembly to the convention at Philadelphia. For the gloomy prospect still admits one ray of hope—that those who began, carried on, and consummated the Revolution, can yet restore America from the impending ruin."

"Sensible as I am," said Washington in his answer, "of the honor conferred on me by the General Assembly of this commonwealth, in appointing me one of the deputies to a convention proposed to be held in the city of Philadelphia in May next, for the purpose of revising the Federal constitution, and desirous as I am on all occasions of testifying a ready obedience to the calls of my country, yet, sir, there exist at this moment circumstances which I am persuaded will render this fresh instance of confidence incompatible with other measures which I had previously adopted and from which, seeing little prospect of disengaging myself, it would be disingenuous not to express a wish that some other character, on whom greater reliance can be had, may be substituted in my place, the probability of my nonattendance being too great to continue my appointment.

"As no mind can be more deeply impressed than mine is with the critical situation of our affairs, resulting in a great measure from the want of efficient powers in the Federal head and due respect to its ordinances, so consequently those who do engage in the important business of removing

these defects will carry with them every good wish of mine, which the best dispositions toward their obtainment can bestow."

The governor declined the acceptance of his resignation of the appointment and begged him to suspend his determination until the approach of the period of the meeting of the convention, that his final judgment might be the result of a full acquaintance with all circumstances.

Thus situated, Washington reviewed the subject that he might, upon thorough deliberation, make the decision which duty and patriotism enjoined. He had, by a circular letter to the State societies, declined being re-elected the president of the Cincinnati, and had announced that he should not attend their general meeting at Philadelphia in the next May, and he apprehended that if he attended the convention at the time and place of their meeting he should give offense to all the officers of the late army who composed this body. He was under apprehension that the States would not be generally represented on this occasion, and that a failure in the plan would diminish the personal influence of those who engaged in it. Some of his confidential friends were of opinion that the occasion did not require his interposition and that he ought to reserve himself for a state of things which would unequivocally demand his agency and influence. Even on the supposition that the plan should succeed they thought that he ought not to engage in it, because his having been in convention would oblige him to make exertions to carry the measures that body might recommend into effect, and would necessarily "sweep him into the tide of public affairs." His own experience since the close of the Revolutionary War created in his mind serious doubts whether the respective States would quietly adopt any system calculated to give stability and vigor to the national government. "As we could not," to use his own language, "remain quiet more than three or four years in times of peace under the constitutions of our own choosing, which were believed in many States to have been formed with deliberation and wisdom, I see little prospect either of our agreeing on any other, or that we should remain long satisfied under it, if we could. Yet I would wish anything and everything essayed to prevent the effusion of blood and to divert the humiliating and contemptible figure we are about to make in the annals of mankind."

These considerations operated powerfully to confirm him in the determination first formed, not to attend the convention. On the other hand

he realized the greatness of the emergency. The confederation was universally considered as a nullity. The advice of a convention, composed of respectable characters from every part of the Union, would probably have great influence with the community, whether it should be to amend the articles of the old government or to form a new constitution.

Amidst the various sentiments which at this time prevailed respecting the state of public affairs, many entertained the supposition that the "times must be worse before they could be better," and that the American people could be induced to establish an efficient and liberal national government only by the scourge of anarchy. Some seemed to think that the experiment of a republican government in America had already failed and that one more energetic would soon by violence be introduced. Washington entertained some apprehension that his declining to attend the convention would be considered as a dereliction of republican principles.

While he was balancing these opposite circumstances in his mind the insurrection of Massachusetts occurred, {5} which turned the scale of opinion in favor of his joining the convention. He viewed this event as awfully alarming. "For God's sake, tell me," said he, in a letter to Colonel Humphreys, "what is the cause of all these commotions? Do they proceed from licentiousness, British influence disseminated by the Tories, or real grievances which admit of redress? If the latter, why was redress delayed until the public mind had become so much agitated? If the former, why are not the powers of the government tried at once? It is as well to be without as not to exercise them."

To General Knox and other friends similar apprehensions were expressed. "I feel infinitely more than I can express to you for the disorders which have arisen in these States. Good God! who besides a Tory could have foreseen, or a Briton have predicted them? I do assure you that even at this moment, when I reflect upon the present aspect of our affairs, it seems to me like the visions of a dream. My mind can scarcely realize it as a thing in actual existence, so strange, so wonderful, does it appear to me. In this, as in most other matters, we are too slow. When this spirit first dawned it might probably have been easily checked, but it is scarcely within the reach of human ken, at this moment, to say when, where, or how it will terminate. There are combustibles in every State to which a spark might set fire. In bewailing, which I have often done with the keenest sorrow, the death of

our much-lamented friend, General Greene, I have accompanied my regrets of late with a query, whether he would not have preferred such an exit to the scenes which it is more than probable many of his compatriots may live to bemoan.

"You talk, my good sir, of employing influence to appease the present tumults in Massachusetts. I know not where that influence is to be found, nor if attainable, that it would be a proper remedy for these disorders. Influence is not government. Let us have a government by which our lives, liberties, and properties will be secured, or let us know the worst at once. Under these impressions my humble opinion is that there is a call for decision. Know then precisely what the insurgents aim at. If they have real grievances redress them if possible, or acknowledge the justice of them and your inability to do it in the present moment. If they have not, employ the force of the government against them at once. If this is inadequate all will be convinced that the superstructure is bad or wants support. To be more exposed in the eyes of the world, and more contemptible than we already are, is hardly possible. To delay one or the other of these expedients is to exasperate on the one hand or to give confidence on the other, and will add to their numbers, for, like snowballs, such bodies increase by every movement, unless there is something in the way to obstruct and crumble them before their weight is too great and irresistible.

"These are my sentiments. Precedents are dangerous things. Let the reins of government then be braced and held with a steady hand, and every violation of the constitution be reprehended. If defective, let it be amended, but not suffered to be trampled upon while it has an existence."

Colonel Humphreys having intimated by letter his apprehension that civil discord was near, in which event he would be obliged to act a public part, or to leave the continent—"It is," said Washington in reply, "with the deepest and most heartfelt concern I perceive, by some late paragraphs extracted from the Boston papers, that the insurgents of Massachusetts, far from being satisfied with the redress offered by their General Court, are still acting in open violation of law and government, and have obliged the chief magistrate, in a decided tone, to call upon the militia of the State to support the constitution.

"What, gracious God, is man, that there should be such inconsistency and perfidiousness in his conduct! It is but the other day that we were shedding

our blood to obtain the constitutions under which we live—constitutions of our own choice and making—and now we are unsheathing the sword to overturn them. The thing is so unaccountable that I hardly know how to realize it, or to persuade myself that I am not under the illusion of a dream. My mind, previous to the receipt of your letter of the first ultimo, had often been agitated by a thought similar to the one you expressed respecting a friend of yours, but heaven forbid that a crisis should come when he shall be driven to the necessity of making a choice of either of the alternatives there mentioned."

Having learned that the States had generally elected their representatives to the convention, and Congress having given its sanction to it, he on the 28th of March communicated to the governor of Virginia his consent to act as one of the delegates of his State on this important occasion.

When this determination was formed Washington at once commenced his preparations to leave Mount Vernon at an early day, so that he might be able to be present at the meeting of the Cincinnati; but on the 26th of April (1787) he received intelligence by an express that his mother and sister were dangerously ill at Fredericksburg. He immediately set off for that place, and the detention thus occasioned prevented his meeting the Cincinnati. After remaining three days at Fredericksburg, his mother and sister being partially recovered, he returned to Mount Vernon, and was enabled to complete his preparations for leaving home in season to arrive in Philadelphia on the 13th of May, the day before the opening of the convention. {6}

Public honors had awaited him everywhere on his route. At Chester he was met by General Mifflin, then speaker of the Assembly of Pennsylvania, and several officers of the army and other public characters who accompanied him to Gray's Ferry, where his former escort, the "First Troop" of Philadelphia, were waiting to conduct him to the city. On his arrival he paid his first visit to Dr. Franklin, president of the State of Pennsylvania, who had also been elected a member of the convention.

On the next day (May 14, 1787), the convention assembled which was to accomplish one of the most splendid works that ever was achieved by human wisdom. Several days, however, elapsed before a quorum of members could be formed. When the moment for commencing the organization of the convention arrived, Robert Morris, on behalf of the

Pennsylvania delegation, nominated Washington as its president. John Rutledge of South Carolina, future chief justice of the United States, seconded the nomination, remarking at the same time that the presence of General Washington forbade any observations on the occasion which might not be proper. He was elected by a unanimous vote. By this act the convention did but fulfill the wishes of the whole nation. A crisis had arrived in which all eyes were turned to the Great Founder for deliverance. To use his own language in a letter written to Mr. Jefferson a few days later (May 30, 1787), "That something is necessary none will deny, for the general government, if it can be called a government, is shaken to its foundation and liable to be overturned by every blast. In a word, it is at an end, and unless a remedy is soon applied anarchy and confusion will inevitably ensue."

Among the members of the convention were many men of exalted character and signal abilities. New York sent Alexander Hamilton, himself a host. No member was better fitted for the work or exerted a more important influence in perfecting it. Madison was one of the delegates from Virginia, whose pen was subsequently exerted, in connection with those of Hamilton and Jay in defending and expounding the constitution to the people in the memorable papers of the "Federalist." Massachusetts sent Nathaniel Gorham and Rufus King; New Hampshire, John Langdon and Nicholas Gilman; Pennsylvania counted in her numerous delegates Franklin, Mifflin, James Wilson, Robert Morris, and Gouverneur Morris, with others whose historical names are less distinguished for ability and eloquence, though not less for integrity and patriotism. South Carolina sent John Rutledge, her former governor, one of the ablest and purest men then living, and destined to preside over the supreme judiciary of the Union. Charles Cotesworth Pinckney, one of the bravest of the revolutionary generals, and the future ambassador to France, was also among the delegates of South Carolina. Among the other names on the roll of the convention, we recognize those of another Pinckney, famed for eloquence; Roger Sherman, a veteran statesman and signer of the Declaration of Independence; William Livingston, afterwards Governor of New Jersey, friend and correspondent of Washington, and Doctor Hugh Williamson of North Carolina, an early patriot, who had assisted Franklin in detecting the intrigues of Hutchinson and Oliver.

It would fill far too much space to enumerate all the members of the convention, or even to glance at their respective titles, already earned by public service, to the confidence of their countrymen.

"It was a most fortunate thing for America," says a recent writer, {7} "that the Revolutionary age, with its hardships, its trials, and its mistakes, had formed a body of Statesmen capable of framing for it a durable constitution. The leading persons in the convention which formed the constitution had been actors either in civil or military life in the scenes of the Revolution. In those scenes their characters as American statesmen had been formed. When the condition of the country had fully revealed the incapacity of the government to provide for its wants, these men were naturally looked to to construct a system which would save it from anarchy. And their great capacities, their high disinterested purposes, their freedom from all fanaticism and illiberality, and their earnest, unconquerable faith in the destiny of the country, enabled them to found that government which now upholds and protects the whole fabric of liberty in the States of this Union."

The convention remained in session four months, and their industry and devotion to their important work is amply testified by the fact that they sat from five to seven hours a day. It was a most imposing assemblage. "The severe, unchanging presence of Washington," says the writer last quoted, "presided over all. The chivalrous sincerity and disinterestedness of Hamilton pervaded the assembly with all the power of his fascinating manners. The flashing eloquence of Gouverneur Morris recalled the dangers of anarchy, which must be accepted as the alternative of an abortive experiment. The calm, clear, statesmanlike views of Madison, the searching and profound expositions of King, the prudent influence of Franklin, at length ruled the hour."

On the 17th of September, 1787, the constitution was signed by all the members present, except Edmund Randolph, the governor of Virginia; George Mason and Elbridge Gerry; and it was then forwarded with a letter to Congress. By that assembly it was sent to the State Legislatures to be submitted in each State to a convention of delegates, to be chosen by the people, for approval or rejection. As the State Legislatures assembled at different times, nearly a year would elapse before the result could be known.

Immediately after the convention had ended its labors, Washington returned to Mount Vernon to resume his agricultural pursuits and to watch with intense interest the slow process of ratifying the constitution by the several States. His correspondence with Hamilton, Madison, Jay, Wilson, Governor Langdon of New Hampshire, Generals Knox and Lincoln, and Governor Randolph, at this time, shows that the subject occupied a great share of his attention, and that he was extremely anxious that the constitution should be adopted by all the States.

In a letter to Lafayette (7th of February, 1788), he says: "As to my sentiments with respect to the merits of the new constitution, I will disclose them without reserve, although, by passing through the post-offices they should become known to all the world; for, in truth, I have nothing to conceal on that subject. It appears to me, then, little short of a miracle that the delegates from so many States, different from each other, as you know, in their manners, circumstances, and prejudices, should unite in forming a system of national government so little liable to well-founded objections. Nor am I yet such an enthusiastic, partial, or indiscriminating admirer of it as not to perceive it is tinctured with some real though not radical defects. The limits of a letter would not suffer me to go fully into an examination of them; nor would the discussion be entertaining or profitable. I therefore forbear to touch upon it. With regard to the two great points, the pivots upon which the whole machine must move, my creed is simply—

"First, That the general government is not invested with more powers than are indispensably necessary to perform the functions of a good government, and, consequently, that no objection ought to be made against the quantity of power delegated to it.

"Secondly, That these powers, as the appointment of all rulers will forever arise from, and at short stated intervals recur to the free suffrage of the people, are so distributed among the legislative, executive, and judicial branches in to which the general government is arranged that it can never be in danger of degenerating into a monarchy, an oligarchy, an aristocracy, or any other despotic or oppressive form so long as there shall remain any virtue in the body of the people.

"I would not be understood, my dear Marquis, to speak of consequences which may be produced in the revolution of ages, by corruption of morals, profligacy of manners, and listlessness in the preservation of the natural and

unalienable rights of mankind, nor of the successful usurpations that may be established at such an unpropitious juncture upon the ruins of liberty, however providentially guarded and secured, as these are contingencies against which no human prudence can effectually provide. It will at least be a recommendation to the proposed constitution that it is provided with more checks and barriers against the introduction of tyranny and those of a nature less liable to be surmounted than any government hitherto instituted among mortals. We are not to expect perfection in this world: but mankind, in modern times, have apparently made some progress in the science of government. Should that which is now offered to the people of America be found an experiment less perfect than it can be made, a constitutional door is left open for its amelioration."

A letter of Mr. Jefferson, written to one of his friends while the constitution was under consideration, gives some interesting particulars respecting its reception and the opinions of some of the States and leaders in regard to it:

"The constitution," he says, "has been received with very general enthusiasm; the bulk of the people are eager to adopt it. In the eastern States the printers will print nothing against it unless the writer subscribes his name. Massachusetts and Connecticut have called conventions in January to consider it. In New York there is a division; the governor, Clinton, is known to be hostile. Jersey, it is thought, will accept; Pennsylvania is divided, and all the bitterness of her factions has been kindled anew. But the party in favor of it is the strongest, both in and out of the Legislature. This is the party anciently of Morris, Wilson, etc. Delaware will do what Pennsylvania shall do. Maryland is thought favorable to it, yet it is supposed that Chase and Paca will oppose it. As to Virginia, two of her delegates, in the first place, refused to sign it; these were Randolph, the governor, and George Mason. Besides these, Henry, Harrison, Nelson, and the Lees are against it. General Washington will be for it, but it is not in his character to exert himself much in the case. Madison will be its main pillar," etc.

With respect to Washington, Jefferson was mistaken. His letters show that he did exert himself very zealously to remove the objections of recusant States and statesmen, especially the Virginia leaders who were all numbered among his personal friends.

The following letter to Jonathan Trumbull, of Connecticut, written at Mount Vernon on the 20th of July, 1788, when the final event was pretty certain, evinces the lively interest he took in the progress of affairs and the deep religious feeling of thankfulness with which, as usual, he recognized the hand of Providence in the result:

"You will have perceived from the public papers," he writes, "that I was not erroneous in my calculation, that the constitution would be accepted by the convention of this State. The majority, it is true, was small and the minority respectable in many points of view. But the great part of the minority here, as in most other States, have conducted themselves with great prudence and political moderation, insomuch that we may anticipate a pretty general and harmonious acquiescence. We shall impatiently wait the result from New York and North Carolina. The other State, which has not yet acted, is nearly out of the question.

"I am happy to hear from General Lincoln and others that affairs are taking a good turn in Massachusetts, but the triumph of salutary and liberal measures over those of an opposite tendency seems to be as complete in Connecticut as in any other State, and affords a particular subject of congratulation. Your friend, Colonel Humphreys, informs me from the wonderful revolution of sentiment in favor of Federal measures and the marvelous change for the better in the elections of your State, that he shall begin to suspect that miracles have not ceased. Indeed, for myself, since so much liberality has been displayed in the construction and adoption of the proposed general government, I am almost disposed to be of the same opinion. Or at least we may, with a kind of pious and grateful exultation, trace the finger of Providence through those dark and mysterious events which first induced the States to appoint a general convention and then led them one after another, by such steps as were best calculated to effect the object into an adoption of the system recommended by that general convention, thereby, in all human probability, laying a lasting foundation for tranquility and happiness, when we had but too much reason to fear that confusion and misery were coming rapidly upon us."

North Carolina and Rhode Island did not at first accept the constitution and New York was apparently dragged into it by a repugnance to being excluded from the confederacy. At length the conventions of eleven States assented to and ratified the constitution. When officially informed of this

fact, Congress passed an act appointing a day for the people throughout the Union to choose electors of a president of the United States in compliance with the provision in the constitution and another day for the electors to meet and vote for the person of their choice. The choice of electors was to take place in February, 1789, and the electors were to meet and choose a president on the first Wednesday in March following.

A few days before the close of the convention, Washington prepared and submitted a draft of a letter to Congress, which was adopted. The constitution having been duly signed, it was transmitted to Congress, with the letter from the president of the convention.

"IN CONVENTION, September 17, 1787.

"SIR:—We have now the honor to submit to the consideration of the United States, in Congress assembled, that constitution which has appeared to us the most advisable.

"The friends of our country have long seen and desired, that the power of making war, peace, and treaties; that of levying money, and regulating commerce, and the correspondent executive and judicial authorities, should be fully and effectually vested in the general government of the Union: but the impropriety of delegating such extensive trust to one body of men is evident. Hence results the necessity for a different organization.

"It is obviously impracticable in the federal government of these States to secure all the rights of independent sovereignty to each, and yet provide for the interest and safety of all. Individuals entering into society, must give up a share of liberty, to preserve the rest. The magnitude of the sacrifice must depend, as well on situation and circumstance, as on the object to be obtained. It is at all times difficult to draw with precision the line between those rights which must be surrendered, and those which may be reserved; and on the present occasion, this difficulty was increased by a difference among the several States, as to their situation, extent, habits, and particular interests.

"In all our deliberations on this subject, we kept steadily in our view that which appears to us the greatest interest of every true American, the consolidation of our Union, in which is involved our prosperity, felicity, safety, perhaps our national existence. This important consideration, seriously and deeply impressed on our minds, led each State in the Convention to be less rigid on points of inferior magnitude than might have

been otherwise expected; and thus the constitution, which we now present, is the result of a spirit of amity, and of that mutual deference and concession, which the peculiarity of our political situation rendered indispensable.

"That it will meet the full and entire approbation of every State, is not perhaps to be expected; but each State will doubtless consider, that had her interests alone been consulted, the consequences might have been particularly disagreeable or injurious to others; that it is liable to as few exceptions as could reasonably have been expected, we hope and believe; that it may promote the lasting welfare of that country so dear to us all, and secure her freedom and happiness, is our most ardent wish.

"With great respect, we Have the honor to be, sir, your Excellency's most obedient and humble servants.

"GEORGE WASHINGTON,

"President.

"By unanimous Order of the Convention.

"His EXCELLENCY THE PRESIDENT OF CONGRESS."

We give this important document in full, as contained in the Supplement to the Journal of the Federal Convention.

THE CONSTITUTION OF THE UNITED STATES.

We, the people of the United States, in order to form a more perfect union, establish justice, insure domestic tranquility, provide for the common defense, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity, do ordain and establish this Constitution for the United States of America.

ARTICLE I.

Sect. 1. All legislative powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representatives.

Sect. 2. The House of Representatives shall be composed of members chosen every second year by the people of the several States; and the electors in each State shall have the qualifications requisite for electors of the most numerous branch of the State legislature.

No person shall be a representative who shall not have attained to the age of twenty-five years, and been seven years a citizen of the United States, and who shall not, when elected, be an inhabitant of that State in which he shall be chosen.

Representatives and direct taxes shall be apportioned among the several States which may be included within this union, according to their respective numbers, which shall be determined by adding to the whole number of free persons, including those bound to service for a term of years, and excluding Indians not taxed, three-fifths of all other persons. The actual enumeration shall be made within three years after the first meeting of the Congress of the United States, and within every subsequent term of ten years, in such manner as they shall by law direct. The number of representatives shall not exceed one for every thirty thousand, but each State shall have, at least, one representative; and until such enumeration shall be made, the State of New Hampshire shall be entitled to choose three, Massachusetts eight, Rhode Island and Providence Plantations one, Connecticut five, New York six, New Jersey four, Pennsylvania eight, Delaware one, Maryland six, Virginia ten, North Carolina five, South Carolina five, and Georgia three.

When vacancies happen in the representation from any State, the executive authority thereof shall issue writs of election to fill such vacancies.

The House of Representatives shall choose their speaker and other officers; and shall have the sole power of impeachment.

SECT. 3. The Senate of the United States shall be composed of two senators from each State, chosen by the legislature thereof, for six years; and each senator shall have one vote.

Immediately after they shall be assembled in consequence of the first election, they shall be divided, as equally as may be, into three classes. The seats of the senators of the first class shall be vacated at the expiration of the second year, of the second class at the expiration of the fourth year, and of the third class at the expiration of the sixth year, so that one-third may be

chosen every second year; and if vacancies happen by resignation or otherwise, during the recess of the Legislature of any State, the executive thereof may make temporary appointments until the next meeting of the legislature, which shall then fill such vacancies.

No person shall be a senator who shall not have attained to the age of thirty years, and been nine years a citizen of the United States, and who shall not, when elected, be an inhabitant of that State for which he shall be chosen.

The vice-president of the United States shall be president of the Senate, but shall have no vote, unless they be equally divided.

The Senate shall choose their other officers, also a president pro tempore, in the absence of the vice-president, or when he shall exercise the office of president of the United States.

The Senate shall have the sole power to try all impeachments. When sitting for that purpose, they shall be on oath or affirmation. When the president of the United States is tried, the chief-justice shall preside; and no person shall be convicted without the concurrence of two-thirds of the members present.

Judgment in cases of impeachment shall not extend further than to removal from office, and disqualification to hold and enjoy any office of honor, trust, or profit, under the United States; but the party convicted shall nevertheless be liable and subject to indictment, trial, judgment, and punishment, according to law.

SECT. 4. The times, places, and manner of holding elections for senators and representatives, shall be prescribed in each State by the legislature thereof; but the Congress may at any time, by law, make or alter such regulations, except as to the places of choosing senators.

The Congress shall assemble at least once in every year, and such meeting shall be on the first Monday in December, unless they shall by law appoint a different day.

SECT. 5. Each house shall be the judge of the elections, returns, and qualifications of its own members; and a majority of each shall constitute a quorum to do business; but a smaller number may adjourn from day to day, and imposts, and excises shall be uniform throughout the United States:

To borrow money on the credit of the United States:

To regulate commerce with foreign nations, and among the several States, and with the Indian tribes:

To establish a uniform rule of naturalization, and uniform laws on the subject of bankruptcies throughout the United States:

To coin money, regulate the value thereof, and of foreign coin, and fix the standard of weights and measures:

To provide for the punishment of counterfeiting the securities and current coin of the United States:

To establish post-offices and post-roads:

To promote the progress of science and useful arts, by securing for limited times, to authors and inventors, the exclusive right to their respective writings and discoveries:

To constitute tribunals inferior to the supreme court:

To define and punish piracies and felonies committed on the high seas, and offences against the law of nations:

To declare war, to grant letters of marque and reprisal, and make rules concerning captures on land and water:

To raise and support armies; but no appropriation of money to that use shall be for a longer term than two years:

To provide and maintain a navy:

To make rules for the government and regulation of the land and naval forces:

To provide for calling forth the militia to execute the laws of the Union, suppress insurrections, and repel invasions:

To provide for organizing, arming, and disciplining the militia, and for governing such part of them as may be employed in the service of the United States-reserving to the States respectively the appointment of the officers, and the authority of training the militia according to the discipline prescribed by Congress:

To exercise exclusive legislation, in all cases whatsoever, over such district (not exceeding ten miles square) as may, by cession of particular States, and the acceptance of Congress, become the seat of government of the United States, and to exercise like authority over all places purchased, by the consent of the legislature of the State in which the same shall be, for

the erection of forts, magazines, arsenals, dock-yards, and other needful buildings:—and,

To make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this constitution in the government of the United States, or in any department or officer thereof.

SECT. 9. The migration or importation of such persons as any of the States, now existing, shall think proper to admit, shall not be prohibited by the Congress prior to the year 1808, but a tax or duty may be imposed on such importation, not exceeding ten dollars for each person.

The privilege of the writ of habeas corpus shall not be suspended, unless when, in cases of rebellion or invasion, the public safety may require it.

No bill of attainder, or ex post facto law, shall be passed.

No capitation, or other direct tax shall be laid, unless in proportion to the census or enumeration herein before directed to be taken.

No tax or duty shall be laid on articles exported from any State. No preference shall be given, by any regulation of commerce or revenue, to the ports of one State over those of another; nor shall vessels bound to, or from one State, be obliged to enter, clear, or pay duties in another.

No money shall be drawn from the treasury, but in consequence of appropriations made by law: and a regular statement and account of the receipts and expenditures of all public money shall be published from time to time.

No title of nobility shall be granted by the United States: and no person holding any office of profit or trust under them, shall, without the consent of the Congress, accept of any present, emolument, office, or title of any kind whatever, from any king, prince, or foreign state.

SECT. 10. No State shall enter into any treaty, alliance, or confederation; grant letters of marque and reprisal; coin money; emit bills of credit; make any thing but gold and silver coin a tender in payment of debts; pass any bill of attainder, ex post facto law, or law impairing the obligation of contracts, or grant any title of nobility.

No State shall, without the consent of the Congress, lay any imposts or duties on imports or exports, except what may be absolutely necessary for executing its inspection laws; and the net produce of all duties and imposts,

laid by any State on imports or exports, shall be for the use of the treasury of the United States; and all such laws shall be subject to the revision and control of the Congress. No State shall, without the consent of Congress, lay any duty of tonnage, keep troops or ships of war in time of peace, enter into any agreement or compact with another State, or with a foreign power, or engage in war, unless actually invaded, or in such imminent danger as will not admit of delay.

ARTICLE II.

SECT. I. The executive power shall be vested in a president of the United States of America. He shall hold his office during the term of four years, and, together with the vice-president, chosen for the same term, be elected as follows:

Each State shall appoint, in such manner as the legislature thereof may direct, a number of electors equal to the whole number of senators and representatives to which the State may be entitled in the Congress; but no senator or representative, or person holding any office of trust or profit under the United States, shall be appointed an elector.

The electors shall meet in their respective States, and vote by ballot for two persons, of whom one at least shall not be an inhabitant of the same State with themselves. And they shall make a list of all the persons voted for, and of the number of votes for each; which list they shall sign and certify, and transmit sealed to the seat of the government of the United States, directed to the president of the Senate. The president of the Senate shall, in the presence of the Senate and House of Representatives, open all the certificates, and the votes shall then be counted. The person having the greatest number of votes shall be the president, if such number be a majority of the whole number of electors appointed; and if there be more than one who have such majority, and have an equal number of votes, then the House of Representatives shall immediately choose, by ballot, one of them for president; and if no person have a majority, then from the five highest on the list, the said house shall, in like manner, choose the president. But in choosing the president, the votes shall be taken by States, the representation from each State having one vote. A quorum for this purpose shall consist of a member or members from two-thirds of the States, and a majority of all the States shall be necessary to a choice. In

every case, after the choice of the president, the person having the greatest number of votes of the electors shall be the vice-president. But if there should remain two or more who have equal votes, the Senate shall choose from them, by ballot, the vice-president.

The Congress may determine the time of choosing the electors, and the day on which they shall give their votes; which day shall be the same throughout the United States.

No person except a natural born citizen, or a citizen of the United States at the time of the adoption of this constitution, shall be eligible to the office of president; neither shall any person be eligible to that office who shall not have attained to the age of thirty-five years, and been fourteen years a resident within the United States.

In case the removal of the president from office, or of his death, resignation, or inability to discharge the powers and duties of the said office, the same shall devolve on the vice-president; and the Congress may by law provide for the case of removal, death, resignation, or inability, both of the president and vice-president, declaring what officer shall then act as president, and such officer shall act accordingly until the disability be removed, or a president shall be elected.

The president shall, at stated times, receive for his services a compensation, which shall neither be increased nor diminished during the period for which he shall have been elected, and he shall not receive within that period any other emolument from the United States, or any of them.

Before he enters on the execution of his office, he shall take the following oath or affirmation:

"I do solemnly swear (or affirm) that I will faithfully execute the office of president of the United States, and will, to the best of my ability, preserve, protect, and defend the constitution of the United States."

SECT. 2. The president shall be commander-in-chief of the army and navy of the United States, and of the militia of the several States, when called into the actual service of the United States; he may require the opinion, in writing, of the principal officer in each of the executive departments, upon any subject relating to the duties of their respective offices; and he shall have power to grant reprieves and pardons for offences against the United States, except in cases of impeachment.

He shall have power, by and with the advice and consent of the Senate, to make treaties, provided two-thirds of the senators present concur; and he shall nominate, and by and with the advice and consent of the Senate, shall appoint ambassadors, other public ministers, and consuls, judges of the supreme court, and all other officers of the United States, whose appointments are not herein otherwise provided for, and which shall be established by law. But the Congress may by law vest the appointment of such inferior officers as they think proper in the president alone, in the courts of law, or in the heads of departments.

The president shall have power to fill up all vacancies that may happen during the recess of the Senate, by granting commissions, which shall expire at the end of their next session.

SECT. 3. He shall, from time to time, give to the Congress information of the state of the Union, and recommend to their consideration such measures as he shall judge necessary and expedient; he may, on extraordinary occasions, convene both houses, or either of them, and in case of disagreement between them, with respect to the time of adjournment, he may adjourn them to such time as he shall think proper; he shall receive ambassadors and other public ministers; he shall take care that the laws be faithfully executed; and shall commission all the officers of the United States.

SECT. 4. The president, vice-president, and all civil officers of the United States shall be removed from office on impeachment for, and conviction of, treason, bribery, or other high crimes and misdemeanors.

ARTICLE III.

SECT. 1. The judicial power of the United States shall be vested in one supreme court, and in such inferior courts as the Congress may, from time to time, ordain and establish. The judges, both of the supreme and inferior courts, shall hold their offices during good behavior; and shall, at stated times, receive for their services a compensation, which shall not be diminished during their continuance in office.

SECT. 2. The judicial power shall extend to all cases in law and equity, arising under this constitution, the laws of the United States, and treaties made, or which shall be made under their authority; to all cases affecting

ambassadors, other public ministers, and consuls; to all cases of admiralty and maritime jurisdiction; to controversies to which the United States shall be a party; to controversies between two or more States, between a State and citizens of another State, between citizens of different States, between citizens of the same State, claiming lands under grants of different States, and between a State, or the citizens thereof, and foreign States, citizens, or subjects.

In all cases affecting ambassadors, other public ministers, and consuls, and those in which a State shall be a party, the supreme court shall have original jurisdiction. In all the other cases before mentioned, the supreme court shall have appellate jurisdiction, both as to law and fact, with such exceptions and under such regulations as the Congress shall make.

The trial of all crimes, except in cases of impeachment, shall be by jury; and such trial shall be held in the State where the said crimes shall have been committed; but when not committed within any State, the trial shall be at such place or places as the Congress may by law have directed.

SECT. 3. Treason against the United States shall consist only in levying war against them, or in adhering to their enemies, giving them aid and comfort. No person shall be convicted of treason unless on the testimony of two witnesses to the same overt act, or on confession in open court. The Congress shall have power to declare the punishment of treason; but no attainder of treason shall work corruption of blood, or forfeiture, except during the life of the person attainted.

ARTICLE IV.

SECT. 1. Full faith and credit shall be given in each State to the public acts, records, and judicial proceedings of every other State. And the Congress may, by general laws, prescribe the manner in which such acts, records, and proceedings shall be proved, and the effect thereof.

SECT. 2. The citizens of each State shall be entitled to all privileges and immunities of citizens in the several States.

A person charged in any State with treason, felony, or other crime, who shall flee from justice, and be found in another State, shall, on demand of the executive authority of the State from which he fled, be delivered up, to be removed to the State having jurisdiction of the crime.

No person held to service or labor in one State, under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor; but shall be delivered up, on claim of the party to whom such service or labor may be due.

SECT. 3. New States may be admitted by the Congress into this Union; but no new State shall be formed or erected within the jurisdiction of any other State, nor any State be formed by the junction of two or more States, or parts of States, without the consent of the legislatures of the States concerned, as well as of the Congress.

The Congress shall have power to dispose of and make all needful rules and regulations respecting the territory or other property belonging to the United States; and nothing in this constitution shall be so construed as to prejudice any claims of the United States, or of any particular State.

SECT. 4. The United States shall guarantee to every State in this Union a republican form of government, and shall protect each of them against invasion; and on application of the legislature, or of the executive (when the legislature cannot be convened), against domestic violence.

ARTICLE V.

The Congress, whenever two-thirds of both houses shall deem it necessary, shall propose amendments to this constitution; or, on the application of the legislatures of two-thirds of the several States, shall call a convention for proposing amendments, which, in either case, shall be valid to all intents and purposes, as part of this constitution, when ratified by the legislatures of three-fourths of the several States, or by conventions in three-fourths thereof, as the one or the other mode of ratification may be proposed by the Congress: Provided, that no amendment which may be made prior to the year 1808, shall in any manner affect the first and fourth clauses in the ninth section of the first article; and that no State, without its consent, shall be deprived of its equal suffrage in the Senate.

ARTICLE VI.

All debts contracted and engagements entered into, before the adoption of this constitution, shall be as valid against the United States under this

constitution as under the confederation.

This constitution, and the laws of the United States which shall be made in pursuance thereof, and all treaties made, or which shall be made, under the authority of the United States, shall be the supreme law of the land; and the judges in every State shall be bound thereby, any thing in the constitution or laws of any State to the contrary notwithstanding.

The senators and representatives before mentioned, and the members of the several State legislatures, and all executive and judicial officers, both of the United States and of the several States, shall be bound by oath or affirmation to support this constitution; but no religious test shall ever be required as a qualification to any office or public trust under the United States.

ARTICLE VII.

The ratification of the conventions of nine States shall be sufficient for the establishment of this constitution between the States so ratifying the same.

Done in convention, by the unanimous consent of the States present, the 17th day of September, in the year of our Lord 1787, and of the independence of the United States of America, the twelfth. In witness whereof, we have hereunto subscribed our names.

GEORGE WASHINGTON,

President, and Deputy from Virginia.

New Hampshire.

JOHN LANGDON,

NICHOLAS GILMAN.

Massachusetts.

NATHANIEL GORHAM,

RUFUS KING.

Connecticut.

WILLIAM SAMUEL JOHNSON,

ROGER SHERMAN.

New York.

ALEXANDER HAMILTON.

New Jersey.

WILLIAM LIVINGSTON,

DAVID BREARLY,

WILLIAM PATTERSON,

JONATHAN DAYTON.

Pennsylvania.

BENJAMIN FRANKLIN,

THOMAS MIFFLIN,

ROBERT MORRIS, G

GEORGE CLYMER,

THOMAS FITZSIMONS,

JARED INGERSOLL,

**JAMES WILSON,
GOUVERNEUR MORRIS.**

Delaware.

**GEORGE READ,
GUNNING BEDFORD, JR.,
JOHN DICKINSON,
RICHARD BASSETT,
JACOB BROOM.**

Maryland.

**JAMES M'HENRY,
DANIEL OF ST. THOMAS JENIFER,
DANIEL CARROLL.**

Virginia.

**JOHN BLAIR,
JAMES MADISON, JR.**

North Carolina.

**WILLIAM BLOUNT,
RICHARD DOBBS SPAIGHT,**

HUGH WILLIAMSON.

South Carolina.

JOHN RUTLEDGE,

CHARLES COTESWORTH PINCKNEY,

CHARLES PINCKNEY,

PIERCE BUTLER.

Georgia.

WILLIAM FEW,

ABRAHAM BALDWIN.

Attest: WILLIAM JACKSON, Secretary.

1. Footnote: "Life of Washington," p. 389.

2. Footnote: "Men and Times of the Revolution, or Memoirs of Elkanah Watson."

3. Footnote: Marshall, "Life of Washington."

4. Footnote: It is a very interesting fact that the proposition in which the Convention that formed the Constitution originated should have been made at Mount Vernon, in Washington's presence, if not by himself. As Faneuil Hall is called the Cradle of Liberty, Mount Vernon may be regarded as the Cradle of the Constitution.

5. Footnote: The occasion and effect of this insurrection, commonly called Shay's Rebellion, are thus described by a recent writer. The jealousy felt toward the statesmen of the Republic, or toward the upper by the middle class—if the terms may be allowed—was likely to operate fatally in marring the project of a Constitution, and rendering any innovation for the purpose impracticable; since the dissentient States were resolved not to choose delegates, or accede to the desire of Virginia.

These democratic opinions of the middle classes, however, and the resolutions founded upon them, were eventually shaken and overturned by the extreme to which they were carried by the lower orders. These were no sooner inspired by the same political feelings, than, after their fashion, they rose in insurrection; bade defiance not only to Congress, but to the State authorities themselves; and, collecting in armed bands, threatened to effect a serious revolution by taking law and property into their own hands. The New England States, principally Massachusetts, were the scenes of these disorders, which took place toward the close of 1786.

A body of 2,000 men, assembled in the northwestern region of the State, chose one of their number, Daniel Shay, for leader. They asked for suspension of taxes, and the remission of paper money; but it was known that their favorite scheme was that of an agrarian law—a general division of property. Respectable classes were, of course, thrown into alarm; Congress recovered a portion of that vigor which had marked it during the war; troops were dispatched, under General Lincoln and other officers, against the insurgents; and the citizens of the New England towns forgot their late jealousy of the military so far as to join them in the task of putting down their domestic foes. Funds were raised by private subscription to supply the emptiness of the public treasury; and an efficient force was enabled to march, in the midst of winter, against the insurgents, who were soon dispersed and reduced.

The rebellion thus suppressed was productive of the most salutary result. The middle classes, terrified at the exaggeration of their own doctrines, and at the risk of exciting the mob as supporters, rallied universally to the support of Congress.

Jealousy of those above was counterbalanced by fear of those below; and the majority of the State Legislatures was brought to coincide with the views of the Federal statesmen. Convinced by late experience of the necessity of an established and general government, even for purposes of domestic security, the hitherto refractory States named, without hesitation, their delegates to the appointed convention for forming a constitution. Rhode Island alone refused.

6. Footnote: Sparks, "Writings of Washington."

7. Footnote: George Ticknor Curtis, "History of the Constitution of the United States."

PART VI. — WASHINGTON AS PRESIDENT AND IN RETIREMENT.

CHAPTER I. — THE ELECTION. 1789.

As soon as it was ascertained that the new form of government had received the sanction of the people and would go into immediate operation, all eyes were at once turned to Washington as the first President of the United States. During the war he had, in fact, directed the course of public affairs. His suggestions had been almost invariably followed by Congress. His recommendations had influenced the action of the different States. His practical administrative abilities were known to all. He alone possessed the confidence of the people to that degree which was necessary to carry the constitution into vigorous effect at the outset and to defend it against its secret as well as its open enemies. But it was by no means certain that he would accept the office. By all who knew him, fears were entertained that his preference for private life would prevail over the wishes of the public, and soon after the adoption of the constitution was ascertained, his correspondents began to press him on a point which was believed essential to the completion of the great work on which the grandeur and happiness of America was supposed to depend. "We cannot," said Mr. Johnson, a man of great political eminence in Maryland, "do without you; and I, and thousands more, can explain to anybody but yourself why we cannot do without you." "I have ever thought," said Gouverneur Morris, "and have ever said, that you must be President; no other man can fill that office. No other man can draw forth the abilities of our country into the various departments of civil life. You alone can awe the insolence of opposing factions and the greater insolence of assuming adherents. I say nothing of foreign powers nor of their ministers. With these last you will have some plague. As to your feelings on this occasion they are, I know, both deep and affecting: you embark property most precious on a most tempestuous ocean; for, as you possess the highest reputation, so you expose it to the perilous chance of popular opinion. On the other hand, you will, I firmly expect, enjoy the inexpressible felicity of contributing to the happiness of all your countrymen. You will become the father of more than three millions of children; and while your bosom glows with parental tenderness, in theirs or at least in a majority of them, you will excite the duteous sentiments of filial

affection. This, I repeat it, is what I firmly expect; and my views are not directed by that enthusiasm which your public character has impressed on the public mind. Enthusiasm is generally short-sighted and too often blind. I form my conclusions from those talents and virtues which the world believes and which your friends know you possess."

In a letter detailing the arrangements which were making for the introduction of the new government, Col. Henry Lee proceeded thus to speak of the presidency of the United States. "The solemnity of the moment and its application to yourself have fixed my mind in contemplations of a public and a personal nature, and I feel an involuntary impulse which I cannot resist, to communicate without reserve to you some of the reflections which the hour has produced. Solicitous for our common happiness as a people, and convicted as I continue to be that our peace and prosperity depend on the proper improvement of the present period, my anxiety is extreme that the new government may have an auspicious beginning. To effect this and to perpetuate a nation formed under your auspices it is certain that again you will be called forth.

"The same principles of devotion to the good of mankind which have invariably governed your conduct will no doubt continue to rule your mind, however opposite their consequences may be to your repose and happiness. It may be wrong, but I cannot suppress, in my wishes for national felicity, a due regard for your personal fame and content.

"If the same success should attend your efforts on this important occasion which has distinguished you hitherto, then, to be sure, you will have spent a life which Providence rarely if ever before gave to the lot of one man. It is my anxious hope, it is my belief, that this will be the case; but all things are uncertain, and perhaps nothing more so than political events." He then proceeded to state his apprehensions that the government might sink under the activity hostility of its foes, and in particular the fears which he entertained from the circular letter of New York, around which the minorities in the several States might be expected to rally. Before concluding his letter, Colonel Lee said, "Without you the government can have but little chance of success; and the people of that happiness which its prosperity must yield."

In reply to this letter Washington said: "Your observations on the solemnity of the crisis and its application to myself bring before me

subjects of the most momentous and interesting nature. In our endeavors to establish a new general government the contest, nationally considered, seems not to have been so much for glory as existence. It was for a long time doubtful whether we were to survive as an independent Republic or decline from our federal dignity into insignificant and wretched fragments of empire. The adoption of the constitution so extensively and with so liberal an acquiescence on the part of the minorities in general, promised the former; but lately the circular letter of New York has manifested, in my apprehension, an unfavorable if not an insidious tendency to a contrary policy. I still hope for the best, but before you mentioned it I could not help fearing it would serve as a standard to which the disaffected might resort. It is now evidently the part of all honest men who are friends to the new constitution, to endeavor to give it a chance to disclose its merits and defects, by carrying it fairly into effect in the first instance.

"The principal topic of your letter is to me a point of great delicacy indeed—insomuch that I can scarcely without some impropriety touch upon it. In the first place, the event to which you allude may never happen; among other reasons, because, if the partiality of my fellow-citizens conceive it to be a means by which the sinews of the new government would be strengthened, it will of consequence be obnoxious to those who are in opposition to it, many of whom unquestionably will be placed among the electors.

"This consideration alone would supersede the expediency of announcing any definite and irrevocable resolution. You are among the small number of those who know my invincible attachment to domestic life, and that my sincerest wish is to continue in the enjoyment of it solely, until my final hour. But the world would be neither so well instructed, nor so candidly disposed, as to believe me to be uninfluenced by sinister motives, in case any circumstance should render a deviation from the line of conduct I had prescribed for myself indispensable. Should the contingency you suggest take place, and (for argument sake alone, let me say) should my unfeigned reluctance to accept the office be overcome by a deference for the reasons and opinions of my friends, might I not, after the declarations I have made (and heaven knows they were made in the sincerity of my heart), in the judgment of the impartial world, and of posterity, be chargeable with levity and inconsistency, if not with rashness and ambition? Nay, further, would there not even be some apparent foundation for the two former charges?

Now, justice to myself, and tranquility of conscience, require that I should act a part, if not above imputation, at least capable of vindication. Nor will you conceive me to be too solicitous for reputation. Though I prize as I ought the good opinion of my fellow-citizens, yet, if I know myself, I would not seek or retain popularity at the expense of one social duty or moral virtue. While doing what my conscience informed me was right, as it respected *my God*, my country, and myself, I could despise all the party clamor and unjust censure which must be expected from some, whose personal enmity might be occasioned by their hostility to the government. I am conscious that I fear alone to give any real occasion for obloquy, and that I do not dread to meet with unmerited reproach. And certain I am, when-so-ever I shall be convinced the good of my country requires my reputation to be put in risk, regard for my own fame will not come in competition with an object of so much magnitude.

"If I declined the task it would be upon quite another principle. Notwithstanding my advanced season of life, my increasing fondness for agricultural amusements, and my growing love of retirement, augment and confirm my decided predilection for the character of a private citizen, yet it will be no one of these motives, nor the hazard to which my former reputation might be exposed, or the terror of encountering new fatigues and troubles, that would deter me from an acceptance, but a belief that some other person, who had less pretense and less inclination to be excused, could execute all the duties full as satisfactorily as myself. To say more would be indiscreet, as a disclosure of a refusal beforehand might incur the application of the fable in which the fox is represented as undervaluing the grapes he could not reach. You will perceive, my dear sir, by what is here observed (and which you will be pleased to consider in the light of a confidential communication), that my inclinations will dispose and decide me to remain as I am, unless a clear and insurmountable conviction should be impressed on my mind, that some very disagreeable consequences must in all human probability result from the indulgence of my wishes."

About the same time Colonel Hamilton concluded a letter on miscellaneous subjects with the following observations. "I take it for granted, sir, you have concluded to comply with what will, no doubt, be the general call of your country in relation to the new government. You will permit me to say that it is indispensable you should lend yourself to its first

operations. It is to little purpose to have introduced a system, if the weightiest influence is not given to its firm establishment in the outset."

"On the delicate subject," said Washington in reply, "with which you conclude your letter, I can say nothing; because the event alluded to may never happen; and because, in case it should occur, it would be a point of prudence to defer forming one's ultimate and irrevocable decision so long as new data might be afforded for one to act with the greater wisdom and propriety. I would not wish to conceal my prevailing sentiment from you. For you know me well enough, my good sir, to be persuaded that I am not guilty of affectation, when I tell you it is my great and sole desire to live and die in peace and retirement on my own farm. Were it even indispensable a different line of conduct should be adopted, while you and some others who are acquainted with my heart would acquit, the world and posterity might probably accuse me of inconsistency and ambition. Still, I hope I shall always possess firmness and virtue enough to maintain (what I consider the most enviable of all titles) the character of an honest man."

This answer drew from Hamilton the following reply: "I should be deeply pained, my dear sir, if your scruples in regard to a certain station should be matured into a resolution to decline it; though I am neither surprised at their existence, nor can I but agree in opinion that the caution you observe in deferring the ultimate determination is prudent. I have, however, reflected maturely on the subject, and have come to the conclusion (in which I feel no hesitation) that every public and personal consideration will demand from you an acquiescence in what will certainly be the unanimous wish of your country.

"The absolute retreat which you meditated at the close of the late war was natural and proper. Had the government produced by the Revolution gone on in a tolerable train, it would have been most advisable to have persisted in that retreat. But I am clearly of opinion that the crisis which brought you again into public view left you no alternative but to comply; and I am equally clear in the opinion that you are by that act pledged to take a part in the execution of the government. I am not less convinced that the impression of the necessity of your filling the station in question is so universal that you run no risk of any uncandid imputation by submitting to it. But even if this were not the case, a regard to your own reputation, as

well as to the public good, calls upon you in the strongest manner to run that risk.

"It cannot be considered as a compliment to say that, on your acceptance of the office of President, the success of the new government in its commencement may materially depend. Your agency and influence will be not less important in preserving it from the future attacks of its enemies than they have been in recommending it in the first instance to the adoption of the people. Independent of all considerations drawn from this source, the point of light in which you stand at home and abroad will make an infinite difference in the respectability with which the government will begin its operations, in the alternative of your being or not being at the head of it. I forbear to mention considerations which might have a more personal application. What I have said will suffice for the inferences I mean to draw.

"First. In a matter so essential to the well-being of society as the prosperity of a newly-instituted government, a citizen of so much consequence as yourself to its success has no option but to lend his services if called for. Permit me to say it would be inglorious, in such a situation, not to hazard the glory, however great, which he might have previously acquired.

"Secondly. Your signature to the proposed system pledges your judgment for its being such a one as, upon the whole, was worthy of the public approbation. If it should miscarry (as men commonly decide from success or the want of it), the blame will, in all probability, be laid on the system itself. And the framers of it will have to encounter the disrepute of having brought about a revolution in government without substituting anything that was worthy of the effort; they pulled down one utopia, it will be said, to build up another. This view of the subject, if I mistake not, my dear sir, will suggest to your mind greater hazard to that fame which must be, and ought to be, dear to you, in refusing your future aid to the system than in affording it. I will only add that in my estimate of the matter that aid is indispensable.

"I have taken the liberty to express these sentiments and to lay before you my view of the subject. I doubt not the considerations mentioned have fully occurred to you, and I trust they will finally produce in your mind the same result which exists in mine. I flatter myself the frankness with which I have delivered myself will not be displeasing to you. It has been prompted by motives which you would not disapprove."

In answer to this letter, Washington expressed himself without reserve. "In acknowledging," said he, "the receipt of your candid and kind letter by the last post, little more is incumbent on me than to thank you sincerely for the frankness with which you communicated your sentiments, and to assure you that the same manly tone of intercourse will always be more than barely welcome—indeed, it will be highly acceptable to me.

"I am particularly glad, in the present instance, that you have dealt thus freely and like a friend. Although I could not help observing, from several publications and letters, that my name had been sometimes spoken of, and that it was possible the contingency which is the subject of your letter might happen, yet I thought it best to maintain a guarded silence, and to lack the counsel of my best friends (which I certainly hold in the highest estimation), rather than to hazard an imputation unfriendly to the delicacy of my feelings. For, situated as I am, I could hardly bring the question into the slightest discussion, or ask an opinion even in the most confidential manner, without betraying, in my judgment, some impropriety of conduct, or without feeling an apprehension that a premature display of anxiety might be construed into a vainglorious desire of pushing myself into notice as a candidate. Now, if I am not grossly deceived in myself, I should unfeignedly rejoice, in case the electors, by giving their votes in favor of some other person, would save me from the dreadful dilemma of being forced to accept or refuse. If that may not be, I am, in the next place, earnestly desirous of searching out the truth, and of knowing whether there does not exist a probability that the government would be just as happily and effectually carried into execution without my aid as with it. I am truly solicitous to obtain all the previous information which the circumstances will afford, and to determine (when the determination can with propriety be no longer postponed), according to the principles of right reason and the dictates of a clear conscience, without too great a reference to the unforeseen consequences which may affect my person or reputation. Until that period, I may fairly hold myself open to conviction, though I allow your sentiments to have weight in them, and I shall not pass by your arguments without giving them as dispassionate a consideration as I can possibly bestow upon them.

"In taking a survey of the subject, in whatever point of light I have been able to place it, I will not suppress the acknowledgment, my dear sir, that I have always felt a kind of gloom upon my mind, as often as I have been

taught to expect I might, and perhaps must ere long, be called to make a decision. You will, I am well assured, believe the assertion (though I have little expectation it would gain credit from those who are less acquainted with me), that if I should receive the appointment, and should be prevailed upon to accept it, the acceptance would be attended with more diffidence and reluctance than ever I experienced before in my life. It would be, however, with a fixed and sole determination of lending whatever assistance might be in my power to promote the public weal, in hopes that at a convenient and an early period, my services might be dispensed with, and that I might be permitted once more to retire—to pass an unclouded evening, after the stormy day of life, in the bosom of domestic tranquility."

This correspondence was thus closed by Hamilton: "I feel a conviction that you will finally see your acceptance to be indispensable. It is no compliment to say that no other man can sufficiently unite the public opinion, or can give the requisite weight to the office, in the commencement of the government. These considerations appear to me of themselves decisive. I am not sure that your refusal would not throw everything into confusion. I am sure that it would have the worst effect imaginable.

"Indeed, as I hinted in a former letter, I think circumstances leave no option."

Although this correspondence does not appear to have absolutely decided Washington on the part he should embrace, it could not have been without its influence on his judgment, nor have failed to dispose him to yield to the wish of his country. "I would willingly," said he, to his estimable friend, General Lincoln, who had also pressed the subject on him, "pass over in silence that part of your letter in which you mention the persons who are candidates for the two first offices in the executive, if I did not fear the omission might seem to betray a want of confidence. Motives of delicacy have prevented me hitherto from conversing or writing on this subject, whenever I could avoid it with decency. I may, however, with great sincerity, and I believe without offending against modesty or propriety, say to you that I most heartily wish the choice to which you allude might not fall upon me; and that if it should, I must reserve to myself the right of making up my final decision at the last moment, when it can be brought into one view and when the expediency or in expediency of a refusal can be more judiciously determined than at present. But be assured, my dear sir, if

from any inducement I shall be persuaded ultimately to accept, it will not be (so far as I know my own heart) from any of a private or personal nature. Every personal consideration conspires to rivet me (if I may use the expression) to retirement. At my time of life, and under my circumstances, nothing in this world can ever draw me from it, unless it be a conviction that the partiality of my countrymen had made my services absolutely necessary, joined to a fear that my refusal might induce a belief that I preferred the conservation of my own reputation and private ease to the good of my country. After all, if I should conceive myself in a manner constrained to accept, I call Heaven to witness that this very act would be the greatest sacrifice of my personal feelings and wishes that ever I have been called upon to make. It would be to forego repose and domestic enjoyment for trouble—perhaps for public obloquy; for I should consider myself as entering upon an unexplored field, enveloped on every side with clouds and darkness.

"From this embarrassing situation I had naturally supposed that my declarations at the close of the war would have saved me, and that my sincere intentions, then publicly made known, would have effectually precluded me forever afterward from being looked upon as a candidate for any office. This hope, as a last anchor of worldly happiness in old age, I had still carefully preserved, until the public papers and private letters from my correspondents in almost every quarter taught me to apprehend that I might soon be obliged to answer the question whether I would go again into public life or not."

"I can say little or nothing new," said he in a letter to Lafayette, "in consequence of the repetition of your opinion on the expediency there will be for my accepting the office to which you refer. Your sentiments, indeed, coincide much more nearly with those of my other friends than with my own feelings. In truth, my difficulties increase and magnify as I draw toward the period when, according to the common belief, it will be necessary for me to give a definitive answer in one way or other. Should circumstances render it, in a manner, inevitably necessary to be in the affirmative, be assured, my dear sir, I shall assume the task with the most unfeigned reluctance and with a real diffidence, for which I shall probably receive no credit from the world. If I know my own heart, nothing short of a conviction of duty will induce me again to take an active part in public affairs. And in that case, if I can form a plan for my own conduct, my

endeavors shall be unremittingly exerted (even at the hazard of former fame or present popularity) to extricate my country from the embarrassments in which it is entangled through want of credit, and to establish a general system of policy which, if pursued, will insure permanent felicity to the commonwealth. I think I see a path, as clear and as direct as a ray of light, which leads to the attainment of that object. Nothing but harmony, honesty, industry, and frugality are necessary to make us a great and happy people. Happily, the present posture of affairs, and the prevailing disposition of my countrymen, promise to cooperate in establishing those four great and essential pillars of public felicity."

After the electors had been chosen, and before the electoral colleges met, Washington was assailed with the usual importunities of office-seekers.

As marking the frame of mind with which he came into the government, the following extract is given from one of the many letters written to persons whose pretensions he was disposed to favor. "Should it become absolutely necessary for me to occupy the station in which your letter presupposes me, I have determined to go into it perfectly free from all engagements of every nature whatsoever. A conduct in conformity to this resolution would enable me, in balancing the various pretensions of different candidates for appointments, to act with a sole reference to justice and the public good. This is, in substance, the answer that I have given to all applications (and they are not few) which have already been made. Among the places sought after in these applications, I must not conceal that the office to which you particularly allude is comprehended. This fact I tell you merely as matter of information. My general manner of thinking, as to the propriety of holding myself totally disengaged, will apologize for my not enlarging further on the subject.

"Though I am sensible that the public suffrage which places a man in office should prevent him from being swayed, in the execution of it, by his private inclinations, yet he may assuredly, without violating his duty, be indulged in the continuance of his former attachments."

Although the time appointed for the new government to commence its operations was the 4th of March, 1789, the members of Congress were so dilatory in their attendance that a House of Representatives was not formed till the 1st nor a Senate till the 6th of April.

When at length the votes for President and Vice-President were opened and counted in the Senate, it was found that Washington was unanimously elected President, and that the second number of votes was given to John Adams. George Washington and John Adams were therefore declared to be duly elected President and Vice-President of the United States, to serve for four years from the 4th of March, 1789.

In a letter to General Knox, just before this announcement, Washington thus adverts to the delay in forming a quorum of Congress: "I feel for those members of the new Congress, who, hitherto, have given an unavailing attendance at the theater of action. For myself, the delay may be compared to a reprieve; for, in confidence, I tell you (with the world it would obtain little credit) that my movements to the chair of government will be accompanied by feelings not unlike those of a culprit who is going to the place of his execution; so unwilling am I, in the evening of life, nearly consumed in public cares, to quit a peaceful abode for an ocean of difficulties, without that competency of political skill, abilities, and inclination which are necessary to manage the helm. I am sensible that I am embarking the voice of the people, and a good name of my own, on this voyage; but what returns will be made for them heaven alone can foretell. Integrity and firmness are all I can promise; these, be the voyage long or short, shall never forsake me, although I may be deserted by all men; for of the consolations which are to be derived from these, under any circumstances, the world cannot deprive me." There is every reason to believe that the diffidence expressed in the above was sincere. It is perfectly consistent with the unaffected modesty of Washington's character.

CHAPTER II. — THE ADMINISTRATION FORMED. 1789.

Washington's election was announced to him by a special messenger from Congress, on the 14th of April, 1789. His acceptance of it, and his expressions of gratitude for this fresh proof of the esteem and confidence of his country, were connected with declarations of diffidence in himself. "I wish," he said, "that there may not be reason for regretting the choice—for, indeed, all I can promise is to accomplish that which can be done by an honest zeal."

As the public business required the immediate attendance of the President at the seat of government, he hastened his departure, and, on the second day after receiving notice of his appointment, took leave of Mount Vernon.

In an entry made by himself in his diary, the feelings inspired by an occasion so affecting to his mind are thus described: "About 10 o'clock I bade adieu to Mount Vernon, to private life, and to domestic felicity, and, with a mind oppressed with more anxious and painful sensations than I have words to express, set out for New York in company with Mr. Thomson and Colonel Humphreys, with the best dispositions to render service to my country in obedience to its call, but with less hope of answering its expectations."

"The President and his lady," says Mr. Custis, "bid adieu with extreme regret to the tranquil and happy shades where a few years of repose had, in a great measure, effaced the effects of the toils and anxieties of war; where little Eden had bloomed and nourished under their fostering hands and where a numerous circle of friends and relatives would sensibly feel the privation of their departure. They departed and hastened to where duty called the man of his country."

Soon after leaving Mount Vernon he was met by a cavalcade of gentlemen, who escorted him to Alexandria, where a public dinner had been prepared to which he was invited. Arrived at that place, he was greeted by a public address, to which he made an appropriate reply. The address differs

from others, inasmuch as it came from his personal friends and neighbors, and gives some interesting personal details. The tenor of the following passage must have sensibly touched the feelings of Washington:

"Not to extol your glory as a soldier; not to pour forth our gratitude for past services; not to acknowledge the justice of the unexampled honor which has been conferred upon you by the spontaneous and unanimous suffrages of 3,000,000 of freemen, in your election to the supreme magistracy; nor to admire the patriotism which directs your conduct, do your neighbors and friends now address you. Themes less splendid, but more endearing, impress our minds. The first and best of citizens must leave us; our aged must lose their ornament; our youth their model; our agriculture its improver; our commerce its friend; our infant academy its protector; our poor their benefactor; and the interior navigation of the Potomac (an event replete with the most extensive utility, already, by your unremitted exertions, brought into partial use) its institutor and promoter."

Washington left Alexandria on the afternoon of the same day and attended by his neighbors proceeded to Georgetown, where he was received by a number of citizens of Maryland. His journey thenceforth to the seat of government was a continual triumph. Military escorts, cavalcades of citizens, and crowds of people of all ages and both sexes awaited his arrival at each town. We may imagine the enthusiastic shouts and welcomes with which he was received by the people.

On his approach to Philadelphia he was met by Governor Mifflin, Judge Peters, and a military escort, headed by General St. Clair, and followed by the usual cavalcade of gentlemen. Washington was mounted on a splendid white horse. The procession passed into the city through triumphal arches adorned with wreaths of flowers and laurel, attended by an immense crowd of people. The day was a public festival, and in the evening an illumination and a display of fireworks testified the enthusiasm of the occasion. The next day, at Trenton, he was welcomed in a manner as new as it was pleasing. In addition to the usual demonstrations of respect and attachment which were given by the discharge of cannon, by military corps, and by private persons of distinction, the gentler sex prepared in their own taste a tribute of applause indicative of the grateful recollection in which they held their deliverance twelve years before from a formidable enemy. On the bridge over the creek which passes through the town was erected a triumphal arch

highly ornamented with laurels and flowers and supported by thirteen pillars, each entwined with wreaths of evergreen. On the front arch was inscribed in large gilt letters, "The defender of the mothers will be the protector of the daughters."

On the center of the arch, above the inscription, was a dome or cupola of flowers and evergreens, encircling the dates of two memorable events which were peculiarly interesting to New Jersey. The first was the battle of Trenton, and the second the bold and judicious stand made by the American troops at the same creek, by which the progress of the British army was arrested on the evening preceding the battle of Princeton.

At this place he was met by a party of matrons leading their daughters, dressed in white, who carried baskets of flowers in their hands and sang, with exquisite sweetness, an ode of two stanzas, composed for the occasion.

At New Brunswick he was joined by the Governor of New Jersey, who accompanied him to Elizabethtown Point. A committee of Congress received him on the road and conducted him with military parade to the Point, where he took leave of the Governor and other gentlemen of New Jersey and embarked for New York in an elegant barge of thirteen oars, manned by thirteen branch pilots, prepared for the purpose by the citizens of New York.

"The display of boats," says Washington, in his private journal, "which attended and joined on this occasion, some with vocal and others with instrumental music, on board, the decorations of the ships, the roar of cannon, and the loud acclamations of the people, which rent the sky as I passed along the wharves, filled my mind with sensations as painful (contemplating the reverse of this scene, which may be the case after all my labors to do good) as they were pleasing."

At the stairs on Murray's wharf, which had been prepared and ornamented for the purpose, he was received by Governor Clinton, of New York, and conducted with military honors, through an immense concourse of people, to the apartments provided for him. These were attended by all who were in office and by many private citizens of distinction, who pressed around him to offer their congratulations and to express the joy which glowed in their bosoms at seeing the man in whom all confided at the head of the American empire. This day of extravagant joy was succeeded by a splendid illumination.

Mr. Custis, writing of the journey from Mount Vernon to New York, and of Washington's mode of living at the seat of government, says:

"The august spectacle at the bridge of Trenton brought tears to the eyes of the chief, and forms one of the most brilliant recollections of the age of Washington.

"Arrived at the seat of the Federal government, the President and Mrs. Washington formed their establishment upon a scale that, while it partook of all the attributes of our republican institutions, possessed at the same time that degree of dignity and regard for appearances so necessary to give our infant Republic respect in the eyes of the world. The house was handsomely furnished; the equipages neat, with horses of the first order; the servants wore the family liveries, and, with the exception of a steward and housekeeper, the whole establishment differed but little from that of a private gentleman. On Tuesdays, from 3 to 4 o'clock, the President received the foreign ambassadors and strangers who wished to be introduced to him. On these occasions, and when opening the sessions of Congress, the President wore a dress sword. His personal apparel was always remarkable for its being old-fashioned and exceedingly plain and neat. On Thursdays were the congressional dinners and on Friday nights Mrs. Washington's drawing-room. The company usually assembled about 7 and rarely stayed exceeding 10 o'clock. The ladies were seated, and the President passed around the circle, paying his compliments to each. At the drawing-rooms Mrs. Morris always sat at the right of the lady president, and at all the dinners, public or private, at which Robert Morris was a guest, that venerable man was placed at the right of Mrs. Washington.

"On the great national festivals of the 4th of July and 22d of February, the sages of the Revolutionary Congress and the officers of the Revolutionary army renewed their acquaintance with Mrs. Washington; many and kindly greetings took place with many a recollection of the days of trial. The Cincinnati, after paying their respects to their chief, were seen to file off toward the parlor, where Lady Washington was in waiting to receive them, and where Wayne, and Mifflin, and Dickinson, and Stewart, and Moylan, and Hartley, and a host of veterans were cordially welcomed as old friends, and where many an interesting reminiscence was called up, of the headquarters and the 'times of the Revolution.'

"On Sundays, unless the weather was uncommonly severe, the President and Mrs. Washington attended divine service at Christ Church, and in the evening the President read to Mrs. Washington, in her chamber, a sermon or some portion from the sacred writings. No visitors, with the exception of Mr. Speaker Trumbull, were admitted to the presidoliad on Sundays.

"There was one description of visitors, however, to be found about the first President's mansion on all days. The old soldiers repaired, as they said, to headquarters just to inquire after the health of his Excellency and Lady Washington. They knew his Excellency was, of course, much engaged, but they would like to see the good lady, one had been a soldier of the life guard, another had been on duty when the British threatened to surprise the headquarters, a third had witnessed that terrible fellow, Cornwallis, surrender his sword; each one had some touching appeal with which to introduce himself to the peaceful headquarters of the presidoliad. All were 'kindly bid to stay,' were conducted to the steward's apartments, and refreshments set before them, and, after receiving some little token from the lady, with her best wishes for the health and happiness of an old soldier, they went their ways, while blessings upon their revered commander and the good Lady Washington were uttered by many a war worn veteran of the Revolution." {1}

The simple mode of life above described did not save Washington from public censure by those who are always ready to carp at the doings of distinguished men, however unexceptionable their conduct may be. Free levees were said to savor of an affectation of royal state. In a letter to his friend, Dr. Stewart, Washington thus puts to silence this calumny, with his usual good sense and unanswerable argument:

"Before the custom was established which now accommodates foreign characters, strangers, and others, who, from motives of curiosity, respect to the chief magistrate, or any other cause, are induced to call upon me, I was unable to attend to any business whatsoever. For gentlemen, consulting their own convenience rather than mine, were calling from the time I rose from breakfast—often before—until I sat down to dinner. This, as I resolved not to neglect my public duties, reduced me to the choice of one of these alternatives—either to refuse them altogether or to appropriate a time for the reception of them. The first would, I well knew, be disgusting to many; the latter I expected would undergo animadversion from those who

would find fault with or without cause. To please everybody was impossible. I therefore adopted that line of conduct which combined public advantage with private convenience, and which, in my judgment, was unexceptionable in itself.

"These visits are optional. They are made without invitation. Between the hours of 3 and 4 every Tuesday I am prepared to receive them. Gentlemen, often in great numbers, come and go, chat with each other, and act as they please. A porter shows them into the room, and they retire from it when they choose, and without ceremony. At their first entrance they salute me and I them, and as many as I can talk to I do. What pomp there is in all this I am unable to discover. Perhaps it consists in not sitting. To this two reasons are opposed: first, it is unusual; secondly (which is a more substantial one); because I have no room large enough to contain a third of the chairs which would be sufficient to admit it. If it is supposed that ostentation or the fashions of courts (which by the by, I believe originate oftener in convenience, not to say necessity, than is generally imagined) gave rise to this custom, I will boldly affirm that no supposition was ever more erroneous, for were I to indulge my inclinations every moment that I could withdraw from the fatigues of my station should be spent in retirement. That they are not proceeds from the sense I entertain of the propriety of giving to everyone as free access as consists with that respect which is due to the chair of government; and that respect, I conceive, is neither to be acquired or preserved but by maintaining a just medium between too much state and too great familiarity.

"Similar to the above, but of a more familiar and sociable kind, are the visits every Friday afternoon to Mrs. Washington, where I always am. These public meetings, and a dinner once a week to as many as my table will hold, with the references to and from the different departments of state and other communications with all parts of the Union, is as much if not more than I am able to undergo; for I have already had within less than a year two severe attacks—the last worse than the first; a third, it is more than probable, will put me to sleep with my fathers—at what distance this may be I know not."

The inauguration of Washington deserves particular notice, inasmuch as in its chief outlines it has served for the precedent to all succeeding inaugurations. Congress had determined that the ceremony of taking the

oath of office should be performed in public and in the open air. It took place on the 30th of April, 1789. In the morning religious services were performed in all the churches of the city. At 12 o'clock a procession was formed at the residence of the President, consisting of a military escort and the committees of Congress and heads of departments in carriages, followed by Washington alone in a carriage, and his aid-de-camp, Colonel Humphreys, and secretary, Mr. Lear, in another carriage, with the foreign ministers and citizens bringing up the rear. The procession moved to the hall of Congress, where Washington alighted with his attendants and entered the senate chamber. Here he was received by the Senate and House of Representatives. The Vice-President, John Adams, conducted Washington to his appointed seat, and shortly after announced to him that all was prepared for his taking the oath of office. Washington then proceeded to an open balcony in front of the house, where was a table with an open Bible lying upon it. On his appearance in the balcony, he was received with a most enthusiastic burst of popular applause, which he acknowledged by bowing to the people. Chancellor Livingston administered the oath, while Adams, Hamilton, Knox, Steuben, and others stood near the President. While the oath was being administered Washington laid his hand on the Bible. At its conclusion he said, "I swear, so help me God." His administration proves that the oath was sincere. He then stooped down and kissed the Bible. When the ceremony was concluded, he returned to the senate chamber and delivered his inaugural address to the two branches of Congress. He then proceeded on foot, with the whole assemblage, to St. Paul's Church, where prayers were read by the bishop, and the public ceremonial of the day was completed.

The occasion was celebrated by the people as a grand festival, and in the evening there was a display of fireworks as well as a general illumination of the city.

This display of enthusiasm on the part of the people was far from rendering Washington over-confident of success in his new position. He was thoroughly aware of the difficulties which would have to be encountered in putting the new government into action, so as to insure its stability and success. The opening of his inaugural address to both branches of Congress gives a clear indication of his views and feelings on taking office. It is as follows:

"Among the vicissitudes incident to life, no event could have filled me with greater anxieties than that of which the notification was transmitted by your order and received on the 14th day of the present month. On the one hand I was summoned by my country, whose voice I can never hear but with veneration and love, from a retreat which I had chosen with the fondest predilection, and, in my flattering hopes, with an immutable decision, as the asylum of my declining years; a retreat which was rendered every day more necessary as well as more dear to me by the addition of habit to inclination, and of frequent interruptions in my health to the gradual waste committed on it by time. On the other hand, the magnitude and difficulty of the trust to which the voice of my country called me, being sufficient to awaken in the wisest and most experienced of her citizens a distrustful scrutiny into his qualifications, could not but overwhelm with despondence one, who, inheriting inferior endowments from nature, and unpracticed in the duties of civil administration, ought to be peculiarly conscious of his own deficiencies. In this conflict of emotions, all I dare aver is, that it has been my faithful study to collect my duty from a just appreciation of every circumstance by which it might be effected. All I dare hope is, that if, in accepting this task, I have been too much swayed by a grateful remembrance of former instances or by an affectionate sensibility to this transcendent proof of the confidence of my fellow-citizens, and have thence too little consulted my incapacity, as well as disinclination for the weighty and untried cares before me, my error will be palliated by the motives which misled me, and its consequences be judged by my country with some share of the partiality in which they originated.

"Such being the impressions under which I have, in obedience to the public summons, repaired to the present station, it will be peculiarly improper to omit, in this first official act, my fervent supplications to that Almighty Being who rules over the universe—who presides in the councils of nations, and whose Providential aids can supply every human defect—that his benediction may consecrate to the liberties and happiness of the people of the United States, a government instituted by themselves for these essential purposes, and may enable every instrument employed in its administration to execute with success the functions allotted to his charge. In tendering this homage to the great Author of every public and private good, I assure myself that it expresses your sentiments not less than my own, nor those of my fellow-citizens at large less than either. No people can

be bound to acknowledge and adore the invisible hand which conducts the affairs of men more than the people of the United States. Every step by which they have advanced to the character of an independent nation seems to have been distinguished by some token of Providential agency, and in the important Revolution just accomplished in the system of their united government, the tranquil deliberations and voluntary consent of so many distinct communities, from which the event has resulted, cannot be compared with the means by which most governments have been established, without some return of pious gratitude, along with an humble anticipation of the future blessings which the past seem to presage. These reflections, arising out of the present crisis, have forced themselves too strongly on my mind to be suppressed. You will join with me, I trust, in thinking that there are none under the influence of which the proceedings of a new and free government can more auspiciously commence."

It will be seen by these expressions that the same sense of solemn responsibility and the same undoubting trust in Providence, so often evinced by Washington during the conflicts and perils of the war, marked his entrance upon the arduous duties of chief magistrate of the nation. As in the previous instance of accepting office, he now signified to Congress that he would receive no compensation for his services, except such as should be necessary to defray the expenses incident to the position in which he was placed.

This determination was announced in the concluding portion of the inaugural address, which was as follows:

"By the article establishing the executive department, it is made the duty of the President 'to recommend to your consideration such measures as he shall judge necessary and expedient.' The circumstances under which I now meet you will acquit me from entering into that subject, further than to refer to the great constitutional charter under which you are assembled, and which, in defining your powers, designates the objects to which your attention is to be given. It will be more consistent with those circumstances and far more congenial with the feelings which actuate me to substitute in place of a recommendation of particular measures the tribute that is due to the talents, the rectitude, and the patriotism which adorn the characters selected to devise and adopt them. In these honorable qualifications I behold the surest pledges that, as on one side no local prejudices or

attachments, no separate views nor party animosities will misdirect the comprehensive and equal eye which ought to watch over this great assemblage of communities and interests; so, on another, that the foundations of our national policy will be laid in the pure and immutable principles of private morality, and the pre-eminence of free government be exemplified by all the attributes which can win the affections of its citizens and command the respect of the world. I dwell on this prospect with every satisfaction which an ardent love for my country can inspire, since there is no truth more thoroughly established than that there exists in the economy and course of nature, an indissoluble union between virtue and happiness—between duty and advantage—between the genuine maxims of an honest and magnanimous policy and the solid rewards of public prosperity and felicity, since we ought to be no less persuaded that the propitious smiles of Heaven can never be expected on a nation that disregards the eternal rules of order and right which Heaven itself has ordained, and since the preservation of the sacred fire of liberty and the destiny of the republican model of government are justly considered as deeply, perhaps as finally, staked on the experiment entrusted to the hands of the American people.

"Besides the ordinary objects submitted to your care it will remain with your judgment to decide how far an exercise of the occasional power delegated by the fifth article of the constitution is rendered expedient, at the present juncture, by the nature of objections which have been urged against the system or by the degree of inquietude which has given birth to them. Instead of undertaking particular recommendations on this subject, in which I could be guided by no lights derived from official opportunities, I shall again give way to my entire confidence in your discernment and pursuit of the public good, for I assure myself that, whilst you carefully avoid every alteration which might endanger the benefits of a united and effective government, or which ought to await the future lessons of experience, a reverence for the characteristic rights of freemen and a regard for the public harmony will sufficiently influence your deliberations on the question how far the former can be more impregably fortified or the latter be safely and advantageously promoted.

"To the preceding observations I have one to add, which will be most properly addressed to the House of Representatives. It concerns myself, and will, therefore, be as brief as possible. When I was first honored with a call into the service of my country, then on the eve of an arduous struggle for its

liberties, the light in which I contemplated my duty required that I should renounce every pecuniary compensation. From this resolution I have in no instance departed. And being still under the impressions which produced it, I must decline, as inapplicable to myself, any share in the personal emoluments which may be indispensably included in a permanent provision for the executive department, and must accordingly pray that the pecuniary estimates for the station in which I am placed, may, during my continuance in it, be limited to such actual expenditures as the public good may be thought to require.

"Having thus imparted to you my sentiments, as they have been awakened by the occasion which brings us together, I shall take my present leave, but not without resorting once more to the benign Parent of the human race, in humble supplication, that since He has been pleased to favor the American people with opportunities for deliberating in perfect tranquility and dispositions for deciding with unparalleled unanimity on a form of government for the security of their union and the advancement of their happiness, so his divine blessing may be equally conspicuous in the enlarged views, the temperate consultations, and the wise measures on which the success of his government must depend."

This speech was read to Congress by the President himself. The practice of sending a message instead of reading the speech in person was introduced by President Jefferson, who did not appear to advantage as an orator, and it has been continued to the present time. The same persons who found fault with Washington's levees would probably have regarded the practice introduced by Washington as anti-republican, as it is practiced by the sovereigns of Great Britain.

The executive departments which had existed under the confederation were necessarily continued until Congress should make new arrangements. Mr. Jay still acted as Secretary of Foreign Affairs, an office analogous to that which is now denominated Secretary of State, and General Knox as Secretary of War. The treasury was entrusted to a board of commissioners. Each of these at the request of the President furnished a full report of the state of the department respectively under their control. To the digesting, condensing, and studying of these, and of the diplomatic correspondence of the government since the close of the war, Washington now devoted himself with unwearied attention.

Of the mode in which his daily life was now passed during the hours when not engaged in official duty, we gain a pleasing glimpse from the following extract from G. W. P. Custis' "Recollections and Private Memoirs of the Life and Character of Washington," as follows:

"In the then limited extent and improvement of the city there was some difficulty in selecting a mansion for the residence of the chief magistrate and a house suitable to his rank and station. Osgood's house, a mansion of very moderate extent, was at length fixed upon, situated in Cherry street.

"There the President became domiciled. His domestic family consisted of Mrs. Washington, the two adopted children, Mr. Lear, as principal secretary, Colonel Humphreys, with Messrs. Lewis and Nelson, secretaries, and Maj. William Jackson, aide-de-camp.

"Persons visiting the house in Cherry street at this time of day will wonder how a building so small could contain the many and mighty spirits that thronged its halls in olden days. Congress, cabinets, all public functionaries in the commencement of the government were selected from the very elite of the nation. Pure patriotism, commanding talent, eminent services, were the proud and indispensable requisites for official station in the first days of the Republic. The first Congress was a most enlightened and dignified body. In the Senate were several of the members of the Congress of 1776 and signers of the Declaration of Independence—Richard Henry Lee, who moved the Declaration, John Adams, who seconded it, with Sherman, Morris, Carroll, etc.

"The levees of the first President were attended by these illustrious patriots and statesmen, and by many other of the patriots, statesmen, and soldiers, who could say of the Revolution, '*magna pars fui*,' while numbers of foreigners and strangers of distinction crowded to the seat of the general government, all anxious to witness the grand experiment that was to determine how much rational liberty mankind is capable of enjoying, without said liberty degenerating into licentiousness.

"Mrs. Washington's drawing-rooms, on Friday nights, were attended by the grace and beauty of New York. On one of these occasions an incident occurred which might have been attended by serious consequences. Owing to the lowness of the ceiling in the drawing-room, the ostrich feather in the head-dress of Miss McIver, a belle of New York, took fire from the chandelier, to the no small alarm of the company. Major Jackson, aide-de-

camp to the President, with great presence of mind and equal gallantry, flew to the rescue of the lady, and, by clapping the burning plumes between his hands, extinguished the flames, and the drawing-room went on as usual.

"Washington preserved the habit, as well in public as in private life, of rising at 4 o'clock and retiring to bed at 9. On Saturdays he rested somewhat from his labors by either riding into the country, attended by a groom, or with his family in his coach drawn by six horses.

"Fond of horses, the stables of the President were always in the finest order and his equipage excellent, both in taste and quality. Indeed, so long ago as the days of the vice-regal court of Lord Botetourt, at Williamsburg, in Virginia, we find that there existed a rivalry between the equipages of Colonel Byrd, a magnate of the old *régime*, and Colonel Washington—the grays against the bays. Bishop, the celebrated body-servant of Braddock, was the master of Washington's stables. And there were what was termed muslin horses in those days. At cockcrow the stable boys were at work; at sunrise Bishop stalked into the stables, a muslin handkerchief in his hand, which he applied to the coats of the animals, and, if the slightest stain was perceptible upon the muslin, up went the luckless wights of the stableboys and punishment was administered instant; for to the veteran Bishop, bred amid the iron discipline of European armies, mercy for anything like a breach of duty was altogether out of the question.

"The President's stables in Philadelphia were under the direction of German John, and the grooming of the white chargers will rather surprise the moderns. The night before the horses were expected to be rode they were covered entirely over with a paste, of which whiting was the principal component part; then the animals were swathed in body clothes and left to sleep upon clean straw. In the morning the composition had become hard, was well rubbed in, and curried and brushed, which process gave to the coats a beautiful, glossy, and satin-like appearance. The hoofs were then blacked and polished, the mouths washed, teeth picked and cleaned, and, the leopard-skin housings being properly adjusted, the white chargers were led out for service. Such was the grooming of ancient times.

"There was but one theater in New York in 1789 (in John street), and so small were its dimensions that the whole fabric might easily be placed on the stage of one of our modern theaters. Yet, humble as was the edifice, it possessed an excellent company of actors and actresses, including old

Morris, who was the associate of Garrick, in the very outset of that great actor's career, at Goodrhan's Fields. The stage boxes were appropriated to the President and Vice-President, and were each of them decorated with emblems, trophies, etc. At the foot of the playbills were always the words, '*Vivat Respublica.*' Washington often visited this theater, being particularly gratified by Wignell's performance of Darby, in the 'Poor Soldier.'

"It was in the theater in John street that the now national air of 'Hail Columbia,' then called the 'President's March,' was first played. It was composed by a German musician by the name of Fyles, the leader of the orchestra, in compliment to the President. The national air will last as long as the nation lasts, while the meritorious composer has been long since forgotten.

"It was while residing in Cherry street that the President was attacked by a severe illness that required a surgical operation. He was attended by the elder and younger Drs. Bard. The elder, being somewhat doubtful of his nerves, gave the knife to his son, bidding him 'cut away—deeper, deeper still; don't be afraid; you see how well he bears it.' Great anxiety was felt in New York at this time, as the President's case was considered extremely dangerous. Happily, the operation proved successful, and the patient's recovery removed all cause of alarm. During the illness a chain was stretched across the street and the sidewalks laid with straw. Soon after his recovery the President set out on his intended tour through the New England States.

"The President's mansion was so limited in accommodation that three of the secretaries were compelled to occupy one room—Humphreys, Lewis, and Nelson. Humphreys, aide-de-camp to the Commander-in-Chief at Yorktown, was a most estimable man, and at the same time a poet. About this period he was composing his 'Widow of Malabac.' Lewis and Nelson, both young men, were content, after the labors of the day, to enjoy a good night's repose. But this was often denied them, for Humphreys, when in the vein, would rise from his bed at any hour, and, with stentorian voice, recite his verses. The young men, roused from their slumbers, and rubbing their eyes, beheld a great burly figure, '*en chemise*,' striding across the floor, reciting, with great emphasis, particular passages from his poems, and calling on his room-mates for their approbation. Having, in this way, for a considerable time, 'murdered the sleep' of his associates, Humphreys, at

length, wearied by his exertions, would sink upon his pillow in a kind of dreamy languor. So sadly were the young secretaries annoyed by the frequent outbursts of the poet's imagination that it was remarked of them by their friends, that, from 1789 to the end of their lives, neither Robert Lewis nor Thomas Nelson was ever known to evince the slightest taste for poetry."

Washington had hardly recovered from the severe attack of illness above referred to, when he heard of the death of his mother, who died on the 25th of August, 1789. He had paid her a visit just before leaving Mount Vernon for the seat of government. She was then residing at Fredericksburg, and was gradually sinking under a disease which was evidently mortal; and Washington, fully aware that he was seeing her for the last time, was much affected at the interview. She also felt that they were parting to meet no more in this world. "But she bade him go, with Heaven's blessing and her own, to fulfill the high destinies to which he had been called."

The mother of Washington was, in many respects, a remarkable woman. Her influence over her son in early life we have already had occasion to notice. In her last days she presents a true picture of matronly dignity. Mr. Custis states that she was continually visited and solaced, in the retirement of her declining years, by her children and numerous grandchildren. Her daughter, Mrs. Lewis, repeatedly and earnestly solicited her to remove to her house and there pass the remainder of her days. Her son pressingly entreated her that she would make Mount Vernon the home of her age. But the matron's answer was: "I thank you for your affectionate and dutiful offers, but my wants are few in this world and I feel perfectly competent to take care of myself." To the proposition of her son-in-law, Colonel Lewis, to relieve her by taking the direction of her concerns, she replied. "Do you, Fielding, keep my books in order, for your eyesight is better than mine; but leave the executive management to me." Such were the energy and independence she preserved to an age beyond that usually allotted to mortals, and till within three years of her death, when the disease under which she suffered (cancer of the breast) prevented exertion.

Her meeting with Washington, after the victory which decided the fortune of America, illustrates her character too strikingly to be omitted: "After an absence of nearly seven years it was, at length, on the return of the combined armies from Yorktown, permitted to the mother to see and embrace her illustrious son. So soon as he had dismounted, in the midst of a

numerous and brilliant suite, he sent to apprise her of his arrival and to know when it would be her pleasure to receive him. And now, mark the force of early education and habits, and the superiority of the Spartan over the Persian schools, in this interview of the great Washington with his admirable parent and instructor. No pageantry of war proclaimed his coming—no trumpets sounded—no banners waved. Alone, and on foot, the Marshal of France, the General-in-Chief of the combined armies of France and America, the deliverer of his country, the hero of the age, repaired to pay his humble duty to her whom he venerated as the author of his being, the founder of his fortune and his fame. Full well he knew that the matron was made of sterner stuff than to be moved by all the pride that glory ever gave or by all the "pomp and circumstance" of power. The lady was alone—her aged hands employed in the works of domestic industry—when the good news was announced, and it was further told that the victor chief was in waiting at the threshold. She welcomed him with a warm embrace, and by the well-remembered and endearing names of his childhood. Inquiring as to his health, she remarked the lines which mighty cares and many trials had made on his manly countenance, spoke much of old times and old friends, but of his glory, not one word!

"Meantime, in the village of Fredericksburg, all was joy and revelry. The town was crowded with the officers of the French and American armies, and with gentlemen from all the country around, who hastened to welcome the conquerors of Cornwallis. The citizens made arrangements for a splendid ball to which the mother of Washington was specially invited. She observed that although her dancing days were pretty well over she should feel happy in contributing to the general festivity, and consented to attend.

"The foreign officers were anxious to see the mother of their chief. They had heard indistinct rumors respecting her remarkable life and character, but, forming their judgment from European examples, they were prepared to expect in the mother that glare and show which would have been attached to the parents of the great in the old world. How were they surprised when the matron, leaning on the arm of her son, entered the room! She was arrayed in the very plain, yet becoming garb worn by the Virginia lady of the olden time. Her address, always dignified and imposing, was courteous though reserved. She received the complimentary attentions which were profusely paid her without evincing the slightest elevation, and, at an early hour, wished the company much enjoyment of their pleasures,

and observing that it was time for old people to be at home, retired, leaning as before on the arm of her son."

To this picture may be added another:

"The Marquis de Lafayette repaired to Fredericksburg, previous to his departure for Europe in the fall of 1784, to pay his parting respects to the mother, and to ask her blessing. Conducted by one of her grandsons he approached the house, when the young gentleman observed: 'There, sir, is my grandmother.' Lafayette beheld—working in the garden, clad in domestic-made clothes, and her gray head covered with a plain straw hat—the mother of 'his hero, his friend, and a country's preserver.' The lady saluted him, kindly observing: 'Ah, marquis! you see an old woman, but come, I can make you welcome to my poor dwelling without the parade of changing my dress.'"

To the encomiums lavished by the marquis on his chief, the mother replied: "I am not surprised at what George has done for he was always a very good boy." So simple, in her true greatness of soul, was this remarkable woman.

Her piety was ardent, and she associated devotion with the grand and beautiful in nature. She was in the habit of repairing every day for prayer to a secluded spot, formed by rocks and trees, near her dwelling.

The person of Mrs. Washington is described as being of the medium height and well proportioned—her features pleasing, though strongly marked. There were few painters in the Colonies in those days, and no portrait of her is in existence. Her biographer saw her but with infant eyes, but well remembered the sister of the chief. Of her we are told nothing, except that "she was a most majestic woman and so strikingly like the brother that it was a matter of frolic to throw a cloak around her and place a military hat upon her head, and such was the perfect resemblance that had she appeared on her brother's steed, battalions would have presented arms, and senates risen to do homage to the chief."

Mrs. Washington died at the age of eighty-five, rejoicing in the consciousness of a life well spent, and the hope of a blessed immortality. Her ashes repose at Fredericksburg, where a splendid monument has been erected to her memory. {2}

Deeply as Washington felt the loss of his estimable parent his attention was speedily withdrawn from his private and personal interests by the

important political affairs which were pressing upon him. Congress were now fairly engaged in giving form and efficiency to the newly-created government. {3}

The continued existence of the constitution itself was menaced by some of the States which had acceded to it, as well as by those who had refused to adopt it. In some of the States a disposition to acquiesce in the decision which had been made, and to await the issue of a fair experiment of the constitution was avowed by the minority. In others the chagrin of defeat seemed to increase the original hostility to the instrument, and serious fears were entertained by its friends that a second general convention might pluck from it the most essential of its powers before their value and the safety with which they might be confided where they were placed could be ascertained by experience.

From the same cause exerting itself in a different direction the friends of the new system had been still more alarmed. In all those States where the opposition was sufficiently formidable to inspire a hope of success, the effort was made to fill the Legislature with the declared enemies of the government and thus to commit it, in its infancy, to the custody of its foes. Their fears were quieted for the present. In both branches of the Legislature the Federalists, an appellation at that time distinguishing those who had supported the constitution, formed the majority, and it soon appeared that a new convention was too bold an experiment to be applied for by the requisite number of States. But two States, Rhode Island and North Carolina, still remained out of the pale of the Union, and a great deal of ill humor existed among those who were included within it, which increased the necessity of circumspection in those who administered the government.

To the western parts of the continent the attention of the Executive was attracted by discontents which were displayed with some violence, and which originated in circumstances and in interests peculiar to that country.

Spain, in possession of the mouth of the Mississippi, had refused to permit the citizens of the United States to follow its waters into the ocean, and had occasionally tolerated or interdicted their commerce to New Orleans, as had been suggested by the supposed interest or caprice of the Spanish government or of its representatives in America. The eyes of the inhabitants adjacent to the waters which emptied into that river were turned down it as the only channel through which the surplus produce of their

luxuriant soil could be conveyed to the markets of the world. Believing that the future wealth and prosperity of their country depended on the use of that river they gave some evidence of a disposition to drop from the Confederacy, if this valuable acquisition could not otherwise be made. This temper could not fail to be viewed with interest by the neighboring powers, who had been encouraged by it and by the imbecility of the government, to enter into intrigues of an alarming nature.

Previous to his departure from Mount Vernon, Washington had received intelligence, too authentic to be disregarded, of private machinations, by real or pretended agents both of Spain and Great Britain, which were extremely hostile to the peace and to the integrity of the Union.

Spain had intimated that the navigation of the Mississippi could never be conceded while the inhabitants of the western country remained connected with the Atlantic States, but might be freely granted to them if they should form an independent empire.

On the other hand a gentleman from Canada, whose ostensible business was to repossess himself of some lands on the Ohio which had been formerly granted to him, frequently discussed the vital importance of the navigation of the Mississippi, and privately assured several individuals of great influence that if they were disposed to assert their rights he was authorized by Lord Dorchester, the Governor of Canada, to say that they might rely confidently on his assistance. With the aid it was in his power to give they might seize New Orleans, fortify the Balize at the mouth of the Mississippi, and maintain themselves in that place against the utmost efforts of Spain. {4}

The probability of failing in any attempt to hold the mouth of the Mississippi by force, and the resentments against Great Britain which prevailed generally throughout the western country, diminished the danger to be apprehended from any machinations of that power, but against those of Spain the same security did not exist.

In contemplating the situation of the United States in their relations not purely domestic the object demanding most immediate consideration was the hostility of several tribes of Indians. The military strength of the nations who inhabited the country between the lakes, the Mississippi, and the Ohio was computed at 5,000 men, of whom about 1,500 were at open war with the United States. Treaties had been concluded with the residue, but the

warlike disposition of the Indians, and the provocations they had received, furnished reasons for apprehending that these treaties would soon be broken.

In the South the Creeks, who could bring into the field 6,000 fighting men, were at war with Georgia. In the mind of their leader, M'Gillivray, the son of a white man, some irritation had been produced by the confiscation of the lands of his father who had resided in that State, and several other refugees, whose property had also been confiscated, contributed still further to exasperate the nation. But the immediate point in contest between them was a tract of land on the Oconee, which the State of Georgia claimed under a purchase, the validity of which was denied by the Indians.

The regular force of the United States was less than 600 men.

Not only the policy of accommodating differences by negotiation which the government was in no condition to terminate by the sword, but a real respect for the rights of the natives and a regard for the claims of justice and humanity, disposed Washington to endeavor, in the first instance, to remove every cause of quarrel by a treaty, and his message to Congress on this subject evidenced his preference of pacific measures.

Possessing many valuable articles of commerce for which the best market was often found on the coast of the Mediterranean, struggling to export them in their own bottoms, and unable to afford a single gun for their protection, the Americans could not view with unconcern the dispositions which were manifested toward them by the Barbary powers. A treaty had been formed with the Emperor of Morocco, but from Algiers, Tunis, and Tripoli peace had not been purchased, and those regencies considered all as enemies to whom they had not sold their friendship. The unprotected vessels of America presented a tempting object to their rapacity, and their hostility was the more terrible, because by their public law prisoners became slaves.

The United States were at peace with all the powers of Europe, but controversies of a delicate nature existed with some of them, the adjustment of which required a degree of moderation and firmness which there was reason to fear might not, in every instance, be exhibited.

The apprehensions with which Spain had contemplated the future strength of the United States, and the consequent disposition to restrict them to narrow limits, have been already noticed. After the conclusion of the war

the attempt to form a treaty with that power had been repeated, but no advance toward an agreement on the points of difference between the two governments had been made.

Circumstances attending the points of difference with Great Britain were still more serious, because, in their progress, a temper unfavorable to accommodation had been uniformly displayed.

The resentments produced by the various calamities war had occasioned were not terminated with their cause. The idea that Great Britain was the natural enemy of America had become habitual. Believing it impossible for that nation to have relinquished its views of conquest, many found it difficult to bury their animosities and to act upon the sentiment contained in the Declaration of Independence, "to hold them as the rest of mankind, enemies in war, in peace friends." In addition to the complaints respecting the violation of the treaty of peace events were continually supplying this temper with fresh aliment. The disinclination which the cabinet of London had discovered to a commercial treaty with the United States was not attributed exclusively to the cause which had been assigned for it. It was in part ascribed to that jealousy with which Britain was supposed to view the growing trade of America.

The general restrictions on commerce by which every maritime power sought to promote its own navigation, and that part of the European system in particular by which each aimed at a monopoly of the trade of its Colonies, were felt with peculiar keenness when enforced by England. In this suspicious temper almost every unfavorable event which occurred was traced up to British hostility.

That an attempt to form a commercial treaty with Portugal had failed, was attributed to the influence of the cabinet of London, and to the machinations of the same power were also ascribed the danger from the corsairs of Barbary and the bloody incursions of the Indians. The resentment excited by these causes was felt by a large proportion of the American people, and the expression of it was common and public. That correspondent dispositions existed in England is by no means improbable, and the necessary effect of this temper was to increase the difficulty of adjusting the differences between the two nations.

With France the most perfect harmony subsisted. Those attachments which originated in the signal services received from the King of France

during the war of the Revolution had sustained no diminution. Yet, from causes which it was found difficult to counteract, the commercial intercourse between the two nations was not so extensive as had been expected. It was the interest and, of consequence, the policy of France, to avail herself of the misunderstandings between the United States and Great Britain, in order to obtain such regulations as might gradually divert the increasing trade of the American continent from those channels in which it had been accustomed to flow, and a disposition was felt throughout the United States to cooperate with her in enabling her merchants, by legislative encouragements, to rival those of Britain in the American market.

A great revolution had commenced in that country, the first stage of which was completed by limiting the powers of the monarch, and by the establishment of a popular assembly. In no part of the globe was this revolution hailed with more joy than in America. The influence it would have on the affairs of the world was not then distinctly foreseen, and the philanthropist, without becoming a political partisan, rejoiced in the event. On this subject, therefore, but one sentiment existed.

The relations of the United States with the other powers of Europe did not require particular attention. Their dispositions were rather friendly than otherwise, and an inclination was generally manifested to participate in the advantages which the erection of an independent empire on the western shores of the Atlantic held forth to the commercial world.

By the ministers of foreign powers in America it would readily be supposed that the first steps taken by the new government would not only be indicative of its present system, but would probably affect its foreign relations permanently, and that the influence of the President would be felt in the Legislature. Scarcely was the exercise of his executive functions commenced when Washington received an application from the Count de Moustiers, the minister of France, requesting a private conference. On being told that the Department of Foreign Affairs was the channel through which all official business should pass, the count replied that the interview he requested was not for the purpose of actual business, but rather as preparatory to its future transaction.

The next day, at 1 in the afternoon, was named for the interview. The count commenced the conversation with declarations of his personal regard

for America, the manifestations of which, he said, had been early and uniform. His nation, too, was well disposed to be upon terms of amity with the United States, but at his public reception there were occurrences which he thought indicative of coolness in the Secretary of Foreign Affairs, who had, he feared, while in Europe, imbibed prejudices, not only against Spain, but against France also. If this conjecture should be right the present head of that department could not be an agreeable organ of intercourse with the President. He then took a view of the modern usages of European courts, which, he said, favored the practice he recommended, of permitting foreign ministers to make their communications directly to the chief of the executive. "He then presented a letter," says Washington in his private journal, "which he termed confidential, and to be considered as addressed to me in my private character, which was too strongly marked with an intention, as well as a wish, to have no person between the minister and President in the transaction of business between the two nations."

In reply to these observations Washington assured him that, judging from his own feelings and from the public sentiment, there existed in America a reciprocal disposition to be on the best terms with France. That whatever former difficulties might have occurred he was persuaded the Secretary of Foreign Affairs had offered no intentional disrespect either to the minister or to his nation. Without undertaking to know the private opinions of Mr. Jay he would declare that he had never heard that officer express, directly or indirectly, any sentiment unfavorable to either.

Reason and usage, he added, must direct the mode of treating national and official business. If rules had been established they must be conformed to. If they were yet to be framed it was hoped that they would be convenient and proper. So far as case could be made to comport with regularity and with necessary forms, it ought to be consulted, but custom, and the dignity of office, were not to be disregarded. The conversation continued upward of an hour, but no change was made in the resolution of the President.

During its first session the national Legislature was principally occupied in providing revenues for the long-exhausted treasury, in establishing a judiciary, in organizing the executive departments in detail, and in framing amendments to the constitution, agreeably to the suggestion of the President. The members immediately entered upon the exercise of those powers so long refused under the articles of confederation. They imposed a

tonnage duty, as well as duties on various imported articles, steadily keeping in sight, however, the navigating interest of the country, which had hitherto been almost wholly at the mercy of other nations. Higher tonnage duties were imposed on foreign than on American bottoms, and goods imported in vessels belonging to citizens of the United States paid 10 per cent less duty than the same goods brought in those owned by foreigners. These discriminating duties were intended to counteract the commercial regulations of foreign nations and to encourage American shipping. To aid in the management of the affairs of government three executive departments were established, styled Departments of War, Foreign Affairs, and of the Treasury, with a secretary at the head of each.

The heads of these departments, in addition to the duties specially assigned them, were intended to constitute a council, to be consulted by the President whenever he thought proper, and the Executive was authorized by the constitution to require the opinion, in writing, of the principal officers in the executive departments, on subjects relating to the duties of their offices. In framing the acts constituting these offices and defining their duties, it became an important subject of inquiry in what manner or by whom these important officers could be removed from office. This was a question as new as it was momentous and was applicable to all officers of executive appointment. In the long and learned debates on the subject in Congress, there arose a very animated opposition to such a construction of the constitution as to give this power to any one individual. Whatever confidence might be placed in the chief magistrate then at the head of the government, equal confidence could not be expected in his successors, and it was contended that a concurrence of the Senate was as necessary and proper in the removal of a person from office as in his appointment. Some of the members of the House of Representatives were of opinion that they could not be removed without impeachment. The principal question, however, on which Congress was divided, was, whether they were removable by the President alone, or by the President in concurrence with the Senate. A majority, however, in both houses, decided that this power was in the President alone. In the House, the majority in favor of this construction was twelve. This decision of a great constitutional question has been acquiesced in, and in its consequences has been of greater importance than almost any other since the establishment of the new government. From the manner in which this power has been exercised, it has given a tone and

character to the executive branch of the government not contemplated, it is believed, by the framers of the constitution or by those who constituted the first Congress under it. It has greatly increased the influence and patronage of the President and in no small degree made him the center around which the other branches of the government revolve. {4}

In a free country, where the private citizen has both the right and the inclination to take an interest in the public concerns, it is natural that political parties and civil contentions should arise. These will be more or less violent, angry, and hostile, according as a sense of common security from external dangers leaves no cause for united action, and little anxiety for the common peace. A natural consequence of this strife of parties is the exercise of the passions—pride, interest, vanity, resentment, gratitude—each contributing its share in irritating and prolonging the controversy. In the beginning of the Revolution, the people of the United States divided themselves into the two great classes of Whigs and Tories; then they again separated upon the question of absolute independence. Other questions arose during the war, relative to its conduct, and the qualifications of the leaders of the army. Independence achieved, the minds of the people were agitated about the nature of the government, which all saw to be necessary for their own happiness, and for the better enabling them to prosecute with foreign countries peaceful negotiations or the operations of war. Many saw, in too close a union, dangers as great and consequences as distasteful as in their entire separation. It was believed by many that the extent of the country, the great diversity of character, habits, and pursuits among the several States, presented insuperable obstacles to a closer union than that afforded by the articles of confederation. Some were almost exclusively commercial, others agricultural; some were disposed to engage in manufacturing pursuits; some had domestic slavery firmly connected with their domestic relations and were disposed to look favorably on the extension of the institution; others regarded involuntary servitude as a curse, and desired its abolition.

It was not to be wondered at, that with such points of diversity, many should suppose that a single government could not administer the affairs of all, except by a greater delegation of power than would be submitted to by the American people. While some looked wholly to these apprehended consequences of a close union and a single government, others chiefly regarded the dangers arising from disunion, domestic dissensions, and even

war. One party dreaded consolidation; the other, anarchy and separation. Each saw, in the object of its dread, the destruction of good government, though one party looked too exclusively to its characteristic of order, the other to that of civil liberty. These were the thoughts of the people, widely different, but all equally honest. But the politicians addressed themselves to these prejudices, often with unworthy motives. Local prejudices, self-interest, fears, in some cases from an anticipated loss of consequence, in the event of a transfer of sovereignty from the individual States to the general government, all combined to make many violent in their expressions of opposition to the plan. Apprehensions of violence and disorder, and fears from individual popularity in a circumscribed sphere, led others to desire consolidation. With these, ranked others who were fond of the pomp and show of authority which would attend a powerful government; and still others, who, having claims upon the country, supposed that they would have much stronger hopes of being paid themselves and of seeing the debts due abroad liquidated if a system of government were established which could be certain to raise a revenue for these objects. On the formation of the constitution, the community settled down into two great parties, Federalists and Anti-Federalists, or Democrats; the first believing that the most imminent danger to our peace and prosperity was in disunion, and that popular jealousy, always active, would withhold the power which was essential to good order and national safety; the other party believing that the danger most to be apprehended was in too close a union, and that their most powerful opponents wished a consolidated and even a monarchical government.

There were many who had been accustomed to reflect upon government and political relations previously to the war of independence, when the constitution of Great Britain being by far the best that had ever existed, they may naturally be supposed to have conceived for it a degree of homage and respect which it could not now inspire. The speculations on political rights, to which the contest with Great Britain and the debates on the question of independence gave rise, greatly favored the doctrines of political equality and the hatred of power in any form that could control the public will. There are, in the heart of every man, principles which readily prepare him for republican doctrines, and after a few years some of the speculative politicians began to think that the free, simple, and equal government which was suited to the tastes and habits of our people, was also the best in theory.

The great body of the people were partial to the form of government to which they had been accustomed and wished for none other, though the leading statesmen differed upon this point. Some preferred the republican form in theory and believed that no other would be tolerated in practice, and others regretted that they were obliged to yield so far to popular prejudice as to forego the form they deemed best, but determined to avail themselves of every opportunity of improving the existing government into that form. Nor were they without hopes that by siding with the general government in every question of power between that and the separate States, and with the Executive in all questions between that and the Legislature, and by continually increasing the patronage of the executive by means of an army, a navy, and the multiplication of civil officers, they would ultimately obtain their object. {5}

It was in the midst of this society, so agitated and disturbed, that Washington, without ambition, without any false show, from a sense of duty rather than inclination and rather trusting in truth than confident of success, undertook actually to found the government decreed by the new-born constitution. He rose to his high office invested with an immense influence, which was acknowledged and received even by his enemies.

Washington's natural inclination, says Guizot, {7} was rather to a democratic social state than to any other. Of a mind just rather than expansive, of a temper wise and calm, full of dignity, but free from all selfish and arrogant pretensions—coveting rather respect than power—the impartiality of democratic principles and the simplicity of democratic manners, far from offending or annoying him, suited his tastes and satisfied his judgment. He did not trouble himself with inquiring whether more elaborate combinations, a division into ranks, privileges, and artificial barriers, were necessary to the preservation of society. He lived tranquilly in the midst of an equal and sovereign people, finding its authority to be lawful and submitting to it without effort.

But when the question was one of political and not social order, when the discussion turned upon the organization of the government, he was strongly federal, opposed to local and popular pretensions and the declared advocate of the unity and force of the central power.

He placed himself under this standard and did so to insure its triumph. But still his elevation was not the victory of a party and awakened in no one

either exultation or regret. In the eyes, not only of the public, but of his enemies, he was not included in any party and was above them all: "the only man in the United States," said Jefferson, "who possessed the confidence of all;—there was no other one who was considered as anything more than a party leader."

It was his constant effort to maintain this honorable privilege. "It is really my wish to have my mind and my actions, which are the result of reflection, as free and independent as the air. If it should be my inevitable fate to administer the government, I will go to chair under no pre-engagement of any kind or nature whatsoever. Should anything tending to give me anxiety present itself in this or any other publication, I shall never undertake the painful task of recrimination, nor do I know that I should ever enter upon my justification. All else is but food for declamation. Men's minds are as various as their faces, and, where the motives of their actions are pure, the operations of the former are no more to be imputed to them as a crime than the appearance of the latter. Differences in political opinions are as unavoidable, as, to a certain point, they may, perhaps, be necessary." {8}

A stranger also to all personal disputes, to the passions and prejudices of his friends, as well as his enemies, the purpose of his whole policy was to maintain this position and to this policy he gave the true name, "the just medium!"

It is much, continues the great statesman of France, to have the wish to preserve a just medium; but the wish, though accompanied with firmness and ability, is not always enough to secure it. Washington succeeded in this as much by the natural turn of his mind and character as by making it his peculiar aim; he was, indeed, really of no party, and his country in esteeming him so, did no more than pay homage to truth.

A man of experience and a man of action, he had an admirable wisdom, and made no pretension to systematic theories. He took no side beforehand; he made no show of the principles that were to govern him. Thus, there was nothing like a logical harshness in his conduct, no committal of self-love, no struggle of rival talent. When he obtained the victory, his success was not to his adversaries either a stake lost or a sweeping sentence of condemnation. It was not on the ground of the superiority of his own mind that he triumphed, but on the ground of the nature of things and of the inevitable necessity that accompanied them. Still, his success was not an

event without a moral character, the simple result of skill, strength, or fortune. Uninfluenced by any theory he had faith in truth and adopted it as the guide of his conduct. He did not pursue the victory of one opinion against the partisans of another; neither did he act from interest in the event alone, or merely for success. He did nothing which he did not think to be reasonable and just; so that his conduct, which had no systematic character that might be humbling to his adversary, had still a moral character which commanded respect.

Men had, moreover, the most thorough conviction of his disinterestedness, that great light to which men so willingly trust their fate; that vast power which draws after it their hearts, while at the same time it gives them confidence that their interests will not be surrendered, either as a sacrifice or as instruments to selfishness and ambition. A striking proof of his impartiality was afforded in the choice of the persons who were to form his cabinet under the law for the formation of the executive departments.

The government being completely organized and a system of revenue established, the important duty of filling the offices which had been created remained to be performed. In the execution of this delicate trust the purest virtue and the most impartial judgment were exercised by Washington in selecting the best talents and the greatest weight of character which the United States could furnish. The unmingled patriotism of the motives by which he was actuated, receives its clearest demonstration from a view of all his private letters on this subject, and the success of his endeavors is attested by the abilities and reputation which he drew into the public service.

At the head of the Department of Foreign Affairs, since denominated the Department of State, he placed Jefferson, who had been bred to the bar, and at an early period of life had acquired considerable reputation for extensive attainments in the science of politics. He had been a distinguished member of the Second Congress and had been offered a diplomatic appointment, which he had declined. Withdrawing from the administration of Continental affairs, he had been elected Governor of Virginia, which office he filled for two years. He afterwards again represented his native State in the councils of the Union, and in the year 1784 was appointed to succeed Dr. Franklin at the court of Versailles. In that station he had acquitted himself much to the public satisfaction. His "Notes on Virginia," which were read with applause,

were believed to evince the soundness of his political opinions, and the Declaration of Independence was universally ascribed to his pen. He had long been placed by America amongst the most eminent of her citizens, and had long been classed by the President with those who were most capable of serving the nation. Having lately obtained permission to return for a short time to the United States, he was, while on his passage, nominated to this important office, and, on his arrival in Virginia, found a letter from the President, giving him the option of becoming the Secretary of Foreign Affairs or of retaining his station at the court of Versailles. He appears rather to have inclined to continue in his foreign appointment, and, in changing his situation, to have consulted the wishes of the first magistrate more than the preference of his own mind. {8}

The task of restoring public credit, of drawing order and arrangement from the chaotic confusion in which the finances of America were involved, and of devising means which should render the revenue productive and commensurate with the demand, in a manner least burdensome to the people, was justly classed among the most arduous of the duties which devolved on the new government. In discharging it, much aid was expected from the head of the treasury. This important, and at that time, intricate department, was assigned to Colonel Hamilton.

This gentleman was a native of the Island of St. Croix, and at a very early period of life had been placed by his friends in New York. Possessing an ardent temper, he caught fire from the concussions of the moment, and, with all the enthusiasm of youth, engaged first his pen, and afterwards his sword in the stern contest between the American Colonies and their parent State. Among the first troops raised by New York was a corps of artillery, in which he was appointed a captain. Soon after the war was transferred to the Hudson, his superior endowments recommended him to the attention of the Commander-in-Chief, into whose family, before completing his twenty-first year, he was invited to enter. Equally brave and intelligent, he continued in this situation to display a degree of firmness and capacity which commanded the confidence and esteem of his general and of the principal officers in the army.

After the capitulation at Yorktown, the war languished throughout the American continent and the probability that its termination was approaching daily increased.

The critical circumstances of the existing government rendered the events of the civil more interesting than those of the military department, and Colonel Hamilton accepted a seat in the Congress of the United States. In all the important acts of the day he performed a conspicuous part, and was greatly distinguished among those distinguished men whom the crisis had attracted to the councils of their country. He had afterwards been active in promoting those measures which led to the convention at Philadelphia, of which he was a member, and had greatly contributed to the adoption of the constitution by the State of New York. In the preeminent part he had performed, both in the military and civil transactions of his country, he had acquired a great degree of well-merited fame, and the frankness of his manners, the openness of his temper, the warmth of his feelings, and the sincerity of his heart, had secured him many valuable friends.

To talents equally splendid and useful he united a patient industry, not always the companion of genius, which fitted him, in a peculiar manner, for subduing the difficulties to be encountered by the man who should be placed at the head of the American finances. {9}

The Department of War was already filled by General Knox, and he was again nominated to it.

Throughout the contest of the Revolution this officer had continued at the head of the American artillery, and from being the colonel of a regiment, had been promoted to the rank of a major-general. In this important station he had preserved a high military character, and on the resignation of General Lincoln had been appointed Secretary of War. To his past services and to unquestionable integrity, he was admitted to unite a sound understanding, and the public judgment, as well as that of the chief magistrate, pronounced him in all respects competent to the station he filled.

The office of attorney-general was filled by Edmund Randolph. To a distinguished reputation in the line of his profession, this gentleman added a considerable degree of political eminence. After having been, for several years the attorney-general of Virginia, he had been elected its Governor. While in this office he was chosen a member of the convention which framed the constitution, and was also elected to that which was called by the State for its adoption or rejection. After having served at the head of the

executive the term permitted by the constitution of the State, he entered into its Legislature, where he preserved a great share of influence.

Such was the first cabinet council of the President. In its composition, public opinion as well as intrinsic worth had been consulted, and a high degree of character had been combined with real talent.

In the selection of persons for high judicial offices, the President was guided by the same principles. At the head of this department he placed John Jay.

From the commencement of the Revolution this gentleman had filled a large space in the public mind. Remaining, without intermission, in the service of his country, he had passed through a succession of high offices, and in all of them had merited the approbation of his fellow-citizens. To his pen, while in Congress, America was indebted for some of those masterly addresses which reflected most honor upon the government, and to his firmness and penetration was to be ascribed, in no inconsiderable degree, the happy issue of those intricate negotiations which were conducted, toward the close of the war, at Madrid and at Paris. On returning to the United States he had been appointed Secretary of Foreign Affairs, in which station he had conducted himself with his accustomed ability. A sound judgment improved by extensive reading and great knowledge of public affairs, unyielding firmness, and inflexible integrity, were qualities of which Mr. Jay had given frequent and signal proofs. Although for some years withdrawn from that profession to which he was bred, the acquisitions of his early life had not been lost, and the subjects on which his mind had been exercised were not entirely foreign from those which would, in the first instance, employ the courts in which he was to preside.

John Rutledge of South Carolina, James Wilson of Pennsylvania, William Gushing of Massachusetts, Robert Harrison of Maryland, and John Blair of Virginia, were nominated as associate justices. Some of these gentlemen had filled the highest law offices in their respective States, and all of them had received distinguished marks of the public confidence.

In the systems which had been adopted by the several States, offices corresponding to those created by the revenue laws of Congress had been already established.

Uninfluenced by considerations of personal regard, Washington could not be induced to change men whom he found in place, if worthy of being

employed, and where the man who had filled such office in the former state of things was unexceptionable in his conduct and character he was uniformly reappointed. In deciding between competitors for vacant offices the law he prescribed for his government was to regard the fitness of candidates for the duties they would be required to discharge, and, where an equality in this respect existed, former merits and sufferings in the public service gave claims to preference which could not be overlooked.

In the legislative, as well as in the executive and judicial departments, great respectability of character was also associated with an eminent degree of talents. The constitutional prohibition to appoint any member of the Legislature to an office created during the time for which he had been elected did not exclude men of the most distinguished abilities from the First Congress. Impelled by an anxious solicitude respecting the first measures of the government its zealous friends had pressed into its service, and, in both branches of the Legislature, men were found who possessed the fairest claims to the public confidence.

From the duties attached to his office the Vice-President of the United States and President of the Senate, though not a member of the Legislature, was classed, in the public mind, with that department not less than with the executive. Elected by the whole people of America in common with the President he could not fail to be taken from the most distinguished citizens and to add to the dignity of the body over which he presided.

John Adams was one of the earliest and most ardent patriots of the Revolution. Bred to the bar, he had necessarily studied the constitution of his country and was among the most determined assertors of its rights. Active in guiding that high spirit which animated all New England, he became a member of the Congress of 1774 and was among the first who dared to avow sentiments in favor of independence. In that body he soon attained considerable eminence, and, at an early stage of the war, was chosen one of the commissioners to whom the interests of the United States in Europe were confided. In his diplomatic character he had contributed greatly to those measures which drew Holland into the war; had negotiated the treaty between the United States and the Dutch Republic, and had, at critical points of time, obtained loans of money which were of great advantage to his country. In the negotiations which terminated the war he had also rendered important services, and, after the ratification of the

definitive articles of peace, had been deputed to Great Britain for the purpose of effecting a commercial treaty with that nation. The political situation of America having rendered this object unattainable he solicited leave to return, and arrived in the United States soon after the adoption of the constitution.

As a statesman John Adams had at all times ranked high in the estimation of his countrymen. He had improved a sound understanding by extensive political and historical reading, and perhaps no American had reflected more profoundly on the subject of government. The exalted opinion he entertained of his own country was flattering to his fellow-citizens, and the purity of his mind, the unblemished integrity of a life spent in the public service, had gained him their confidence.

A government, supported in all its departments by so much character and talent, at the head of which was placed a man whose capacity was undoubted, whose life had been one great and continued lesson of disinterested patriotism, and for whom almost every bosom glowed with an attachment bordering on enthusiasm, could not fail to make a rapid progress in conciliating the affection of the people. That all hostility to the constitution should subside, that public measures should receive universal approbation, that no particular disgusts and individual irritations should be excited, were expectations which could not reasonably be indulged. Exaggerated accounts were indeed occasionally circulated of the pomp and splendor which were affected by certain high officers of the monarchical tendencies of particular institutions and of the dispositions which prevailed to increase the powers of the executive. That the doors of the Senate were closed and that a disposition had been manifested by that body to distinguish the President of the United States by a title, gave considerable umbrage, and were represented as evincing inclinations in that branch of the Legislature unfriendly to republicanism. The exorbitance of salaries was also a subject of some declamation, and the equality of commercial privileges with which foreign bottoms entered American ports, was not free from objection. But the apprehensions of danger to liberty from the new system, which had been impressed on the minds of well-meaning men, were visibly wearing off; the popularity of the administration was communicating itself to the government, and the materials with which the discontented were furnished could not yet be efficaciously employed.

Toward the close of the session a report on a petition which had been presented at an early period by the creditors of the public residing in the State of Pennsylvania was taken up in the House of Representatives. Though many considerations rendered a postponement of this interesting subject necessary two resolutions were passed: the one, "declaring that the House considered an adequate provision for the support of the public credit, as a matter of high importance to the national honor and prosperity," and the other, directing "the Secretary of the Treasury to prepare a plan for that purpose, and to report the same to the House at its next meeting."

On the 29th of September (1789) Congress adjourned to the first Monday in the succeeding January (1790).

Throughout the whole of this laborious and important session perfect harmony subsisted between the executive and the Legislature, and no circumstance occurred which threatened to impair it. The modes of communication between the departments of government were adjusted in a satisfactory manner, and arrangements were made on some of those delicate points in which the Senate participate of executive power.

Washington's own views of the proceedings of Congress are expressed in the following extract from a letter to a friend:

"That Congress does not proceed with all that dispatch which people at a distance expect, and which, were they to hurry business, they possibly might, is not to be denied. That measures have been agitated which are not pleasing to Virginia—and others, pleasing perhaps to her, but not to some other States—is equally unquestionable. Can it well be otherwise in a country so extensive, so diversified in its interests? And will not these different interests naturally produce—in an assembly of representatives who are to legislate for, and to assimilate and reconcile them to, the general welfare—long, warm, and animated debates? Most assuredly they will, and if there was the same propensity in mankind for investigating the motives as there is for censuring the conduct of public characters, it would be found that the censure so freely bestowed is oftentimes unmerited and uncharitable. For instance, the condemnation of Congress for sitting only four hours in the day. The fact is, by the established rules of the House of Representatives, no committee can sit whilst the House is sitting, and that is, and has been for a considerable time, from 10 o'clock in the forenoon until 3, often later, in the afternoon, before and after which the business is

going on in committees. If this application is not as much as most constitutions are equal to, I am mistaken.

"Many other things, which undergo malignant constructions, would be found, upon a candid examination, to wear a better face than is given to them. The misfortune is that the enemies to the government, always more active than its friends and always upon the watch to give it a stroke, neglect no opportunity to aim one. If they tell truth it is not the whole truth, by which means one side only of the picture is exhibited, whereas, if both sides were seen it might, and probably would, assume a different form in the opinion of just and candid men, who are disposed to measure matters by a continental scale.

"I do not mean, however, from what I have here said, to justify the conduct of Congress in all its movements, for some of these movements, in my opinion, have been injudicious, and others unreasonable; whilst the questions of assumption, residence, and other matters, have been agitated with a warmth and intemperance, with prolixity and threats, which, it is to be feared, have lessened the dignity of that body and decreased that respect which was once entertained for it. And this misfortune is increased by many members, even among those who wish well to the government, ascribing, in letters to their respective States, when they are defeated in a favorite measure, the worst motives for the conduct of their opponents, who, viewing matters through another medium, may and do retort in their turn, by which means jealousies and distrusts are spread most impolitically far and wide, and will, it is to be feared, have a most unhappy tendency to injure our public affairs, which, if wisely managed, might make us, as we are now by Europeans thought to be, the happiest people upon earth."

Anxious to visit New England to observe in person the condition of the country and the dispositions of the people toward the government and its measures, the President was disposed to avail himself of the short respite from official cares afforded by the recess of Congress, to make a tour through the eastern States.

His resolution being taken and the executive business which required his immediate personal attendance being dispatched, he commenced his tour on the 15th of October (1789), and, passing through Connecticut and Massachusetts, as far as Portsmouth in New Hampshire, returned by a different route to New York, where he arrived on the 13th of November.

With this visit the President had much reason to be satisfied. To contemplate the theater on which many interesting military scenes had been exhibited, and to review the ground on which his first campaign as Commander-in-Chief of the American army had been made, were sources of rational delight. To observe the progress of society, the improvements in agriculture, commerce, and manufactures, and the temper, circumstances, and dispositions of the people, could not fail to be grateful to an intelligent mind, and an employment in all respects worthy of the chief magistrate of the nation. The reappearance of their general in the high station he now filled brought back to recollection the perilous transactions of the war, and the reception universally given to him attested the unabated love which was felt for his person and character, and indicated unequivocally the growing popularity, at least in that part of the Union, of the government he administered.

The sincerity and warmth with which he reciprocated the affection expressed for his person in the addresses presented to him was well calculated to preserve the sentiments which were generally diffused. "I rejoice with you, my fellow-citizens," said he in answer to an address from the inhabitants of Boston, "in every circumstance that declares your prosperity, and I do so most cordially, because you have well deserved to be happy.

"Your love of liberty, your respect for the law, your habits of industry, and your practice of the moral and religious obligations, are the strongest claims to national and individual happiness; and they will, I trust, be firmly and lastingly established."

But the interchange of sentiments with the companions of his military toils and glory will excite most interest, because on both sides the expressions were dictated by the purest and most delicious feelings of the human heart.

From the Cincinnati of Massachusetts he received the following address: "Amidst the various gratulations which your arrival in this metropolis has occasioned, permit us, the members of the Society of the Cincinnati in this commonwealth, most respectfully to assure you of the ardor of esteem and affection you have so indelibly fixed in our hearts, as our glorious leader in war and illustrious example in peace.

"After the solemn and endearing farewell on the banks of the Hudson, which our anxiety presaged as final, most peculiarly pleasing is the present unexpected meeting. On this occasion we cannot avoid the recollection of the various scenes of toil and danger through which you conducted us, and while we contemplate various trying periods of the war, and the triumphs of peace, we rejoice to behold you, induced by the unanimous voice of your country, en-tering upon other trials and other services alike important, and, in some points of view, equally hazardous. For the completion of the great purposes which a grateful country has assigned you, long, very long, may your invaluable life be preserved. And as the admiring world, while considering you as a soldier, have long wanted a comparison, may your virtue and talents as a statesman leave them without a parallel.

"It is not in words to express an attachment founded like ours. We can only say that, when soldiers, our greatest pride was a promptitude of obedience to your orders; as citizens, our supreme ambition is to maintain the character of firm supporters of that noble fabric of Federal government over which you preside.

"As members of the Society of the Cincinnati it will be our endeavor to cherish those sacred principles of charity and fraternal attachment which our institution inculcates. And while our conduct is thus regulated, we can never want the patronage of the first of patriots and the best of men."

To this address the following answer was returned:

"In reciprocating with gratitude and sincerity the multiplied and affecting gratulations of my fellow-citizens of this commonwealth, they will all of them with justice allow me to say, that none can be dearer to me than the affectionate assurances which you have expressed. Dear, indeed, is the occasion which restores an intercourse with my faithful associates in prosperous and adverse fortune; and enhanced are the triumphs of peace, participated with those whose virtue and valor so largely contributed to procure them. To that virtue and valor your country has confessed her obligations. Be mine the grateful task to add the testimony of a connection which it was my pride to own in the field, and is now my happiness to acknowledge in the enjoyments of peace and freedom.

"Regulating your conduct by those principles which have heretofore governed your actions as men, soldiers, and citizens, you will repeat the obligations conferred on your country, and you will transmit to posterity an example that must command their admiration and grateful praise. Long may you continue to enjoy the endearments of fraternal attachments and the heartfelt happiness of reflecting that you have faithfully done your duty.

"While I am permitted to possess the consciousness of this worth, which has long bound me to you by every tie of affection and esteem, I will continue to be your sincere and faithful friend."

After Washington's return to New York from his tour to the north and east, Mrs. Washington expressed, in the following letter, the gratification and benefit he had derived from his journey. It also presents a delightful view of her feelings and character:

"NEW YORK, *December* 26th, 1789.

"MY DEAR MADAM:—Your very friendly letter, of the 27th of last month, has afforded me much more satisfaction than all the formal compliments and empty ceremonies of mere etiquette could possibly have done. I am not apt to forget the feelings that have been inspired by my former society with good acquaintances, nor to be insensible to their expressions of gratitude to the President of the United States; for you know me well enough to do me the justice to believe that I am only fond of what comes from the heart. Under a conviction that the demonstrations of respect and affection which have been made to the President originate from that source, I cannot deny that I have taken some interest and pleasure in them. The difficulties which presented themselves to view upon his first entering

upon the Presidency, seem thus to be, in some measure, surmounted. It is owing to this kindness of our numerous friends, in all quarters, that my new and unwished-for situation is not indeed a burden to me. When I was much younger, I should probably have enjoyed the innocent gayeties of life as much as most of my age. But I had long since placed all the prospects of my future worldly happiness in the still enjoyments of the fireside at Mount Vernon.

"I little thought, when the war was finished, that any circumstances could possibly have happened which would call the General into public life again. I had anticipated that, from that moment, we should have been left to grow old, in solitude and tranquility, together. That was, my dear madam, the first and dearest wish of my heart; but in that I have been disappointed. I will not, however, contemplate with too much regret disappointments that were inevitable. Though the General's feelings and my own were perfectly in unison with respect to our predilection for private life, yet I cannot blame him for having acted according to his ideas of duty in obeying the voice of his country. The consciousness of having attempted to do all the good in his power, and the pleasure of finding his fellow-citizens so well satisfied with the disinterestedness of his conduct, will doubtless be some compensation for the great sacrifices which I know he has made. Indeed, in his journey from Mount Vernon to this place, in his late tour through the eastern States, by every public and by every private information which has come to him, I am persuaded that he has experienced nothing to make him repent his having acted from what he conceived to be, alone, a sense of indispensable duty. On the contrary, all his sensibility has been awakened in receiving such repeated and unequivocal proofs of sincere regards from all his countrymen.

"With respect to myself, I sometimes think the arrangement is not quite as it ought to have been; that I, who had much rather be at home, should occupy a place with which a great many younger and gayer women would be prodigiously pleased. As my grandchildren and domestic connections make up a great portion of the felicity which I looked for in this world, I shall hardly be able to find any substitute that would indemnify me for the loss of a part of such endearing society. I do not say this because I feel dissatisfied with my present station. No, God forbid! For everybody and everything conspire to make me as contented as possible in it; yet I have seen too much of the vanity of human affairs to expect felicity from the

splendid scenes of public life. I am still determined to be cheerful and to be happy in whatever situation I may be; for I have also learnt from experience that the greater part of our happiness or misery depends upon our dispositions, and not upon our circumstances. We carry the seeds of the one or the other about with us, in our minds, where-so-ever we go. I have two of my grandchildren with me, who enjoy advantages in point of education, and who, I trust, by the goodness of Providence, will continue to be a great blessing to me. My other two grandchildren are with their mother, in Virginia.

"The President's health is quite re-established by his late journey. Mine is much better than it used to be. I am sorry to hear that General Warren has been ill; hope, before this time, that he may be entirely recovered. We should rejoice to see you both. To both, I wish the best of Heaven's blessings; and am, my dear madam, with esteem and regard, your friend and humble servant,

"M. WASHINGTON."

Soon after his return to New York, after his visit to the eastern States, the President was informed of the ill success which had attended his first attempt to negotiate a peace with the Creek Indians. General Lincoln, Mr. Griffin, and Colonel Humphreys had been deputed on this mission, and had met M'Gillivray with several other chiefs, and about 2,000 men, at Rock Landing, on the Oconee, on the frontiers of Georgia. The treaty commenced with favorable appearances, but was soon abruptly broken off by M'Gillivray. Some difficulties arose on the subject of a boundary, but the principal obstacles to a peace were supposed to grow out of his personal interests, and his connections with Spain.

This intelligence was more than counterbalanced by the accession of North Carolina to the Union. In the month of November a second convention had assembled under the authority of the Legislature of that State, and the constitution was adopted by a great majority.

We embrace the occasion afforded by the interval between the two sessions of Congress to insert some further notices of Washington's mode of life in New York, as well as of his personal appearance.

The manner of living observed by President Washington has been described in the following speech, delivered by Mr. Stuyvesant, the president of the New York Historical society, at the dinner on the occasion of the jubilee celebration, in the city of New York, April 30, 1839.

"It cannot be expected, at this time and place, that any allusion should be made to the public character of Washington; we are all in possession of his history, from the dawn of life to the day that Mount Vernon was wrapped in sable; and, after the exercises of this morning, if any attempt to portray his political or military life were made, it would only be the glimmering light of a feeble star succeeding the rays of a meridian sun.

"But the occasion affords an opportunity of congratulating the small number of gentlemen present, who enjoyed the privilege of participating in the ceremonies of the 30th of April, 1789; they will recall to their memories the spontaneous effusions of joy that pervaded the breasts of the people who on that occasion witnessed the organization of a constitutional government, formed by intelligent freemen, and consummated by placing at its head the man in whom their affections were concentrated as the father of their country.

"Washington's residence in this city, after his inauguration, was limited to about two years. His deportment in life was not plain, nor was it at all pompous, for no man was more devoid of ostentation than himself, his style, however, gave universal satisfaction to all classes in the community, and, his historian has informed us, was not adopted for personal gratification, but from a devotion to his country's welfare. Possessing a desirable stature, an erect frame, and, superadded, a lofty and sublime countenance, he never appeared in public without arresting the reverence and admiration of the beholder; and the stranger who had never before seen him, was at the first impression convinced it was the President who delighted him.

"He seldom walked in the street; his public recreation was in riding. When accompanied by Mrs. Washington, he rode in a carriage drawn by six horses, with two outriders who wore rich livery, cocked hats, with cockades and powder. When he rode on horseback he was joined by one or more of the gentlemen of his family and attended by his outriders. He always attended Divine service on Sundays. His carriage on those occasions contained Mrs. Washington and himself, with one or both of their

grandchildren and was drawn by two horses, with two footmen behind; it was succeeded by a post-chaise, accommodating two gentlemen of his household. On his arrival in the city the only residence that could be procured was a house in Cherry street, long known as the mansion of the Franklin family, but in a short time afterwards he removed to and occupied the house in Broadway, now Bunker's hotel.

"Washington held a levee once a week, and, from what is now recollected, they were generally well attended, but confined to men in public life and gentlemen of leisure, for at that day it would have been thought a breach of decorum to visit the President of the United States in dishabille.

"The arrival of Washington, in 1789, to assume the reins of government, was not his first entry into this city, accompanied with honor to himself and glory to this country. This was on the 24th of November, 1783, and here again, I must observe, the number present who witnessed the ceremonies of that day, must, indeed, be very limited; on that day he made his triumphal entry, not to sway the sceptre, but to lay down his sword, not for personal aggrandizement, but to secure the happiness of his countrymen. He early in the morning left Harlem and entered the city through what is now called the Bowery; he was escorted by cavalry and infantry and a large concourse of citizens, on horseback and on foot, in plain dress. The latter must have been an interesting sight to those of mature age who were capable of comprehending their merit. In their ranks were seen men with patched elbows, odd buttons on their coats and unmatched buckles in their shoes; they were not, indeed, Falstaff's company of scarecrows, but the most respectable citizens who had been in exile, and endured privations we know not of, for seven long and tedious years."

On that occasion, and on his arrival in 1789, Washington was received, as is well known, by the elder Clinton, who was at both periods Governor of the State.

In the following extract, from a reliable source, we have a fine description of the effect produced by Washington's personal appearance and manners on the mind of a highly intelligent observer:

"The beautiful effusion which the reader will find below is the production of the chaste and classic mind of the late venerable and distinguished senator from Rhode Island, Mr. Robbins, and was occasioned by the

following circumstances. During the session of 1837-8, Mr. Webster entertained a large party of friends at dinner, among them the venerable senator we have named. The evening passed off with much hilarity, enlivened with wit and sentiment, but, during the greater part of the time, Mr. Robbins maintained that grave but placid silence which was his habit. While thus apparently abstracted, someone suddenly called on him for a toast, which call was seconded by the company. He rose, and in his surprise asked if they were serious in making such a demand of so old a man, and being assured that they were, he said, if they would suspend their hilarity for a few moments, he would give them a toast and preface it with a few observations. Having thus secured a breathless stillness, he went on to remark, that they were then on the verge of the 22d of February, the anniversary of the birth of the great patriot and statesman of our country, whom all delighted to remember and to honor, and he hoped he might be allowed the privilege of an aged man to recur, for a few moments, to past events connected with his character and history. He then proceeded and delivered in the most happy and impressive manner the beautiful speech which now graces our columns. The whole company were electrified by his patriotic enthusiasm, and one of the guests, before they separated, begged that he would take the trouble to put on paper what he had so happily expressed and furnish a copy for publication. Mr. Robbins obligingly complied with this request on the following day, but by some accident the manuscript got mislaid and eluded all search for it until a few days ago, when it was unexpectedly recovered, and is now presented to our readers.

"On the near approach of that calendar-day which gave birth to Washington, I feel rekindling within me some of those emotions always connected with the recollection of that hallowed name. Permit me to indulge them, on this occasion, for a moment, in a few remarks, as preliminary to a sentiment which I shall beg leave to propose.

"I consider it as one of the consolations of my age, that I am old enough and fortunate enough to have seen that wonderful man. This happiness is still common to so many yet among the living, that less is thought of it now than will be in after-times; but it is no less a happiness to me on that account.

"While a boy at school, I saw him for the first time; it was when he was passing through New England, to take command in chief of the American

armies at Cambridge. Never shall I forget the impression his imposing presence then made upon my young imagination, so superior did he seem to me to all that I had seen or imagined of the human form for striking effect. I remember with what delight, in my after studies, I came to the line in Virgil that expressed all the enthusiasm of my own feelings, as inspired by that presence, and which I could not often enough repeat:

"I saw him again at his interview with Rochambeau, when they met to settle the plan of combined operations between the French fleet and the American armies against the British on the Chesapeake, and then I saw the immense crowd drawn together from all the neighboring towns, to get, if possible, one look at the man who had throned himself in every heart. Not one of that immense crowd doubted the final triumph of his country in her arduous conflict, for everyone saw, or thought he saw, in Washington, her guardian angel, commissioned by Heaven to insure her that triumph. 'Nil desperandum' was the motto with everyone.

"In after-life, when the judgment corrects the extravagance of early impressions, I saw him on several occasions, but saw nothing to admonish me of any extravagance in my early impressions. "Credo equidem, nee vana fides, genus esse Deorum." {10}

""Nil desperandum, Teucro duce, et auspice Teucro." {11} The impression was still the same; I had the same overpowering sense of standing in the presence of some superior being.

"It is indeed remarkable, and I believe unique, in the history of men, that Washington made the same impression upon all minds, at all places, and at once. When his fame first broke upon the world, it spread at once over the whole world. By the consent of mankind, by the universal sentiment, he was placed at the head of the human species; above all envy, because above all emulation; for no one then pretended, or has pretended to be—at least who has been allowed to be—the co-rival of Washington in fame.

"When the great Frederick of Prussia sent his portrait to Washington, with this inscription upon it—"From the oldest general in Europe to the greatest general in the world," he did but echo the sentiment of all the chivalry of Europe. Nor was the sentiment confined to Europe, nor to the bounds of civilization; for the Arab of the desert talked of Washington in his tent; his name wandered with the wandering Scythian, and was cherished by him as a household word in all his migrations. No clime was so

barbarous as to be a stranger to the name, but everywhere, and by all men, that name was placed at the same point of elevation, and above compare. As it was in the beginning, so it is now; of the future we cannot speak with certainty. Some future age, in the endless revolutions of time, may produce another Washington, but the greater probability is, that he is destined to remain forever, as he now is, the Phoenix of human kind.

"What a possession to his country is such a fame! Such a *"Clarum et venerabile nomen gentibus?"* {12}

"To all his countrymen it gives, and forever will give, a passport to respect wherever they go, to whatever part of the globe, for his country is in every other identified with that fame.

"What, then, is incumbent upon us, his countrymen? Why, to be such a people as shall be worthy of such a fame—a people of whom it shall be said, *"No wonder such a people have produced such a man as Washington."* I give you, therefore, this sentiment:

"The memory of Washington: May his countrymen prove themselves a people worthy of his fame."

1. Footnote: Memoir of Martha Washington in Longacre's Gallery.

2. Footnote: Mrs. Ellet, *"Women of the Revolution"*

3. Footnote: One of the first topics of debate in Congress was the title by which the President should be addressed. Such title as *"His Highness," "His Mightiness,"* etc., having been discussed, it was finally and very properly determined that the title of *"President of the United States"* should be used; and it was accordingly used in the answers to the inaugural address. No title could be more dignified.

4. Footnote: Marshall

5. Footnote: Pitkin.

6. Footnote: Tucker's *"Life of Jefferson."*

7. Footnote: *"Essay on the Character and Influence of Washington."*

8. Footnote: *"Washington's Writings,"* vols. IX, X.

9. Footnote: Marshall.

10. Footnote: I verily believe, nor is my confidence unfounded, that he is of Divine descent.

11. Footnote: Let us never despair, with Teucer to lead us, and under Teucer's auspices.

12. Footnote: A name, illustrious and venerable among the nations!



CHAPTER III. — THE PUBLIC CREDIT ESTABLISHED. 1789-1790.

During the recess of Congress Washington generally visited Mount Vernon, but, after the rising of the first Congress under the constitution, his visit to New England consumed so much time that he remained in New York till Congress reassembled. His eastern tour commenced on the 15th of October, as we have already seen, and ended on the 13th of November. As Congress was to meet on the 1st of January, 1790, he had no time to visit Mount Vernon. During the short time which elapsed before that day he was very earnestly engaged in the duties of his office and in correspondence with public men on political affairs. One of his letters, addressed to the Emperor of Morocco, is curious, as showing the tact with which he accommodated his style to the comprehension of the oriental sovereign. It was written in consequence of an intimation from Mr. Chiappe, the American agent at Mogadore, that the emperor was not well pleased at receiving no acknowledgment from the government in respect to the treaty with Morocco of the 28th of June, 1786, his subsequent faithful observance of the same, as well as his good offices in favor of the Americans with the bashaws of Tunis and Tripoli. The letter is as follows:

"GREAT AND MAGNANIMOUS FRIEND:

"Since the date of the last letter which the late Congress by their President addressed to your Imperial Majesty, the United States of America have thought proper to change their government and to institute a new one, agreeably to the constitution, of which I have the honor of herewith enclosing a copy. The time necessarily employed in the arduous task and the derangements occasioned by so great, though peaceable, a revolution, will apologize and account for your Majesty's not having received those regular advices and marks of attention from the United States, which the friendship and magnanimity of your conduct toward them afforded reason to expect.

"The United States having unanimously appointed me to the supreme executive authority in this nation, your Majesty's letter of the 17th of August, 1788, which, by reason of the dissolution of the late government, remained unanswered, has been delivered to me. I have also received the letters which your Imperial Majesty has been so kind as to write, in favor of the United States, to the bashaws of Tunis and Tripoli, and I present to you the sincere acknowledgments and thanks of the United States for this important mark of your friendship for them.

"We greatly regret that the hostile disposition of those regencies toward this nation, who have never injured them, is not to be removed on terms in our power to comply with. Within our territories there are no mines either of gold or silver, and this young nation, just recovering from the waste and desolation of a long war, has not as yet had time to acquire riches by agriculture and commerce. But our soil is bountiful and our people industrious, and we have reason to flatter ourselves that we shall gradually become useful to our friends.

"The encouragement which your Majesty has been pleased generously to give to our commerce with your dominions, the punctuality with which you have caused the treaty with us to be observed, and the just and generous measures taken in the case of Captain Proctor, make a deep impression on the United States, and confirm their respect for, and attachment to, your Imperial Majesty.

"It gives me pleasure to have this opportunity of assuring your Majesty that, while I remain at the head of this nation, I shall not cease to promote every measure that may conduce to the friendship and harmony which so happily subsist between your empire and them, and shall esteem myself happy on every occasion of convincing your Majesty of the high sense which, in common with the whole nation, I entertain of the magnanimity, wisdom, and benevolence of your Majesty. In the course of the approaching winter the national Legislature, which is called by the former name of Congress, will assemble, and I shall take care that nothing be omitted that may be necessary to cause the correspondence between our countries to be maintained and conducted in a manner agreeable to your Majesty and satisfactory to all parties concerned in it.

"May the Almighty bless your Imperial Majesty—our great and magnanimous friend—with his constant guidance and protection.

"Written at the city of New York, the 1st day of December, 1789."

In December, 1789, Washington was requested by Mr. Joseph Willard, the president of Harvard University, to sit to Mr. Savage for his portrait, to be placed in the philosophy chamber of the university. Washington promptly replied to the letter of the president, and the portrait was painted by Mr. Savage, and deposited in the university.

On the 8th of January, 1790, the President met both houses of Congress in the Senate chamber. In his speech, which was delivered from the chair of the Vice-President, after congratulating Congress on the accession of the important State of North Carolina to the Union and on the prosperous aspect of American affairs, he proceeded to recommend certain great objects of legislation to their more especial consideration.

"Among the many interesting objects," continued the speech, "which will engage your attention, that of providing for the common defense will merit your particular regard. To be prepared for war is one of the most effectual means of preserving peace.

"A free people ought not only to be armed but disciplined, to which end a uniform and well-digested plan is requisite, and their safety and interest require that they should promote such manufactories as tend to render them independent on others for essential, particularly for military, supplies."

As connected with this subject a proper establishment for the troops which they might deem indispensable, was suggested for their mature deliberation, and the indications of a hostile temper given by several tribes of Indians, were considered as admonishing them of the necessity of being prepared to afford protection to the frontiers and to punish aggression.

The interests of the United States were declared to require that the means of keeping up their intercourse with foreign nations should be provided, and the expediency of establishing a uniform rule of naturalization was suggested.

After expressing his confidence in their attention to many improvements essential to the prosperity of the interior, the President added: "Nor am I less persuaded that you will agree with me in opinion that there is nothing which can better deserve your patronage than the promotion of science and literature. Knowledge is in every country the surest basis of public happiness. In one, in which the measures of government receive their impression so immediately from the sense of the community as in ours, it is proportionally essential. To the security of a free constitution it contributes in various ways, by convincing those who are entrusted with the public administration that every valuable end of government is best answered by the enlightened confidence of the people, and by teaching the people themselves to know and to value their own rights; to discern and provide against invasions of them; to distinguish between oppression and the necessary exercise of lawful authority—between burdens proceeding from a disregard to their convenience, and those resulting from the inevitable exigencies of society; to discriminate the spirit of liberty from that of licentiousness, cherishing the first, avoiding the last, and uniting a speedy but temperate vigilance against encroachments, with an inviolable respect to the laws.

"Whether this desirable object will be best promoted by affording aids to seminaries of learning already established by the institution of a national university or by any other expedients, will be well worthy of a place in the deliberations of the Legislature."

Addressing himself then particularly to the representatives, he said: "I saw with peculiar pleasure, at the close of the last session, the resolution entered into by you, expressive of your opinion that an adequate provision for the support of the public credit is a matter of high importance to the national honor and prosperity. In this sentiment I entirely concur, and to a perfect confidence in your best endeavors to devise such a provision as will be truly consistent with the end, I add an equal reliance on the cheerful cooperation of the other branch of the Legislature. It would be superfluous to specify inducements to a measure in which the character and permanent interests of the United States are so obviously and so deeply concerned, and which has received so explicit a sanction from your declaration."

Addressing himself again to both houses he observed that the estimates and papers respecting the objects particularly recommended to their

attention would be laid before them, and concluded with saying: "The welfare of our country is the great object to which our cares and efforts ought to be directed, and I shall derive great satisfaction from a cooperation with you in the pleasing though arduous task of insuring to our fellow-citizens the blessings which they have a right to expect from a free, efficient, and equal government."

The answers of both houses were indicative of the harmony which subsisted between the executive and legislative departments.

Congress had been so occupied during its first session with those bills which were necessary to bring the new system into full operation and to create an immediate revenue, that some measures which possessed great and pressing claims to immediate attention had been unavoidably deferred. The neglect under which the creditors of the public had been permitted to languish could not fail to cast an imputation on the American republic, and had been sincerely lamented by the wisest among those who administered the former government. The power to comply substantially with the engagements of the United States being at length conferred on those who were bound by them, it was confidently expected by the friends of the constitution that their country would retrieve its reputation, and that its fame would no longer be tarnished with the blots which stain a faithless people.

On the 9th of January (1790), a letter from Mr. Hamilton, the Secretary of the Treasury, to the Speaker of the House of Representatives, was read, stating that, in obedience to the resolution of the 21st of September (1789), he had prepared a plan for the support of public credit, which he was ready to report when the House should be pleased to receive it, and, after a short debate in which the personal attendance of the secretary, for the purpose of making explanations, was urged by some and opposed by others, it was resolved that the report should be received in writing on the succeeding Thursday.

Availing himself of the latitude afforded by the terms of the resolution under which he acted, the secretary had introduced into his report an able and comprehensive argument elucidating and supporting the principles it contained. After displaying, with strength and perspicuity, the justice and the policy of an adequate provision for the public debt, he proceeded to discuss the principles on which it should be made.

"It was agreed," he said, "by all, that the foreign debt should be provided for according to the precise terms of the contract. It was to be regretted that, with respect to the domestic debt, the same unanimity of sentiment did not prevail."

The first point on which the public appeared to be divided, involved the question, "whether a discrimination ought not to be made between original holders of the public securities and present possessors by purchase." After reviewing the arguments generally urged in its support, the secretary declared himself against this discrimination. He deemed it "equally unjust and impolitic, highly injurious even to the original holders of public securities, and ruinous to public credit." To the arguments with which he enforced these opinions, he added the authority of the government of the Union. From the circular address of Congress to the States of the 26th of April, 1783, accompanying their revenue system of the 18th of the same month, passages were selected indicating, unequivocally, that in the view of that body the original creditors, and those who had become so by assignment, had equal claims upon the nation.

After reasoning at great length against a discrimination between the different creditors of the Union, the secretary proceeded to examine whether a difference ought to be permitted to remain between them and the creditors of individual States.

Both descriptions of debt were contracted for the same objects and were in the main the same. Indeed, a great part of the particular debts of the States had arisen from assumptions by them on account of the Union, and it was most equitable that there should be the same measure of retribution for all. There were many reasons, some of which were stated, for believing this would not be the case, unless the State debts should be assumed by the nation.

In addition to the injustice of favoring one class of creditors more than another which was equally meritorious, many arguments were urged in support of the policy of distributing to all with an equal hand from the same source.

After an elaborate discussion of these and some other points connected with the subject, the secretary proposed that a loan should be opened to the full amount of the debt, as well of the particular States as of the Union.

The terms to be offered were—

First. That for every \$100 subscribed payable in the debt, as well interest as principal, the subscriber should be entitled to have two-thirds funded on a yearly interest of six per cent, (the capital redeemable at the pleasure of government by the payment of the principal), and to receive the other third in lands of the western territory at their then actual value. Or,

Secondly. To have the whole sum funded at a yearly interest of four per cent., irredeemable by any payment exceeding five dollars per annum both on account of principal and interest, and to receive as a compensation for the reduction of interest, fifteen dollars and eighty cents, payable in lands as in the preceding case. Or,

Thirdly. To have sixty-six and two-thirds of a dollar funded at a yearly interest of six per cent., irredeemable also by any payment exceeding four dollars and two-thirds of a dollar per annum on account both of principal and interest, and to have at the end of ten years twenty-six dollars and eighty-eight cents funded at the like interest and rate of redemption.

In addition to these propositions, the creditors were to have an option of vesting their money in annuities on different plans, and it was also recommended to open a loan at five per cent, for ten millions of dollars, payable one-half in specie and the other half in the debt, irredeemable by any payment exceeding six dollars per annum both of principal and interest.

By way of experiment, a tontine, on principles stated in the report, was also suggested.

The secretary was restrained from proposing to fund the whole debt immediately at the current rate of interest, by the opinion, "that although such a provision might not exceed the abilities of the country, it would require the extension of taxation to a degree and to objects which the true interests of the creditors themselves would forbid. It was therefore to be hoped and expected that they would cheerfully concur in such modifications of their claims, on fair and equitable principles as would facilitate to the government an arrangement substantial, durable, and satisfactory to the community. Exigencies might ere long arise which would call for resources greatly beyond what was now deemed sufficient for the current service, and should the faculties of the country be exhausted or even strained to provide for the public debt, there could be less reliance on the sacredness of the provision.

"But while he yielded to the force of these considerations, he did not lose sight of those fundamental principles of good faith which dictate that every practicable exertion ought to be made, scrupulously to fulfill the engagements of government; that no change in the rights of its creditors ought to be attempted without their voluntary consent, and that this consent ought to be voluntary in fact, as well as in name. Consequently, that every proposal of a change ought to be in the shape of an appeal to their reason and to their interest, not to their necessities. To this end, it was requisite that a fair equivalent should be offered for what might be asked to be given up and unquestionable security for the remainder." This fair equivalent for the proposed reduction of interest was, he thought, offered in the relinquishment of the power to redeem the whole debt at pleasure.

That a free judgment might be exercised by the holders of public securities in accepting or rejecting the terms offered by the government, provision was made in the report for paying to nonsubscribing creditors a dividend of the surplus which should remain in the treasury after paying the interest of the proposed loans; but, as the funds immediately to be provided were calculated to produce only four per cent. on the entire debt, the dividend, for the present, was not to exceed that rate of interest.

To enable the treasury to support this increased demand upon it, an augmentation of the duties on imported wines, spirits, tea, and coffee was proposed and a duty on homemade spirits was also recommended.

This celebrated report, which has been alike the fruitful theme of extravagant praise and bitter censure, merits the more attention, because the first regular and systematic opposition to the principles on which the affairs of the Union were administered, originated in the measures which were founded on it.

On the 28th of January (1790), says Marshall, this subject was taken up, and, after some animadversions on the speculations in the public debt to which the report, it was said, had already given birth, the business was postponed until the 8th of February, when it was again brought forward.

Several resolutions affirmative of the principles contained in the report, were moved by Mr. Fitzsimmons. To the first, which respected a provision for the foreign debt, the House agreed without a dissenting voice. The second, in favor of appropriating permanent funds for payment of the

interest on the domestic debt and for the gradual redemption of the principal, gave rise to a very animated debate. {1}

Mr. Jackson declared his hostility to funding systems generally. To prove their pernicious influence, he appealed to the histories of Florence, Genoa, and Great Britain, and contending that the subject ought to be deferred until North Carolina should be represented, moved that the committee should rise. This question being decided in the negative, Mr. Scott declared the opinion that the United States were not bound to pay the domestic creditors the sums specified in the certificates of debts in their possession. He supported this opinion by urging, not that the public had received less value than was expressed on the face of the paper which had been issued, but that those to whom it had been delivered by parting with it at two shillings and sixpence in the pound, had themselves fixed the value of their claims, and had manifested their willingness to add to their other sacrifices this deduction from their demand upon the nation. He therefore moved to amend the resolution before the committee so as to require a resettlement of the debt.

The amendment was opposed by Mr. Boudinot, Mr. Lawrence, Mr. Ames, Mr. Sherman, Mr. Hartley, and Mr. Goodhue. They stated at large the terms on which the debt had been contracted, and urged the confidence which the creditors had a right to place in the government for its discharge according to settlements already made, and acknowledgments already given. The idea that the legislative body could diminish an ascertained debt was reprobated with great force, as being at the same time unjust, impolitic, and subversive of every principle on which public contracts are founded. The evidences of debt possessed by the creditors of the United States were considered as public bonds, for the redemption of which the property and the labor of the people were pledged.

After the debate had been protracted to some length, the question was taken on Mr. Scott's amendment, and it passed in the negative.

Mr. Madison then rose, and, in an eloquent speech, replete with argument, proposed an amendment to the resolution, the effect of which was to discriminate between the public creditors, so as to pay the present holder of assignable paper the highest price it had borne in the market, and give the residue to the person with whom the debt was originally contracted. Where the original creditor had never parted with his claim, he

was to receive the whole sum acknowledged to be due on the face of the certificate.

This motion was supported by Mr. Jackson, Mr. White, Mr. Moore, Mr. Page, Mr. Stone, Mr. Scott, and Mr. Seney.

It was opposed with great earnestness and strength of argument by Mr. Sedgewic, Mr. Lawrence, Mr. Smith, of South Carolina, Mr. Ames, Mr. Gerry, Mr. Boudinot, Mr. Wadsworth, Mr. Goodhue, Mr. Hartley, Mr. Bland, Mr. Benson, Mr. Burke, and Mr. Livermore.

The argument was ably supported on both sides, was long, animated, and interesting. At length the question was put and the amendment was rejected by a great majority.

This discussion deeply engaged the public attention. The proposition was new and interesting. That the debt ought to be diminished for the public advantage, was an opinion which had frequently been advanced, and was maintained by many. But a reduction from the claims of its present holders for the benefit of those who had sold their rights, was a measure which saved nothing to the public purse, and was therefore recommended only by considerations, the operation of which can never be very extensive. Against it were arrayed all who had made purchases, and a great majority of those who conceived that sound policy and honest dealing require a literal observance of public contracts.

Although the decision of Congress against a discrimination in favor of the original creditor produced no considerable sensation, the determination on that part of the secretary's report which was the succeeding subject of deliberation, affecting political interests and powers which are never to be approached without danger, seemed to unchain all those fierce passions which a high respect for the government, and for those who administered it, had in a great measure restrained.

The manner in which the several States entered into and conducted the war of the Revolution, is well known. Acting in some respects separately, and in others conjointly, for the attainment of a common object, their resources were exerted, sometimes under the authority of Congress, sometimes under the authority of the local government, to repel the enemy wherever he appeared. The debt incurred in support of the war was, therefore, in the first instance, contracted partly by Congress and partly by the States. When the system of requisitions was adopted, the transactions of

the Union were carried on almost entirely through the agency of the States, and, when the measure of compensating the army for the depreciation of their pay became necessary, this burden, under the recommendation of Congress, was assumed by the respective States. Some had funded this debt, and paid the interest upon it. Others had made no provision for the interest; but all, by taxes, paper money, or purchase, had in some measure reduced the principal. In their exertions some degree of inequality had obtained, and they looked anxiously to a settlement of accounts, for the ascertainment of claims which each supposed itself to have upon the Union. Measures to effect this object had been taken by the former government, but they were slow in their progress, and intrinsic difficulties were found in the thing itself, not easily to be overcome.

Hamilton proposed to assume these debts and to fund them in common with that which continued to be the proper debt of the Union.

The resolution which comprehended this principle of the report was vigorously opposed.

It was contended that the general government would acquire an undue influence, and that the State governments would be annihilated by the measure. Not only would all the influence of the public creditors be thrown into the scale of the former, but it would absorb all the powers of taxation, and leave to the latter only the shadow of a government. This would probably terminate in rendering the State governments useless, and would destroy the system so recently established. The Union, it was said, had been compared to a rope of sand, but gentlemen were cautioned not to push things to the opposite extreme. The attempt to strengthen it might be unsuccessful, and the cord might be strained until it should break.

The constitutional authority of the Federal government to assume the debts of the States was questioned. Its powers, it was said, were specified, and this was not among them.

The policy of the measure, as it affected merely the government of the Union, was controverted, and its justice was arraigned.

On the ground of policy, it was objected that the assumption would impose on the United States a burden, the weight of which was unascertained, and which would require an extension of taxation beyond the limits which prudence would prescribe. An attempt to raise the impost would be dangerous, and the excise added to it would not produce funds

adequate to the object. A tax on real estate must be resorted to, objections to which had been made in every part of the Union. It would be more advisable to leave this source of revenue untouched in the hands of the State governments, who could apply to it with more facility, with a better understanding of the subject, and with less dissatisfaction to individuals, than could possibly be done by the government of the United States.

There existed no necessity for taking up this burden. The State creditors had not required it. There was no petition from them upon the subject. There was not only no application from the States, but there was reason to believe that they were seriously opposed to the measure. Many of them would certainly view it with a jealous—a jaundiced eye. The convention of North Carolina which adopted the constitution had proposed, as an amendment to it, to deprive Congress of the power of interfering between the respective States and their creditors, and there could be no obligation to assume more than the balances which on a final settlement would be found due to creditor States.

That the debt by being thus accumulated would be perpetuated, was also an evil of real magnitude. Many of the States had already made considerable progress in extinguishing their debts, and the process might certainly be carried on more rapidly by them than by the Union. A public debt seemed to be considered by some as a public blessing, but to this doctrine they were not converts. If, as they believed, a public debt was a public evil, it would be enormously increased by adding those of the States to that of the Union.

The measure was unwise, too, as it would affect public credit. Such an augmentation of the debt must inevitably depreciate its value, since it was the character of paper, whatever denomination it might assume, to diminish in value in proportion to the quantity in circulation.

It would also increase an evil which was already sensibly felt. The State debts, when assumed by the continent, would, as that of the Union had already done, accumulate in large cities; and the dissatisfaction excited by the payment of taxes would be increased by perceiving that the money raised from the people flowed into the hands of a few individuals. Still greater mischief was to be apprehended. A great part of this additional debt would go into the hands of foreigners, and the United States would be

heavily burdened to pay an interest which could not be expected to remain in the country.

The measure was unjust, because it was burdening those States which had taxed themselves highly to discharge the claims of their creditors with the debts of those which had not made the same exertions. It would delay the settlement of accounts between the individual States and the United States, and the supporters of the measure were openly charged with intending to defeat that settlement.

It was also said that in its execution the scheme would be found extremely embarrassing, perhaps impracticable. The case of a partial accession to the measure by the creditors, a case which would probably occur, presented a difficulty for which no provision was made, and of which no solution had been given. Should the creditors in some States come into the system, and those in others refuse to change their security, the government would be involved in perplexities from which no means of extricating itself had been shown. Nor would it be practicable to discriminate between the debts contracted for general and for local objects.

In the course of the debate severe allusions were made to the conduct of particular States, and the opinions advanced in favor of the measure were ascribed to local interests.

In support of the assumption, the debts of the States were traced to their origin. America, it was said, had engaged in a war the object of which was equally interesting to every part of the Union. It was not the war of a particular State, but of the United States. It was not the liberty and independence of a part, but of the whole, for which they had contended, and which they had acquired. The cause was a common cause. As brethren, the American people had consented to hazard property and life in its defense. All the sums expended in the attainment of this great object, whatever might be the authority under which they were raised or appropriated, conduced to the same end. Troops were raised, and military stores purchased, before Congress assumed the command of the army or the control of the war. The ammunition which repulsed the enemy at Bunker's Hill was purchased by Massachusetts, and formed a part of the debt of that State.

Nothing could be more erroneous than the principle which had been assumed in argument, that the holders of securities issued by individual

States were to be considered merely as State creditors, as if the debt had been contracted on account of the particular State. It was contracted on account of the Union, in that common cause in which all were equally interested.

From the complex nature of the political system which had been adopted in America, the war was, in a great measure, carried on through the agency of the State governments, and the debts were, in truth, the debts of the Union, for which the States had made themselves responsible. Except the civil list, the whole State expenditure was in the prosecution of the war, and the State taxes had undeniably exceeded the provision for their civil list. The foundation for the several classes of the debt was reviewed in detail, and it was affirmed to be proved from the review, and from the books in the public offices, that, in its origin, a great part of it, even in form, and the whole, in fact, was equitably due from the continent. The States individually possessing all the resources of the nation, became responsible to certain descriptions of the public creditors. But they were the agents of the continent in contracting the debt, and its distribution among them for payment arose from the division of political power which existed under the old confederation. A new arrangement of the system had taken place, and a power over the resources of the nation was conferred on the general government. With the funds the debt also ought to be assumed. This investigation of its origin demonstrated that the assumption was not the creation of a new debt, but the reacknowledgment of liability for an old one, the payment of which had devolved on those members of the system who, at the time, were alone capable of paying it. And thence was inferred not only the justice of the measure, but a complete refutation of the arguments drawn from the constitution. If, in point of fact, the debt was in its origin continental and had been transferred to the States for greater facility of payment, there could be no constitutional objection to restoring its original and real character.

The great powers of war, of taxation, and of borrowing money, which were vested in Congress to pay the debts and provide for the common defense and general welfare of the United States, comprised that in question. There could be no more doubt of their right to charge themselves with the payment of a debt contracted in the past war, than to borrow money for the prosecution of a future war. The impolicy of leaving the public creditors to receive payment from different sources was also strongly

pressed, and the jealousy which would exist between the creditors of the Union and of the States was considered as a powerful argument in favor of giving them one common interest. This jealousy, it was feared, might be carried so far as even to create an opposition to the laws of the Union.

If the State should provide for their creditors, the same sum of money must be collected from the people as would be required if the debt should be assumed, and it would probably be collected in a manner more burdensome than if one uniform system should be established. If all should not make such provision, it would be unjust to leave the soldier of one State unpaid, while the services of the man who fought by his side were amply compensated, and, after having assumed the funds, it would dishonor the general government to permit a creditor, for services rendered or property advanced for the continent, to remain unsatisfied, because his claim had been transferred to the State at a time when the State alone possessed the means of payment. By the injured and neglected creditor such an arrangement might justly be considered as a disreputable artifice.

Instead of delaying, it was believed to be a measure which would facilitate the settlement of accounts between the States. Its advocates declared that they did not entertain and never had entertained any wish to procrastinate a settlement. On the contrary it was greatly desired by them. They had themselves brought forward propositions for that purpose, and they invited their adversaries to assist in improving the plan which had been introduced.

The settlement between the States, it was said, either would or would not be made. Should it ever take place, it would remedy any inequalities which might grow out of the assumption. Should it never take place, the justice of the measure became the more apparent. That the burdens in support of a common war, which from various causes had devolved unequally on the States, ought to be apportioned among them, was a truth too clear to be controverted, and this, if the settlement should never be accomplished, could be effected only by the measure now proposed. Indeed, in any event, it would be the only certain, as well as only eligible plan. For how were the debtor States to be compelled to pay the balances which should be found against them?

If the measure was recommended by considerations which rendered its ultimate adoption inevitable, the present was clearly preferable to any future

time. It was desirable immediately to quiet the minds of the public creditors by assuring them that justice would be done, to simplify the forms of public debt, and to put an end to that speculation which had been so much reprobated and which could be terminated only by giving the debt a real and permanent value.

That the assumption would impair the just influence of the States was controverted with great strength of argument. The diffusive representation in the State Legislatures, the intimate connection between the representative and his constituents, the influence of the State Legislatures over the members of one branch of the national Legislature, the nature of the powers exercise by the State governments, which perpetually presented them to the people in a point of view calculated to lay hold of the public affections, were guarantees that the States would retain their due weight in the political system and that a debt was not necessary to the solidity or duration of their power.

But the argument, it was said, proved too much. If a debt was now essential to the preservation of State authority it would always be so. It must therefore never be extinguished, but must be perpetuated in order to secure the existence of the State governments. If, for this purpose, it was indispensable that the expenses of the Revolutionary War should be borne by the States, it would not be less indispensable that the expenses of future wars should be borne in the same manner. Either the argument was unfounded or the constitution was wrong, and the powers of the sword and the purse ought not to have been conferred on the government of the Union. Whatever speculative opinions might be entertained on this point, they were to administer the government according to the principles of the constitution as it was framed. But, it was added, if so much power followed the assumption as the objection implies, is it not time to ask—is it safe to forbear assuming? If the power is so dangerous it will be so when exercised by the States. If assuming tends to consolidation, is the reverse, tending to disunion, a less weighty objection? If it is answered that the non-assumption will not necessarily tend to disunion, neither, it may be replied, does the assumption necessarily tend to consolidation.

It was not admitted that the assumption would tend to perpetuate the debt. It could not be presumed that the general government would be less

willing than the local governments to discharge it; nor could it be presumed that the means were less attainable by the former than the latter.

It was not contended that a public debt was a public blessing. Whether a debt was to be preferred to no debt was not the question. The debt was already contracted, and the question so far as policy might be consulted, was, whether it was more for the public advantage to give it such a form as would render it applicable to the purposes of a circulating medium, or to leave it a mere subject of speculation, incapable of being employed to any useful purpose. The debt was admitted to be an evil, but it was an evil from which, if wisely modified, some benefit might be extracted, and which, in its present state, could have only a mischievous operation.

If the debt should be placed on adequate funds, its operation on public credit could not be pernicious; in its present precarious condition, there was much more to be apprehended in that respect.

To the objection that it would accumulate in large cities, it was answered it would be a moneyed capital, and would be held by those who chose to place money at interest, but by funding the debt the present possessors would be enabled to part with it at its nominal value, instead of selling it at its present current rate. If it should center in the hands of foreigners, the sooner it was appreciated to its proper standard, the greater quantity of specie would its transfer bring into the United States.

To the injustice of charging those States which had made great exertions for the payment of their debts with the burden properly belonging to those which had not made such exertions, it was answered that every State must be considered as having exerted itself to the utmost of its resources, and that if it could not or would not make provision for creditors to whom the Union was equitably bound, the argument in favor of an assumption was the stronger.

The arguments drawn from local interests were repelled and retorted, and a great degree of irritation was excited on both sides.

After a very animated discussion of several days, the question was taken, and the resolution was carried by a small majority. Soon after this decision, while the subject was pending before the House, the delegates from North Carolina took their seats, and changed the strength of parties. By a majority of two voices, the resolution was recommitted, and, after a long and ardent debate, was negatived by the same majority.

This proposition continued to be supported with a degree of earnestness which its opponents termed pertinacious, but not a single opinion was changed. It was brought forward in the new and less exceptionable form of assuming specific sums from each State. Under this modification of the principle, the extraordinary contributions of particular States during the war, and their exertions since the peace, might be regarded, and the objections to the measure, drawn from the uncertainty of the sum to be assumed, would be removed. But these alterations produced no change of sentiment, and the bill was sent up to the Senate with a provision for those creditors only whose certificates of debt purported to be payable by the Union.

In this state of things the measure is understood to have derived aid from another, which was of a nature strongly to interest particular parts of the Union.

From the month of June, 1783, when Congress was driven from Philadelphia by the mutiny of a part of the Pennsylvania line, the necessity of selecting some place for a permanent residence, in which the government of the Union might exercise sufficient authority to protect itself from violence and insult, had been generally acknowledged. Scarcely any subject had occupied more time, or had more agitated the members of the former Congress than this.

In December, 1784, an ordinance was passed for appointing commissioners to purchase land on the Delaware, in the neighborhood of its falls, and to erect thereon the necessary public buildings for the reception of Congress and the officers of government; but the southern interest had been sufficiently strong to arrest the execution of this ordinance by preventing an appropriation of funds, which required the assent of nine States. Under the existing government, this subject had received the early attention of Congress, and many different situations, from the Delaware to the Potomac inclusive, had been earnestly supported, but a majority of both houses had not concurred in favor of any one place. With as little success, attempts had been made to change the temporary residence of Congress. Although New York was obviously too far to the east, so many conflicting interests were brought into operation whenever the subject was touched, that no motion designating a more central place could succeed. At length, a compact respecting the temporary and permanent seat of government was entered into between the friends of Philadelphia and the Potomac, stipulating that

Congress should adjourn to and hold its sessions in Philadelphia for ten years, during which time buildings for the accommodation of the government should be erected at some place on the Potomac, to which the government should remove at the expiration of the term. This compact having united the representatives of Pennsylvania and Delaware with the friends of the Potomac, in favor both of the temporary and permanent residence which had been agreed on between them, a majority was produced in favor of the two situations, and a bill which was brought into the Senate in conformity with this previous arrangement, passed both houses by small majorities. This act was immediately followed by an amendment to the bill then depending before the Senate for funding the debt of the Union. The amendment was similar in principle to that which had been unsuccessfully proposed in the House of Representatives. By its provisions, \$21,500,000 of the State debts were assumed in specified proportions, and it was particularly enacted that no certificate should be received from a State creditor which could be "ascertained to have been issued for any purpose other than compensations and expenditures for services or supplies toward the prosecution of the late war and the defense of the United States, or of some part thereof, during the same."

When the question was taken in the House of Representatives on this amendment two members, representing districts on the Potomac, who, in all the previous stages of the business, had voted against the assumption, declared themselves in its favor, and thus the majority was changed. {2}

Thus was a measure carried which was supported and opposed with a degree of zeal and earnestness not often manifested, and which furnished presages, not to be mistaken, that the spirit with which the opposite opinions had been maintained, would not yield, contentedly, to the decision of a bare majority. This measure has constituted one of the great grounds of accusation against the first administration of the general government, and it is fair to acknowledge that though, in its progress, it derived no aid from the President, whose opinion remained in his own bosom, it received the full approbation of his judgment.

A bill at length passed both houses, funding the debt upon principles which lessened considerably the weight of the public burdens and was entirely satisfactory to the public creditors. The proceeds of the sales of the lands lying in the western territory and, by a subsequent act of the same

session, the surplus product of the revenue, after satisfying the appropriations which were charged upon it with the addition of \$2,000,000, which the President was authorized to borrow at 5 per cent., constituted a sinking fund to be applied to the reduction of the debt.

The effect of this measure was great and rapid. The public paper suddenly rose and was for a short time above par. The immense wealth which individuals acquired by this unexpected appreciation could not be viewed with indifference. Those who participated in its advantages regarded the author of a system to which they were so greatly indebted, with an enthusiasm of attachment to which scarcely any limits were assigned. To many others this adventitious collection of wealth in particular hands was a subject rather of chagrin than of pleasure, and the reputation which the success of his plans gave to the Secretary of the Treasury was not contemplated with unconcern. As if the debt had been created by the existing government, not by a war which gave liberty and independence to the United States, its being funded was ascribed by many, not to a sense of justice and to a liberal and enlightened policy, but to the desire of bestowing on the government an artificial strength, by the creation of a moneyed interest which would be subservient to its will. The effects produced by giving the debt a permanent value justified the predictions of those whose anticipations had been most favorable. The sudden increase of moneyed capital derived from it invigorated commerce and gave a new stimulus to agriculture.

About this time there was a great and visible improvement in the circumstances of the people. Although the funding system was certainly not inoperative in producing this improvement it cannot be justly ascribed to any single cause. Progressive industry had gradually repaired the losses sustained by the war, and the influence of the constitution on habits of thinking and acting, though silent, was considerable. In depriving the States of the power to impair the obligation of contracts or to make anything but gold and silver a tender in payment of debts, the conviction was impressed on that portion of society which had looked to the government for relief from embarrassment that personal exertions alone could free them from difficulties, and an increased degree of industry and economy was the natural consequence of this opinion. {3}

Various other matters besides those already noticed, occupied the attention of Congress during this laborious session. The question of the slave trade was brought up by a petition from the Quakers in Pennsylvania, Delaware, and other States, and the venerable Dr. Franklin, as president of the Pennsylvania Society for Promoting the Abolition of Slavery, sent in a memorial, early in February, asking the serious attention of Congress to the importance and duty of extending to the negroes the blessings of freedom. The subject was discussed at great length and with much warmth on both sides, and toward the close of March it was resolved, "That Congress have no authority to interfere in the emancipation of slaves, or in the treatment of them within any of the States." Laws for the naturalization of aliens, after two years' residence, for the patenting of useful inventions, and for securing to authors the copyright of their works; and others, regulating the mercantile marine of the Union, in respect to the seamen engaged in it; and forming a groundwork for a criminal code; for the ordering of what was called "the military establishment," only 1,216 rank and file; and for arranging the means of intercourse with the Indians in respect to trade and the acquisition of their hunting-grounds, and with European governments for the larger commerce which required the superintendence of resident ministers—these were duly considered and framed. Much other business was done, such as voting for the public service, under the heads of the civil list, pensions for revolutionary services, the military establishment, lighthouses, embassies, and outstanding debts, the moderate sum of about \$725,000.

Both houses, having returned thanks to the corporation of the city of New York, "for the elegant and convenient accommodations furnished the Congress of the United States," adjourned on the 12th of August (1790), to meet again in December, in the city of Philadelphia.

Washington's old and valued friend, Dr. Franklin, after painful and protracted sufferings, closed a life of four-score and four years on the 17th of April, 1790. He was buried in the cemetery of Christ Church, Philadelphia, and his funeral was attended by more than 20,000 of his fellow-citizens. Congress resolved to wear the customary badge of mourning for one month, "as a mark of veneration due to the memory of a citizen, whose native genius was not more an ornament to human nature than his various exertions of it have been precious to science, to freedom, and to his country." In the National Assembly of France, Mirabeau

eloquently dilated in praise of the illustrious deceased, and Lafayette seconded the motion for a decree, ordering the members to wear the usual badge of mourning for three days, and there was not a land blessed with the light of civilization which did not lament his death and pour forth expressions of sorrow for the loss which not only America, but the world had sustained.

An act was passed by Congress to accept the cession of the claims of the State of North Carolina, to a certain district of western territory, and on the 20th of May, provision was made for its government, under the title of "The Territory of the United States south of the river Ohio."

On the 29th of May, 1790, Rhode Island, having become somewhat more alive to her true interests and to the ill results which must certainly follow her exclusion from the Union, adopted the constitution and cast in her lot with the sister States for the great future which was opening before them all.

A treaty of peace was concluded in August of this year with the Creek Indians which restored tranquility to the people of Georgia. The pacific overtures made to the Indians of the Wabash and the Miamis had not been equally successful. The western frontiers were still exposed to their incursions, and there was much reason to apprehend that the people of Kentucky and of the western counties of the middle States could only be relieved from the horrors of savage warfare by an exertion of the military strength of the Union. In the opinion of the President, the emergency required the immediate employment of a force competent to the object and which should carry terror and destruction into the heart of the hostile settlements. The people of the West, however, declared their opinion in favor of desultory military expeditions, and Congress indulged their wishes. The desire of the executive for a military establishment equal to the exigency was not regarded and the distresses of the frontier inhabitants therefore still continued.

The conduct of Spain in relation to the disputed boundary, and its pretensions to the navigation of the Mississippi, was such as to give ground to fear that its dispositions toward the United States were unfriendly. Between the United States and England the nonexecution of several articles of the treaty of peace still furnished matter for reciprocal crimination which there was the more difficulty in removing because there was no diplomatic

intercourse maintained between them. Under the old government, Mr. Adams' mission had been treated with neglect, and the new administration was not disposed to subject itself to a similar mark of disrespect. Mr. Gouverneur Morris was instructed, as an informal agent to the British government, to sound its views respecting amicable and permanent arrangements of the matters in dispute. But Mr. Morris remarked, "that there never was, perhaps, a moment in which this country (Britain) felt herself greater, and, consequently, it is the most unfavorable moment to obtain advantageous terms from her in any bargain." He conducted his mission with ability and address, but was unable to bring it to a satisfactory conclusion. The communications laid before the American government at the same time by Major Beckwith, an English gentleman, who had come in an informal manner to learn the dispositions of the American government towards England and Spain, between which a rupture was expected, gave Washington an insight of the object of the delays which had been practiced with Mr. Morris. He was persuaded that a disposition existed in the cabinet of London to retain things in their actual situation until the intentions of the American government should be ascertained with respect to the war supposed to be approaching. If America would make a common cause with Great Britain against Spain, the way would be smoothed to the attainment of all their objects, but if America should incline toward Spain, no adjustment of the points of difference between the two nations would be made. He therefore determined to hold himself free to pursue without reproach, in the expected war, such a course as the interest and honor of the United States might dictate. The want of official authenticity in the communications of Mr. Beckwith was, therefore, signified to that gentleman as a reason for reserve on the part of the government and the powers given to Mr. Morris were withdrawn. It was determined that things should remain in their actual situation until a change of circumstances should require a change of conduct. Scarcely had this resolution been adopted when the dispute between Britain and Spain was adjusted, and thus both the fear of inconveniences, and the hope of advantages which might result to America from war between the two powers, were terminated.

By his incessant application to public business and the consequent change of active for sedentary habits, the constitution of the President seemed much impaired and during the second session of Congress he had, for the second time since entering upon the duties of his office, been

attacked by a severe disease, which reduced him to the brink of the grave. Exercise, and a temporary relief from the cares of office, being essential to the restoration of his health, he determined for the short interval afforded by the recess of the Legislature to retire from the fatigues of public life to the tranquil shades of Mount Vernon. Previously, however, he made a visit to Rhode Island, which, not having been a member of the Union at the time of his late tour through New England, had not been visited by him at that time.

His final departure from New York was not less affecting than his arrival had been, when he came to assume the reins of government. "It was always his habit," says Custis in his "Recollections," "to endeavor to avoid the manifestations of affection and gratitude that met him everywhere. He strove in vain—he was closely watched and the people would have their way. He wished to slip off unobserved from New York and thus steal a march upon his old companions in arms. But there were too many of the dear glorious old veterans of the Revolution at that time of day in and near New York to render such an escape possible.

"The baggage had all been packed up; the horses, carriages, and servants ordered to be over the ferry to Paulus Hook by daybreak and nothing was wanting for departure but the dawn. The lights were yet burning, when the President came into the room where his family were assembled, evidently much pleased in the belief that all was right, when, immediately under the windows, the band of the artillery struck up Washington's March. 'There,' he exclaimed, 'it's all over, we are found out. Well, well, they must have their own way.' New York soon after appeared as if taken by storm—troops and persons of all descriptions hurrying down Broadway toward the place of embarkation, all anxious to take a last look on him whom so many could never expect to see again.

"The embarkation was delayed until all the complimentary arrangements were completed. The President, after taking leave of many dear and cherished friends, and many an old companion in arms, stepped into the barge that was to convey him from New York forever. The coxswain gave the word 'let fall;' the spray from the oars sparkled in the morning sunbeams; the bowman shoved off from the pier, and, as the barge swung round to the tide, Washington rose, uncovered, in the stern, to bid adieu to the masses assembled on the shore; he waved his hat, and, in a voice tremulous from emotion, pronounced—Farewell. It may be supposed that

Major Bauman, who commanded the artillery on this interesting occasion, who was first captain of Lamb's regiment, and a favorite officer of the war of the Revolution, would, when about to pay his last respects to his beloved commander, load his pieces with something more than mere blank cartridges. But ah! the thunders of the cannon were completely hushed when the mighty shout of the people arose that responded to the farewell of Washington. Pure from the heart it came, right up to Heaven it went, to call down a blessing upon the Father of his Country.

"The barge had scarcely gained the middle of the Hudson when the trumpets were heard at Paulus Hook, where the Governor and the chivalry of Jersey were in waiting to welcome the chief to those well-remembered shores. Escorts of cavalry relieved each other throughout the whole route up to the Pennsylvania line; every village, and even hamlet, turned out its population to greet with cordial welcome the man upon whom all eyes were fixed and in whom all hearts rejoiced.

"What must have been the recollections that crowded on the mind of Washington during this triumphant progress? Newark, Brunswick, Princeton, Trenton! What a contrast between the glorious burst of sunshine that now illumined and made glad everything around these memorable spots, with the gloomy and desolate remembrances of '76! Then his country's champion, with the wreck of a shattered host, was flying before a victorious and well-appointed foe, while all around him was shrouded in the darkness of despair; now, in his glorious progress over the self-same route, his firm footstep presses upon the soil of an infant empire, reposing in the joys of peace, independence, and happiness.

"Among the many who swelled his triumph, the most endeared to the heart of the chief were the old associates of his toils, his fortunes, and his fame. Many of the Revolutionary veterans were living in 1790, and, by their presence, gave a dignified tone and character to all public assemblages; and when you saw a peculiarly fine-looking soldier in those old days, and would ask: 'To what corps of the American army did you belong?' drawing himself up to his full height, with a martial air, and back of the hand thrown up to his forehead, the veteran would reply: 'Life Guard, your honor.'

"And proud and happy were these veterans in again beholding their own good Lady Washington. Greatly was she beloved in the army. Her many intercessions with the chief for the pardon of offenders—her kindness to the

sick and wounded—all caused her annual arrival in camp to be hailed as an event that would serve to dissipate the gloom of the winter quarters.

"Arrived at the line, the Jersey escort was relieved by the cavalry of Pennsylvania, and, when near to Philadelphia, the President was met by Governor Mifflin and a brilliant cortege of officers, and escorted by a squadron of horse to the city. Conspicuous among the Governors suite, as well for his martial bearing as for the manly beauty of his person, was General Walter Stewart, a son of Erin, and a gallant and distinguished officer of the Pennsylvania line. To Stewart, as to Cadwallader, Washington was most warmly attached; indeed, those officers were among the very choicest of the contributions of Pennsylvania to the army and cause of independence. Mifflin, small in stature, was active, alert, 'every inch a soldier.' He was a patriot of great influence in Pennsylvania in the 'times that tried men's souls,' and nobly did he exert that influence in raising troops, with which to reinforce the wreck of the grand army at the close of the campaign of '76.

"Arrived within the city, the crowd became intense, the President left his carriage and mounted the white charger, and, with the Governor on his right, proceeded to the city tavern in Third street, where quarters were prepared for him, the light infantry, after some time, having opened a passage for the carriages. At the city tavern the President was received by the authorities of Philadelphia, who welcomed the chief magistrate to their city as to his home for the remainder of his Presidential term. A group of old and long-trying friends were also in waiting. Foremost among these, and first to grasp the hand of Washington, was one who was always nearest to his heart, a patriot and public benefactor, Robert Morris.

"After remaining a short time in Philadelphia, the President speeded on his journey to that home where he ever found rest from his weighty labors, and enjoyed the sweets of rural and domestic happiness amid his farms and at his fireside of Mount Vernon."

Whenever Washington was residing at Mount Vernon, he was accustomed to receive visits from his old and intimate friends, and to relieve his mind from the cares of state by lively and familiar conversation, and social and convivial intercourse. On one occasion, some years before the period of which we are now writing, Mr. Drayton and Mr. Izard, of South Carolina, were on a visit to Mount Vernon. {4}

After dinner, while the party were still sitting at table, the conversation turned on Arnold's treason. Mr. Lear, Washington's private secretary, was present, and after retiring he wrote down in his diary Washington's own account of that remarkable incident in our history in his own words. The extract from Mr. Lear's diary has recently been published for the first time in Mr. Rush's "Washington in Domestic Life." It is as follows:

"After dinner, Washington was, in the course of conversation, led to speak of Arnold's treachery, when he gave the following account of it, which I shall put in his own words, thus: 'I confess I had a good opinion of Arnold before his treachery was brought to light; had that not been the case I should have had some reason to suspect him sooner, for when he commanded in Philadelphia, the Marquis Lafayette brought accounts from France of the armament which was to be sent to cooperate with us in the ensuing campaign. Soon after this was known, Arnold pretended to have some private business to transact in Connecticut, and on his way there he called at my quarters, and in the course of conversation expressed a desire of quitting Philadelphia and joining the army the ensuing campaign. I told him that it was probable we should have a very active one, and that if his wound and state of health would permit, I should be extremely glad of his services with the army. He replied that he did not think his wound would permit him to take a very active part, but still he persisted in his desire of being with the army. He went on to Connecticut and on his return called again upon me. He renewed his request of being with me next campaign, and I made him the same answer I had done before. He again repeated that he did not think his wound would permit him to do active duty, and intimated a desire to have the command at West Point. I told him I did not think that would suit him, as I should leave none in the garrison but invalids, because it would be entirely covered by the main army. The subject was dropped at that time, and he returned to Philadelphia. It then appeared somewhat strange to me that a man of Arnold's known activity and enterprise should be desirous of taking so inactive a part. I however thought no more of the matter. When the French troops arrived at Rhode Island, I had intelligence from New York that General Clinton intended to make an attack upon them before they could get themselves settled and fortified. In consequence of that I was determined to attack New York, which would be left much exposed by his drawing off the British troops, and accordingly formed my line of battle and moved down with the whole

army to King's ferry, which we passed. Arnold came to camp that time, and, having no command, and consequently no quarters (all the houses thereabouts being occupied by the army), he was obliged to seek lodgings at some distance from the camp. While the army was crossing at King's ferry I was going to see the last detachment over, and met Arnold, who asked me if I had thought of anything for him. I told him that he was to have the command of the light troops, which was a post of honor, and which his rank indeed entitled him to. Upon this information his countenance changed, and he appeared to be quite fallen; and, instead of thanking me, or expressing any pleasure at the appointment, never opened his mouth. I desired him to go on to my quarters and get something to refresh himself, and I would meet him there soon. He did so. Upon his arrival there he found Colonel Tilghman, whom he took aside, and, mentioning what I had told him, seemed to express great uneasiness at it—as his leg, he said, would not permit him to be long on horseback, and intimated a great desire to have the command at West Point. When I returned to my quarters Colonel Tilghman informed me of what had passed. I made no reply to it, but his behavior struck me as strange and unaccountable. In the course of that night, however, I received information from New York that General Clinton had altered his plan and was debarking his troops. This information obliged me likewise to alter my disposition and return to my former station, where I could better cover the country. I then determined to comply with Arnold's desire, and accordingly gave him the command of the garrison at West Point. Things remained in this situation about a fortnight, when I wrote to the Count Rochambeau, desiring to meet him at some intermediate place (as we could neither of us be long enough from our respective commands to visit the other), in order to lay the plan for the siege of Yorktown, and proposed Hartford, where I accordingly went and met the count. On my return I met the Chevalier Luzerne toward evening within about fifteen miles of West Point (on his way to join the count at Rhode Island), which I intended to reach that night, but he insisted upon turning back with me to the next public house, where, in politeness to him, I could not but stay all night, determining, however, to get to West Point to breakfast very early. I sent off my baggage, and desired Colonel Hamilton to go forward and inform General Arnold that I would breakfast with him. Soon after he arrived at Arnold's quarters a letter was delivered to Arnold which threw him into the greatest confusion. He told Colonel Hamilton that something

required his immediate attendance at the garrison, which was on the opposite side of the river to his quarters, and immediately ordered a horse to take him to the river, and the barge, which he kept to cross, to be ready, and desired Major Franks, his aide, to inform me when I should arrive that he was gone over the river and would return immediately. When I got to his quarters and did not find him there I desired Major Franks to order me some breakfast, and, as I intended to visit the fortifications, I would see General Arnold there. After I had breakfasted I went over the river, and, inquiring for Arnold, the commanding officer told me that he had not been there. I likewise inquired at the several redoubts, but no one could give me any information where he was. The impropriety of his conduct, when he knew I was to be there, struck me very forcibly, and my mind misgave me, but I had not the least idea of the real cause. When I returned to Arnold's quarters about two hours after, and told Colonel Hamilton that I had not seen him, he gave me a packet which had just arrived for me from Colonel Jemmison, which immediately brought the matter to light. I ordered Colonel Hamilton to mount his horse and proceed with the greatest dispatch to a post on the river about eight miles below, in order to stop the barge if she had not passed, but it was too late. It seems that the letter which Arnold received which threw him into such confusion was from Colonel Jemmison, informing him that André was taken, and that the papers found upon him were in his possession. Colonel Jemmison, when André was taken with these papers, could not believe that Arnold was a traitor, but rather thought it was an imposition of the British in order to destroy our confidence in Arnold. He, however, immediately on their being taken, dispatched an express after me, ordering him to ride night and day till he came up with me. The express went the lower road, which was the road by which I had gone to Connecticut, expecting that I would return by the same route, and that he would meet me, but before he had proceeded far he was informed that I was returning by the upper road. He then cut across the country and followed in my track till I arrived at West Point. He arrived about two hours after and brought the above packet. When Arnold got down to the barge, he ordered his men, who were very clever fellows and some of the better sort of soldiery, to proceed immediately on board the Vulture, sloop-of-war, as a flag, which was lying down the river, saying that they must be very expeditious, as he must return in a short time to meet me, and promised them two gallons of rum if they would exert themselves. They did,

accordingly, but when they got on board the Vulture, instead of their two gallons of rum, he ordered the coxswain to be called down into the cabin, and informed him that he and the men must consider themselves as prisoners. The coxswain was very much astonished, and told him that they came on board under the sanction of a flag. He answered that that was nothing to the purpose; they were prisoners. But the captain of the Vulture had more generosity than this pitiful scoundrel, and told the coxswain that he would take his parole for going on shore to get clothes, and whatever else was wanted for himself and his companions. He accordingly came, got his clothes, and returned on board. When they got to New York, General Clinton, ashamed of so low and mean an action, set them all at liberty."

This narrative, from the lips of Washington himself, throws much additional light on Arnold's treason. It is also interesting to the general reader, as affording a specimen of Washington's style in conversation, when the events of the Revolution formed the topic of discourse.

1. Footnote: On account of the great importance of this debate, we give Marshall's synopsis of the arguments used on both sides. It brought up the question of State rights as opposed to centralization for the first time; and on many other accounts is particularly interesting for the political reader, as well as for all who are curious respecting our early colonial history.

2. Footnote: It has ever been understood that these members were, on principle, in favor of the assumption as modified in the amendment made by the Senate; but they withheld their assent from it when originally proposed in the House of Representatives in the opinion that the increase of the national debt added to the necessity of giving to the departments of the national government a more central residence. It is understood that a greater number would have changed had it been necessary.

3. Footnote: Marshall.

4. Footnote: October 23, 1786, was the date of Messrs. Drayton and Izard's visit.

CHAPTER IV. — THE NATIONAL BANK ESTABLISHED. 1790.

On his way from New York to Mount Vernon Washington stopped for a short time, as we have seen, in Philadelphia. While there he addressed a letter to his private secretary, Mr. Lear, which is interesting not only for the information it contains respecting his residence, but from its illustrating that remarkable attention to the details of business, which we have already had occasion to notice.

"After a pleasant journey," he writes, "we arrived in this city on Thursday last (September 2, 1790), and tomorrow we proceed—if Mrs. Washington's health will permit, for she has been much indisposed since we came here—toward Mount Vernon. The house of Mr. Robert Morris had, previous to my arrival, been taken by the corporation for my residence. {1}

"It is the best they could get. It is, I believe, the best single house in the city. Yet without additions it is inadequate to the commodious accommodation of my family. These additions, I believe, will be made. The first floor contains only two public rooms (except one for the upper servants). The second floor will have two public (drawing) rooms, and with the aid of one room with a partition in it, in the back building, will be sufficient for the use of Mrs. Washington and the children, and their maids, besides affording her a small place for a private study and dressing-room. The third story will furnish you and Mrs. Lear with a good lodging-room, a public office (for there is no room below for one), and two rooms for the gentlemen of the family. The garret has four good rooms, which must serve Mr. and Mrs. Hyde {2}—unless they should prefer the room over the workhouse—William, and such servants as it may not be better to place in the proposed additions to the back building. There is a room over the stable which may serve the coachman and postillions, and there is a smokehouse, which may possibly be more valuable for the use of servants than for the smoking of meats. The intention of the addition to the back building is to provide a servant's hall and one or two lodging-rooms for the servants. There are good stables, but for twelve horses only, and a coach-house,

which will hold all my carriages. Speaking of carriages, I have left my coach to receive a thorough repair, by the time I return, which I expect will be before the 1st of December."

The Legislature, meantime, had appropriated for his residence an elegant house in South Ninth street, which was taken down a few years since, having been occupied by the University, and other buildings were erected on the same lot for the same purpose. But Washington refused to occupy the house offered by the State authorities, because he would not live in a house which was not hired and paid for by himself. He was desirous, however, to have the rent fixed before he entered the house, and he wrote repeatedly to Mr. Lear from Mount Vernon to ascertain what the rent would be. On the 14th of November, 1790, he wrote to Mr. Lear as follows:

"I am, I must confess, exceedingly unwilling to go into any house without first knowing on what terms I do it, and wish that this sentiment could be again hinted in delicate terms to the parties concerned with me. I cannot, if there are no latent motives which govern in this case, see any difficulty in the business. Mr. Morris has most assuredly formed an idea of what ought in equity to be the rent of the tenement in the condition he left it, and with this aid the committee ought, I conceive, to be as little at a loss in determining what it should rent for, with the additions and alterations which are about to be made, and which ought to be done in a plain and neat, not by any means in an extravagant style, because the latter is not only contrary to my wish but would really be detrimental to my interest and convenience, principally because it would be the means of keeping me out of the use and comforts of the house to a late period, and because the furniture and everything else would require to be accordant therewith, besides making me pay an extravagant price, perhaps to accommodate the alterations to the taste of another or to the exorbitant rates of workmen.

"I do not know, nor do I believe, that anything unfair is intended by either Mr. Morris or the committee, but let us for a moment suppose that the rooms (the new ones I mean) were to be hung with tapestry or a very rich and costly paper, neither of which would suit my present furniture; that costly ornaments for the bow windows, extravagant chimney-pieces, and the like were to be provided; that workmen, from extravagance of the times for every twenty shillings' worth of work would charge forty shillings, and that advantage should be taken of the occasion to new paint every part of

the house and buildings, would there be any propriety in adding ten or twelve and a half per cent. for all this to the rent of the house in its original state for the two years that I am to hold it? If the solution of these questions is in the negative, wherein lies the difficulty of determining that the houses and lots, when finished according to the proposed plan, ought to rent for so much? When all is done that can be done, the residence will not be so commodious as the house I left in New York, for there (and the want of it will be found a real inconvenience at Mr. Morris') my office was in a front room below, where persons on business were at once admitted, whereas now they will have to ascend two pair of stairs and to pass by the public rooms to go to it. Notwithstanding which I am willing to allow as much as was paid to Mr. Macomb, and shall say nothing if more is demanded, unless there is apparent extortion or the policy of delay is to see to what height rents will rise before mine is fixed. In either of these cases I should not be pleased, and to occupy the premises at the expense of any public body I will not.

"I had rather have heard that my repaired coach was plain and elegant than rich and elegant."

The rent of Mr. Morris' house was finally settled at \$3,000 a year, and at this rate it was occupied by Washington till the expiration of his second term as President and his final retirement to Mount Vernon.

Our readers will excuse us for dwelling a little longer on the domestic arrangements of Washington, as disclosed in his letters to Mr. Lear. These details are not only curious and entertaining, as showing the style of living half a century ago, but as exhibiting the modest and economical style in which Washington chose to live; and they refute the calumnies of his political enemies, who, a little later, charged him with anti-republican state and splendor in his style of living. One of his letters to Mr. Lear relates to the servants. "The pressure of business," he writes, "under which I labored for several days before I left New York, allowed me no time to inquire who of the female servants it was proposed or thought advisable to remove here, besides the wives of the footmen, James and Fidas. With respect to Mr. Hyde and his wife, if it is not stated on some paper handed in by Mr. Hyde, it is nevertheless strong on my recollection that his wife's services were put down at \$100 and his own at \$200 per annum. I have no wish to part with Mr. or Mrs. Hyde; first, because I do not like to be changing, and, second,

because I do not know where or with whom to supply their places. On the score of accounts I can say nothing, having never taken a comparative view of his and Fraunces', but I am exceedingly mistaken if the expenses of the second table, at which Mr. Hyde presides, have not greatly exceeded those of the tables kept by Fraunces, for I strongly suspect (but in this I may be mistaken) that nothing is brought to my table of liquors, fruits, or other luxuries that is not used as profusely at his. If my suspicions are unfounded I shall be sorry to have entertained them, and if they are not, it is at least questionable whether under his successor the same things might not be done; in which case (if Hyde is honest and careful, of which you are better able to judge than I am), a change without benefit might take place, which is not desirable if they are to be retained on proper terms. I say they, for if Mrs. Hyde is necessary for the purposes enumerated in your letter, and the cook is not competent to prepare the dessert, make cake, etc., I do not see of what use Hyde will be, more than William, without her. Fraunces, besides being an excellent cook, knowing how to provide genteel dinners, and giving aid in dressing them, prepared the dessert, made the cake, and did everything that is done by Hyde and his wife together; consequently the services of Hyde alone are not to be compared with those of Fraunces; and if his accounts exceed those of Fraunces, in the same seasons—£4 or £5 a week—and at the same time appear fair, I shall have no scruple to acknowledge that I have entertained much harder thoughts of him than I ought to have done, although it is unaccountable to me how other families, on \$2,500 or \$3,000 a year, should be enabled to entertain more company or at least entertain more frequently than I could do for \$25,000."

Respecting the furniture, Washington writes: "Mr. and Mrs. Morris have insisted upon leaving the two large looking-glasses which are in their best rooms, because they have no place, they say, proper to remove them to, and because they are unwilling to hazard the taking of them down. You will, therefore, let them have, instead, the choice of mine; the large ones I purchased of the French minister they do not incline to take, but will be glad of some of the others. They will also leave a large glass lamp in the entry or hall, and will take one or more of my glass lamps in lieu of it. Mrs. Morris has a mangle (I think it is called) for ironing clothes, which, as it is fixed in the place where it is commonly used, she proposes to leave and take mine. To this I have no objection, provided mine is equally good and

convenient; but if I should obtain any advantages, besides that of its being up and ready for use, I am not inclined to receive it.

"I have no particular direction to give respecting the appropriation of the furniture. By means of the bow-windows the back rooms will become the largest, and, of course, will receive the furniture of the largest dining and drawing-rooms; and in that case, though there are no closets in them, there are some in the steward's room, directly opposite, which are not inconvenient. There is a small room adjoining the kitchen that might, if it is not essential for other purposes, be appropriated for the Sevres china and other things of that sort, which are not in common use.

"Mrs. Morris, who is a notable lady in family arrangements, can give you much information on all the conveniences about the house and buildings, and I dare say would rather consider it as a compliment to be consulted in these matters, as she is so near, than a trouble to give her opinion of them.

"I approve, at least till inconvenience or danger shall appear, of the large table ornaments remaining on the sideboard, and of the pagodas standing in the smallest drawing-room. Had I delivered my sentiment from here, respecting this fixture, that is the apartment I should have named for it. Whether the green, which you have, or a new yellow curtain, should be appropriated to the staircase above the hall may depend on your getting an exact match in color and so forth of the latter. For the sake of appearances one would not, in instances of this kind, regard a small additional expense."

In these letters, written to Mr. Lear during Washington's residence at Mount Vernon, in the autumn of 1790, he frequently refers to the children under Mrs. Washington's care, who composed a part of the family. In a letter, dated October 3d, he requests Mr. Lear to make inquiries respecting the schools in Philadelphia, with a view to placing Washington Custis, Mrs. Washington's grandson, at the best. If the college is under good regulations, he inquires if it would not be better to put him there at once. Again, in a letter dated October 10th, after speaking of the proper care and instruction of his niece, Miss Harriet Washington, when he should be established in Philadelphia, he refers again to Washington Custis' education, whom he had adopted as a son, and in whom he appears to have taken great interest. {3} He also wishes inquiry to be made as to the higher branches taught at the college, with a view to placing his nephews, George and Lawrence Washington, at that institution in Philadelphia. Having studied the

languages, they are engaged, he adds, under Mr. Harrow, in Alexandria, in learning mathematics and French. In a letter dated November 7, 1790, Washington expresses renewed anxiety respecting the education of his adopted son, Washington Custis, who appears to have been about eight years old at this time, and discusses the question of placing him at the college, if his age will admit of it.

On the 17th of November (1790), Washington, writing from Mount Vernon to Mr. Lear at Philadelphia, mentions that he is just setting out for Alexandria to a public dinner given to him by the citizens of that place. In his letter of November 23d, he dates from a tavern on the road, about twelve miles from Baltimore. He was then on his journey from Mount Vernon to Philadelphia in his own traveling carriage with Mrs. Washington, the children, and the servants in attendance on the children, accompanying them in a stage-coach hired for their accommodation.

The party arrived in Philadelphia on Saturday, the 28th of November (1790), and immediately took possession of the house which had been hired for the accommodation of the President and his family. The members of Congress and other public functionaries were mostly at their posts, and a crowd of strangers were resorting to the city, in expectation of the gay and brilliant pleasures and society which are usual in the metropolis in the winter season.

In the President's family, "the rules for receiving visitors and entertaining company," says Dr. Griswold, {4} "continued to be very nearly the same as in New York. Respectable citizens and strangers, properly introduced, were seen by the President every other Tuesday, between the hours of 3 and 4 in the afternoon. The receptions were in the dining-room, on the first floor, in the back part of the house. At 3 o'clock, all the chairs having been removed, the door was opened, and the President, usually surrounded by members of his cabinet, or other distinguished men, was seen by the approaching visitor standing before the fireplace, his hair powdered and gathered behind in a silk bag, coat and breeches of plain black velvet, white or pearl-colored vest, yellow gloves, a cocked hat in his hand, silver knee and shoe-buckles, and a long sword, with a finely-wrought and glittering steel hilt, the coat worn over it, and its scabbard of polished white leather. On these occasions he never shook hands, even with his most intimate friends. The name of everyone was distinctly announced, and he rarely forgot that of a person

who had been once introduced to him. The visitor was received with a dignified bow and passed on to another part of the room. At a quarter past 3 the door was closed, the gentlemen present moved into a circle, and he proceeded, beginning at his right hand, to exchange a few words with each. When the circuit was completed he resumed his first position and the visitors approached him in succession, bowed, and retired.

"At the levees of Mrs. Washington he did not consider any visits made to himself, and he appeared as a private gentleman, with neither hat nor sword, conversing without restraint, generally with women, who rarely had other opportunities of meeting him."

Congress assembled for its third session on the 6th of December, 1790, the day which had been appointed by adjournment. But the members had not yet learned to be punctual in their attendance, and it was not till the 8th that a sufficient number took their seats to authorize their entering upon the business of the session. Among the members we recognize some celebrated names. From Massachusetts were Elbridge Gerry, afterward Vice-President of the United States, and Fisher Ames, one of the most illustrious of American orators; from Connecticut, the veteran statesman, Roger Sherman; from New Jersey, the philanthropist, Elias Boudinot; from Pennsylvania, Peter and Frederick Augustus Muhlenberg and George Clymer; from Virginia, James Madison; from North Carolina, Hugh Williamson, and from Georgia, Gen. James Jackson. This is but a portion of the strong array of historical names which adorned the First Congress of the United States under the constitution.

In his speech delivered to Congress at the commencement of their third session, Washington expressed much satisfaction at the favorable prospect of public affairs, and particularly noticed the progress of public credit and the productiveness of the revenue.

Adverting to foreign nations, he said: "The disturbed situation of Europe, and particularly the critical posture of the great maritime powers, whilst it ought to make us more thankful for the general peace and security enjoyed by the United States, reminds us at the same time of the circumspection with which it becomes us to preserve these blessings. It requires, also, that we should not overlook the tendency of a war, and even of preparations for war, among the nations most concerned in active commerce with this country, to abridge the means and thereby, at least, to enhance the price of

transporting its valuable productions to their proper market." To the serious reflection of Congress was recommended the prevention of embarrassments from these contingencies, by such encouragement to American navigation as would render the commerce and agriculture of the United States less dependent on foreign bottoms.

After expressing to the House of Representatives his confidence arising from the sufficiency of the revenues already established, for the objects to which they were appropriated, he added: "Allow me moreover to hope that it will be a favorite policy with you not merely to secure a payment of the interest of the debt funded, but, as far and as fast as the growing resources of the country will permit, to exonerate it of the principal itself." Many subjects relative to the interior government were succinctly and briefly mentioned, and the speech concluded with the following impressive and admonitory sentiment: "In pursuing the various and weighty business of the present session, I indulge the fullest persuasion that your consultations will be marked with wisdom and animated by the love of country. In whatever belongs to my duty you shall have all the cooperation which an undiminished zeal for its welfare can inspire. It will be happy for us both, and our best reward, if, by a successful administration of our respective trusts, we can make the established government more and more instrumental in promoting the good of our fellow-citizens, and more and more the object of their attachment and confidence."

The addresses of the two Houses, in answer to the speech, proved that the harmony between the executive and legislative departments, with which the government had gone into operation, had sustained no essential interruption. But in the short debate which took place on the occasion in the House of Representatives a direct disapprobation of one of the measures of the executive government was, for the first time, openly expressed.

In the treaty lately concluded with the Creek Indians, an extensive territory claimed by Georgia, under treaties, the validity of which was contested by the chiefs, had been entirely, or in great part, relinquished. This relinquishment excited serious discontents in that State and was censured by General Jackson, with considerable warmth, as an unjustifiable abandonment of the rights and interests of Georgia. No specific motion, however, was made, and the subject was permitted to pass away for the present.

Scarcely were the debates on the address concluded when several interesting reports were received from Hamilton, the Secretary of the Treasury, suggesting such further measures as were deemed necessary for the establishment of public credit.

It will be recollected that, in his original report on this subject, the secretary had recommended the assumption of the State debts and had proposed to enable the treasury to meet the increased demand upon it, which this measure would occasion, by an augmentation of the duties on imported wines, spirits, tea, and coffee and by imposing duties on spirits distilled within the country. The assumption not having been adopted until late in the session, the discussion on the revenue which would be required for this portion of the public debt did not commence until the House had become impatient for an adjournment. As much contrariety of opinion was disclosed, and the subject was not of immediate importance, it was deferred to the ensuing session, and an order was made requiring the Secretary of the Treasury to prepare and report such further provision as might, in his opinion, be necessary for establishing the public credit. In obedience to this order, several reports had been prepared, the first of which repeated the recommendation of an additional impost on foreign distilled spirits and of a duty on spirits distilled within the United States. The estimated revenue from these sources was \$877,500, affording a small excess over the sum which would be required to pay the interest on the assumed debt. The policy of the measure was discussed in a well-digested and able argument, detailing many motives, in addition to those assigned in his original report, for preferring the system now recommended to accumulated burdens on commerce or to a direct tax on lands.

A new tax is the certain rallying point for all those who are unfriendly to the administration or to the minister by whom it is proposed. But that recommended by the secretary contained intrinsic causes of objection which would necessarily add to the number of its enemies. All that powerful party in the United States which attached itself to the local rather than to the general government, would inevitably contemplate any system of internal revenue with jealous disapprobation. They considered the imposition of a tax by Congress on any domestic manufacture as the intrusion of a foreign power into their particular concerns, which excited serious apprehensions for State importance and for liberty. In the real or supposed interests of many individuals was also found a distinct motive for hostility to the

measure. A large portion of the American population, especially that which had spread itself over the extensive regions of the West, consuming imported articles to a very inconsiderable amount, was not much affected by the impost on foreign merchandise. But the duty on spirits distilled within the United States reached them, and consequently rendered them hostile to the tax.

A bill which was introduced in pursuance of the report (1791) was opposed with great vehemence by a majority of the southern and western members. By some of them it was insisted that no sufficient testimony had yet been exhibited that the taxes already imposed would not be equal to the exigencies of the public. But, admitting the propriety of additional burdens on the people, it was contended that other sources of revenue less exceptionable and less odious than this might be pointed out. The duty was branded with the hateful epithet of an excise, a species of taxation, it was said, so peculiarly oppressive as to be abhorred even in England, and which was totally incompatible with the spirit of liberty. The facility with which it might be extended to other objects was urged against its admission into the American system, and declarations made against it by the Congress of 1775 were quoted in confirmation of the justice with which inherent vices were ascribed to this mode of collecting taxes. So great was the hostility manifested against it in some of the States that the revenue officers might be endangered from the fury of the people, and in all it would increase a ferment which had been already extensively manifested.

When required to produce a system in lieu of that which they objected to, the opponents of the bill alternately mentioned an increased duty on imported articles generally, a particular duty on molasses, a direct tax, a tax on salaries, pensions, and lawyers, a duty on newspapers, and a stamp act. The friends of the bill contended that the reasons for believing the existing revenue would be insufficient to meet the engagements of the United States were as satisfactory as the nature of the case would admit or as ought to be required. The estimates were founded on the best data which were attainable, and the funds already provided had been calculated by the proper officer to pay the interest on that part of the debt only for which they were pledged. Those estimates were referred to as documents from which it would be unsafe to depart. They were also in possession of official statements showing the productiveness of the taxes from the time the revenue bill had been in operation, and arguments were drawn from these

demonstrating the danger to which the infant credit of the United States would be exposed by relying on the existing funds for the interest on the assumed debt. It was not probable that the proposed duties would yield a sum much exceeding that which would be necessary, but should they fortunately do so, the surplus revenue might be advantageously employed in extinguishing a part of the principal. They were not, they said, of opinion that a public debt was a public blessing, or that it ought to be perpetuated. An augmentation of the revenue being indispensable to the solidity of the public credit, a more eligible system than that proposed in the bill could not, it was believed, be devised. Still further to burden commerce would be a hazardous experiment, which might afford no real supplies to the treasury. Until some lights should be derived from experience, it behooved the Legislature to be cautious not to lay such impositions upon trade as might probably introduce a spirit of smuggling, which, with a nominal increase, would occasion a real diminution of revenue. In the opinion of the best judges, the impost on the mass of foreign merchandise could not safely be carried further for the present. The extent of the mercantile capital of the United States would not justify the attempt. Forcible arguments were also drawn from the policy and the justice of multiplying the subjects of taxation and diversifying them by a union of internal with external objects.

Neither would a direct tax be advisable. The experience of the world had proved that a tax on consumption was less oppressive and more productive than a tax on either property or income. Without discussing the principles on which the fact was founded, the fact itself was incontestable that, by insensible means, much larger sums might be drawn from any class of men than could be extracted from them by open and direct taxes.

Against the substitution of a duty on internal negotiations, it was said that revenue to any considerable extent could be collected from them only by means of a stamp act, which was not less obnoxious to popular resentment than an excise, would be less certainly productive than the proposed duties, and was, in every respect, less eligible.

The honor, the justice, and the faith of the United States were pledged, it was said, to that class of creditors for whose claims the bill under consideration was intended to provide. No means of making the provision had been suggested, which, on examination, would be found equally eligible with a duty on ardent spirits. Much of the public prejudice which

appeared in certain parts of the United States against the measure was to be ascribed to their hostility to the term "excise," a term which had been inaccurately applied to the duty in question. When the law should be carried into operation, it would be found not to possess those odious qualities which had excited resentment against a system of excise. In those States where the collection of a duty on spirits distilled within the country had become familiar to the people, the same prejudices did not exist. On the good sense and virtue of the nation they could confidently rely for acquiescence in a measure which the public exigencies rendered necessary, which tended to equalize the public burdens and which, in its execution, would not be oppressive.

A motion made by General Jackson to strike out that section which imposed a duty on domestic distilled spirits was negatived by 36 to 16, and the bill was carried by 35 to 21. Some days after the passage of this bill another question was brought forward which was understood to involve principles of deep interest to the government.

Hamilton, the Secretary of the Treasury, had been the uniform advocate of a national bank. Believing that such an institution would be "of primary importance to the prosperous administration of the finances and of the greatest utility in the operations connected with the support of public credit," he had earnestly recommended its adoption in the first general system which he presented to the view of Congress, and, at the present session, had repeated that recommendation in a special report, containing a copious and perspicuous argument on the policy of the measure. A bill conforming to the plan he suggested was sent down from the Senate and was permitted to proceed, unmolested, in the House of Representatives, to the third reading. On the final question a great, and, it would seem, an unexpected opposition was made to its passage. Mr. Madison, Mr. Giles, General Jackson, and Mr. Stone spoke against it. The general utility of banking systems was not admitted, and the particular bill before the House was censured on its merits; but the great strength of the argument was directed against the constitutional authority of Congress to pass an act for incorporating a national bank.

The government of the United States, it was said, was limited, and the powers which it might legitimately exercise were enumerated in the constitution itself. In this enumeration the power now contended for was

not to be found. Not being expressly given it must be implied from those which were given or it could not be vested in the government. The clauses under which it could be claimed were then reviewed and critically examined, and it was contended that, on fair construction, no one of these could be understood to imply so important a power as that of creating a corporation.

The clause which enables Congress to pass all laws necessary and proper to execute the specified powers must, according to the natural and obvious force of the terms and the context, be limited to means necessary to the end and incident to the nature of the specified powers. The clause, it was said, was in fact merely declaratory of what would have resulted by unavoidable implication, as the appropriate, and as it were technical, means of executing those powers. Some members observed that "the true exposition of a necessary mean to produce a given end was that mean without which the end could not be produced."

The bill was supported by Mr. Ames, Mr. Sedgwick, Mr. Smith, of South Carolina, Mr. Lawrence, Mr. Boudinot, Mr. Gerry, and Mr. Vining.

The utility of banking institutions was said to be demonstrated by their effects. In all commercial countries they had been resorted to as an instrument of great efficacy in mercantile transactions; and even in the United States their public and private advantages had been felt and acknowledged.

Respecting the policy of the measure no well-founded doubt could be entertained, but the objections to the constitutional authority of Congress deserved to be seriously considered.

That the government was limited by the terms of its creation was not controverted; and that it could exercise only those powers which were conferred on it by the constitution was admitted. If, on examination, that instrument should be found to forbid the passage of the bill, it must be rejected, though it would be with deep regret that its friends would suffer such an opportunity of serving their country to escape for the want of a constitutional power to improve it.

In asserting the authority of the Legislature to pass the bill it was contended that incidental as well as express powers must necessarily belong to every government, and that, when a power is delegated to effect particular objects, all the known and usual means of effecting them must

pass as incidental to it. To remove all doubts on this subject, the constitution of the United States had recognized the principle by enabling Congress to make all laws which may be necessary and proper for carrying into execution the powers vested in the government. They maintained the sound construction of this grant to be a recognition of an authority in the national Legislature to employ all the known and usual means for executing the powers vested in the government. They then took a comprehensive view of those powers and contended that a bank was a known and usual instrument by which several of them were exercised.

After a debate of great length, which was supported on both sides with ability and with that ardor which was naturally excited by the importance attached by each party to the principle in contest, the question was put and the bill was carried in the affirmative by a majority of nineteen votes.

The point which had been agitated with so much zeal in the House of Representatives was examined with equal deliberation by the executive. The cabinet was divided upon it. Jefferson, the Secretary of State, and Randolph, the Attorney-General, conceived that Congress had clearly transcended their constitutional powers, while Hamilton, the Secretary of the Treasury, with equal clearness, maintained the opposite opinion. The advice of each minister, with his reasoning in support of it, was required in writing, and their arguments were considered by the President with all that attention which the magnitude of the question and the interest taken in it by the opposing parties so eminently required. This deliberate investigation of the subject terminated in a conviction that the constitution of the United States authorized the measure, and the sanction of the Executive was given to the act. {5}

In February, 1791, Vermont, having, in convention, adopted the constitution of the United States, was admitted to the Union. The result of the census of the United States, which had been ordered in 1790, was a total of 3,929,827 souls, of whom 697,897 were slaves.

Besides the establishment of the Bank of the United States and the passage of the excise law, Congress resolved upon having a mint for the national coinage; it authorized an increase of the army and the raising a military force to resist the Indians, and provided for the maintenance of these additional troops; it also appropriated above \$1,200,000 to various branches of the public service, making the expenses of the year \$4,000,000,

part of which had to be met by loans, since the surplus of the former year had been applied to the paying off part of the national debt, as a former act of Congress had directed. We may mention, in this connection, that the exports of the year were computed to amount to some \$19,000,000 and the imports to about \$20,000,000.

Among the last acts of the present Congress, as already mentioned, was an act to augment the military establishment of the United States.

The earnest endeavors of Washington to give security to the northwestern frontiers, by pacific arrangements, having been entirely unavailing, it became his duty to employ such other means as were placed in his hands for the protection of the country. Confirmed by all his experience in the opinion that vigorous offensive operations alone could bring an Indian war to a happy conclusion, he had planned an expedition against the hostile tribes northwest of the Ohio as soon as the impracticability of effecting a treaty with them had been ascertained.

General Harmar, a veteran of the Revolution, who had received his appointment under the former government, was placed at the head of the Federal troops. On the 30th of September (1790) he marched from Fort Washington with 320 regulars. The whole army, when joined by the militia of Pennsylvania and Kentucky, amounted to 1,453 men. About the middle of October Colonel Harden, who commanded the Kentucky militia, and who had been also a continental officer of considerable merit, was detached at the head of 600 men, chiefly militia, to reconnoiter the ground and to ascertain the intentions of the enemy. On his approach the Indians set fire to their principal village and fled with precipitation to the wood. As the object of the expedition would be only half accomplished unless the savages could be brought to action and defeated, Colonel Harden was again detached at the head of 210 men, 30 of whom were regulars. About ten miles west of Chilicothe, where the main body of the army lay, he was attacked by a party of Indians. The Pennsylvanians, who composed his left column, had previously fallen in the rear, and the Kentuckians, disregarding the exertions of their colonel and of a few other officers, fled on the first appearance of the enemy. The small corps of regulars, commanded by Lieutenant Armstrong, made a brave resistance. After twenty-three of them had fallen in the field the surviving seven made their escape and rejoined the army.

Notwithstanding this check the remaining towns on the Scioto were reduced to ashes, and the provisions laid up for the winter were entirely destroyed. This service being accomplished the army commenced its march toward Fort Washington. Being desirous of wiping off the disgrace which his arms had sustained, General Harmar halted about eight miles from Chilicothe and once more detached Colonel Harden with orders to find the enemy and bring on an engagement. His command consisted of 360 men, of whom 60 were regulars, commanded by Major Wyllys. Early the next morning this detachment reached the confluence of the St. Joseph and St. Mary, where it was divided into three columns. The left division, commanded by Colonel Harden in person, crossed the St. Joseph and proceeded up its western bank. The center, consisting of the Federal troops, was led by Major Wyllys up the eastern side of that river, and the right, under the command of Major M'Millan, marched along a range of heights which commanded the right flank of the center division. The columns had proceeded but a short distance when each was met by a considerable body of Indians, and a severe engagement ensued. The militia retrieved their reputation, and several of their bravest officers fell. The heights on the right having been, from some cause not mentioned, unoccupied by the American troops, the savages seized them early in the action, and attacked the right flank of the center with great fury. Although Major Wyllys was among the first who fell the battle was maintained by the regulars with spirit, and considerable execution was done on both sides. At length the scanty remnant of this small band, quite overpowered by numbers, was driven off the ground, leaving fifty of their comrades, exclusive of Major Wyllys and Lieutenant Farthingham, dead upon the field. The loss sustained by the militia was also considerable. It amounted to upwards of 100 men, among whom were nine officers. After an engagement of extreme severity the detachment joined the main army, which continued its march to Fort Washington.

General Harmar, with what propriety it is not easy to discern, claimed the victory. He conceived, not entirely without reason, that the loss of a considerable number of men would be fatal to the Indians, although a still greater loss should be sustained by the Americans, because the savages did not possess a population from which they could replace the warriors who had fallen. The event, however, did not justify this opinion.

The information respecting this expedition was quickly followed by intelligence stating the deplorable condition of the frontiers. An address from the representatives of all the counties of Virginia, and those of Virginia bordering on the Ohio, was presented to the President, praying that the defense of the country might be committed to militia unmixed with regulars, and that they might immediately be drawn out to oppose "the exulting foe." To this address the President gave a conciliatory answer, but he understood too well the nature of the service to yield to the request it contained. Such were his communications to the Legislature that a regiment was added to the permanent military establishment, and he was authorized to raise a body of 2,000 men for six months, and to appoint a major-general, and a brigadier-general, to continue in command so long as he should think their services necessary.

With the 3d of March, 1791, terminated the first Congress elected under the constitution of the United States. "The party denominated Federal," says Marshall, "having prevailed at the elections, a majority of the members were steadfast friends of the Constitution, and were sincerely desirous of supporting a system they had themselves introduced, and on the preservation of which, in full health and vigor, they firmly believed the happiness of their fellow-citizens, and the respectability of the nation, greatly to depend. To organize a government, to retrieve the national character, to establish a system of revenue, and to create public credit, were among the arduous duties which were imposed upon them by the political situation of their country. With persevering labor, guided by no inconsiderable portion of virtue and intelligence, these objects were, in a great degree, accomplished. Out of the measures proposed for their attainment, questions alike intricate and interesting unavoidably arose. It is not in the nature of man to discuss such questions without strongly agitating the passions, and exciting irritations which do not readily subside.

"Had it ever been the happy and singular lot of America to see its national Legislature assemble uninfluenced by those prejudices which grew out of the previous divisions of the country, the many delicate points which they were under the necessity of deciding, could not have failed to disturb this enviable state of harmony, and to mingle some share of party spirit with their deliberations. But when the actual state of the public mind was contemplated, and due weight was given to the important consideration that at no very distant day a successor to the present chief magistrate must be

elected, it was still less to be hoped that the first Congress could pass away without producing strong and permanent dispositions in parties, to impute to each other designs unfriendly to the public happiness. As yet, however, these imputations did not extend to the President. His character was held sacred, and the purity of his motives was admitted by all. Some divisions were understood to have found their way into the cabinet. It was insinuated that between the Secretaries of State and of the Treasury very serious differences had arisen, but these high personages were believed to be equally attached to the President, who was not suspected of undue partiality to either. If his assent to the bill for incorporating the national bank produced discontent, the opponents of that measure seemed disposed to ascribe his conduct, in that instance, to his judgment, rather than to any prepossession in favor of the party by whom it was carried. The opposition, therefore, in Congress, to the measures of the government, seemed to be levelled at the Secretary of the Treasury, and at the northern members by whom those measures were generally supported, not at the President by whom they were approved. By taking this direction it made its way into the public mind, without being encountered by that devoted affection which a great majority of the people felt for the chief magistrate of the Union. In the meantime, the national prosperity was in a state of rapid progress; and the government was gaining, though slowly, in the public opinion. But in several of the State assemblies, especially in the southern division of the continent, serious evidences of dissatisfaction were exhibited, which demonstrated the jealousy with which the local sovereignties contemplated the powers exercised by the Federal Legislature."

A recent writer, speaking of the discussions in the cabinet respecting the bill establishing a national bank, says:

"Jefferson and Randolph were of opinion that Congress, in passing the bill, transcended the powers vested in them by the constitution. Hamilton, on the other hand, maintained it to be purely constitutional.

"It was not an easy task to unite two men of such opposite natures as Hamilton and Jefferson, and make them act in concert in the same cabinet. The critical state of affairs at the first adoption of the constitution, and the impartial preponderance of Washington alone could accomplish it. He applied himself to it with consummate perseverance and wisdom. At heart he felt a decided preference for Hamilton and his views. 'By some,' said he,

'he is considered an ambitious man and therefore a dangerous one. That he is ambitious I readily grant, but his ambition is of that laudable kind which prompts a man to excel in whatever he takes in hand. He is enterprising, quick in his perceptions, and in his judgment intuitively great.'

"But it was only in 1798, in the freedom of retirement, that Washington spoke so explicitly. While in office, and between his two secretaries, he maintained toward them a strict reserve, and testified the same confidence in both. He believed both of them to be sincere and able; both of them necessary to the country and to himself. Jefferson was to him, not only a connecting tie, a means of influence with the popular party which rarely became the opposition; but he made use of him in the internal administration of his government as a counterpoise to the tendencies, and especially to the language, sometimes extravagant and inconsiderate, of Hamilton and his friends. He had interviews and consultations with each of them separately, upon the subjects which they were to discuss together, in order to remove or lessen beforehand their differences of opinion. He knew how to turn the merit and popularity of each, with his own party, to the general good of the government, even to their own mutual advantage. He skilfully availed himself of every opportunity to employ them in a common responsibility. And when a disagreement too wide, and passions too impetuous, seemed to threaten an immediate rupture, he interposed, used exhortation and entreaty, and by his personal influence, by a frank and touching appeal to the patriotism and right-mindedness of the two rivals, he postponed the breaking forth of the evil which it was not possible to eradicate. On the bank question he required from each his arguments in writing, and after maturely weighing them both, he gave the sanction of his signature to the act passed by Congress for its incorporation. From the moment of the incorporation of the Bank of the United States parties assumed the almost perfect forms of organization and principles by which they are marked in our own day. The arguments and imputations of the Republican party, however, were not so much intended to apply to Washington and his measures as to Hamilton, who was considered and acknowledged by all as the head of the Federal party. This fact was sufficiently proved when Washington, at the close of the session of Congress, made an excursion into the southern States. His reception by men of all parties was ample testimony of the fact that he united all hearts, and that, however the measures or the constitution of government might be

censured and disapproved, none would refuse to pour the grateful homage of free hearts into the bosom of their veteran chief." Of this excursion we shall give an account in the next chapter.

1. Footnote: This house was in Market street, on the south side, near Sixth street. The market-house buildings then reached only to Fourth street; the town in this street extended westward scarcely so far as Ninth street; good private dwellings were seen above Fifth street; Mr. Morris' was perhaps the best; the garden was well enclosed by a wall.—(Richard Rush, "Washington in Domestic Life," from *Original Letters and Manuscripts*. Philadelphia, 1857.)

2. Footnote: Mr. Hyde was butler.

3. Footnote: Mr. Curtis was the writer of the "Reminiscences" we have so frequently quoted. He died on the 10th of October, 1857, aged seventy-six years.

4. Footnote: Republican Court.

5. Footnote: Marshall.

CHAPTER V. — POLITICAL PARTIES DEVELOPED. 1791-1792.

Washington, having received from Congress more ample means for the protection of the frontiers against the Indians, now directed his attention (March, 1791) to an expedition which should carry the war into their own country; this, as we have already seen, being his favorite method of dealing with Indian hostilities. He accordingly appointed Maj.-Gen. Arthur St. Clair, governor of the territory northwest of the Ohio, commander-in-chief of the forces to be employed in the meditated expedition. This officer had served through the war of the Revolution with reputation, though it had never been his fortune to distinguish himself. The evacuation of Ticonderoga had indeed, at one time, subjected him to much public censure, but it was found, upon inquiry, to be unmerited. Other motives, in addition to the persuasion of his fitness for the service, induced Washington to appoint him. With the sword, the olive branch was still to be tendered, and it was thought advisable to place them in the same hands. The governor, having been made officially the negotiator with the tribes inhabiting the territories over which he presided, being a military man acquainted with the country into which the war was to be carried, possessing considerable influence with the inhabitants of the frontiers, and being so placed as to superintend the preparations for the expedition advantageously, seemed to have claims to the station which were not to be overlooked. It was also a consideration of some importance that the high rank he had held in the American army would obviate those difficulties in filling the inferior grades with men of experience, which might certainly be expected should a person who had acted in a less elevated station be selected for the chief command.

After making the necessary arrangements for recruiting the army Washington prepared to make his long contemplated tour through the southern States.

On the 19th of March (1791), in writing to Lafayette, he says: "The tender concern which you express on my late illness awakens emotions which words will not explain, and to which your own sensibility can best do

justice. My health is now quite restored, and I flatter myself with a hope of a long exemption from sickness. On Monday next I shall enter on the practice of your friendly prescription of exercise, intending, at that time, to begin a journey to the southward, during which I propose visiting all the southern States."

This tour he performed in his own carriage, drawn by six horses, which were not changed during the journey, which occupied nearly three months. He was accompanied by one of his private secretaries, Major Jackson. Leaving his residence in Market street, Philadelphia, he set off in the latter part of March, and was escorted into Delaware by Mr. Jefferson and General Knox. On the 25th of March he arrived at Annapolis, where he was met by the people in a body, entertained at public dinners and a ball, and, after staying two days, was accompanied on his journey by the governor of Maryland, as far as Georgetown. From this place, on the 29th of March, he writes to Gov. Charles Pinckney, of South Carolina: "I had the pleasure of receiving your Excellency's obliging letter of the 8th instant last evening. I am thus far on my tour through the southern States, but as I travel with only one set of horses, and must make occasional halts, the progress of my journey is exposed to such uncertainty as admits not of fixing a day for my arrival at Charleston. While I express the grateful sense which I entertain of your Excellency's polite offer to accommodate me at your house during my stay in Charleston, your goodness will permit me to deny myself that pleasure. Having, with a view to avoid giving inconvenience to private families, early prescribed to myself the rule of declining all invitations to quarters on my journeys, I have been repeatedly under a similar necessity to the present, of refusing those offers of hospitality which would, otherwise, have been both pleasing and acceptable."

From Georgetown he proceeded to Mount Vernon, where the necessary attention to his private affairs, and some important correspondence on public business, detained him a week. Leaving Mount Vernon, and passing through Fredericksburg, where he dined with some of his old personal friends, he arrived at Richmond on the 11th of April (1791). His reception there was enthusiastic. He entered the city amidst the roar of cannon and the acclamations of the crowds of people who lined the streets through which he passed. In the evening there was a grand illumination; and during the two days which he remained there, the city was given up to festivities in honor of the favorite hero of Virginia. Similar tokens of welcome were

exhibited at Petersburg, Halifax, Newburn, and Wilmington. On leaving the last-mentioned place he was rowed across Cape Fear river in a splendid barge, by six masters of vessels; and on his arrival at Charleston (May 2d) a similar token of honor was accorded to him on a larger scale. From Hadrill's Point, attended by a cortege of distinguished Carolinians, he was conveyed to the city in a twelve-oared barge, manned by thirteen captains of American ships, while other barges and floats, with bands of music and decorations, formed an imposing nautical procession. On landing he was received by Governor Pinckney, the civic authorities, the Cincinnati, and a brilliant military escort, who attended him in procession, amidst the ringing of bells, the firing of cannon, and the acclamations of the people, first to the Exchange, where he was welcomed in a formal address, and then to the house prepared for his reception. {1}

During the week he remained in Charleston, he received the most lively and touching tokens of welcome and affection from the warm-hearted Carolinians, who strove to render him every species of honor. A corporation ball on a grand scale, a large dinner party at Governor Pinckney's mansion, another at Maj. Pierce Butler's, a concert, and a splendid public entertainment given by the merchants of the city, formed a portion only of the testimonials of homage and welcome given on this occasion to their illustrious guest.

He left Charleston on the 9th of May (1791), escorted to Ashley ferry by the governor and a large cavalcade. "At Perrysburg," says Dr. Griswold, "he was met the next day by a committee from Savannah, and, with General Wayne, Major Butler, Mr. Baillie, and Major Jackson, was conducted on board a richly decorated boat, in which the party were rowed down the river by nine sea captains, dressed in light-blue silk jackets, black satin breeches, white silk stockings, and round hats with black ribbons, inscribed with 'Long live the President,' in golden letters. Ten miles from the city they were met by other barges, from one of which a company of gentlemen sung the popular song, 'He comes, the hero comes!' As they drew near the harbor, every vessel and all the shore were discovered to be thronged with people. When the President stepped on the landing he was received by Gen. James Jackson, who introduced him to the mayor and aldermen; and he was soon after conducted, in the midst of a procession, through crowds of spectators, to the house prepared for his accommodation in St. James' square. The same evening he dined with the city authorities and a large number of other

gentlemen, at Brown's Coffee House. Cannons were fired during the day, and at night the streets and the shipping were brilliantly illuminated. On Friday he dined with the Cincinnati of the State of Georgia, and attended a ball. On Saturday, accompanied by General McIntosh, who had been second in command under General Lincoln in storming them, he examined the remaining traces of the lines constructed by the British for the defense of Savannah in 1779, and dined with 200 citizens and strangers under a beautiful arbor, supported by numerous columns and ornamented with laurel and bay leaves, erected on an elevation which commanded a view of the town and the harbor.

"It has been frequently said of Washington, that 'no man in the army had a better eye for a horse,' and many of his letters show that he was by no means indifferent as to the qualities or treatment of his stud, during the war and afterward. A tour of 1,900 miles, with the same animals, was a severe test of their capacities, and before reaching Charleston he wrote to Mr. Lear, that though, all things considered, they had got on very well, yet his horses were decidedly worsted, and if brought back would 'not cut capers, as they did on setting out.' On the 13th of May, he says in a letter to the same correspondent:

"I shall leave this place to-morrow; my horses, especially the two I bought just before I left Philadelphia, and my old white horse, are much worn down, and I have yet 150 or 200 miles of heavy sand to pass before I get fairly into the upper and firmer road.'

"On the way to Augusta he stopped to dine with the widow of his old friend and companion in arms, General Greene, at her seat called Mulberry Grove. On Wednesday, the 18th (May, 1791), Governor Telfair and the principal officers of the State left the capital, with a numerous train of citizens, and proceeded five miles toward Savannah to meet him, and he was conducted to his lodgings accompanied by thousands of people, who filled the air with joyous acclamations. That day he dined with a large party at the Grove, the governor's private residence, near Augusta, where Mrs. Telfair assembled the ladies of the town to meet him at a ball in the evening; on Thursday he received and answered an address from the people, attended a public dinner, and was present at another ball; on Friday he visited the academy and dined again with the governor; and on Saturday he started again on his return, Augusta being the further point of his journey.

"Coming again into South Carolina, he was conducted to Columbia by General Winne, Col. Wade Hampton, and a large number of other citizens, and the next day dined with more than 200 of the principal men and women of the town and neighboring country at the State house, and in the evening attended a ball.

"On Wednesday, the 25th (May, 1791), he dined at Camden, and on the following morning visited this grave of the Baron de Kalb, the places where the British redoubts had been erected, Hobkirk Hill, where General Greene was attacked by Lord Rawdon, and the plains where General Gates was engaged by Lord Cornwallis in 1780. Passing through Charlotte, Salisbury, Salem, Guilford, and other towns, in all of which the love and reverence of the people were exhibited in every variety of manner which taste and ingenuity could suggest, he arrived at Mount Vernon on the 12th of June.

"He remained at his seat between three and four weeks, during which he was occupied with his private affairs, and, with Major L'Enfant and others, with the location of the new seat of government, on the banks of the Potomac. On Thursday, the last day of June (1791), he started for Philadelphia by way of Frederick, York, and Lancaster, and arrived at the presidential residence about noon on the 6th of July, having been absent nearly three months, and during that period performed a journey of 1,887 miles." {2}

Washington was highly pleased with the result of his observations during this tour. In a letter to Hamilton (June 13th), from Mount Vernon on his return, we have occasion to notice the benefit he derived from his habits of method and forethought in any undertaking which he contemplated. "My return to this place," he writes, "is sooner than I expected, owing to the uninterruptedness of my journey by sickness, from bad weather, or accidents of any kind whatsoever. Having obtained, before I left Philadelphia, the most accurate accounts I could get there of the places and roads through and by which I was to perform my tour, and the distances between the former, I formed my line of march accordingly, fixing each day's journey and the day to halt; from neither of which have I departed in a single instance, except staying, from a particular circumstance, two days in Columbia, and none at Charlotte, instead of one at each, and crossing James river at Carter's ferry, in place of Taylor's, as was my original intention. But the improbability of performing a tour of 1,700 miles (I have already rode

more) with the same set of horses, without encountering any accident, by which a deviation would be rendered unavoidable, appeared so great, that I allowed eight days for casualties, and six to refresh at this place, when I should have returned to it. None of the former having happened, accounts for the fourteen days I shall remain here before the meeting of the commissioners." {3}

In relation to this tour in the southern States Marshall says: "In passing through them he was received universally with the same marks of affectionate attachment which he had experienced in the northern and central parts of the Union. To the sensibilities which these demonstrations of the regard and esteem of good men could not fail to inspire, was added the high gratification produced by observing the rapid improvements of the country, and the advances made by the government in acquiring the confidence of the people." The numerous letters written by him after his return to Philadelphia, attest the agreeable impressions made by these causes. "In my late tour through the southern States," said he, in a letter of the 28th of July, to Mr. Gouverneur Morris, "I experienced great satisfaction in seeing the good effects of the general government in that part of the Union. The people at large have felt the security which it gives, and the equal justice which it administers to them. The farmer, the merchant, and the mechanic have seen their several interests attended to, and from thence they unite in placing a confidence in their representatives, as well as in those in whose hands the execution of the laws is placed. Industry has there taken place of idleness, and economy of dissipation. Two or three years of good crops, and a ready market for the produce of their lands, have put everyone in good humor, and, in some instances, they even impute to the government what is due only to the goodness of Providence.

"The establishment of public credit is an immense point gained in our national concerns. This, I believe, exceeds the expectation of the most sanguine among us; and a late instance, unparalleled in this country, has been given of the confidence reposed in our measures, by the rapidity with which the subscriptions to the Bank of the United States were filled. In two hours after the books were opened by the commissioners the whole number of shares was taken up, and 4,000 more applied for than were allowed by the institution. This circumstance was not only pleasing, as it related to the confidence in government, but also as it exhibited an unexpected proof of the resources of our citizens."

This visit had undoubtedly some tendency to produce the good disposition which Washington observed with so much pleasure. The affections are, perhaps, more intimately connected with the judgment than we are disposed to admit; and the appearance of the chief magistrate of the Union, who was the object of general love and reverence, could not be without its influence in conciliating the minds of many to the government he administered, and to its measures. But this progress toward conciliation was, perhaps, less considerable than was indicated by appearances. The hostility to the government, which was coeval with its existence, though diminished, was far from being subdued; and under this smooth exterior was concealed a mass of discontent, which, though it did not obtrude itself on the view of the man who united almost all hearts, was active in its exertions to effect its objects.

The difficulties which must impede the recruiting service in a country where coercion is not employed, and where the common wages of labor greatly exceed the pay of a soldier, protracted the completion of the regiments to a late season of the year, but the summer was not permitted to waste in total inaction.

The act passed at the last session for the defense of the frontiers, in addition to its other provisions, had given to the President an unlimited power to call mounted militia into the field. Under this authority two expeditions had been conducted against the villages on the Wabash, in which a few of the Indian warriors were killed, some of their old men, women, and children were made prisoners, and several of their towns and fields of corn were destroyed. The first was led by General Scott, in May, and the second by General Wilkinson, in September. These desultory incursions had not much influence on the war.

It was believed in the United States that the hostility of the Indians was kept up by the traders living in their villages. These persons had, generally, resided in the United States, and, having been compelled to leave the country, in consequence of the part they had taken during the war of the Revolution, felt the resentments which banishment and confiscation seldom fail to inspire. Their enmities were ascribed by many, perhaps unjustly, to the temper of the government in Canada; but some countenance seemed to be given to this opinion by intelligence that, about the commencement of the preceding campaign, large supplies of ammunition had been delivered

from the British posts on the lakes to the Indians at war with the United States. While Washington was on his southern tour, he addressed a letter to the Secretary of State, to be communicated to Colonel Beckwith, who still remained in Philadelphia as the informal representative of his nation, in which he expressed his surprise and disappointment at this interference, by the servants or subjects of a foreign State, in a war prosecuted by the United States for the sole purpose of procuring peace and safety for the inhabitants of their frontiers.

On receiving this communication Colonel Beckwith expressed his disbelief that the supplies mentioned had been delivered; but, on being assured of the fact, he avowed the opinion that the transaction was without the knowledge of Lord Dorchester, to whom he said he should communicate, without delay, the ideas of the American government on the subject.

On the 24th of October (1791) the second Congress assembled in Philadelphia. In his speech, at the opening of the session, the President expressed his great satisfaction at the prosperous situation of the country, and particularly mentioned the rapidity with which the shares in the Bank of the United States were subscribed, as "among the striking and pleasing evidences which presented themselves, not only of confidence in the government, but of resources in the community."

Adverting to the measures which had been taken in execution of the laws and resolutions of the last session, "the most important of which," he observed, "respected the defense and security of the western frontiers," he had, he said "negotiated provisional treaties and used other proper means to attach the wavering, and to confirm in their friendship the well-disposed tribes of Indians. The means which he had adopted for a pacification with those of a hostile description having proved unsuccessful, offensive operations had been directed, some of which had proved completely successful, and others were still depending. Overtures of peace were still continued to the deluded tribes, and it was sincerely to be desired that all need of coercion might cease, and that an intimate intercourse might succeed, calculated to advance the happiness of the Indians, and to attach them firmly to the United States."

In marking the line of conduct which ought to be maintained for the promotion of this object, he strongly recommended "justice to the savages,

and such rational experiments for imparting to them the blessings of civilization, as might from time to time suit their condition;" and then concluded this subject with saying: "A system corresponding with the mild principles of religion and philanthropy, toward an unenlightened race of men whose happiness materially depends on the conduct of the United States, would be as honorable to the national character, as conformable to the dictates of sound policy."

After stating that measures had been taken for carrying into execution the act laying duties on distilled spirits, he added: "The impressions with which this law has been received by the community have been, upon the whole, such as were to have been expected among enlightened and well-disposed citizens, from the propriety and necessity of the measure. The novelty, however, of the tax, in a considerable part of the United States, and a misconception of some of its provisions, have given occasion, in particular places, to some degree of discontent. But it is satisfactory to know that this disposition yields to proper explanations, and more just apprehensions of the true nature of the law. And I entertain a full confidence that it will, in all, give way to motives which arise out of a just sense of duty, and a virtuous regard to the public welfare.

"If there are any circumstances in the law, which, consistently with its main design, may be so varied as to remove any well-intentioned objections that may happen to exist, it will comport with a wise moderation to make the proper variations. It is desirable, on all occasions, to unite with a steady and firm adherence to constitutional and necessary acts of government, the fullest evidence of a disposition, as far as may be practicable, to consult the wishes of every part of the community, and to lay the foundations of the public administration in the affections of the people."

The answers of the two houses noticed, briefly and generally, the various topics of the speech; and, though perhaps less warm than those of the preceding Congress, manifested great respect for the executive magistrate, and an undiminished confidence in his patriotic exertions to promote the public interests.

Soon after Congress was organized for business a warm debate sprung up in relation to the new apportionment of representatives, in accordance with the census, which had been taken in the preceding year, and the results of which were now ready for the consideration of Congress. The contest was

not put to rest till the following April (1792); and not till the third bill was constructed did the two houses agree. The first proposal made by the representatives was to adopt the lowest ratio allowed by the constitution—30,000, which would have raised their numbers to 113, but there would have been large fractions of population in the northern States left unrepresented. The Senate, to lessen those disfranchised remnants, raised the ratio to 33,000; but it was alleged that then there were fractions, though not so large, remaining in the southern States. The house would not accept the change, and reiterated its former proposal in a new bill, which also arranged the taking of another census before the expiration of ten years; but the Senate refused its assent to this, and, instead, increased the numbers to 120 by assigning representatives to the largest fractions. This, which violated the letter of the constitution, excited greater heat than ever, and the old threat of breaking up the Union was resorted to. A committee of conference was demanded at length, and in the end the scheme of the Senate was carried by a majority of two out of sixty votes. This decision has been remarked upon as having a curious bearing upon the old political controversies, the representatives of the southern States being found rejecting the amendment of the Senate, which embodied their own State sovereignty principle; and those of the North accepting it, although they were most in favor of the opposite principle of polity.

Washington very justly considered this mode of apportionment as contrary to the constitution, and on the 5th of April returned the bill to Congress, with his objections. The first was, that the constitution had prescribed that representatives should be apportioned among the several States according to their respective numbers, and that there was no one proportion or division which, applied to the respective States, would yield the number and allotment of representatives proposed by the bill; the second, that by the constitution, the number of representatives should not exceed one for every 30,000, which restriction, by the fair and obvious construction, was to be applied to the separate and respective States, and that the bill had allotted to eight States more than one for every 30,000. This was the *first* instance in which the President had exercised his *veto* upon any act of Congress. {4}

The bill, not being repassed by two-thirds of both houses, was rejected. A bill afterward passed, April 9, 1792, by a vote of thirty-four to thirty, apportioning the representatives agreeable to a ratio of one for every 33,000

in each State, which received the sanction of the President, and thus, this interesting part of the constitution was finally settled.

During this session of Congress an act passed for establishing a uniform militia.

Washington had manifested, from the commencement of his administration, a peculiar degree of solicitude on this subject, and had repeatedly urged it on Congress.

In his speech at the opening of the present session, he again called the attention of the Legislature to it, and at length a law was enacted, though it was less efficacious than the plan reported by General Knox, the Secretary of War.

In December (1791) intelligence was received by the President, and immediately communicated to Congress, that the American army had been totally defeated on the 4th of the preceding month.

Although the most prompt and judicious measures had been taken to raise the troops and to march them to the frontiers, they could not be assembled in the neighborhood of Fort Washington until the month of September, nor was the establishment even then completed.

The immediate objects of the expedition were to destroy the Indian villages on the Miami, to expel the savages from that country, and to connect it with the Ohio by a chain of posts which would prevent their return during the war.

On the 7th of September (1791) the regulars moved from their camp in the vicinity of Fort Washington, and marching directly north, toward the object of their destination, established two intermediate posts, Forts Hamilton and Jefferson, at the distance of rather more than forty miles from each other, as places of deposit and of security either for convoys of provisions which might follow the army, or for the army itself should any disaster befall it. The last of these works, Fort Jefferson, was not completed until the 24th of October, before which time reinforcements were received of about 360 militia. After placing garrisons in the forts the effective number of the army, including militia, amounted to rather less than 2,000 men. With this force the general continued his march, which was rendered both slow and laborious by the necessity of opening a road. Small parties of Indians were frequently seen hovering about them and some unimportant skirmishes took place. As the army approached the country in which they

might expect to meet an enemy about sixty of the militia deserted in a body. This diminution of force was not in itself an object of much concern. But there was reason to fear that the example, should those who set it be permitted to escape with impunity, would be extensively followed, and it was reported to be the intention of the deserters to plunder convoys of provisions which were advancing at some distance in the rear. To prevent mischiefs of so serious a nature the general detached Major Hamtranck with the first regiment in pursuit of the deserters, and directed him to secure the provisions under a strong guard.

The army, consisting of about 1,400 effective rank and file, continued its march, and, on the 3d of November, encamped about fifteen miles south of the Miami villages. The right wing, under the command of General Butler, formed the first line and lay with a creek, about twelve yards wide, immediately in its front. The left wing, commanded by Lieutenant-Colonel Darke, formed the second, and between the two lines was an interval of about seventy yards. The right flank was supposed to be secured by the creek, by a steep bank, and by a small body of troops; the left was covered by a party of cavalry and by piquets. The militia crossed the creek and advanced about a quarter of a mile in front, where they also encamped in two lines. On their approach a few Indians who had shown themselves on the opposite side of the creek fled with precipitation.

At this place the general intended to throw up a slight work for the security of the baggage, and, after being joined by Major Hamtranck, to march, as unencumbered and as expeditiously as possible, to the villages he purposed to destroy.

In both of these designs he was anticipated. About half an hour before sunrise on the day following, just after the troops had been dismissed from the parade, an unexpected attack was made upon the militia, who fled in the utmost confusion, and rushing into camp through the first line of Continental troops, which had been formed the instant the first gun was discharged, threw them too into disorder. The exertions of the officers to restore order were not entirely successful. The Indians pressed close upon the heels of the flying militia and engaged General Butler with great intrepidity. The action instantly became extremely warm, and the fire of the assailants, passing round both flanks of the first line, was, in a few minutes, poured with equal fury on the rear division. Its greatest weight was directed

against the center of each wing, where the artillery was posted, and the artillerists were mowed down in great numbers. Firing from the ground and from the shelter which the woods afforded, the assailants were scarcely seen but when springing from one cover to another, in which manner they advanced close up to the American lines and to the very mouths of the field pieces. They fought with the daring courage of men whose trade is war and who are stimulated by all those passions which can impel the savage mind to vigorous exertions.

While some of the American soldiers performed their duty with the utmost resolution, others seemed dismayed and terrified. Of this conduct the officers were, as usual, the victims. With a fearlessness which the occasion required, they exposed themselves to the most imminent dangers, and, in their efforts to change the face of affairs, fell in great numbers.

For several days the Commander-in-Chief had been afflicted with a severe disease, under which he still labored, and which must have greatly affected him, but, though unable to display that activity which would have been useful in this severe conflict, neither the feebleness of his body nor the peril of his situation could prevent his delivering his orders with judgment and with self-possession.

It was soon perceived that the American fire could produce, on a concealed enemy, no considerable effect, and that the only hope of victory was placed in the bayonet. At the head of the second regiment, which formed the left of the left wing, Lieutenant-Colonel Darke made an impetuous charge upon the enemy, forced them from their ground with some loss and drove them about 400 yards. He was followed by that whole wing, but the want of a sufficient number of riflemen to press this advantage deprived him of the benefit which ought to have been derived from this effort, and, as soon as he gave over the pursuit, the Indians renewed their attack. In the meantime General Butler was mortally wounded, the left of the right wing was broken, the artillerists almost to a man killed, the guns seized, and the camp penetrated by the enemy. With his own regiment and with the battalions commanded by Majors Butler and Clarke, Darke was ordered again to charge with the bayonet. These orders were executed with intrepidity and momentary success. The Indians were driven out of the camp, and the artillery recovered. But while they were pressed in one point by the bravest of the American troops, their fire was

kept up from every other with fatal effect. Several times particular corps charged them, always with partial success, but no universal effort could be made, and in every charge a great loss of officers was sustained, the consequences of which were severely felt. Instead of keeping their ranks, and executing the orders which were given, a great proportion of the soldiers flocked together in crowds and were shot down without resistance. To save the remnant of his army was all that remained to be done, and about half past 9 in the morning General St. Clair ordered Lieutenant-Colonel Darke, with the Second regiment, to charge a body of Indians who had intercepted their retreat and to gain the road. Major Clarke, with his battalion, was directed to cover the rear. These orders were executed and a disorderly flight commenced. The pursuit was kept up about four miles, when, fortunately for the surviving Americans, that avidity for plunder which is a ruling passion among savages, called back the victorious Indians to the camp, where the spoils of their vanquished foes were to be divided. The routed troops continued their flight to Fort Jefferson, a distance of about thirty miles, throwing away their arms on the road. At this place they met Major Hamtranck with the First regiment, and a council of war was called to deliberate on the course to be pursued. As this regiment was far from restoring the strength of the morning, it was determined not to attempt to retrieve the fortune of the day, and, leaving the wounded at Fort Jefferson, the army continued its retreat to Fort Washington.

In this disastrous battle the loss on the part of the Americans was very great when compared with the numbers engaged. Thirty-eight commissioned officers were killed upon the field, and 593 noncommissioned officers and privates were slain and missing. Twenty-one commissioned officers, several of whom afterward died of their wounds, and 242 noncommissioned officers and privates were wounded. Among the dead was the brave and much-lamented General Butler. This gallant officer had served through the war of the Revolution, and had, on more than one occasion, distinguished himself in a remarkable manner. In the list of those who shared his fate were the names of many other excellent officers who had participated in all the toils, the dangers, and the glory of that long conflict which terminated in the independence of their country. At the head of the list of wounded were Lieutenant-Colonels Gibson and Darke, Major Butler, and Adjutant-General Sargent, all of whom were veteran officers of great merit, who displayed their accustomed bravery on this unfortunate

day. General St. Clair, in his official letter, observed: "The loss the public has sustained by the fall of so many officers, particularly of General Butler and Major Ferguson, cannot be too much regretted, but it is a circumstance that will alleviate the misfortune in some measure, that all of them fell most gallantly doing their duty."

From the weight of the fire and the circumstance of his being attacked nearly at the same time in front and rear, General St. Clair was of opinion that he was overpowered by numbers. The intelligence afterward collected would make the Indian force to consist of from 1,000 to 1,500 warriors. Of their loss no estimate could be made; the probability is that it bore no proportion to that sustained by the American army.

Nothing could be more unexpected than this severe disaster. The public had confidently anticipated a successful campaign and could not believe that the general who had been unfortunate had not been culpable.

General St. Clair requested with earnestness that a court-martial should sit on his conduct, but this request could not be granted, because the army did not furnish a sufficient number of officers of a grade to form a court for his trial on military principles. Late in the session a committee of the House of Representatives was appointed to inquire into the cause of the failure of the expedition, whose report, in explicit terms, exculpated St. Clair. This inquiry, however, was instituted rather for the purpose of investigating the conduct of civil than of military officers, and was not conducted by military men. More satisfactory testimony in favor of St. Clair is furnished by the circumstance that he still retained the undiminished esteem and good opinion of the President. {5}

The confidence of Washington in St. Clair, however, had been very severely shaken on his first receiving intelligence of his defeat. This fact is known by the recent publication of an anecdote communicated by Mr. Lear to the Hon. Richard Rush, and by him inserted in his "Washington in Domestic Life," as follows:

"An anecdote I derived from Colonel Lear shortly before his death in 1816," says Mr. Rush, "may here be related, showing the height to which his (Washington's) passion would rise yet be controlled. It belongs to his domestic life which I am dealing with, having occurred under his own roof, whilst it marks public feeling the most intense and points to the moral of his

life. I give it in Colonel Lear's words as nearly as I can, having made a note of them at the time.

"Toward the close of a winter's day in 1791, an officer in uniform was seen to dismount in front of the President's in Philadelphia, and, giving the bridle to his servant, knocked at the door of his mansion. Learning from the porter that the President was at dinner, he said he was on public business and had dispatches for the President. A servant was sent into the dining-room to give the information to Mr. Lear, who left the table and went into the hall, where the officer repeated what he had said. Mr. Lear replied that, as the President's secretary, he would take charge of the dispatches and deliver them at the proper time. The officer made answer that he had just arrived from the western army, and his orders were to deliver them with all promptitude, and to the President in person, but that he would wait his directions. Mr. Lear returned and in a whisper imparted to the President what had passed. General Washington rose from the table and went to the officer. He was back in a short time, made a word of apology for his absence, but no allusion to the cause of it. He had company that day. Everything went on as usual. Dinner over, the gentlemen passed to the drawing-room of Mrs. Washington, which was open in the evening. The general spoke courteously to every lady in the room, as was his custom. His hours were early, and by 10 o'clock all the company had gone. Mrs. Washington and Mr. Lear remained. Soon Mrs. Washington left the room.

"The general now walked backward and forward slowly for some minutes without speaking. Then he sat down on a sofa by the fire, telling Mr. Lear to sit down. To this moment there had been no change in his manner since his interruption at table. Mr. Lear now perceived emotion. This rising in him, he broke out suddenly: 'It's all over! St. Clair's defeated—routed—the officers nearly all killed—the men by wholesale—the rout complete—too shocking to think of—and a surprise into the bargain!'

"He uttered all this with great vehemence. Then he paused, got up from the sofa, and walked about the room several times, agitated but saying nothing. Near the door he stopped short and stood still a few seconds, when his wrath became terrible.

"'Yes,' he burst forth, 'here on this very spot I took leave of him; I wished him success and honor. You have your instructions, I said, from the Secretary of War; I had a strict eye to them, and will add but one word—

beware of a surprise! I repeat it—beware of a surprise! You know how the Indians fight us. He went off with that as my last solemn warning thrown into his ears. And yet! to suffer that army to be cut to pieces—hacked, butchered, tomahawked—by a surprise—the very thing I guarded him against! O God, O God, he's worse than a murderer! How can he answer it to his country! The blood of the slain is upon him—the curse of widows and orphans—the curse of Heaven!

"This torrent came out in tones appalling. His very frame shook. It was awful said Mr. Lear. More than once he threw his hands up as he hurled imprecations upon St. Clair. Mr. Lear remained speechless—awed into breathless silence.

"The roused chief sat down on the sofa once more. He seemed conscious of his passion and uncomfortable. He was silent. His warmth beginning to subside, he at length said in an altered voice: 'This must not go beyond this room.' Another pause followed—a longer one—when he said in a tone quite low: 'General St. Clair shall have justice. I looked hastily through the dispatches, saw the whole disaster, but not all the particulars. I will receive him without displeasure; I will hear him without prejudice. He shall have full justice.'

"He was now, said Mr. Lear, perfectly calm. Half an hour had gone by. The storm was over, and no sign of it was afterward seen in his conduct or heard in his conversation. The result is known. The whole case was investigated by Congress. St. Clair was exculpated and regained the confidence Washington had in him when appointing him to that command. He had put himself into the thickest of the fight, and escaped unhurt, though so ill as to be carried on a litter, and unable to mount his horse without help."

This anecdote might, at first, seem discreditable to Washington, as exhibiting the mighty strength of his passions when aroused. But upon mature consideration it does him great honor, affording equal evidence of his power of self-control, his public spirit, his disinterestedness, and his candor.

The Indian war now assumed a still more serious aspect. There was reason to fear that the hostile tribes would derive a great accession of strength from the impression which their success would make upon their neighbors; and the reputation of the government was deeply concerned in

retrieving the fortune of its arms, and affording protection to its citizens. The President, therefore, lost no time in causing the estimates for a competent force to be prepared and laid before Congress. In conformity with a report made by the Secretary of War, a bill was brought into the House of Representatives, directing three additional regiments of infantry and a squadron of cavalry to be raised, to serve for three years, if not sooner discharged. The whole military establishment, if completed, would amount to about 5,000 men. The additional regiments, however, were to be disbanded as soon as peace should be concluded with the Indians; and the President was authorized to discharge, or to forbear to raise any part of them, "in case events should, in his judgment, render his so doing consistent with the public safety."

This bill met with great opposition. A motion was made to strike out the section which authorized an augmentation of force. This led to a very animated debate, in which the opposition exhibited a determination to embarrass the administration by defeating even the most necessary and useful measures it might propose. The public spirit and good sense of the majority, however, prevailed. The motion for striking out the section was lost, and the bill was carried for the augmentation of force required by the executive.

The treasury was not in a condition to meet the demands upon it, which the increased expenses of the war would unavoidably occasion, and sources of additional revenue were to be explored. A select committee, to whom this subject was referred, brought in a resolution directing Mr. Hamilton, the Secretary of the Treasury, to report his opinion to the House, on the best mode of raising those additional supplies which the public service might require for the current year.

This proposition gave rise to a very animated debate.

It will be recollected that when the act for establishing the Treasury Department was under consideration, the clause which rendered it the duty of the secretary to digest and report plans for the improvement and management of the revenue, and for the support of public credit, was earnestly opposed. A large majority, however, was in favor of the principle, and, after being so modified as only to admit a report if required by the House, it was retained in the bill.

In complying with the various resolutions of Congress, calling for reports on subjects connected with his department, Hamilton had submitted plans which, having been profoundly considered, were well digested, and accompanied by arguments, the force of which it was difficult to resist. His measures were generally supported by a majority of Congress; and, while the high credit of the United States was believed to attest their wisdom, the masterly manner in which his reports were drawn, contributed to raise still higher that reputation for great talents which he had long possessed. To the further admission of these reports, it was determined, on this occasion, to make a vigorous resistance.

But the opposition was not successful. On taking the question the resolution was carried, thirty-one members voting in its favor, and twenty-seven against it.

The report made by Hamilton, in pursuance of this resolution, recommended certain augmentations of the duties on imports, and was immediately referred to the consideration of a committee of the whole House. Resolutions were then passed which were to form the basis of a bill; and which adopted, not only the principles, but, with the exception of a few unimportant alterations, the minute details of the report.

Before the question was taken on the bill a motion was made to limit its duration, the vote upon which marked the progress of opinion in the House respecting those systems of finance which were believed to have established the credit of the United States.

Hamilton had deemed it indispensable to the creation of public credit that the appropriations of funds for the payment of the interest, and the gradual redemption of the principal of the national debt, should be not only sufficient, but permanent also. A party was found in the first Congress who opposed this principle, and were in favor of retaining a full power over the subject in each branch of the Legislature, by making annual appropriations. The arguments which had failed in Congress appear to have been more successfully employed with the people. Among the multiplied vices which were ascribed to the funding system, it was charged with introducing a permanent and extensive mortgage of funds, which was alleged to strengthen unduly the hands of the executive magistrate, and to be one of the many evidences which existed of monarchical propensities in those who administered the government.

The report lately made by Hamilton, and the bill founded on that report, contemplated a permanent increase of the duties on certain specified articles, and a permanent appropriation of the revenue arising from them to the purposes of the national debt. Thirty-one members were in favor of the motion for limiting the duration of the bill, and only thirty against it. By the rules of the House, the speaker has a right first to vote as a member, and, if the numbers should then be equally divided, to decide as speaker. Being opposed to the limitation, the motion was lost by his voice, and Hamilton's measure was carried through in its original form.

On the 8th of May (1792), after an active and interesting session, Congress adjourned to the first Monday in November.

Among the bills passed at this session of Congress the most important were that for the apportionment of the representatives, and that for the augmentation of the military force, inasmuch as the discussion of these measures served to develop the political parties which had begun to divide Congress and the people. In apportioning the representatives many members of Congress endeavored to obtain the largest possible number, in order to preserve the rights of the States and check the power of the executive. On the same principles the army bill was opposed, as having a tendency to increase executive power and patronage, and thus endanger the liberties of the country.

Throughout the United States the party opposed to the constitution had charged its supporters with a desire to establish a monarchy on the ruins of Republican government; and the constitution itself was alleged to contain principles which would prove the truth of this charge. The leaders of that party had, therefore, been ready, from the instant the government came into operation, to discover, in all its measures, those monarchical tendencies which they had perceived in the instrument they opposed.

The salaries allowed to public officers, though so low as not to afford a decent maintenance to those who resided at the seat of government, were declared to be so enormously high, as clearly to manifest a total disregard of that simplicity and economy which were the characteristics of republics.

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The levees of the President, and the evening parties of Mrs. Washington, were said to be imitations of regal institutions, designed to accustom the American people to the pomp and manners of European courts. The Vice-

President, too, was said to keep up the state and dignity of a monarch, and to illustrate, by his conduct, the principles which were inculcated in his political works.

The Indian war, they alleged, was misconducted, and unnecessarily prolonged, for the purposes of expending the public money, and of affording a pretext for augmenting the military establishment, and increasing the revenue.

All this prodigal waste of the money of the people was designed to keep up the national debt, and the influence it gave the government; which, united with standing armies and immense revenues, would enable their rulers to rivet the chains which they were secretly forging. Every prediction which had been uttered respecting the anti-Republican principles of the government, was said to be rapidly verifying, and that which was disbelieved as prophecy, was daily becoming history. If a remedy for these ills was not found in the increased representation of the people which would take place at the ensuing elections, they would become too monstrous to be borne; and when it was recollected that the division of opinion was marked by a geographical line, there was reason to fear that the Union would be broken into one or more confederacies.

These irritable symptoms had assumed appearances of increased malignity during the session of Congress which had just terminated; and, to Washington, who firmly believed that the Union and the liberty of the States depended on the preservation of the government, they were the more unpleasant and the more alarming because they were displayed in full force in his cabinet.

The feud between Jefferson and Hamilton, to which we have already referred, still continued in full force, and they were regarded, as in fact they were, respectively, the heads of the two parties. They disagreed not only on the internal affairs but on the foreign policy of the government: Jefferson having a leaning towards the Revolutionists of France, and Hamilton favoring a conciliatory policy toward Great Britain.

In all popular governments the press is the most ready channel by which the opinions and the passions of the few are communicated to the many; and of the press, the two great parties forming in the United States sought to avail themselves. The "Gazette of the United States" supported the systems of Hamilton, while other papers enlisted themselves under the banners of

the opposition. Conspicuous among these was the "National Gazette," a paper edited by Philip Freneau, the poet, a clerk in the Department of State. The avowed purpose for which Jefferson patronized this paper was to present to the eye of the American people European intelligence derived from the "Leyden Gazette," instead of English papers; but it soon became the vehicle of calumny against the funding and banking systems; against the duty on home-made spirits, which was denominated an excise, and against the men who had proposed and supported those measures. With, perhaps, equal asperity, the papers attached to the party which had defended these systems, assailed the motives of the leaders of the opposition.

This schism in his cabinet was a subject of extreme mortification to Washington. Entertaining a high respect for the talents, and a real esteem for the characters of both gentlemen, he was unwilling to part with either, and exerted all the influence he possessed to effect a reconciliation between them. In a letter of the 23d of August (1792), addressed to Jefferson, after reviewing the critical situation of the United States with respect to its external relations, he thus expressed himself on this delicate subject: "How unfortunate, and how much is it to be regretted then, that while we are encompassed on all sides with avowed enemies and insidious friends, internal dissensions should be harassing and tearing our vitals. The last, to me, is the most serious, the most alarming, and the most afflicting of the two, and, without more charity for the opinions of one another in governmental matters, or some more infallible criterion by which the truth of speculative opinions, before they have undergone the test of experience, are to be forejudged, than has yet fallen to the lot of fallibility, I believe it will be difficult, if not impracticable, to manage the reins of government, or to keep the parts of it together; for if, instead of laying our shoulders to the machine, after measures are decided on, one pulls this way, and another that, before the utility of the thing is fairly tried, it must inevitably be torn asunder; and, in my opinion, the fairest prospect of happiness and prosperity that ever was presented to man will be lost, perhaps forever.

"My earnest wish and my fondest hope, therefore, is, that instead of wounding suspicions and irritating charges, there may be liberal allowances, mutual forbearances, and temporizing yielding on all sides. Under the exercise of these, matters will go on smoothly; and, if possible, more prosperously. Without them everything must rub; the wheels of government will clog; our enemies will triumph, and, by throwing their

weight into the disaffected scale, may accomplish the ruin of the goodly fabric we have been erecting.

"I do not mean to apply this advice, or these observations, to any particular person or character. I have given them in the same general terms to other officers of the government, because the disagreements which have arisen from difference of opinions and the attacks which have been made upon almost all the measures of government, and most of its executive officers, have for a long time past filled me with painful sensations, and cannot fail, I think, of producing unhappy consequences at home and abroad."

In a subsequent letter to Jefferson, in answer to one which enclosed some documents designed to prove that, though desirous of amending the constitution, he had favored its adoption, the President said: "I did not require the evidence of the extracts which you enclosed me, to convince me of your attachment to the constitution of the United States, or of your disposition to promote the general welfare of this country, but I regret, deeply regret, the difference of opinion which has arisen and divided you and another principal officer of the government, and wish devoutly there could be an accommodation of them by mutual yieldings.

"A measure of this sort would produce harmony and consequent good in our public councils, and the contrary will inevitably produce confusion and serious mischiefs—and for what? because mankind cannot think alike, but would adopt different means to attain the same end. For I will frankly and solemnly declare that I believe the views of both to be pure and well meant, and that experience only will decide with respect to the salubrity of the measures which are the subjects of this dispute.

"Why, then, when some of the best citizens of the United States, men of discernment, uniform and tried patriots, who have no sinister views to promote, but are chaste in their ways of thinking and acting, are to be found, some on one side and some on the other, of the questions which have caused these agitations—why should either of you be so tenacious of your opinions as to make no allowance for those of the other?

"I could and, indeed, was about to add more on this interesting subject, but will forbear, at least for the present, after expressing a wish that the cup which has been presented to us may not be snatched from our lips by a discordance of action, when I am persuaded there is no discordance in your

views. I have a great, a sincere esteem and regard for you both, and ardently wish that some line could be marked out by which both of you could walk."

On the same subject Washington addressed a letter to Hamilton, from which the following is an extract:

"Differences in political opinions are as unavoidable as, to a certain point, they may be necessary; but it is exceedingly to be regretted that subjects cannot be discussed with temper, on the one hand, or decisions submitted to on the other, without improperly implicating the motives which led to them; and this regret borders on chagrin when we find that men of abilities, zealous patriots, having the same general objects in view, and the same upright intentions to prosecute them, will not exercise more charity in deciding on the opinions and actions of each other. When matters get to such lengths, the natural inference is that both sides have strained the cords beyond their bearing, that a middle course would be found the best, until experience shall have decided on the right way; or, which is not to be expected, because it is denied to mortals, until there shall be some infallible rule by which to forejudge events.

"Having premised these things, I would fain hope that liberal allowances will be made for the political opinions of each other, and instead of those wounding suspicions and irritating charges, with which some of our gazettes are so strongly impregnated, and which cannot fail, if persevered in, of pushing matters to extremity, and thereby tearing the machine asunder, that there might be mutual forbearance and temporizing yieldings on all sides. Without these, I do not see how the reins of government are to be managed or how the union of the States can be much longer preserved.

"How unfortunate would it be if a fabric so goodly, erected under so many providential circumstances, after acquiring in its first stages so much respectability, should, from diversity of sentiment, or internal obstructions to some of the acts of government (for I cannot prevail on myself to believe that these measures are as yet the acts of a determined party), be brought to the verge of dissolution! Melancholy thought! But while it shows the consequences of diversified opinions, where pushed with too much tenacity, it exhibits evidence also of the necessity of accommodation, and of the propriety of adopting such healing measures as may restore harmony to the discordant members of the Union, and the governing powers of it.

"I do not mean to apply this advice to any measures which are passed or to any particular character. I have given it, in the same general terms, to other officers of the government. My earnest wish is that balm may be poured into all the wounds which have been given, to prevent them from gangrening, and to avoid those fatal consequences which the community may sustain if it is withheld. The friends of the Union must wish this; those who are not, but who wish to see it rended, will be disappointed; and all things, I hope, will go well."

These earnest endeavors to soothe the angry passions and to conciliate the jarring discords of the cabinet were unsuccessful. The hostility which was so much and so sincerely lamented sustained no diminution, and its consequences became every day more diffusive.

Among the immediate effects of these internal dissensions was the encouragement they afforded to a daring and criminal resistance which was made to the execution of the laws imposing a duty on spirits distilled within the United States.

To the inhabitants of that part of Pennsylvania which lies west of the Alleghany mountains this duty was, from local considerations, peculiarly odious; nor was their hostility to the measure diminished by any affection for the source in which it originated. The constitution itself had encountered the most decided opposition from that part of the State, and that early enmity to the government, which exerted every faculty to prevent its adoption, had sustained no abatement. Its measures generally, and the whole system of finance particularly, had been reprobated with peculiar bitterness by many of the most popular men of that district. With these dispositions a tax law, the operation of which was extended to them, could not be favorably received, however generally it might be supported in other parts of the Union. But when, to this pre-existing temper, were superadded the motives which arose from perceiving that the measure was censured on the floor of Congress as unnecessary and tyrannical; that resistance to its execution was treated as probable; that a powerful and active party, pervading the Union, arraigned with extreme acrimony the whole system of finance as being antagonistic to liberty, and, with all the passionate vehemence of conviction, charged its advocates with designing to subvert the republican institutions of America, we ought not to be surprised that the awful impressions, which usually restrain combinations to resist the laws,

were lessened, and that the malcontents were emboldened to hope that those combinations might be successful.

The opposition to the duty on distilled spirits had been carried so far, and so daring had become the resistance to the law, as to require a proclamation from the President, warning all persons against unlawful combinations and proceedings tending to obstruct the operations of the laws. But such was the state of feeling that the proclamation produced no salutary effect.

Anxious to avoid extremities, the government resolved upon another course. Prosecutions were instituted against delinquents. The spirits distilled in the noncomplying counties were intercepted in their way to market and seized by the officers of the revenue, and the agents for the army were directed to purchase only those spirits on which the duty had been paid. Could the distillers have obeyed their wishes, these measures would have produced the desired effect. But, impelled by a furious multitude, they found it much more dangerous to obey the laws than to resist them.

Diplomatic intercourse had at length been opened with Great Britain, who had sent, on her own motion, Mr. George Hammond as minister Plenipotentiary to the United States. Mr. Hammond arrived at Philadelphia in the autumn of 1791, and soon after entered upon a long correspondence with the Secretary of State respecting the nonexecution of the treaty of peace. The British minister having entrusted to him only powers to negotiate, not to conclude, to make, not to adjust, complaints, the course of the discussion, and the principles avowed by the respective parties, speedily demonstrated the slight probability which existed of their being able to agree upon a commercial treaty.

The Indians in the Northwest still maintaining their attitude of hostility preparations for prosecuting the war with vigor were earnestly pressed. General Wayne was appointed to succeed St. Clair in the command, but the inducements to enter the service were so small that the ranks filled up very slowly and the meditated expedition could not be undertaken prudently during the present year. Meanwhile, the clamor against the war continued to be loud and violent. From respect for opinions extensively professed it was thought advisable to make still another effort to procure peace by a direct communication of the views of the executive. The fate of those who were employed in these efforts was still more to be lamented than their failure. Colonel Harden and Major Truman, two brave officers and estimable men,

were severally dispatched with propositions of peace, and each was murdered by the savages.

During the session of Congress Thomas Pinckney was nominated minister plenipotentiary to England, and Gouverneur Morris as minister plenipotentiary to France. Both these nominations were confirmed by the Senate. William Short was appointed minister resident at the Hague and was commissioned, with Mr. Carmichael, to effect a treaty with Spain. Paul Jones, during the summer, was appointed a commissioner for treating with the Dey of Algiers on the subject of peace and the ransoming of American captives. The letter informing of his appointment did not, however, reach him, for Jones died at Paris on the 18th of July, 1792, in abject poverty and destitution.

In May (1792), Washington wrote to the Earl of Buchan, transmitting his portrait, painted by Mr. Robertson, which had been solicited by the earl. In the same letter he thanked the earl for a box made of the oak that sheltered William Wallace after the battle of Falkirk. In making this present the earl had requested Washington, in the event of his decease, to leave it to the man in his own country who should appear, in his judgment, to merit it best. Washington wisely decided otherwise, and, in his will, directed it to be returned to the Earl of Buchan.

On the 9th of May (1792), the day after the rising of Congress, Washington set out from Philadelphia for Mount Vernon, but returned early in June. In July he went again to Mount Vernon, accompanied by Mrs. Washington and her two little grandchildren, intending to remain there till near the meeting of Congress, which was to take place in November. During this short residence at his beloved home Washington had much to distract his attention from his favorite rural pursuits. He was in constant correspondence with the members of the cabinet and public affairs. To Hamilton he was writing about the resistance to the tax on spirituous liquors, on the dissension between him and Jefferson, and on politics; to General Knox, Secretary of War, on the preparations for Wayne's campaign against the Indians; to Jefferson, Secretary of State, on foreign affairs, on the troubles with the Spaniards in Florida, and on the Indian war, as well as on his quarrel with Hamilton, and to Randolph, Attorney-General, on the state of parties and the licentiousness of the press.

On the subject of newspaper abuse Washington appears to have felt a degree of sensitiveness which, at the present, is rare among public men. Hitherto he appears to have been personally free from this annoyance, but he was unwilling to see his administration calumniated by political demagogues.

Writing to Gouverneur Morris, the American minister in France (October 20, 1792), he says. "From the complexion of some of our newspapers foreigners would be led to believe that inveterate political dissensions exist among us, and that we are on the very verge of disunion, but the fact is otherwise. The great body of the people now feel the advantages of the general government, and would not, I am persuaded, do anything that should destroy it, but this kind of representations is an evil which must be placed in opposition to the infinite benefits resulting from a free press, and I am sure you need not be told that in this country a personal difference in political sentiments is often made to take the garb of general dissensions."

Besides the public business which pressed heavily on Washington during his present residence at Mount Vernon he found a new source of anxiety in the alarming illness of his nephew, George Augustine Washington, to whom the care of the estate had been entrusted since 1789, when the duties of the Presidency had called the chief to the seat of government. This gentleman had served in the Revolutionary War as aid to Lafayette, with the rank of major. Writing to Lafayette (June 10, 1792), Washington says: "I am afraid my nephew George, your old aid, will never have his health perfectly re-established. He has lately been attacked with the alarming symptom of spitting large quantities of blood, and the physicians give no hope of a restoration, unless it can be effected by a change of air and a total dereliction of business, to which he is too anxiously attentive. He will, if he should be taken from his family and friends, leave three fine children, two sons and a daughter. To the eldest of the boys he has given the name of Fayette, and a fine-looking child he is."

George Augustine Washington sunk rapidly after this and died at the residence of Colonel Bassett, where he had gone for a change of air, on the 5th of February, 1793. Washington, on hearing of his decease, wrote immediately from Philadelphia, to his widow, {7} condoling with her on the heavy loss, and inviting her to reside, with her children, at Mount Vernon.

In the latter part of October Washington returned to Philadelphia, in anticipation of the meeting of Congress.

On the 5th of November (1792), Congress again convened. In Washington's speech, delivered at the commencement of the session, Indian affairs were treated at considerable length, and the continuance of the war was mentioned as a subject of much regret. "The reiterated endeavors," it was said, "which had been made to effect a pacification had hitherto issued in new and outrageous proofs of persevering hostility on the part of the tribes with whom the United States were in contest.

"A detail of the measures that had been pursued and of their consequences, which would be laid before Congress, while it would confirm the want of success thus far, would evince that means, as proper and as efficacious as could have been devised, had been employed. The issue of some of them was still depending, but a favorable one, though not to be despaired of, was not promised by anything that had yet happened."

That a sanction, commonly respected even among savages, had been found insufficient to protect from massacre the emissaries of peace, was particularly noticed, and the families of those valuable citizens who had thus fallen victims to their zeal for the public service were recommended to the attention of the Legislature.

That unprovoked aggression had been made by the southern Indians, and that there was just cause for apprehension that the war would extend to them also, was mentioned as a subject of additional concern.

"Every practicable exertion had been made to be prepared for the alternative of prosecuting the war in the event of a failure of pacific overtures. A large proportion of the troops authorized to be raised had been recruited, though the numbers were yet incomplete, and pains had been taken to discipline them and put them in a condition for the particular kind of service to be performed. But a delay of operations, besides being dictated by the measures that were pursuing toward a pacific termination of the war, had been in itself deemed preferable to immature efforts."

The humane system which has since been pursued with partial success, of gradually civilizing the savages by improving their condition, of diverting them in some degree from hunting to domestic and agricultural occupations, by imparting to them some of the most simple and useful acquisitions of society, and of conciliating them to the United States by a

beneficial and well-regulated commerce, had ever been a favorite object with the President, and the detailed view which was not taken of Indian affairs was concluded with a repetition of his recommendations of these measures.

The subject next adverted to in the speech was the impediments which, in some places, continued to embarrass the collection of the duties on spirits distilled within the United States. After observing that these impediments were lessening in local extent, but that symptoms of such increased opposition had lately manifested themselves in certain places as, in his judgment, to render his special interposition advisable, the President added: "Congress may be assured that nothing within constitutional and legal limits, which may depend on me, shall be wanting to assert and maintain the just authority of the laws. In fulfilling this trust I shall count entirely on the full cooperation of the other departments of government and upon the zealous support of all good citizens."

After noticing various objects which would require the attention of the Legislature, the President addressed himself particularly to the House of Representatives, and said: "I entertain a strong hope that the state of the national finances is now sufficiently matured to enable you to enter upon a systematic and effectual arrangement for the regular redemption and discharge of the public debt, according to the right which has been reserved to the government. No measure can be more desirable, whether viewed with an eye to its intrinsic importance, or to the general sentiments and wish of the nation."

The addresses of the two Houses in answer to the speech were, as usual, respectful and affectionate. The several subjects recommended to the attention of Congress, were noticed either in general terms, or in a manner to indicate a coincidence of sentiment between the legislative and executive departments. The turbulent spirit which had manifested itself in certain parts of the Union, was mentioned by both houses with a just degree of censure and the measures adopted by the President, as well as the resolution he expressed to compel obedience to the laws, were approved, and the House of Representatives, in the most unqualified terms, declared opinions in favor of systematic and effectual arrangements for discharging the public debt. But the subsequent proceedings of the Legislature did not fulfill the expectations excited by this auspicious commencement of the session.

At an early day in a committee of the whole House on the President's speech, Mr. Fitzsimmons moved "that measures for the reduction of so much of the public debt as the United States have a right to redeem, ought to be adopted, and that the Secretary of the Treasury be directed to report a plan for that purpose."

This motion was objected to by Mr. Madison as being premature. The state of the finances, he thought, was not sufficiently understood to authorize the adoption of the measure it contemplated. The debate, however, soon took a different direction.

On a motion made, directing the Secretaries of the Treasury and of War to attend the House and to give information, severe denunciations were poured forth against the unconstitutionality of subjecting the representatives to the control of the heads of the executive departments. The motions for requiring a report from Hamilton on a plan for redeeming the public debt, and for paying a debt owing to the bank, which were brought in by Mr. Fitzsimmons, renewed the contest, but, although Madison and others opposed the reference to the Secretary of the Treasury, the resolution was carried.

Hamilton's report proposed a plan for the redemption of the debt. But the expenses of the Indian war rendering it unsafe, in his opinion, to rest absolutely on the existing revenue, he also proposed to extend the internal taxes to pleasure horses, or pleasure carriages, as might be deemed most advisable. For the reimbursement of the bank, he recommended that power be conferred to negotiate a loan for two million dollars—the dividends on the shares held by the government to be pledged for the interest, and, as the government paid six per cent, to the bank, he relied on the saving that would be effected by borrowing at a lower rate of interest. The consideration of this report was deferred on various grounds, and a motion was made to reduce the military establishment. The debate was long and earnestly contested, but the motion was rejected on the 5th of January, 1793.

A few weeks later another subject was introduced into the House which absorbed the attention of the members and put an end, for the present session, to every measure connected with the finances.

Mr. Giles, on the 23d of January (1793), moved several resolutions, requiring information, among other things, on various points growing out of

the loans authorized by Congress in August, 1790. The object was to inculcate the Secretary of the Treasury respecting the management and application of these loans, and of the revenue generally. Mr. Giles indulged himself in remarks which clearly showed the animus of his proceedings, and it was his determination to prove to the House that there was a large balance in the funds unaccounted for. The resolutions were agreed to without debate, as was only due to Mr. Hamilton, and soon after, three successive and able reports were sent in, containing the information required.

In these reports a full exposition was given of the views and motives of the secretary, in the conduct of the treasury department. It is also evident that Hamilton felt aggrieved at this attack upon his reputation, and he did not hesitate to use language of great plainness and severity, observing in conclusion: "Thus have I not only furnished a just and affirmative view of the real situation of the public accounts, but have likewise shown, I trust, in a conspicuous manner, fallacies enough in the statements, from which the inference of an unaccounted-for balance is drawn, to evince that it is one tissue of error."

But the matter did not end here. Mr. Giles, on the 28th of February (1793), submitted to the House a series of nine resolutions, containing charges against the secretary. The substance of them was, that he had failed to give Congress information, in due time, of moneys drawn from Europe; that he had violated the law of the 4th of August, 1790, by an unauthorized application of money borrowed under it; that he had drawn part of the money into the United States, without any instructions from the President; that he had exceeded his authority in making loans, under the acts; that, without instructions from the President, he had drawn more of the money borrowed in Holland than he was authorized by those acts, and that he had been guilty of an indecorum to the House, in undertaking to judge its motives in calling for information. The debate was continued until the night of March 1st (1793), and was characterized by unusual bitterness. It terminated in a rejection of the resolutions and consequently in an entire exculpation of Hamilton from all just censure. The highest number voting in favor of any one of the resolutions was sixteen.

"The whole of the session was spent," says Mr. Gibbs, "in sifting the conduct of the secretary. {8} The investigation served one purpose of the

opposition—it prevented any question being taken on the report. It seems somewhat anomalous, that a party which had charged the administration with a wish to perpetuate the debt, should thus have thwarted its measures to discharge it; and an explanation of the fact can only be found in a fixed determination to break down the secretary."

The other business of the session may be briefly stated. The claim for compensation for loss on the certificates in which they had been paid, advanced by the officers of the old Continental army, was rejected. An act respecting "fugitives from justice, and persons escaping from the service of their masters," was passed, early in February, by a vote of forty-eight to seven. The trade with the Indians was regulated, and an attempt was made to initiate an amendment to the constitution, because the State of Georgia, sued in the Federal courts for a debt due to a citizen of another State, had suffered judgment by default. And nearly two millions of dollars were appropriated to the public service, in addition to the almost three millions more for interest on the debt. On Saturday, the 3d of March (1793), a constitutional period was put to the existence of the present Congress. The members separated with obvious symptoms of extreme irritation. "Various causes," says Marshall, "the most prominent of which have already been noticed, had combined to organize *two distinct parties* in the United States, which were rapidly taking the form of a ministerial and an opposition party. By that in opposition, the President was not yet openly denounced. His personal influence was too great to be encountered by a direct avowal that he was at the head of their adversaries, and his public conduct did not admit of a suspicion that he could allow himself to rank as the chief of a party. Nor could public opinion be seduced to implicate him in the ambitious plans and dark schemes for the subversion of liberty, which were ascribed to a part of the administration, and to the leading members who had supported the measures of finance adopted by the Legislature."

Yet it was becoming apparent that things were taking a course which must inevitably involve him in the political conflicts which were about to take place. It was apparent that the charges against the Secretary of the Treasury would not be relinquished, and that they were of a nature to affect the chief magistrate materially, should his countenance not be withdrawn from that officer. It was equally apparent that the fervor of democracy, which was perpetually manifesting itself in the papers, in invectives against levees, against the trappings of royalty, and against the marks of peculiar

respect which were paid to the President, must soon include him more pointedly in its strictures.

These divisions, which are inherent in the nature of popular governments, by which the chief magistrate, however unexceptionable his conduct, and however exalted his character, must, sooner or later, be more or less affected, were beginning to be essentially influenced by the great events of Europe.

That revolution which has been the admiration, the wonder, and the terror of the civilized world, had, from its commencement, been viewed in America with the deepest interest. In its first stage, but one sentiment respecting it prevailed, and that was a belief, accompanied with an ardent wish, that it would improve the condition of France, extend the blessings of liberty, and promote the happiness of the human race. When the labors of the convention had terminated in a written constitution, this unanimity of opinion was in some degree impaired. By a few who had thought deeply on the science of government, and who, if not more intelligent, certainly judge more dispassionately than their fellow-citizens, that instrument was believed to contain the principles of self-destruction. It was feared that a system so ill balanced could not be permanent. A deep impression was made on the same persons by the influence of the galleries over the Legislature, and of mobs over the executive; by the tumultuous assemblages of the people, and their licentious excesses during the short and sickly existence of the regal authority. These did not appear to be the symptoms of a healthy constitution or of genuine freedom. Persuaded that the present state of things could not last, they doubted and they feared for the future.

In total opposition to this sentiment was that of the public generally. There seems to be something infectious in the example of a powerful and enlightened nation verging toward democracy, which impose on the human mind, and leads human reason in fetters. Novelties, introduced by such a nation, are stripped of the objections which had been preconceived against them, and long-settled opinions yield to the overwhelming weight of such dazzling authority. It wears the semblance of being the sense of mankind, breaking loose from the shackles which had been imposed by artifice, and asserting the freedom and the dignity of his nature.

The constitution of France, therefore, was generally received with unqualified plaudits. The establishment of a legislature consisting of a

single body was defended not only as being adapted to the particular situation of that country, but as being right in itself. Certain anonymous writers, who supported the theory of a balanced government, were branded as the advocates of royalty and of aristocracy. To question the duration of the present order of things was thought to evidence an attachment to unlimited monarchy, or a blind prejudice in favor of the institutions of Great Britain, and the partiality of America in favor of a senate was visibly declining.

In this stage of the revolution, however, the division of sentiment was not marked with sufficient distinctness, nor the passions of the people agitated with sufficient violence, for any powerful effect to be produced on the two parties in America. But when the monarchy was completely overthrown and a republic decreed, {9} the people of the United States seemed electrified by the measure, and its influence was felt by the whole society. The war in which the several potentates of Europe were engaged against France, although in almost every instance declared by that power, was pronounced to be a war for the extirpation of human liberty and for the banishment of free government from the face of the earth. The preservation of the constitution of the United States was supposed to depend on its issue, and the coalition against France was treated as a coalition against America also.

A cordial wish for the success of the French arms, or rather that the war might terminate without any diminution of French power, and in such a manner as to leave the people of that country free to choose their own form of government, was perhaps universal, but, respecting the probable issue of their internal conflicts, perfect unanimity of opinion did not prevail. By some few individuals, the practicability of governing by a system formed on the republican model, an immense, populous, and military nation, whose institutions, habits, and morals were adapted to monarchy, and which was surrounded by armed neighbors, was deemed a problem which time alone could solve. The circumstances under which the abolition of royalty was declared, the massacres which preceded it, the scenes of turbulence and violence which were acted in every part of the nation, appeared to them to present an awful and doubtful state of things, respecting which no certain calculations could be made, and the idea that a republic was to be introduced and supported by force, was, to them, a paradox in politics. Under the influence of these appearances the apprehension was entertained that, if the ancient monarchy should not be restored a military despotism

would be established. By the many, these unpopular doubts were deemed unpardonable heresies, and the few to whom they were imputed, were pronounced hostile to liberty. A suspicion that the unsettled state of things in France had contributed to suspend the payment of the debt to that nation had added to the asperity with which the resolutions on that subject were supported, and the French revolution will be found to have had great influence on the strength of parties and on the subsequent political transactions of the United States.

1. Footnote: Griswold, "Republican Court."

2. Footnote: "Republican Court."

3. Footnote: For designating the site of the new seat of government. Washington remained with the commissioners several days engaged in this business.

4. Footnote: The following is the message which he delivered on this occasion:

GENTLEMEN OF THE HOUSE OF REPRESENTATIVES:

I have maturely considered the act passed by the two Houses, entitled "An act for the apportionment of representatives among the several States according to the first enumeration," and I return it to your House, wherein it originated, with the following objections.

First. The constitution has prescribed that representatives shall be apportioned among the several States according to their respective numbers, and there is no proportion or divisor which, applied to the respective numbers of the States, will yield the number and allotment of representatives proposed by the bill.

Secondly. The constitution has also provided that the number of representatives shall not exceed one for thirty thousand—which restriction is by the context, and by fair and obvious construction, to be applied to the separate and respective numbers of the States—and the bill has allotted to eight of the States more than one for thirty thousand.

5. Footnote: Marshall.

6. Footnote: The salary of the Secretary of State, which was the highest, was \$3,500; that of the Secretary of the Treasury was \$2,000. Hamilton was

finally obliged to resign, to gain a living.

7. Footnote: Mrs. Washington's maiden name was Frances Bassett. She was the daughter of Colonel Bassett, an intimate friend of Washington.

8. Footnote: "Administrations of Washington and Adams."

9. Footnote: This event was announced to the President by the minister plenipotentiary of France, at Philadelphia, in February, 1793. Through the Secretary of State an answer was returned, of which the following is an extract:

"The President receives with great satisfaction this attention of the executive council, and the desire they have manifested of making known to us the resolution entered into by the National Convention, even before a definitive regulation of their new establishment could take place. Be assured, sir, that the government and the citizens of the United States view with the most sincere pleasure every advance of your nation towards its happiness, an object essentially connected with its liberty; and they consider the union of principles and pursuits between our two countries as a link which binds still closer their interests and affections.

"We earnestly wish, on our part, that these our mutual dispositions may be improved to mutual good, by establishing our commercial intercourse on principles as friendly to natural right and freedom as are those of our governments."

CHAPTER VI. — WASHINGTON INAUGURATES THE SYSTEM OF NEUTRALITY. 1793.

As the time approached for the expiration of Washington's first term of office as President of the United States, a great deal of anxiety was felt lest he should determine on a final retirement from public life. It was well known that he had originally accepted the office with extreme reluctance, that his attention to its duties had impaired his health, and that he was very desirous to pass the remainder of his life in retirement and repose. But at the same time it was felt that a crisis in public affairs was impending which imperatively demanded the whole force of his character and the whole influence of his popularity to sustain the government. Even at the period when the Federal government was first inaugurated, the call of his country to give it strength and permanence was not more urgent than that which now summoned him to save it from the rage of party spirit. Troubles and difficulties were also threatening the country from abroad as well as internal factions at home, and the true friends of the country felt that none but Washington was equal to the emergency. He received many letters urging his continuance in office. Three of these were from members of the cabinet—Jefferson, Hamilton, and Randolph.

Jefferson expressed himself as follows:

"When you first mentioned to me your purpose of retiring from the government, though I felt all the magnitude of the event, I was in a considerable degree silent. I knew that to such a mind as yours persuasion was idle and impertinent; that, before forming your decision, you had weighed all the reasons for and against the measure, had made up your mind on full view of them, and that there could be little hope of changing the result. Pursuing my reflections, too, I knew we were some day to try to walk alone, and if the essay should be made while you should be alive and looking on, we should derive confidence from that circumstance and resource if it failed. The public mind, too, was then calm and confident, and therefore in a favorable state for making the experiment. Had no change of

circumstances supervened, I should not, with any hope of success, have now ventured to propose to you a change of purpose. But the public mind is no longer so confident and serene, and that from causes in which you are no ways personally mixed.

"The confidence of the whole Union is centered in you. Your being at the helm will be more than an answer to every argument which can be used to alarm and lead the people in any quarter into violence or secession. North and South will hang together, if they have you to hang on; and if the first corrective of a numerous representation should fail in its effect, your presence will give time for trying others not inconsistent with the union and peace of the States.

"I am perfectly aware of the oppression under which your present office lays your mind, and of the ardor with which you pant for retirement to domestic life. But there is sometimes an eminence of character on which society have such peculiar claims, as to control the predilection of the individual for a particular walk of happiness and restrain him to that alone arising from the present and future benedictions of mankind. This seems to be your condition, and the law imposed on you by Providence in forming your character and fashioning the events on which it was to operate, and it is to motives like these and not to personal anxieties of mine or others, who have no right to call on you for sacrifices, that I appeal from your former determination, and urge a revisal of it, on the ground of change in the aspect of things. Should an honest majority result from the new and enlarged representation, should those acquiesce, whose principles or interests they may control, your wishes for retirement would be gratified with less danger, as soon as that shall be manifest, without awaiting the completion of the second period of four years. One or two sessions will determine the crisis, and I cannot but hope that you can resolve to add one or two more to the many years you have already sacrificed to the good of mankind.

"The fear of suspicion that any selfish motive of continuance in office may enter into this solicitation on my part obliges me to declare that no such motive exists. It is a thing of mere indifference to the public whether I retain or relinquish my purpose of closing my tour with the first periodical renovation of the government. I know my own measure too well to suppose that my services contribute anything to the public confidence or the public utility. Multitudes can fill the office in which you have been pleased to

place me, as much to their advantage and satisfaction. I, therefore, have no motive to consult but my own inclination, which is bent irresistibly on the tranquil enjoyment of my family, my farm, and my books. I should repose among them, it is true, in far greater security, if I were to know that you remained at the watch, and I hope it will be so. To the inducements urged from a view of our domestic affairs I will add a bare mention of what indeed need only be mentioned, that weighty motives for your continuance are to be found in our foreign affairs. I think it probable that both the Spanish and English negotiations, if not completed before your purpose is known, will be suspended from the moment it is known, and that the latter nation will then use double diligence in fomenting the Indian war.

"With my wishes for the future I shall, at the same time, express my gratitude of the past, at least my portion of it, and beg permission to follow you, whether in public or private life, with those sentiments of sincere attachment and respect with which I am unalterably, dear sir, your affectionate friend and humble servant."

Extract from Hamilton's letter:

"I received the most sincere pleasure at finding, in our last conversation, that there was some relaxation in the disposition you had before discovered to decline a re-election. Since your departure I have lost no opportunity of sounding the opinions of persons whose opinions were worth knowing on these two points: First, the effect of your declining upon the public affairs, and upon your own reputation; secondly, the effect of your continuing in reference to the declarations you have made of your disinclination to public life. And I can truly say that I have not found the least difference of sentiment on either point. The impression is uniform, that your declining would be to be deplored as the greatest evil that could befall the country at the present juncture, and as critically hazardous to your own reputation; that your continuance will be justified in the mind of every friend to his country by the evident necessity for it.

"It is clear, says everyone with whom I have conversed, that the affairs of the national government are not yet firmly established; that its enemies, generally speaking, are as inveterate as ever; that their enmity has been sharpened by its success, and by all the resentments which flow from disappointed predictions and mortified vanity; that a general and strenuous effort is making in every State to place the administration of it in the hands

of its enemies, as if they were its safest guardians; that the period of the next House of Representatives is likely to prove the crisis of its permanent character; that, if you continue in office, nothing materially mischievous is to be apprehended, if you quit much is to be dreaded; that the same motives which induced you to accept originally ought to decide you to continue till matters have assumed a more determinate aspect; that indeed it would have been better, as it regards your own character, that you had never consented to come forward than now to leave the business unfinished and in danger of being undone; that, in the event of storms arising, there would be an imputation either of want of foresight or want of firmness, and, in fine, that on public and personal accounts, on patriotic and prudential considerations, the clear path to be pursued by you will be again to obey the voice of your country, which it is not doubted will be as earnest and as unanimous as ever.

"I trust, sir, and I pray God, that you will determine to make a further sacrifice of your tranquility and happiness to the public good. I trust that it need not continue above a year or two more. And I think that it will be more eligible to retire from office before the expiration of the term of election than to decline a re-election.

"The sentiments I have delivered upon this occasion I can truly say proceed exclusively from an anxious concern for the public welfare and an affectionate personal attachment. These dispositions must continue to govern, in every vicissitude, one who has the honor to be very truly and respectfully, sir, yours, etc."

Randolph wrote as follows:

"I have persuaded myself that this letter, though unconnected with any official relation, and upon a subject to the decision of which you alone are competent, will be received in the spirit with which it is written. The Union, for the sake of which I have encountered various embarrassments, not wholly unknown to you, and sacrificed some opinions, which, but for its jeopardy, I should never have surrendered, seems to me to be, now, at the eve of a crisis. It is feared by those who take a serious interest in the affairs of the United States that you will refuse the chair of government at the approaching election. If such an event must happen indulge me, at least, in the liberty of opening to you a course of thought, which a calm attention to the Federal government has suggested, and no bias of party has influenced.

"It cannot have escaped you that divisions are formed in our politics as systematic as those which prevail in Great Britain. Such as opposed the constitution, from a hatred to the Union, can never be conciliated by any overture or atonement. By others it is meditated to push the construction of Federal powers to every tenable extreme. A third class, republican in principle, and, thus far, in my judgment, happy in their discernment of our welfare, have, notwithstanding, mingled with their doctrines a fatal error—that the State assemblies are to be resorted to as the engines of correction to the Federal administration. The honors belonging to the chief magistracy are objects of no common solicitude to a few, who compose a fourth denomination.

"The fuel which has been already gathered for combustion wants no addition. But how awfully might it be increased were the violence, which is now suspended by a universal submission to your pretensions, let loose by your resignation! Permit me, then, in the fervor of a dutiful and affectionate attachment to you, to beseech you to penetrate the consequences of a dereliction of the reins. The constitution would never have been adopted, but from a knowledge that you had once sanctioned it, and an expectation that you would execute it. It is in a state of probation. The most inauspicious struggles are past, but the public deliberations need stability. You alone can give them stability. You suffered yourself to yield when the voice of your country summoned you to the administration. Should a civil war arise you cannot stay at home. And now much easier will it be to disperse the factions which are rushing to this catastrophe than to subdue them after they shall appear in arms? It is the fixed opinion of the world that you surrender nothing incomplete.

"I am not unapprised of many disagreeable sensations which have labored in your breast. But, let them spring from any cause whatsoever, of one thing I think I am sure (and I speak this from a satisfactory inquiry lately made), that, if a second opportunity shall be given to the people of showing their gratitude, they will not be less unanimous than before."

Washington's own views we learn from the following letter in answer to Randolph:

"The purpose of this letter is merely to acknowledge the receipt of your favors of the 5th and 13th instant, and to thank you for the information contained in both, without entering into the details of either.

"With respect, however, to the interesting subject treated in that of the 5th, I can express but one sentiment at this time, and that is a wish, a devout one, that, whatever my ultimate determination shall be, it may be for the best. The subject never recurs to my mind but with additional poignancy, and, from the declining state of the health of my nephew, to whom my concerns of a domestic and private nature are entrusted, it comes with aggravated force. But as the all-wise Disposer of events has hitherto watched over my steps, I trust that, in the important one I may soon be called upon to take, He will mark the course so plainly as that I cannot mistake the way. In full hope of this I will take no measures for the present that will not leave me at liberty to decide from circumstances and the best lights I can obtain on the subject.

"I shall be happy, in the meantime, to see a cessation of the abuses of public officers and of almost every measure of government with which some of the gazettes are so strongly impregnated, and which cannot fail, if persevered in with the malignancy with which they now teem, of rendering the Union asunder. The seeds of discontent, distrust, and irritation which are so plentifully sown, can scarcely fail to produce this effect, and to mar that prospect of happiness which, perhaps, never beamed with more effulgence upon any people under the sun, and this too at a time when all Europe is gazing with admiration at the brightness of our prospects. And for what is all this? Among other things, to afford nuts for our transatlantic—(what shall I call them?)—foes.

"In a word, if government and the officers of it are to be the constant theme for newspaper abuse, and this too without condescending to investigate the motives or the facts, it will be impossible, I conceive, for any man living to manage the helm or to keep the machine together. But I am running from my text, and therefore will only add assurances of the affectionate esteem and regard with which I am, etc."

To the remonstrances of his immediate advisers in the Cabinet were added many more of the same tenor from other friends and correspondents. He had, in fact, already determined to retire at this time, and had accordingly prepared a farewell address to the people for the occasion. But he had never publicly declared this intention, and, urged thus strongly by leading men of all parties, he finally consented to remain in office.

"Respecting the person who should fill the office of Vice-President," says Marshall, "the public was divided. The profound statesman who had been called to the duties of that station had drawn upon himself a great degree of obloquy by some political tracts, in which he had labored to maintain the proposition that a balance in government was essential to the preservation of liberty. In these disquisitions he was supposed by his opponents to have discovered sentiments in favor of distinct orders in society, and, although he had spoken highly of the constitution of the United States, it was imagined that his balance could be maintained only by hereditary classes. He was also understood to be friendly to the system of finance which had been adopted, and was believed to be among the few who questioned the durability of the French republic. His great services and acknowledged virtues were therefore disregarded, and a competitor was sought for among those who had distinguished themselves in the opposition. The choice was directed from Mr. Jefferson by a constitutional restriction on the power of the electors, which would necessarily deprive him of the vote to be given by Virginia. It being necessary to designate some other opponent to Mr. Adams, George Clinton, the Governor of New York, was selected for this purpose.

"Throughout the war of the Revolution, this gentleman had filled the office of chief magistrate of his native State, and, under circumstances of real difficulty, had discharged its duties with a courage and an energy which secured the esteem of the Commander-in-Chief and gave him a fair claim to the favor of his country. Embracing afterward with ardor the system of State supremacy, he had contributed greatly to the rejection of the resolutions for investing Congress with the power of collecting an impost on imported goods, and had been conspicuous for his determined hostility to the constitution of the United States. His sentiments respecting the measures of the government were known to concur with those of the minority in Congress."

Both parties seemed confident in their strength, and both made the utmost exertions to insure success. On opening the ballots in the Senate chamber (Feb. 13, 1793), it appeared that the unanimous suffrage of his country had been once more conferred on General Washington, and that Mr. Adams had received a plurality of the votes. {1}

The ceremonial to be observed at the inauguration was the subject of a difference of opinion, and a Cabinet council was called to take the matter into consideration. Jefferson and Hamilton thought that the oath ought to be administered in private, and that one of the judges of the Supreme Court should attend to this duty at the President's own house. Knox and Randolph were of a different opinion and decided that the ceremony should take place in public. Washington coincided with them in their views, and it was finally decided at a subsequent Cabinet meeting, on the 1st of March, that the inauguration should take place in the Senate chamber.

Among the senators who were present on this occasion were John Langdon of New Hampshire, one of the purest and most disinterested of the Revolutionary veterans; Oliver Ellsworth, from Connecticut, afterward chief justice of the United States; Roger Sherman, also from Connecticut, one of the committee for preparing the Declaration of Independence; Rufus King, the eloquent statesman from New York; Robert Morris, the great financier, from Pennsylvania, and James Monroe, afterward President of the United States, from Virginia.

The proceedings, as recorded in Mr. Benton's "Abridgment of the Debates of Congress," were as follows:

"Agreeably to notice given by the President of the United States on the second instant, he came to the Senate chamber and took his seat in the chair usually assigned to the president of the Senate, who, on this occasion was seated at the right, and in advance of the President of the United States; a seat on the left, and also in advance, being provided for Judge Cushing, appointed to administer the oath. The doors of the Senate chamber being open, the heads of the departments, foreign ministers, the late speaker, and such members of the late House of Representatives as were in town, together with as many other spectators as could be accommodated, were present.

"After a short pause the president of the Senate arose and addressed the President of the United States as follows:

"Sir:—One of the judges of the Supreme Court of the United States is now present and ready to administer to you the oath required by the constitution to be taken by the President of the United States.'

"On which the President of the United States, rising from his seat, was pleased to address the audience as follows:

"FELLOW-CITIZENS:—I am again called upon, by the voice of my country, to execute the functions of its chief magistrate. When the occasion proper for it shall arrive, I shall endeavor to express the high sense I entertain of this distinguished honor, and of the confidence which has been reposed in me by the people of United America.

"Previous to the execution of any official act of the President, the constitution requires an oath of office. This oath I am now about to take, and in your presence; that, if it shall be found during my administration of the government, I have, in any instance, violated, willingly, or knowingly, the injunction thereof, I may (besides incurring constitutional punishment) be subject to the upbraidings of all who are now witnesses of the present solemn ceremony.'

"Judge Cushing then administered the oath of office required by the constitution, after which the President of the United States retired, and the spectators dispersed."

The record of the proceedings thus given by Mr. Benton gives but a very imperfect idea of the actual scene. Fortunately, an eye-witness, Arthur J. Stansbury, for twenty-five years a reporter of Congress, has given us a very lively and graphic description of the scene in his "Recollections and Anecdotes of the Presidents of the United States." {2}

We copy his description in full:

"But I once had," says Mr. Stansbury, "an opportunity far more favorable of beholding this greatest of men, under circumstances the best possible for exhibiting him to the fullest advantage. It was a privilege which could happen but once to any man, and I esteem the hour when I enjoyed it as one of the brightest moments I was ever permitted to know. Its remembrance yet glows vividly on my mind; years have not dimmed it; the whole scene is yet before me; and I need not say with what force repeated public occasions of a like kind have since recalled it to remembrance. Yes, it was my favored lot to see and hear President Washington address the Congress of the United States, when elected for the last time. Of men now living, how few can say the same!

"I was but a schoolboy at the time, and had followed one of the many groups of people who, from all quarters, were making their way to the hall in Chestnut street, at the corner of Fifth, where the two Houses of Congress then held their sittings, and where they were that day to be addressed by the

President, on the opening of his second term of office. Boys can often manage to work their way through a crowd better than men can; at all events, it so happened that I succeeded in reaching the steps of the hall, from which elevation, looking in every direction, I could see nothing but human heads—a vast fluctuating sea, swaying to and fro, and filling every accessible place which commanded even a distant view of the building. They had congregated, not with the hope of getting into the hall, for that was physically impossible, but that they might see Washington. Many an anxious look was cast in the direction from which he was expected to come, till at length, true to the appointed hour (he was the most punctual of men), an agitation was observable on the outskirts of the crowd, which gradually opened and gave space for the approach of an elegant white coach, drawn by six superb white horses, having on its four sides beautiful designs of the four seasons, painted by Cipriani. It slowly made its way till it drew up immediately in front of the hall. The rush was now tremendous. But as the coach door opened, there issued from it two gentlemen, with long white wands, who, with some difficulty, parted the people, so as to open a passage from the carriage to the steps, on which the fortunate schoolboy had achieved a footing, and whence the whole proceeding could be distinctly seen. As the person of the President emerged from the carriage, a universal shout rent the air, and continued, as he very deliberately mounted the steps. On reaching the platform, he paused, looking back on the carriage, thus affording to the anxiety of the people the indulgence they desired, of feasting their eyes upon his person. Never did a more majestic personage present himself to the public gaze. He was within two feet of me; I could have touched his clothes; but I should as soon have thought of touching an electric battery. Boy as I was, I felt as in the presence of a Divinity. As he turned to enter the hall, the gentlemen with the white wands preceded him, and, with still greater difficulty than before, repressed the people, and cleared a way to the great staircase. As he ascended, I ascended with him, step by step, creeping close to the wall, and almost hidden by the skirts of his coat. Nobody looked at me; everybody was looking at him; and thus I was permitted, unnoticed, to glide along, and, happily, to make my way (where so many were vainly longing and struggling to enter) into the lobby of the chamber of the House of Representatives. Once in, I was safe; for had I even been seen by the officers in attendance, it would have been impossible to get me out again. I saw near me a large pyramidal stove,

which, fortunately, had but little fire in it, and on which I forthwith clambered, until I had attained a secure perch, from which every part of the hall could be deliberately and distinctly surveyed. Depend upon it, I made use of my eyes.

"On either side of the broad aisle that was left vacant in the center were assembled the two houses of Congress. As the President entered, all rose, and remained standing till he had ascended the steps at the upper end of the chamber and taken his seat in the speaker's chair. It was an impressive moment. Notwithstanding that the spacious apartment, floor, lobby, galleries, and all approaches were crowded to their utmost capacity, not a sound was heard; the silence of expectation was unbroken and profound; every breath seemed suspended. He was dressed in a full suit of the richest black velvet; his lower limbs in short clothes with diamond knee buckles and black silk stockings. His shoes, which were brightly japanned, were surmounted with large square silver buckles. His hair, carefully displayed in the manner of the day, was richly powdered, and gathered behind into a black silk bag, on which was a bow of black ribbon. In his hand he carried a plain cocked hat, decorated with the American cockade. He wore by his side a light, slender dress-sword, in a green shagreen scabbard, with a richly ornamented hilt. His gait was deliberate, his manner solemn but self-possessed, and he presented, altogether, the most august human figure I had then or have since beheld.

"At the head of the Senate stood Thomas Jefferson, in a blue coat, single breasted, with large bright basket-buttons, his vest and small-clothes of crimson. I remember being struck with his animated countenance, of a brick-red hue, his bright eye and foxy hair, as well as by his tall, gaunt, ungainly form and square shoulders. A perfect contrast was presented by the pale reflective face and delicate figure of James Madison, and above all, by the short, burly, bustling form of General Knox, with ruddy cheek, prominent eye, and still more prominent proportions of another kind. In the semicircle which was formed behind the chair, and on either hand of the President, my boyish gaze was attracted by the splendid attire of the Chevalier d'Yrujo, the Spanish ambassador, then the only foreign minister near our infant government. His glittering star, his silk chapeau bras, edged with ostrich feathers, his foreign air and courtly bearing, contrasted strongly with those nobility of nature's forming who stood around him. It was a very fair representation of the old world and the new. How often has the same

reflection occurred to me since, on witnessing the glittering and now numerous company of foreign dignitaries collected round our President by an inauguration day, or the recurrence of our national anniversary! True, the individuals who form that brilliant coterie are, for the most part, men eminent for general intelligence, as well as the virtues of private life—men who meet, and well deserve, a cordial welcome on our shores and often carry from it the sincerest regret. But how do the personal sentiments and characters of the men themselves put out the blaze of the gold and diamonds with which their governments had covered them! And if, even in the unadorned presence of his successors, these decorations seem puerile in Republican eyes, how would they have faded away and been lost in the chilling grandeur of the public presence of Washington!

"Having retained his seat for a few moments, while the members resumed their seats, the President rose, and, taking from his breast a roll of manuscript, proceeded to read his address. His voice was full and sonorous, deep and rich in its tones, free from that trumpet ring which it could assume amid the tumult of battle (and which is said to have been distinctly heard above all its roar), but sufficiently loud and clear to fill the chamber, and be heard, with perfect ease, in its most remote recesses. The address was of considerable length; its topics, of course, I forget, for I was too young to understand them; I only remember, in its latter part, some reference to the Wabash river (then a new name to my ear), and to claims or disputes on the part of the Indian tribes. He read, as he did everything else, with a singular serenity and composure, with manly ease and dignity, but without the smallest attempt at display.

"Having concluded, he laid the manuscript upon the table before him and resumed his seat, when, after a slight pause, he rose and withdrew, the members rising and remaining on their feet until he left the chamber.

"The paper was then taken up by Mr. Beckley, the clerk of the House, and again read from beginning to end. Beckley's enunciation, by the by, was admirably clear, giving every syllable of every word, and I may say, he was almost the only officer, whose official duty it is to read, whom I ever heard read well.

"This form having been gone through, the members of the Senate retired and I took advantage of the bustle to descend from my unwonted and presumptuous elevation, and mingle with the dissolving crowd."

These recollections of Mr. Stansbury present a much livelier view of the transactions of that memorable day; than that which any reader's imagination can supply by the aid of the official record.

Washington was now once more plunged into the troubled ocean of public affairs. Before following him into new scenes of self-sacrifice and disinterestedness in the service of his country, we pause to notice a pleasing act of private friendship, which, with his usual delicacy, he calls an act of simple justice. In consequence of the active part which he had taken in the French revolution, Washington's bosom friend, Lafayette, had become a prisoner to the King of Prussia, and was detained in captivity. The Marchioness Lafayette, after being a prisoner in Paris, had been suffered to retire to her husband's estate, and reside there under the safeguard of the municipality, without permission to correspond with her friends. Ignorant of her actual residence, but supposing that she might be suffering for want of ready money, Washington sent her a considerable sum, and wrote as follows:

"MADAM:—If I had words that could convey to you an adequate idea of my feelings on the present situation of the Marquis de Lafayette, this letter would appear to you in a different garb. The sole object in writing to you now is, to inform you that I have deposited in the hands of Mr. Nicholas Van Staphorst, of Amsterdam, two thousand three hundred and ten guilders, Holland currency, equal to two hundred guineas, subject to your orders.

"This sum is, I am certain, the least I am indebted for services rendered to me by the Marquis de Lafayette, of which I never yet have received the account. I could add much, but it is best, perhaps, that I should say little on this subject. Your goodness will supply any deficiency.

"The uncertainty of your situation, after all the inquiries I have made, has occasioned a delay in this address and remittance, and even now, the measure adopted is more the effect of a desire to find where you are, than from any knowledge I have obtained of your residence.

"At all times, and under all circumstances, you and yours will possess the affectionate regards of him who has the honor to be, etc."

Shortly after writing this letter Washington received one from the marchioness, and still later another, both written before the above letter reached her. She requested Washington's interference with the Prussian government on behalf of Lafayette, and was desirous, if he could be

released, that he and his family should reside in the United States. Everything was done that could be done, by Washington and the American ministers in Europe, to obtain Lafayette's release, but it was not effected till several years after, and then through other means.

During the recess of Congress, Washington twice visited Mount Vernon, once for a few days in April (1793), and again, for two or three weeks in June and July. On the 4th of July he was present at the celebration of the national anniversary by the citizens of Alexandria. He was prevented from spending more time at Mount Vernon by the pressure of public business, which was now assuming a new and very unpleasant aspect.

During Washington's short visit to Mount Vernon in April, he received a letter from Jefferson, dated April 7th, (1793), informing him that France had declared war against England and Holland. Instantly perceiving the danger of the United States becoming involved in the hostilities of these nations, Washington, on the 12th of April, wrote in reply to Jefferson: "War having actually commenced between France and Great Britain, it behooves the government of this country to use every means in its power to prevent the citizens thereof from embroiling us with either of those powers, by endeavoring to maintain a strict neutrality. I therefore require that you will give the subject mature consideration, that such measures as shall be deemed most likely to effect this desirable purpose may be adopted without delay, for I have understood that vessels are already designated as privateers, and are preparing accordingly. Such other measures as may be necessary for us to pursue against events, which it may not be in our power to avoid or control, you will also think of, and lay them before me on my arrival in Philadelphia; for which place I shall set out tomorrow, but will leave it to the advices which I may receive tonight by the post, to determine whether it is to be by the direct route or by the one I proposed to come, that is, by Reading."

The tenor of this letter shows that Washington was fully aware of the importance of the emergency in our foreign relations which had now arisen, and the result showed that, as usual, he was fully equal to the occasion. The difficulty of the position arose from the fact already adverted to—that of the two great political parties then existing, one was in favor of direct aid to the French revolutionists, while the other, desirous to remain neutral while the European contest was going on, was charged by its opponents with

partiality to England. It remained for Washington, by that decision of character and inflexible firmness for which he was so remarkable, to inaugurate that system of neutrality and noninterference in the affairs of Europe, which has ever since constituted the foreign policy of this country.

On his return to Philadelphia, Washington summoned a meeting of the Cabinet, at the same time sending to each member a series of questions to be considered as preparatory to the meeting. These questions, thirteen in number, all referred to the measures to be taken by the President in consequence of the revolution which had overthrown the French monarchy; of the new organization of a republic in that country; of the appointment of a minister from that republic to the United States, and of the war declared by the National Convention of France against Great Britain. The first of these questions, says Mr. Adams, {3} was, whether a proclamation should issue to prevent interferences of our citizens in the war, and whether the proclamation should or should not contain a declaration of neutrality. The second was, whether a minister from the Republic of France should be received. Upon these two questions the opinion of the Cabinet was unanimous in the affirmative—that a proclamation of neutrality should issue, and that the minister from the French Republic should be received. But upon all the other questions, the opinions of the four heads of the departments were equally divided. They were indeed questions of difficulty and delicacy equal to their importance. No less than whether, after a revolution in France annihilating the government with which the treaties of alliance and of commerce had been contracted, the treaties themselves were to be considered binding as between the nations, and particularly whether the stipulation of guarantee to France of her possessions in the West Indies, was binding upon the United States to the extent of imposing upon them the obligation of taking side with France in the war. As the members of the Cabinet disagreed in their opinions upon these questions, and as there was no immediate necessity for deciding them, the further consideration of them was postponed, and they were never afterwards resumed. While these discussions of the Cabinet of Washington were held, the minister plenipotentiary from the French republic arrived in this country. He had been appointed by the National Convention of France, which had dethroned, tried, sentenced to death, and executed Louis the Sixteenth, abolished the monarchy, and proclaimed a republic one and indivisible, under the auspices of liberty, equality, and fraternity, as thenceforth the

government of France. By all the rest of Europe they were then considered as revolted subjects in rebellion against their sovereign, and were not recognized as constituting an independent government.

Hamilton and Knox were of opinion that the minister from France should be conditionally received, with the reservation of the question whether the United States were still bound to fulfill the stipulations of the treaties. They inclined to the opinion that treaties themselves were annulled by the revolution of the government in France—an opinion to which the example of the revolutionary government had given plausibility by declaring some of the treaties made by the abolished monarchy no longer binding upon the nation. Mr. Hamilton thought, also, that France had no just claim to the fulfillment of the stipulation of guarantee, because that stipulation, and the whole treaty of alliance in which it was contained, were professedly, and on the face of them, only defensive, while the war which the French convention had declared against Great Britain, was on the part of France offensive, the first declaration having been issued by her—that the United States were at all events absolved from the obligation of the guarantee by their inability to perform it, and that under the constitution of the United States the interpretation of treaties, and the obligations resulting from them, were within the competency of the executive department, at least concurrently with the Legislature. It does not appear that these opinions were debated or contested in the Cabinet. By their unanimous advice the proclamation was issued, and it was decided to receive a minister plenipotentiary of the French republic. Thus the executive administration did assume and exercise the power of recognizing a revolutionary foreign government as a legitimate sovereign, with whom the ordinary diplomatic relations were to be entertained. But the proclamation contained no allusion whatever to the United States and France, nor of course to the article of guarantee or its obligations.

Whatever doubts may have been entertained by a large portion of people of the right of the executive to acknowledge a new and revolutionary government, not recognized by any other sovereign State, or of the sound policy of receiving, without waiting for the sanction of Congress, a minister from a republic which had commenced her career by putting to death the King whom she had dethroned, and which had rushed into war with almost all the rest of Europe, no manifestation of such doubts was publicly made. A current of popular favor sustained the French revolution, at that stage of

its progress, which nothing could resist, and far from indulging any question of the right of the President to recognize a new revolutionary government, by receiving from it the credentials which none but sovereigns can grant, the American people would, at that moment, have scarcely endured an instant of hesitation on the part of the President, which should have delayed for an hour the reception of the minister from the republic of France. But the proclamation enjoining neutrality upon the people of the United States, indirectly counteracted the torrent of partiality in favor of France, and was immediately assailed with intemperate violence in many of the public journals. The right of the executive to issue any proclamation of neutrality was fiercely and pertinaciously denied as a usurpation of legislative authority, and in that particular case it was charged with forestalling and prematurely deciding the question whether the United States were bound, by the guarantee to France of her West India possessions in the treaty of alliance, to take side in the war with her against Great Britain—and with deciding it against France.

The proclamation of neutrality was signed on the 22d of April, 1793, and was immediately published. "This measure," says Mr. Sparks, "both in regard to its character and its consequences, was one of the most important of Washington's administration. It was the basis of a system by which the intercourse with foreign nations was regulated, and which was rigidly adhered to. In fact, it was the only step that could have saved the United States from being drawn into the vortex of European wars, which raged with so much violence for a long time afterward. Its wisdom and its good effects are now so obvious, on a calm review of past events, that one is astonished at the opposition it met with, and the strifes it enkindled, even after making due allowance for the passions and prejudices which had hitherto been at work in producing discord and divisions."

The proclamation of neutrality furnished the first occasion which was thought a fit one for openly assaulting a character, around which the affections of the people had thrown an armor theretofore deemed sacred, and for directly criminating the conduct of the President himself. It was only by opposing passions to passions, by bringing the feeling in favor of France into conflict with those in favor of the chief magistrate, that the enemies of his administration could hope to obtain the victory.

For a short time the opponents of this measure treated it with some degree of delicacy. The opposition prints occasionally glanced at the executive, considered all governments, including that of the United States, as naturally hostile to the liberty of the people, and ascribed to this disposition the combination of European governments against France, and the apathy with which this combination was contemplated by the executive. At the same time the most vehement declamations were published for the purpose of inflaming the resentments of the people against Britain; of enhancing the obligations of America to France; of confirming the opinions that the coalition of European monarchs was directed not less against the United States than against Great Britain, and that those who did not avow this sentiment were the friends of that coalition, and equally the enemies of America and France.

These publications, in the first instance sufficiently bitter, quickly assumed a highly increased degree of acrimony.

As soon as the commotions which succeeded the deposition of Louis XVI had, in some degree, subsided, the attention of the French government was directed to the United States, and the resolution was taken to recall the minister who had been appointed by the King, and to replace him with one who might be expected to enter with more enthusiasm into the views of the republic.

Edmund Charles Genet, a man of considerable talents, and of an ardent temper, was selected for this purpose. The letters he brought to the executive of the United States and his instructions, which he occasionally communicated, were in a high degree flattering to the nation, and decently respectful to its government. But Mr. Genet was also furnished with private instructions, which the course of subsequent events tempted him to publish. These indicated that if the American executive should not be found sufficiently compliant with the views of France, the resolution had been taken to appeal to the people of the United States against their own government, and thus to effect an object which legitimate negotiations might fail to accomplish.

Mr. Genet possessed many qualities which were peculiarly adapted to the objects of his mission, but he seems to have been betrayed by the flattering reception which was given him and by the universal fervor expressed for his republic, into a too speedy disclosure of his intentions.

On the 8th of April (1793) he arrived, not at Philadelphia, but at Charleston in South Carolina, a port whose contiguity to the West Indies would give it peculiar convenience as a resort for privateers. He was received by the governor of that State, and by its citizens, with an enthusiasm well calculated to dissipate every doubt he might previously have entertained concerning the dispositions on which he was to operate. At this place he continued for several days, receiving extravagant marks of public attachment, during which time he undertook to authorize the fitting and arming of vessels in that port, enlisting men, and giving commissions to cruise and commit hostilities on nations with whom the United States were at peace.

The captures made by these cruisers were brought into port and the consuls of France were assuming, under the authority of Mr. Genet, to hold courts of admiralty on them, to try, condemn, and authorize their sale.

From Charleston Mr. Genet proceeded by land to Philadelphia, receiving on his journey at the different towns through which he passed such marks of enthusiastic attachment as had never before been lavished on a foreign minister. On the 16th of May (1793) he arrived at Philadelphia, preceded by the intelligence of his transactions in South Carolina. This information did not diminish the extravagant transports of joy with which he was welcomed by the great body of the inhabitants. Means had been taken to render his entry pompous and triumphal, and the opposition papers exultingly stated that he was met at Gray's ferry by "crowds who flocked from every avenue of the city to meet the republican ambassador of an allied nation."

The day succeeding his arrival he received addresses of congratulation from particular societies, and from the citizens of Philadelphia, who waited on him in a body, in which they expressed their fervent gratitude for the "zealous and disinterested aids" which the French people had furnished to America, unbounded exultation at the success with which their arms had been crowned, and a positive conviction that the safety of the United States depended on the establishment of the republic. The answers to these addresses were well calculated to preserve the idea of a complete fraternity between the two nations, and that their interests were identified.

The day after being thus accredited by the citizens of Philadelphia he was presented to the President, by whom he was received with frankness and with expressions of a sincere and cordial regard for his nation. In the

conversation which took place on this occasion Mr. Genet gave the most explicit assurances that, in consequence of the distance of the United States from the theater of action, and of other circumstances, France did not wish to engage them in war, but would willingly leave them to pursue their happiness and prosperity in peace. The more ready faith was given to these declarations, because it was believed that France might derive advantages from the neutrality of America, which would be a full equivalent for any services which she could render as a belligerent.

Before Genet had reached Philadelphia, however, a long catalogue of complaints, partly founded on his proceedings in Charleston, had been made by the British minister to the American executive.

This catalogue was composed of the assumptions of sovereignty already mentioned—assumptions calculated to render America an instrument of hostility to be wielded by France against those powers with which she might be at war.

These were still further aggravated by the commission of actual hostilities within the territories of the United States. The ship *Grange*, a British vessel which had been cleared out from Philadelphia, was captured by the French frigate *L'Ambuscade* within the capes of the Delaware, while on her way to the ocean.

The prizes thus unwarrantably made, being brought within the power of the American government, Mr. Hammond, among other things, demanded a restitution of them.

On many of the points suggested by the conduct of Mr. Genet, and by the memorials of the British minister, it would seem impossible that any difference of opinion could exist among intelligent men not under the dominion of a blind infatuation. Accordingly it was agreed in the Cabinet, without a dissenting voice, that the jurisdiction of every independent nation, within the limits of its own territory, being of a nature to exclude the exercise of any authority therein by a foreign power, the proceedings complained of, not being warranted by any treaty, were usurpations of national sovereignty and violations of neutral rights, a repetition of which it was the duty of the government to prevent.

It was also agreed that the efficacy of the laws should be tried against those citizens of the United States who had joined in perpetrating the offense.

The question of restitution, except as to the "Grange," was more dubious. The cabinet agreed, however, that the original owners might claim indemnification, and that if the property was not restored by the captors, the value of it ought to be paid by the government of the United States.

Genet was much dissatisfied with these decisions of the American government. He denounced them as contrary to natural right, and subversive of the treaties by which the two nations were connected. In his exposition of these treaties, he claimed, for his own country, all that the two nations were restricted from conceding to others, thereby converting negative limitations into an affirmative grant of privileges to France.

Without noticing a want of decorum in some of the expressions which Genet had employed, he was informed that the subjects on which his letter treated had, from respect to him, been reconsidered by the executive; but that no cause was perceived for changing the system which had been adopted. He was further informed that, in the opinion of the President, the United States owed it to themselves and to the nations in their friendship, to expect, as a reparation for the offense of infringing their sovereignty, that the vessels thus illegally equipped would depart from their ports.

Genet was not disposed to acquiesce in these decisions. Adhering to his own construction of the existing treaty, he affected to consider the measures of the American government as infractions of it, which no power in the nation had a right to make, unless the United States in Congress assembled should determine that their solemn engagements should no longer be performed. Intoxicated with the sentiments expressed by a great portion of the people, and unacquainted with the firm character of Washington, he seems to have expected that the popularity of his nation would enable him to overthrow the administration, or to render it subservient to his views. It is difficult otherwise to account for his persisting to disregard its decisions, and for passages with which his letters abound, such as the following:

"Every obstruction by the government of the United States to the arming of French vessels must be an attempt on the rights of man, upon which repose the independence and laws of the United States; a violation of the ties which unite the people of France and America; and even a manifest contradiction of the system of neutrality of the President; for, in fact, if our merchant vessels, as others, are not allowed to arm themselves, when the French alone are resisting the league of all the tyrants against the liberty of

the people, they will be exposed to inevitable ruin in going out of the ports of the United States, which is certainly not the intention of the people of America. Their fraternal voice has resounded from every quarter around me, and their accents are not equivocal. They are pure as the hearts of those by whom they are expressed, and the more they have touched my sensibility, the more they must interest in the happiness of America the nation I represent;—the more I wish, sir, that the Federal government should observe, as far as in their power, the public engagements contracted by both nations; and that, by this generous and prudent conduct, they will give at least to the world the example of a true neutrality, which does not consist in the cowardly abandonment of their friends in the moment when danger menaces them, but in adhering strictly, if they can do no better, to the obligations they have contracted with them. It is by such proceedings that they will render themselves respectable to all the powers; that they will preserve their friends and deserve to augment their numbers."

A few days previous to the reception of the letter from which the above is an extract, two citizens of the United States, who had been engaged by Genet in Charleston to cruise in the service of France, were arrested by the civil magistrate, in pursuance of the determination formed by the executive for the prosecution of persons having thus offended against the laws. Genet demanded their release in the following extraordinary terms:

"I have this moment been informed that two officers in the service of the republic of France, citizen Gideon Henfield and John Singletary, have been arrested on board the privateer of the French republic, the Citizen Genet, and conducted to prison. The crime laid to their charge—the crime which my mind cannot conceive, and which my pen almost refuses to state—is the serving of France, and defending with her children the common glorious cause of liberty.

"Being ignorant of any positive law or treaty which deprives Americans of this privilege, and authorizes officers of police arbitrarily to take mariners in the service of France from on board their vessels, I call upon your intervention, sir, and that of the President of the United States, in order to obtain the immediate releasement of the above-mentioned officers, who have acquired, by the sentiments animating them and by the act of their engagement, anterior to every act to the contrary, the right of French citizens, if they have lost that of American citizens."

Such an insolent style of address as this could not be otherwise than deeply offensive to Washington. He must have regarded this, and most of the other effusions of Genet, as studied insults, net only to himself, but to the country of which he was the chief magistrate. Yet, in no single instance did the administration in its communications with Genet, permit itself to be betrayed into the use of one intemperate expression. The firmness with which his extravagant pretensions were resisted, proceeding entirely from a sense of duty and conviction of right, was unaccompanied with any marks of that resentment which his language and his conduct were alike calculated to inspire.

Genet's intemperate language and insolent conduct arose from a belief that the people were ready to support his pretensions, in opposition to their own government. This belief was strengthened by the proceedings and publications of the party opposed to the administration. Civic festivals and other public assemblages of people, at which the ensigns of France were displayed in union with those of America—at which the red cap, as a symbol of French liberty and fraternity, triumphantly passed from head to head—at which toasts were given expressive of a desire to identify the people of America with those of France, and, under the imposing guise of adhering to principles not to men, containing allusions to the influence of the President which could not be mistaken—appeared to Genet to indicate a temper extremely favorable to his hopes, and very different from that which would be required for the preservation of an honest neutrality.

Through the medium of the press, these sentiments were communicated to the public, and were represented as flowing from the hearts of the great body of the people.

Soon after the arrival of Genet, a democratic society was formed in Philadelphia on the model of the Jacobin clubs in Paris. An anxious solicitude for the preservation of freedom, the very existence of which was menaced by a "European confederacy transcendent in power and unparalleled in iniquity," which was endangered also by "the pride of wealth and arrogance of power" displayed within the United States, was the motive assigned for the association. "A constant circulation of useful information, and a liberal communication of republican sentiments, were thought to be the best antidotes to any political poison with which the vital principle of civil liberty might be attacked;" and to give the more extensive

operation to their labors, a corresponding committee was appointed, through whom they would communicate with other societies which might be established on similar principles throughout the United States.

Faithful to their founder, and true to the real objects of their association, these societies continued during the term of their existence to be the resolute champions of all the encroachments attempted by the agents of the French republic on the government of the United States, and the steady defamers of the views and measures of the American executive.

Thus strongly supported, Genet persisted in his construction of the treaties between the two nations, and, in defiance of the positive determination of the government, continued to act according to that construction.

At this period Washington was called to Mount Vernon by urgent business, which detained him less than three weeks; and, in his absence, the heads of departments superintended the execution of those rules which had been previously established.

In this short interval a circumstance occurred, strongly marking the rashness of Genet, and his disrespect to the executive of the United States.

The Little Sarah, an English merchantman, had been captured by a French frigate and brought into the port of Philadelphia, where she was completely equipped as a privateer, and was just about to sail on a cruise, under the name of le Petit Democrat, when Hamilton communicated her situation to Jefferson and Knox, the Secretaries of State and of War; in consequence of which, Governor Mifflin was desired to cause an examination of the fact. The warden of the port was directed to institute the proper inquiries, and, late in the evening of the 6th of July, he reported her situation, and that she was to sail the next day.

In pursuance of the instructions which had been given by the President, the governor immediately sent Secretary Dallas for the purpose of prevailing on Genet to relieve him from the employment of force, by detaining the vessel in port until the arrival of Washington, who was then on his way from Mount Vernon. Mr. Dallas communicated this message to the French minister in terms as conciliatory as its nature would permit. On receiving it, he gave aloose to the most extravagant passion. After exclaiming with vehemence against the measure, he complained, in strong terms, and with many angry epithets, of the ill treatment which he had

received from some of the officers of the general government, which he contrasted with the cordial attachment that was expressed by the people at large for his nation. He ascribed the conduct of those officers to principles inimical to the cause of France and of liberty. He insinuated that, by their influence, Washington had been misled, and observed, with considerable emphasis, that the President was not the sovereign of this country. The powers of peace and war being vested in Congress, it belonged to that body to decide those questions growing out of treaties which might involve peace or war, and the President, therefore, ought to have assembled the national Legislature before he ventured to issue his proclamation of neutrality, or to prohibit, by his instructions to the State governors, the enjoyment of the particular rights which France claimed under the express stipulations of the treaty of commerce. The executive construction of that treaty was neither just nor obligatory, and he would make no engagement which might be construed into a relinquishment of rights which his constituents deemed indispensable. In the course of this vehement and angry declamation, he spoke of publishing his correspondence with the officers of government, together with a narrative of his proceedings, and said that, although the existing causes would warrant an abrupt departure, his regard for the people of America would induce him to remain here, amidst the insults and disgusts that he daily suffered in his official character from the public officers, until the meeting of Congress, and if that body should agree in the opinions and support the measures of the President, he would certainly withdraw, and leave the dispute to be adjusted between the two nations themselves. His attention being again called by Mr. Dallas to the particular subject, he peremptorily refused to enter into any arrangements for suspending the departure of the privateer, and cautioned him against any attempt to seize her, as she belonged to the republic, and, in defense of the honor of her flag, would unquestionably repel force by force.

On receiving the report of Mr. Dallas, Governor Mifflin ordered out 120 militia, for the purpose of taking possession of the privateer, and communicated the case, with all its circumstances, to the officers of the executive government. On the succeeding day, Jefferson waited on Genet, in the hope of prevailing on him to pledge his word that the privateer should not leave the port until the arrival of the President. The minister was not less intemperate with Jefferson than he had been with Dallas. He indulged himself in a repetition of nearly the same passionate language, and again

spoke, with extreme harshness of the conduct of the executive. He persisted in refusing to make any engagements for the detention of the vessel, and, after his rage had in some degree spent itself, he entreated that no attempt might be made to take possession of her, as her crew was on board, and force would be repelled by force.

He then also said that she was not ready to sail immediately. She would change her position and fall down the river a small distance on that day, but was not yet ready to sail.

In communicating this conversation to Governor Mifflin, Jefferson stated his conviction that the privateer would remain in the river until the President should decide on her case, in consequence of which, the governor dismissed the militia, and requested the advice of the heads of departments on the course which it would be proper for him to pursue. Both the governor and Jefferson stated, that in reporting the conversation between Genet and himself, Dallas had said that Genet threatened, in express terms, "to appeal from the President to the people."

Thus braved and insulted in the very heart of the country, Hamilton and Knox were of opinion that it was expedient to take immediate measures for establishing a battery on Mud Island, under cover of a party of militia, with directions, that if the vessel should attempt to depart before the pleasure of the President should be known concerning her, military coercion should be employed to arrest her progress.

The Secretary of State dissenting from this opinion, the measure was not adopted. The vessel fell down to Chester before the arrival of Washington and sailed on her cruise before the power of the government could be interposed.

On the 11th of July (1793), Washington reached Philadelphia, and requested that the Cabinet ministers would convene at his house the next day at 9 in the morning.

Among the important papers placed in his hands, which required immediate attention were those which related to the Little Democrat. On reading them, a messenger was immediately dispatched for Jefferson, but he had retired, indisposed, to his seat in the country. Upon hearing this, the President instantly addressed a letter to him, of which the following is an extract:

"What is to be done in the case of the Little Sarah, now at Chester? Is the minister of the French republic to set the acts of this government at defiance with impunity and then threaten the executive with an appeal to the people? What must the world think of such conduct, and of the government of the United States in submitting to it?

"These are serious questions. Circumstances press for decision, and as you have had time to consider them (upon me they come unexpectedly), I wish to know your opinion upon them even before to-morrow, for the vessel may then be gone."

In answer to this letter, Jefferson stated the assurances which had on that day been given to him by Genet, that the vessel Would not sail before the President's decision respecting her should be made. In consequence of this information, immediate coercive measures were suspended, and in the council of the succeeding day it was determined to retain in port all privateers which had been equipped by any of the belligerent powers within the United States. Genet was informed of this determination, but in contempt of it, the Little Democrat proceeded on her cruise. This proceeding furnished a subject of exultation to the opponents of the government, as did also the acquittal by a Charleston jury of Gideon Henfield, who had been arrested for shipping on board a French privateer, he being an American citizen.

While the correspondence between Genet and Jefferson concerning this affair was still going on, the former obtained cause of complaint on his part, and urged that the British were in the habit of taking French property out of American vessels, in contravention of the principles of neutrality avowed by the rest of Europe. His letters to Jefferson on this subject were still more insulting than those which had preceded them. On the 9th of July (1793), he wrote to Jefferson, demanding an instant answer to the question—What measures the President had taken, or would take, to cause the American flag to be respected? Receiving no answer, toward the end of July he again addressed the Secretary of State on the subject. In this extraordinary letter, after complaining of the insults offered to the American flag by seizing the property of Frenchmen confided to its protection, he added: "Your political rights are counted for nothing. In vain do the principles of neutrality establish that friendly vessels make friendly goods; in vain, sir, does the President of the United States endeavor, by his proclamation, to reclaim the

observation of this maxim; in vain does the desire of preserving peace lead to sacrifice the interests of France to that of the moment; in vain does the thirst of riches preponderate over honor in the political balance of America—all this management, all this condescension, all this humility, end in nothing; our enemies laugh at it; and the French, too confident, are punished for having believed that the American nation had a flag, that they had some respect for their laws, some conviction of their strength, and entertained some sentiment of their dignity. It is not possible for me, sir, to paint to you all my sensibility at this scandal, which tends to the diminution of your commerce, to the oppression of ours, and to the debasement and vilification of republics. It is for the Americans to make known their generous indignation at this outrage, and I must confine myself to demand of you, a second time, to inform me of the measures which you have taken in order to obtain restitution of the property plundered from my fellow-citizens under the protection of your flag. It is from our government they have learned that the Americans were our allies, that the American nation was sovereign, and that they knew how to make themselves respected. It is then under the very same sanction of the French nation that they have confided their property and persons to the safeguard of the American flag, and on her they submit the care of causing those rights to be respected. But if our fellow-citizens have been deceived, if you are not in a condition to maintain the sovereignty of your people, speak; we have guaranteed it when slaves, we shall be able to render it formidable, having become freemen."

On the day preceding the date of this offensive letter, Jefferson had answered that of the 9th of July, and, without noticing the unbecoming style in which the decision of the executive was demanded, had avowed and defended the opinion that, "by the general law of nations, the goods of an enemy found in the vessels of a friend, are lawful prize." This fresh insult might therefore be passed over in silence.

While a hope remained that the temperate forbearance of the President, and the unceasing manifestations of his friendly dispositions toward the French republic might induce the minister of that nation to respect the rights of the United States, and to abstain from violations of their sovereignty, an anxious solicitude not to impair the harmony which he wished to maintain between the two republics had restrained him from adopting those measures respecting Genet which his conduct required. He had seen a foreign minister usurp, within the territories of the United States, some of the most

important rights of sovereignty, and persist, after the prohibition of the government in the exercise of those rights. In asserting this extravagant claim, so incompatible with national independence, the spirit in which it originated had been pursued, and the haughty style of a superior had been substituted for the respectful language of diplomacy. He had seen the same minister undertake to direct the civil government, and to pronounce, in opposition to the decisions of the executive, in what departments the constitution of the United States had placed certain great national powers. To render this state of things more peculiarly critical and embarrassing, the person most instrumental in producing it had, from his arrival, thrown himself into the arms of the people, stretched out to receive him, and was emboldened by their favor to indulge the hope of succeeding in his endeavors, either to overthrow their government, or to bend it to his will. But the full experiment had now been made, and the result was a conviction not to be resisted, that moderation would only invite additional injuries, and that the present insufferable state of things could be terminated only by procuring the removal of the French minister, or by submitting to become, in his hands, the servile instrument of hostility against the enemies of his nation. Information was continually received from every quarter of fresh aggressions on the principles established by the government, and, while the executive was thus openly disregarded and contemned, the members of the administration were reproached, in all the papers of an active and restless opposition, as the violators of the national faith, the partisans of monarchy, and the enemies of liberty and of France.

The unwearied efforts to preserve that station in which the various treaties in existence had placed the nation were incessantly calumniated as infractions of those treaties, and ungrateful attempts to force the United States into a war against France.

The judgment of Washington was never hastily formed, but, once made up, it was seldom to be shaken. Before the last letter of Genet was communicated to him he had decided to terminate future intercourse with him.

In a Cabinet council the whole matter was carefully reviewed, and it was unanimously agreed that Gouverneur Morris, the American minister at Paris, should present the whole case to the French government and request

Genet's recall. The faction by whom he had been originally sent out having passed out of power, this was easily effected.

At the same time the Cabinet, under Washington's direction, drew up a system of rules to be observed by the belligerents in the ports of the United States. These rules evidence the settled purpose of the executive faithfully to observe all the national engagements and honestly to perform the duties of that neutrality in which the war found them and in which those engagements left them free to remain.

Neutrality between belligerents is a difficult and delicate part to sustain. It was not France alone that advanced extraordinary pretensions. The British government issued orders for stopping all neutral ships, laden with provisions, bound for the ports of France, thus declaring that country in a state of blockade. The National Convention of France had, indeed, set the example of this by an act of the same tendency, doubly rash, because impotent. But this, however strong a plea for retaliating upon France, was none for making America suffer. Corn, indeed, formed the chief export of the United States, and to prohibit them from shipping it at all—for the new regulation amounted in fact to this—was a grievance which the most pacific neutral could scarcely submit to. Another continually recurring source of complaint on the part of the United States against England was the pressing of their seamen, which the difficulty of distinguishing between natives of the two countries rendered of frequent occurrence and tardy rectification. These causes came to swell the tide of faction in America as the enemies of England and of authoritative institutions took advantage of them to raise their cry, whilst the anti-gallican, on the other hand, were as indignant against the arrogance of the French and of their envoy.

Genet was in New York receiving all sorts of demonstrations of approbation and attachment from his political friends when he received notice of his recall (September, 1793). His rage was indescribable. He wrote to Jefferson a letter full of the most atrocious abuse of Washington and the administration generally, in which Jefferson himself was not spared. But as his powers of mischief were now at an end very slight notice was taken of his splenetic effusions. It appeared in the sequel, however, that he had not confined his attempts to employ the force of America against the enemies of his country to maritime enterprises. On his first arrival he is understood to have planned an expedition against the Floridas, to be carried on from

Georgia, and another against Louisiana, to be carried on from the western parts of the United States. Intelligence was received that the principal officers were engaged, and the temper of the people inhabiting the western country was such as to furnish some ground for the apprehension that the restraints which the executive was capable of imposing, would be found too feeble to prevent the execution of this plan. The remonstrances of the Spanish commissioners on this subject, however, were answered with explicit assurances that the government would effectually interpose to defeat any expedition from the territories of the United States against those of Spain, and the governor of Kentucky was requested to cooperate in frustrating this improper application of the military resources of his State.

While Genet was in New York a schooner, brought as a prize into the port of Boston by a French privateer, was claimed by the British owner, who instituted proceedings at law against her for the purpose of obtaining a decision on the validity of her capture. She was rescued from the possession of the marshal by an armed force, acting under the authority of Mr. Duplaine, the French consul, which was detached from a frigate then lying in port. Until the frigate sailed she was guarded by a part of the crew, and, notwithstanding the determination of the American government that the consular courts should not exercise a prize jurisdiction within the territories of the United States, Mr. Duplaine declared his purpose to take cognizance of the case.

To this act of open defiance it was impossible for Washington to submit. The facts being well attested, the exequatur which had been granted to Mr. Duplaine was revoked and he was forbidden further to exercise the consular functions. It will excite surprise that even this necessary measure could not escape censure. The self-proclaimed champions of liberty discovered in it a violation of the constitution and a new indignity to France.

Meantime events were transpiring in Europe which added not a little to the excitement in the public mind against Great Britain. For many years war had existed between Portugal and Algiers. In consequence of this Algerian cruisers had been confined to the Mediterranean by a Portuguese fleet, and the commerce of the United States, as well as that of Portugal herself, had been protected in the Atlantic from piratical depredations. In September, 1793, an unexpected truce for a year was concluded between Portugal and Algiers. The Dey's cruisers, therefore, immediately, and without previous

notice, passed into the Atlantic, and American vessels, while on their way to Portugal and other parts of Europe, and without the smallest suspicion of danger, became a prey to these lawless freebooters, and many American seamen were doomed to slavery. There was no reasonable doubt that England had a great deal to do with this matter and that, besides her determination to carry on war against France, she was not very unwilling that the United States should also suffer the evils incident to their commerce being entirely unprotected by any naval force.

The causes of discontent which were furnished by Spain, as Marshall states, though less the theme of public declamation, continued to be considerable. That which related to the Mississippi was peculiarly embarrassing. The opinion had been industriously circulated that an opposition of interests existed between the eastern and the western people, and that the endeavors of the executive to open this great river were feeble and insincere. At a meeting of the Democratic Society in Lexington, Kentucky, this sentiment was unanimously avowed in terms of extreme disrespect to the government, and a committee was appointed to open a correspondence with the inhabitants of the entire west for the purpose of uniting them on this subject and of preparing a remonstrance to the President and Congress of the United States, to be expressed "in the bold, decent, and determined language proper to be used by injured freemen when they address the servants of the people." They claimed much merit for having thus long abstained from using the means they possessed, for the assertion of "a natural and unalienable right," and indicated their opinion that this forbearance could not be long continued. The probability that the public expression of these dangerous dispositions would perpetuate the evil could not moderate them. This restless temper gave additional importance to the expedition of Genet projected against Louisiana.

Private communications strengthened the apprehensions entertained by the President that hostilities with Spain were not far distant. The government had received intelligence from their ministers in Europe that propositions had been made by the Cabinet of Madrid to that of London, the object of which was the United States. The precise nature of these propositions was not ascertained, but it was understood generally that their tendency was hostile, and Washington, writing to the Secretary of War, in June, urged the importance of ascertaining the Spanish force in the Floridas

and such other matters as might be necessary in view of the possible outbreak of a contest with Spain.

We must now return to Washington, who, the reader will have perceived, surrounded by the urgent nature of his official duties and the disturbed state of public affairs, had been detained at Philadelphia during a great portion of the recess of Congress. He left that place for Mount Vernon toward the end of September, after the ravages of the terrible yellow fever of 1793 had already commenced in the city. He remained at Mount Vernon till near the end of October. {4}

During this time he was in constant correspondence with the members of the Cabinet, of whom Jefferson appears to have retired to Virginia and the other heads of departments to other places to avoid the contagion of the fever.

The principal topic discussed in this correspondence was the constitutional power of the President to change the place in which Congress were to reassemble in December—Philadelphia being considered unsafe. Germantown, Wilmington, Trenton, Annapolis, Reading, and Lancaster were suggested each in turn as suitable places, but the power of the President to change the place was doubted on all hands. As the fever subsided, however, the meeting actually took place in Philadelphia on the day appointed by adjournment.

Among those whom Washington consulted on the subject of the constitutional power to change the place for the meeting of Congress was Mr. Madison. Washington's letter to him, dated Mount Vernon, October 14, 1793, evinces his anxiety to avoid a violation of the constitution, while it presents a lively picture of the state of disorder in the departments, occasioned by the pestilence at the seat of government. "The calamitous situation of Philadelphia," he writes, "and the little prospect, from the present appearance, of its eligibility to receive Congress by the first Monday in December, involve a serious difficulty. It has been intimated by some that the President ought, by proclamation, to convene Congress a few days before the above-mentioned period, at some other place, and by others that, although in extraordinary cases he has the power to convene, he has none to change the place. Mr. Jefferson, when here on his way home, was of the latter opinion, but the laws were not fully examined, nor was the case at that time so serious as it now is. From the Attorney-General (Randolph), to

whom I have since written on this subject, requesting an official opinion, I have received no answer, nor is it likely I shall soon, as I believe he has no communication with Philadelphia. Time presses and the malady at the usual place of meeting is becoming more and more alarming. What then do you think is the most advisable course for me to pursue in the present exigency—summon Congress to meet at a certain time and place in their legislative capacity? Simply state facts and say that I will meet the members at the time and place just mentioned for ulterior arrangements? Or leave matters as they are if there is no power in the executive to alter the place legally? In the first and second cases, especially the first, the delicacy of my naming a place will readily occur to you. My wish would be that Congress could be assembled at Germantown to show that I meant no partiality, leaving it to themselves, if there should be no prospect of getting into Philadelphia soon, to decide what should be done thereafter. But accounts say that some people have died in Germantown also of the malignant fever. Every death, now, however, is ascribed to that cause, be the disorder what it may. Wilmington and Trenton are almost equidistant from Philadelphia in opposite directions, but both are on the great thoroughfare and equally exposed to danger from the multitude of travelers, and neither may have a chamber sufficient for the House of Representatives. Annapolis and Lancaster are more secure and both have good accommodations. But to name either of them, especially the first, would be thought to favor the southern convenience, and, perhaps, might be attributed to local views, especially as New York is talked of for this purpose. Reading, if there are proper conveniences there, would favor neither the southern nor northern interest most, but would be alike to both.

"I have written to Mr. Jefferson on this subject. Notwithstanding which, I would thank you for your opinion and that fully, as you see my embarrassment. I even ask more. I would thank you, not being acquainted with forms, to sketch some instrument for publication, adapted to the course you may think it would be most expedient for me to pursue in the present state of things, if the members are called together as before mentioned.

"The difficulty of keeping clerks in the public offices had in a manner put a stop to business before I left Philadelphia, and the heads of departments having matters of their own, which called them away, has prevented my return thither longer than I had intended. I have now desired the different secretaries to meet me there, or in the vicinity, the 1st of next month, for which I shall set out the 27th or the 28th of the present.

"The accounts from the city are really affecting. Two gentlemen now here from New York, Colonels Platt and Sergeant, say that they were told at the Swede's ford of Schuylkill, by a person who had it from Governor Mifflin, that, by an official report from the mayor of the city, upward of 3,500 had died, and that the disorder was raging more violently than ever. If cool weather, accompanied by rain, does not put a stop to the malady, distressing indeed must be the case of that city, now almost depopulated by removals and deaths." {5}

1. Footnote: The precise return was: For President George Washington, 132. For Vice-President—John Adams, 77; George Clinton, 50; Thomas Jefferson, 4; Aaron Burr, 1.

2. Footnote: Published in Arthur's "Home Gazette."

3. Footnote: John Quincy Adams on Washington's Proclamation of Neutrality.

4. Footnote: On the 8th of October John Hancock died at Boston.

5. Footnote: The whole number that died during the prevalence of the yellow fever in Philadelphia was over 4,000.

CHAPTER VII. — WASHINGTON SENDS JAY TO ENGLAND. 1793-1794.

The time appointed for the reassembling of Congress was the first Monday in December. Washington had arrived at Philadelphia, and the heads of departments were at their posts before the end of November.

Although the fear of contagion was not entirely dispelled when the time for the meeting of Congress arrived, yet, such was the active zeal of parties, and such the universal expectation that important executive communications would be made, and that legislative measures not less important would be founded on them, that both Houses were full on the first day, and a joint committee waited on the President with the usual information that they were ready to receive his communications.

On the 4th of December (1793), at 12, the President met both Houses in the Senate chamber. His speech was moderate, firm, dignified, and interesting. It commenced with his own re-election, his feelings at which were thus expressed:

"Since the commencement of the term for which I have been again called into office, no fit occasion has arisen for expressing to my fellow-citizens at large, the deep and respectful sense which I feel of the renewed testimony of public approbation. While, on the one hand, it awakened my gratitude for all those instances of affectionate partiality with which I have been honored by my country, on the other, it could not prevent an earnest wish for that retirement, from which no private consideration could ever have torn me. But, influenced by the belief that my conduct would be estimated according to its real motives, and that the people, and the authorities derived from them, would support exertions having nothing personal for their object, I have obeyed the suffrage which commanded me to resume the executive power, and I humbly implore that Being on whose will the fate of nations depends, to crown with success our mutual endeavors for the general happiness." Passing to those measures which had been adopted by the executive for the regulation of its conduct toward the belligerent nations, he observed: "As soon as the war in Europe had embraced those powers with

whom the United States have the most extensive relations, there was reason to apprehend that our intercourse with them might be interrupted, and our disposition for peace drawn into question by suspicions too often entertained by belligerent nations. It seemed therefore to be my duty to admonish our citizens of the consequence of a contraband trade, and of hostile acts to any of the parties, and to obtain, by a declaration of the existing state of things, an easier admission of our rights to the immunities belonging to our situation. Under these impressions the proclamation which will be laid before you was issued.

"In this posture of affairs, both new and delicate, I resolved to adopt general rules which should conform to the treaties, and assert the privileges of the United States. These were reduced into a system which shall be communicated to you."

After suggesting those legislative provisions on this subject, the necessity of which had been pointed out by experience, he proceeded to say:

"I cannot recommend to your notice measures for the fulfillment of our duties to the rest of the world, without again pressing upon you the necessity of placing ourselves in a condition of complete defense, and of exacting from them the fulfillment of their duties toward us. The United States ought not to indulge a persuasion that, contrary to the order of human events, they will forever keep at a distance those painful appeals to arms with which the history of every nation abounds. There is a rank due to the United States among nations which will be withheld, if not absolutely lost by the reputation of weakness. If we desire to avoid insult, we must be able to repel it: if we desire to secure peace—one of the most powerful instruments of our prosperity—it must be known that we are at all times ready for war."

These observations were followed by a recommendation to augment the supply of arms and ammunition in the magazines, and to improve the militia establishment.

After referring to a communication to be subsequently made for occurrences relative to the connection of the United States with Europe, which had, he said, become extremely interesting, and, after reviewing Indian affairs, he particularly addressed the House of Representatives. Having presented to them in detail some subjects of which it was proper they should be informed, he added:

"No pecuniary consideration is more urgent than the regular redemption and discharge of the public debt; on none can delay be more injurious, or an economy of time more valuable.

"The productiveness of the public revenues hitherto has continued to be equal to the anticipations which were formed of it; but it is not expected to prove commensurate with all the objects which have been suggested. Some auxiliary provisions will therefore, it is presumed, be requisite; and it is hoped that these may be made consistently with a due regard to the convenience of our citizens who cannot but be sensible of the true wisdom of encountering a small present addition to their contributions, to obviate a future accumulation of burdens."

The speech was concluded with the following impressive exhortation:

"The several subjects to which I have now referred, open a wide range to your deliberations and involve some of the choicest interests of our common country. Permit me to bring to your remembrance the magnitude of your task. Without an unprejudiced coolness, the welfare of the government may be hazarded; without harmony, as far as consists with freedom of sentiment, its dignity may be lost. But as the legislative proceedings of the United States will never, I trust, be reproached for the want of temper or of candor, so shall not the public happiness languish from the want of my strenuous and warmest cooperation."

The day succeeding that on which this speech was delivered, a special message was sent to both houses containing some of the promised communications relative to the connection of the United States with foreign powers.

After suggesting, as a motive for this communication, that it not only disclosed "matter of interesting inquiry to the Legislature," but "might indeed give rise to deliberations to which they alone were competent," the President added:

"The representative and executive bodies of France have manifested generally a friendly attachment to this country; have given advantages to our commerce and navigation; and have made overtures for placing these advantages on permanent ground. A decree, however, of the National Assembly, subjecting vessels laden with provisions to be carried into their ports, and making enemy goods lawful prize in the vessel of a friend, contrary to our treaty, though revoked at one time as to the United States,

has been since extended to their vessels also, as has been recently stated to us. Representations on the subject will be immediately given in charge to our minister there, and the result shall be communicated to the Legislature.

"It is with extreme concern I have to inform you that the person whom they have unfortunately appointed their minister plenipotentiary here, has breathed nothing of the friendly spirit of the nation which sent him. Their tendency, on the contrary, has been to involve us in a war abroad and discord and anarchy at home. So far as his acts, or those of his agents, have threatened an immediate commitment in the war, or flagrant insult to the authority of the laws, their effect has been counteracted by the ordinary cognizance of the laws and by an exertion of the powers confided to me. Where their danger was not imminent, they have been borne with, from sentiments of regard of his nation, from a sense of their friendship toward us, from a conviction that they would not suffer us to remain long exposed to the actions of a person who has so little respected our mutual dispositions, and, I will add, from a reliance on the firmness of my fellow-citizens in their principles of peace and order. In the meantime I have respected and pursued the stipulations of our treaties, according to what I judged their true sense, and have withheld no act of friendship which their affairs have called for from us, and which justice to others left us free to perform. I have gone further. Rather than employ force for the restitution of certain vessels which I deemed the United States bound to restore, I thought it more advisable to satisfy the parties by avowing it to be my opinion that, if restitution were not made, it would be incumbent on the United States to make compensation."

The message next proceeded to state that inquiries had been instituted respecting the vexations and spoliations committed on the commerce of the United States, the result of which, when received, would be communicated.

The order issued by the British government on the 8th of June (1793), and the measures taken by the executive of the United States in consequence thereof, were briefly noticed, and the discussions which had taken place in relation to the nonexecution of the treaty of peace, were also mentioned. The message was then concluded with a reference to the negotiations with Spain. "The public good," it was said, "requiring that the present state of these should be made known to the Legislature in

confidence only, they would be the subject of a separate and subsequent communication."

This message was accompanied with copies of the correspondence between the Secretary of State and the French minister, on the points of difference which subsisted between the two governments, together with several documents necessary for the establishment of particular facts, and with the letter written by Mr. Jefferson to Mr. Morris, which justified the conduct of the United States by arguments too clear to be misunderstood, and too strong ever to be controverted.

The extensive discussions which had taken place relative to the nonexecution of the treaty of peace, and the correspondence produced by the objectionable measures which had been adopted by the British government during the existing war, were also laid before the Legislature.

In a popular government the representatives of the people may generally be considered as a mirror, reflecting truly the passions and feelings which govern their constituents. In the late elections, the strength of parties had been tried, and the opposition had derived so much aid from associating the cause of France with its own principles, as to furnish much reason to suspect that, in one branch of the Legislature at least, it had become the majority. The first act of the House of Representatives served to strengthen this suspicion. By each party a candidate for the chair was brought forward, and Mr. Muhlenberg, who was supported by the opposition, was elected by a majority of ten votes, against Mr. Sedgewick, whom the Federalists supported.

The answer, however, to Washington's speech, bore no tinge of that malignant and furious spirit which had infused itself into the publications of the day. Breathing the same affectionate attachment to his person and character which had been professed in other times, and being approved by every part of the House, it indicated that the leaders, at least, still venerated their chief magistrate, and that no general intention as yet existed to involve him in the obloquy directed against his measures.

Noticing that unanimous suffrage by which he had been again called to his present station, "it was," they said, "with equal sincerity and promptitude they embraced the occasion for expressing to him their congratulations on so distinguished a testimony of public approbation, and their entire confidence in the purity and patriotism of the motives which had

produced this obedience to the voice of his country. It is," proceeded the address, "to virtues which have commanded long and universal reverence, and services from which have flowed great and lasting benefits, that the tribute of praise may be paid without the reproach of flattery; and it is from the same sources that the fairest anticipations may be derived in favor of the public happiness."

The proclamation of neutrality was approved in guarded terms, and the topics of the speech were noticed in a manner which indicated dispositions cordially to cooperate with the executive.

On the part of the Senate, also, the answer to the speech was unfeignedly affectionate. In warm terms they expressed the pleasure which the re-election of Washington gave them. "In the unanimity," they added, "which a second time marks this important national act, we trace with particular satisfaction, besides the distinguished tribute paid to the virtues and abilities which it recognizes, another proof of that discernment, and constancy of sentiments and views, which have hitherto characterized the citizens of the United States." Speaking of the proclamation, they declared it to be "a measure well timed and wise, manifesting a watchful solicitude for the welfare of the nation, and calculated to promote it."

In a few days a confidential message from Washington was delivered, communicating the critical situation of affairs with Spain. The negotiations attempted with that power in regard to the interesting objects of boundary, navigation, and commerce, had been exposed to much delay and embarrassment, in consequence of the changes which the French revolution had effected in the political state of Europe. Meanwhile, the neighborhood of the Spanish colonies to the United States had given rise to various other subjects of discussion, one of which had assumed a very serious aspect.

Having the best reason to suppose that the hostility of the southern Indians was excited by the agents of Spain, Washington had directed the American commissioners at Madrid to make the proper representations on the subject and to propose that each nation should, with good faith, promote the peace of the other with their savage neighbors.

About the same time the Spanish government entertained, or affected to entertain, corresponding suspicions of like hostile excitements by the agents of the United States, to disturb their peace with the same nations. The representations which were induced by these real or affected suspicions

were accompanied with pretensions and made in a style to which the American executive could not be inattentive. The King of Spain asserted these claims as a patron and protector of those Indians. He assumed a right to mediate between them and the United States, and to interfere in the establishment of their boundaries. At length, in the very moment when those savages were committing daily inroads on the American frontier, at the instigation of Spain, as was believed, the representatives of that power, complaining of the aggressions of American citizens on the Indians, declared "that the continuation of the peace, good harmony, and perfect friendship of the two nations was very problematical for the future, unless the United States should take more convenient measures, and of greater energy than those adopted for a long time past."

Notwithstanding the zeal and enthusiasm with which the pretensions of the French republic, as asserted by their minister Genet, continued to be supported out of doors, they found no open advocate in either branch of the Legislature. This circumstance is, in a great measure, to be ascribed to the temperate conduct of the executive, and to the convincing arguments with which its decisions were supported.

But when it is recollected that the odium which these decisions excited sustained no diminution; that the accusation of hostility to France and to liberty, which originated in them, was not retracted; that, when afterwards many of the controverted claims were renewed by France, her former advocates still adhered to her; it is not unreasonable to suppose that other considerations mingled themselves with the conviction which the correspondence laid before the Legislature was calculated to produce.

An attack on the administration could be placed on no ground more disadvantageous than on its controversy with Mr. Genet. The conduct and language of that minister were offensive to reflecting men of all parties. The President had himself taken so decisive a part in favor of the measures which had been adopted that they must be ascribed to him, not to his Cabinet, and, of consequence, the whole weight of his personal character must be directly encountered in an attempt to censure those measures. From this censure it would have been difficult to extricate the person who was contemplated by the party in opposition as its chief; for the Secretary of State had urged the arguments of the administration with a degree of ability

and earnestness, which ought to have silenced the suspicion that he might not feel their force. {1}

The expression of a legislative opinion, in favor of the points insisted on by the French minister, would probably have involved the nation in a calamitous war, the whole responsibility for which would rest on them. To these considerations was added another, which could not be disregarded. The party in France, to which Mr. Genet owed his appointment, had lost its power, and his fall was the inevitable consequence of the fall of his patrons. That he would probably be recalled was known in America, and that his conduct had been disapproved by his government, was generally believed. The future system of the French republic, with regard to the United States, could not be foreseen, and it would be committing something to hazard not to wait its development.

These objections did not exist to an indulgence of the partialities and prejudices of the nation towards the belligerent powers in measures suggested by its resentment against Great Britain. But, independent of these considerations, it is scarcely possible to doubt that Congress really approved the conduct of the executive with regard to France, and was also convinced that a course of hostility had been pursued by Great Britain which the national interest and national honor required them to repel. In the irritable state of the public mind, it was not difficult to produce this opinion.

Early in the session a report was made by Mr. Jefferson, Secretary of State, in pursuance of a resolution of the House of Representatives, passed on the 23d of February, 1791, requiring him "to report to Congress the nature and extent of the privileges and restrictions of the commercial intercourse of the United States with foreign nations, and the measures which he should think proper to be adopted for the improvement of the commerce and navigation of the same."

This report stated the exports of the United States in articles of their own produce and manufacture, at \$19,587,055, and the imports at \$19,823,060.

Of the exports, nearly one-half was carried to the kingdom of Great Britain and its dominions; of the imports, about four-fifths were brought from the same countries. The American shipping amounted to 277,519 tons, of which not quite one-sixth was employed in the trade with Great Britain and its dominions.

In all the nations of Europe, most of the articles produced in the United States were subject to heavy duties, and some of them were prohibited. In England, the trade of the United States was in general on as good a footing as the trade of other countries, and several articles were more favored than the same articles, the growth of other countries.

The statements and arguments of this report tended to enforce the policy of making discriminations which might favor the commerce of the United States with France and discourage that with England, and which might promote the increase of American navigation as a branch of industry and a resource of defense.

This was the last official act of the Secretary of State. Early in the preceding summer he had signified to the President his intention to retire in September from the public service, and had, with some reluctance, consented to postpone the execution of this intention to the close of the year. Retaining his purpose, he resigned his office on the last day of December. He was succeeded by Edmund Randolph, whose place as Attorney-General was supplied by William Bradford, of Pennsylvania.

On the 4th of January (1794), the House resolved itself into a committee of the whole, on the report of the Secretary of State, relative to the restrictions of the commerce of the United States, when Mr. Madison, after some prefatory observations, laid on the table a series of resolutions for the consideration of the members.

These memorable resolutions embraced almost completely the idea of the report. They imposed an additional duty on the manufactures, and on the tonnage of vessels of nations having no commercial treaty with the United States; while they reduced the duties already imposed by law on the tonnage of vessels belonging to nations having such commercial treaty, and they reciprocated the restrictions which were imposed on American navigation.

The resolutions were taken up on the 13th of January (1794), and the consideration of them led to protracted and very animated debates. The friends of the administration regarded Mr. Madison's scheme as directly hostile to England and subservient to the views of France, in a degree utterly inconsistent with the policy of neutrality. On the other hand, the opposition insisted that the proposed measures were absolutely necessary to protect the commerce of the country from aggression and plunder.

Mr. Madison, in advocating the views which he held, looked especially to measures correspondent to the British navigation act, which had given England the command of the sea. He contended that America would thrive more from exclusion and contest, than from conciliating and stooping to a power that slighted her; and that now was the moment, if ever, when England was engaged in mortal strife with France, to bring her to reason. {2} Mr. Madison's plan was debated at different periods of the session, and underwent considerable modification in its progress through the House, where a resolution was finally adopted retaining the principle of commercial restrictions. It was rejected in the Senate by the casting vote of Mr. Adams, the Vice-President.

Early in January, a resolution was agreed to in the House, declaring "that a naval force, adequate to the protection of the commerce of the United States against the Algerine corsairs, ought to be provided." The force proposed was to consist of six frigates.

This measure was founded on the communications of the President respecting the improbability of being able to negotiate a peace with the Dey of Algiers; and on undoubted information that these pirates had, during their first short cruise in the Atlantic, captured eleven American merchantmen, and made upwards of 100 prisoners, and were preparing to renew their attack on the unprotected vessels of the United States. This bill was strongly opposed, but finally passed both houses, and was approved by the President.

While these debates were going on, the news of the British order in council of the 6th of November (which had not become known to the American minister in England until the close of December, 1793), relative to the French West India trade, arrived in the United States, and roused afresh the hostility against England. Such was the threatening aspect of affairs, that early in the session a committee of the House was instructed to prepare and report an estimate of the expense requisite to place the principal seaports of the country in a state of defense.

That some steps should be taken to resist aggressions on the part of England, was very evident; but the members of Congress differed as to what measures ought to be adopted. The opponents of the administration urged the adoption of commercial restrictions, while its supporters, with the President himself, were in favor of a different course. Various plans were

submitted to the House by members, in accordance with their different views of the subject.

On the 12th of March (1794) Mr. Sedgwick moved several resolutions, the objects of which were to raise a military force, and to authorize the President to lay an embargo. The armament was to consist of 15,000 men, who should be brought into actual service in case of war with any European power, but not until war should break out. In the meantime they were to receive pay while assembled for the purpose of discipline, which was not to exceed twenty-four days in each year.

After stating the motives which led to the introduction of these resolutions they were laid on the table for the consideration of the members.

On the 21st of March Mr. Sedgwick's motion, authorizing the President to lay an embargo, was negatived by a majority of two votes, but in a few days the consideration of that subject was resumed, and a resolution passed prohibiting all trade from the United States to any foreign port or place for thirty days, and empowering the President to carry the resolution into effect.

On the 27th of March Mr. Dayton moved a resolution for sequestering all debts due to British subjects, and for taking means to secure their payment into the treasury, as a fund out of which to indemnify the citizens of the United States for depredations committed on their commerce by British cruisers, in violation of the laws of nations.

The debate on this resolution was such as was to be expected from the irritable state of the public mind. The invectives against the British nation were uttered with peculiar vehemence, and were mingled with allusions to the exertions of the government for the preservation of neutrality, censuring strongly the system which had been pursued.

Before any question was taken on the proposition for sequestering British debts, and without a decision on those proposed by Mr. Madison, Mr. Clarke moved a resolution which in some degree suspended the commercial regulations that had been so earnestly debated. This was to prohibit all intercourse with Great Britain until her government should make full compensation for all injuries done to the citizens of the United States by armed vessels, or by any person or persons acting under the authority of the British King, and until the western posts should be delivered up.

On the 4th of April (1794) before any decision was made on the several propositions which have been stated, the President laid before Congress a

letter just received from Thomas Pinckney, the minister of the United States at London, communicating additional instructions to the commanders of British armed ships, which were dated the 8th of January. These instructions revoked those of the 6th of November (1793), and, instead of bringing in for adjudication all neutral vessels trading with the French islands, British cruisers were directed to bring in those only which were laden with cargoes the produce of the French islands, and were on a direct voyage from those islands to Europe.

The letter detailed a conversation with Lord Grenville on this subject, in which his lordship explained the motives which had originally occasioned the order of the 6th of November, and gave to it a less extensive signification than it had received in the courts of vice-admiralty.

It was intended, he said, to be temporary and was calculated to answer two purposes. One was to prevent the abuses which might take place in consequence of the whole of the St. Domingo fleet having gone to the United States; the other was on account of the attack designed upon the French West India islands by the armament under Sir John Jervis and Sir Charles Grey; but it was now no longer necessary to continue the regulations for those purposes. His lordship added that the order of the 6th of November did not direct the confiscation of all vessels trading with the French islands, but only that they should be brought in for legal adjudication, and he conceived that no vessel would be condemned under it which would not have been previously liable to the same sentence.

The influence of this communication on the party in the Legislature which was denominated Federal was very considerable. Believing that the existing differences between the two nations still admitted of explanation and adjustment, they strenuously opposed all measures which were irritating in their tendency or which might be construed into a dereliction of the neutral character they were desirous of maintaining, but they gave all their weight to those which, by putting the nation in a posture of defense, prepared it for war should negotiation fail.

On the opposite party no change of sentiment or of views appears to have been produced. Their system seems to have been matured, and not to have originated in the feelings of the moment. They adhered to it, therefore, with inflexible perseverance, but seemed not anxious to press an immediate determination of the propositions which had been made. These propositions

were discussed with great animation, but, notwithstanding an ascertained majority in their favor, were permitted to remain undecided, as if their fate depended on some extrinsic circumstance.

Meanwhile, great exertions were made to increase the public agitation and to stimulate the resentments which were felt against Great Britain. The artillery of the press was played with unceasing fury on the minority of the House of Representatives and the democratic societies brought their whole force into operation. Language will scarcely afford terms of greater outrage than were employed against those who sought to stem the torrent of public opinion and to moderate the rage of the moment. They were denounced as a British faction, seeking to impose chains on their countrymen. Even the majority was declared to be but half roused and to show little of that energy and decision which the crisis required.

The proceedings of Congress continued to manifest a fixed purpose to pursue the system which had been commenced, and the public sentiment seemed to accord with that system. That the nation was advancing rapidly to a state of war was firmly believed by many intelligent men, who doubted the necessity and denied the policy of abandoning the neutral position which had been thus long maintained. In addition to the extensive calamities which must, in any state of things, result to the United States from a rupture with a nation which was the mistress of the ocean, and which furnished the best market for the sale of their produce and the purchase of manufactures of indispensable necessity, there were considerations belonging exclusively to the moment, which, though operating only in a narrow circle, were certainly entitled to great respect. {3}

That war with Britain, during the continuance of the passionate and almost idolatrous devotion of a great majority of the people to the French republic, would throw America so completely into the arms of France as to leave her no longer mistress of her own conduct, was not the only fear which the temper of the day suggested. That the spirit which triumphed in that nation and deluged it with the blood of its revolutionary champions might cross the Atlantic, and desolate the hitherto safe and peaceful dwellings of the American people, was an apprehension not so entirely unsupported by appearances as to be pronounced chimerical. With a blind infatuation, which treated reason as a criminal, immense numbers applauded a furious despotism, trampling on every right, and sporting with

life as the essence of liberty; and the few who conceived freedom to be a plant which did not flourish the better for being nourished with human blood, and who ventured to disapprove the ravages of the guillotine, were execrated as the tools of the coalesced despots, and as persons who, to weaken the affection of America for France, became the calumniators of that republic. Already had an imitative spirit, captivated with the splendor, but copying the errors, of a great nation, reared up in every part of the continent self-created corresponding societies, who, claiming to be the people, assumed a control over the government and were loosening its bands. Already were the Mountain, {4} and a revolutionary tribunal, favorite toasts, and already were principles familiarly proclaimed, which, in France, had been the precursors of that tremendous and savage despotism, which, in the name of the people and by the instrumentality of affiliated societies, had spread its terrific sway over that fine country and had threatened to extirpate all that was wise and virtuous. That a great majority of those statesmen who conducted the opposition would deprecate such a result furnished no security against it. When the physical force of a nation usurps the place of its wisdom, those who have produced such a state of things no longer control it.

These apprehensions, whether well or ill founded, produced in those who felt them an increased solicitude for the preservation of peace. Their aid was not requisite to confirm the judgment of Washington on this interesting subject. Fixed in his purpose of maintaining the neutrality of the United States until the aggressions of a foreign power should clearly render neutrality incompatible with honor, and conceiving from the last advices received from England that the differences between the two nations had not yet attained that point, he determined to make one decisive effort, which should either remove the ostensible causes of quarrel or demonstrate the indisposition of Great Britain to remove them. This determination was executed by the nomination of an envoy extraordinary to his Britannic majesty, which was announced to the Senate on the 16th of April (1794), in the following terms:

"The communications which I have made to you during your present session, from the dispatches of our minister in London, contain a serious aspect of our affairs with Great Britain. But as peace ought to be pursued with unremitted zeal, before the last resource—which has so often been the scourge of nations and cannot fail to check the advanced prosperity of the

United States—is contemplated, I have thought proper to nominate and do hereby nominate John Jay as envoy extraordinary of the United States to his Britannic majesty. {5}

"My confidence in our minister plenipotentiary in London continues undiminished. But a mission like this, while it corresponds with the solemnity of the occasion, will announce to the world a solicitude for the friendly adjustment of our complaints and a reluctance to hostility. Going immediately from the United States, such an envoy will carry with him a full knowledge of the existing temper and sensibility of our country, and will thus be taught to vindicate our rights with firmness and to cultivate peace with sincerity."

To those who believed the interests of the nation to require a rupture with England and a still closer connection with France nothing could be more unlooked for or more unwelcome than this decisive measure. That it would influence the proceedings of Congress could not be doubted, and that it would materially affect the public mind was probable. Evincing the opinion of the executive that negotiation, not legislative hostility, was still the proper medium for accommodating differences with Great Britain, it threw on the Legislature a great responsibility, if they should persist in a system calculated to defeat that negotiation. By showing to the people that their President did not yet believe war to be necessary, it turned the attention of many to peace, and, by suggesting the probability, rekindled the almost extinguished desire of preserving that blessing.

Scarcely has any public act of the President drawn upon his administration a greater degree of censure than this. That such would be its effect could not be doubted by a person who had observed the ardor with which opinions that it thwarted were embraced, or the extremity to which the passions and contests of the moment had carried all orders of men. But it is the province of real patriotism to consult the utility more than the popularity of a measure, and to pursue the path of duty, although it may be rugged.

In the Senate the nomination was approved by a majority of ten votes, and, in the House of Representatives, it was urged as an argument against persevering in the system which had been commenced. On the 18th of April a motion for taking up the report of the committee of the whole house on the resolution for cutting off all commercial intercourse with Great Britain

was opposed chiefly on the ground that, as an envoy had been nominated to the court of that country, no obstacle ought to be thrown in his way. The adoption of the resolution would be a bar to negotiation, because it used the language of menace and manifested a partiality to one of the belligerents which was incompatible with neutrality. It was also an objection to the resolution that it prescribed the terms on which alone a treaty should be made, and was, consequently, an infringement of the right of the executive to negotiate, and an indelicacy to that department.

The resolution having undergone some modifications, a bill in conformity with it was brought in and carried by a considerable majority. In the Senate it was lost by the casting vote of Mr. Adams, the Vice-President. The system which had been taken up in the House of Representatives was pressed no further.

A bill for punishing infringements of the neutrality laws and prohibiting the condemnation and sale of prizes in the ports of the United States, brought in by the belligerent powers, was suggested by Washington and reported in the Senate, where it met a violent opposition and was finally passed by the casting vote of the Vice-President. In the House of Representatives it was passed after striking out the provision relative to the sale of prizes. In maintaining his system of strict neutrality Washington had to fight every inch of the ground. The opposition omitted no means of bringing the administration into discredit. Attacks in Congress on the executive officers of the government was resorted to.

In both houses inquiries were set on foot respecting the treasury department, which obviously originated in the hope of finding some foundation for censuring Mr. Hamilton, the secretary, but which failed entirely. In a similar hope, as respected Gouverneur Morris, the minister of the United States at Paris, the Senate passed a vote requesting the President to lay before that body his correspondence with the French republic, and also with the Department of State.

As a war with Great Britain seemed inevitable should the mission of Mr. Jay prove unsuccessful, Congress did not adjourn without passing the absolutely necessary laws for putting the country in a state of defense. Provision was made for fortifying the principal harbors, and 80,000 militia were ordered to be in readiness for active service. Arms and munitions of war were allowed to be imported free of duty, and the President was

authorized to purchase galleys and lay an embargo if he should deem that the public interest required it. To meet the expenses thus incurred duties were levied on a number of additional articles of importation.

On the 9th of June (1794) this active and stormy session was closed by an adjournment to the first Monday in the succeeding November.

"The public," says Marshall, "was not less agitated than the Legislature had been by those interesting questions which had occasioned some of the most animated and eloquent discussions that had ever taken place on the floor of the House of Representatives. Mr. Madison's resolutions especially continued to be the theme of general conversation, and, for a long time, divided parties throughout the United States. The struggle for public opinion was ardent, and each party supported its pretensions, not only with those arguments which each deemed conclusive, but also by those reciprocal criminations which, perhaps, each in part believed.

"The opposition declared that the friends of the administration were an aristocratic and corrupt faction, who, from a desire to introduce monarchy, were hostile to France, and under the influence of Britain; that they sought every occasion to increase expense, to augment debt, to multiply the public burdens, to create armies and navies, and, by the instrumentality of all this machinery, to govern and enslave the people; that they were a paper nobility, whose extreme sensibility at every measure which threatened the funds, induced a tame submission to injuries and insults, which the interest and the honor of the nation required them to resist.

"The friends of the administration retorted that the opposition was prepared to sacrifice the best interests of their country on the altar of the French revolution; that they were willing to go to war for French, not for American objects; that while they urged war they withheld the means of supporting it in order the more effectually to humble and disgrace the government; that they were so blinded by their passion for France as to confound crimes with meritorious deeds, and to abolish the natural distinction between virtue and vice; that the principles which they propagated and with which they sought to intoxicate the people were, in practice, incompatible with the existence of government; that they were the apostles of anarchy, not of freedom, and were, consequently, not the friends of real and rational liberty."

Immediately after the adjournment of Congress, Washington paid a short visit to Mount Vernon. On the 19th of June he writes from Baltimore to Randolph, Secretary of State, respecting the commission and letters of credence of John Quincy Adams, whom he had recently appointed minister resident to the United Netherlands. From the same place, on the same day, he writes to Gouverneur Morris, who had recently been recalled from France at the request of the revolutionary authorities, he having pretty openly expressed his disapprobation of the excesses of the party in power. Washington had appointed as his successor James Monroe, who, as senator, had uniformly opposed the measures of the administration. Such an act of magnanimity in these times would excite considerable surprise.

On the 25th of June (1794), after his arrival at Mount Vernon, Washington again writes to Gouverneur Morris, who still retained his warm friendship and confidence. Speaking of his political course, he says: "My primary objects, to which I have steadily adhered, have been to preserve the country in peace if I can, and to be prepared for war if I cannot; to effect the first upon terms consistent with the respect which is due to ourselves and with honor, justice, and good faith to all the world."

On the same day he writes to Edmund Randolph, Secretary of State: "I shall endeavor to be back by the time I allotted before I left Philadelphia, if I am able, but an exertion to save myself and horse from falling among the rocks at the lower falls of the Potomac, whither I went on Sunday morning to see the canal and locks, has wrenched my back in such a manner as to prevent my riding, and hitherto has defeated the purposes for which I came home. My stay here will only be until I can ride with ease and safety, whether I accomplish my own business or not."

In July (1794) Washington returned to Philadelphia, where very weighty matters were demanding his attention.

1. Footnote: Marshall.

2. Footnote: Madison, on this and other occasions, appears to have been earnestly desirous to build up an extensive mercantile marine, with a view to the formation of an efficient navy. It is pleasant to recollect that, under his administration as President, the proudest triumphs of our navy were achieved.

3. Footnote: Marshall.

4. Footnote: A well-known term designating the most violent party in France.

5. Footnote: Mr. Jay's secretary on this mission was Col. John Trumbull. Colonel Trumbull may be considered one of the most interesting among the many remarkable characters called into action and developed by our Revolutionary War. All that we know of him tends to raise him in our estimation as a soldier, a gentleman, and an artist. When accidentally, as he thought, but providentially, as the event proved, he was excluded from the army, he deemed it a great misfortune, but it forced upon him the cultivation of his art, and made him the painter of the Revolution. His noble historical paintings are the most precious relics of that heroic age which the nation possesses. They are justly prized above all price; and the latest posterity will rejoice that Trumbull laid down the sword to take up the pallet and pencil.

CHAPTER VIII. — WASHINGTON QUELLS THE WESTERN INSURRECTION. 1794.

While Congress was in session several important matters had claimed the consideration of Washington, to which we will now call the reader's attention. It will be recollected that a request of the executive for the recall of Mr. Genet had been transmitted to the French government. During the time which elapsed before an answer could be returned Genet's proceedings had been such as to call for all the prudence, foresight, and moderation of Washington.

In that spirit of conciliation which adopts the least irritating means for effecting its objects, Washington had resolved to bear with the insults, the resistance, and the open defiance of Genet until his appeal to the friendship and the policy of the French republic should be fairly tried. Early in January (1794) this resolution was shaken by fresh proofs of the perseverance of that minister in a line of conduct not to be tolerated by a nation which has not surrendered all pretensions to self-government. Genet had meditated and deliberately planned two expeditions, to be carried on from the territories of the United States against the dominions of Spain, and had, as minister of the French republic, granted commissions to citizens of the United States, who were privately recruiting troops for the proposed service. The first was destined against Florida and the second against Louisiana. The detail of the plans had been settled. The pay, rations, clothing, plunder, and division of the conquered lands to be allotted to the military and the proportion of the acquisitions to be reserved to the republic of France were arranged. The troops destined to act against Florida were to be raised in the three southern States, were to rendezvous in Georgia, were to be aided by a body of Indians, and were to cooperate with the French fleet, should one arrive on the coast. This scheme had been the subject of a correspondence between the executive and Genet, but was in full progress in the preceding December, when, by the vigilance of the Legislature of South Carolina, it was more particularly developed, and some of the principal agents were arrested.

About the same time, intelligence less authentic, but wearing every circumstance of probability, was received, stating that the expedition against Louisiana, which was to be carried on down the Ohio from Kentucky, was in equal maturity.

This intelligence seemed to render a further forbearance incompatible with the dignity of the United States. The question of superseding the diplomatic functions of Genet and depriving him of the privileges attached to that character was brought before the Cabinet, and a message to Congress was prepared, communicating these transactions and avowing a determination to adopt that measure, unless one or the other House should signify the opinion that it was not advisable so to do, when the business was arrested by receiving a letter from Mr. Morris announcing officially the recall of this rash minister. Mr. Fauchet, the successor of Genet, arrived in February (1794), and brought with him strong assurances that his government totally disapproved the conduct of his predecessor. He avowed a determination to avoid whatever might be offensive to those to whom he was deputed, and a wish to carry into full effect the friendly dispositions of his nation toward the United States. For some time his actions were in the spirit of these professions.

Not long after the arrival of Mr. Fauchet, the executive government of France requested the recall of Gouverneur Morris. With this request Washington, as we have already seen, immediately complied, and James Monroe was appointed to succeed him.

The discontents which had been long fomented in the western country had assumed a serious and alarming appearance. A remonstrance to the President and Congress of the United States from the inhabitants of Kentucky, respecting the navigation of the Mississippi, was laid before the executive and each branch of the Legislature. The style of this paper accorded well with the instructions under which it had been prepared. It demanded the free navigation of the Mississippi as a right, and arraigned the government for not having secured its enjoyment. The paper was submitted to both Houses of Congress.

In the Senate the subject was referred to a committee who reported "that in the negotiation now carrying on at Madrid between the United States and Spain, the right of the former to the free navigation of the Mississippi is well asserted and demonstrated, and their claim to its enjoyment is pursued

with all the assiduity and firmness which the magnitude of the subject demands, and will doubtless continue to be so pursued until the object shall be obtained or adverse circumstances shall render the further progress of the negotiation impracticable. That in the present state of the business it would be improper for Congress to interfere, but, in order to satisfy the citizens of the United States more immediately interested in the event of this negotiation, that the United States, have uniformly asserted their right to the free use of the navigation of the river Mississippi, and have employed and will continue to pursue such measures as are best adapted to obtain the enjoyment of this important territorial right, the committee recommend that it be resolved by the Senate:

"That the President of the United States be, and he hereby is requested to cause to be communicated to the executive of the State of Kentucky, such part of the existing negotiation between the United States and Spain relative to this subject, as he may deem advisable and consistent with the course of the negotiation."

In the House of Representatives also a resolution was passed, expressing the conviction of the House, that the executive was urging the claim of the United States to the navigation of the Mississippi in the manner most likely to prove successful.

This answer was not satisfactory to the Kentuckians. Later developments showed that they had a different object from that of obtaining the free navigation of the Mississippi by negotiation.

In October, 1793, it was alleged by the Spanish commissioners that four Frenchmen had left Philadelphia, empowered by the minister of the French republic to prepare an expedition, in Kentucky, against New Orleans. This fact was immediately communicated by Mr. Jefferson to the governor of that State, with a request that he would use those means of prevention which the law enabled him to employ. This letter was accompanied by one from the Secretary of War, conveying the request of the President, that, if preventive means should fail, effectual military force should then be employed to arrest the expedition, and General Wayne was ordered to hold a body of troops at the disposal of the governor should he find the militia insufficient for his purpose.

The governor had already received information that a citizen of Kentucky was in possession of a commission appointing him Commander-in-Chief of

the proposed expedition; and that the Frenchmen alluded to in the letter of Mr. Jefferson had arrived, and, far from affecting concealment, declared that they only waited for money, which they expected soon to receive, in order to commence their operations.

The governor, however, in a letter, containing very singular views of his duty in the affair, declined to interfere with the proposed expedition.

Upon the receipt of this extraordinary letter, Washington directed General Wayne to establish a military post at Fort Massac, on the Ohio, for the purpose of stopping by force, if peaceful means should fail, any body of armed men who should be proceeding down that river.

This precaution appears to have been necessary. The preparations for the expedition were, for some time, carried on with considerable activity; and there is reason to believe that it was not absolutely relinquished until the war ceased between France and Spain.

It will be recollected that, in the preceding year, the attempt to treat with the hostile Indians had suspended the operations of General Wayne until the season for action had nearly passed away. After the total failure of negotiation, the campaign was opened with as much vigor as a prudent attention to circumstances would permit.

The Indians had expected an attempt upon their villages, and had collected in full force, with the apparent determination of risking a battle in their defense. A battle was desired by the American general, but the consequences of another defeat were too serious to warrant him in putting more to hazard by precipitate movements than the circumstances of the war required. The negotiations with the Indians were not terminated till September, and it was then too late to complete the preparations which would enable General Wayne to accomplish his object. He, therefore, contented himself with collecting his army and penetrating about six miles in advance of Fort Jefferson, where he established himself for the winter in a camp called Greenville. After fortifying his camp, he took possession of the ground on which the Americans had been defeated in 1791, where he erected Fort Recovery. These positions afforded considerable protection to the frontiers, and facilitated the opening of the ensuing campaign.

Seeing only the dark side of every measure adopted by the government, and not disinclined to militia expeditions made at the expense of the United States, the people of Kentucky loudly charged the President with a total

disregard of their safety, pronounced the Continental troops entirely useless, declared that the Indians should be kept in awe alone by the militia, and insisted that the power should be deposited with some person in their State to call them out at his discretion, at the charge of the United States.

Meanwhile, some steps were taken by the Governor of Upper Canada, which were well calculated to increase suspicions respecting the dispositions of Great Britain.

It was believed by Washington, not without cause, that the cabinet of London was disposed to avail itself of the nonexecution of that article of the treaty of peace which stipulates for the payment of debts, to justify a permanent detention of the posts on the southern side of the lakes, and to establish a new boundary line, whereby those lakes should be entirely comprehended in Upper Canada. Early in the spring a detachment from the garrison of Detroit repossessed and fortified a position nearly fifty miles south of that station, on the Miami, a river which empties into Lake Erie at its westernmost point.

This movement, and other facts which strengthened the belief that the hostile Indians were at least countenanced by the English, were the subjects of a correspondence between the Secretary of State and Mr. Hammond, in which crimination was answered by recrimination, in which a considerable degree of mutual irritation was displayed, and in which each supported his charges against the nation of the other, much better than he defended his own. It did not, however, in any manner, affect the operations of the army.

The delays inseparable from the transportation of necessary supplies through an uninhabited country, infested by an active enemy peculiarly skilled in partisan war, unavoidably protracted the opening of the campaign until near midsummer. Meanwhile several sharp skirmishes took place, in one of which a few white men were stated to be mingled with the Indians.

On the 8th of August (1794) General Wayne reached the confluence of the Au Glaize, where he threw up some works of defense and protection for magazines. The richest and most extensive settlements of the western Indians lay about this place.

The mouth of the Au Glaize is distant about thirty miles from the post occupied by the British, in the vicinity of which the whole strength of the enemy, amounting, according to intelligence on which General Wayne relied, to rather less than 2,000 men, was collected. The Continental legion

was not much inferior in number to the Indians, and a reinforcement of about 1,100 mounted militia from Kentucky, commanded by General Scott, gave a decided superiority of strength to the army of Wayne. That the Indians had determined to give him battle was well understood, and the discipline of his legion, the ardor of all his troops, and the superiority of his numbers, authorized him confidently to expect a favorable issue. Yet, in pursuance of that policy by which the United States had been uniformly actuated, he determined to make one more effort for the attainment of peace without bloodshed. Messengers were dispatched to the several hostile tribes who were assembled in his front, inviting them to appoint deputies to meet him on his march, in order to negotiate a lasting peace.

On the 15th of August (1794) the American army advanced down the Miami, with its right covered by that river, and on the 18th arrived at the rapids. Here they halted on the 19th, in order to erect a temporary work for the protection of the baggage and to reconnoiter the situation of the enemy.

The Indians were advantageously posted behind a thick wood, and behind the British fort.

At 8 in the morning of the 20th the American army advanced in columns, the legion with its right flank covered by the Miami. One brigade of mounted volunteers, commanded by General Todd, was on the left; and the other, under General Barbee, was in the rear. A select battalion, commanded by Major Price, moved in front of the legion, sufficiently in advance to give timely notice for the troops to form in case of action.

After marching about five miles Major Price received a heavy fire from a concealed enemy, and was compelled to retreat.

The Indians had chosen their ground with judgment. They had advanced into the thick wood in front of the British works, which extends several miles west from the Miami, and had taken a position rendered almost inaccessible to horse by a quantity of fallen timber which appeared to have been blown up in a tornado. They were formed in three lines, within supporting distance of each other; and, as is their custom, with a very extended front. Their line stretched to the west, at right angles with the river, about two miles, and their immediate effort was to turn the left flank of the American army.

On the discharge of the first rifle, the legion was formed in two lines, and the front was ordered to advance with trailed arms and rouse the enemy

from his covert at the point of the bayonet; then, and not until then, to deliver a fire, and to press the fugitives too closely to allow them time to load after discharging their pieces. Soon perceiving the strength of the enemy in front, and that he was endeavoring to turn the American left, the general ordered the second line to support the first. The legion cavalry, led by Captain Campbell, was directed to penetrate between the Indians and the river, where the wood was less thick and entangled, in order to charge their left flank; and General Scott, at the head of the mounted volunteers, was directed to make a considerable circuit, and to turn their right flank.

These orders were executed with spirit and promptitude, but such was the impetuosity of the charge made by the first line of infantry, so entirely was the enemy broken by it, and so rapid was the pursuit that only a small part of the second line and of the mounted volunteers could get into action. In the course of one hour the Indians were driven more than two miles through thick woods, when the pursuit terminated within gunshot of the British fort.

General Wayne remained three days on the banks of the Miami, in front of the field of battle, during which time the houses and cornfields above and below the fort, some of them within pistol-shot of it, were reduced to ashes. In the course of these operations a correspondence took place between General Wayne and Major Campbell, the commandant of the fort, which is stated by the former in such a manner as to show that hostilities between them were avoided only by the prudent acquiescence of the latter in this devastation of property within the range of his guns.

On the 28th (August, 1794), the army returned to Au Glaize by easy marches, destroying on its route all the villages and corn within fifty miles of the river.

In this decisive battle the loss of the Americans in killed and wounded, amounted to 107, including officers. Among the dead were Captain Campbell, who commanded the cavalry, and Lieutenant Towles of the infantry, both of whom fell in the first charge. General Wayne bestowed great and well-merited praise on the courage and alacrity displayed by every part of the army.

The hostility of the Indians still continuing, their whole country was laid waste, and forts were erected in the heart of their settlements to prevent their return.

This seasonable victory rescued the United States from a general war with all the Indians northwest of the Ohio. The Six Nations had discovered a restless, uneasy temper, and the interposition of the President to prevent a settlement which Pennsylvania was about to make at Presque Isle seemed rather to suspend the commencement of hostilities than to establish permanent pacific dispositions among those tribes. The battle of the 20th of August, however, had an immediate effect, and the clouds which had been long gathering in that quarter were instantly dissipated.

In the South, too, its influence was felt. In that quarter the inhabitants of Georgia and the Indians seemed equally disposed to war. Scarcely was the feeble authority of the government competent to restrain the aggressions of the former, or the dread of its force sufficient to repress those of the latter. In this doubtful state of things, the effect of a victory could not be inconsiderable.

About this time the seditions and violent resistance to the execution of the law imposing duties on spirits distilled within the United States had advanced to a point in the counties of Pennsylvania lying west of the Allegheny mountains, which required the decisive interposition of government.

The laws being openly set at defiance, Washington determined to test their efficiency. Bills of indictment were found against the perpetrators of certain outrages, and process was issued against them and placed in the hands of the United States marshal for execution.

The marshal repaired in person to the country which was the scene of disorder for the purpose of serving the processes. On the 15th of July (1794), while in the execution of his duty, he was beset on the road by a body of armed men, who fired on him, but fortunately did him no personal injury. At daybreak the ensuing morning a party attacked the house of General Nevil, the inspector, but he defended himself resolutely and obliged the assailants to retreat.

Knowing well that this attack had been preconcerted, and apprehending that it would be repeated, he applied to the militia officers and magistrates of the county for protection. The answer was that, "owing to the too general combination of the people to oppose the revenue system, the laws could not be executed so as to afford him protection; that should the *posse comitatus*

be ordered out to support the civil authority they would favor the party of the rioters."

On the succeeding day the insurgents reassembled to the number of about 500 to renew their attack on the house of the inspector. That officer, finding that no protection could be afforded by the civil authority, had applied to the commanding officer at Fort Pitt, and had obtained a detachment of eleven men from that garrison, who were joined by Major Kirkpatrick. Successful resistance to so great a force being obviously impracticable, a parley took place, at which the assailants, after requiring that the inspector and all his papers should be delivered up, demanded that the party in the house should march out and ground their arms. This being refused, the parley terminated and the assault commenced. The action lasted until the assailants set fire to several adjacent buildings, the heat from which was so intense that the house could no longer be occupied. From this cause, and from the apprehension that the fire would soon be communicated to the main building, Major Kirkpatrick and his party surrendered themselves.

The marshal and Col. Pressly Nevil were seized on their way to General Nevil's house and detained until 2 the next morning. The marshal especially was treated with extreme severity. His life was frequently threatened, and was probably saved by the interposition of some leading individuals, who possessed more humanity or more prudence than those with whom they were associated. He could obtain his liberty only by entering into a solemn engagement, which was guaranteed by Colonel Nevil, to serve no more processes on the western side of the Allegheny mountains.

The marshal and inspector having both retired to Pittsburgh, the insurgents deputed two of their body, one of whom was a justice of the peace, to demand that the former should surrender all his authority, and that the latter should resign his office, threatening, in case of refusal, to attack the place and seize their persons. These demands were not acceded to, but Pittsburgh affording no security, these officers escaped from the danger which threatened them by descending the Ohio; after which they found their way, by a circuitous route, to the seat of government.

The rioters next proceeded to intercept the mail and take out letters from certain parties in Pittsburgh, containing expressions of disapproval of their proceedings. The writers of these letters they caused to be banished. They

next held meetings on Braddock's Field and at Parkinson's Ferry, at which the determination to resist the laws by force of arms was openly avowed.

Affidavits attesting this serious state of things were laid before Washington. Affairs had now reached a point which seemed to forbid the continuance of a temporizing system. The efforts at conciliation, which, for more than three years, the government had persisted to make, and the alterations repeatedly introduced into the act for the purpose of rendering it less exceptionable, instead of diminishing the arrogance of those who opposed their will to the sense of the nation, had drawn forth sentiments indicative of designs much deeper than the evasion of a single act. The execution of the laws had at length been resisted by open force, and a determination to persevere in these measures was unequivocally avowed. The alternative of subduing this resistance or of submitting to it was presented to the government.

The act of Congress which provided for calling forth the militia "to execute the laws of the Union, suppress insurrections, and repel invasions" required, as a prerequisite to the exercise of this power, "that an associate justice, or the judge of the district, should certify that the laws of the United States were opposed, or their execution obstructed, by combinations too powerful to be suppressed by the ordinary course of judicial proceedings, or by the powers vested in the marshals." In the same act it was provided, "that if the militia of the State where such combinations may happen shall refuse, or be insufficient, to suppress the same, the President may employ the militia of other States."

The evidence which had been transmitted to Washington was laid before one of the associate justices, who gave the certificate, which enabled the chief magistrate to employ the militia in aid of the civil power.

Washington now called a cabinet to consider the subject, and the Governor of Pennsylvania was also consulted respecting it. Randolph, the Secretary of State, and the Governor of Pennsylvania urged reasons against coercion by force of arms; Hamilton, Knox, and Bradford were in favor of employing military force. These members of the Cabinet were also of opinion that policy and humanity equally dictated the employment of a force which would render resistance desperate. The insurgent country contained 16,000 men able to bear arms, and the computation was that they could bring 7,000 into the field. If the army of the government should

amount to 12,000 men, it would present an imposing force which the insurgents would not venture to meet.

It was impossible that Washington could hesitate to embrace the latter of these opinions. That a government entrusted to him should be trampled under foot by a lawless section of the Union, which set at defiance the will of the nation, as expressed by its representatives, was an abasement to which neither his judgment nor his feelings could submit. He resolved, therefore, to issue the proclamation which, by law, was to precede the employment of force.

On the same day a requisition was made on the Governors of New Jersey, Pennsylvania, Maryland, and Virginia for their several quotas of militia to compose an army of 12,000 men, who were to be immediately organized and prepared to march at a minute's warning. The force was ultimately increased to 15,000. While steps were taking to bring this force into the field, a last essay was made to render its employment unnecessary. Three distinguished and popular citizens of Pennsylvania were deputed by the government to be the bearers of a general amnesty for past offenses, on the sole condition of future obedience to the laws.

It having been deemed advisable that the executive of the State should act in concert with that of the United States, Governor Mifflin also issued a proclamation and appointed commissioners to act with those of the general government.

These commissioners were met by a committee from the convention at Parkinson's Ferry, and the conference resulted in a reference of the offer of amnesty to the people. This reference only served to demonstrate that, while a few persons were disposed to submit to the laws, the masses in the disturbed districts were determined to obstruct the re-establishment of civil authority.

On the 25th of September (1794), Washington issued a proclamation describing in terms of great energy the obstinate and perverse spirit with which the lenient propositions of the government had been received, and declaring his fixed determination, in obedience to the high and irresistible duty consigned to him by the constitution, "to take care that the laws be faithfully executed," to reduce the refractory to obedience.

The troops of New Jersey and Pennsylvania were directed to rendezvous at Bedford, and those of Maryland and Virginia at Cumberland, on the

Potomac. The command of the expedition had been conferred on Governor Lee, of Virginia, and the Governors of New Jersey and Pennsylvania commanded the militia of their respective States under him.

Washington in person visited each division of the army, but, being confident that the force employed must look down all resistance, he left Hamilton, the Secretary of the Treasury, to accompany it, and returned himself to Philadelphia, where the approaching session of Congress required his presence. {1}

From Cumberland and Bedford the army marched in two divisions into the country of the insurgents. The greatness of the force prevented the effusion of blood. The disaffected did not venture to assemble in arms. Several of the leaders, who had refused to give assurances of future submission to the laws, were seized, and some of them detained for legal prosecution.

But although no direct and open opposition was made, the spirit of insurrection was not subdued. A sour and malignant temper displayed itself, which indicated but too plainly that the disposition to resist had only sunk under the pressure of the great military force brought into the country, but would rise again should that force be withdrawn. It was, therefore, thought advisable to station for the winter a detachment, to be commanded by Major-General Morgan, in the center of the disaffected country.

"Thus," says Marshall, "without shedding blood, did the prudent vigor of the executive terminate an insurrection which, at one time, threatened to shake the government of the United States to its foundation. That so perverse a spirit should have been excited in the bosom of prosperity, without the pressure of a single grievance, is among those political phenomena which occur not infrequently in the course of human affairs, and which the statesman can never safely disregard. When real ills are felt there is something positive and perceptible to which the judgment may be directed, the actual extent of which may be ascertained and the cause of which may be discerned. But when the mind, inflamed by suppositious dangers, gives full play to the imagination, and fastens upon some object with which to disturb itself, the belief that the danger exists seems to become a matter of faith, with which reason combats in vain."

Washington's own view of the insurrection and its causes is contained in a letter to John Jay, then on his mission to England. "As you have been," he

writes, "and will continue to be fully informed by the Secretary of State of all transactions of a public nature which relate to, or may have an influence on, the points of your mission, it would be unnecessary for me to touch upon any of them in this letter were it not for the presumption that the insurrection in the western counties of this State has excited much speculation and a variety of opinions abroad, and will be represented differently, according to the wishes of some and the prejudices of others, who may exhibit, as an evidence of what has been predicted, 'that we are unable to govern ourselves.' Under this view of the subject, I am happy in giving it to you as the general opinion that this event having happened at the time it did was fortunate, although it will be attended with considerable expense.

"That the self-created societies which have spread themselves over this country have been laboring incessantly to sow the seeds of distrust, jealousy, and, of course, discontent, thereby hoping to effect some revolution in the government, is not unknown to you. That they have been the fomenters of the western disturbances admits of no doubt in the mind of anyone who will examine their conduct, but, fortunately, they precipitated a crisis for which they were not prepared, and thereby have unfolded views which will, I trust, effectuate their annihilation sooner than it might otherwise have happened, at the same time that it has afforded an occasion for the people of this country to show their abhorrence of the result and their attachment to the constitution and the laws; for I believe that five times the number of militia that was required would have come forward, if it had been necessary, to support them.

"The spirit which blazed out on this occasion, as soon as the object was fully understood, and the lenient measures of the government were made known to the people, deserves to be communicated. There are instances of general officers going at the head of a single troop and of light companies; of field officers, when they came to the place of rendezvous and found no command for them in that grade, turning into the ranks and proceeding as private soldiers, under their own captains; and of numbers, possessing the first fortunes in the country, standing in the ranks as private men, and marching day by day with their knapsacks and haversacks at their backs, sleeping on straw, with a single blanket, in a soldier's tent, during the frosty nights which we have had, by way of example to others. Nay, more; many

young Quakers of the first families, character, and property, not discouraged by the elders, have turned into the ranks and are marching with the troops.

"These things have terrified the insurgents, who had no conception that such a spirit prevailed, but, while the thunder only rumbled at a distance, were boasting of their strength and wishing for and threatening the militia by turns, intimating that the arms they should take from them would soon become a magazine in their hands. Their language is much changed, indeed, but their principles want correction.

"I shall be more prolix in my speech to Congress on the commencement and progress of this insurrection than is usual in such an instrument, or than I should have been on any other occasion, but as numbers at home and abroad will hear of the insurrection, and will read the speech, that may know nothing of the documents to which it might refer, I conceived it would be better to encounter the charge of prolixity by giving a cursory detail of facts, that would show the prominent features of the thing, than to let it go naked into the world, to be dressed up according to the fancy or inclination of the readers or the policy of our enemies."

Sentiments similar to these were expressed in a letter to Washington's old and intimate friend, Edmund Pendleton. "The successes of our army to the westward," he writes, "have already been productive of good consequences. They have dispelled a cloud which lowered very heavily in the northern hemisphere (the Six Nations), and, though we have received no direct advices from General Wayne since November, there is reason to believe that the Indians with whom we are or were at war in that quarter, together with their abettors, {2} begin to see things in a different point of view."

One of the most important effects of the suppression of the western rebellion was the fatal blow it gave to the democratic societies founded by Genet.

Washington's opinion of these societies is thus expressed in a letter to one of his friends: "The real people, occasionally assembled in order to express their sentiments on political subjects, ought never to be confounded with permanent self-appointed societies, usurping the right to control the constituted authorities and to dictate to public opinion. While the former is entitled to respect, the latter is incompatible with all government and must either sink into general disesteem or finally overturn the established order of things."

1. Footnote: General Knox, the Secretary of War, accompanied the army to the expected scene of action. The command in chief was confided to Gen. Henry Lee, Washington's old friend and companion in the Revolutionary War. He was at this time Governor of Virginia.

2. Footnote: The British on the border.



CHAPTER IX. — WASHINGTON SIGNS JAY'S TREATY. 1794-1795.

Congress had adjourned to meet on the 4th of November (1794), but a quorum of the Senate was not present until the 10th. Washington addressed both Houses of Congress in a longer speech than usual, giving, according to the intention he had expressed in his letter to Mr. Jay, already quoted, a particular view of the insurrection in Pennsylvania, and the measures which he had taken in order to suppress it.

As Commander-in-Chief of the militia when called into actual service, he had, he said, visited the places of general rendezvous, to obtain more correct information and to direct a plan for ulterior movements. Had there been reason for supposing that the laws were secure from obstruction, he should have caught with avidity at the opportunity of restoring the militia to their families and homes. But succeeding intelligence had tended to manifest the necessity of what had been done, it being now confessed by those who were not inclined to exaggerate the ill conduct of the insurgents, that their malevolence was not pointed merely to a particular law, but that a spirit inimical to all order had actuated many of the offenders.

After bestowing a high encomium on the alacrity and promptitude with which persons in every station had come forward to assert the dignity of the laws, thereby furnishing an additional proof that they understood the true principles of government and liberty, and felt the value of their inseparable union, he added:

"To every description indeed of citizens let praise be given. But let them persevere in their affectionate vigilance over that precious depository of American happiness—the constitution of the United States. And when, in the calm moments of reflection, they shall have retraced the origin and progress of the insurrection, let them determine whether it has not been fomented by combinations of men, who—careless of consequences and disregarding the unerring truth that those who rouse cannot always appease a civil convulsion—have disseminated, from an ignorance or perversion of facts, suspicions, jealousies, and accusations of the whole government."

Washington could not omit this fair occasion once more to press on Congress a subject which had always been near his heart. After mentioning the defectiveness of the existing system, he said:

"The devising and establishing a well-regulated militia would be a general source of legislative honor and a perfect title to public gratitude. I therefore entertain a hope that the present session will not pass without carrying to its full energy the power of organizing, arming, and disciplining the militia, and thus providing, in the language of the constitution, for calling them forth to execute the laws of the Union, suppress insurrections, and repel invasions."

After mentioning the intelligence from the army under the command of General Wayne and the state of Indian affairs, he again called the attention of the House of Representatives to a subject scarcely less interesting than a system of defense against external and internal violence.

"The time," he said, "which has elapsed since the commencement of our fiscal measures has developed our pecuniary resources so as to open the way for a definitive plan for the redemption of the public debt. It is believed that the result is such as to encourage Congress to consummate this work without delay. Nothing can more promote the permanent welfare of the Union, and nothing would be more grateful to our constituents. Indeed, whatever is unfinished of our system of public credit cannot be benefited by procrastination, and, as far as may be practicable, we ought to place that credit on grounds which cannot be disturbed, and to prevent that progressive accumulation of debt which must ultimately endanger all governments."

In alluding to the intercourse of the United States with foreign nations, he said: "It may not be unseasonable to announce that my policy in our foreign transactions has been to cultivate peace with all the world; to observe treaties with pure and inviolate faith; to check every deviation from the line of impartiality; to explain what may have been misapprehended, and correct what may have been injurious to any nation, and having thus acquired the right, to lose no time in acquiring the ability to insist upon justice being done to ourselves."

In the Senate an answer was reported which contained the following clause: "Our anxiety, arising from the licentious and open resistance to the laws in the western counties of Pennsylvania, has been increased by the

proceedings of certain self-created societies relative to the laws and administration of the government, proceedings in our apprehension, founded in political error, calculated, if not intended, to disorganize our government, and which, by inspiring delusive hopes of support, have been instrumental in misleading our fellow-citizens in the scene of insurrection."

The address proceeded to express the most decided approbation of the conduct of Washington in relation to the insurgents, and, after noticing the different parts of the speech, concluded with saying:

"At a period so momentous in the affairs of nations the temperate, just, and firm policy that you have pursued in respect to foreign powers, has been eminently calculated to promote the great and essential interest of our country, and has created the fairest title to the public gratitude and thanks."

To this unequivocal approbation of the policy adopted by the executive with regard to foreign nations, no objections were made. The clause respecting democratic societies was seriously opposed, but the party in favor of the administration had been strengthened in the Senate by recent events, and the address reported by the committee was agreed to without alteration.

In the House, Mr. Madison, Mr. Sedgwick, and Mr. Scott were the committee to report an answer to the speech of the President. It was silent, not only with respect to the self-created societies, but also as to the success of General Wayne, and the foreign policy of Washington. His interference with a favorite system of commercial restrictions was not forgotten, and the mission of John Jay still rankled in the memory of the republicans. No direct censure of the societies or approbation of the foreign policy of the President could be carried, and after an animated debate the opposition party triumphed in the House.

This triumph over the administration revived for a moment the drooping energies of these turbulent societies, but it was only for a moment. The agency ascribed to them by the opinion of the public as well as of the President, in producing an insurrection which was generally execrated, had essentially affected them, and while languishing under this wound they received a deadly blow from a quarter whence hostility was least expected. The remnant of the French convention, rendered desperate by the ferocious despotism of the Jacobins, and of the sanguinary tyrant who had become their chief, had at length sought for safety by confronting danger, and,

succeeding in a desperate attempt to bring Robespierre to the guillotine, had terminated the reign of terror. The colossal powers of the clubs fell with that of their favorite member, and they sunk into long-merited disgrace. Not more certain is it that the boldest streams must disappear, if the fountain that fed them be emptied, than was the dissolution of the democratic societies in America, when the Jacobin clubs were denounced in France. As if their destinies depended on the same thread the political death of the former was the unerring signal for that of the latter. {1}

Notwithstanding the disagreement between the executive and one branch of the Legislature concerning self-created societies, and the policy observed toward foreign nations, the speech of the President was treated with marked respect, and the several subjects which it recommended engaged the immediate attention of Congress. A bill was passed authorizing the President to station a detachment of militia in the four western counties of Pennsylvania; provision was made to compensate those whose property had been destroyed by the insurgents, should those who had committed the injury be unable to repair it, and an appropriation exceeding \$1,100,000 was made to defray the expenses occasioned by the insurrection.

Many of the difficulties which had occurred in drawing out the militia were removed, and a bill was introduced to give greater energy to the militia system generally, but this subject possessed so many intrinsic difficulties that the session passed away without effecting anything respecting it.

A bill for the gradual redemption of the national debt was more successful. The President had repeatedly and earnestly recommended to the Legislature the adoption of measures which might effect this favorite object, but, although that party, which had been reproached with a desire to accumulate debt as a means of subverting the republican system, had uniformly manifested a disposition to carry this recommendation into effect, their desire had hitherto been opposed by obstacles they were unable to surmount. The party in opposition to the government, while professing always a desire to reduce the debt took good care to oppose in detail every proposition having this object in view. While the subject was under discussion Colonel Hamilton, Secretary of the Treasury, addressed a letter to the House of Representatives, through their speaker, informing them that he had digested and prepared a plan on the basis of the actual revenues, for

the further support of public credit, which he was ready to communicate. This comprehensive and valuable report was the last official act of Hamilton.

The penurious provision made for those who filled the high executive departments in the American government, excluded from a long continuance in office all those whose fortunes were moderate and whose professional talents placed a decent independence within their reach. While slandered as the accumulator of thousands by illicit means, Hamilton had wasted in the public service great part of the property acquired by his previous labors, and had found himself compelled to decide on retiring from his political station. The accusations brought against him in the last session of the second Congress had postponed the execution of this design until opportunity should be afforded for a more full investigation of his official conduct, but he informed Washington that, on the close of the session to meet in December, 1793, he should resign his situation in the administration. The events which accumulated about that time, and which were, he said, in a letter to Washington, of a nature to render the continuance of peace in a considerable degree precarious, deferred his meditated retreat. "I do not perceive," he added, "that I could voluntarily quit my post at such a juncture, consistently with considerations either of duty or character, and, therefore, I find myself reluctantly obliged to defer the offer of my resignation."

"But if any circumstances should have taken place in consequence of the intimation of an intention to resign, or should otherwise exist, which serve to render my continuance in office in any degree inconvenient or ineligible, I beg to leave to assure you, sir, that I should yield to them with all the readiness naturally inspired by an impatient desire to relinquish a situation in which even a momentary stay is opposed by the strongest personal and family reasons, and could only be produced by a sense of duty or reputation."

Assurances being given by Washington of the pleasure with which the intelligence that he would continue at his post through the crisis was received; he remained in office until the commencement of the ensuing year. Immediately on his return from the western country, the dangers of domestic insurrection or foreign war having subsided, he gave notice that he should on the last day of January (1795) give in his resignation.

In the esteem and good opinion of Washington, to whom he was best known, Hamilton at all times maintained a high place. While deciding on the mission to England and searching for a person to whom the interesting negotiation with that government should be confided, the mind of the chief magistrate was directed, among others, to him. He carried with him out of office the same cordial esteem for his character and respect for his talents which had induced his appointment.

The vacant office of Secretary of the Treasury was filled by Oliver Wolcott, of Connecticut, a gentleman of sound judgment, who was well versed in its duties. He had served as Comptroller for a considerable time, and in that situation had been eminently useful to the head of the department.

The bill for the gradual reduction of the public debt, on the basis of Hamilton's plan, was resisted in detail through nearly the whole session of Congress, but by the persevering exertions of the Federal party was finally carried, and the system inaugurated by Hamilton became a permanent portion of the financial policy of the country.

On the 3d of March (1795) this important session was ended. Although the party hostile to the administration had obtained a small majority in one branch of the Legislature several circumstances had concurred to give great weight to the recommendations of Washington. Among these may be reckoned the victory obtained by General Wayne and the suppression of the western insurrection. In some points, however, which he had pressed with earnestness, his sentiments did not prevail. One of these was a bill introduced into the Senate for preserving peace with the Indians, by protecting them from the intrusions and incursions of the whites.

General Knox, Secretary of War, like Hamilton, was driven from the service of his country by the scantiness of the compensation allowed him. He resigned at the close of the year 1794. Colonel Pickering, a gentleman who had filled many important offices through the war of the Revolution, who had discharged several trusts of considerable confidence under the present government, and who at the time was Postmaster-General, was appointed to succeed him.

After the rising of Congress, Washington made a short visit to Mount Vernon. He returned to Philadelphia about the 1st of May. Meantime, on the 7th of March (1795) the treaty of amity, commerce, and navigation between

the United States and Great Britain, which had been signed by the ministers of the two nations on the 19th of the preceding November, was received.

From his arrival in London, on the 15th of June, 1794, Mr. Jay had been assiduously and unremittingly employed on the arduous duties of his mission. By a deportment respectful, yet firm, mingling a decent deference for the government to which he was deputed with a proper regard, for the dignity of his own, this minister avoided those little asperities which frequently embarrass measures of great concern, and smoothed the way to the adoption of those which were suggested by the real interests of both nations. Many and intricate were the points to be discussed. On some of them an agreement was found to be impracticable, but at length a treaty was concluded, which Mr. Jay declared to be the best that was attainable, and which he believed it for the interests of the United States to accept. Indeed it was scarcely possible to contemplate the evidences of extreme exasperation which were given in America, and the nature of the differences which subsisted between the two countries, without feeling a conviction that war was inevitable, should this attempt to adjust those differences prove unsuccessful.

The constitution had provided that all treaties should be ratified by the Senate, and Washington summoned that body to meet on Monday, the 8th of June, in order to take it into consideration. In the meantime Washington devoted himself to the task of examining its provisions with the utmost care. It was not, in all respects, what he had wished and expected. Many points were omitted which he had desired to be introduced and settled, others were arranged so as to leave room for future misunderstandings between the two nations. But he felt satisfied that Mr. Jay had obtained the best terms in his power, and that this treaty was the best that could have been made under all circumstances. Important privileges were secured, no great national advantages had been sacrificed, nothing detrimental to the national honor had been admitted, and peace was maintained. That the rejection of the treaty would be followed by a calamitous war did not admit of a doubt. In the existing state of Europe a war with Great Britain would have involved the United States in the long-continued agitations of Europe and deprive them of all the advantages of neutrality and undisturbed commerce. Fully aware of all these considerations, Washington determined that if the Senate should ratify the treaty he would give it the sanction of his signature.

On Monday, the 8th of June (1795), the Senate, in conformity with the summons of the President, convened in the Senate chamber, and the treaty, with the documents connected with it, were submitted to their consideration.

On the 24th of June, after a minute and laborious investigation, the Senate, by precisely a constitutional majority, advised and consented to its conditional ratification.

An insuperable objection existed to an article regulating the intercourse with the British West Indies, founded on a fact which is understood to have been unknown to Mr. Jay. The intention of the contracting parties was to admit the direct intercourse between the United States and those islands, but not to permit the productions of the latter to be carried to Europe in the vessels of the former. To give effect to the intention, the exportation from the United States of those articles which were the principal productions of the islands was to be relinquished. Among these was cotton. This article, which a few years before was scarcely raised in sufficient quantity for domestic consumption, was becoming one of the richest staples of the southern States. The Senate, being informed of this act, advised and consented that the treaty should be ratified on condition that an article be added thereto, suspending that part of the twelfth article which related to the intercourse with the West Indies.

This resolution of the Senate presented difficulties which required consideration. Whether they could advise and consent to an article which had not been laid before them, and whether their resolution was to be considered as the final exercise of their power, were questions not entirely free from difficulty. Nor was it absolutely clear that the executive could ratify the treaty, under the advice of the Senate, until the suspending article should be introduced into it. A few days were employed in the removal of these doubts, at the expiration of which, intelligence was received from Europe which suspended the resolution the President had formed.

The English newspapers reported that the British government had renewed the order in council for seizing provisions in neutral vessels bound to French ports. Washington directed the Secretary of State to prepare a strong memorial to the British government against this order, and postponed the signing of the treaty until it should be ready. In the meantime his private

affairs required that he should visit Mount Vernon, for which place he set off about the middle of July (1795).

Meanwhile, one of the Virginia senators, S. T. Mason, in violation of the obligation of secrecy and the evident demands of propriety, sent a copy of the treaty to the "Aurora," a violent partisan paper in Philadelphia. On the 2nd of July it was published and spread before the community without the authority of the executive, and without any of the official documents and correspondence necessary to a fair appreciation and understanding of its various provisions.

If, in the existing state of parties and the embittered feelings which widely prevailed, the mission of Jay was censured, and the result of his labors condemned in advance, before it was known at all what the treaty contained, the reader can imagine what an effect must have been produced by the publication of the treaty in this clandestine manner. Great Britain was hated and reviled, and France was almost adored by a large and powerful party in the United States, and there were numbers ready, in their blind political fury and excitement, to sacrifice everything rather than be on any terms of concord with the mother country, and rather than moderate in any degree their passionate devotion to France.

In the populous cities meetings of the people were immediately summoned, in order to take into consideration and to express their opinions respecting the treaty. It may well be supposed that persons feeling some distrust of their capacity to form a correct judgment on a subject so complex, would be unwilling to make so hasty a decision, and consequently be disinclined to attend such meetings. Many intelligent men stood aloof, while the most intemperate assumed, as usual, the name of the people—pronounced a definitive and unqualified condemnation of every article in the treaty, and, with the utmost confidence, assigned reasons for their opinions which, in many instances, had only an imaginary existence, and in some were obviously founded on the strong prejudices which were entertained with respect to foreign powers. It is difficult to review the various resolutions and addresses to which the occasion gave birth without feeling some degree of astonishment, mingled with humiliation, at perceiving such proofs of the fallibility of human reason.

The first meeting was held in Boston. The example of that city was soon followed by New York, Philadelphia, Baltimore, and Charleston, and, as if

their addresses were designed at least as much for their fellow-citizens as for their President, while one copy was transmitted to him another was committed to the press. The precedent set by these large cities was followed with wonderful rapidity throughout the Union, and the spirit in which this system of opposition originated sustained no diminution of violence in its progress. The party which supported the administration, however, were not idle; they held meetings and sent addresses to Washington, approving his principles of neutrality and peace. On the 18th of July (1795), at Baltimore, on his way to Mount Vernon, the President received the resolutions passed by the meeting at Boston, which were enclosed to him in a letter from the selectmen of that town. The answer to this letter and to these resolutions, given in a subsequent page, evinced the firmness with which he had resolved to meet the effort that was obviously making to control the exercise of his constitutional functions, by giving a promptness and vigor to the expression of the sentiments of a party which might impose it upon the world as the deliberate judgment of the public.

Addresses to Washington, and resolutions of town and country meetings were not the only means which were employed to enlist the American people against the measure which had been advised by the Senate. In an immense number of essays, the treaty was critically examined and every argument which might operate on the judgment or prejudice of the public was urged in the warm and glowing language of passion. To meet these efforts by counter efforts was deemed indispensably necessary by the friends of that instrument, and the gazettes of the day are replete with appeals to the passions and to the reason of those who are the ultimate arbiters of every political question. That the treaty affected the interests of France not less than those of the United States, was, in this memorable controversy, asserted by the one party with as much zeal as it was denied by the other. These agitations furnished matter to Washington for deep reflection and for serious regret, but they appear not to have shaken the decision he had formed or to have affected his conduct otherwise than to induce a still greater degree of circumspection in the mode of transacting the delicate business before him. On their first appearance, therefore, he resolved to hasten his return to Philadelphia, for the purpose of considering at that place, rather than at Mount Vernon, the memorial against the provision order and the conditional ratification of the treaty.

The following confidential letters are extremely interesting, as evincing the precise state of Washington's mind at this momentous and exciting period:

"To Edmund Randolph, Secretary of State.

"Private.

"MOUNT VERNON, July 29, 1795.

"My Dear Sir.—Your private letters of the 24th and 25th instant have been received, and you will learn by the official letter of this date my determination of returning to Philadelphia after Monday, if nothing in the interim casts up to render it unnecessary.

"I am excited to this resolution by the violent and extraordinary proceedings which have and are about taking place in the northern parts of the Union, and may be expected in the southern; because I think that the Memorial, the Ratification, and the Instructions, which are framing, are of such vast magnitude as not only to require great individual consideration, but a solemn conjunct revision. The latter could not take place if you were to come here, nor would there be that source of information which is to be found at, and is continually flowing to, the seat of government; and, besides, in the course of deliberation on these great objects, the examination of official papers may more than probably be found essential, which could be resorted to at no other place than Philadelphia.

"To leave home so soon will be inconvenient. A month hence it would have been otherwise; and it was, as I hinted to you before I left the city, in contemplation by me for the purpose of Mrs. Washington's remaining here till November, when I intended to come back for her. But whilst I am in office I shall never suffer private convenience to interfere with what I conceive to be my official duty.

"I view the opposition which the treaty is receiving from the meetings in different parts of the Union in a very serious light, not because there is more weight in any of the objections which are made to it than was foreseen at first, for there is none in some of them and gross misrepresentations in others, nor as it respects myself personally, for this shall have no influence on my conduct—plainly perceiving, and I am accordingly preparing my mind for it, the obloquy which disappointment and malice are collecting to heap upon me. But I am alarmed at the effect it may have on and the advantage the French government may be disposed to take of the spirit

which is at work to cherish a belief in them, that the treaty is calculated to favor Great Britain at their expense. Whether they believe or disbelieve these tales, the effect it will have upon the nation will be nearly the same; for, whilst they are at war with that power, or so long as the animosity between the two nations exists, it will, no matter at whose expense, be their policy, and it is to be feared will be their conduct, to prevent us from being on good terms with Great Britain, or her from deriving any advantages from our trade, which they can hinder, however much we may be benefited thereby ourselves. To what length this policy and interest may carry them is problematical, but, when they see the people of this country divided, and such a violent opposition given to the measures of their own government, pretendedly in their favor, it may be extremely embarrassing, to say no more of it."

"To sum the whole up in a few words, I have never, since I have been in the administration of the government, seen a crisis which in my judgment has been so pregnant with interesting events, nor one from which more is to be apprehended, whether viewed on one side or the other. From New York there is, and I am told will further be, a counter current, but how formidable it may appear, I know not. If the same does not take place at Boston and other towns, it will afford but too strong evidence that the opposition is in a manner universal, and would make the ratification a very serious business indeed. But, as it respects the French, even counter resolutions would, for the reasons I have already mentioned, do little more than weaken, in a small degree, the effect the other side would have."

"I have written, and do now enclose the letter, the draught of which was approved by the heads of departments, to the selectmen of the town of Boston; but if new lights have been had upon the subject, since it was agreed to, or if upon reconsideration any alteration should be deemed necessary, I request you to detain it until I see you. Let me also request that the same attention may be given to the draught of a letter to Portsmouth and the Chamber of Commerce at New York as was recommended on that occasion. I am, etc."

"To Edmund Randolph, Secretary of State."

"Private."

"Mount Vernon, July 31, 1795."

"My Dear Sir.—On Wednesday evening I sent the packet, now under cover with this, to the post-office in Alexandria, to be forwarded next morning at the usual hour, 4 o'clock, by the Baltimore mail. But, behold! when my letter-bag was brought back from the office and emptied, I not only got those which were addressed to me, among which yours of the 27th was one, but those also which I had sent up the evening before."

"I have to regret this blunder of the postmaster on account of the enclosures, some of which I wished to have got to your hands without delay, that they might have undergone the consideration and acting upon which were suggested in the letter accompanying them. On another account I am not sorry for the return of the packet, as I resolved thereupon and on reading some letters which I received at the same time, to wait your acknowledgment of the receipt of my letter of the 24th instant before I would set out, as I should thereby be placed on a certainty whether your journey hither or mine to Philadelphia would, under all circumstances, be deemed most eligible, or whether the business could not be equally well done without either; repeating now what I did in my letter of the 24th, that I do not require more than a day's notice to repair to the seat of government, and that if you and the confidential officers with you are not clear in the measures which are best to be pursued in the several matters mentioned in my last, my own opinion is, and for the reasons there given, that difficult and intricate or delicate questions had better be settled there, where the streams of information are continually flowing in, and that I would set out accordingly. To be wise and temperate, as well as firm, the present crisis most eminently calls for. There is too much reason to believe, from the pains which have been taken before, at, and since the advice of the Senate respecting the treaty, that the prejudices against it are more extensive than is generally imagined. This I have lately understood to be the case in this quarter, from men who are of no party, but well disposed to the present administration. How should it be otherwise, when no stone has been left unturned that could impress on the minds of the people the most arrant misrepresentation of facts: that their rights have not only been neglected, but absolutely sold; that there are no reciprocal advantages in the treaty; that the benefits are all on the side of Great Britain; and, what seems to have had more weight with them than all the rest, and to have been most pressed, that the treaty is made with the design to oppress the French, in open violation of our treaty with that nation, and contrary, too, to every

principle of gratitude and sound policy? In time, when passion shall have yielded to sober reason, the current may possibly turn; but, in the meanwhile, this government, in relation to France and England, may be compared to a ship between the rocks of Scylla and Charybdis. If the treaty is ratified, the partisans of the French, or rather of war and confusion, will excite them to hostile measures, or at least to unfriendly sentiments; if it is not, there is no foreseeing all the consequences which may follow as it respects Great Britain."

"It is not to be inferred from hence that I am disposed to quit the ground I have taken, unless circumstances more imperious than have yet come to my knowledge should compel it, for there is but one straight course, and that is to seek truth and pursue it steadily. But these things are mentioned to show that a close investigation of the subject is more than ever necessary, and that they are strong evidences of the necessity of the most circumspect conduct in carrying the determination of government into effect, with prudence as it respects our own people, and with every exertion to produce a change for the better from Great Britain."

"The memorial seems well designed to answer the end proposed, and by the time it is revised and new dressed you will probably (either in the resolutions, which are or will be handed to me, or in the newspaper publications, which you promised to be attentive to) have seen all the objections against the treaty which have any real force in them, and which may be fit subjects for representation in the memorial, or in the instructions, or both. But how much longer the presentation of the memorial can be delayed without exciting unpleasant sensations here, or involving serious evils elsewhere, you, who are at the scene of information and action can decide better than I. In a matter, however, so interesting and pregnant with consequences as this treaty, there ought to be no precipitation, but, on the contrary, every step should be explored before it is taken and every word weighed before it is uttered or delivered in writing."

"The form of the ratification requires more diplomatic experience and legal knowledge than I possess or have the means of acquiring at this place, and, therefore, I shall say nothing about it. I am, etc."

The answer to the selectmen of Boston, already referred to, is too characteristic to be omitted. It is as follows:

"To the Selectmen of the Town of Boston."

"United States, *July 28, 1795*.

"Gentlemen.—In every act of my administration I have sought the happiness of my fellow-citizens. My system for the attainment of this object has uniformly been to overlook all personal, local, and partial considerations; to contemplate the United States as one great whole; to consider that sudden impressions, when erroneous, would yield to candid reflection, and to consult only the substantial and permanent interests of our country. Nor have I departed from this line of conduct on the occasion which has produced the resolutions contained in your letter of the 13th instant."

"Without a predilection for my own judgment, I have weighed with attention every argument which has at any time been brought into view. But the constitution is the guide which I can never abandon. It has assigned to the President the power of making treaties, with the advice and consent of the Senate. It was doubtless supposed that these two branches of government would combine, without passion and with the best means of information, those facts and principles upon which the success of our foreign relations will always depend; that they ought not to substitute for their own conviction the opinions of others, or to seek truth through any channel but that of a temperate and well-informed investigation." "Under this persuasion, I have resolved on the manner of executing the duty before me. To the high responsibility attached to it, I freely submit; and you, gentlemen, are at liberty to make these sentiments known, as the ground of my procedure. While I feel the most lively gratitude for the many instances of approbation from my country, I can no otherwise deserve it than by obeying the dictates of my conscience."

"With due respect, I am, gentlemen, your obedient

"George Washington."

In nearly the same terms Washington replied to other committees and public bodies who thought proper to remonstrate against his exercising the constitutional right of signing the treaty.

In the afternoon of the 11th of August (1795), Washington arrived in Philadelphia, and, on the next day, the question respecting the immediate ratification of the treaty was brought before the Cabinet. Randolph, Secretary of State, maintained, singly, the opinion that, during the existence of the provision order, and during the war between Britain and France, this

step ought not to be taken. This opinion, however, did not prevail. The resolution was adopted to ratify the treaty immediately and to accompany the ratification with a strong memorial against the provision order, which should convey, in explicit terms, the sense of the American government on that subject. By this course the views of the executive were happily accomplished. The order was revoked and the ratifications of the treaty were exchanged.

Washington was most probably determined to adopt this course by the extreme intemperance with which the treaty was opposed and the rapid progress which this violence was apparently making. It was obvious that, unless this temper could be checked, it would soon become so extensive and would arrive at such a point of fury as to threaten dangerous consequences. It was obviously necessary either to attempt a diminution of its action, by rendering its exertions hopeless and by giving to the treaty the weight of his character and influence, or to determine ultimately to yield to it. A species of necessity, therefore, seems to have been created for abandoning the idea, if it was ever taken up, of making the ratification of the treaty dependent on the revocation of the provision order. The soundness of the policy which urged this decisive measure was proved by the event. The confidence which was felt in the judgment and virtue of Washington induced many who, swept away by the popular current, had yielded to the common prejudices, to re-examine and discard opinions which had been too hastily embraced; and many were called forth by a desire to support the administration in measures actually adopted, to take a more active part in the general contest than they would otherwise have pursued. The consequence was that more moderate opinions respecting the treaty began to prevail.

In a letter from Mount Vernon of the 20th of September (1795), addressed to General Knox, who had communicated to him the change of opinion which was appearing in the eastern States, Washington expressed in warm terms the pleasure derived from that circumstance, and added:

"Next to a conscientious discharge of my public duties, to carry along with me the approbation of my constituents would be the highest gratification of which my mind is susceptible. But the latter being secondary, I cannot make the former yield to it, unless some criterion more infallible than partial (if they are not party) meetings can be discovered as

the touchstone of public sentiment. If any person on earth could, or the great Power above would, erect the standard of infallibility in political opinions, no being that inhabits this terrestrial globe would resort to it with more eagerness than myself, so long as I remain a servant of the public. But as I have hitherto found no better guide than upright intentions and close investigations, I shall adhere to them while I keep watch, leaving it to those who will come after me to explore new ways, if they like, or think them better."

If the ratification of the treaty increased the number of its open advocates, it seemed also to give increased acrimony to the opposition. Such hold had Washington taken of the affections of the people that even his enemies had deemed it generally necessary to preserve, with regard to him, external marks of decency and respect. Previous to the mission of Mr. Jay, charges against Washington, though frequently insinuated, had seldom been directly made; and the cover under which the attacks upon his character were conducted evidenced the caution with which it was deemed necessary to proceed. That mission visibly affected the decorum which had been usually observed toward him, and the ratification of the treaty brought sensations into open view which had long been ill concealed. His military and political character was attacked with equal violence, and it was averred that he was totally destitute of merit, either as a soldier or a statesman. The calumnies with which he was assailed were not confined to his public conduct; even his qualities as a man were the subjects of detraction. That he had violated the constitution in negotiating a treaty without the previous advice of the Senate, and in embracing within that treaty subjects belonging exclusively to the Legislature, was openly maintained, for which an impeachment was publicly suggested; and that he had drawn from the treasury for his private use more than the salary annexed to his office was asserted without a blush. This last allegation was said to be supported from extracts from the treasury accounts which had been laid before the Legislature, and was maintained with the most persevering effrontery.

Though Wolcott, the Secretary of the Treasury, denied that the appropriations made by the Legislature had ever been exceeded, the atrocious charge was still confidently repeated, and the few who could triumph in any spot which might tarnish the luster of Washington's fame felicitated themselves on the prospect of obtaining a victory over the reputation of a patriot, to whose single influence they ascribed the failure of

their political plans. With the real public, the confidence felt in the integrity of Washington remained unshaken, but so imposing was the appearance of the documents adduced as to excite an apprehension that the transaction might be placed in a light to show that some indiscretion, in which he had not participated, had been inadvertently committed.

This state of anxious suspense was of short duration. Hamilton, late Secretary of the Treasury, during whose administration of the finances this speculation was said to have taken place, came forward with a full explanation of the fact. It appeared that Washington himself had never touched any part of the compensation annexed to his office, but that the whole was received and disbursed by the gentleman who superintended the expenses of his household. That it was the practice of the treasury, when a sum had been appropriated for the current year, to pay it to that gentleman occasionally, as the situation of the family might require. The expenses at some periods of the year exceeded and at others fell short of the allowance for the quarter, so that at some times money was paid in advance on account of the ensuing quarter, and at others, that which was due at the end of the quarter was not completely drawn out. The secretary entered into an examination of the constitution and laws to show that this practice was justifiable, and illustrated his arguments by many examples in which an advance on account of money appropriated to a particular object, before the service was completed, would be absolutely necessary. However this might be, it was a transaction in which Washington, personally, was unconcerned.

When possessed of the entire facts, the public viewed with just indignation this attempt to defame a character which was the nation's pride. Americans felt themselves involved in this atrocious calumny on their most illustrious citizen, and its propagators were frowned into silence.

Meantime several changes were taking place in Washington's Cabinet. Edmund Randolph, the Secretary of State, resigned his office on the 19th of August, 1795, immediately after the ratification of Jay's treaty, which he had opposed. The circumstances which led to his resignation were by no means creditable to him, but as they brought out in bold relief one of Washington's noblest traits—his perfect openness and candor—we are induced to notice them in detail.

A letter addressed to his government in October, 1794, by Fauchet, the minister of the French republic, was intercepted by the captain of a British

frigate and forwarded to Mr. Hammond, by whom it was delivered, about the last of July, to Mr. Wolcott, the Secretary of the Treasury, who, on the arrival of Washington in Philadelphia, placed it in his hands. This letter alluded to communications from Randolph, which, in the opinion of Washington, were excessively improper. The *éclaircissements* which the occasion required were followed by the resignation of the secretary. For the purpose, he alleged, of vindicating his conduct, he demanded a sight of a confidential letter which had been addressed to him by Washington, and which was left in the office. His avowed design was to give this, as well as some others of the same description, to the public, in order to support the allegation that, in consequence of his attachment to France and to liberty, he had fallen a victim to the intrigues of a British and an aristocratic party. The answer given to this demand was a license which few politicians, in turbulent times, could allow to a man who had possessed the unlimited confidence of the person giving it. "I have directed," said Washington, "that you should have the inspection of my letter of the 22nd of July, agreeable to your request; and you are at full liberty to publish, without reserve, any and every private and confidential letter I ever wrote you; nay, more—every word I ever uttered to or in your presence from whence you can derive any advantage in your vindication."

Notwithstanding that Randolph was under the strongest personal obligations to Washington, he did not hesitate, in his lame attempt to vindicate himself, to resort to violent abuse of his late friend and patron. Washington is said to have lost his temper on reading Randolph's calumnies, {2} as well he might, for it is difficult to conceive of blacker ingratitude than he suffered on this occasion. Late in life Randolph seems to have been sensible of the enormity of his conduct. On the 2nd of July, 1810, he used the following language in a letter to the Hon. Bushrod Washington: "I do not retain the smallest degree of that feeling which roused me fifteen years ago against some individuals. For the world contains no treasure, deception, or charm which can seduce me from the consolation of being in a state of good will toward all mankind, and I should not be mortified to ask pardon of any man with whom I have been at variance for any injury which I may have done him. If I could now present myself before your venerated uncle it would be my pride to confess my contrition that I suffered my irritation, let the cause be what it might, to use some of those expressions respecting him which, at this moment of my indifference to the ideas of the

world, I wish to recall, as being inconsistent with my subsequent conviction. My life will, I hope, be sufficiently extended for the recording of my sincere opinion of his virtues and merit, in a style which is not the result of a mind merely debilitated by misfortune, but of that Christian philosophy on which alone I depend for inward tranquility."

Washington offered the vacant post to Patrick Henry, who was prevented by private considerations from undertaking its duties. Rufus King, Gen. Charles Cotesworth Pinckney, and two or three others were asked to enter the Cabinet as Secretary of State, but they declined. Finally Colonel Pickering, who had temporary charge of the post, was formally appointed in December of the present year. James McHenry succeeded Colonel Pickering as Secretary of War. Mr. Bradford's death, in August, caused a vacancy in the attorney-generalship, which was also filled in December by the appointment of Charles Lee, of Virginia. This office had been previously offered to General Pinckney, Colonel Carrington, of Virginia, and Governor Howard, of Maryland.

In August of this year (1795), General Wayne concluded a treaty of peace, at Greenville, with the chiefs of the Wyandots, Delawares, Chippeways, and other Indian tribes. By this treaty the Indians ceded the post of Detroit and a considerable tract of adjacent land to the United States. A tract of land was ceded on the main, to the north of the island on which the post of Michilimackinac stood, measuring six miles on lakes Huron and Michigan, and extending three miles back from the water of the lake or strait. De Bois Blanc, or White Wood Island, was also ceded—the voluntary gift of the Chippeways.

The foreign affairs of the United States had now begun to assume a more favorable aspect. A treaty was concluded with Spain on the 27th of October (1795). It was confined principally to the two great subjects in dispute, and was styled a treaty of friendship, limits, and navigation. By this the line between the United States and east and west Florida was settled, and the western boundary of the United States, which separated them from the Colony of Louisiana, was fixed in the middle of the channel of the Mississippi river to the thirty-first degree of north latitude; and it was also agreed that the navigation of that river, from its source to the ocean, should be free only to the subjects and citizens of the two countries.

It was further stipulated that both parties should use all the means in their power to maintain peace and harmony among the Indian nations on their borders, and both parties bound themselves to restrain, even by force, the Indians within their limits from acts of hostilities against the other, and it was also agreed that neither party would thereafter make any treaties with those who did not live within their respective limits. Provision was also made that free ships should make free goods, and that no citizen or subject of either party should take a commission or letters of marque for arming any vessel, to act as a privateer, from their respective enemies, under the penalty of being considered and punished as a pirate.

Thus, after a tedious and unpleasant negotiation of about fifteen years, the boundaries between the countries belonging to the United States and Spain, in America, were settled, and the right of navigating every part of the Mississippi, a right so essential to the interests of our vast western territory, was secured to the United States.

In November (1795) Washington had the gratification to bring to a close the long negotiations with the Dey of Algiers, by which peace was established with those piratical marauders and the release of American captives obtained. This was accomplished through the agency of Colonel Humphreys, Joel Barlow, and Mr. Donaldson, and about 120 prisoners were released from cruel bondage, some of whom had been in this ignominious condition more than ten years.

During the recess of Congress Washington paid a visit to Mount Vernon, which lasted from the middle of September (1795) till near the end of October. During this time his attention was divided between the concerns of his estate and the public affairs of that exciting period.

1. Footnote: Marshall

2. Footnote: See Dr. Griswold's "Republican Court." Also, Sparks "Writings of Washington," vol. XI, pp. 54, 479.

CHAPTER X. — WASHINGTON MAINTAINS THE TREATY-MAKING POWER OF THE EXECUTIVE.

1795-1796.

The first session of the Fourth Congress commenced on the 7th of December, 1795. Although the ratification of the treaties with Spain and Algiers had not been officially announced at the meeting of Congress the state of the negotiations with both powers was sufficiently well understood to enable Washington with confidence to assure the Legislature, in his speech at the opening of the session, that those negotiations were in a train which promised a happy issue.

After expressing his gratification at the prosperous state of American affairs the various favorable events which have been already enumerated were detailed in a succinct statement, at the close of which he mentioned the British treaty, which, though publicly known, had not before been communicated officially to the House of Representatives.

"This interesting summary of our affairs," continued the speech, "with regard to the powers between whom and the United States controversies have subsisted, and with regard also to our Indian neighbors with whom we have been in a state of enmity or misunderstanding, opens a wide field for consoling and gratifying reflections. If by prudence and moderation on every side, the extinguishment of all the causes of external discord which have heretofore menaced our tranquility, on terms compatible with our national faith and honor, shall be the happy results, how firm and how precious a foundation will have been laid for accelerating, maturing, and establishing the prosperity of our country!"

After presenting an animated picture of the situation of the United States, and recommending several objects to the attention of the Legislature, Washington concluded with observing: "Temperate discussion of the important subjects that may arise in the course of the session, and mutual forbearance where there is a difference in opinion, are too obvious and

necessary for the peace, happiness, and welfare of our country to need any recommendation of mine."

In the Senate an address was reported which echoed back the sentiments of the speech.

In this House of Representatives, as in the last, the party in opposition to the administration had obtained a majority. This party was unanimously hostile to the treaty with Great Britain, and it was expected that their answer to the speech of the President would indicate their sentiments on a subject which continued to agitate the whole American people. The answer reported by the committee contained a declaration that the confidence of his fellow-citizens in the chief magistrate remained undiminished.

On a motion to strike out the words importing this sentiment it was averred that the clause asserted an untruth; that it was not true that the confidence of the people in the President was undiminished; that by a recent transaction it had been considerably impaired, and some gentlemen declared that their own confidence in him was lessened.

By the friends of the administration this motion was opposed with great zeal, and the opinion that the confidence of the people in their chief magistrate remained unshaken, was maintained with ardor. But they were outnumbered.

To avoid a direct vote on the proposition it was moved that the address should be recommitted. This motion succeeded and, two members being added to the committee, an answer was reported, in which the clause objected to was so modified as to be free from exception.

That part of the speech which mentioned the treaty with Great Britain was alluded to in terms which, though not directly expressive of disapprobation, were sufficiently indicative of the prevailing sentiment.

Early in the month of January (1796) Washington transmitted to both houses of Congress a message, accompanying certain communications from the French government which were well calculated to cherish those ardent feelings that prevailed in the Legislature.

It was the fortune of Mr. Monroe to reach Paris soon after the death of Robespierre and the fall of the Jacobins. On his reception as the minister of the United States, which was public, and in the convention, he gave free scope to the genuine feelings of his heart, and, at the same time, delivered

to the president of that body, with his credentials, two letters addressed by the Secretary of State to the committee of public safety. These letters were answers to one written by the committee of safety to the Congress of the United States. The executive department being the organ through which all foreign intercourse was to be conducted, each branch of the Legislature had passed a resolution directing this letter to be transmitted to the President with a request that he would cause it to be answered in terms expressive of their friendly dispositions toward the French republic.

So fervent were the sentiments expressed on this occasion that the convention decreed that the flag of the American and French republics should be united together and suspended in its own hall in testimony of eternal union and friendship between the two people. To evince the impression made on his mind by this act, and the grateful sense of his constituents, Mr. Monroe presented to the convention the flag of the United States, which he prayed them to accept as a proof of the sensibility with which his country received every act of friendship from its ally, and of the pleasure with which it cherished every incident which tended to cement and consolidate the union between the two nations.

The committee of safety again addressed Congress in terms adapted to that department of government which superintends its foreign intercourse and expressive, among other sentiments, of the sensibility with which the French nation had perceived those sympathetic emotions with which the American people had viewed the vicissitudes of her fortune. Mr. Adet, who was to succeed Mr. Fauchet at Philadelphia, and who was the bearer of this letter, also brought with him the colors of France, which he was directed to present to the United States. He arrived in the summer, but, probably in the idea that these communications were to be made by him directly to Congress, did not announce them to the executive until late in December (1795).

The first day of the new year (1796) was named for their reception, when the colors were delivered to Washington, and the letter to Congress also was placed in his hands.

In executing this duty Mr. Adet addressed a speech to the President, which, in the glowing language of his country, represented France as struggling not only for her own liberty, but for that of the human race. "Assimilated to, or rather identified with, free people by the form of her

government, she saw in them," he said, "only friends and brothers. Long accustomed to regard the American people as her most faithful allies she sought to draw closer the ties already formed in the fields of America, under the auspices of victory, over the ruins of tyranny."

To answer this speech was a task of some delicacy. It was necessary to express feelings adapted to the occasion without implying sentiments with respect to the belligerent powers which might be improper to be used by the chief magistrate of a neutral country. With a view to both these objects Washington made the following reply:

"Born, sir, in a land of liberty; having early learned its value; having engaged in a perilous conflict to defend it; having, in a word, devoted the best years of my life to secure its permanent establishment in my own country, my anxious recollections, my sympathetic feelings, and my best wishes are irresistibly attracted, when-so-ever, in any country, I see an oppressed nation unfurl the banners of freedom. But, above all, the events of the French revolution have produced the deepest solicitude as well as the highest admiration. To call your nation brave were to pronounce but common praise. Wonderful people! ages to come will read with astonishment the history of your brilliant exploits, I rejoice that the period of your toils and of your immense sacrifices is approaching. I rejoice that the interesting revolutionary movements of so many years have issued in the formation of a constitution designed to give permanency to the great object for which you have contended. I rejoice that liberty, which you have so long embraced with enthusiasm—liberty, of which you have been the invincible defenders, now finds an asylum in the bosom of a regularly organized government—a government which, being formed to secure the happiness of the French people, corresponds with the ardent wishes of my heart, while it gratifies the pride of every citizen of the United States by its resemblance to their own. On these glorious events accept, sir, my sincere congratulations."

"In delivering to you these sentiments I express not my own feelings only, but those of my fellow-citizens in relation to the commencement, the progress, and the issue of the French revolution, and they will certainly join with me in purest wishes to the Supreme Being that the citizens of our sister republic, our magnanimous allies, may soon enjoy in peace that liberty

which they have purchased at so great a price, and all the happiness that liberty can bestow."

"I receive, sir, with lively sensibility the symbol of the triumphs and of the enfranchisement of your nation, the colors of France, which you have now presented to the United States. The transaction will be announced to Congress and the colors will be deposited with the archives of the United States, which are at once the evidence and the memorials of their freedom and independence. May these be perpetual! and may the friendship of the two republics be commensurate with their existence!"

The address of Mr. Adet, the answer of the President, and the colors of France, were transmitted to Congress with the letter from the committee of safety.

In the House of Representatives a resolution was moved, requesting the President to make known to the representatives of the French republic the sincere and lively sensations which were excited by this honorable testimony of the existing sympathy and affections of the two republics; that the House rejoiced in an opportunity of congratulating the French republic on the brilliant and glorious achievements accomplished during the present afflictive war, and hoped that those achievements would be attended with a perfect attainment of their object—the permanent establishment of the liberty and happiness of that great and magnanimous people.

In February (1796) the treaty with Great Britain was returned, in the form advised by the Senate, ratified by his Britannic majesty. The constitution declaring a treaty, when made, the supreme law of the land, the President announced it officially to the people in a proclamation, requiring from all persons its observance and execution, a copy of which was transmitted to each House on the 1st of March.

The opposition having openly denied the right of the President to negotiate a treaty of commerce was not a little dissatisfied at his venturing to issue this proclamation before the sense of the House of Representatives had been declared on the obligation of the instrument.

This dissatisfaction was not concealed. On the 2d of March Mr. Livingston laid upon the table a resolution requesting the President "to lay before the House a copy of the instructions to the minister of the United States, who negotiated the treaty with the King of Great Britain,

communicated by his message of the 1st of March, together with the correspondence and other documents relative to the said treaty."

On the 7th of March he amended this resolution by adding the words, "excepting such of the said papers as any existing negotiation may render improper to be disclosed."

The friends of the administration maintained that a treaty was a contract between two nations, which, under the constitution, the President, by and with the advice and consent of the Senate, had a right to make, and that it was made when, by and with such advice and consent, it had received his final act. Its obligations then became complete on the United States, and to refuse to comply with its stipulations was to break the treaty and to violate the faith of the nation.

The opposition contended that the power to make treaties, if applicable to every object, conflicted with powers which were vested exclusively in Congress; that either the treaty-making power must be limited in its operation, so as not to touch objects committed by the constitution to Congress, or the assent and cooperation of the House of Representatives must be required to give validity to any compact, so far as it might comprehend those objects. A treaty, therefore, which required an appropriation of money, or any act of Congress to carry it into effect, had not acquired its obligatory force until the House of Representatives had exercised its powers in the case. They were at full liberty to make, or to withhold, such appropriation or other law, without incurring the imputation of violating any existing obligation or of breaking the faith of the nation.

The debate on this question was animated, vehement, and argumentative, all the party passions were enlisted in it, and it was protracted until the 24th of March (1796), when the resolution was carried in the affirmative by sixty-two to thirty-seven votes. The next day, the committee appointed to present it to the chief magistrate reported his answer which was, "that he would take the resolution into consideration."

The situation in which this vote placed the President was peculiarly delicate. In an elective government, the difficulty of resisting the popular branch of the Legislature is at all times great, but is particularly so when the passions of the public have been strongly and generally excited. The popularity of a demand for information, the large majority by which that demand was supported, the additional force which a refusal to comply with

it would give to suspicions already insinuated, that circumstances had occurred in the negotiation which the administration dared not expose, and that the President was separating himself from the representatives of the people, furnished motives of no ordinary force for complying with the request of the House of Representatives.

But Washington viewed every question which came before him with a single eye to the performance of his duty to the country. Hitherto, on more than one occasion, he had proved himself the defender of the constitution, but he had never been called upon to defend it against so formidable an attack as that which was now made.

That the future diplomatic transactions of the government might be seriously and permanently affected by establishing the principle that the House of Representatives could demand, as a right, the instructions given to a foreign minister, and all the papers connected with a negotiation, was too apparent to be unobserved. Nor was it less obvious that a compliance with the request now made would go far in establishing this principle. The form of the request, and the motives which induced it, equally led to this conclusion. It left nothing to the discretion of the President with regard to the public interests, and the information was asked for the avowed purpose of determining whether the House of Representatives would give effect to a public treaty.

It was also a subject for serious reflection that, in a debate unusually elaborate, the House of Representatives had claimed a right of interference in the formation of treaties, which, in the judgment of the President, the constitution had denied them. Duties the most sacred requiring that he should resist this encroachment on the department which was particularly confided to him, he could not hesitate respecting the course it became him to take, and on the 30th of March he returned to the House the following answer to their resolution:

"With the utmost attention I have considered your resolution of the 24th instant, requesting me to lay before your House a copy of the instructions to the minister of the United States, who negotiated the treaty with the King of Great Britain, together with the correspondence and other documents relative to that treaty, excepting such of the said papers as any existing negotiation may render improper to be disclosed.

"In deliberating upon this subject it was impossible for me to lose sight of the principle which some have avowed in its discussion, or to avoid extending my views to the consequences which must flow from the admission of that principle.

"I trust that no part of my conduct has ever indicated a disposition to withhold any information which the constitution has enjoined it upon the President as a duty to give or which could be required of him by either House of Congress as a right, and with truth I affirm, that it has been, as it will continue to be, while I have the honor to preside in the government, my constant endeavor to harmonize with the other branches thereof, so far as the trust delegated to me by the people of the United States, and my sense of the obligation it imposes to preserve, protect and defend the constitution will permit.

"The nature of foreign negotiations requires caution, and their success must often depend on secrecy, and even when brought to a conclusion, a full disclosure of all the measures, demands, or eventual concessions which may have been proposed or contemplated, would be extremely impolitic, for this might have a pernicious influence on future negotiations or produce immediate inconveniences, perhaps danger and mischief to other persons. The necessity of such caution and secrecy was one cogent reason for vesting the power of making treaties in the President with the advice and consent of the Senate, the principle on which that body was formed confining it to a small number of members.

"To admit, then, a right in the House of Representatives to demand and to have as a matter of course, all the papers respecting a negotiation with a foreign power, would be to establish a dangerous precedent.

"It does not occur that the inspection of the papers asked for can be relative to any purpose under the cognizance of the House of Representatives, except that of an impeachment, which the resolution has not expressed. I repeat, that I have no disposition to withhold any information which the duty of my station will permit or the public good shall require to be disclosed, and, in fact, all the papers affecting the negotiation with Great Britain were laid before the Senate, when the treaty itself was communicated for their consideration and advice.

"The course which the debate has taken on the resolution of the House, leads to some observations on the mode of making treaties under the

constitution of the United States.

"Having been a member of the general convention and knowing the principles on which the constitution was formed, I have ever entertained but one opinion upon this subject, and from the first establishment of the government to this moment my conduct has exemplified that opinion—that the power of making treaties is exclusively vested in the President by and with the advice and consent of the Senate, provided two-thirds of the senators present concur, and that every treaty so made and promulgated, thenceforward becomes the law of the land. It is thus that the treaty-making power has been understood by foreign nations, and in all the treaties made with them, we have declared, and they have believed, that when ratified by the President with the advice and consent of the Senate, they became obligatory. In this construction of the constitution every House of Representatives has heretofore acquiesced, and, until the present time, not a doubt or suspicion has appeared, to my knowledge, that this construction was not a true one. Nay, they have more than acquiesced, for until now, without controverting the obligation of such treaties, they have made all the requisite provisions for carrying them into effect.

"There is also reason to believe that this construction agrees with the opinions entertained by the State conventions when they were deliberating on the constitution, especially by those who objected to it because there was not required, in commercial treaties, the consent of two-thirds of the whole number of the members of the Senate, instead of two-thirds of the senators present, and because, in treaties respecting territorial and certain other rights and claims, the concurrence of three-fourths of the whole number of the members of both Houses respectively was not made necessary.

"It is a fact declared by the general convention and universally understood, that the constitution of the United States was the result of a spirit of amity and mutual concession. And it is well known that under this influence the smaller States were admitted to an equal representation in the Senate with the larger States, and that this branch of the government was invested with great powers, for on the equal participation of those powers the sovereignty and political safety of the smaller States were deemed essentially to depend.

"If other proofs than these, and the plain letter of the constitution itself, be necessary to ascertain the points under consideration, they may be found

in the journals of the general convention, which I have deposited in the office of the Department of State. In these journals it will appear that a proposition was made 'that no treaty should be binding on the United States which was not ratified by a law,' and that the proposition was explicitly rejected.

"As, therefore, it is perfectly clear to my understanding that the assent of the House of Representatives is not necessary to the validity of a treaty, as the treaty with Great Britain exhibits in itself all the objects requiring legislative provision—and on these the papers called for can throw no light, and as it is essential to the due administration of the government that the boundaries fixed by the constitution between the different departments should be preserved, a just regard to the constitution and to the duty of my office, under all the circumstances of this case, forbids a compliance with your request."

The terms in which this decided, and, it would seem, unexpected negative to the call for papers was conveyed, appeared to break the last cord of that attachment which had theretofore bound some of the active leaders of the opposition to Washington. Amidst all the agitations and irritations of party a sincere respect and real affection for him, the remnant of former friendship, had still lingered in the bosoms of some who had engaged with ardor in the political contests of the day. But, if the last spark of this affection was not now extinguished, it was at least concealed under the more active passions of the moment.

Washington's message was referred to a committee of the whole house. It was severely criticized and resolutions were adopted, by a vote of fifty-seven to thirty-five, declaring the sense of the House on this matter, and claiming the right to deliberate on the expediency of carrying into effect stipulations made by treaty on subjects committed by the constitution to Congress.

In March the subject came up incidentally. The treaties with the King of Spain and with the Dey of Algiers were ratified by the President and laid before Congress. On the 13th of April (1796), Mr. Sedgwick moved, "that provision ought to be made by law for carrying into effect with good faith the treaties lately concluded with the Dey and Regency of Algiers, the King of Great Britain, the King of Spain, and certain Indian tribes northwest of the Ohio." After much altercation on the subject of thus joining all these

treaties together, a division was made, and the question taken on each. The resolution was amended by a majority of eighteen so as to read, "that it is expedient to pass the laws necessary for carrying into effect," &c.

The subject of the British treaty was again taken up on the 15th of April. Its friends urged an immediate decision of the question, alleging that every member had made up his mind already, and that dispatch was necessary, in case the treaty was to be carried into effect. The posts were to be delivered up on the 1st of June, and this required previous arrangements on the part of the American government. They appear to have entertained the opinion that the majority would not dare to encounter the immense responsibility of breaking the treaty without previously ascertaining that the great body of the people were willing to meet the consequences of the measure. But its opponents, though confident of their power to reject the resolution, called for its discussion.

The minority soon desisted from urging an immediate decision of the question, and the spacious field which was opened by the propositions before the House was entered into with equal avidity and zeal by both parties. Gallatin, Madison, Giles, Nicholas, Preston, and other eminent members of the republican party, in animated terms opposed the execution of the treaty and entered fully into the discussion of its merits and demerits. Fisher Ames, Dwight, Foster, Harper, Lyman, Dayton, and other men of note among the Federalists, urged every possible argument in its favor.

The debate on this occasion is one of the most celebrated which has ever taken place in Congress. Fisher Ames' speech is acknowledged to have been the most remarkable and effective which he ever made. So completely was the House carried away by his eloquence that an adjournment was carried for the avowed reason that it was not possible to decide calmly on the question until the members should have taken time for reflection. Reflection convinced not only the members of Congress, but the people, that the opposition to the execution of the treaty was ill advised and unreasonable. The length of time consumed in the debates was favorable to a just view of the subject, and finally a majority of the members who had been opposed to the treaty yielded to the exigency of the case and united in passing the laws which were necessary for its fulfillment.

On the 29th of April (1796) the question was taken in committee of the whole and was determined by the casting vote of the chairman in its favor.

The resolution was finally carried in the House by a vote of fifty-one to forty-eight.

Besides the acts which arose out of the treaties, Congress passed others, regulating the dealings of the inhabitants of the western frontier with the Indians; authorizing the survey of certain public lands, with a view to the sale of them; ordaining measures for the protection and relief of American seamen, and equalizing the pay of members of both Houses of Congress. There were some \$6,000,000, which was not quite the full amount of the income, appropriated to the public service and the interest of the debt. But there were so many other demands upon the treasury that, after vainly endeavoring to obtain another loan, part of the bank stock was sold, a procedure which was reprobated by Hamilton as a violation of system. The opposition party would not agree to raise further revenue by indirect internal taxation, and only that augmenting the duty on pleasure carriages was passed into a law. Equally strenuous was their opposition to a naval force. Even under the pressure of the Algerine piracies, the bill providing a decent naval force in the Mediterranean could not be carried through the House without inserting a section which should suspend all proceedings under the act in case the contest with Algiers was brought to an end. That event having occurred, not a single frigate could be completed without further authority from the Legislature. Although no peace had been concluded with Tunis or Tripoli it was with the utmost difficulty that a bill for the completion of three, instead of six, frigates could be carried. On the 1st of June (1796) this long and important session of Congress was brought to its close.

Before Congress rose Washington had written (May 22, 1796) to Thomas Pinckney, the American minister in England, who had desired his recall. In this letter he refers to the recent debate in Congress on passing the laws necessary to give effect to the treaty: "A long and animated discussion," he writes, "in the House of Representatives respecting the treaty of amity, commerce, and navigation with Great Britain took place and continued in one shape or another till the last of April, suspending in a manner all other business, and agitating the public mind in a higher degree than it has been at any period since the Revolution. And nothing, I believe, but the torrent of petitions and remonstrances, which were pouring in from all the eastern and middle States and were beginning to come pretty strongly from that of Virginia, requiring the necessary provisions for carrying the treaty into

effect, would have produced a division (fifty-one to forty-eight) in favor of the appropriation.

"But as the debates, which I presume will be sent to you from the Department of State, will give you a view of this business more in detail than I am able to do, I shall refer you to them. The enclosed speech, however, made by Mr. Ames at the close of the discussion, I send to you, because, in the opinion of most who heard it delivered or have read it since, his reasoning is unanswerable.

"The doubtful issue of the dispute and the real difficulty in finding a character to supply your place at the court of London, has occasioned a longer delay than may have been convenient or agreeable to you. But as Mr. King of the Senate, who, it seems, had resolved to quit his seat at that board, has accepted the appointment, and will embark as soon as matters can be arranged, you will soon be relieved.

"In my letter of the 20th of February I expressed in pretty strong terms my sensibility on account of the situation of the Marquis de Lafayette. This is increased by the visible distress of his son, who is now with me, and grieving for the unhappy fate of his parents. This circumstance, giving a poignancy to my own feelings, has induced me to go a step further than I did in the letter above mentioned, as you will perceive by the enclosed address (a copy of which is also transmitted for your information) to the Emperor of Germany, to be forwarded by you in such a manner, and under such auspices, as in your judgment shall be deemed best, or to be withheld, if from the evidence before you, derived from former attempts, it shall appear clear that it would be of no avail to send it. {1}

"Before I close this letter permit me to request the favor of you to embrace some favorable occasion to thank Lord Grenville, in my behalf, for his politeness in causing a special permit to be sent to Liverpool for the shipment of two sacks of field peas and the like quantity of winter vetches, which I had requested our consul at that place to send me for seed, but which it seems could not be done without an order from government, a circumstance which did not occur to me or I certainly should not have given the trouble of issuing one for such a trifle."

Rufus King, senator from New York, above referred to, had been nominated to the Senate as minister to London on the 19th of May, three days before the date of Washington's letter to Mr. Pinckney. Hamilton,

writing to Washington respecting him, thus describes his character: "Mr. King is a remarkably well-informed man, a very judicious one, a man of address, a man of fortune and economy, whose situation affords just ground of confidence; a man of unimpeached probity where he is known, a firm friend to the government, a supporter of the measures of the President; a man who cannot but feel that he has strong pretensions to confidence and trust."

In June (1796) the President went to Mount Vernon where he continued for more than two months. He kept up a constant correspondence with his secretaries, and held himself ever in readiness to return to the seat of government, if his presence should be needed.

During this visit to Mount Vernon the following letter was written to Thomas Jefferson. It brought the correspondence, which, from time to time, had taken place between them, to a final close.

"MOUNT VERNON, *July 6, 1796.*

"DEAR SIR:—When I inform you that your letter of the 19th ultimo went to Philadelphia and returned to this place before it was received by me, it will be admitted, I am persuaded, as an apology for my not having acknowledged the receipt of it sooner.

"If I had entertained any suspicions before that the queries which have been published in Bache's paper proceeded from you the assurances you have given of the contrary would have removed them, but the truth is, I harbored none. I am at no loss to conjecture from what source they flowed, through what channel they were conveyed, and for what purpose they and similar publications appear. They were known to be in the hands of Mr. Parker in the early part of the last session of Congress. They were shown about by Mr. Giles during the session and they made their public exhibition about the close of it.

"Perceiving, and probably hearing, that no abuse in the gazettes would induce me to take notice of anonymous publications against me, those who were disposed to do me such friendly offices have embraced, without restraint, every opportunity to weaken the confidence of the people, and, by having the whole game in their hands, they have scrupled not to publish things that do not, as well as those which do exist, and to mutilate the latter, so as to make them subserve the purposes which they have in view.

"As you have mentioned the subject yourself, it would not be frank, candid, or friendly to conceal that your conduct has been represented as derogating from that opinion I had conceived you entertained of me, that to your particular friends and connections you have described, and they have denounced, me as a person under a dangerous influence, and that if I would listen more to some other opinions all would be well. My answer invariably has been that I had never discovered anything in the conduct of Mr. Jefferson to raise suspicions in my mind of his insincerity; that, if he would retrace my public conduct while he was in the administration, abundant proofs would occur to him that truth and right decisions were the sole objects of my pursuit; that there were as many instances within his own knowledge of my having decided against as in favor of the opinions of the person evidently alluded to, and, moreover, that I was no believer in the infallibility of the politics or measures of any man living. In short, that I was no party man myself, and the first wish of my heart was, if parties did exist, to reconcile them.

"To this I may add, and very truly, that, until within the last year or two I had no conception that parties would, or even could, go the length I have been witness to, nor did I believe until lately that it was within the bounds of probability, hardly within those of possibility, that, while I was using my utmost exertions to establish a national character of our own, independent, as far as our obligations and justice would permit, of every nation of the earth, and wished, by steering a steady course, to preserve this country from the horrors of a desolating war, I should be accused of being the enemy of one nation and subject to the influence of another, and, to prove it, that every act of my administration would be tortured and the grossest and most insidious misrepresentations of them be made, by giving one side only of a subject, and that too in such exaggerated and indecent terms as could scarcely be applied to a Nero, a notorious defaulter, or even to a common pickpocket. But enough of this. I have already gone further in the expression of my feelings than I intended."

The queries referred to in the above letter were those which had been addressed to the Cabinet by Washington previous to the arrival of Mr. Genet. As they were strictly confidential and could not have been obtained for publication without treachery somewhere, Jefferson had written to Washington to exculpate himself. It will be seen that Washington, with his usual magnanimity, accepts the explanation of Jefferson; but, as the party of

which the latter was the acknowledged leader were constantly carrying on the war of politics by abusing and misrepresenting the former's motives and purposes, it is not surprising that their correspondence should have terminated at this time.

Of the numerous misrepresentations and fabrications which, with unwearied industry, were passed upon the public in order to withdraw the confidence of the nation from its chief, no one marked more strongly the depravity of that principle which justifies the means by the end, than the republication of certain forged letters, purporting to have been written by General Washington in the year 1776.

These letters had been originally published in the year 1777, and in them were interspersed, with domestic occurrences which might give them the semblance of verity, certain political sentiments favorable to Britain in the then existing contest.

But the original fabricator of these papers missed his aim. It was necessary to assign the manner in which the possession of them was acquired, and, in executing this part of his task, circumstances were stated so notoriously untrue, that, at the time, the meditated imposition deceived no person.

In the indefatigable research for testimony which might countenance the charge that the executive was unfriendly to France and under the influence of Britain, these letters were drawn from the oblivion into which they had sunk, it had been supposed forever, and were republished as genuine. The silence with which Washington treated this as well as every other calumny, was construed into an acknowledgment of its truth, and the malignant commentators on this spurious text would not admit the possibility of its being apocryphal.

Those who labored incessantly to establish the favorite position that the executive was under other than French influence, reviewed every act of the administration connected with its foreign relations, and continued to censure every part of the system with extreme bitterness. Not only the treaty with Great Britain, but all those measures which had been enjoined by the duties of neutrality, were reprobated as justly offensive to France, and no opinion which had been advanced by Mr. Genet, in his construction of the treaties between the two nations, was too extravagant to be approved. The most ardent patriot could not maintain the choicest rights of his country

with more zeal than was manifested in supporting all the claims of the French republic upon the United States. This conduct of the opposition increased the disposition of the French government to urge charges against that of this country, and the French minister regulated his proceedings accordingly.

In the anxiety which was felt by Washington to come to a full and immediate explanation with the French Directory on the treaty with Great Britain, Colonel Monroe, the American minister at Paris, had been furnished, even before its ratification, and still more fully afterwards, with ample materials for the justification of his government. But, misconceiving the views of the administration, he reserved these representations until complaints should be made, and omitted to urge them while the Directory was deliberating on the course it should pursue. Meanwhile, his letters kept up the alarm with regard to the dispositions of France, and intelligence from the West Indies served to confirm it. Washington received information that the special agents of the Directory in the islands were about to issue orders for the capture of all American vessels laden in whole or in part with provisions and bound for any port within the dominions of the British Crown.

Knowing well that the intentions of the executive had been at all times friendly to the French republic, Washington had relied with confidence on early and candid communications for the removal of any prejudices or misconceptions. That the Directory would be disappointed at the adjustment of those differences which threatened to embroil the United States with Great Britain, could not be doubted, but, as neither this adjustment, nor the arrangements connected with it had furnished any real cause of complaint, he had cherished the hope that it would produce no serious consequences if the proper means of prevention should be applied in time. He was therefore dissatisfied with delays which he had not expected, and seems to have believed that they originated in a want of zeal to justify a measure which neither the minister himself, nor his political friends, had ever approved. To insure an earnest and active representation of the true sentiments of the executive, Washington was inclined to depute an envoy extraordinary for the particular purpose, who should be united with the actual minister, but an objection, drawn from the constitution, was suggested to the measure. It was doubted whether the President could, in the recess of the Senate, appoint a minister when no vacancy existed. From respect to this

construction of the constitution, the resolution was taken to appoint a successor to Colonel Monroe. The choice of a person calculated for this mission was not without its difficulty. While a disposition friendly to the administration was indispensable, it was desirable that the person employed should have given no umbrage to the French government.

After some deliberation, Washington selected Gen. Charles Cotesworth Pinckney, of South Carolina, for this critical and important service. In the early part of the French revolution, he had felt and expressed all the enthusiasm of his countrymen for the establishment of the republic, but, after the commencement of its contests with the United States, he stood aloof from both those political parties which divided America.

He was recommended to the President by an intimate knowledge of his worth, by a confidence in the sincerity of his personal attachment to the chief magistrate, by a conviction that his exertions to effect the objects of his mission would be ardent and sincere, and that, whatever might be his partialities for France, he possessed a high and delicate sense of national as well as individual honor, was jealous for the reputation of his country, and tenacious of its rights. {2}

In July, immediately after the appointment of General Pinckney, letters were received from Colonel Monroe communicating the official complaints which had been made against the American government in March, by M. de la Croix, the minister of exterior relations, with his answer to those complaints. He had effectually refuted the criminations of M. de la Croix, and the executive was satisfied with his answer. But the Directory had decided on their system, and it was not by reasoning that their decision was to be changed.

Washington's correspondence with the members of the Cabinet during his summer residence at Mount Vernon was incessant. In his letters to James McHenry, Secretary of War, we find evidence of his attention to minute details of business, and his care of the public funds. In his letters of the 8th of August, we find, besides a reference to the fact of the delivery of the posts on the frontier by Great Britain, under the treaty, some curious details respecting the army:

"Your letter of the 3d instant," he writes, "with the information of our possession of Fort Ontario, lately occupied by the troops of Great Britain, and the correspondence between Captain Bruff of the United States troops,

and Captain Clarke of the British, was brought to me by the last post. Several matters are submitted by the former for consideration—among them, the mode of supplying the garrison with firewood, and furnishing it with a seine. With respect to the first of these, providing it with a horse or pair of horses and a batteau, as the fuel is to be transported so far, seems to be a matter of necessity, but the practice of the American army should be consulted for precedents, before the British allowance is made to the soldiers for cutting and transporting it to the fort, when the means by which it is done are furnished by the public. If no allowance of this sort has been made heretofore in towns, where wood was to be bought, which, if I remember rightly, was the case invariably while I commanded the army, it would be a dangerous innovation to begin it now, for it would instantly pervade all the garrisons and the whole army, be their situation what it may. In time of peace, where no danger is to be apprehended, and where the duty is light, I see no hardship in the soldiers providing fuel for their own use and comfort. With regard to a seine, as the expense would be small if it is taken care of, and the convenience great, I think the garrison should be indulged with one." He had always an eye to the comfort of the soldier as well as to economy in the expenditure of the public money. The garrison might have horses for draught, a batteau, and a seine to catch fish in the lake, but in time of peace they were not to have extra pay for cutting wood to keep themselves warm.

1. Footnote: This letter, dated May 15, 1796, contained an affecting statement of Lafayette's case, and a request that he might be permitted to come to the United States. The letter was transmitted to Mr. Pinckney, to be conveyed to the Emperor through his minister at London. How far it operated in mitigating immediately the rigor of Lafayette's confinement, or in obtaining his liberation, remains unascertained.

2. Footnote: Before offering the appointment of minister to France to General Pinckney, Washington had offered it to Gen. John Marshall, afterward chief justice; but the situation of his private affairs would not permit its acceptance.

CHAPTER XI. — WASHINGTON RETIRES FROM THE PRESIDENCY. 1796-1797.

Washington's fixed determination to retire from office at the end of his second term had long been known to his confidential friends. Many of them had opposed it from an apprehension of a political crisis arising from the hostile demonstrations of France and the strong support given to French pretensions by the opposition party in this country. When, in July (1796), Washington proposed to declare publicly his determination, Hamilton wrote to him, "If a storm gathers, how can you retreat? This is a most serious question." Washington, yielding to the wishes of Hamilton and other intimate friends, delayed the announcement of his purpose. As the time for a new election approached the people, uncertain of his intentions, became extremely anxious. The strong hold, says Marshall, which Washington had taken of the affections of his countrymen was, on this occasion, fully evinced. In districts where the opposition to his administration was most powerful, where all his measures were most loudly condemned, where those who approved his system possessed least influence, the men who appeared to control public opinion on every other subject found themselves unable to move it on this. Even the most popular among the leaders of the opposition were reduced to the necessity of surrendering their pretensions to a place in the electoral body or of pledging themselves to bestow their suffrage on the actual President. The determination of his fellow-citizens had been unequivocally manifested, and it was believed to be apparent that the election would again be unanimous when he announced his fixed resolution to withdraw from the honors and the toils of office.

Having long contemplated this event and having wished to terminate his political course with an act which might be at the same time suitable to his own character and permanently useful to his country, he had prepared for the occasion a valedictory address in which, with the solicitude of a person who, in bidding a final adieu to his friends, leaves his affections and his anxieties for their welfare behind him, he made a last effort to impress upon his countrymen those great political truths which had been the guides of his own administration and could alone, in his opinion, form a sure and solid

basis for the happiness, the independence, and the liberty of the United States.

This interesting paper was published on the 17th of September, at a time when hopes were entertained that the discontents of France might be appeased by proper representations. It contains precepts to which the American statesman cannot too frequently recur.

WASHINGTON'S FAREWELL ADDRESS.

TO THE PEOPLE OF THE UNITED STATES.

FRIENDS AND FELLOW CITIZENS:—The period for a new election of a citizen to administer the executive government of the United States being not far distant, and the time actually arrived when your thoughts must be employed in designating the person who is to be clothed with that important trust, it appears to me proper, especially as it may conduce to a more distinct expression of the public voice, that I should not apprise you of the resolution I have formed, to decline being considered among the number of those out of whom the choice is to be made.

I beg you at the same time to do me the justice to be assured that this resolution has not been taken without a strict regard to all the considerations appertaining to the relation which binds a dutiful citizen to his country, and that in withdrawing the tender of service, which silence in my situation might imply, I am influenced by no diminution of zeal for your future interest, no deficiency of grateful respect for your past kindness, but am supported by a full conviction that the step is compatible with both.

The acceptance of, and continuance hitherto in, the office to which your suffrages have twice called me, have been a uniform sacrifice of inclination to the opinion of duty and to a deference for what appeared to be your desire. I constantly hoped that it would have been much earlier in my power, consistently with motives which I was not at liberty to disregard, to return to that retirement from which I had been reluctantly drawn. The strength of my inclination to do this, previous to the last election, had even led to the preparation of an address to declare it to you, but mature reflection on the then perplexed and critical posture of our affairs with

foreign nations, and the unanimous advice of persons entitled to my confidence, impelled me to abandon the idea.

I rejoice that the state of your concerns, external as well as internal, no longer renders the pursuit of inclination incompatible with the sentiment of duty or propriety, and am persuaded, whatever partiality may be retained for my services, that in the present circumstances of our country, you will not disapprove of my determination to retire.

The impressions with which I first undertook the arduous trust were explained on the proper occasion. In the discharge of this trust I will only say that I have, with good intentions, contributed toward the organization and administration of the government the best exertions of which a very fallible judgment was capable. Not unconscious, in the outset, of the inferiority of my qualifications, experience in my own eyes, perhaps still more in the eyes of others, has strengthened the motives to diffidence of myself, and every day the increasing weight of years admonishes me more and more that the shade of retirement is as necessary to me as it will be welcome. Satisfied that if any circumstances have given peculiar value to my services, they were temporary, I have the consolation to believe, that while choice and prudence invite me to quit the political scene, patriotism does not forbid it.

In looking forward to the moment which is to terminate the career of my political life, my feelings do not permit me to suspend the deep acknowledgment of that debt of gratitude which I owe to my beloved country for the many honors it has conferred upon me; still more for the steadfast confidence with which it has supported me, and for the opportunities I have thence enjoyed of manifesting my inviolable attachment by services faithful and persevering, though in usefulness unequal to my zeal. If benefits have resulted to our country from these services, let it always be remembered to your praise and as an instructive example in our annals, that, under circumstances in which the passions, agitated in every direction, were liable to mislead—amidst appearances sometimes dubious—vicissitudes of fortune often discouraging—in situations in which not unfrequently want of success has countenanced the spirit of criticism—the constancy of your support was the essential prop of the efforts and a guarantee of the plans by which they were effected. Profoundly penetrated with this idea, I shall carry it with me to my grave, as

a strong incitement to unceasing wishes, that Heaven may continue to you the choicest tokens of its beneficence—that your union and brotherly affection may be perpetual—that the free constitution, which is the work of your hands, may be sacredly maintained—that its administration in every department may be stamped with wisdom and virtue—that, in fine, the happiness of the people of these States, under the auspices of liberty, may be made complete, by so careful a preservation and so prudent a use of this blessing, as will acquire to them the glory of recommending it to the applause, the affection, and the adoption of every nation which is yet a stranger to it.

Here, perhaps, I ought to stop. But a solicitude for your welfare which cannot end but with my life and the apprehension of danger natural to that solicitude, urge me, on an occasion like the present, to offer to your solemn contemplation and to recommend to your frequent review, some sentiments, which are the result of much reflection of no inconsiderable observation and which appear to me all-important to the permanency of your felicity as a people. These will be offered to you with the more freedom, as you can only see in them the disinterested warnings of a parting friend, who can possibly have no personal motive to bias his counsel. Nor can I forget, as an encouragement to it, your indulgent reception of my sentiments on a former and not dissimilar occasion.

Interwoven as is the love of liberty with every ligament of your hearts, no recommendation of mine is necessary to fortify or confirm the attachment.

The unity of government, which constitutes you one people, is also now dear to you. It is justly so, for it is a main pillar in the edifice of your real independence, the support of your tranquility at home, your peace abroad, of your safety, of your prosperity, of that very liberty which you so highly prize. But as it is easy to foresee that from different causes and from different quarters, much pains will be taken, many artifices employed, to weaken in your minds the conviction of this truth, as this is the point in your political fortress against which the batteries of internal and external enemies will be most constantly and actively (though often covertly and insidiously) directed, it is of infinite moment that you should properly estimate the immense value of your national union to your collective and individual happiness, that you should cherish a cordial, habitual, and immovable attachment to it, accustoming yourselves to think and speak of it

as of the palladium of your political safety and prosperity, watching for its preservation with jealous anxiety, discountenancing whatever may suggest even a suspicion that it can in any event be abandoned, and indignantly frowning upon the first dawning of every attempt to alienate any portion of our country from the rest, or to enfeeble the sacred ties which now link together the various parts.

For this you have every inducement of sympathy and interest. Citizens by birth or choice of a common country, that country has a right to concentrate your affections. The name of American, which belongs to you in your national capacity, must always exalt the just pride of patriotism, more than any appellation derived from local discriminations. With slight shades of difference, you have the same religion, manners, habits, and political principles. You have in a common cause fought and triumphed together; the independence and liberty you possess are the work of joint councils and joint efforts of common dangers, sufferings, and successes.

But these considerations, however powerfully they address themselves to your sensibility, are greatly out-weighed by those which apply more immediately to your interest. Here every portion of our country finds the most commanding motives for carefully guarding and preserving the union of the whole.

The North, in an unrestrained intercourse with the South, protected by the equal laws of a common government, finds in the productions of the latter, great additional resources of maritime and commercial enterprise, and precious materials of manufacturing industry. The South, in the same intercourse, benefiting by the agency of the North, sees its agriculture grow and its commerce expand. Turning partly into its own channels the seamen of the North, it finds its particular navigation invigorated—and while it contributes, in different ways, to nourish and increase the general mass of the national navigation, it looks forward to the protection of a maritime strength to which itself is unequally adapted. The East, in like intercourse with the West, already finds and in the progressive improvement of interior communications by land and water, will more and more find a valuable vent for the commodities which it brings from abroad or manufactures at home. The West derives from the East supplies requisite to its growth and comfort, and, what is perhaps of still greater consequence, it must of necessity owe the secure enjoyment of indispensable outlets for its own productions, to the

weight, influence, and the future maritime strength of the Atlantic side of the Union, directed by an indissoluble community of interest as one nation. Any other tenure by which the West can hold this essential advantage, whether derived from its own separate strength or from an apostate and unnatural connection with any foreign power, must be intrinsically precarious.

While, then, every part of our country thus feels an immediate and particular interest in union, all the parts combined cannot fail to find in the united mass of means and efforts, greater strength, greater resource, proportionally greater security from external danger, a less frequent interruption of their peace by foreign nations, and, what is of inestimable value, they must derive from union an exemption from those broils and wars between themselves which so frequently afflict neighboring countries, not tied together by the same government, which their own rivalships alone would be sufficient to produce, but which opposite foreign alliances, attachments, and intrigues would stimulate and embitter. Hence likewise they will avoid the necessity of those overgrown military establishments, which, under any form of government, are inauspicious to liberty, and which are to be regarded as particularly hostile to republican liberty. In this sense it is that your union ought to be considered as a main prop of your liberty and that the love of the one ought to endear to you the preservation of the other.

These considerations speak a persuasive language to every reflecting and virtuous mind and exhibit the continuance of the Union as a primary object of patriotic desire. Is there a doubt whether a common government can embrace so large a sphere? Let experience solve it. To listen to mere speculation in such a case were criminal. We are authorized to hope that a proper organization of the whole, with the auxiliary agency of governments for the respective subdivisions will afford a happy issue to the experiment. It is well worth a fair and full experiment. With such powerful and obvious motives to union affecting all parts of our country, while experience shall not have demonstrated its impracticability, there will always be reason to distrust the patriotism of those who, in any quarter, may endeavor to weaken its bands.

In contemplating the causes which may disturb our union, it occurs as matter of serious concern, that any ground should have been furnished for

characterizing parties by geographical discriminations—northern and southern—Atlantic and western, whence designing men may endeavor to excite a belief that there is a real difference of local interests and views. One of the expedients of party to acquire influence, within particular districts, is to misrepresent the opinions and aims of other districts. You cannot shield yourselves too much against the jealousies and heart burnings which spring from these misrepresentations; they tend to render alien to each other those who ought to be bound together by fraternal affection. The inhabitants of our western country have lately had a useful lesson on this head. They have seen, in the negotiation by the executive and in the unanimous ratification by the Senate of the treaty with Spain, and in the universal satisfaction at that even throughout the United States, a decisive proof how unfounded were the suspicions propagated among them of a policy in the general government and in the Atlantic States, unfriendly to their interests in regard to the Mississippi. They have been witnesses to the formation of two treaties, that with Great Britain and that with Spain, which secure to them everything they could desire in respect to our foreign relations toward confirming their prosperity. Will it not be their wisdom to rely for the preservation of these advantages on the Union by which they were procured? Will they not henceforth be deaf to those advisers, if such there are, who would sever them from their brethren and connect them with aliens?

To the efficacy and permanency of your Union a government for the whole is indispensable. No alliances, however strict, between the parts can be an adequate substitute; they must inevitably experience the infractions and interruptions which all alliances in all times have experienced.

Sensible of this momentous truth you have improved upon your first essay by the adoption of a constitution of government, better calculated than your former, for an intimate union, and for the efficacious management of your common concerns. This government, the offspring of our own choice, uninfluenced and unawed, adopted upon full investigation and mature deliberation, completely free in its principles, in the distribution of its powers uniting security with energy, and containing within itself a provision for its own amendments, has a just claim to your confidence and your support. Respect for its authority, compliance with its laws, acquiescence in its measures, are duties enjoined by the fundamental maxims of true liberty. The basis of our political systems is the right of the

people to make and to alter their constitutions of government. But the constitution which at any time exists, until changed by an explicit and authentic act of the whole people, is sacredly obligatory upon all. The very idea of the power and the right of the people to establish a government, presupposes the duty of every individual to obey the established government.

All obstructions to the execution of the laws, all combinations and associations, under whatever plausible character, with the real design to direct, control, counteract, or awe the regular deliberations and action of the constituted authorities, are destructive of this fundamental principle and of fatal tendency. They serve to organize faction; to give it an artificial and extraordinary force; to put in the place of the delegated will of the nation, the will of a party, often a small, but artful and enterprising minority of the community, and, according to the alternate triumphs of different parties, to make the public administration the mirror of the ill-concerted and incongruous projects of faction, rather than the organ of consistent and wholesome plans, digested by common councils and modified by mutual interests.

However combinations or associations of the above description may now and then answer popular ends they are likely, in the course of time and things, to become potent engines, by which cunning, ambitious, and unprincipled men will be enabled to subvert the power of the people and to usurp for themselves the reins of government, destroying afterward the very engines which have lifted them to unjust dominion.

Toward the preservation of your government and the permanency of your present happy state, it is requisite not only that you steadily discountenance irregular oppositions to its acknowledged authority, but also that you resist with care the spirit of innovation upon its principles, however specious the pretexts. One method of assault may be to effect in the forms of the constitution alterations which will impair the energy of the system, and thus to undermine what cannot be directly overthrown. In all the changes to which you may be invited remember that time and habit are at least as necessary to fix the true characters of governments as of other human institutions—that experience is the surest standard by which to test the real tendency of the existing constitution of a country—that facility in changes upon the credit of mere hypothesis, and opinion exposes to perpetual

change from the endless variety of hypothesis and opinion—and remember, especially, that for the efficient management of your common interests, in a country so extensive as ours, a government of as much vigor as is consistent with the perfect security of liberty is indispensable. Liberty itself will find in such a government, with powers properly distributed and adjusted, its surest guardian. It is, indeed, little else than a name, where the government is too feeble to withstand the enterprises of faction, to confine each member of the society within the limits prescribed by the laws, and to maintain all in the secure and tranquil enjoyment of the rights of person and property.

I have already intimated to you the danger of parties in the State, with particular reference to the founding of them on geographical discriminations. Let me now take a more comprehensive view and warn you in the most solemn manner against the baneful effects of the spirit of party generally.

This spirit, unfortunately, is inseparable from our nature, having its root in the strongest passions of the human mind. It exists under different shapes in all governments, more or less stifled, controlled, or repressed but in those of the popular form it is seen in its greatest rankness and is truly their worst enemy.

The alternate domination of one faction over another, sharpened by the spirit of revenge natural to party dissension, which in different ages and countries has perpetrated the most horrid enormities, is itself a frightful despotism. But this leads at length to a more formal and permanent despotism. The disorders and miseries which result gradually incline the minds of men to seek security and repose in the absolute power of an individual, and sooner or later the chief of some prevailing faction, more able or more fortunate than his competitors, turns this disposition to the purposes of his own elevation on the ruins of public liberty.

Without looking forward to an extremity of this kind (which nevertheless ought not to be entirely out of sight) the common and continual mischiefs of the spirit of party are sufficient to make it the interest and duty of a wise people to discourage and restrain it.

It serves always to distract the public councils and enfeeble the public administration. It agitates the community with ill-founded jealousies and false alarms; kindles the animosity of one part against another; foment occasional riot and insurrection. It opens the door to foreign influence and

corruption, which find a facilitated access to the government itself, through the channel of party passions. Thus the policy and the will of one country are subjected to the policy and will of another.

There is an opinion that parties in free countries are useful checks upon the administration of the government and serve to keep alive the spirit of liberty. This, within certain limits, is probably true, and in governments of a monarchical cast patriotism may look with indulgence, if not with favor, upon the spirit of party. But in those of the popular character, in governments purely elective, it is a spirit not to be encouraged. From their natural tendency it is certain there will always be enough of that spirit for every salutary purpose, and, there being constant danger of excess, the effort ought to be, by force of public opinion, to mitigate and assuage it. A fire not to be quenched, it demands a uniform vigilance to prevent its bursting into a flame, lest, instead of warming, it should consume.

It is important, likewise, that the habits of thinking in a free country should inspire caution in those entrusted with its administration to confine themselves within their respective constitutional spheres, avoiding, in the exercise of the powers of one department, to encroach upon another. The spirit of encroachment tends to consolidate the powers of all the departments in one, and thus to create, whatever the form of government, a real despotism. A just estimate of that love of power, and proneness to abuse it, which predominate in the human heart, is sufficient to satisfy us of the truth of this position. The necessity of reciprocal checks in the exercise of political power, by dividing and distributing it into different depositories and constituting each the guardian of the public weal against invasions of the others, has been evinced by experiments ancient and modern, some of them in our country and under our own eyes. To preserve them must be as necessary as to institute them. If, in the opinion of the people, the distribution or modification of the constitutional powers be in any particular wrong, let it be corrected by an amendment in the way which the constitution designates. But let there be no change by usurpation, for though this, in one instance, may be the instrument of good, it is the customary weapon by which free governments are destroyed. The precedent must always greatly overbalance, in permanent evil, any partial or transient benefit which the use can at any time yield.

Of all the dispositions and habits which lead to political prosperity, religion and morality are indispensable supports. In vain would that man claim the tribute of patriotism, who should labor to subvert these great pillars of human happiness—these firmest props of the duties of men and citizens. The mere politician, equally with the pious man, ought to respect and to cherish them. A volume could not trace all their connections with private and public felicity. Let it simply be asked, where is the security for property, for reputation, for life, if the sense of religious obligation desert the oaths which are the instruments of investigation in courts of justice? And let us with caution indulge the supposition that morality can be maintained without religion. Whatever may be conceded to the influence of refined education on minds of peculiar structure, reason and experience both forbid us to expect that national morality can prevail in exclusion of religious principles. It is substantially true, that virtue or morality is a necessary spring of popular government. This rule indeed extends with more or less force to every species of free government. Who that is a sincere friend to it can look with indifference upon attempts to shake the foundation of the fabric?

Promote, then, as an object of primary importance, institutions for the general diffusion of knowledge. In proportion as the structure of a government gives force to public opinion it is essential that public opinion should be enlightened.

As a very important source of strength and security, cherish public credit. One method of preserving it is to use it as sparingly as possible, avoiding occasions of expense by cultivating peace, but remembering also, that timely disbursements to prepare for danger, frequently prevent much greater disbursements to repel it; avoiding likewise the accumulation of debt, not only by shunning occasions of expense, but by vigorous exertions in time of peace to discharge the debts which unavoidable wars may have occasioned, not ungenerously throwing upon posterity the burden which we ourselves ought to bear. The execution of these maxims belongs to your representatives, but it is necessary that public opinion should cooperate. To facilitate to them the performance of their duty, it is essential that you should practically bear in mind, that toward the payment of debts there must be revenue; that to have revenue there must be taxes; that no taxes can be devised which are not more or less inconvenient and unpleasant; that the intrinsic embarrassment inseparable from the selection of the proper objects

(which is always a choice of difficulties), ought to be a decisive motive for a candid construction of the conduct of the government in making it, and for a spirit of acquiescence in the measures for obtaining revenue, which the public exigencies may at any time dictate.

Observe good faith and justice toward all nations, cultivate peace and harmony with all. Religion and morality enjoin this conduct, and can it be that good policy does not equally enjoin it? It will be worthy of a free, enlightened, and, at no distant period, a great nation, to give to mankind the magnanimous and too novel example of a people always guided by an exalted justice and benevolence. Who can doubt, that, in the course of time and things, the fruits of such a plan would richly repay any temporary advantages which might be lost by a steady adherence to it? Can it be, that Providence has not connected the permanent felicity of a nation with its virtue? The experiment, at least, is recommended by every sentiment which ennobles human nature. Alas! is it rendered impossible by its vices?

In the execution of such a plan nothing is more essential than that permanent inveterate antipathies against particular nations, and passionate attachments for others, should be excluded, and that, in place of them, just and amicable feelings toward all should be cultivated. The nation which indulges toward another an habitual hatred, or an habitual fondness, is in some degree a slave. It is a slave to its animosity or to its affection, either of which is sufficient to lead it astray from its duty and its interest. Antipathy in one nation against another disposes each more readily to offer insult and injury, to lay hold of slight causes of umbrage and to be haughty and intractable when accidental or trifling occasions of dispute occur.

Hence, frequent collisions, obstinate, envenomed and bloody contests. The nation, prompted by ill will and resentment, sometimes impels to war the government, contrary to the best calculations of policy. The government sometimes participates in the national propensity and adopts through passion what reason would reject; at other times it makes the animosity of the nation subservient to projects of hostility instigated by pride, ambition, and other sinister and pernicious motives. The peace often, sometimes perhaps the liberty of nations has been the victim.

So, likewise, a passionate attachment of one nation for another produces a variety of evils. Sympathy for the favorite nation, facilitating the illusion of an imaginary common interest in cases where no real common interest

exists and infusing into one the enmities of the other, betrays the former into a participation in the quarrels and wars of the latter, without adequate inducements or justification. It leads also to concessions to the favorite nation of privileges denied to others, which are apt doubly to injure the nation making the concessions by unnecessary parting with what ought to have been retained, and by exciting jealousy, ill will, and a disposition to retaliate, in the parties from whom equal privileges are withheld, and it gives to ambitious, corrupted, or deluded citizens (who devote themselves to the favorite nation), facility to betray or sacrifice the interests of their own country, without odium, sometimes even with popularity, gilding with the appearances of a virtuous sense of obligation to a commendable deference for public opinion or a laudable zeal for public good, the base or foolish compliances of ambition, corruption, or infatuation.

As avenues to foreign influence in innumerable ways, such attachments are particularly alarming to the truly enlightened and independent patriot. How many opportunities do they afford to tamper with domestic factions, to practice the arts of seduction, to mislead public opinion, to influence or awe the public councils! Such an attachment of a small or weak, toward a great and powerful nation, dooms the former to be the satellite of the latter.

Against the insidious wiles of foreign influence (I conjure you to believe me, fellow-citizens), the jealousy of a free people ought to be constantly awake, since history and experience prove that foreign influence is one of the most baneful foes of republican government. But that jealousy, to be useful, must be impartial, else it becomes the instrument of the very influence to be avoided, instead of a defense against it. Excessive partiality for one foreign nation and excessive dislike of another cause those whom they actuate to see danger only on one side, and serve to veil and even second the arts of influence on the other. Real patriots who may resist the intrigues of the favorite are liable to become suspected and odious, while its tools and dupes usurp the applause and confidence of the people to surrender their interests.

The great rule of conduct for us, in regard to foreign nations, is, in extending our commercial relations, to have with them as little political connection as possible. So far as we have already formed engagements, let them be fulfilled with perfect good faith. Here let us stop.

Europe has a set of primary interests which to us have none, or a very remote, relation. Hence she must be engaged in frequent controversies, the causes of which are essentially foreign to our concerns. Hence, therefore, it must be unwise in us to implicate ourselves, by artificial ties, in the ordinary vicissitudes of her politics or the ordinary combinations and collisions of her friendships or enmities.

Our detached and distant situation invites and enables us to pursue a different course. If we remain one people, under an efficient government, the period is not far off when we may defy material injury from external annoyance, when we may take such an attitude as will cause the neutrality we may at any time resolve upon to be scrupulously respected, when belligerent nations, under the impossibility of making acquisitions upon us, will not lightly hazard the giving us provocation, when we may choose peace or war, as our interest, guided by justice, shall counsel.

Why forego the advantages of so peculiar a situation? Why quit our own to stand upon foreign ground? Why, by interweaving our destiny with that of any part of Europe, entangle our peace and prosperity in the toils of European ambition, rivalship, interest, humor, or caprice?

It is our true policy to steer clear of permanent alliances with any portion of the foreign world, so far, I mean, as we are now at liberty to do it, for let me not be understood as capable of patronizing infidelity to existing engagements. I hold the maxim no less applicable to public than to private affairs, that honesty is always the best policy. I repeat it, therefore, let those engagements be observed in their genuine sense. But, in my opinion, it is unnecessary, and would be unwise to extend them.

Taking care always to keep ourselves, by suitable establishments, on a respectable defensive posture, we may safely trust to temporary alliances for extraordinary emergencies.

Harmony and a liberal intercourse with all nations are recommended by policy, humanity, and interest. But even our commercial policy should hold an equal and impartial hand, neither seeking nor granting exclusive favors or preferences; consulting the natural course of things; diffusing and diversifying, by gentle means, the streams of commerce, but forcing nothing; establishing, with powers so disposed—in order to give trade a stable course, to define the rights of our merchants, and to enable the government to support them—conventional rules of intercourse, the best

that present circumstances and mutual opinion will permit, but temporary, and liable to be from time to time abandoned or varied, as experience and circumstances shall dictate, constantly keeping in view that it is folly in one nation to look for disinterested favors from another; that it must pay with a portion of its independence for whatever it may accept under that character; that by such acceptance it may place itself in the condition of having given equivalents for nominal favors and yet of being reproached with ingratitude for not giving more. There can be no greater error than to expect or calculate upon real favors from nation to nation. It is an illusion which experience must cure, which a just pride ought to discard.

In offering to you, my countrymen, these counsels of an old and affectionate friend, I dare not hope they will make the strong and lasting impression I could wish; that they will control the usual current of the passions or prevent our nation from running the course which has hitherto marked the destiny of nations. But if I may even flatter myself that they may be productive of some partial benefit, some occasional good; that they may now and then recur to moderate the fury of party spirit; to warn against the mischiefs of foreign intrigue; to guard against the impostures of pretended patriotism, this hope will be a full recompense for the solicitude for your welfare by which they have been dictated.

How far, in the discharge of my official duties, I have been guided by the principles which have been delineated, the public records and other evidences of my conduct must witness to you and to the world. To myself the assurance of my own conscience is that I have at least believed myself to be guided by them.

In relation to the still subsisting war in Europe my proclamation of the 22d of April, 1793, is the index to my plan. Sanctioned by your approving voice and by that of your representatives in both Houses of Congress, the spirit of that measure has continually governed me, uninfluenced by any attempts to deter or divert me from it.

After deliberate examination, with the aid of the best lights I could obtain, I was well satisfied that our country, under all the circumstances of the case, had a right to take, and was bound in duty and interest to take, a neutral position. Having taken it I determined, as far as should depend upon me, to maintain it with moderation, perseverance, and firmness.

The considerations which respect the right to hold this conduct it is not necessary on this occasion to detail. I will only observe that, according to my understanding of the matter, that right, so far from being denied by any of the belligerent powers, has been virtually admitted by all.

The duty of holding a neutral conduct may be inferred, without anything more, from the obligation which justice and humanity impose on every nation, in cases in which it is free to act, to maintain inviolate the relations of peace and amity toward other nations.

The inducements of interest for observing that conduct will best be referred to your own reflections and experience. With me a predominant motive has been to endeavor to gain time to our country to settle and mature its yet recent institutions and to progress, without interruption, to that degree of strength and consistency which is necessary to give it, humanely speaking, the command of its own fortunes.

Though in reviewing the incidents of my administration I am unconscious of intentional error, I am, nevertheless, too sensible of my defects not to think it probable that I may have committed many errors. Whatever they may be, I fervently beseech the Almighty to avert or mitigate the evils to which they may tend. I shall also carry with me the hope that my country will never cease to view them with indulgence, and, after forty-five years of my life dedicated to its service, with an upright zeal, the faults of incompetent abilities will be consigned to oblivion, as myself must soon be to the mansions of rest.

Relying on its kindness in this as in other things, and actuated by that fervent love toward it, which is so natural to a man who views in it the native soil of himself and his progenitors for several generations, I anticipate with pleasing expectation that retreat, in which I promise myself to realize, without alloy, the sweet enjoyment of partaking, in the midst of my fellow-citizens, the benign influence of good laws under a free government, the ever favorite object of my heart and the happy reward, as I trust, of our mutual cares, labors, and dangers.

UNITED STATES, *September 17, 1796.*

The sentiments of veneration with which this farewell address was generally received were manifested in almost every part of the Union. Some of the State Legislatures directed it to be inserted at large in their journals, and nearly all of them passed resolutions expressing their respect for the

person of the President, their high sense of his exalted services, and the emotions with which they contemplated his retirement from office. Although the leaders of party might rejoice at this event it produced solemn and anxious reflections in the great body, even of those who belonged to the opposition.

The person in whom alone the voice of the people could be united having declined a re-election, the two great parties in America brought forward their respective chiefs, and every possible effort was made by each to obtain the victory. Mr. John Adams and Mr. Thomas Pinckney, the late minister at London, were supported as President and Vice-President by the Federalists; the whole force of the opposite party was exerted in favor of Mr. Jefferson.

Motives of vast influence were added on this occasion to those which usually impel men in a struggle to retain or acquire power. The continuance or the change, not only of those principles on which the internal affairs of the United States had been administered, but of the conduct which had been observed toward foreign nations, was believed to depend on the choice of a chief magistrate. By one party the system of neutrality pursued by the existing administration with regard to the belligerent European powers, had been uniformly approved; by the other it had been as uniformly condemned. In the contests, therefore, which preceded the choice of electors, the justice of the complaints which were made on the part of the French republic were minutely discussed, and the consequences which were to be apprehended from her resentment or from yielding to her pretensions were reciprocally urged as considerations entitled to great weight in the ensuing election.

In such a struggle it was not to be expected that foreign powers could feel absolutely unconcerned. In November, while the parties were so balanced that neither scale could be perceived to preponderate, Mr. Adet addressed a letter to Colonel Pickering, the Secretary of State, in which he recapitulated the numerous complaints which had been urged by himself and his predecessors against the government of the United States, and reproached that government in terms of great asperity with violating those treaties which had secured its independence, with ingratitude to France, and with partiality to England. These wrongs, which commenced with the "insidious" proclamation of neutrality, were said to be so aggravated by the treaty concluded with Great Britain that Mr. Adet announced the orders of the Directory to suspend his ministerial functions with the Federal government.

"But the cause," he added, "which has so long restrained the just resentment of the Executive Directory from bursting forth, now tempered its effects. The name of America, notwithstanding the wrongs of its government, still excited sweet sensations in the hearts of Frenchmen, and the Executive Directory wished not to break with a people whom they loved to salute with the appellation of friend." This suspension of his functions, therefore, was not to be regarded "as a rupture between France and the United States, but as a mark of just discontent, which was to last until the government of the United States returned to sentiments and to measures more conformable to the interests of the alliance, and to the sworn friendship between the two nations." "Let your government return to itself," concluded Mr. Adet, "and you will still find in Frenchmen faithful friends and generous allies."

As if to remove any possible doubt respecting the purpose for which this extraordinary letter was written, a copy was transmitted, on the day of its date, to a printer for publication.

This open and direct appeal of a foreign minister to the American people, in the critical moment of their election of a chief magistrate, did not effect its object. Reflecting men, even among those who had condemned the course of the administration, could not approve this interference in the internal affairs of the United States, and the opposite party resented it as an attempt to control the operations of the American people in the exercise of one of the highest acts of sovereignty, and to poison the fountain of their liberty and independence by mingling foreign intrigue with their elections. The reader of history, however, is familiar with the fact that the course of Adet in this affair was in strict accordance with the uniform practice of the new rulers of France at that time. Their agents endeavored to prejudice the people of every country in Europe against their respective governments, and never hesitated to interfere directly between the people and the government, wherever there was any prospect of introducing French ascendancy by such proceedings. The people of the United States, on the present occasion, resented the officious interference of Adet in the pending election as a gross insult, and it undoubtedly aided the party which it was intended to defeat. Congress met on the 5th of December (1796). There was not a sufficient number of senators present on that day to form a quorum. In the House of Representatives, among the new members who presented themselves was Andrew Jackson, from Tennessee, the future President of the United States.

On the 7th of December Washington, for the last time, met the national Legislature in the hall of the House of Representatives. His address was comprehensive, temperate, and dignified. No personal consideration could restrain him from recommending those great national measures which he believed would be useful to his country, although open and extensive hostility had been avowed to them.

After presenting a full view of the situation of the United States and the late transactions of the executive, he added: "To an active external commerce the protection of a naval force is indispensable—this is manifest with regard to wars in which a State is itself a party; but, besides this, it is in our own experience that the most sincere neutrality is not a sufficient guard against the depredations of nations at war. To secure respect to a neutral flag requires a naval force, organized and ready to vindicate it from insult or aggression; this may even prevent the necessity of going to war by discouraging belligerent powers from committing such violations of the rights of the neutral party as may, first or last, leave no other option. From the best information I have been able to obtain, it would seem as if our trade to the Mediterranean, without a protecting force, will always be insecure, and our citizens exposed to the calamities from which numbers of them have but just been relieved."

The speech next proceeded earnestly to recommend the establishment of national works for manufacturing such articles as were necessary for the defense of the country, and also for an institution which should grow up under the patronage of the public and be devoted to the improvement of agriculture. The advantages of a military academy and of a national university were also urged, and the necessity of augmenting the compensation to the officers of the United States in various instances was explicitly stated.

The President, in adverting to the dissatisfaction which had been expressed by one of the great powers of Europe, said: "It is with much pain and deep regret I mention that circumstances of a very unwelcome nature have lately occurred. Our trade has suffered, and is suffering, extensive injuries in the West Indies from the cruisers and agents of the French republic, and communications have been received from, its minister here which indicate the danger of a further disturbance of our commerce by its authority."

After stating his constant and earnest endeavors to maintain cordial harmony and a perfectly friendly understanding with that republic, and that his wish to maintain them remained unabated, he added: "In pursuing this course, however, I cannot forget what is due to the character of our government and nation, or to a full and entire confidence in the good sense, patriotism, self-respect, and fortitude of my countrymen."

After some other communications, the speech was concluded in the following terms:

"The situation in which I now stand, for the last time, in the midst of the representatives of the people of the United States, naturally recalls the period when the administration of the present form of government commenced; and I cannot omit the occasion to congratulate you and my country on the success of the experiment, nor to repeat my fervent supplications to the Supreme Ruler of the Universe and Sovereign Arbiter of Nations that His providential care may still be extended to the United States; that the virtue and happiness of the people may be preserved, and that the government which they have instituted for their protection may be perpetual."

The answer of the Senate embraced the various topics of the speech and approved all the sentiments it contained.

It expressed the ardent attachment of that body to their chief magistrate, and its conviction that much of the public prosperity was to be ascribed to the virtue, firmness, and talents of his administration. After expressing the deep and sincere regret with which the official ratification of his intention to retire from the public employments of his country was received, the address proceeded to say: "The most effectual consolation that can offer for the loss we are about to sustain arises from the animating reflection that the influence of your example will extend to your successors, and the United States thus continue to enjoy an able, upright, and energetic administration."

In the House of Representatives a committee of five had been appointed to prepare a respectful answer to the speech, three of whom were friends to the administration.

Hoping that the disposition would be general to avow in strong terms their attachment to the person and character of the President, the committee united in reporting an answer which promised, in general terms, due attention to the various subjects recommended to their consideration, but

was full and explicit in the expression of attachment to himself and of approbation of his administration.

The unanimity which prevailed in the committee did not extend to the House.

After amplifying and strengthening the expressions of the report, which stated regret that any interruption should have taken place in the harmony which had subsisted between the United States and France, and modifying those which declared their hope for the restoration of that harmony, so as to avoid any implication that its rupture was exclusively ascribable to France, a motion was made by Mr. Giles to expunge all those paragraphs which expressed attachment to the person and character of the President, approbation of his administration, or regret at his retiring from office.

After a very animated debate the motion to strike out was lost and the answer was carried by a great majority.

Early in the session Washington communicated to Congress the copy of a letter addressed by the Secretary of State to General Pinckney, containing a minute and comprehensive detail of all the points of controversy which had arisen between the United States and France, and defending the measures which had been adopted by America with a clearness and a strength of argument believed to be irresistible. The letter was intended to enable General Pinckney to remove from the government of France all impressions unfavorable to the fairness of intention which had influenced the conduct of the United States, and to efface from the bosoms of the great body of the American people all those unjust and injurious suspicions which had been entertained against their own administration. Should its immediate operation on the executive of France disappoint his hopes, Washington persuaded himself that he could not mistake its influence in America; and he felt the most entire conviction that the accusations made by the French Directory against the United States would cease, with the evidence that these accusations were supported by a great portion of the American people.

The letter and its accompanying documents were communicated to the public, but, unfortunately, their effect at home was not such as had been expected, and they were, consequently, inoperative abroad.

The measures recommended by Washington, in his speech at the opening of the session, were not adopted, and neither the debates in Congress nor the party publications with which the nation continued to be agitated,

furnished reasonable ground for hope that the political intemperance which had prevailed from the establishment of the republican form of government in France, was about to be succeeded by a more conciliatory spirit. It was impossible for Washington to be absolutely insensible to the bitter invectives and malignant calumnies of which he had long been the object. Yet in one instance only did he depart from the rule he had prescribed for his conduct regarding them. Apprehending permanent injury from the republication of certain spurious letters, which have been already noticed, he, on the day which terminated his official character, addressed a letter to the Secretary of State, declaring them to be forgeries and stating the circumstances under which they were published.

On the 8th of February (1797) the votes for the President and Vice-President were opened and counted in the presence of both Houses, and John Adams announced the fact from the chair of the Vice-President that he himself had received 71 votes, Thomas Jefferson 68, Thomas Pinckney 59, Aaron Burr 30, and that the balance of the votes were given in varying small numbers to Samuel Adams, Oliver Ellsworth, John Jay, etc. The total number of electors was 138. Thus John Adams became the second President of the United States, and by some mismanagement on the part of the Federalists Pinckney missed the Vice-Presidency, and the man of all others most dreaded by the Federal party was placed in the very front rank of the Republicans, and with the clear presage of success in the future.

Washington's feelings on the immediate prospect of retirement from office are expressed in the following extract from a letter to General Knox, dated March 2, 1797: "To the wearied traveler who sees a resting-place and is bending his body to lean thereon, I now compare myself, but to be suffered to do this in peace is too much to be endured by some. To misrepresent my motives, to reprobate my politics, and to weaken the confidence which has been reposed in my administration are objects which cannot be relinquished by those who will be satisfied with nothing short of a change in our political system. The consolation, however, which results from conscious rectitude and the approving voice of my country, unequivocally expressed by its representatives, deprive their sting of its poison and place in the same point of view both the weakness and malignity of their efforts.

"Although the prospect of retirement is most grateful to my soul, and I have not a wish to mix again in the great world or to partake in its politics, yet I am not without my regrets at parting with (perhaps never more to meet) the few intimates whom I love. Among these, be assured, you are one."

Bishop White has given the following anecdote, illustrating the strong feelings of regret awakened among Washington's friends by his approaching retirement from public life:

"On the day before President Washington retired from office a large company dined with him. Among them were the foreign ministers and their ladies, Mr. and Mrs. Adams, Mr. Jefferson, and other conspicuous persons of both sexes. During the dinner much hilarity prevailed, but on the removal of the cloth it was put an end to by the President, certainly without design. Having filled his glass, he addressed the company, with a smile, as nearly as can be recollected, in the following words: 'Ladies and gentlemen, this is the last time I shall drink your health as a public man. I do it with sincerity, wishing you all possible happiness.' There was an end of all pleasantry. He who gives this relation accidentally directed his eye to the lady of the British minister, Mrs. Liston, and tears were running down her cheeks."

Mr. Gibbs, in his "Administrations of Washington and Adams," refers to the parting levee in the following terms:

"Just before his final retirement, Washington held his last formal levee. An occasion more respectable in simplicity, more imposing in dignity, more affecting in the sensations which it awakened, the ceremonials of rulers never exhibited. There were the great chiefs of the republic of all parties and opinions; veterans of the War of Independence, weather-stained and scarred; white-haired statesmen, who, in retirement, were enjoying the fruits of former toil; there were his executive counselors and private friends; ministers of foreign governments, whose veneration approached that of his countrymen; citizens who came to offer the tribute of a respect, sincere and disinterested. Little was there of the pageantry of courts, little of the glitter which attends the receptions of royalty, yet in the grave assemblage that stood in that unadorned chamber there was a majesty which these knew not. The dignitaries of a nation had come together to bid farewell to one who, at their own free call, by their own willing trust—not as an honor to be coveted, but as a duty to be discharged—had, in turn, led their armies and

executed their laws; one who now, his last task worthily fulfilled, was to take his place again among them, readier to relinquish than he had been to undertake power; a soldier without stain upon his arms; a ruler without personal ambition; a wise and upright statesman; a citizen of self-sacrificing patriotism; a man pure, unblemished, and true in every relation he had filled; one to whom all ages should point as the testimony that virtue and greatness had been and could be united.

"And he who was the object of this gathering—what thoughts crowded upon his mind; what recollections filled the vista of the sixty odd years which had passed over him; what changes of men, opinions, society, had he seen! Great changes, indeed, in the world and its old notions; the growing dissatisfaction of certain English emigrants at customary tyrannies and new intended ones had taken form and shape, embodied itself into principles, and vindicated them; blazed up an alarming beacon in the world's eyes as the Sacred Right of Rebellion; fought battles; asserted independence and maintained it at much cost of bloodshed; made governments after its own new-fangled fashion; impressed a most unwilling idea on history—the doctrine of popular sovereignty—one which had proved contagious and had been adopted elsewhere, running riot indeed in its novelty. And out of all this confusion there had arisen the nation which he had presided over, already become great, and factious in its greatness, with a noble birthright, noble virtues, energies, and intellect; with great faults and passions that, unchecked, would, as in lusty individual manhood, lead to its ruin.

"What was to be the future of that nation? Dark clouds hung over it, dangers threatened it, enemies frowned upon it—the worst enemy was within. License might blast, in a few hours, the growth of years; faction destroy the careful work of the founders. On this he had left his great solemn charge, like the last warning of a father to his children."

The relation in which the secretaries had stood with the President had been one of respectful but affectionate intimacy. The most cordial and unreserved friendship was extended to all whom he trusted and esteemed. The Secretaries of State and War (Pickering and McHenry) had been his fellow-soldiers; the Secretary of the Treasury (Wolcott) had, as it were, grown up under his eye. The simplicity and military frankness of Pickering, the kindly nature and refinement of McHenry, the warm-heartedness and *bonhomie* of Wolcott, all won upon his regard. On their part there was a

no less sincere love for their chief. There are those devotion to whom is no degradation. Washington was such a one, and to him it was rendered in the spirit of men who respected themselves. Among all connected with him, either in military or civil life, this sentiment was retained. His death hallowed his memory in their hearts to a degree and with a sanctity which none can know who have not heard from their own lips—none can feel Who were not of them. And in likewise the wife and family of Washington were cherished. They had been universally beloved on their own account, and the hand of fate, in depriving them of a husband and father, as it were, bequeathed them to the tender care of a nation. There was something beautiful in these sentiments, in a land where the ties that bind men depend so little upon association.

Wolcott, among others, had enjoyed much of the domestic society of the President's house. His gentle and graceful wife had been regarded with maternal tenderness by Mrs. Washington and was the friend and correspondent of her eldest daughter. His child had been used to climb, confident of welcome, the knees of the chief, and though so many years his junior, while Wolcott's character and judgment had been held in respect by the President, his personal and social qualities had drawn toward him a warm degree of interest.

On leaving the seat of government, Washington presented, it is believed, to all his chief officers some token of regard. To Wolcott he gave a piece of plate. Mrs. Washington gave to his wife, when visiting her for the last time, a relic still more interesting. Asking her if she did not wish for a memorial of the general, Mrs. Wolcott replied, "Yes," she "should like a lock of his hair." Mrs. Washington, smiling, took Her scissors and cut off for her a lock of her husband's and one of her own. These, with the originals of Washington's letters, Wolcott preserved with careful veneration and divided between his surviving children.

"On the retirement of General Washington," says Wolcott, "being desirous that my personal interests should not embarrass his successor, and supposing that some other person might be preferred to myself, I tendered my resignation to Mr. Adams before his inauguration. The tender was declined and I retained office under my former commission."

On the 1st of March (1797) Washington had addressed a note to the Senate, desiring them to attend in their chamber on Saturday, the 4th, at 10

o'clock, "to receive any communication which the President of the United States might lay before them touching their interests." In conformity with this summons the Senate assembled on that day and commenced their thirteenth session. The oath of office was administered by Mr. Bingham to Mr. Jefferson, who thereupon took the chair. The new Senators were then sworn and the Vice-President delivered a brief address. The Senate then repaired to the chamber of the House of Representatives to attend the administration of the oath of office to the new President. Mr. Adams entered, accompanied by the heads of departments, {1} the marshal of the district and his officers, and took his seat in the speaker's chair. The Vice-President and secretary of the Senate were seated in advance on his right, and the late speaker and clerk on the left; the justices of the Supreme Court sat before the President, the foreign ministers and members of the House in their usual seats. Washington, once more a private citizen, sat in front of the judges. Mr. Adams then rose and delivered his inaugural speech. This address was brief and well suited to the occasion. After adverting to the circumstances which led to the formation of the new constitution, he expressed the unqualified approbation with which, in a foreign land and apart from the scene of controversy, he had first perused it, and the undiminished confidence which, after eight years of experience, he entertained of its fitness. He remarked briefly on the abuses to which it was subject, and against which it became the duty of the people to guard, and having disclosed his opinions of general policy, pledged himself anew to the support of the government. The oath of office was then administered by Chief Justice Ellsworth, the other justices attending, after which he retired. {2}

The citizens of Philadelphia celebrated the day of Adams' inauguration by a testimony of their respect and affection for Washington. They prepared a magnificent entertainment, designed for him as the principal guest, to which were invited the foreign ministers, the members of the Cabinet, officers of the army and navy, and other distinguished persons.

In the rotunda in which it was given, an elegant compliment was prepared for the principal guest, which is thus described in the papers of the day:

"Upon entering the area, the general was conducted to his seat. On a signal given music played Washington's march, and a scene which

represented simple objects in the rear of the principal seat was drawn up and discovered emblematical painting.

"The principal was a female figure, large as life, representing America, seated on an elevation composed of sixteen marble steps. At her left side stood the Federal shield and eagle, and at her feet lay the cornucopias, in her right hand she held the Indian calumet of peace supporting the cap of liberty; in the perspective appeared the temple of fame, and on her left hand an altar dedicated to public gratitude, upon which incense was burning. In her left hand she held a scroll inscribed Valedictory, and at the foot of the altar lay a plumed helmet and sword, from which a figure of General Washington, large as life, appeared, retiring down the steps, pointing with his right hand to the emblems of power which he had resigned, and with his left to a beautiful landscape representing Mount Vernon, in front of which oxen were seen harnessed to the plough. Over the general appeared a Genius, placing a wreath of laurels on his head."

After Washington had paid to his successor those respectful compliments which he believed to be equally due to the man and to the office, he hastened to that real felicity which awaited him at Mount Vernon, the enjoyment of which he had long impatiently anticipated.

The same marks of respect and affection for his person which had on all great occasions been manifested by his fellow-citizens, still attended him. His endeavors to render his journey private were unavailing, and the gentlemen of the country through which he passed, were still ambitious of testifying their sentiments for the man who had, from the birth of the Republic been deemed the first of American citizens. Long after his retirement he continued to receive addresses from legislative bodies and various classes of citizens, expressive of the high sense entertained of his services.

"Notwithstanding the extraordinary popularity of the first President of the United States," says Marshall, "scarcely has any important act of his administration escaped the most bitter invective.

"On the real wisdom of the system which he pursued, every reader will decide for himself. Time will, in some measure, dissipate the prejudices and passions of the moment, and enable us to view objects through a medium which represents them truly.

"Without taking a full review of measures which were reprobated by one party and applauded by the other, the reader may be requested to glance his eye at the situation of the United States in 1797, and to contrast it with their condition in 1788.

"At home a sound credit had been created; an immense floating debt had been funded in a manner perfectly satisfactory to the creditors; an ample revenue had been provided; those difficulties which a system of internal taxation, on its first introduction, is doomed to encounter, were completely removed, and the authority of the government was firmly established. Funds for the gradual payment of the debt had been provided; a considerable part of it had been actually discharged, and that system which is now operating its entire extinction had been matured and adopted. The agricultural and commercial wealth of the nation had increased beyond all former example. The numerous tribes of warlike Indians, inhabiting those immense tracts which lie between the then cultivated country of the Mississippi, had been taught, by arms and by justice, to respect the United States and to continue in peace. This desirable object having been accomplished, that humane system was established for civilizing and furnishing them with the conveniences of life, which improves their condition, while it secures their attachment.

"Abroad, the differences with Spain had been accommodated, and the free navigation of the Mississippi had been acquired, with the use of New Orleans as a place of deposit for three years, and afterward, until some other equivalent place should be designated. Those causes of mutual exasperation which had threatened to involve the United States in a war with the greatest maritime and commercial power in the world, had been removed, and the military posts which had been occupied within their territory, from their existence as a nation, had been evacuated. Treaties had been formed with Algiers and with Tripoli, and no captures appear to have been made by Tunis, so that the Mediterranean was opened to American vessels.

"This bright prospect was indeed, in part, shaded by the discontents of France. Those who have attended to the particular points of difference between the two nations will assign the causes to which these discontents are to be ascribed, and will judge whether it was in the power of the President to have avoided them without surrendering the real independence

of the nation and the most invaluable of all rights—the right of self-government."

Such was the situation of the United States at the close of Washington's administration. Their circumstances at its commencement will be recollected, and the contrast is too striking not to be observed. That this beneficial change in the affairs of America is to be ascribed exclusively to the wisdom which guided the national councils will not be pretended. That many of the causes which produced it originated with the government, and that their successful operation was facilitated, if not secured, by the system which was adopted, will scarcely be denied. To estimate that system correctly, their real influence must be allowed to those strong prejudices and turbulent passions with which it was assailed.

Accustomed, in the early part of his life, to agricultural pursuits, and possessing a real taste for them, Washington was particularly well qualified to enjoy, in retirement, that tranquil felicity which he had anticipated. Resuming former habits, and returning to ancient and well-known employments, he was familiar with his new situation, and therefore exempt from the danger of that disappointment which is the common lot of those who, in old age, retire from the toils of business, or the cares of office, to the untried pleasures of the country. A large estate, which exhibited many proofs of having been long deprived of the attentions of its proprietor in the management and improvement of which he engaged with ardor, an extensive correspondence, and the society of men and books, gave employment to every hour which was equally innocent and interesting, and furnished ground for the hope that the evening of a life which had been devoted to the public service, would be as serene as its midday had been brilliant.

In his journey from Philadelphia to Mount Vernon Washington was accompanied by Mrs. Washington, Miss Custis, George Washington Lafayette, eldest son of the general, and M. Frestel, young Lafayette's tutor.

Writing to Mr. McHenry, Secretary of War, from Mount Vernon, April 3, 1797, he thus describes His return home and his situation there:

"We got home without accident and found the roads dryer and better than I ever found them at that season of the year. The attentions we met with on our journey were very flattering, and, to some, whose minds are differently formed from mine, would have been highly relished; but I avoided, in every

instance, where I had any previous knowledge of the intention, and could by earnest entreaties prevail, all parade and escorts. Mrs. Washington took a violent cold in Philadelphia, which hangs upon her still, but it is not as bad as it has been. {3}

"I find myself in the situation nearly of a new beginner, for, although I have not houses to build (except one, which I must erect for the accommodation and security of my military, civil, and private papers, which are voluminous, and may be interesting), yet I have scarcely anything else about me that does not require considerable repairs. In a word, I am already surrounded by joiners, masons, and painters, and, such is my anxiety to get out of their hands, that I have scarcely a room to put a friend into or to sit in myself without the music of hammers or the odoriferous scent of paint."

To Mr. Wolcott, Secretary of the Treasury, he writes:

"For myself, having turned aside from the broad walks of political into the narrow paths of private life, I shall leave it with those whose duty it is to consider subjects of this sort, and, as every good citizen ought to do, conform to whatsoever the ruling powers shall decide. To make and sell a little flour annually, to repair houses (going fast to ruin), to build one for the security of my papers of a public nature, and to amuse myself in agricultural and rural pursuits, will constitute employment for the few years I have to remain on this terrestrial globe. If, also, I could now and then meet the friends I esteem, it would fill the measure and add zest to my enjoyments; but, if ever this happens, it must be under my own vine and fig-tree, as I do not think it probable that I shall go beyond twenty miles from them."

To another correspondent he repeats the same interesting sentiments, in reference to his retirement and the happiness he found in it:

"Retired from noise myself, and the responsibility attached to public employment, my hours will glide smoothly on. My best wishes, however, for the prosperity of our country will always have the first place in my thoughts; while to repair buildings and to cultivate my farms, which require close attention, will occupy the few years, perhaps days, I may be a sojourner here, as I am now in the sixty-sixth year of my peregrination through life."

In a letter to Mr. McHenry, May 29th, he says: "I begin my diurnal course with the sun; if my hirelings are not in their places at that time, I send them

messages of sorrow for their indisposition; having put these wheels in motion, I examine the state of things further. The more they are probed the deeper I find the wounds which my buildings have sustained by an absence and neglect of eight years; by the time I have accomplished these matters, breakfast (a little after 7 o'clock) is ready; this being over, I mount my horse and ride round my farms, which employs me until it is time to dress for dinner, at which I rarely miss seeing strange faces—come, as they say, out of respect for me. Pray, would not the word curiosity answer as well? And how different this from having a few social friends at a cheerful board! The usual time of setting at table, a walk, and tea bring me within the dawn of candle-light, previous to which, if not prevented by company, I resolve that, as soon as the glimmering taper supplies the place of the great luminary, I will retire to my writing table and acknowledge the letters I have received; but, when the lights are brought, I feel tired and disinclined to engage in this work, conceiving that the next night will do as well. The next night comes, and with it, the same causes for postponement, and so on.

"This will account for your letter remaining so long unacknowledged; and, having given you the history of a day, it will serve for a year, and I am persuaded you will not require a second edition of it. But it may strike you, that in this detail no mention is made of any portion of time allotted for reading. The remark would be just, for I have not looked into a book since I came home; nor shall I be able to do it until I have discharged my workmen, probably not before the nights grow longer, when, possibly, I may be looking in Doomsday Book. At present I shall only add, that I am always and affectionately yours."

The celebrated Mr. (afterward Lord) Erskine, having sent Washington a copy of his "View of the Causes and Consequences of the Present War with France," he acknowledged it in a letter, of which the following is a part:

"To have so conducted my steps in the intricate walks of public life, and through a long course, as to meet the approbation of my country and the esteem of good men, is, next to the consciousness of having acted in all things from my best judgment, the highest gratification of which my mind is susceptible, and will, during the remainder of a life which is hastening to an end, and in moments of retirement better adapted to calm reflection than I have hitherto experienced, alleviate the pain and soften any cares, which are yet to be encountered, though hid from me at the present.

"For me to express my sentiments with respect to the administration of the concerns of another government might incur a charge of stepping beyond the line of prudence; but the principles of humanity will justify an avowal of my regret, and I do regret exceedingly, that any causes whatever should have produced and continued until this time, a war, more bloody, more expensive, more calamitous, and more pregnant with events than modern, or perhaps any other times can furnish an example of. And I most sincerely and devoutly wish that your exertions, and those of others having the same object in view, may effect what human nature cries aloud for, a general peace." {4}

His correspondence with the Earl of Radnor shows the estimation in which he was held abroad, and also illustrates his situation and feelings at the time.

"To General Washington.

"SIR.—Though of necessity a stranger to you, I cannot deny myself the satisfaction, among the many who will, probably, even from this country, intrude upon your retirement, of offering to you my congratulations on your withdrawing yourself from the scene of public affairs, with a character which appears to be perfectly unrivalled in history. The voluntary resignation of authority, wielded, as it was, while you thought fit to yield it, for the advantage of your country, in the universal opinion of mankind, confirms the judgment I had presumed to form of your moderation, and completes the glory of your life.

"Permit me, sir, who, enlisted in no political party, have, as a public man, looked up to you with veneration; who have seen the beginning of your career against England with approbation, because I felt England was unjust; who have seen you discontinue your hostility toward England, when, in good faith, she was no longer acting as an enemy to America, by honest counsels endeavoring to be as closely connected with amity, as she is by natural and mutual interests; who have seen you the instrument, in the hand of Providence, of wresting from the British Parliament an influence destructive of the just rights of both countries and of establishing the independence of America, which, I am persuaded, will continually, if your principles and your wisdom shall actuate your successors, be the means of securing them respectively to us both; who have seen you, in adversity and prosperity alike, the good, the firm, the moderate, the disinterested patriot;

permit me, I say, as an Englishman and as a man, to rejoice at the completion of such a character, and to offer my unfeigned wishes for a peaceful evening of your life and the realization (as is my sincere belief) of your posthumous fame and your eternal happiness.

"I have the honor to subscribe myself, etc.,

"RADNOR.

"LONGFORD CASTLE, *January 19, 1797.*"

The following is Washington's reply:

"MY LORD.—The sentiments which your lordship has been pleased to express, in your favor of the 19th of January last, relative to my public conduct, do me great honor, and I pray you to accept my grateful acknowledgment of the unequivocal evidence, conveyed in your letter, of the favorable opinion you entertain of the principles by which it was actuated.

"For having performed duties which I conceive every country has a right to require of its citizens, I claim no merit; but no man can feel more sensibly the reward of approbation for such services than I do. Next to the consciousness of having acted faithfully in discharging the several trusts to which I have been called, the thanks of one's country and the esteem of good men are the highest gratification my mind is susceptible of.

"At the age of sixty-five, I am now recommencing my agricultural and rural pursuits, which were always more congenial to my temper and disposition than the noise and bustle of public employments, notwithstanding so small a portion of my life has been engaged in the former.

"I reciprocate, with great cordiality, the good wishes you have been pleased to bestow on me, and pray devoutly that we may both witness, and that shortly, the return of peace; for a more bloody, expensive, and eventful war is not recorded in modern, if to be found in ancient history."

Before leaving the subject of Washington's European reputation it is proper to quote the remarks made by the celebrated orator and statesman, Charles James Fox, in the British Parliament, January 31, 1794. It was in

reference to Washington's communications to Congress at the opening of the session, December 3, 1793:

"And here, sir, I cannot help alluding to the President of the United States, General Washington, a character whose conduct has been so different from that which has been pursued by the ministers of this country. How infinitely wiser must appear the spirit and principles manifested in his late address to Congress than the policy of modern European courts! Illustrious man, deriving honor less from the splendor of his situation than from the dignity of his mind; before whom all borrowed greatness sinks into insignificance, and all the potentates of Europe (excepting the members of our own royal family) become little and contemptible. He has had no occasion to have recourse to any tricks of policy or arts of alarm; his authority has been sufficiently supported by the same means by which it was acquired, and his conduct has uniformly been characterized by wisdom, moderation, and firmness. Feeling gratitude to France for the assistance received from her in that great contest which secured the independence of America, he did not choose to give up the system of neutrality. Having once laid down that line of conduct which both gratitude and policy pointed out as most proper to be pursued, not all the insults and provocation of the French minister, Genet, could turn him from his purpose. Entrusted with the welfare of a great people, he did not allow the misconduct of another, with respect to himself, for one moment to withdraw his attention from their interest. He had no fear of the Jacobins; he felt no alarm from their principles, and considered no precaution necessary in order to stop their progress.

"The people over whom he presided he knew to be acquainted with their rights and their duties. He trusted to their own good sense to defeat the effect of those arts which might be employed to inflame or mislead their minds, and was sensible that a government could be in no danger while it retained the attachment and confidence of its subjects—attachment, in this instance, not blindly adopted; confidence not implicitly given, but arising from the conviction of its excellence and the experience of its blessings. I cannot, indeed, help admiring the wisdom and fortune of this great man. By the phrase 'fortune,' I mean not in the smallest degree to derogate from his merit. But notwithstanding his extraordinary talents and exalted integrity, it must be considered as singularly fortunate that he should have experienced a lot which so seldom falls to the portion of humanity, and have passed

through such a variety of scenes without stain and without reproach. It must, indeed, create astonishment, that, placed in circumstances so critical, and filling for a series of years, a station so conspicuous, his character should never once have been called in question; that he should in no one instance have been accused either of improper insolence or mean submission in his transactions with foreign nations. For him it has been reserved to run the race of glory, without experiencing the smallest interruption to the brilliancy of his career."

1. Footnote: All the Cabinet officers of Washington were retained by Mr. Adams, viz.: Timothy Pickering, Secretary of State; James McHenry, Secretary of War; Oliver Wolcott, Secretary of the Treasury, and Charles Lee, Attorney-General. The navy department was not organized till 1798. 2. Footnote: Gibbs, "Administrations of Washington and John Adams."

3. Footnote: The following extract is from a Baltimore paper, dated March 13th: "Last evening arrived in this city, on his way to Mount Vernon, the illustrious object of veneration and gratitude, George Washington. His Excellency was accompanied by his lady and Miss Custis, and by the son of the unfortunate Lafayette and his preceptor. At a distance from the city, he was met by a crowd of citizens, on horse and foot, who thronged the road to greet him, and by a detachment from Captain Hollingsworth's troop, who escorted him in through as great a concourse of people as Baltimore ever witnessed. On alighting at the Fountain Inn, the general was saluted with reiterated and thundering huzzas from the spectators. His Excellency, with the companions of his journey, leaves town, we understand, this morning."

4. Footnote: Erskine's opinion of Washington is thus expressed in his letter, dated London, March 15, 1795: "I have taken the liberty," he writes, "to introduce your august and immortal name in a short sentence, which will be found in the book I send you. I have a large acquaintance among the most valuable and exalted classes of men; but you are the only human being for whom I ever felt an awful reverence. I sincerely pray God to grant a long and serene evening to a life so gloriously devoted to the universal happiness of the world."

"T. ERSKINE."

CHAPTER XII. — WASHINGTON APPOINTED LIEUTENANT-GENERAL. 1797-1798.

We have mentioned, incidentally, that George Washington Motier de Lafayette, the son of the general, with his tutor, M. Frestel, accompanied Washington on his journey from Philadelphia to Mount Vernon. When the wife and daughters of Lafayette left France to join him in the prison of Olmutz his son came to the United States. He arrived at Boston in the summer of 1795, with his tutor, and had immediately written to Washington to apprise him of his arrival. The letter was received just as he was leaving Philadelphia for Mount Vernon. Washington would have been delighted to receive him immediately into his family, but this was forbidden by political considerations of great weight. He therefore wrote to George Cabot, of Boston, desiring him to assure the young man of his friendship and protection, and recommending that he should be entered as a student at Harvard University, Cambridge, and offering to defray the expenses of his education there. This was declined, however, on account of the different course of study which he was pursuing under the tuition of M. Frestel, and George went to take up his residence with M. Lacolombe, {1} in a country-house near New York. In November, 1795, Washington wrote to young Lafayette and his tutor, assuring the former of his paternal regard and support, and desiring him to repair to Colonel Hamilton in New York. On the 18th of March, 1796, the following resolution, and order were passed by the House of Representatives in Congress:

"Information having been given to this House that a son of General Lafayette is now within the United States;

"Resolved, That a committee be appointed to inquire into the truth of the said information and report thereon, and what measures it would be proper to take, if the same be true, to evince the grateful sense entertained by this country for the services of his father.

"Ordered, That Mr. Livingston, Mr. Sherburne, and Mr. Murray be appointed a committee pursuant to the said resolution."

As chairman of this committee, Mr. Livingston wrote to young Lafayette as follows:

"SIR.—Actuated by motives of gratitude to your father, and eager to seize every opportunity of showing their sense of his important services, the House of Representatives have passed the resolution which I have the pleasure to communicate. The committee being directed to inquire into the fact of your arrival within the United States, permit me to advise your immediate appearance at this place, that the Legislature of America may no longer be in doubt whether the son of Lafayette is under their protection and within the reach of their gratitude.

"I presume to give this advice as an individual personally attached to your father, and very solicitous to be useful to any person in whose happiness he is interested. If I should have that good fortune on this occasion, it will afford me the greatest satisfaction.

"I am, &c.,

"EDWARD LIVINGSTON."

On receiving this letter, young Lafayette wrote to Washington, enclosing the resolution and the letter of Mr. Livingston, and asking his advice relative to the course which he should pursue. The following is Washington's answer:

"Your letter of the 28th instant was received yesterday. The enclosures which accompanied it evidence much discretion, and your conduct therein meets my entire approbation.

"In the early part of this month I put a letter into the hands of Colonel Hamilton, inviting you to this place, and expected, until your letter of the above date was received, to have embraced you under my own roof tomorrow or next day.

"As the period for this seems to be more distant, from the purport of your inquiries, I again repeat my former request, and wish that, without delay, you and M. Frestel would proceed immediately to this city and to my house, where a room is prepared for you and him.

"Under expectation of your doing this, it is as unnecessary as it might be improper to go more into detail until I have the pleasure of seeing you and

of rendering every service in my power to the son of my friend, for whom I have always entertained the purest affection, which is too strong not to extend itself to you. Therefore believe me to be, as I really am, sincerely and affectionately yours, &c."

From this time (March, 1796) to April, 1797, when he journeyed with Washington to Mount Vernon, young Lafayette resided with him in Philadelphia. Writing to General Dumas (June 24, 1797) from Mount Vernon, Washington, after expressing an ardent wish for the restoration of General Lafayette to liberty, says: "His son and M. Frestel, who appears to have been his mentor, are, and have been, residents in my family since their arrival in this country, except in the first moments of it; and a modest, sensible, well-disposed youth he is."

In October, 1797, intelligence of the liberation of General Lafayette from his Austrian prison having been received, his son hastened to meet him in France. He sailed with M. Frestel from New York, on the 26th of October, bearing the following letter from Washington to his father: {2}

"This letter, I hope and expect, will be presented to you by your son, who is highly deserving of such parents as you and your amiable lady.

"He can relate much better than I can describe my participation in your sufferings, my solicitude for your relief, the measures I adopted, though ineffectual, to facilitate your liberation from an unjust and cruel imprisonment, and the joy I experienced at the news of its accomplishment. I shall hasten, therefore, to congratulate you, and be assured that no one can do it with more cordiality, with more sincerity, or with greater affection, on the restoration of that liberty which every act of your life entitles you to the enjoyment of; and I hope I may add, to the uninterrupted possession of your estates and the confidence of your country. The repossession of these things, though they cannot compensate for the hardships you have endured, may nevertheless soften the painful remembrance of them.

"From the delicate and responsible situation in which I stood as a public officer, but more especially from a misconception of the manner in which your son had left France, till explained to me in a personal interview with himself, he did not come immediately into my family on his arrival in America, though he was assured in the first moments of it of my protection and support. His conduct, since he first set his feet on American ground, has been exemplary in every point of view, such as has gained him the esteem,

affection, and confidence of all who have had the pleasure of his acquaintance. His filial affection and duty and his ardent desire to embrace his parents and sisters, in the first moments of their release, would not allow him to wait the authentic account of this much-desired event; but, at the same time that I suggested the propriety of this, I could not withhold my assent to the gratification of his wishes to fly to the arms of those whom he holds most dear, persuaded as he is, from the information he has received, that he shall find you all in Paris.

"M. Frestel has been a true mentor to George. No parent could have been more attentive to a favorite son, and he richly merits all that can be said of his virtues, of his good sense, and of his prudence. Both your son and he carry with them the vows and regrets of this family and all who know them. And you may be assured that yourself never stood higher in the affections of the people of this country than at the present moment.

"Having bid a final adieu to the walks of public life, and meaning to withdraw myself from politics, I shall refer you to M. Frestel and George, who, at the same time that they have, from prudential considerations, avoided all interference in the politics of the country, cannot have been inattentive observers of what was passing among us, to give you a general view of our situation, and of the party which, in my opinion, has disturbed the peace and tranquility of it. And with sentiments of the highest regard for you, your lady, and daughters, and with assurances that, if inclination or events should induce you or any of them to visit America, no person in it would receive you with more cordiality and affection than Mrs. Washington and myself, both of us being most sincerely and affectionately attached to you, and admirers of them."

Devoted as Washington, in his retirement, was to his favorite pursuit of agriculture, he nevertheless took a lively interest in the political affairs of the country. In the events which were now passing he found cause for considerable anxiety. The conduct of the French Directory still indicated a persistence in their favorite policy of detaching the people of the United States from the support of the executive, and effecting a revolution in the government. Their treatment of General Pinckney, the minister sent to France by Washington, fully disclosed their views and intentions. After inspecting General Pinckney's letter of credence, the Directory announced to him their determination "not to receive another minister plenipotentiary

from the United States until after the redress of grievances demanded of the American government, which the French republic had a right to expect from it." This message was succeeded, first by indecorous verbal communications, calculated to force the American minister out of France, and afterward, by a written mandate to quit the territories of the republic.

This act of hostility was accompanied with another, which would explain the motives for this conduct, if previous measures had not rendered all further explanation unnecessary.

On giving to the recalled minister his audience of leave, the President of the Directory addressed a speech to him, in which terms of outrage to the government were mingled with expressions of affection for the people of the United States, and the expectation of ruling the former, by their influence over the latter, was too clearly manifested not to be understood. To complete this system of hostility, American vessels were captured wherever found, and, under the pretext of their wanting a document, with which the treaty of commerce had been uniformly understood to dispense, they were condemned as prize.

This serious state of things demanded a solemn consideration. On receiving from General Pinckney the dispatches which communicated it, President Adams issued his proclamation requiring Congress to meet on the 15th day of May. The speech delivered by him at the commencement of the session showed that the insults of the French Directory were deeply resented. He said: "The speech of the President discloses sentiments more alarming than the refusal of a minister, because more dangerous to our independence and union, and, at the same time, studiously marked with indignities toward the government of the United States. It evinces a disposition to separate the people from their government; to persuade them that they have different affections, principles, and interests from those of their fellow-citizens whom they themselves have chosen to manage their common concerns; and thus to produce divisions fatal to our peace. Such attempts ought to be repelled with a decision which shall convince France, and the world, that we are not a degraded people, humiliated under a colonial spirit of fear and sense of inferiority, fitted to be the miserable instruments of foreign influence, and regardless of national honor, character, and interest. Retaining still the desire which had uniformly been manifested by the American government to preserve peace and friendship

with all nations, and believing that neither the honor nor the interest of the United States absolutely forbade the repetition of advances for securing these desirable objects with France, he should," he said, "institute a fresh attempt at negotiation, and should not fail to promote and accelerate an accommodation on terms compatible with the rights, duties, interests, and honor of the nation." But while he should be making these endeavors to adjust all differences with the French republic by amicable negotiation, he earnestly recommended it to Congress to provide effectual measures of defense.

The drawing up an answer to this speech of President Adams occasioned a full fortnight's debate in the House of Representatives, but at length a reply, correspondent to the President's tone and views, was carried by 51 or 52 voices against 48. This showed the balance of parties, proved that Adams still kept the ascendancy, however small, that Washington had done, and that the dread of democratic violence prevailed over the suspicions endeavored to be awakened of monarchism and an arbitrary executive. This feeling was, no doubt, strengthened greatly by refugees from St. Domingo, who related the dire effects which democratic acts had produced in that island. France, however, was never more formidable. Tidings of her victories poured in, whilst those of England told of bank payments suspended, a mutiny in the fleet, and the abandonment of her best continental ally.

To carry into effect the pacific dispositions avowed by President Adams in his speech, he appointed three envoys to the French Directory. General Pinckney, who was still residing in Europe, was placed at the head of the mission. Gen. John Marshall, afterward chief justice, a sturdy Federalist, and Elbridge Gerry, an anti-Federalist, but a strong personal friend and favorite of the President, were joined with Pinckney in the mission. They were instructed to endeavor to procure peace and reconciliation by all means compatible with the honor and faith of the United States, but no national engagements were to be impaired, no innovation to be permitted upon those internal regulations for the preservation of peace which had been deliberately and uprightly established, nor were the rights of the government to be surrendered. On their arrival in France the envoys saw M. Talleyrand, the Minister for Foreign Affairs, but were informed that they could not be received by the Directory. They had permission to remain in Paris, however, and the agents of M. de Talleyrand—a female amongst

others were employed to negotiate with them. The true difficulty in the way of accommodation, in addition to the impertinent arrogance of the Directory, seemed to be that Merlin and others received a great part of the gains accruing from American prizes made by the French. In order to counteract this gold in one hand by gold in the other, Talleyrand demanded a *douceur* of £50,000 for himself and chiefs, besides a loan to be afterward made from America to France. To extract these conditions, every argument that meanness could suggest was employed by Talleyrand; he demanded to be fed as a lawyer or bribed as a friend. But the Americans were inexorable, and two of their number, Pinckney and Marshall, returned to announce to their countrymen the terms on which peace was offered. The cupidity of the French government completely turned against it the tide of popular feeling in America. "Millions for defense, not a cent for tribute," was instantly the general cry. The President felt his hands strengthened by the demands of the French. Certainly, never did minister show himself less sagacious than M. de Talleyrand in this affair, or more ignorant of the spirit and manners of a nation amongst whom he had resided.

In Congress (May, 1798), vigorous measures were adopted for placing the country in a state of defense against impending hostilities from one of the most powerful nations of the world. Among these was a regular army. A regiment of artillerists and engineers was added to the permanent establishment, and the President was authorized to raise twelve additional regiments of infantry and one regiment of cavalry to serve during the continuance of the existing differences with the French republic, if not sooner discharged. He was also authorized to appoint officers for a provisional army and to receive and organize volunteer corps who should be exempt from ordinary militia duty, but neither the volunteers nor the officers of the provisional army were to receive pay unless called into actual service.

Addresses to the executive from every part of the United States attested the high spirit of the nation, and the answers of President Adams were well calculated to give it solidity and duration.

No sooner had a war become probable, to the perils of which no man could be insensible, than the eyes of all were directed to Washington, as the person who should command the American army. He alone could be seen at the head of a great military force without exciting jealousy; he alone could

draw into public service and arrange properly the best military talents of the nation, and he, more than any other, could induce the utmost exertion of its physical strength. Indignant at the unprovoked injuries which had been heaped upon his country, and convinced that the conflict, should a war be really prosecuted by France with a view to conquest, would be extremely severe and could be supported, on the part of America, only by a persevering exertion of all her force, he could not determine, should such a crisis arrive, to withhold those aids which it might be in his power to afford, should public opinion really attach to his services that importance which would render them essential. His own reflections appear to have resulted in a determination not to refuse once more to take the field, provided he could be permitted to secure efficient aid by naming the chief officers of the army, and to remain at home until his service in the field should be required by actual invasion. {3}

A confidential and interesting letter from Colonel Hamilton of the 19th of May, on political subjects, concludes with saying: "You ought also to be aware, my dear sir, that in the event of an open rupture with France the public voice will again call you to command the armies of your country, and though all who are attached to you will, from attachment as well as public consideration, deplore an occasion which should once more tear you from that repose to which you have so good a right, yet it is the opinion of all those with whom I converse that you will be compelled to make the sacrifice. All your past labors may demand, to give them efficacy, this further, this very great sacrifice."

"You may be assured," said Washington in reply, "that my mind is deeply impressed with the present situation of public affairs and not a little agitated by the outrageous conduct of France toward the United States, and at the inimitable conduct of those partisans who aid and abet her measures. You may believe further, from assurances equally sincere, that if there was anything in my power to be done consistently to avert or lessen the danger of the crisis, it should be rendered with hand and heart."

"But, my dear sir, dark as matters appear at present, and expedient as it is to be prepared for the worst that can happen (and no man is more disposed to this measure than I am), I cannot make up my mind yet for the expectation of open war; or, in other words, for a formidable invasion by France. I cannot believe, although I think her capable of anything, that she

will attempt to do more than she has done. When she perceives the spirit and policy of this country rising into resistance, and that she has falsely calculated upon support from a large part of the people to promote her views and influence in it, she will desist ever from those practices, unless unexpected events in Europe or the acquisition of Louisiana and the Floridas should induce her to continue them. And I believe further, that, although the leaders of their party in this country will not change their sentiments, they will be obliged to change their plan or the mode of carrying it on. The effervescence which is appearing in all quarters, and the desertion of their followers, will frown them into silence—at least for a while.

"If I did not view things in this light my mind would be infinitely more disquieted than it is, for, if a crisis should arrive when a sense of duty or a call from my country should become so imperious as to leave me no choice, I should prepare for relinquishment and go with as much reluctance from my present peaceful abode as I should go to the tombs of my ancestors."

The opinion that prudence required preparations for open war and that Washington must once more be placed at the head of the American armies strengthened every day, and on the 22d of June President Adams addressed him a letter in which that subject was thus alluded to.

"In forming an army, whenever I must come to that extremity I am at an immense loss whether to call out the old generals or to appoint a young set. If the French come here we must learn to march with a quick step and to attack, for in that way only they are said to be vulnerable. I must tax you sometimes for advice. We must have your name, if you will in any case permit us to use it. There will be more efficacy in it than in many an army."

A letter from McHenry, the Secretary of War, written four days afterward, concludes with asking: "May we flatter ourselves that, in a crisis so awful and important you will accept the command of all our armies? I hope you will, because you alone can unite all hearts and all hands, if it is possible that they can be united."

These letters reached Washington on the same day. The following extract from his reply to the President will exhibit the course of his reflections relative to his appearance once more at the head of the American armies:

"At the epoch of my retirement an invasion of these States by an European power, or even the probability of such an event in my days, was

so far from being contemplated by me that I had no conception either that or any other occurrence would arise in so short a period which could turn my eyes from the shades of Mount Vernon. But this seems to be the age of wonders. And it is reserved for intoxicated and lawless France (for purposes of Providence far beyond the reach of human ken) to slaughter her own citizens and to disturb the repose of all the world besides. From a view of the past—from the prospect of the present—and of that which seems to be expected, it is not easy for me to decide satisfactorily on the part it might best become me to act. In case of actual invasion by a formidable force I certainly should not entrench myself under the cover of age and retirement, if my services should be required by my country to assist in repelling it. And if there be good cause to expect such an event, which certainly must be better known to the government than to private citizens, delay in preparing for it may be dangerous, improper, and not to be justified by prudence. The uncertainty, however, of the latter, in my mind, creates my embarrassment, for I cannot bring it to believe, regardless as the French are of treaties and of the laws of nation, and capable as I conceive them to be of any species of despotism and injustice, that they will attempt to invade this country after such a uniform and unequivocal expression of the determination of the people in all parts to oppose them with their lives and fortunes. That they have been led to believe by their agents and partisans among us that we are a divided people, that the latter are opposed to their own government, and that the show of a small force would occasion a revolt, I have no doubt; and how far these men (grown desperate) will further attempt to deceive, and may succeed in keeping up the deception, is problematical. Without that, the folly of the Directory in such an attempt would, I conceive, be more conspicuous, if possible, than their wickedness."

"Having with candor made this disclosure of the state of my mind, it remains only for me to add that to those who know me best it is best known that, should imperious circumstances induce me to exchange once more the smooth paths of retirement for the thorny ways of public life, at a period too when repose is more congenial to nature, it would be productive of sensations which can be more easily conceived than expressed."

His letter to the Secretary of War was more detailed and more explicit. "It cannot," he said, "be necessary for me to premise to you or to others who know my sentiments; that to quit the tranquility of retirement, and enter the boundless field of responsibility, would be productive of sensations which a

better pen than I possess would find it difficult to describe. Nevertheless, the principle by which my conduct has been actuated through life would not suffer me, in any great emergency, to withhold any services I could render when required by my country—especially in a case where its dearest rights are assailed by lawless ambition and intoxicated power, in contempt of every principle of justice, and in violation of a solemn compact and of laws which govern all civilized nations—and this too with the obvious intent to sow thick the seeds of disunion for the purpose of subjugating our government and destroying our independence and happiness.

"Under circumstances like these, accompanied by an actual invasion of our territory, it would be difficult for me, at any time, to remain an idle spectator, under the plea of age or retirement. With sorrow, it is true, I should quit the shades of my peaceful abode, and the ease and happiness I now enjoy, to encounter anew the turmoils of war, to which, possibly, my strength and powers might be found incompetent. These, however, should not be stumbling-blocks in my own way. But there are other things highly important for me to ascertain and settle before I could give a definitive answer to your question:

"1st. The propriety in the opinion of the public, so far as that opinion has been expressed in conversation, of my appearing again on the public theater after declaring the sentiments I did in my valedictory address of September, 1796.

"2dly. A conviction in my own breast, from the best information that can be obtained, that it is the wish of my country that its military force should be committed to my charge; and,

"3dly. That the army now to be formed should be so appointed as to afford a well-grounded hope of its doing honor to the country and credit to him who commands it in the field.

"On each of these heads you must allow me to make observations." Washington then proceeded to detail his sentiments on those points on which his consent to take command of the army must depend.

Some casual circumstances delayed the reception of the letters of the President and Secretary of War for several days, in consequence of which, before the answer of Washington reached the seat of government, the President had nominated him to the chief command of all the armies raised

or to be raised in the United States, with the rank of lieutenant-general; and the Senate had unanimously advised and consented to his appointment.

By the Secretary of War, who was directed to wait upon him with his commission, the President addressed to him the following letter:

"Mr. McHenry, the Secretary of War, will have the honor to wait on you in my behalf, to impart to you a step I have ventured to take, which I should have been happy to have communicated in person, had such a journey at this time been in my power."

"My reasons for this measure will be too well known to need any explanation to the public. Every friend and every enemy of America will comprehend them at first blush. To you, sir, I owe all the apology I can make. The urgent necessity I am in of your advice and assistance, indeed of your conduct and direction of the war, is all I can urge; and that is a sufficient justification to myself and to the world. I hope it will be so considered by yourself. Mr. McHenry will have the honor to consult you upon the organization of the army, and upon everything relating to it."

Open instructions, signed by the President, were on the same day delivered to the Secretary of War, of which the following is a copy:

"It is my desire that you embrace the first opportunity to set out on your journey to Mount Vernon and wait on General Washington with the commission of lieutenant-general and commander-in-chief of the armies of the United States, which, by the advice and consent of the Senate, has been signed by me.

"The reasons and motives which prevailed on me to venture on such a step as the nomination of this great and illustrious character, whose voluntary resignation alone occasioned my introduction to the office I now hold, were too numerous to be detailed in this letter, and are too obvious and important to escape the observation of any part of America or Europe. But as it is a movement of great delicacy it will require all your address to communicate the subject in a manner that shall be inoffensive to his feelings and consistent with all the respect that is due from me to him.

"If the general should decline the appointment all the world will be silent and respectfully acquiesce. If he should accept it all the world, except the enemies of his country, will rejoice. If he should come to no decisive determination, but take the subject into consideration, I shall not appoint any other lieutenant-general until his conclusion is known.

"His advice in the formation of a list of officers would be extremely desirable to me. The names of Lincoln, Morgan, Knox, Hamilton, Gates, Pinckney, Lee, Carrington, Hand, Muhlenberg, Dayton, Burr, Brooks, Cobb, Smith, as well as the present commander-in-chief, may be mentioned to him, and any others that occur to you. Particularly, I wish to have his opinion on the men most suitable for inspector-general, adjutant-general, and quartermaster-general.

"His opinion on all subjects would have great weight, and I wish you to obtain from him as much of his reflections upon the times and the service as you can."

The communications between Washington and the Secretary of War appear to have been full and unreserved. The impressions of the former respecting the critical and perilous situation of his country had previously determined him to yield to the general desire and accept the commission offered him, provided he could be permitted to select for the high departments of the army, and especially for the military staff, those in whom he could place the greatest confidence. Being assured that there was every reason to believe his wishes in this respect would not be thwarted, he gave to the secretary the arrangement which he would recommend for the principal stations in the army, and on the 13th of July addressed the following letter to the President:

"I had the honor, on the evening of the 11th instant, to receive from the hands of the Secretary at War your favor of the 7th, announcing that you had, with the advice and consent of the Senate, appointed me lieutenant-general and commander-in-chief of the armies raised or to be raised for the service of the United States."

"I cannot express how greatly affected I am at this new proof of public confidence, and at the highly flattering manner in which you have been pleased to make the communication. At the same time I must not conceal from you my earnest wish that the choice had fallen upon a man less declined in years and better qualified to encounter the usual vicissitudes of war."

"You know, sir, what calculations I had made relative to the probable course of events on my retiring from office and the determination with which I had consoled myself of closing the remnant of my days in my present peaceful abode. You will, therefore, be at no loss to conceive and

appreciate the sensations I must have experienced to bring my mind to any conclusion that would pledge me at so late a period of life to leave scenes I sincerely love to enter upon the boundless field of public action, incessant trouble, and high responsibility.

"It was not possible for me to remain ignorant of or indifferent to recent transactions. The conduct of the Directory of France toward our country; their insidious hostility to its government; their various practices to withdraw the affections of the people from it; the evident tendency of their arts, and those of their agents to countenance and invigorate opposition; their disregard of solemn treaties and the laws of nations; their war upon our defenseless commerce; their treatment of our ministers of peace, and their demands, amounting to tribute, could not fail to excite in me sentiments corresponding with those my countrymen have so generally expressed in their affectionate addresses to you.

"Believe me, sir, no man can more cordially approve the wise and prudent measures of your administration. They ought to inspire universal confidence, and will no doubt, combined with the state of things, call from Congress such laws and means as will enable you to meet the full force and extent of the crisis. Satisfied, therefore, that you have sincerely wished and endeavored to avert war, and exhausted to the last drop the cup of reconciliation, we can, with pure hearts, appeal to Heaven for the justice of our cause, and may confidently trust the final result to that kind Providence who has heretofore and then so often signally favored the people of the United States.

"Thinking in this manner and feeling how incumbent it is upon every person of every description to contribute at all times to his country's welfare, and especially in a moment like the present, when everything we hold dear and sacred is so seriously threatened, I have finally determined to accept the commission of commander-in-chief of the armies of the United States, with the reserve only that I shall not be called into the field until the army is in a situation to require my presence or it becomes indispensable by the urgency of circumstances.

"In making this reservation, I beg it to be understood that I do not mean to withhold any assistance to arrange and organize the army, which you may think I can afford. I take the liberty also to mention that I must decline having my acceptance considered as drawing after it any immediate charge

upon the public, or that I can receive any emoluments annexed to the appointment before I am in a situation to incur expense."

From this period Washington intermingled the cares and attentions of office with his agricultural pursuits. His solicitude respecting the organization of an army which he might possibly be required to lead against an enemy the most formidable in the world, was too strong to admit of his being inattentive to its arrangements.

Having stipulated, in accepting office, that he should have a concurrent voice in the appointment of the general officers and general staff of the army, he named Alexander Hamilton as inspector-general and second in command, with Charles Cotesworth Pinckney and Henry Knox as major-generals. Adams, who particularly disliked Hamilton, and was very suspicious of his designs and purposes, especially if placed in any position of power and influence, was not at all pleased with this arrangement; but he unwillingly acquiesced. General Knox was dissatisfied with the rank assigned him, and refused to serve; General Pinckney, on the other hand, accepted the post offered him.

During the months of November and December (1798), Washington was at Philadelphia, where he was busily occupied, with Hamilton and Pinckney, in concerting arrangements for raising and organizing the army. From this time to the end of his life a great part of his time was bestowed upon military affairs.

"His correspondence with the Secretary of War, the major-generals, and other officers," as Mr. Sparks states, "was unremitted and very full, entering into details and communicating instructions which derived value from his long experience and perfect knowledge of the subject. His letters during this period, if not the most interesting to many readers, will be regarded as models of their kind, and as affording evidence that the vigor and fertility of his mind had not decreased with declining years.

"He never seriously believed that the French would go to the extremity of invading the United States. But it had always been a maxim with him, that a timely preparation for war afforded the surest means for preserving peace, and on this occasion he acted with as much promptitude and energy as if the invaders had been actually on the coast. His opinion proved to be correct, and his prediction was verified." For the French government, when it was found that the people would support the executive in resisting aggressions,

soon manifested a disposition to draw back from their war-like attitude, since war with the United States was the last thing which was really desired.

While Washington was engaged in organizing the army actual hostilities between the United States and France were going on at sea. A *navy* department was formed by act of Congress in April (1798), and on May 21st Benjamin Stoddert, of Maryland, became the first Secretary of the Navy. The frigates *United States*, 44, and *Constellation*, 38, were launched and fitted for sea in the summer and autumn succeeding; and the whole force authorized by a law passed on the 16th of July, consisted of twelve frigates, twelve ships of a force between twenty and twenty-four guns inclusive, and six sloops, besides galleys and revenue cutters, making a total of thirty active cruisers. Numerous privateers were also fitted out. The chief theater of naval operations was the archipelago of the West Indies, where the aggressions on our commerce by French cruisers and privateers had originally commenced. Of the numerous encounters which took place, two remarkable ones afforded a promise of the future glories of the American navy. One of these was a very severe action (February, 1799) between the American frigate *Constellation*, of thirty-eight guns, commanded by Commodore Truxton, and the French frigate *l'Insurgente*, of forty guns, which terminated in the capture of the latter. Truxton, in a subsequent engagement, compelled another French frigate, the *Vengeance*, mounting no less than fifty-two guns, to strike her colors, but she afterward made her escape in the night.

The determined attitude of the United States soon convinced the French Directory that the people were united in support of the administration in its hostile operations, and Talleyrand sent certain intimations to our government, through William Vans Murray, American minister at the Hague, as well as by more private channels, that the Directory were willing and desirous to treat for peace. President Adams determined to avail himself of these friendly dispositions, and, without consulting his Cabinet or the leading members of Congress, on the 18th of February (1799) nominated to the Senate Mr. Murray as minister plenipotentiary to the French republic. Patrick Henry and Chief Justice Oliver Ellsworth were subsequently appointed joint ambassadors, but the latter declining on account of ill health, Gen. William Richardson Davie, Governor of North Carolina, was appointed in his place. Ellsworth and Davie did not leave the country,

however, till November. The peace which terminated the quasi war with France was negotiated by these envoys, but it did not take place till the 3d of September, 1800, when Napoleon was at the head of affairs in France, as First Consul, and after the death of Washington.

We have seen that when Washington retired from the office of President, he had promised himself a season of leisure and repose before closing his useful and honorable life. But this the course of events did not permit. His last days were destined to be fully occupied with public affairs.

During the years 1798 and 1799 he was engaged in a most voluminous correspondence with the President, the heads of departments, and the officers of the provisional army, in relation to military affairs, and in addition to this his published letters show that he had to keep up a correspondence with many public men, both in Europe and America, as well as with his own connections and dependants.

This correspondence and the arrangement of his papers added to the writing occasioned by his accounts and the army affairs, made it necessary for him to have assistance, and he accordingly wrote to his old secretary, Mr. Tobias Lear, with a view to engaging him in the same office again (August 2, 1798). An extract from his letter to Mr. Lear shows how his writing labors had increased.

"The little leisure I had," he writes, "before my late appointment (from visits, my necessary rides, and other occurrences), to overhaul, arrange, and separate papers of real from those of little or no value, is now, by that event, so much encroached upon by personal and written applications for offices, and other matters incidental to the commander-in-chief, that, without assistance, I must abandon all idea of accomplishing this necessary work before I embark in new scenes, which will render them more voluminous, and, of course, more difficult; a measure which would be extremely irksome to me to submit to, especially as it respects my accounts, which are yet in confusion; my earnest wish and desire being, when I quit the stage of human action, to leave all matters in such a situation as to give as little trouble as possible to those who will have the management of them hereafter.

"Under this view of my situation, which is far from being an agreeable one, and at times fills me with deep concern when I see so little prospect of complete extrication, I have written to the Secretary of War to be informed

whether—as my taking the field is contingent, and no pay or emolument will accrue to myself until then—I am at liberty to appoint my secretary immediately, who shall be allowed his pay and forage from the moment he joins me. If he answers in the affirmative, can you do this on these terms?"

Mr. Lear accepted the appointment of secretary, proceeded immediately to Mount Vernon, and remained with Washington till his decease.

With the aid of Mr. Lear, who was thoroughly conversant with his papers and accustomed to his methods of transacting business, he was enabled to keep up his old habit of riding over the estate, and superintending its culture, during the early hours of the day. "When he returned from his morning ride," which, he remarks in a letter to Mr. McHenry, "usually occupied him till it was time to dress for dinner," he generally found some newly arrived guests, perfect strangers to him, come, as they said, out of respect to him. They were always received courteously, but their number and their constant succession must have made serious inroads on the domestic quiet in which he so much delighted. "How different this," he says in the same letter, "from having a few social friends at a cheerful board."

During the last two years of his life his domestic circle was small. Mrs. Washington, Miss Custis, and some others of his adopted children, and his old friend, Mr. Lear, were at Mount Vernon; and some of his visitors were such as he himself would have chosen. But the greater part of them were comparative strangers.

Distinguished persons sometimes came from Europe to visit him, and these were received with his usual hospitality. When they sought to draw him into conversation about his own actions, he changed the subject and made inquiries about Europe and its affairs. In his own house, although maintaining toward strangers great courtesy and amenity, he always avoided discussing on matters in which he himself had played the most conspicuous part. At home he was the plain, modest country gentleman he had been before the destinies of an army and an empire had been placed in his hands.

1. Footnote: M. de Lacolombe had been adjutant-general under Lafayette, when the latter commanded the National Guard.

2. Footnote: Sparks, "Writings of Washington."

3. Footnote: Marshall.

CHAPTER XIII. — LAST ILLNESS, DEATH, AND CHARACTER OF WASHINGTON. 1799.

On Thursday, December 12, 1799, Washington rode out to superintend as usual the affairs of his estate. He left the house at 10 o'clock in the morning and did not return till 3 o'clock in the afternoon. Soon after he went out the weather became very inclement, rain, hail, and snow falling alternately, with a cold wind. When he came in his secretary and superintendent, Mr. Lear, handed him some letters to frank, but he declined sending them to the post-office that evening, remarking that the weather was too bad to send a servant with them. On Mr. Lear's observing that he was afraid he had got wet, he said, No, his great coat had kept him dry. Still his neck was wet and snow was hanging on his hair. But he made light of it, and sat down to dinner without changing his dress. In the evening he appeared as well as usual. {1}

A heavy snowstorm on Friday prevented his riding out on the estate as usual. He had taken cold the day before by his long exposure, and he complained of a sore throat. This, however, did not prevent his going out in the afternoon to mark some trees not far from the house, which were to be cut down. He had now a hoarseness, which increased toward the close of the day. He spent the evening in the parlor with Mrs. Washington and Mr. Lear, perusing the newspapers, occasionally reading an interesting article aloud as well as his hoarseness would permit, and cheerful as usual. On his retiring, Mr. Lear proposed that he should take some remedy for his cold, but he answered "No, you know I never take anything for a cold. Let it go as it came."

Between 2 and 3 o'clock on Saturday morning he had an ague fit, but would not permit the family to be disturbed in their rest till daylight. He breathed with great difficulty and was hardly able to utter a word intelligibly. At his desire he was bled by Mr. Rawlins, one of the overseers. An attempt to take a simple remedy for a cold showed that he could not swallow a drop, but seemed convulsed and almost suffocated in his efforts. Dr. Craik, the family physician, was sent for and arrived about 9 o'clock,

who put a blister on his throat, took some more blood from him and ordered a gargle of vinegar and sage tea, and inhalation of the fumes of vinegar and hot water. Two consulting physicians, Dr. Brown and Dr. Dick, were called in, who arrived about 3 o'clock, and after a consultation he was bled a third time. The patient could now swallow a little, and calomel and tartar emetic were administered without any effect.

About half past 4 o'clock he desired Mr. Lear to call Mrs. Washington to his bedside; when he requested her to bring from his desk two wills, and on receiving them, he gave her one, which he observed was useless as being superseded by the other, and desired her to burn it, which she did, and put the other into her closet.

"After this was done," says Mr. Lear, in concluding his touching narrative, "I returned to his bedside and took his hand. He said to me: 'I find I am going. My breath cannot last long. I believed from the first that the disorder would prove fatal. Do you arrange and record all my late military letters and papers. Arrange my accounts and settle my books, as you know more about them than anyone else, and let Mr. Rawlins finish recording my other letters, which he has begun.' I told him this should be done. He then asked if I recollected anything which it was essential for him to do, as he had but a very short time to continue with us. I told him that I could recollect nothing which it was essential for him to do, but that I hoped he was not so near his end. He observed, smiling, that he certainly was, and that, as it was the debt we must all pay, he looked to the event with perfect resignation.

"In the course of the afternoon he appeared to be in great pain and distress, from the difficulty of breathing, and frequently changed his posture in the bed. On these occasions I lay upon the bed and endeavored to raise him and turn him with as much ease as possible. He appeared penetrated with gratitude for my attentions, and often said, 'I am afraid I shall fatigue you too much,' and upon assuring him that I could feel nothing but a wish to give him ease, he replied, 'Well, it is a debt we must pay to each other, and I hope when you want aid of this kind you will find it.'

"About 5 o'clock Dr. Craik came again into the room, and, upon going to the bedside, the general said to him, 'Doctor, I die hard, but I am not afraid to go. I believed, from my first attack, that I should not survive it. My

breath cannot last long.' The doctor pressed his hand, but could not utter a word. He retired from the bedside and sat by the fire, absorbed in grief.

"Between 5 and 6 o'clock Dr. Craik, Dr. Dick, and Dr. Brown came again into the room, and with Dr. Craik went to the bed, when Dr. Craik asked him if he could sit up in the bed. He held out his hand and I raised him up. He then said to the physicians, 'I feel myself going; I thank you for your attentions, but I pray you to take no more trouble about me. Let me go off quietly. I cannot last long.' They found that all which had been done was without effect. He lay down again, and all retired except Dr. Craik. He continued in the same situation, uneasy and restless, but without complaining, frequently asking what hour it was. When I helped him to move at this time he did not speak, but looked at me with strong expressions of gratitude.

"About 8 o'clock the physicians came again into the room and applied blisters and cataplasms of wheat bran to his legs and feet, after which they went out, except Dr. Craik, without a ray of hope. I went out about this time and wrote a line to Mr. Law and Mr. Peter, requesting them to come with their wives (Mrs. Washington's granddaughters) as soon as possible to Mount Vernon.

"About 10 o'clock he made several attempts to speak to me before he could effect it. At length he said, 'I am just going. Have me decently buried, and do not let my body be put into the vault in less than three days after I am dead.' I bowed assent, for I could not speak. He then looked at me again and said, 'Do you understand me?' I replied, 'Yes.' 'Tis well,' said he.

"About ten minutes before he expired (which was between 10 and 11 o'clock) his breathing became easier. He lay quietly; he withdrew his hand from mine and felt his own pulse. I saw his countenance change. I spoke to Dr. Craik, who sat by the fire. He came to the bedside. The general's hand fell from his wrist. I took it in mine and pressed it to my bosom. Dr. Craik put his hands over his eyes, and he expired without a struggle or a sigh (December 14, 1799).

"While we were fixed in silent grief, Mrs. Washington, who was sitting at the foot of the bed, asked, with a firm and collected voice, 'Is he gone?' I could not speak, but held up my hand as a signal that he was no more. 'Tis well,' said she, in the same voice, 'all is over now. I shall soon follow him. I have no more trials to pass through.'

"During his whole illness," adds Mr. Lear, "he spoke but seldom, and with great difficulty and distress, and in so low and broken a voice as at times hardly to be understood. His patience, fortitude, and resignation never forsook him for a moment. In all his distress he uttered not a sigh nor a complaint, always endeavoring, from a sense of duty, as it appeared, to take what was offered him and to do as he was desired by the physicians."

By this simple and touching record of the last moments of Washington, it will be perceived that his conduct, in the last trying scene, was in all respects consistent with his whole life and character. His habitual serenity and self-command, and the ever-present sense of duty, are apparent through the whole. He died as he had lived, a hero in the highest sense of the word and a true Christian.

The deep and wide-spreading grief occasioned by this melancholy event assembled a great concourse of people for the purpose of paying the last tribute of respect to the first of Americans, and on Wednesday, the 18th of December, his body, attended by military honors, and with religious and Masonic ceremonies, was deposited in the family vault on his estate.

In December, 1837, the remains of the great father of our nation, after a slumber of thirty-eight years, were again exposed by the circumstance of placing his body once and forever within the marble sarcophagus made by Mr. Struthers, of Philadelphia. The body, as Mr. Struthers related, was still in a wonderful state of preservation, the high pale brow wore a calm and serene expression, and the lips, pressed together, had a grave and solemn smile.

When intelligence reached Congress of the death of Washington, they instantly adjourned until the next day, when John Marshall, then a member of the House of Representatives and afterward chief justice of the United States and biographer of Washington, addressed the speaker in the following words:

"The melancholy event which was yesterday announced with doubt has been rendered but too certain. Our Washington is no more. The hero, the patriot, and the sage of America; the man on whom, in times of danger, every eye was turned, and all hopes were placed, lives now only in his own great actions and in the hearts of an affectionate and afflicted people.

"If, sir, it had even not been usual openly to testify respect for the memory of those whom Heaven has selected as its instruments for

dispensing good to man, yet such has been the uncommon worth and such the extraordinary incidents which have marked the life of him whose loss we all deplore, that the whole American nation, impelled by the same feelings, would call with one voice for a public manifestation of that sorrow, which is so deep and so universal.

"More than any other individual, and as much as to any one individual was possible, has he contributed to found this, our wide-spreading empire, and to give to the western world independence and freedom.

"Having effected the great object for which he was placed at the head of our armies, we have seen him convert the sword into the ploughshare and sink the soldier into the citizen.

"When the debility of our Federal system had become manifest, and the bonds which connected this vast continent were dissolving, we have seen him the chief of those patriots who formed for us a constitution, which, by preserving the Union, will, I trust, substantiate and perpetuate those blessings which our Revolution had promised to bestow.

"In obedience to the general voice of his country, calling him to preside over a great people, we have seen him once more quit the retirement he loved, and, in a season more stormy and tempestuous than war itself, with calm and wise determination, pursue the true interests of the nation and contribute more than any other could contribute to the establishment of that system of policy which will, I trust, yet preserve our peace, our honor, and our independence. Having been twice unanimously chosen the chief magistrate of a free people, we have seen him, at a time when his re-election with universal suffrage could not be doubted, afford to the world a rare instance of moderation, by withdrawing from his high station to the peaceful walks of private life. However the public confidence may change, and the public affections fluctuate with respect to others, with respect to him they have, in war and in peace, in public and in private life, been as steady as his own firm mind and as constant as his own exalted virtues. Let us then, Mr. Speaker, pay the last tribute of respect and affection to our departed friend. Let the grand council of the nation display those sentiments which the nation feels. For this purpose I hold in my hand some resolutions which I take the liberty of offering to the House.

"*Resolved*, That this House will wait on the President in condolence of this mournful event.

"Resolved, That the speaker's chair be shrouded with black, and that the members and officers of the House wear black during the session.

"Resolved, That a committee, in conjunction with one from the Senate, be appointed to consider on the most suitable manner of paying honor to the memory of the man first in war, first in peace, and first in the hearts of his fellow-citizens."

The Senate, on this melancholy occasion, addressed to the President the following letter:

"The Senate of the United States respectfully take leave, sir, to express to you their deep regret for the loss their country sustains in the death of Gen. George Washington.

"This event, so distressing to all our fellow-citizens, must be peculiarly heavy to you, who have long been associated with him in deeds of patriotism. Permit us, sir, to mingle our tears with yours. On this occasion it is manly to weep. To lose such a man at such a crisis is no common calamity to the world. Our country mourns a father. The Almighty Disposer of human events has taken from us our greatest benefactor and ornament. It becomes us to submit with reverence to Him 'who maketh darkness His pavilion.'

"With patriotic pride we review the life of our Washington and compare its events with those of other countries who have been preeminent in fame. Ancient and modern times are diminished before him. Greatness and guilt have too often been allied, but his fame is whiter than it is brilliant. The destroyers of nations stood abashed at the majesty of his virtues. It reprov'd the intemperance of their ambition and darkened the splendor of victory. The scene is closed, and we are no longer anxious lest misfortune should sully his glory; he has traveled on to the end of his journey and carried with him an increasing weight of honor; he has deposited it safely where misfortune cannot tarnish it, where malice cannot blast it. Favored of Heaven, he departed without exhibiting the weakness of humanity. Magnanimous in death, the darkness of the grave could not obscure his brightness.

"Such was the man whom we deplore. Thanks to God, his glory is consummated. Washington yet lives on earth in his spotless example; his spirit is in Heaven. Let his countrymen consecrate the memory of the heroic general, the patriotic statesman, and the virtuous sage. Let them teach their

children never to forget that the fruits of his labors and his example are their inheritance."

To this address the President returned the following answer:

"I receive with the most respectful and affectionate sentiments, in this impressive address, the obliging expressions of your regret for the loss our country has sustained in the death of her most esteemed, beloved, and admired citizen.

"In the multitude of my thoughts and recollections on this melancholy event, you will permit me to say that I have seen him in the days of adversity, in some of the scenes of his deepest distress and most trying perplexities. I have also attended him in the highest elevation and most prosperous felicity, with uniform admiration of his wisdom, moderation, and constancy.

"Among all our original associates in that memorable league of this continent in 1774, which first expressed the sovereign will of a free nation in America, he was the only one remaining in the general government. Although with a constitution more enfeebled than his, at an age when he thought it necessary to prepare for retirement, I feel myself alone bereaved of my last brother; yet I derive a strong consolation from the unanimous disposition which appears in all ages and classes to mingle their sorrows with mine on this common calamity to the world.

"The life of our Washington cannot suffer by a comparison with those of other countries, who have been most celebrated and exalted by fame. The attributes and decorations of royalty could only have served to eclipse the majesty of those virtues which made him, from being a modest citizen, a more resplendent luminary. Misfortune, had he lived, could hereafter have sullied his glory only with those superficial minds, who, believing that character and actions are marked by success alone, rarely deserve to enjoy it. Malice could never blast his honor, and envy made him a singular exception to her universal rule. For himself, he had lived long enough to life and to glory; for his fellow-citizens, if their prayers could have been answered, he would have been immortal; for me, his departure is at a most unfortunate moment. Trusting, however, in the wise and righteous dominion of Providence over the passions of men and the results of their actions, as well as over their lives, nothing remains for me but humble resignation.

"His example is now complete, and it will teach wisdom and virtue to magistrates, citizens, and men, not only in the present age, but in future generations, as long as our history shall be read."

The committee of both Houses appointed to devise the mode by which the nation should express its grief reported the following resolutions, which were unanimously adopted:

"That a marble monument be erected by the United States at the capitol of the city of Washington, and that the family of General Washington be requested to permit his body to be deposited under it, and that the monument be so designed as to commemorate the great events of his military and political life.

"That there be a funeral from Congress Hall to the German Lutheran Church, in memory of Gen. George Washington, on Thursday, the 26th instant, and that an oration be prepared at the request of Congress, to be delivered before both Houses that day; and that the president of the Senate and speaker of the House of Representatives be desired to request one of the members of Congress to prepare and deliver the same.

"That the President of the United States be requested to direct a copy of these resolutions to be transmitted to Mrs. Washington, assuring her of the profound respect Congress will ever bear to her person and character, of their condolence on the late affecting dispensation of Providence, and entreating her assent to the interment of the remains of General Washington in the manner expressed in the first resolution.

"That the President be requested to issue his proclamation, notifying the people throughout the United States the recommendation contained in the third resolution."

These resolutions passed both Houses unanimously, and those which would admit of immediate execution were carried into effect. The whole nation appeared in mourning. The funeral procession was grand and solemn, and the eloquent oration, which was delivered on the occasion by General Lee, was heard with profound attention and with deep interest.

Throughout the United States similar marks of affliction were exhibited. In every part of the continent funeral orations were delivered, and the best talents of the nation were devoted to an expression of the nation's grief.

To the letter of the President which transmitted to Mrs. Washington the resolutions of Congress, and of which his secretary was the bearer, that lady answered:

"Taught by the great example which I have so long had before me, never to oppose my private wishes to the public will, I must consent to the request made by Congress which you have had the goodness to transmit to me; and in doing this I need not, I cannot, say what a sacrifice of individual feeling I make to a sense of public duty."

On receiving intelligence of the death of Washington, Napoleon, then First Consul of France, issued the following order of the day to the army:

"Washington is dead. This great man fought against tyranny; he established the liberty of his country. His memory will always be dear to the French people, as it will be to all freemen of the two worlds; and especially to French soldiers, who, like him and the American soldiers, have combated for liberty and equality."

Napoleon ordered that during ten days black crape should be suspended from all the standards and flags throughout the republic. On the 9th of February, 1800, a splendid funeral solemnity took place in the Champ de Mars; and a funeral oration in honor of Washington was pronounced by M. de la Fontaines, in the Hotel des Invalides, at which the First Consul and the civil and military authorities were present. {2}

The British admiral in command of the fleet lying at Torbay, on receiving the news of Washington's death, honored his memory by lowering his flag to half-mast; and his example was followed by the whole fleet. {3}

Judge Marshall, who had enjoyed the advantage of an intimate personal acquaintance with Washington, who was one of his most steadfast political supporters, and whose able biography shows a thorough appreciation of his extraordinary abilities and virtues, gives the following summary view of his character:

"General Washington was rather above the common size, his frame was robust, and his constitution vigorous—capable of enduring great fatigue and requiring a considerable degree of exercise for the preservation of his health. His exterior created in the beholder the idea of strength, united with manly gracefulness.

"His manners were rather reserved than free, though they partook nothing of that dryness and sternness which accompany reserve when carried to an extreme, and on all proper occasions he could relax sufficiently to show how highly he was gratified by the charms of conversation and the pleasures of society. His person and whole deportment exhibited an unaffected and indescribable dignity, unmingled with haughtiness, of which all who approached him were sensible; and the attachment of those who possessed his friendship and enjoyed his intimacy was ardent, but always respectful.

"His temper was humane, benevolent, and conciliatory, but there was a quickness in his sensibility to anything apparently offensive which experience had taught him to watch, and to correct.

"In the management of his private affairs he exhibited an exact yet liberal economy. His funds were not prodigally wasted on capricious and ill-examined schemes, nor refused to beneficial though costly improvements. They remained, therefore, competent to that expensive establishment which his reputation, added to a hospitable temper, had, in some measure, imposed upon him, and to those donations which real distress has a right to claim from opulence.

"He made no pretensions to that vivacity which fascinates, or to that wit which dazzles and frequently imposes on the understanding. More solid than brilliant, judgment rather than genius, constituted the most prominent feature of his character.

"Without making ostentatious professions of religion, he was a sincere believer in the Christian faith and a truly devout man.

"As a military man, he was brave, enterprising, and cautious. That malignity which has sought to strip him of all the higher qualities of a general, has conceded to him personal courage and a firmness of resolution which neither dangers nor difficulties could shake. But candor will allow him other great and valuable endowments. If his military course does not abound with splendid achievements, it exhibits a series of judicious measures adopted to circumstances, which probably saved his country.

"Placed, without having studied the theory or been taught in the school of experience the practice of war, at the head of an undisciplined, ill-organized multitude, which was impatient of the restraints and unacquainted with the ordinary duties of a camp, without the aid of officers possessing those lights

which the Commander-in-Chief was yet to acquire, it would have been a miracle indeed had his conduct been absolutely faultless. But, possessing an energetic and distinguishing mind, on which the lessons of experience were never lost, his errors, if he committed any, were quickly repaired, and those measures which the state of things rendered most advisable were seldom, if ever, neglected. Inferior to his adversary in the numbers, in the equipment, and in the discipline of his troops, it is evidence of real merit that no great and decisive advantages were ever obtained over him, and that the opportunity to strike an important blow never passed away unused. He has been termed the American Fabius, but those who compare his actions with his means will perceive at least as much of Marcellus as of Fabius in his character. He could not have been more enterprising without endangering the cause he defended, nor have put more to hazard without incurring justly the imputation of rashness. Not relying upon those chances which sometimes give a favorable issue to attempts apparently desperate, his conduct was regulated by calculations made upon the capacities of his army and the real situation of his country. When called a second time to command the armies of the United States a change of circumstances had taken place, and he meditated a corresponding change of conduct. In modeling the army of 1798 he sought for men distinguished for their boldness of execution, not less than for their prudence in council, and contemplated a system of continued attack. 'The enemy,' said the general in his private letters, 'must never be permitted to gain foothold on our shores.'

"In his civil administration, as in his military career, ample and repeated proofs were exhibited of that practical good sense, of that sound judgment, which is perhaps the most rare and is certainly the most valuable quality of the human mind. Devoting himself to the duties of his station, and pursuing no object distinct from the public good, he was accustomed to contemplate at a distance those critical situations in which the United States might probably be placed, and to digest, before the occasion required action, the line of conduct which it would be proper to observe.

"Taught to distrust first impressions, he sought to acquire all the information which was attainable, and to hear, without prejudice, all the reasons which could be urged for or against a particular measure. His own judgment was suspended until it became necessary to determine, and his decisions, thus maturely made, were seldom if ever to be shaken. His

conduct, therefore, was systematic, and the great objects of his administration were steadily pursued.

"Respecting, as the first magistrate in a free government must ever do, the real and deliberate sentiments of the people, their gusts of passion passed over, without ruffling the smooth surface of his mind. Trusting to the reflecting good sense of the nation for approbation and support, he had the magnanimity to pursue its real interests, in opposition to its temporary prejudices; and, though far from being regardless of popular favor, he could never stoop to retain, by deserving to lose it. In more instances than one we find him committing his whole popularity to hazard, and pursuing steadily, in opposition to a torrent which would have overwhelmed a man of ordinary firmness, that course which had been dictated by a sense of duty.

"In speculation he was a real republican, devoted to the constitution of his country and to that system of equal political rights on which it is founded. But between a balanced republic and a democracy the difference is like that between order and chaos. Real liberty, he thought, was to be preserved only by preserving the authority of the laws and maintaining the energy of government. Scarcely did society present two characters which, in his opinion, less resembled each other than a patriot and a demagogue.

"No man has ever appeared upon the theater of public action whose integrity was more incorruptible, or whose principles were more perfectly free from the contamination of those selfish and unworthy passions which find their nourishment in the conflicts of party. Having no views which required concealment, his real and avowed motives were the same; and his whole correspondence does not furnish a single case from which even an enemy would infer that he was capable, under any circumstances, of stooping to the employment of duplicity. No truth can be uttered with more confidence than that his ends were always upright and his means always pure. He exhibits the rare example of a politician to whom wiles were absolutely unknown, and whose professions to foreign governments and to his own countrymen were always sincere. In him was fully exemplified the real distinction which forever exists between wisdom and cunning, and the importance as well as truth of the maxim, that 'honesty is the best policy.'

"If Washington possessed ambition that passion was, in his bosom, so regulated by principles or controlled by circumstances that it was neither vicious nor turbulent. Intrigue was never employed as the means of its

gratification, nor was personal aggrandizement its object. The various high and important stations to which he was called by the public voice were unsought by himself; and, in consenting to fill them, he seems rather to have yielded to a general conviction that the interests of his country would be thereby promoted, than to an avidity for power.

"Neither the extraordinary partiality of the American people, the extravagant praises which were bestowed upon him, nor the inveterate opposition and malignant calumnies which he encountered, had any visible influence upon his conduct. The cause is to be looked for in the texture of his mind.

"In him, that innate and unassuming modesty which adulation would have offended, which the voluntary plaudits of millions could not betray into indiscretion, and which never obtruded upon others his claims to superior consideration, was happily blended with a high and correct sense of personal dignity, and with a just consciousness of that respect which is due to station. Without exertion he could maintain the happy medium between that arrogance which wounds and that facility which allows the office to be degraded in the person who fills it.

"It is impossible to contemplate the great events which have occurred in the United States under the auspices of Washington without ascribing them, in some measure, to him. If we ask the causes of the prosperous issue of a war, against the successful termination of which there were so many probabilities; of the good which was produced, and the ill which was avoided, during an administration fated to contend with the strongest prejudices that a combination of circumstances and of passions could produce; of the constant favor of the great mass of his fellow-citizens, and of the confidence which, to the last moment of his life, they reposed in him, the answer, so far as these causes may be found in his character, will furnish a lesson well meriting the attention of those who are candidates for political fame.

"Endowed by nature with a sound judgment, and an accurate discriminating mind, he feared not that laborious attention which made him perfectly master of those subjects, in all their relations, on which he was to decide; and this essential quality was guided by an unvarying sense of moral right, which would tolerate the employment only of those means that would bear the most rigid examination, by a fairness of intention which

neither sought nor required disguise, and by a purity of virtue which was not only untainted but unsuspected." The eulogies of Washington, at the time of his death, were almost as numerous as the towns and cities of the republic; for everywhere funeral honors were paid to his memory. The following, by the celebrated orator, Fisher Ames, pronounced before the Legislature of Massachusetts, is as remarkable for its conciseness as for its just and comprehensive estimate of Washington's character.

"It is not impossible," he said, "that some will affect to consider the honors paid to this great patriot by the nation as excessive, idolatrous, and degrading to freemen who are all equal. I answer, that refusing to virtue its legitimate honors would not prevent their being lavished in future on any worthless and ambitious favorite. If this day's example should have its natural effect, it will be salutary. Let such honors be so conferred only when, in future, they shall be so merited; then the public sentiment will not be misled nor the principles of a just equality corrupted. The best evidence of reputation is a man's whole life. We have now, alas, all of Washington's before us. There has scarcely appeared a really great man whose character has been more admired in his lifetime or less correctly understood by his admirers. When it is comprehended it is no easy task to delineate its excellencies in such a manner as to give the portrait both interest and resemblance, for it requires thought and study to understand the true ground of the superiority of his character over many others, whom he resembled in the principles of action and even in the manner of acting. But, perhaps, he excels all the great men that ever lived, in the steadiness of his adherence to his maxims of life and in the uniformity of all his conduct to those maxims. Those maxims, though wise, were yet not so remarkable for their wisdom as for their authority over his life, for if there were any errors in his judgment—and he displayed as few as any man—we know of no blemishes in his virtue. He was the patriot without reproach; he loved his country well enough to hold success in serving it an ample recompense. Thus far, self-love and love of country coincided, but when his country needed sacrifices that no other man could, or perhaps would be willing to make, he did not even hesitate. This was virtue in its most exalted character. More than once he put his fame at hazard, when he had reason to think it would be sacrificed, at least in this age. Two instances cannot be denied: when the army was disbanded, and again when he stood, like Leonidas at the pass of Thermopylae, to defend our independence against France.

"It is indeed almost as difficult to draw his character as to draw the portrait of virtue. The reasons are similar; our ideas of moral excellence are obscure, because they are complex, and we are obliged to resort to illustrations. Washington's example is the happiest to show what virtue is, and to delineate his character, we naturally expatiate on the beauty of virtue; much must be felt and much imagined. His pre-eminence is not so much to be seen in the display of any one virtue, as in the possession of them all and in the practice of the most difficult. Hereafter, therefore, his character must be studied before it will be striking, and then it will be admitted as a model—a precious one to a free republic.

"It is no less difficult to speak of his talents. They were adapted to lead, without dazzling mankind, and to draw forth and employ the talents of others without being misled by them. In this he was certainly superior, that he neither mistook nor misapplied his own. His great modesty and reserve would have concealed them if great occasions had not called them forth, and then, as he never spoke from the affectation to shine nor acted from any sinister motives, it is from their effects only that we are to judge of their greatness and extent. In public trusts, where men, acting conspicuously, are cautious, and in those private concerns where few conceal or resist their weakness, Washington was uniformly great, pursuing right conduct from right maxims. His talents were such as to assist a sound judgment and ripen with it. His prudence was consummate and seemed to take the direction of his powers and passions; for, as a soldier, he was more solicitous to avoid mistakes that might be fatal than to perform exploits that are brilliant; and, as a statesman, to adhere to just principles, however old, than to pursue novelties; and, therefore, in both characters, his qualities were singularly adapted to the interest and were tried in the greatest perils of the country. His habits of inquiry were so far remarkable that he was never satisfied with investigating, nor desisted from it, so long as he had less than all the light that he could obtain upon a subject, and then he made his decision without bias.

"This command over the partialities that so generally stop men short or turn them aside in their pursuit of truth, is one of the chief causes of his unvaried course of right conduct in so many difficult scenes, where every human action must be presumed to err. If he had strong passions he had learned to subdue them, and to be moderate and mild. If he had weaknesses, he concealed them, which is rare, and excluded them from the government

of his temper and conduct, which is still more rare. If he loved fame, he never made improper compliances for what is called popularity. The fame he enjoyed is of the kind that will last forever, yet it was rather the effect than the motive of his conduct. Some future Plutarch will search for a parallel to his character. Epaminondas is, perhaps, the brightest name of all antiquity. Our Washington resembled him in the purity and ardor of his patriotism, and, like him, he first exalted the glory of his country. There, it is to be hoped, the parallel ends, for Thebes fell with Epaminondas. But such comparisons cannot be pursued far without departing from the similitude. For we shall find it as difficult to compare great men as great rivers; some we admire for the length and rapidity of their currents and the grandeur of their cataracts; others for the majestic silence and fullness of their streams; we cannot bring them together, to measure the difference of their waters. The unambitious life of Washington, declining fame yet courted by it, seemed, like the Ohio, to choose its long way through solitudes, diffusing fertility, or like his own Potomac, widening and deepening its channel as it approaches the sea, and displaying most the usefulness and serenity of its greatness toward the end of its course. Such a citizen would do honor to any country. The constant veneration and affection of his country will show that it was worthy of such a citizen.

"However his military fame may excite the wonder of mankind, it is chiefly by his civil magistracy that his example will instruct them. Great generals have arisen in all ages of the world, and perhaps most of them in despotism and darkness. In times of violence and convulsion they rise, by the force of the whirlwind, high enough to ride in it and direct the storm. Like meteors, they glare on the black clouds with a splendor that, while it dazzles and terrifies, makes nothing visible but the darkness. The fame of heroes is indeed growing vulgar; they multiply in every long war; they stand in history and thicken in their ranks almost as undistinguished as their own soldiers.

"But such a chief magistrate as Washington appears like the pole-star in a clear sky to direct the skilful statesman. His presidency will form an epoch and be distinguished as the age of Washington. Already it assumes its high place in the political region. Like the milky-way, it whitens along its allotted portion of the hemisphere. The latest generations of men will survey, through the telescope of history, the space where so many virtues blend their rays, and delight to separate them into groups and distinct

virtues. As the best illustration of them, the living monument, to which the first of patriots would have chosen to consign his fame, it is my earnest prayer to Heaven that our country may subsist even to that late day in the plenitude of its liberty and happiness, and mingle its mild glory with Washington's."

1. Footnote: Our authority for the details of Washington's last illness and death is a statement carefully prepared by Mr. Lear at the time, and published from the original in Sparks' "Life of Washington." It is the most exact and reliable authority extant.

2. Footnote: Sparks, "Life of Washington."

3. Footnote: Sparks, "Life of Washington."

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